

NEPAL TRANSITION TO PEACE: A DECADE OF THE COMPREHENSIVE PEACE ACCORD (2006-2016)

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Preface

The Comprehensive Peace Accord (CPA) signed on November 21, 2006 has historical significance in more than one context. First, the CPA was signed by the Chairperson of the then Communist Party of Nepal (Maoist) Pushpa Kamal Dahal 'Prachanda' and the then Prime Minister Girija Prasad Koirala, and not by the king. Secondly, the Maoists, who took up arms against the state, came to terms with the Seven Party Alliance (SPA) to negotiate for bringing peace as the insurgency had affected huge parts of the country since February 1996. Thirdly, they supported the peaceful agitation led by the SPA to force the monarchy to surrender the state power to the elected but dissolved parliament, and brought back democracy on track. Fourthly, the Maoists practically accepted the parliamentary system as they shared the power by joining the legislature-parliament and subsequently the government. They also accepted the interim constitution that paved the way for the constituent assembly election. Fifthly, after signing of the CPA, there has been no notable unilateral violation of the accord by the insurgents. Lastly, it paved the way for declaring Nepal a republican, secular and federal state.

The journey began by such a historical peace accord has reached a decade and Nepal has a new Constitution promulgated through Constituent Assembly for the first time in its history. In these ten years, Nepal Transition to Peace (NTTP) process which began as an informal dialogue platform for the major political parties has developed itself into a peace institute. Nepal Transition to Peace Institute (NTTP-I) is a peace research institute founded upon the history of decade-long engagement in Nepal's political transition as a credible and Track 1.5 peace process for mediation, facilitation, and dialogue among the political parties of Nepal since 2005. As a trusted forum for informal dialogues among the political parties, NTTP Forum has been functioning to resolve political standoffs, thaw stalemates and promote peaceful engagement among the political parties even at critical times in a low key and trusted setting. Envisioning a wider role in Nepal's conflict transformation processes as a peace institute, NTTP Institute conducts evidence-based, non-partial and informal dialogues.

As a process supporting Nepal's peace process for over a decade, Nepal Transition to Peace Institute takes pleasure to commemorate the ten years of signing of the Comprehensive Peace Accord (CPA). Among other significances, this edited volume provides for a record of the peace process so as the nuances of the actors, process and the institutions involved do not disappear in the vaults of history. This book features 30 articles from academicians, political party leaders and practitioners who have been associated with Nepal's peace process in various capacities. Also, it consists of 24 interviews with eminent figures who were directly or indirectly involved in the peace process in the form of primary actors, facilitators, advisors or observers. I would like to thank the authors, interviewees and the editors for their contribution in making this edited book a landmark publication on the historical occasion of the ten years of signing of the CPA.

November, 2016

Daman Nath Dhungana
Chairperson
Nepal Transition to Peace Institute

Foreword

Over the last week I have been reading the 300-page agreement just released by the negotiators in Colombia that will end their 52 years old war. They are just now taking the first steps down the long journey of implementation. At the same time I have been reviewing the various chapters that form this book analyzing the past ten years since the signing of the Comprehensive Peace Accord (CPA), and reflecting back on my own experience of peacebuilding across those same years in Nepal, particularly with the political dialogues hosted by the Nepal Transition to Peace forum (NTTP). In my support of the Colombian process I have learned enormously from the Nepal process.

I remember quite well one of our NTTP conversations while we were waiting for everyone to arrive to our Forum meeting. The Senior Facilitators of the NTTP had asked my assessment: What did I think about the success of the CPA? The question posed the difficulty of the moment and the wider context. The CPA implementation had reached into the sixth year. The first Constituent Assembly had collapsed, politics was divided over the meaning of Federalism, social unrest was rising, and the war period violence had not fully disappeared.

I suggested that ‘success’ depends very much on the ‘temporal lens’ through which you look. If we look by way of the original accord’s proposed timeframes around which the international community often built its support projects, implementation had slowed and in many cases remained unfulfilled. Many felt it was failing. But that is a temporal lens of months to a few years. If we looked by way of the agenda emergent within the aspirations and processes required to re-write a constitution we needed to shift toward a temporal lens that saw a longer, decade-like process of political dialogue. Here, many were pessimistic at that time. But if we took a big step back and asked how a ‘New Nepal’ would emerge and address the challenges of becoming a federal Republic that would seriously engage the transformation required to attain robust inclusion, respect, and participation all of which would require significant structural and cultural change, then perhaps we needed the temporal lens of a century or two to judge the significance of the CPA. I recall that this latter comment evoked a lively debate.

As many readers of this volume will know, I have been a strong advocate for decade thinking in peacebuilding, the type of strategy development and engagement that moves beyond the narrow confines of a project mentality that far too often has defined international agency and aid. Nepal's political leaders often referred to the CPAAs the homegrown peace process, one that emerged more naturally among the core actors who framed and supported the negotiations without formal outside mediation. I experienced this in close proximity through my work with the NTTP Forum before, during, and after the formal signing of the agreement. The Nepalis I worked with the closet, the Senior Facilitators, Padma Ratna Tuladhar and Daman Nath Dhungana, along with strategic coordinators Vidyadhar Mallik, Bishnu Sapkota, and Sajana Maharjan, I always understood 'homegrown' to mean their full commitment to relationship building across the deep social and partisan divides in support of much needed sustained dialogue among key political actors and with the wider Nepali society. Their accompaniment and creativity throughout the process holds a compelling, though mostly untold story of persistent, quiet diplomacy.

At the same time I have gained enormously from the comparative study of peace agreements initiated by Professor John Darby and now carried forward by one of Nepal's most significant peace researchers, Madhav Joshi who leads the Kroc Institute's Peace Accord Matrix at the University of Notre Dame. The Matrix compares 34 agreements across 51 provisions studied carefully year-by-year for a decade. We know from this longitudinal research that peace agreements comprise an interdependent set of provisions that create a system of interlocking change processes. Several dynamics stand out that the Nepal process helped elucidate. Through comparative study we know that peace agreements have ambitious timeframes with proposed deadlines that are rarely met. We know that slow downs in one area of implementation create cascading effects that can negatively or positively impact other provisions of the accord. With a longer-term view, we know that a commitment is required to continued political engagement in the face of rising, unexpected challenges, but if sustained the process permits a move from transitional issues toward the transformational agendas found in the aspirations of most agreements, this particularly true in the arena of shifting from the iron grasp of war to a landscape of inclusive politics without violence.

Looking specifically at Nepal's peace process I make note of numerous innovations and the challenges that still remain. Nepal's agreement took on a deep and strategic agenda, the only agreement in our comparative research that successfully navigated to a Republic and one of few that engaged with re-writing

a constitution that opened toward wider inclusion. It is hard to imagine that Nepal national consciousness about the need to address the inclusion of women and minorities, with that image of much wider diversity in the opening of the first Constituent Assembly, will not remain a constant horizon demanding more robust fulfillment in decades to come. At the same time many of the significant commitments to victims' concerns, land reform, development and human rights have not been fully implemented. Our assessment at the Peace Accord Matrix suggest the Nepal CPA has been about 75% implemented at the ten year mark, wherein the challenge is that the remaining 25% still holds some of the deepest root causes of social unrest and grievance.

This book makes a significant contribution to the bigger picture. The breadth of reflections from Nepali and foreign scholars bring a wealth of diverse assessments of CPA and its implementation on various issues that will remain relevant in Nepal's peacebuilding trajectory for decades to come. At the ten-year mark this retrospective effort by the NTTP captures both the advances and remaining challenges of the peace process. I think history will judge the CPA as a turning point for the country. The Century-lens will locate this decade as the point of no-return, the early emergence of a new social compact that will not regress to the near feudal structures of the past and will continue to forge the Nepal the peoples across this extraordinary nation deserve and can build together. From that lens, I deem the CPA a success.

John Paul Lederach

September 18, 2016

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We particularly thank Daman Nath Dhungana and Padma Ratna Tuladhar for their overall guidance. We specially thank Prof. John Paul Lederach for his guidance from the beginning of this book project and his inspiring foreword. We are obliged to the review panel members who tirelessly conducted the blind peer review. We also thank Dr. Madhav Joshi for his in-depth review which propelled the editorial team to motivate the authors on revising and polishing their drafts. We thank all the authors for their commitment on their articles and the interviewees for their interviews without which the ultimate purpose of producing a book equally useful for the academia and practice would not have realized.

The editors are grateful to number of individuals and organizations for making this book a reality. Rajendra Raut, Sujana Rai, Shiva Ram Pudasaini and Shreya Sharma at Nepal Transition to Peace Institute deserve very special thanks. We are indebted to them for their support in the overall process from calling the abstracts to reference checks. We are grateful to Maria Barrón, Ramesh Adhikari and Amanda Cats-Baril at Democracy and Governance Office of United States Agency for International Development in Nepal for their suggestions. We also thank Riya Basnet, Pitambar Bhandari and their team for translating some of the articles and interviews.

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We would like to express our special gratitude to Nepal Transition to Peace Institute for this historical opportunity of editing this landmark publication. Finally, our thank goes to United States Agency for International Development and the Embassy of Switzerland in Nepal for the very indispensable funding which helped in publishing this book.

Editors
November, 2016

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Introduction

**Birendra P. Mishra, Bishnu Sapkota
Pankaj Adhikari, Subhash Ghimire
Sumit Sharma Sameer and Vidyadhar Mallik**

Nepal's current political transition to peace was crafted by the Comprehensive Peace Accord (CPA) signed in 2006 between Communist Party of Nepal (Maoist), and the government supported by the Seven-party Alliance (SPA) which led the April 2006 people's movement. Never in history since the formation of state of Nepal led by monarch Prithivi Narayan Shah in 1768, any transitional path eliminated the 240-years old monarchy from the Nepali historical collage. The CPA was born with an utmost need to put an end to the bloody war that had lasted for ten years since 1996 in so far the Maoist insurgency was itself a product of unitary, unresponsive, patriarchal state limited within the walls of Singhadurbar.

A decade after the signing of CPA, Nepal has promulgated a new Constitution in 2015 from the Constituent Assembly institutionalizing Nepal from a unitary, Hindu, monarchical state into a federal, secular, and republic state. Although it has been argued that the years 2006-2016 have been overarchingly pessimistic in terms of fulfilling the promises made in the people's movement of April 2006, transition has always prevailed in Nepal's history as well as contemporary times. After the global second wave of democracy, Nepal witnessed 'democracy with monarchy' in 1951. Historical junctures like the first democratic parliamentary election in 1959, the collapse of the nascent democracy in 1960 by absolute royal rule, and the restoration of parliamentary democracy in 1990 are only some of the historically significant events in the political transition of modern Nepal which immediately precede the Maoist insurgency and the subsequent Comprehensive Peace Accord (CPA).

A decade after the CPA, several questions which were asked in 2006 remain unanswered amidst number of historically significant achievements rarely observed in globally comparative contexts given the span of time involved. When CPA was signed, it had reaffirmed its commitment to the 12-points

understanding , 25-points codes of conduct for ceasefire , 8-points agreement as well as the spirit of the letters sent to the United Nations by the Government of Nepal and the Maoists , and formalized the decisions of the Summit Meeting of the Seven-Party Alliance and the CPN (Maoist) adopted on November 8, 2006 . CPA had also pledged for forward-looking restructuring of the state by ending all forms of discriminations prevailing in Nepali society and resolving problems related to class, gender, geography and ethnicity.

The foundation for peace in Nepal set by people's movement of 2006 and the CPA, and complemented by mandate of Madhesh, Janajati and Dalit movements has been consolidated with the promulgation of a new Constitution after election of two Constituent Assemblies, integration of Maoist combatants and management of their arms, provision of interim relief and compensation to conflict victims, establishment of Truth and Reconciliation Commission and Enforced Disappearances Enquiry Commission and rebuilding of some public physical infrastructures. Despite these achievements, challenges remain. The scope of the foundational tenets of the constitution has been contested by the Madheshi, Janajati and marginalized movements . Above all, these movements are still opposed to the proposed federal demarcations. In addition, there remains disputes and contestations on how Truth and Reconciliation Commission and Enforced Disappearances Enquiry Commission, two fundamental components of the peace process, should function.

To document the achievements and outstanding issues considering Nepal's context, involved institutions and processes as well as the prospect of Nepal's walk to peace and development, this edited volume brings together a mix of articles by both academicians and practitioners, and interviews with key stakeholders involved in the peace process. This edited book, a collection of thirty articles and twenty-five interviews is organized into 5 sections. Each section features the articles along with "CPA Talk", interviews with key actors of Nepal's peace process.

Section I portrays the contexts of the Comprehensive Peace Accord from multiple perspectives. Lokraj Baral explains the role of Nepali political parties in the broader context of democratic transition. While Birendra Mishra discusses how the CPA was monitored, Suresh Ale Magar introduces the Maoist evaluation of the peace process. Simon Robins questions the transformational aspirations of Nepali citizens vis-à-vis the pronged transition. Section I includes CPA Talk with Pushpa Kamal Dahal 'Prachanda', President Jimmy Carter, Baburam Bhat Terai, Madhav Kumar Nepal and Krishna Sitaula.

Section II includes articles which explain the various accomplishments made in the last decade. Dhirendra Nalbo and Jacob Rinck, and Geja Sharma Wagle deal with the reintegration and rehabilitation of the Maoist combatants. Safal Ghimire analyzes the governance of the overall security sector. Tara Prasad Sapkota provides legal and judicial analysis of the aspects of the CPA. While Chandra Mani Gautam provides a general reflection, Uddhab Pyakurel assesses the CPA from peace and stability perspective. This section includes CPA Talk with Ian Martin, Rensje Teerink, Bhim Rawal and Devendra Raj Pandey.

Section III features articles which prioritize discussions on outstanding issues. Mohna Ansari gives a retrospective from human rights and gender aspects in relation with the CPA. Ram Kumar Bhandari presents the victims' perspectives on transitional justice aspect. Indra Adhikari and Chiranjibi Bhandari explain the gender realities in Nepal's security forces and female ex-combatants respectively. While Parshuram Tamang explains the CPA from the eyes of Janajatis, Chandra Kishore and Mohan Singh present Madhesh perspectives on the CPA and the subsequent political developments. Yam Bahadur Kisan discusses the outstanding issues from Dalits' perspectives. Jagat Basnet presents the question of 'land reform' another historically crucial aspect of the CPA. Lilamani Pokharel and Raghu Ghimire analyze the missing realities of the Nepal's peace process from a left perspective. This section includes CPA Talk with Mohan Vaidya 'Kiran', Stella Tamang, Hridyesh Tripathy, Jorg Frieden and Upendra Yadav.

Section IV includes the articles which discuss various formal and informal institutions as well as mechanisms which played key roles in the peace process. Deepak Prakash Bhatt presents reintegration of Maoist combatants in Nepal as a native model of Nepal. Simon Richards and Pankaj Adhikari dissect an informally facilitated Track 1.5 dialogue process 'Nepal Transition to Peace' which played an important role for dialogue facilitation among the political parties in Nepal, and present its learnings and challenges. Andries Odendaal and Kiran Prasad Dhungel discuss local level peacebuilding and the successes and problems of Local Peace Committees. Dirk Splinter and Ljubjana Wuestehube present the findings of an approach for interpersonal dialogue (sha:re) designed to support the reintegration of ex-combatants after the dissolution of the cantonments by making use of storytelling methodology. Keshav Acharya discusses community governance as a model for local peacebuilding. This section includes CPA Talk with SD Muni, Hannes Siebert, Vidyadhar Mallik, Malla K. Sundar and Dev Gurung.

Section V includes the articles which discuss the prospects of Nepal's political development. Krishna Hachhethu analyzes nation-building and the new constitution. Punam Yadav examines post-CPA Nepal from gender perspectives. Jeffrey R. Seul presents his proposal for engagement between conflict resolution and human rights professionals over their persistent disagreement on transitional justice. Terry Savage and Nirajan Thapaliya analyze truth and reconciliation in Nepal and present strategic options for truth recovery. George Varughese and Anil Raman present a critique on statist peacebuilding model reflecting upon donors. This section also includes a summary of the findings of Integrated Governance Project survey conducted by Democracy & Governance Office/ USAID Nepal on public perception on Comprehensive Peace accord in Nepal. CPA Talk with Pradip Gyawali, Krishna Bahadur Mahara, Shyam Sharan and Alaina B. Teplitz are included. Finally, the book concludes with CPA Talk with the two senior facilitators of Nepal's peace process Daman Nath Dhungana and Padma Ratna Tuladhar.

Finally, it is expected that this edited volume shall cater to the needs of both academicians as well as practitioners including all interested political actors, experts and practitioners in peacebuilding and transitional justice, victims/survivors and conflict-affected persons, media persons, academia and supporters/observers of Nepal's peace process.



Pushpa Kamal Dahal 'Prachanda'

***Prime Minister and Chairperson, Communist Party of Nepal
(Maoist Center)***

How do you see the last ten years of the peace process?

Nepal's peace process is unique and it was a new exercise. There were many ups and downs, which I think is natural. We signed the CPA, then the two elections of the constituent assembly resulting into a new constitution. I feel we have succeeded in this whole effort, and Nepal had no alternative to peace.

What brought together the Maoists and the seven parties in the midst of war?

We had communicated to the political parties, especially Nepali Congress and UML, about our desire for peace and election for the constituent assembly. They did not accept our proposal initially and that is why the peace process was delayed. But soon after King Gyanendra took over power, dismissed political parties and putting some of the leaders behind bars, Girija Prasad Koirala and UML accepted our peace proposal. We found a new political environment to fight against king's dictatorial regime which then ultimately paved a way for 12-point agreement and the CPA.

I get a lot of questions from scholars around the world about the manner in which we came to peace process and shifted the orientation of the Maoists movement, taking huge personal and political risks.

I donot think we have examples of communists and Maoists coming to peace process this easily. As supreme commander of the Maoist movement, everything was guided back then by Prachandapath. Many feel that the decision to come to peace process was against the principle of Maoism. However, I analyzed the domestic and international situation and took the step to safeguard the sanctity of the movement, or else we would have been destroyed in the course of war. Marxism teaches one to understand the reality and take necessary steps. The Maoist common had absolute command and faith over its cadres, and our decision to end war was wholeheartedly supported. Moreover, king's decision to suspend the parliament played a huge role in our decision.

It is also related to the way I think and lead. I do not hesitate to take steps when situation changes. I was once secretary of a small party called MotoMasal. I felt this group wouldn't survive long and so I unified five to seven small parties to form Ekata Kendra and went to election. I saw no viable path from election and so decided to go to war.

The whole peace process needs in-depth study. Girija Prasad Koirala rejected violence, but he and Madhav Kumar Nepal went beyond their principle to initiate talks with me. Was that their missteps? Or was it my mistake to come to the peace process?

Therefore, we need a philosophical interpretation of whatever we are exercising in Nepal. This is a new exercise, and a new theory.

Why did the peace process prolong for over a decade? The overall progress on many fronts during this period has been rather disappointing.

We were dealing with complicated issues. One could argue that this came to a logical conclusion in just ten years. Many countries are still trying to figure out post-war peace even decades after war. We were able to change our political system and we are working to translate the political changes in economy in order better lives of our people.

Whatever Nepal has achieved in the last decade is not small. However, there is humungous challenge in institutionalizing and moving forward in under democratic framework. How do you see the path forward?

This is sensitive and important question. Our political achievements are historic and will have a huge impact for foreseeable future. The concern is: will this be institutionalized? This is an ongoing effort. We are in the process of implementing the new constitution. We have to work hard to ensure that the systems we fought for are protected. All political forces need to work together on this and create conducive environment for future course.

TRC and CIEDP have started their work. Do you foresee any possibility of the cases being internationalized?

The two commissions have been started their work. The government is committed to provide them with necessary resources. Moreover, we are also working on amend the TRC act so they can work independently. The commissions are in conversation with international agencies and domestic forces. I am seeing an environment where different parties can come together on this issue. I do not believe this will be that complicated.

India and Pakistan are trading jabs. China is consolidating its influence in the region and the world. There is sort of this global conservative movement. How will all this affect Nepal?

We have always stated our foreign policy as non-aligned. We have strong faith in the United Nations and the systems in place. The on-going India-Pakistan conflict impacts Nepal one way or the other. We have no option but to protect our sovereignty and freedom, and maintain good relations with our neighbours. We have been working vigorously to easing relations with India and China.

The Madhesh-based parties have been demanding constitutional amendment. When will this happen?

This government has been working hard to address the demands of the Madhesh-based parties. We are discussing the all the political forces for amendments. This is a complicated issue. We need two-third majority to amend the constitution, and this needs lot of work. Moreover, even the Madhesh-based parties are not united. The hardliners are obstructing the amendment. UML is not ready to realign provincial borders, and MadhesiMorcha has not accepted Maoist (Centre) and Nepali Congress proposal. This is difficult. We have to work on this and ultimately go for the elections.

After the war, there was a sense of national purpose. There was energy all around. We don't see that now. Our society is deeply divided. Some even yearn for the good old days. Do you think the democratic forces are in the defensive?

I don't feel that way. We made mistakes, but I think we are largely on track. It upon the political parties in the country to work together for peace and prosperity. I don't think we have to worry about the country sliding into the past.

Nepalis have been yearning for peace for years now. We have seen new challenges even after the promulgation of our new constitution. We also have huge challenges in socio-economic fronts. When can Nepalis live in peace?

We really need to work on economic progress and create wealth for the mass. Development and peace are inter-dependent, one cannot be achieved in the absence of the other. We are relatively at peace now. Lasting peace is all our concern and it depends on a host of factors, many outside our borders. We, as a country, are moving towards peace and prosperity.



Democratic transition in Nepal and the role of political parties

Lok Raj Baral

Introduction

Transition is generally understood as a “change from one state or condition to another” and is short in duration. Yet its mission must be clear. In political term, the task of accomplishing a task within a prescribed timeframe is taken as transition. The movement or revolutionary period demands some stop gap arrangement for setting a new course for political permanence and stability. In the post-movement period, the definite goal of transition is to prepare a constitution in accord with the spirit of movement. However, in Nepali context, transition is a buzz word in that there have been many movements that sowed the seeds of instability during the much hyped period of transition making it a “permanent transition” or intermittent transitions that come along with the new changes that Nepal have undergone in intervals.

How disruptive or intermittent transition occurs in Nepal from time to time needs to be objectively studied. Some of the causes of failed transitions can be put under these rubrics:

- (a) perverted ideology
- (b) disruptive developments
- (c) failure of institutionalization
- (d) fractured mandate
- (g) systemic relevance and
- (h) invited and uninvited external roles for changing the course of politics.

Ideological perversion

Ideological perversions are now a universal phenomenon as even the stable democracies of the Western variety face them, despite their successes in heralding smooth transitions after a movement. These systems have been successful from many other dimensions also. Holding of elections in regular intervals and broad

acceptance of the minimum value consensus to make system functional and stable are the success stories. Economically and socially, however, such regimes are not free from criticisms. Systems that fail to deliver goods and services or lack in political management by not accommodating the emergent demands of inclusion face violent rebellion. Many Latin American, Asian and African countries seem to pass through the ordeals of performance legitimacy and are perennially vulnerable to political upheavals. Leaders who come to power with strong populist slogans, despite being elected, have fallen prey to abrupt changes. So ideology without a strong backing of performance—addressing the basic needs of people—becomes irrelevant to political stability. Economically, all the countries are in a Herculean dilemma on how they should reconcile to the market driven global economic pressures and to the social demands of greater state role in alleviating poverty and ensuring social justice.

Ideology in the so-called communist countries (very few in numbers today) is either dehumanized or is in the processes of transformation. China, the prospective superpower, has adopted Janus-faced ideology—free market economy which is described by state-controlled liberal economy and one-party political system. Such a mixture does not fit into the Marxist-Leninist doctrine with centralized structure. It has been rightly described by Chris Patten in his book *What Next?*

He writes:

There is no Marxism left in China, though there are bits of Leninism. The Revolutionary proletariats, in the shape of leaders who are often the prince's children of an earlier generation of leading cadres, dictate policies that bear little resemblance to any known form of socialism. (Patten, 2008)

The changes made in Russia following the fall of the Communist regime in 1990-91 have not given any clue to what system the present-day Russia has adopted. The main purpose of the above narrative is to impress that ideologically the world is undergoing a sea change and a country like Nepal cannot be an exception. What makes a major difference is that Nepal, unlike many countries, needs to do all things at a time because of its failures to stabilize a legitimate political order.

Nevertheless, all transformations that have been initiated by political forces regardless of their past ideological predilections are focused on liberal values. Political parties like Communist-Party of Nepal (Marxist-Leninist or CPN

(UML), Communist Party of Nepal (Maoist) or their numerous upshoots and others, including the orthodox traditionalists, have committed themselves to liberal democracy. Their origins and anti-liberal democratic ideological backgrounds have now been sold out to liberal democracy. Thus, in Nepal, it is not only the Nepali Congress, a liberal democratic party from its very birth, but all other parties of the Left and Right variants also subscribe to liberal values. Nevertheless, the ideological perversions are pervasive in parties' functioning and almost all political parties and leaders have distorted liberalism and democratic practices. Corruption, favoritism, nepotism and informal string pullers are integral to the system. Thus, democracy has turned into a mere formality.

The names of Left parties that prefer to call them Communist or Marxist or Leninist are no longer so because of their opportunistic transformations to be leaders of these parties finding spaces in the structure of power so much so, as of today, six communist leaders have become Prime Ministers. The size of the Left parties has grown, dominating the political landscape with overwhelming strength. If they unite, no other parties, let alone the old NC, can replace the Left force. But their divisions, not on ideological lines, but on personal grounds, have enabled other non-left parties to come to power or in forming coalition to enable them to present as power stakeholders.

Disruptive developments

Nepali politics is characterized by disruptive trends since the fall of the Rana regime in 1951. The agenda of Constituent Assembly (CA) for steering the course of future political development was soon abandoned by the restoration of powerful monarchy and its impacts on dividing parties and leaders. Politics became a pastime affair with the monarch himself playing the role of main actor while using parties' leaders and parties for diminishing the significance of a constitution prepared by people's representatives. The post-Rana political developments could not pave the way for democratic stability, nor did the post-Rana transition for holding election to CA materialize. On the contrary, the powerful monarch—Mahendra—awarded the Constitution in 1959 on his own terms. Political leaders had no other options but to accept the royal award and participate in the elections held in 1959. But the ambitious monarch was not happy with the government of Nepali Congress (NC) party headed by B.P. Koirala whose charisma and dynamism always made the King suspicious. Impatient as he was, the King first dropped hints that he would not hesitate to take any drastic action for the country and the people, and then took the step of dissolving the “parliamentary process” on 15th December 1960. It was

thus a culmination of the design for usurping full power to run his own regime tailored to his ambition. It was yet another major departure or disruption from the envisaged path of political development.

It was also interesting to note that the new royal regime was short of legitimacy as it was brought by the King by staging a military coup. Second, it had no direction as the new courtiers, who joined the King's camp were from the outlawed political parties—NC and others—started assuring the people that parties' flags would once again be seen after sometime. It meant that the coup staged for dissolving parliamentary system had no mission but to consolidate absolute monarchical rule. Since it was called “a stop-gap” arrangement, assurances were given for returning to the abandoned system. So it could be called transition to nowhere because political direction was vague based on opportunistic moves that the King were likely to take from time to time. During 1960-90, the regime had various incarnation of election by show of hands, election by consensus and without organizations and elections based on adult franchise (Baral, 1977). Eventually, the people's movement launched in 1990 for the restoration of multiparty system ended the regime, forcing the King to yield to the demands for transforming his role into a constitutional monarch.

Now another transition began for making a constitution in accord with the spirit of the movement. The Interim Government headed by the NC leader K.P. BhatTerai was given the task of making a constitution and hold elections to parliament shortly. It was a short-transition that accomplished its mission by giving a constitution in November 1990. Political parties that had participated in the movement —principally the NC and the Left Front—plus the nominees of the King were in the Interim cabinet. It was indeed a transition with limited objectives. However, the new constitutional experiments in the post- movement period once again proved disruptive with the parties' leaders quarreling for petty individual interests with which they started making and breaking parties and governments. First, the new CPN (UML) played the role of ugly opposition soon after the installation of NC government headed by G.P. Koirala and second, the tall leaders of the ruling party started picking up quarrels among themselves weakening the role of elected Prime Minister who said that he was only a temporary (*myadi*) Prime Minister because of three months time given to him by the party convention to correct his wrong doings. Ganesh Man Singh, an NC leader, under whose initiative the anti-regime movement had become successful, was not satisfied with the Prime Minister. Subsequently, personal quarrel and ego problem drove Ganesh Man Singh to leave the party. BhatTerai, in later stage, followed Singh to renounce the membership of the party on the

grounds that the NC had lost its original identity as a constitutional monarchical party following its decision to embrace republic in 2008.

Political brinkmanship and the worst form of coalition politics began with the fall of the NC government in 1994 mid-term election. Using mid-term election as political gamble for consolidating his own position vis-à-vis his senior party distracters, Singh and Bhat Terai, Prime Minister G.P. Koirala singlehandedly took a decision to go to the election. But Koirala reduced the status of his party to the second position (next to CPN UML) allowing the first party (without majority) to form the government. It was unexpected development in many respects. First, the new government would be a communist-led government in which no other parties were partners. To the great surprise of many, the CPN (UML) came to power for nine months. Later, when the NC pulled out its support, Prime Minister Man Mohan Adhikari decided to take an electoral plunge by dissolving parliament. When the Supreme Court restored parliament, NC decided to form a coalition with the support of non-communist parties like Rashtriya Prajatantra Party and Nepal Sadbhawana Party.

During the period between 1995-99, Nepal experienced various forms of government—minority one party government, coalition of diametrically opposite groups such as RPP, NSP and the communists, and majority government leading to the reemergence of a powerful monarchy reminiscent of the pre-1959 period. In fact, the centrality of Palace was accepted by the movement parties soon after the erosion of their popular image along with the inter-party and intra-party conflicts. Weakened and demoralized leaders paved the way for yet another royal ascendancy with the new King Gyanendra trying to revive the old glory of absolute monarchy as initiated by his late father Mahendra. Gyanendra ended the constitutional process by hiring and firing Prime Ministers and ministers at his own discretion without recourse to constitutional provisions. Such regressive measures and marginalization of political parties eventually helped unify the opposition forces including the Maoists. The 12-point agreement reached between the CPN(Maoist), then an outlawed guerilla force for ten-year long armed insurgency, and the Seven Party Alliance known as parliamentary parties was successful in ending the 240-year old monarchy, besides deciding Nepal as a secular state, election to CA in order to fully realize popular sovereignty, and inclusive democracy.

Any new change in Nepal is the product of sudden jump of politics from one stage to another. I prefer to call it a “jump theory of politics” that leaves behind the previous processes and regime types without articulating new one (Baral,

2012). In the post-2007 political developments, politics is still uncertain as the forces of change—the parties—are in disarray or tend to be despondent for making the system stable. Politicians try to take refuge under what they call “transitional period” when they fail to abide by the spirit of the movement or to deliver to the people.

Crisis of institutionalization

The chaotic transition, if we call it “transition” does not help develop institutions as has happened since the fall of the Rana regime. Political institutions can grow only when minimum rule is followed by political parties’ leaders. There has been a general trend in Nepal that parties become smart enough to launch movements and bring down the regimes, but fail to institutionalize the gains of the movement. Changes of 1950, 1990 and 2006, to single out only the periods of party politics, consolidated no gains. Now we have the constitution made by the duly elected CA, but on the very day of its promulgation, promises for amending it were made in order to pacify the Terai-Madhesh, Tharu, Janjatis and other dissatisfied sections of society. And in Nepal, in the name of amendment, rewriting of constitutions takes place. It happened during the royal era (1960-90) and it is being repeated even after making successful movements. The Interim Constitution was amended eleven times within a short period of six years.

If the present constitution meets the fate of the previous constitutions, the agenda of political institutionalization is not likely to be materialized in the foreseeable future. Other developments may overtake the constitutional process making the context more complex and difficult. The three major parties, without which constitutional changes are impossible because of the requirement of two-thirds for amending the constitution, are still crucial for institutionalizing democracy and for insuring the ownership of the disgruntled sections of society and region for the constitution. As of now, the three parties that worked in tandem for proclaiming the constitution are no more together.

The CPN (UML) and the NC parted their company after they decided to contest the post of Prime Minister. NC’s Sushil Koirala had to yield to the pressure of K.P. Sharma Oli of the CPN (UML) for vacating the post after the declaration of the constitution. Meanwhile, some instant factors such as support of the Madheshi parties and the alleged sympathy of India for Koirala didn’t leave Oli uncontested. Although Oli became Prime Minister with the support of the UCPN (Maoist), the previous camaraderie between the NC and the UML leader

soured putting the NC, which is the largest party in parliament, in the opposition camp.

Fractured parties and shaky leaders

Transition in Nepal is either aborted or takes a permanent feature due to fractured parties and weak, short-sighted leaders. Nevertheless, it is also a paradox that the same parties and leaders are the vanguards of movements and of epochal changes of the country. The oldest liberal democratic party—NC—led the revolution in 1950, 1990 and 2006. The communist groups that transformed from violent underground groups to systemic parliamentary parties after undergoing ideological changes are no less significant for asserting people's basic rights. They have subscribed to the liberal parliamentary democracy, albeit now being practiced as distorted parliamentary system, and have almost identical agendas that have been adopted by NC.

Ideologically, therefore, it is very difficult to make any distinction between these three parties. Such a convergence of ideology and working-relationship have contributed to making structural changes but in substantive sense, politics is still dominated by the traditional political culture and anomic behavior, allowing a few leaders to make decisions in the name of parliament and parties. So extra-parliamentary practices and personalized leadership have reduced the role of parliament and parties. In fact, the traditional concept of parties has undergone a sea change, making parties as merely the tools for holding elections to catapult leaders into the positions of power and status. It does not mean that there are no other beneficiaries in the name of parties. Moreover, the processes of fragmentation and division on non-ideological grounds have also made some parties more precarious as the leaders cannot even fill the posts that are supposed to be done by president of a party. In NC, problems of filling Working Committee membership by the president are increasingly becoming a tough job. Other so-called communist parties are not immune to such ailments.

The fractured mandate the parties receive in the elections has made both party and political system more vulnerable to exigencies of change. Since no parties get majority, they need to depend on other parties and individuals. It means uncertain stability and governmental inefficiency. When governance has been hijacked by extra-parliamentary lobbies, muscle power and vested interest groups and individuals, systemic atrophy creeps into the process. Today the elected governments have invariably failed in providing good and efficient government. The stories of the main Communist parties are no less problematic. It is interesting

to observe the plight of Prachanda (Maoist Center) who has to satisfy his party members by swelling the size of the Central Committee (1,099 members) to prevent the division of the party. Too many aspirants with little organizational discipline make the leadership weak. So communist parties are worst sufferers of organizational splits and most such divisions are basically caused by personal factors. Other smaller parties, including one-man party have become the spoiler of the parliamentary process with each of them splitting for getting posts in the government. While nominating representatives under the proportional system, many Madheshi leaders have nominated their wives or closet relatives at the cost of diehard party members. Discredited as they are, the general people often teach lessons to them by defeating in elections. However, such practices become norm, if not rule for political leaders in Nepal.

The fractured electoral mandate is attributed to the mixed electoral systems—first-past-the post and proportional. Although greater weight is given to the first-past-the-post (60 percent) and proportional system (40 percent), the selection of candidates by parties is done on the assumption of winability thus depriving women, dalits, janjantis and others. Lack of strong party support does not enable them to win direct elections. And the second system—proportional—is used for fulfilling the constitutional requirement of making the system participatory. The closed list system, which is not made public for public scrutiny during the election, gives unchallenged power to the leaders who make choice mainly on subjective basis. As a consequence, selection is made from amongst the persons of the closed list and not on the basis of preferences made by the voters. Thus it has simply turned out to be the politics of nomination or a tool for patronage distribution.

Yet, from numerical point of view, there has been a dramatic change in increasing the size of representation of marginalized sections of society. In South Asia, Nepal has impressive record of representation, although domination of Hill high caste groups continues in all areas of politics and governance.

It is interesting to note that minority groups in Nepal have been able to assert their rights in recent years. The 2006 revolution and the subsequent pressures being exerted on the major political forces have contributed to making a quantum jump in increasing the numbers and rights of communities. The first election to CA held in 2008 made a dramatic departure in terms of increase of numbers of representatives from Janajati (hill ethnic groups), Dalits, Terai-Madhesh, Tharus, and women. In 2013, the numbers slightly decreased because of the casual approach of major political parties to ensure representation of

these communities. As a result, the hill caste groups (Khas/Arya) could upgrade their traditional status. These figures would present a glimpse of representation of minorities in Nepal's parliament. The composition of 2008 and 2013 CA (now parliament) is as follows:

In a House of 601 members, high castes in 2008 were 193(32 percent) ,in 2013, this figure was increased to 250 (42 percent) . The representation of Janjatis (hill ethnic communities was 164 (27 percent) in 2008 and 139 (23 percent) in 2013. Dalits were 36 (6 percent) in 2008 and 27 (4 percent) in 2013. The representation of Madhesh is thus noted: caste groups 128 (21 percent) in 2008 and 103 (17 percent) in 2013;Madhese Janjati 50 (8 percent) in both CAs, Dalit 13 (2 percent) in 2008 and 14 (2 percent) in 2013; Muslim 17 (3 percent) and 17 (3 percent) in both. The gender representation has decreased from about 33 per cent in 2008 to about 29 per cent in 2013. It can be said that the differences are not much except in the case of high caste groups.

Minority communities and Terai-Madheshi groups including the Tharus, however, are not satisfied with the present constitution on the grounds that the present Constitution has curtailed several provisions that dealt with minority rights and benefits. The Madheshi parties are in agitation for regaining these rights (as given by the Interim Constitution). Although the Constitution was endorsed by more than 85 percent of the members of CA, the Madheshi parties disowned the Constitution by burning it during promulgation. Some grievances are related to citizenship rights, delineation of federal units and demarcation of electoral constituencies on the basis of inclusive proportional representation. The hill ethnic groups and Tharus are not happy because they want their identity reflected in the federal polity. Tharus want to get a Tharuhat province, while some hill Janajatis want to be identified with certain territories inhabited by them for a long time. Thus, the politics of republican Nepal continues to be divisive and uncertain. The problem of ownership of the constitution by all sections of society may give rise to both political division and sense of alienation. And Nepal's political leadership has ignored this.

System crisis

The fractured mandates produced by mixed electoral system and diminishing popular image of parties, both big and small, have created systemic crisis. In addition, it can also be said that the conventional meaning and roles of parties and the very notion of parliamentary democracy are not suitable to the Nepali context. Parliamentary democracy in Nepal is being practiced only

on emotional grounds of some parties, especially the NC, as its love for parliamentary system made a prestige point without having considered seriously about its applicability. To my view, parliamentary system with mixed electoral mechanism and anarchical parties' conditions are anomalies that cannot allow the system to function. A directly elected executive and a separate parliament seem to be one of the alternatives to the present messy politics and seeds of instability (Baral, 2010).

External linkage

Political developments that prolong uncertain transition are, to some extent, attributed to the greater domestic linkages with external factors. Political leaders themselves scramble for external favors from immediate neighbors, China and India, though the latter is often accused of being blatantly interventionist. But it must be taken into account the geo-political factor and Nepal's own physical location that makes the southern neighbor closer to it than any other power including China. Political leaders try to woo India for maximizing its favor either for making movements successful or for turning politics to favor a party or its leaders. Moreover, the geographical proximity and elite orientations in addition to wide ranging connections between the two peoples and elites, have also made India more visible. The two major political parties—NC and CPN—were born in India and in all major events, India's involvement is invariably seen. Today, even for minor event, parties try to blame India for 'interference', though they themselves invite intervention in their favor. In 1950, 1960s, 1990 and 2006 events have been influenced by India. It is said by an observer that "individual politicians across the political spectrum are deeply enmeshed in this network. They solicit funds regularly, ask for "advice", try to use Delhi or a wing of the embassy to undercut their own rivals within their parties, and in return promise to play with the larger Indian game". (Jha, 2010)

India was not happy with the promulgation of the constitution in 2015 without addressing the demand of the Madheshi and other marginalized groups. Indian views on making the new constitution more inclusive and less controversial were expressed time and again by the ruling elites as well as by the foreign ministry. Prime Minister Narendra Modi himself tried to persuade the Nepali leaders who were more rigid than necessary for conceding the demands of the Madheshi leaders. When all instruments of persuasion, both political and diplomatic, failed to impress on the Nepali ruling parties, India didn't endorse the Nepali Constitution. Instead, India came out with a terse statement saying India takes "notice" of the announcement of a new constitution hoping that other

remaining issues would also be solved for stability, peace and development. At the same, India didn't hesitate to put pressure on the Nepali side by imposing "undeclared blockade" by way of sympathizing the Madheshi leaders' demands for improving the constitution. Realizing its adverse impacts on Nepal-India relations in its entirety, India lifted the "undeclared blockade" after four months, following the amendments of constitution to meet two major demands. Yet, a few other demands are left unaddressed for which the Madheshi parties are continuing their agitation away from the Nepal-India border. They also realized that border-centric movement created problems for common people, including those of Terai and India.

Risk for democracy

In conclusion, political parties have made all transitions uncertain. Democracy too has uncertain future if leaders fail to consolidate the constitution by making suitable reforms for greater accommodation of dissatisfied sections. Much enthusiasm and hope generated during the *jan andolan* 2006 and after the Maoist decision to join the mainstream pluralistic system, along with the acceptance of popular sovereignty, is fast eroding across the country. Although the triumph of the universal values of democracy has been vindicated in all these developments, political leaders have not been able to free themselves from the chrysalis of their entrenched past predilections and culture. So, despite radical structural changes brought about by the movement as well as by the impact of the ten-year long Maoist insurgency, these changes seemed to be undermined by the same elites. Efforts are being made to reverse the process of change by digging out some issues of fundamental nature by the same parties' functionaries who signed the constitution. A party like the NC is divided on the agenda of secularism, forgetting that it is one of the fundamentals of modern democracy. Even the family members of B.P. Koirala, the most celebrated NC leader, have helped those who want to reverse the course. Republican Nepal is under pressure despite the proclamation of a republican constitution.

Thus, ideological spirit is also increasingly being subsumed under the personalized authoritarianism, parochialism and embedded political culture of the past. Parties are on the process of decline due to dilemma of transformational change. Other parallel trends such as the rise of ethnicity, regionalism and community-based politics have diminished their status. It seems credibility is suspect with major parties—NC, CPN (UML) and UCPN(Maoist), now Maoist Center, and some other new regional parties taking their turns in power but failing in meeting the minimum aspirations of people.

Maoist image as a party that can bring about qualitative change in the life of the Nepali people is also on the slippery slope. The party was heading a coalition government after it became the biggest party in 2008 elections but it toppled down due its mishandling of the situation. It got another chance to head a coalition government in 2011 but it failed to deliver the constitution. CPN (UML) headed three governments, including the latest one headed by Khadga Oli.

The Oli government met the same fate as its predecessors. The main coalition partner, Maoist (Centre), withdrew from the government on various grounds to which Oli, as stated by Prachanda, didn't pay any heed to its demands. Consequently, Prachanda himself formed a coalition government with the support of largest party, Nepali Congress. Other smaller parties including the agitating Madhesh/Terai parties, also joined the fray to topple the government. And, Oli, in his characteristic style and projecting himself as a great nationalist, accused foreign powers for his fall.

Two scenarios are likely to develop. First, the conventional style of conducting parties would not help the old parliamentary parties like the NC to invigorate its image. Its democratic credentials are suspect as it has not been able to cope with newer challenges of setting its own socio-economic progressive agendas. Any party's survival would from now onwards be determined by its performance and not by hackneyed claim that it was/is the real protector of freedom and democracy.

Second, all parties regardless of their organizational shape and strategies have uniform ideological positions but all of them are deep in the quagmire of perverted parliamentary system. So there are no basic differences between the NC, the communists and others who come from a variety of backgrounds. Although such divergence is positive for democracy, their orientation, tactical alliances and decisions etc. need to be carefully watched.

Finally, political parties' role in the future would be determined by their ability to manage the emergent trends of identity politics, regionalism and its linkages with external powers. Since domestic politics is the key to Nepal's external relations, especially with India and China, it will be interesting to see how parties will manage the two neighbors.

References

- Baral, L. R. (2012). *Nepal- Nation-state in the wilderness: Managing state, democracy and geo-politics*. Delhi: Sage.
- Baral, L. R. (1977). *Oppositional politics in Nepal*. New Delhi: Abhinav.
- Baral, L. R. (2010). Shashakiya Swarup Kasto ra Kina. In K. Khanal, *Sambidhan nirman ra raiyako punarsamrachana* (pp. 97-130). Kathmandu: NCCS.
- Hachhethu, K. (2011). Choice of Form of Government for Nepal: Comparative advantages and Disadvantages of Parliamentary, Presidential and Semi-Presidential. In L. R. Baral, *Constitutional government and democracy in South Asia* (pp. 171-191). Kathmandu: NCCS.
- Jha, P. (2010, August 13-19). Patronizing Behaviour. *Nepali Times*.
- Patten, C. (2008). *What next? Surviving twenty first century*. Victoria, Australia.



Jimmy Carter

*Former President, United States of America**

How do you evaluate Nepal's political situation after a decade of the Comprehensive Peace Agreement?

Nepal has made enormous progress in the last decade. Following the end of the conflict there has been no major resurgence of violence between the warring parties. Former combatants have been incorporated into public and private life. Nepal has a new constitution that is contested but is expected to be amended and presents a path forward. A new precedent of inclusion and recognition for historically marginalized groups has been established, and a plan exists to establish a federal structure that will share power amongst the country's different regions. This will hopefully lead to a stronger link between Nepali citizens and the state and to greater accountability of government institutions.

At the same time, serious challenges remain. There is still a significant disconnect between the Nepali people and their political leaders. This leads to a lack of trust that the difficult decisions needed to consolidate peace, democracy, and inclusion, and to ensure good governance and economic growth, will be taken. Post-earthquake reconstruction and recovery has been badly delayed and many Nepalis continue to suffer. The government's commitment to prioritizing their needs is a positive development. Finding a broadly acceptable compromise regarding the concerns surrounding the new constitution is also critical, as is ensuring that the aspirations of all of Nepal's diverse peoples are respected.

I am optimistic about Nepal's future and believe that the country's political leaders, civil society, and citizens have an important opportunity to address these challenges constructively.

You were engaged with multiple actors of the peace process in Nepal. In your opinion, what were some of the major challenges of the peace process?

Looking back and considering all the challenges that Nepal's peace process has faced helps to provide some perspective on how difficult the path has been and on the remarkable progress that has been made. The first and foremost challenge was the need for Nepal's political leaders to reach out to each other,

develop a level of trust, and find the political will to take difficult decisions that others around them might not accept. It took courage for these individuals to do so, and I commend them for their commitment to the peace process and the future of their country.

The high expectations of what peace and a return to democracy would bring, and the difficulty of swiftly delivering concrete improvements in people's lives at the local level, was a second major challenge. As is typical, the peace process brought a prolonged period of political transition and uncertainty, and this can lead to frustration amongst the public, who want to see real change as soon as possible.

A third challenge, with which many countries around the world including my own continue to struggle, is how to manage the aspirations of a diverse citizenry and to ensure that everyone has equal rights and opportunities. A fourth challenge was managing security sector reforms, including the integration of former Maoist combatants, and ensuring a positive security environment, respect for human rights, and reconciliation. And finally, there was the challenge of reforming Nepal's political culture so that it is more accountable to the needs and will of the Nepali public.

In your opinion, what is unique about Nepal's peace process?

One unique feature of Nepal's peace process is the extent to which the process has been Nepali owned and led. There has been no formal third party mediator or facilitator in the process. I commend Nepal's political leadership for their ability to manage the peace process together and to overcome the many obstacles faced.

Another feature worth mentioning is the many transitions Nepal which has been pursuing at once. This includes a transition from war to peace, from an absolute monarchy to a competitive democracy, from a Hindu to a secular state, from an exclusive to a more inclusive state, and from a unitary to a federal state. Any one of these would be challenging, and so again this helps to put into perspective how impressive Nepal's achievements have been and why the process has taken longer than many had hoped.

Were Maoists in a hurry to end the conflict, esp. after 9/11 and the resulting international solidarity against terrorism? What is your opinion regarding the Maoists' strategic shift to peace talks?

For a peace process to be successful, all sides must feel that they have reached a situation where their best option is to find a broadly acceptable agreement to end the war. So I would say that both the Maoists and the then-Seven Party Alliance were committed to ending the conflict. And that took courage. It is

worth remembering that for political leaders in some ways war can be an easier choice than peace. There is a significant risk to engaging in a peace process – it is not clear what the outcome will be, and all sides are forced to compromise in ways that challenge their beliefs. However, given the success of Nepal's peace process in ending the war and preventing further outbreaks of violence, I think it is an important example for people all over the world of what can be achieved through peaceful means.

TRC and CIDEP have started working to reconcile wartime issues. How do you see the whole process of reconciliation and truth finding? What is the likelihood that this will be internationalized?

Truth finding and reconciliation are important in order to move forward. For the many families who don't know what has happened to their loved ones or who have suffered irreparable harm, a process of transitional justice and reconciliation can help them to deal with and move past the hardship they have experienced. As in the rest of the transition process, Nepal is finding its own way forward on truth finding and reconciliation. It is positive that the TRC and CIEDP have begun their work and their process and results will be closely watched domestically and internationally.

In your opinion, how will Nepal's peace process unfold in future?

I am optimistic about the future of Nepal's peace process. Although it has faced its difficulties, the fundamental achievements and commitments of the peace process remain in place and are largely respected. I believe this provides a strong foundation upon which to build for the future. I have mentioned a number of challenges looking forward, including building more accountability between Nepali citizens and their government, taking swift and effective action on earthquake reconstruction, amending the new constitution and addressing the diverse aspirations of Nepal's citizens, and consolidating peace, democracy and prosperity for all. Rosalynn and I stand together with all Nepalis in their pursuit of a better future.

Do you think that Nepal's agreement will pave a way to end other conflicts that have emerged in the last decade?

Nepal's agreement provides a strong model for the resolution of conflicts in other countries. It set out a broad vision of a peaceful and inclusive society and sought to provide a constructive environment for democratic and economic development. Nepal's peace process also represents ten years of practice in using peaceful dialogue to reach negotiated solutions, which is key to resolving conflicts. While all conflicts are unique, my experience is that no conflict is

unsolvable. My hope would be that people in other countries in conflict will study Nepal's peace agreement and the process through which it was developed and implemented and draw lessons in constructing a lasting peace.

How do you evaluate the role of informal dialogue process like NTTP-I?

I think informal dialogue processes like NTTP-I have played an important role in the peace process. Informal spaces provide an opportunity to discuss and debate ideas both before and alongside formal negotiations, and they can create a more open environment that is conducive to identifying possible compromises. Informal dialogue is also a valuable way to build relationships of trust between the negotiating parties and to create alternate avenues for communication when official channels may be stuck.

Any other information not addressed in the above questions?

It has been an honor and a privilege for Rosalynn and me to observe Nepal's peace process over the course of the last ten years and to support the people of Nepal during this important period. I hope that the world can learn from Nepal's example and that Nepal's political leaders will continue to work towards the peaceful, democratic, and inclusive vision they set out in the Comprehensive Peace Agreement. Both personally and through the work of The Carter Center, we stand ready to continue that engagement with the Nepali people. Our thoughts and prayers are with all of the people of Nepal as you continue along the path to peace and prosperity.

Note:

*Jimmy Carter served as the 39th President of the United States and is a Nobel Laureate. He has been engaged with Nepal since 2004, when he met leaders on all sides of the conflict to assist in working towards a negotiated solution. President Carter and The Carter Center remained engaged throughout its transitions, deploying observation missions for the 2008 and 2013 Constituent Assembly elections and long-term programs on transition monitoring and support to civil society.



Comprehensive peace accord and monitoring its components

Birendra P. Mishra

Beginning of insurgency

The Samyukta Janamorchha, Nepal, the political wing of Communist Party of Nepal-Maoist, participated in 1991 general election, and become the third largest party in the parliament with nine seats in the 205-member House of Representatives. But in the 1994 election, the party did not win any seats in the House. Then CPN-Maoist waged an armed struggle against the state in February 1996, which continued till ceasefire was declared on April 26, 2006. During the insurgency, more than 16,000 people lost their lives, thousands were rendered homeless and properties worth millions of rupees were lost.

Civil monitoring

Need for monitoring of the unilateral ceasefires

During primary stage of the insurgency, only the supporters and the cadres of the Nepali Congress (NC) were victimized. Therefore, they were forced to shift either to the district headquarters or to Kathmandu where they were safe. Since the cadres of the CPN-UML were resisting the Maoist activities alone, in the absence of NC cadres, they had to bear the brunt of insurgency, which activated the central leaders of the UML to have dialogue with the Maoist. Hence, under the leadership of MK Nepal, the then general secretary of the UML team met the Maoist leaders in Patna (Bihar, India) in January 1999 (B.S Magha, 2056). The second meeting took place in 2000 (BS 2057) at Gorakhpur (UP, India). The third meeting was arranged in 2001 (BS 2058) in Silligudi (West Bengal) and the fourth meeting was convened in Lucknow (UP, India) in 2002 (BS 2059). The Maoists were undecided about their future action as they were alleged to have some sort of understanding with Monarchy, which had pitted them against the Seven-Part Alliance (SPA).

The royal takeover of February 1, 2005 proved the last nail in the coffin of Monarchy. It brought the warring Maoists and political parties together. Ultimately, both sides were forced to negotiate the future course of their action. The ground for final negotiation was cleared by the team of Yavaraj Gyawali and Bamdev Gautam, who reached Rolpa (then Maoist headquarters) in October, 2005 by fixing the venue of the meeting. During this period, the Maoists had agreed not to attack and obstruct the movements of workers of political parties in the areas where they had control.

Relevantly, the Maoists had started declaring time-bound unilateral ceasefires regularly after 2001. Since common people were largely affected by the insurgency as insurgents were forcing them to toe in their lines by threatening them with their lives – inhuman killings and penalizing them – ceasefires were, most probably, used to ease their tensed lives. They might have declared ceasefires strategically with a view to achieving some goals like strengthening their own military might and forcing the government to relax in preparation against them. Getting legitimacy as a revolutionary and putting moral pressure on the other side to follow suit might be other reasons behind the declarations of the ceasefires.

Interestingly, most of the ceasefires were declared around Dashain, a national festival (which generally falls in the months of September and October) every year from 2001 to 2005. The first ceasefire was operative for four months while the second one continued for six months. The third and the fourth ones were announced for nine days to cover the festival period. The Maoists announced the fifth unilateral ceasefire on September 3, 2005 for a period of three months that too coincided with the Dashain festival. All political parties took it as a positive step towards peace initiative. Barring the government, all professional organizations, and civil society welcomed and thought of forming a monitoring group to observe whether Maoists were really maintaining the ceasefire in the true sense to enable the political parties to reach every nook and corner of the country to organize their political activities without any hindrance, which were hitherto obstructed by them. Hence, a kind of monitoring was necessitated.

Formation of civil ceasefire monitoring committee:

Civil society leaders formed a Ceasefire Civil Monitoring Committee on September 19, 2005, which had indirect approval of the main political parties. It had 22 members (including this author) with the then president of Nepal Bar Association, Shambhu Thapa, as coordinator. A synopsis of the report of Ceasefire Civil Monitoring Committee, 2005 was published on January 1, 2006. It

had incorporated 14 monitoring reports on the incidents of Palpa (Bahadurpur incident), Morang (Belbari incident), Sindhupalchowk (Ghorthali incident), Parbat (Bachha incident), Karve (Nala incident), Kaski (Lekhnath incident), Nawalparasi (Chormara incident), Rolpa (Jinbang incident), Shankhuwasabha (Chichila incident), Nagarkot incident, Ilam (Kanyan and Danabari), Rasuwa (Bhorle incident), Taplegunj (Sikaucha) and Gulmi (Bishu Kharka). Significantly, later on, after the second people's movement of 2006, which threw the direct rule of the king and reinstated the dissolved parliament, the negotiating teams formed by both the government and the Maoists chose some of these members as observers for the peace dialogue held between Maoists and the government. Some of them were selected for drafting of the Interim Constitution and others for the National Monitoring Committee for Ceasefire Code of Conduct constituted on June 15, 2006.

Foundation of the peace process:

After fixing the venue for final talks outside Nepal, the 12-point Understanding was signed on September 22, 2005 in Delhi by the SPA and the Maoists, which includes the call for a peaceful agitation against the autocratic monarchy and also for holding elections to a Constituent Assembly (CA). The king, who had usurped all the state powers since February 2005, sought the legality of his autocratic rule and approval from the international community by holding municipal elections on February 8, 2006 throughout the country to prove people's support for himself. But, the whole electoral exercise ended in fiasco due to the opposition from the Maoists and the SPA as out of 4,116 posts of representatives to be elected in 58 municipalities in 43 districts, there were no nominations for 2,104 posts and more than 1,000 posts including 22 mayors and 20 deputy mayors were elected unopposed (Mishra, 2007, p.118-9). Accordingly, with the participation of millions of people throughout the country and in cooperation with the Maoists, the SPA launched the people's peaceful movement that lasted for nineteen days. It paralyzed the state machinery forcing the king to make his midnight proclamation on April 24, 2006. He relinquished the executive power of the state, which he had usurped violating the provision of the constitution, restored the sovereignty to the people and reinstated the dissolved House of Representatives for forming a democratic government to run the state.

Declaration of ceasefire (preparation for comprehensive peace accord):

The Maoists declared a three-month ceasefire on April 26, 2006, after two days of the royal proclamation. The newly formed government reciprocated Maoists' move by declaring indefinite ceasefire on May 3, 2006. The government and the

Maoists formed their Negotiating Team (NT) consisting of six persons, three from each side, including a coordinator: 1. Krishna Prasad Sitaula (Minister) from the Government of Nepal, Co-coordinator, 2. Pradip Gyanwali (Minister), member 3. Ramesh Lekhak (Minister), member, 4. Krishna Bahadur Mahara, Coordinator from the CPN-Maoist, 5. Dina Nath Sharma, member and 6. Dev Gurung, member.

The NT signed 25-point Ceasefire Code of Conduct (CCoC) on May 26, 2006. Subsequently, the NT formed the National Monitoring Committee for Ceasefire Code of Conduct (NMCC) on June 15, 2006 that was reconstituted on June 26, 2006. The NT, on July 5 2006, finalized the Terms of Reference and Power of the Monitoring Committee and also approved the working Procedure prepared by it. The NMCC consisting of 24 members including a coordinator had most of its members drawn from the Ceasefire Civil Monitoring committee formed in September 2005. This writer was nominated the Coordinator of the Committee.

The main function of the NMCC was to monitor the activities of the warring sides—the government and Maoists—and to submit its fortnightly report to NT. These activities were enlisted in the 25- point CCoC. In the preamble, the Negotiating Team (NT) had expressed its commitment to the Universal Declaration of Human Rights, 1948, the basic principles and norms concerning International Humanitarian law and Human Rights and other fundamental human rights. The NT had asked the NMCC in and through its Terms of Reference to monitor the CCoC in accordance with the spirit of the 12-point Understanding, 8-point agreement and any other agreements to be signed in the future.

The NMCC had to transcend the human rights monitoring as it had to see that in no case the ceasefire agreements were breached to allow the two armies to resort to guns and spoil the peace process. However, there were human rights organizations both national and international to monitor the human right violations reducing the responsibility of the NMCC on this score. The NMCC could submit to the NT only three reports incorporating the weaknesses of the government and the Maoists.

The first report of the NMCC was submitted on July 20, 2006 with the following 6-point conclusions and suggestions (Mishra, 2009, p.30):

- Both sides were found taking positive initiatives towards several commitments stated in the CCoC, implementation of the CCoC at local level remained as they were. As regards the serious violations

of the CCoC, no such violations were found. To solve the existing problems, the committee suggested forming an effective mechanism of conciliation as early as possible.

- Both sides lacked political dynamism to demonstrate a culture of conciliation and failed to ensure the peace process enshrined in the 12-point understanding and 8-point agreement and to hold Constituent Assembly (CA) elections at the earliest.
- Both sides accused each other of violating the CCoC. The Maoist held that the government, parliament and the leaders of the SPA responsible for their failure in the context of army management, 8-point agreement and dissolution of the House of Representatives (HoR). The SPA alleged that the Maoists failed to observe the CCoC in the context of the extortions, realization of taxes and public revenue, holding of individuals in captivity, strikes, and rehabilitation of displaced persons and display of arms at local levels. The committee drew their attention to make improvement upon their behavior.

The committee too appealed them to sign ceasefire, peace and human right agreements to transform the ceasefire to a permanent peace as per the suggestions and initiatives made by different quarters including the HoR. The committee suggested the government and the SPA to draw the attention of the international diplomatic agencies not to express any thing harsh which might jeopardize the peace process in the context of the expressions of Nina Gill, the coordinator of European Union South Asia Development Committee and James F Moriarty, the US Ambassador, stating that America would stop its support if the Maoists were included in the government before laying down their arms.

The NT were advised to form their joint committee to discuss and implement the issues raised in periodic reports submitted by the committee as per ToR of the NMCC.

The second report :

- 1 The second report was submitted on September 20, 2006 covering the period from July 20 to September 10, which had 20-point conclusions and suggestions (ibid, p.31). Some of them are appended below:
 - The NT was suggested frequent meetings to avoid any misconceptions created by their differences on setting priorities. The government prioritized armed forces and the weapons management, while the Maoists prioritized the issues of interim constitution management and

interim government. With the increased level of suspicion and distrust, they started putting pressure on each other. Maoists were suspicious over the appointment of the Chief of the Army Staff and the consolidation of Parliament whereas the government was suspicious over the Maoists' decision to prepare for people's revolt in the meeting at Kamidanda in Kavre Palanchowk.

- (2) Both sides were advised to improve the law and order situation and curb criminal activities by developing necessary mechanism in collaboration with the local administration and political parties in order to provide security to the people.
 - Students, teachers and guardians were worried as students affiliated to the CPN (M) were exerting pressure on teachers and students thereby creating insecurity among them pushing the entire education sector to a state of uncertainty and chaos.
- (3) The NMCC again suggested them to form district level joint political committees comprising representatives of seven parties and the Maoists to promote political reconciliation.
- (4) It suggested establishing Citizen's Monitoring Committee comprising of civil society members, professional, and Human Right activists at district level.
- (5) The committee found that both sides were neither serious about the commitments made in the CoC nor felt it urgent to adhere to their commitments made in the CC.
- (6) It was observed that both sides were violating the CC and were blaming each other, but not making corrective measures.
- (7) The government was found not paying attention to address the violent revolt initiated by the Terai Janatantric Mukti Morcha.
- (8) No efforts appeared to be made to restore public delivery units. Conducive atmosphere could have been created to identify the displaced; and properties seized by the state and the Maoists could have been returned immediately.
- (9) Both sides were advised to reach agreement on ending the dual system of governance in custom, tax, and justice delivery system as it proved counter-productive for both sides.
- (10) Both sides were advised to be sensitive about their armies, which were found moving about in combat dress with weapons from time to time.
- (11) Both sides did not make public the whereabouts of the persons made to disappear. It could have been done within a time frame.

- (12) Prisoners without any criminal charge against them could have been released immediately and fake cases could have been withdrawn.
- (13) Victims of the conflict were to be assured of getting back their money and goods seized from them.
- (14) Joint committee could have been formed immediately to go through the reports submitted by the NMCC.
- (15) Both sides were advised to sign a ceasefire agreement and clearly assure people of their commitment to sustainable peace.

The third report :

The third report was submitted on November 15, 2006 covering the period from September 11 to November 1 with the following conclusions (ibid, p.34). The over all impression of the NMCC was that there was no effective adherence to the CC by all concerned. The agencies of the government were found to be slack and indifferent in discharging their duties, because of an imaginary fear of violating the CCoC. This showed that the administrative mechanism was extremely weak. Such a tendency was impeding the strengthening of the peace process and the democratic change.

Likewise, political parties, due to their penchant for unnecessary rivalry, in many instances indulged in mutual recrimination in course of violation of the CCoC. This received more prominence than its merits.

Though the leadership in general appeared to be honest and determined with respect to the peace process, an environment of fear continued to hang over, because of the failure to control the style and culture in practice. It was necessary that the Maoist leadership issued further directives and conducted a training campaign to make those under its command more disciplined and forsook their coercive style, while other parties also needed to conduct a widespread training campaign to improve their approach of suspicion and hate towards the Maoists in order to promote a culture of reconciliation.

Lastly, it would be germane to remind the sides concerned of the need to improve on the weakness pointed out by the NMCC's first and second reports and to implement their suggestions. During the entire period of the monitoring, the details of the complaints received at the NMCC are put in a tabled form.

Table 1		Details of the grievances and the complaints received at the NMCC:				
SN	CCoC Point No:	Nature of grievances & Complaints	No. from beginning till August 25	No from August 26 till October 17	No. from October 18 till November	Total
1	2	Mobilization of army in a manner that spreads fear	12	14	1	28
2	3	Destructive activities and military recruitment	8	4	—	12
3	4	Non-cooperation in establishing peace and order	9	6	2	16
4	5	Public appearance in combat dress or in possession of weapons	23	5	1	28
5	7	Hindrance, obstruction, abduction, beating	100	120	35	245
6	7	Closures, vehicular strikes, etc.	6	6	1	13
7	9	Obstruction in public welfare and development/ construction work	18	8	2	28
8	8	Obstruction in the provision of services, amenities	3	5	3	11
9	10	Obstruction in educational institutions and industrial houses	9	22	—	31
10	11	Collection of donation, taxes	65	26	15	106
11	12	Cases and charges not withdrawn, detainees not released	5	4	—	9
12	13	The missing not made public	17	43	—	60
13	14	Rehabilitation or displacement	80	21	3	104
14	15	Capture of land, houses, property	148	47	17	212
Total			503	331	79	903

Source : *ibid*

An example of effective monitoring by the NMCC:

With regard to the significant monitoring, the case of monitoring of ferrying of arms in September is worth mentioning. The episode of ferrying truckloads of arms on the night of September 12, 2006 by the then Royal Nepal Army was the most sensational event since the declaration of indefinite ceasefire by the government on May 3, 2006. The Maoist leaders informed the NMCC in the middle of the night about the movement of some forty trucks loaded with arms and ammunitions towards Kathmandu. The NMCC members with their mutual consultations decided to move as early as possible to the site for monitoring (the military barrack at Gajuri, about seventy kilometers from Kathmandu) where the trucks were stationed. The team reached the NMCC office at 6 a.m. but it could not proceed immediately because the office and the members were ready for this urgent job. Anyhow, the team consisting of seven members left at 8.30 in two vehicles—one official and another personal.

Before leaving for Gajuri, this writer as the coordinator of NMCC, informed the Defence Secretary about the team's visit to inspect the trucks stationed at the barrack so that their entry would be easy and unhindered. In course of the telephonic conversation, the secretary informed the team that some vehicles, including white-colored Armed Personnel Carriers (APCs) made in China, were being brought to Kathmandu from places like Pokhara and Hetauda to be sent to Lebanon with the peacekeeping force. The team secured his assurance to inform the barrack about their visit.

The team reached there at 9.30 a.m. and entered the compound of the barrack after informing the Major who received the team. From the road itself all the vehicles including the white APCs were clearly visible. What the team observed was made public immediately to the media people who were waiting curiously at the gate of the barrack. Our prompt monitoring and informing the media proved very effective as the news of our findings eased the tensed atmosphere of the country since the Maoists had already declared indefinite nationwide bandh. In Kathmandu, tyre-burning and shouting slogans had already started. The Maoists, after getting information regarding our findings, immediately withdrew their call for bandh and peace prevailed in no time. On return to the capital, the team summoned the Defense Secretary and the DMO of the Army and sought clarifications from them. The NMCC released press note in the evening covering all details of the findings with the assurance to look into the matter further.

There were altogether 31 vehicles, meant for the army, out of which 15 were new Indian trucks without any hood, five jeeps, seven Armed Personnel Carriers, two

old trucks and two containers. The first container had some boxes with plastic dummy bullets meant for firing at the time of Dashain celebration, and the second one had some empty used bullets.

The team found that the army appeared to be right in bringing new trucks and jeeps and empty trucks with used bullets and dummy bullets but they were at mistake in not informing the Maoists and the Negotiating Team about the movement of army vehicles at the time when any suspicious action could have jeopardized the frail peace negotiation. Similarly, the Maoists also were right in being vigilant of the movement of the army vehicles in a big convoy when there was a rumor relating a large number of arms unloaded at an Indian airport that were bound for Nepal. But they were at mistake in declaring a nationwide bandh, paralyzing the nation before the Monitoring team reached the spot where the vehicles were stationed (ibid, p. 38-40).

This is an example of effective functioning of the monitoring of ceasefire, a part of the peace process in Nepal. After signing of the Comprehensive Peace Accord in November 2006, neither the government nor the Maoists were serious about the monitoring. It can be said that there was no monitoring of the peace process at all

Signing of the Comprehensive Peace Accord (CPA):

The comprehensive Peace Accord was signed on November 21, 2006 by the chairman of the CPN-Maoist Pushpa Kamal Dahal, 'Prachanda' and the then prime minister Girija Prasad Koirala. It had kindled hope in the people that not only peace would be restored but the country will also move ahead on the path of prosperity.

Briefly, the CPA has ten main clauses. It starts with a preamble. The first clause deals with Preliminary, the second with Definitions, and the third with Political-Economic-Social-Transformation and Conflict Management. The fourth is related to the Management of Army and Arms. The fifth is concerned with Ceasefire. The sixth clause deals with End of Conflict. The seventh is related to Human Rights. The eighth covers Differences Settlement and Implementation Mechanism. The ninth is related to Implementation and Monitoring and the tenth clause deals with miscellaneous subjects. It really contained almost all provisions of the CCoC to be followed by both the sides.

No interest in monitoring

It is interesting to add here that as per the terms and power of the NMCC, the NT had agreed to form a joint committee to study and act upon the reports of the NMCC. Regretfully, it was not formed till the last date of working of the NMCC despite its repeated verbal and written requests.

The Maoists were insisting on the implementation of the 8-point agreement saying that they would dismantle people's courts and stop abduction and extortions only after all political issues were settled. The government too was not acting upon the recommendations of the NMCC. Ultimately, the Committee members resigned en masse on November 26, 2006 finding no provision for such an independent monitoring body in the CPA signed on November 21, 2006 to observe the peace process and the agreements/understanding signed by both sides from time to time. Subsequently, the NT officially dissolved it on November 30, 2006.

The CPA does not envisage any independent monitoring body to monitor the peace process. It, rather, has provisions for monitoring human rights violations under clause 9 with the heading "Implementation and Monitoring":

- 9.1. Both sides agree to give continuity to the task of monitoring provisions concerning human rights referred to in this Accord by the Nepal based United Nations Office of the High Commissioner for Human Rights.
- 9.2 Both sides agree to get monitored the management of armies and the arms by the Nepal based United Nations Mission as referred to in the five-point letter to the United nations earlier in this Accord and express their commitment to assist therefore.
- 9.3 Both sides agree to cause to be supervised the election of the Constituent Assembly by the United Nations.
- 9.4 The National Human Rights Commission shall, in addition to its responsibilities as determined by law, also carry out such works as are related to the monitoring of human rights as referred to in the Accord. The said Commission in the course of performance of its business had to coordinate with national and international institutions concerning human rights and to obtain necessary help.
- 9.5 Both sides agree to receive the reports submitted by all above-mentioned bodies, to provide information requested by them, and to implement the suggestions and recommendations to be provided by them on the basis of agreement and discussions.

It would be obvious from the following text of the Clause 8 of the CPA that there are no such provisions for monitoring. It has, rather provisions for developing Mechanism for Disputes Settlement and Implementation. Clause 8 has four sub-clauses.

- “8.1 Both sides express their consent to be individually and collectively responsible for not repeating mistakes in future that were committed in the past, and for correcting them gradually.
- 8.2 The National Peace and Rehabilitation Commission may create necessary mechanism to make the peace campaign successful. The constitution and procedures of the Commission shall be as determined by the Interim Council of Ministers.
- 8.3 Both sides are committed to resolve all types of mutual differences or or problems that may arise at present and in future through mutual dialogue, understanding, agreement and negotiations
- 8.4 Both sides express their commitment to the fact that the Interim Council of Ministers shall, in order to implement this Accord, the Interim Constitution and all the decisions, agreements and understandings concluded between the SPA, the government of Nepal and the CPN (Maoist), constitute the National Peace and Rehabilitation Commission, the Truth and Reconciliation Commission, a High-level Recommendation Commission for the Restructuring of the State, including other mechanisms as per necessity, and may determine their working procedures.

Parliamentary monitoring

Special committee formed by the legislature-parliament.

As noted earlier, there were mechanisms to monitor human rights violations but the peace process, which was formalized by the signing of the Comprehensive Peace Accord, remained completely unmonitored. Perhaps, after realization of the mistake of not having any monitoring mechanism to monitor the CPA, the LP finally decided to have one for this purpose. And ultimately, the Rules of procedure of the LP incorporated a provision to have a monitoring body.

In accordance with the rule no.215 of the Rules of Procedure passed by the Legislature-Parliament a special Monitoring committee called ‘Peace Accord Implementation Monitoring Special Committee (PAIMSC) consisting of twenty-nine members was formed to monitor the implementation of the Peace Accord at district level in July, 2007(2064/3/3 BS) The PAIMSC had altogether eighteen meetings. In September (2064/5/26 BS) after holding some meetings,

it formed a sub-committee of six MPs including Lekharaj Bhatt, MP as convener to monitor the implementation of the CPA at district level. It chose four western districts—Kailali, Kanchanpur, Surkhet and Banke. Its main task was to observe the conditions of the jails, barracks of the Nepal Army, main and satellite cantonments of the Maoists, capturing of house and land during insurgency, False legal cases, to meet the kith and kin of disappeared persons, families of martyrs, wounded people during people's movement and removal of land mines. The sub-committee, which took about a week to monitor all these places, submitted its report to the main committee on December 11, 2007 and the main committee chairperson Shanta Shrestha submitted the report to the Speaker of the LP on 2064/9/4 BS.

The report was prepared on the basis of the facts found personally by the members of the sub-committee members and their interactions with wide range of people concerned directly and indirectly with the peace process. As per report, there was virtually no change in the conditions prevailing since the days of insurgency.

Formation of a high level monitoring committee from civil society:

The CPA provides for monitoring the violations of Human Rights by the National Human Rights Commission and the Nepal based United Nations OHCHR. It overlooked the need for an independent body to monitor the peace process and implementation of the agreements signed that were left unmonitored after the dissolution of the NMCC. Perhaps, the mistake was realized later. The task before the government was to have an independent body in place with the approval of the Maoists. The committee was to function beyond the influence of the government. With a view to achieving the end, a high level monitoring committee under the coordinator ship of this writer, was formed again by the government on August 24, 2007 on the basis of Clause 8.4 of the CPA. The decision was communicated to this writer on September 6, 2007. But the writer declined to join the committee, as there was no discussion on the Terms of Reference and the formation of the committee before the announcement. Till now, there is no such monitoring committee to monitor the peace process and the agreements signed by the two sides from time to time.

Agreement to have high –level committee for monitoring:

Since an inside House committee was neither found sufficient nor effective to monitor the CPA, there was consensus between the SPA (comprising of only six parties as Nepali Congress (Democratic was merged with its mother party

the NC) and the CPN-Maoist to have a high level committee for this purpose, a provision to this effect was included in the 23-point Agreement signed on December 23, 2007. The agreement vide its clause 6.e) provided for, ‘High-level Committee for monitoring the effective Implementation of the Comprehensive Peace Accord and other Agreements’. Obviously, it was an attempt to enlarge the ambit of monitoring from the CPA to all other agreements signed by the government.

Similarly, a 10-point commitment was signed by three main political parties on April 11, 2008 for having peaceful CA election. Clause 2 of the commitment provides, “An effective monitoring committee comprising representatives of civil society shall be constituted at central level to help resolve problems faced in holding the election in a free, fair and fear-free manner. The implementation of all past agreements, including the 23-point Agreement, shall be stressed.”

Monitoring of all agreements including CPA

Special Committee formed to monitor the implementation of 5-point agreement:

Keeping in view of the failure in implementing the previous agreements signed by the parties and the governments from time to time, the 5-point agreement was signed by the three main political parties, having more than two-third majority in the LP to amend the Interim Constitution. While amending the Interim Constitution extending its tenure by three months, the agreement was made a part of the IC with a view to bringing it under the purview of the House to review it as and when required. Of course, it was unique decision making LP responsible for its implementation contrary to several other important agreements were kept outside the purview of the House.

There were three vital issues, which were not progressing since last several months, were to be brought to the right track. The first point was connected with the completion of the fundamental work of the peace process within three months. The second point stipulated a three month-time to prepare the first draft of the constitution within three months. The third point stressed the effective implementation of the agreements signed with the Madhesi Joint Forum including making Nepal Army an inclusive army. The four- point was to extend the tenure of the CA by three months. And lastly, the Prime Minister had to resign to pave the way for forming a national, government.

The Agreement Monitoring Special Committee (AMSC) was formed after one month of amending the IC. Naturally, its tenure lasted up to August 28, 2011. The Committee had altogether 16 members including the Speaker and Deputy Speaker of the LP and they were ex-officio chairperson and vice chairperson of the committee. The committee had six meetings. The AMSC had four functions:

- (a) To have regular evaluation and monitoring of action taken on the implementation of the fundamentals of the peace process.
- (b) To monitor the action taken on the effective implementation of the agreements signed with the Madheshi Front especially with regard to the making the Nepal Army an inclusive army.
- (c) To monitor the progress made on the formation of Joint government based on national consensus.
- (d) To complete the above-mentioned tasks the committee may invite any official or organ of the government for discussion and pass any necessary orders to them.

Through its first meeting, it decided to seek information from the Special Committee for army adjustment, formed under the government, on the action taken report on the fundamentals of the peace process. It also decided to seek information from the Ministry of Defence, Government of Nepal on its action taken on making Nepal army a national character and making it inclusive in accordance with the point 5 of the 8-point agreement signed on February 28, 2008 with the Joint Democratic Madheshi Front and the Article 144(4.a) of the IC, 2007(2063 BS). Lastly, it also decided to invite the then PM JN Khanal in the next meeting of the committee to have up to date information regarding the action taken by the Special Committee of Army adjustment on the completion of the main tasks of the peace process.

In all subsequent meetings, it decided to invite the Defence Minister, the Chief Secretary of the government of Nepal and the three signatories of the 5-point agreement, PK Dahal chairman the UCPN-Maoist, Shushil Koirala chairman of the NC and JN Khanal chairman of the CPN-UML. It did receive detailed information from the Nepal army regarding its structure and position. All these three leaders made the committee aware of their positions. The Committee passed 4-point directions to the related officials and the government bodies through its last meeting.

1. It directed the UCPN-Maoist to deposit the balance 32 arms and security guards for some leaders to the designated cantonments within a week as 62 arms have already been deposited in Shaktikhor cantonment and

to submit revised work plan on political consensus within a week to the completion of the main task of the peace process.

2. It directed the ministry of defense to take the lead in getting approval of its proposal of making the Nepal army a national army by making it inclusive, which was lying with related house Committee for approval.
3. It directed the ministry of defense to expedite the amendment to the Rules of Procedure of the Nepal Army to facilitate the procedure of open competition for recruitment for all those marginalized communities to make the army inclusive as the proposal is lying with the cabinet secretariat.
4. Holding formation of national government on the basis of consensus a must to complete the peace process and writing of the constitution; it drew the attention of the then PM and the signatories of the agreement for implementation of the agreement.

Conclusion

In spite of many monitoring machineries formed by the government and parliament, all agreements including the CPA remained by and large unmonitored and unimplemented. The over view of the implementation of the CPA reveals some hard facts. First, ironically, the CPA seems to be more ambitious and impractical, as without completing the peace process, the CPA (clause 10.5) envisaged the concept of “two sides” and the “situation” as referred to in this Accord shall, ipsofacto, cease after the constitution of the Interim Legislature-Parliament. Therefore, all responsibility for implementing the obligations referred to in the Accord shall be as per the arrangements made by the Interim Council of Ministers. It shall be the duty and responsibility of all political parties to extend cooperation in the compliance and implementation of the Accord”.

Secondly, it assumed that there would be no problem as both sides seemed to be prepared to embrace the problems arising out of the situations created by the CPA. Thirdly, they were always moving ahead cautiously not to be caught unprepared by each other.

Actually, there was lack of faith between each other. Fourth, both sides were not mentally prepared to accept the CPA, which resulted in delayed implementation of agreements signed by them. Some of the main tasks of constituting commissions like, the National Peace and Rehabilitation Commission, and Commission for Scientific Land Reforms etc remained incomplete so far. However, the Ministry of Peace and Reconstruction was formed. The Truth and

Reconciliation Commission (TRC) and the Commission of Inquiry on Enforced Disappeared Persons (CIEDP) were formed only on February, 10 2015. The high-level Recommendation Commission for the Restructuring of the State was formed but its recommendations were not taken into account.

Fifth, they failed to envisage the need of an independent monitoring body to monitor the implementation of the CPA. However, the CPA did monitoring mechanism by the Nepal based United Nations Office of the High Commissioner for Human rights and the National Human Right Commission (9.1&9.4) for the violation of human rights.

Sixth, both sides were never serious about the condition of those who were in their custody and were made to disappear by the Maoists and the government. As per Accord, both sides had agreed to make public the information about the real name, surname and address of the people who were disappeared by both sides and who were killed during the war and to inform also the family about it within 60 days from the date on which this Accord was signed (5.2.3). It is worth mentioning that the entire CPA (Clause-5.2.5&5.2.7.) seemed twisted in favor of the perpetrators' general amnesty through the TRC ignoring the interests and sufferings of the victims, who did not attract proper and just attention of the government and the Maoist.

Seventh, both sides lacked commitment to the peace process. For example, the most venerable part of the peace process was the management of the Maoist combatants who were in their cantonments, required adjustment and rehabilitation. As per the Accord, the Interim Council of Ministers could have taken up the work of supervision, adjustment and rehabilitation of the combatants (4.4). Even after a lapse of years, hardly about 1400 combatants were adjusted in the Nepal Army and most of the combatants opted for voluntary retirement taking an amount of several thousands of rupees. Similarly, the issue of democratization of the Nepal Army was never taken up seriously.

Undoubtedly, the primary goals of the CPA were to engage the Maoists in the peace process formally and to have peaceful Constituent Assembly (CA) election. Ironically, the selection of the Mixed (Parallel) electoral system for CA election spoilt the politics of consensus that was the basis of for their forward march. The direct election for 240 seats forced them to fight election on the lines of parliamentary election not only against the Maoists but also against the partners of the SPA. The electoral system made the CPN-Maoist as the single largest party in the CA, which gave a new turn to the politics. The Maoist formed

the government, but instead of institutionalizing the achievements of the CA, they started to concentrate on executing their own strategy by dismissing the Chief of the Army Staff, which boomeranged.

With the resignation of the Maoist government, the whole politics was paralyzed as the Maoists were at the crossroads. Since then the change of government continued till Dr. Baburam Bhat Terai became the PM. During his tenure the Maoist combatants were adjusted and discharged from the cantonments after taking voluntary retirement. The first CA was dissolved without adopting the new constitution. The second CA succeeded in completing its task of adopting the new constitution on September 20, 2015 but its implementation has become a tedious task, as several problems including the delineation of the boundaries of the provinces are still unresolved. Different groups including the Madhesi community and indigenous nationalities are protesting against the different provisions of the constitution demanding rewriting of the constitution.

Ironically, all these activities gradually turned the entire peace process into a political power process and even today the promises of the CPA remain unfulfilled. The TRC and the CIEDP were formed very late only on February, 2015 with only two-year tenure. The date of accepting petitions from victims has just ended. Hence with the limited time left with the commissions, it is rather impossible for the commissions to deliver their judgments in the stipulated time frame of two years. More probably, their working period will have to be extended for a year more to complete their tasks. Till then, the peace process will remain incomplete.

References

- Mishra, B.P. (2007). *Rebuilding Nepal*. Kathmandu, Nepal: Bhrikuti Publication.
- Mishra, B.P. (2009). *The Nepalese Peace Process*. Kathmandu, Nepal: Fine Print Inc.
- Mishra, B.P. (2012). *Revisiting the Nepalese Peace Process*. Kathmandu, Nepal: Sindhum Offset Press.
- Ministry of Peace and Reconstruction. (2008). *Agreements and Understandings on Peace Negotiation of Nepal*. Kathmandu: Government of Nepal.
- Gyawali, Y. (2016, April 30). Maobadi sanga Rolpa ma Barta Garda. *Naya Patrika*.



Baburam Bhat Terai

***Former Prime Minister & Former Maoist Leader and
Coordinator, Naya Shakti Nepal***

It is ten years since Comprehensive Peace Accord. Where do you see it going towards?

First of all, it is necessary to clear some confusion about 12-point understanding. As a person directly involved in the whole process, I want to make few things clear. In May 2005, then Maoist party assigned me and Krishna Bahadur Mahara to hold talks with parliamentary parties. I and Mahara left Rolpa and reached a certain destination in India. I initiated the process of dialogue with Nepali Congress and CPN-UML, who at that time had been pushed to the wall by the king.

The same month, Prachanda, myself and NC President Girija Prasad Koirala sat together for the first time and discussed ways to take ten-year long insurgency to the meaningful end and to fight autocratic monarch collectively. We told the GPK that we must have a common stand on republicanism and Maoists would be ready to come to multiparty competitive politics. We laid the foundation of the future course like this. This was sometimes on June 15, 2005. Based on this understanding, we also held talks with UML leaders. Nepali Congress abandoned the agenda of constitutional monarchy through its convention and UML also formally decided to go to the Constituent Assembly. We held Chunbang convention in October and endorsed those agendas.

We tried to hold the meeting in Rolpa in November. We called acting general secretary Bamdev Gautam there. I, Prachanda and Bamdev Gautam made the first draft with six points. Later Girija Prasad Koirala said that he would not be able to get to Rolpa due to security reasons. He suggested that we met somewhere in India. So in November, we had an underground meeting in India and settled everything.

On November 18, 2005, Girija Prasad Koirala and Krishna Prasad Sitaula from NC, Madhav Nepal, K P Oli, Prachanda, myself and Narayan Kaji Shrestha sat together and finalized the draft which came to be known as 12-point understanding. We signed on the document on November 22. This is the truth about the 12-point deal.

It is said that the content of the deal was drafted by India, not Nepali actors.

That's not true. As a matter of fact, we came to 12 point accord after a long deliberation. First there were six points in the draft, which was later extended to 18 points and we finally agreed on 12 points. We had assigned Narayan Kaji Shrestha to prepare the first draft as he was close to parliamentary parties. He came up with the 6 points. Then we gave this draft to K P Oli to improve on. He came up with 18 points. I was the one who gave final touch to the draft and reduced it to 12 points.

This understanding created a base for 2006 people's movement, which led to the abolition of monarchy, holding of Constituent Assembly election and making of the constitution through CA.

Some people think that since this accord was signed in Delhi, it was Delhi's doing and Nepal simply gave approval to what was designed by Delhi. This is not true. We as underground outfit had no relation with India until 12-point accord had happened. This was the time when none of the countries in the world had given us recognition. So there is no question of Maoist having any relation with any of the foreign power centers. If anyone claims that foreign powers, including India, had its role in this, I can prove to the contrary.

Do you mean to suggest that India was clueless about the whole process until the accord happened?

Not really. They may have had the information from political source in Nepal. Girija Prasad Koirala had gone to India. Indian leaders may have talked to GPK and other leaders who visited India from time to time. But the process started in Nepal itself from Rolpa. The actors involved in the process were Nepalis. India had officially recognized monarchy and parliamentary system as two pillars of Nepal. How would you expect India to go against this policy simply to support us? It was us who took the decision to go republic. Perhaps, India also felt hard-pressed to accept this policy because the emerging power of that time (Maoist) and parliamentary forces had already taken decision for republic. This may have made India approve our line. But republicanism as a political agenda is our own and no foreign power center has their role in it. Some of the people who are thought to be close to India or considered as representative voices of India have been speaking against republicanism, federalism and secularism. This proves that these agendas were our own.

Often the societies that have emerged from conflict return to conflict. Do you see that possibility in Nepal?

There always is the danger of repetition of violence and conflict, especially in

countries like Nepal with low per capita income. My party Naya Shakti Nepal is aware of this reality. It holds that conclusion of constitution process marks the completion of political process. But it does not ensure economic well-being. Unless economic wellbeing of the people is ensured, political process itself does not help. This is why Naya Shakti aims for doubling the per capita income and ensure at least middle-class life styles to Nepali people within a few years. Unless we can do so, the country might revert to conflict. This is the danger we should guard ourselves against. This is why we must focus on prosperity and development.

What can warring factions in other countries learn from Nepal's peace process?

We have been able to give the message that given the vision and political will among political actors, conflict can be successfully resolved. Nepal has proved this. The message is if the conflict is political in nature it can be resolved. Separatist, secessionist and communal conflicts have different dimensions and they may take years to resolve. But if the cause of conflict is political, it can be resolved. This is the message Nepal has been able to send to the rest of the world.



Nepal's unique peace process: Maoist perspective

Suresh Ale Magar

Different conflicts have taken place in Nepal at different stages of its history, both armed and non-armed. Almost two decades ago, the country went through an intense armed struggle and in the end, the two parties of the struggle, the state and the Maoists came to a compromise and the peace process began. The peace process lingered for almost ten years. The process is over and a constitution is promulgated.

The new constitution has been opposed by the revolutionaries, and the marginalized groups like janajatis, dalits and Madheshis. Not only has this constitution raised many questions, it has also brought to surface many unprecedented conflicts. Integration of the People's Liberation Army, management of arms, and promulgation of new constitution has been completed. Therefore the peace process should be considered completed. This peace process of Nepal is quite different from the peace processes in other countries in many ways.

Nepal saw armed struggle almost 150 years ago and approximately 65 years ago against the rana Regime. Also, around 45 years ago, an armed struggle was initiated against the Panchayat system. After that came the Maoist people's war in the nineties which continued for ten years.

The first armed struggle, against the despotic Rana Regime in Vikram Samvat 1933, took place under Captain Lakhan Thapamagar's leadership. In that act of rebel, Lakhan Thapa and Jaysingh Chumi Magar were cruelly murdered by the Rana Regime.

The second armed rebellion against the Rana Rule took place in Vikram Samvat 2005 under the leadership of Nepali Congress. This struggle ended with a Tripartite agreement between Nepali Congress, The Ranas and India.

Questions have been raised on how a three-years old 'infant' political party was

able to launch armed struggle against a well entrenched dynastic regime and a powerful state system. The 2007 BS struggle was fought under the leadership of the Nepali Congress.

Similarly, the Communist Party of Nepal, Marxist-Leninist had started an armed struggle against the despotic Panchayat System, known as the Jhapa rebellion. That was the first armed struggle in Nepal by any communist force. But it did not flourish, it was a failure. The Panchayati regime started some tough steps against the rebellion. The rebellion was crushed ruthlessly. Prominent leaders were arrested and some were killed and others were jailed.

The Communist Party of Nepal, Marxist Leninist had not come to existence by then, however it was led by the Communist Party of Nepal. Some audacious young leaders from the eastern part of the country had blamed the leadership of being 'reformist' and formed a new party- Communist Party of Nepal (Cordination Center) and carried out the rebellion.

Many leaders who were alive after the rebellion and the counter-action formed a party under the name Communist Party of Nepal- Marxist-Leninist. Therefore, it is safe to attribute the struggle to the same party.

Very few of the armed struggles in the past reached the stage of peace process. Most of them were sporadic attacks or a rebellion. But the situation after Maoist war was different and the country went through the peace process.

All societies in the world have seen conflict and struggles and are still facing in some form or the other even today. Conflicts between rich and poor, exploited and exploiters, oppressed and the oppressors, rulers and the ruled ones will continue in this world. Till the time there are rulers and the ruled ones, people keep facing discriminations based on class, gender, caste, region or community, there will be contradictions in the society and there will be struggles, conflicts and wars. It is a different matter that in many cases the exploited or discriminated either accept it meekly or are in no position to resist.

For example, although the reactionary state in Nepal had for centuries imposed a unitary authoritarian system, and it was ridden with humiliating and cruel social traditions like untouchability, Nepal did not face a religious war or a caste war or communal violence. There were enough reasons for this kind of war but non-Hindu, tribal / janjati, dalit and Madhesi communities did not or could not resist or raise their voice.

Similarly, till the time there are distinguishable classes in the society, there exists a possibility for struggle. State is a repressive entity although in the beginning it came into existence for the protection of the personal property and family, it has been used mainly to tame the opposition in today's scenario.

Different organs of the state like – government, army, police, judiciary – have their main purpose as maintaining peace and security, rule of law and maintaining system and protecting the country and the people from external aggression. But rulers today use the state machinery against their enemies.

About the origin of state, great leader of the proletariat, and great thinker Frederik Engels says, 'state has come up as a definite step in the evolution of society. Society is ridden with a web of many contradictions within itself. It is divided into different opposing forces, and it is very difficult to get rid of this. To prevent these different opposing forces with opposite interests from eating each other up, a need was felt for an entity which is seen above the society which can mellow down the contradictions and keep the tussles within the boundaries of Good Order. Therefore, the state is a force which was born out of the society but it is above it and it is continuously distancing itself from the society.

State came into being because of the struggle between classes one of its main necessities was to keep that struggle in control, the state became very a successful entity. In a way, it automatically became the state of the most powerful and economically superior class. By the help of the state, the ruling class then becomes politically dominant and thus it develops and gains control of new instruments for the exploitation of the other classes.

There are mainly two classes in the society- the Proletariat and the bourgeois. There is always a dictatorship of one of them. Communists speak clearly and are honest, therefore, they accept this and name it as the dictatorship of the proletariat. But the bourgeois do not accept it because they are shrude liars.

Equality in bourgeois democracy is merely sloganeering. In reality they are always working to maintain their own dictatorship.

And in some countries, the proletariat is powerful and hence the bourgeois are unable to raise their opinion. But when the two classes become almost equally powerful, these countries will also see a conflict just like Nepal. In Nepal, the proletariat also became as powerful as the bourgeois, therefore, the struggle took place. But neither of the parties was defeated in the military struggle, the war

ended in an stalemate and therefore the peace process got started. In reality, politics is like a war. According to Mao, 'politics is war without violence and war is politics with violence.'

When compared the two giant neighbors, Nepal looks like a small country, it is not actually small in comparison to other nations of the world. In terms of population and geography, Nepal is the 43rd largest in more than two hundred nations.

Nepal is a beautiful country with linguistic, ethnic, social, cultural, religious, geographic and environmental diversity. There are more than a hundred different nationalities and more than 125 languages.

Almost 250 years ago, Prithvi Narayan Shah of the Shah Dynasty expanded the Gorkha kingdom through coercion, conspiracy and deceit. It was named unification to give the term a moral ascendancy. Modern Nepal came to existence like that. Although he was not able to take it to the present size during his reign, kings who came after him continued the expansion. This Nepal, created by Prithvi Narayan Shah, was a semi-feudal and semi-colonial state. There is class-exploitation in the society. Till the time there remains a class divide, this exploitation will continue.

The despotic Rana rule continued in Nepal for 104 years. Its rule was thrown away by an armed struggle in 2007 BS and a parliamentary system was established. However, after only ten years, King Mahendra Shah removed the democratically elected Prime Minister B P Koirala and put him in jail. The political parties were banned and the Panchayat system was imposed. This system continued for 30 years. People destroyed that system in 2045-46 BS and parliament democracy was established. The Monarchy continued to exist.

Therefore, the Communist Party of Nepal (Maoist) launched the People's War in 1994, with an aim to complete the revolution and free the people from all forms of oppression. The slogan was 'Let's end the parliamentary and constitutional monarchy, let's move forward in the path of People's War'.

The 'People's War' started with military action in hundreds of places across the country. Police posts were attacked, feudalists, thugs were targeted and land of such people was confiscated. This beginning was a new development in the history of the communist revolution in the world.

Conducted under the leadership of the proletariat against the reactionary parliamentary state, political and class-based war. Most of the wars today are nationality based, communal, religious or regional conflicts or wars between two nations. None of these wars are class-based.

People from different nationalities, community, gender and regions participated in this war, with a lot of zeal and enthusiasm and hope. People lined up for the war because they wanted to an end to oppression that had continued for centuries. People from different regions participated in the war. The party balanced and managed different internal conflicts like political, military, open and underground, legal and illegal, party and class organizations, nationality based front's struggles, national and international etc.

Similarly, party put together a political justification of military actions and military justifications of political actions. As a result of this, the people's war gained ground quickly. The rulers of the day did not gauge war in its totality and the reactionary state did not take the people's war seriously.

The state police force was used against the revolutionaries. It was said that 'the police would finish the Maoist Movement in two months'. Prize money was announced for the head of the leaders of the party. The author of this article was also worth 2.5 million at the time.

Thousands of people were killed, thousands were jailed, thousands went missing and many were disabled and injured. Even then the movement did not stop.

The party also formed a military structure – People's Liberation Army (PLA) and fought the people's war.

The police also could not do much. The revolutionary ideology of the Maoists, sacrifice, political initiative, bravery and battle craft defeated the police. Thereafter, a state of emergency was declared and the Army was mobilized. The supreme force of the state used against the Maoists.

Many military actions were carried out by the Maoists. In many districts, headquarters were attacked and captured, however, they could not be captured for long and the Maoist's rule could not be established there. However, it's a fact that the state was limited to the capital and few district headquarters. It was not present elsewhere. Almost 80% area of the country was under the Maoists.

Thousands of Maoists died during the war and many were injured. However, Maoists also could not capture the state. Later, the state was forced to sit for talks with the Maoists and came to a compromise. Initial peace talks failed, because the Maoists had demanded a round table conference and the formation of an interim Constituent Assembly and an interim government. The state was not ready to concede on these lines.

Meanwhile, the royal massacre in the palace in 2001 killed king Birendra and his entire of family. Gyanendra became the king. People's struggle continued. Gyanendra proposed to the Maoists that they should work together, run the government and try to finish other parliamentary forces. However, the Maoists denied the proposal. King Gyanendra's ambitions kept growing, just like his father in 1960. He carried out a coup and took control of the government. He formed a cabinet under his leadership and jailed many leaders and put others under house arrest.

People protested against this and the international community supported the people. But Gyanendra did not back out.

Later, the situation was such that the army was limited to the Barracks. The moment they stepped out of the barracks, they were encountered by the Maoists. Therefore, the army was confined to its barrack under heavy security.

The Maoists were also not able to capture the state completely. Even the army did not have clear victory.

In the end, the revolutionary Maoists and the parliamentary forces suffering from the king's despotic rule came to a settlement and the 12 –point agreement was signed in Delhi. One of the points in this agreement was the election of the Constituent Assembly. This is how the Maoists came in to the peace process.

After the agreement, a new hope was born. The movement took a new form. People flocked to the streets to protest king's rule. Millions protested all over the country. The king tried to suppress it initially and then settle it with small steps. However, the people and the leaders did not buy that. In the end, Gyanendra was forced to reinstate the parliament. An interim government was formed under the leadership of the leader of Nepali Congress, Girija Prasad Koirala. The Maoists were part of this government and an interim constitution was enacted with the consent and participation of the Maoists. Interim parliament also constituted the Maoists. The monarchy was suspended.

Maoists jailed by the state were released once the peace process began. The author was also one of the many freed after the peace process began.

The United Nations (UN) also played an important role. The comprehensive peace agreement (CPA) was signed between the Maoists and the Government in November 2006. Under this agreement, around 31,000 members of the PLA were put in camps at various places across the country. Nepal Army was also limited to the barracks and was under the observation of the UN. Weapons of PLA were stored in containers under the UN supervision.

After the initial phase of inspection and certification, 12,000 fighters were disqualified and were excluded from the process and only 19,000 fighters were left in the camps.

The election of the Constituent Assembly was also postponed many times, and was finally held in April 2008. The Maoists emerged as the largest party and the historic Constituent Assembly of Nepal came into existence. The CA was inclusive in terms of nationalities and gender.

The parliament ended the monarchy and declared Nepal a republic. The chairman of the CPN-Maoist, Pushpa Kamal Dahal 'Prachanda', became the first Prime Minister of the republic. Ram Baran Yadav of Nepali Congress became the first president.

The proceedings of the parliament and the CA progressed. The contradictions between the Maoists and the other bourgeois parties also heightened. The parties who were defeated in the CA elections attacked the PLA outside the camps and wanted the para-military organization to be dissolved. After all round pressure, the Maoists were forced to dissolve this organization.

At this time, the CPN Maoist and CPN-Unity Center were united and CPN – United Maoist was formed. This merger was opposed by a section of the party and another party was formed by the original name CPN – Maoist. This was the first incident of split after the peace process began. After nine months of coming to power, the government dismissed the army chief Rukmangad Katuwal on charges that he had shown insubordination to the defence minister and the Prime Minister. But the expansionist and imperialist forces started a campaign against the government and in favor of the chief. The main participant of the Government, CPN-UML also cowed down under external pressure. Because of this, Prachanda resigned and left the government.

The distance between the Maoists and the parliamentary parties increased further. After that, Madhav Kumar Nepal of the CPN-UML came in power. Although he had lost from both the constituencies, he was nominated by Prachanda, saying he should be in the CA despite the fact that he was defeated by a Maoist opponent in the elections. The Maoist party called for an all Nepal strike. Although it was supported by many people, the movement died. The Prime Minister did not resign and the strike could not continue.

Madhav Kumar Nepal was later forced to resign due to some internal power struggle within his own party. Later, Jhulanath Khanal became the Prime-minister with support from Maoists but he also did not last long. After Jhulanath Khanal, another maoist Leader, Baburam Bhattarai became the Prime minister with support from the Madheshi parties.

The CA had extended its tenure by almost two years. The judiciary, exhibiting a status-quo attitude, interfered in the working of the CA and issued an order which said the tenure could be increased further. The CA was in a difficult situation. Without increasing the tenure it was impossible to write the constitution. The contradictions within the CA and the conflicts between different interest groups were also building up rapidly.

During that process, the weapons of the Maoists kept in the camps were taken away by the government. This step was vehemently opposed by party cadres. Integration of the combatants into the army of the state was carried out. The integration was like a new recruitment into the Nepali army and not like integration. Because of this, many combatants of the PLA chose the option of going out with some compensation.

Out of 19,000 members of the PLA in the camps, only 1500 got integrated into the Army. When the party entered the peace process, it was decided that the PLA and the army will be merged and a new national army will be formed. However, that did not happen.

Because the tenure was about to end without any signs of the constitution, the parties faced a crisis. Nepali Congress and CPN UML did not agree to the suggestions of restructuring of the state as per nationality. They did not pay heed to the recommendations by the State Restructuring Committee of the CA and the Restructuring Commission set up by the government.

Restructuring of the state was the only contentious issue the constitution. In such a case, it should have been solved through voting in the CA. However the Maoist leadership was not ready to go for voting although there was a 2/3rd majority in the CA for the agendas raised by the Maoists. It is not known as to why the Maoist leadership did not resolve the issue through voting.

Because of this crisis there was an internal agreement between the parties that the tenure of the CA would not be extended. However the parliament would continue to exist and the task of writing the constitution would be carried out.

But the government led by Baburam Bhat'Terai, on the last day of the extended deadline of the CA, dissolved the CA and fresh elections was announced.

It is said that Prachanda and Baburam Bhat'Terai dissolved the parliament to save one more division in the party and to avoid facing no confidence motion. The leaders were successful in avoiding a 'no confidence motion' but the party was divided yet again. A large group of the revolutionaries in the party got away and formed a new party under the name of CPN- Maoist. This was second such split in the party after the peace process began.

After the dissolution of the CA, there was an uncertainty in the country. Baburam Bhat'Terai's government wanted to conduct the elections of the second CA under its rule but other parties did not agree to that. After a lot of political turmoil, the then Chief Justice Khil Raj Regmi was made the executive head of the government.

This step was opposed by many people saying it was unconstitutional and non-political and illegal. However, the then government and the major parties did not pay heed and the elections for the second CA were conducted in Nov 2013. The election was conducted under heavy military mobilization.

Nepal's own example and experience was enough for this. In 2008, before the elections of the first CA, the Madhesi and the Janjati movement was at peak. An agreement between the parties and the government was reached atleast a month before the elections and the they took part in the elections.

During the elections of the second CA, the Maoists blamed the rigging of elections as the reason for their bad performance and later however, accepted the result, and moved on.

The result of this election was completely opposite to the previous one. In elections for CA I, the then opposition forces, Maoists had emerged as the biggest party and Nepali Congress was the second party. However, this time the Maoists stumbled to the third position and the Nepali Congress emerged as the winner.

The CPN-UML, which was the third largest party in CA I, became the second party in this election. This was probably the dream equation for the expansionist and imperialist forces.

Maoist leader Onsari Gharti Magar was unanimously elected the chair of the assembly and speaker of the house.

Once again, there were few discussions on issues in the assembly, except for the restructuring of the state. The main issue of contention was nationality-based federal system.

The differences increased and parties polarized. The line between the parties supporting identity-based federalism and the parties opposing was clearly drawn. The ruling Congress, CPN-UML were seen opposing the identity-based federalism, whereas the Maoists and the Madhesi parties were seen in support of that. The Maoists were leading the group of parties in favour of an identity-based federalism which consisted of more than 30 parties.

Strong protests and movements were also carried out by this front. The forces outside the CA were also in the struggle. The main agenda of their struggle was the dissolution of the CA and forming of an all party political assembly.

The 30 parties group led by the Maoists in the CA came to an understanding with the ruling Congress and the CPN-UML and the sixteen-point agreement was signed.

With the Maoists inside the CA II, the movement for identity-based federalism received a set back.

Although the revolutionary forces had advised Prachanda to carry out such an agreement with the Congress and UML, it was said clearly that if Congress and UML are determined to promulgate the constitution, they had 2/3 majority in the assembly and they did not need support from the UCPN-Maoists assembly.

However, because the constitution promulgated by these parties would not be in the interest of the majority of the people and it would not resolve the problems faced by the people. It needed broader support.

A draft constitution was prepared quickly which was protested by the forces outside the CA and was also protested by dissatisfied forces inside the CA. The Adivasi / Janjati and Madhesi parties protested against the draft and there movement continued.

However, the parties who had come together as a block after the 16-point agreement did not waver from their path and the constitution of Nepal was promulgated on September 20, 2015.

This constitution has institutionalized the republic. It has made room for secularism and inclusive proportional system in the government.

However, with a justification added on to the secularism, not only has the constitution made fun of secularism, it has turned the nation into a Hindu state and has even regressed from the promises of the Interim Constitution in terms of proportional inclusion.

The representation in the parliament according to the Interim Constitution was 58% proportional representation and 42% directly elected. In the new constitution it is now 40% proportional and 60% directly elected.

Therefore, the Madhesi, Adivasi/Janajati, dalit, Muslim, and females have rejected and protested against this constitution and the movement for their rights is still on.

Nepal's nearest and closest neighbor, India, has also not welcomed the new constitution. Not only did India support the movement of the Madhesi forces, but also imposed a blockade.

The new constitution has institutionalised secularism, proportional representation, and inclusion. These historic developments, although a direct flow-out from the Interim Constitution, are significant achievements and these should be universally acceptable. But these achievements are incomplete. And in many aspects, the constitution has taken backward steps. Many progressive clauses included in the interim constitution were removed in the new constitution.

It has also backed out from the promises made to different marginalized and oppressed groups and communities on various occasion. Therefore, the new constitution is regressive and anti –people. These are the main reasons why despite the promulgation of the constitution, the conflicts and contradictions have deepened and new fissures have developed.

Immediately after the promulgation of the new constitution, Sushil Koirala of the Nepali Congress resigned as Prime Minister and KP Sharma Oli of the CPN-UML became the prime minister. And the Nepali Congress became the main opposition party.

An effort was made to form a national consensus government to implement the constitution and congress was supposed to be a part of that government but Congress did not want to be part of that government. UML and Maoists formed a government together and the first amendment to the constitution was carried out. However, the struggling forces have not accepted that amendment.

While analyzing Nepal's Peace Process, following points emerge out - First, the armed struggle of Nepal was different from conflict in other nations. It was mainly a class based struggle and it was purely a political conflict, unlike the communal or regional or religious conflicts of other places.

It was a war between Nepal's proletariat, represented by the CPN Maoist, which sees Marxism-Leninism-Maoism as its guiding principle, and the reactionary state forces.

Since it was a war, there was the use of weapons and the army by both sides but there was a fundamental difference in the nature of the war. Therefore, any model from any other place could not be used in view Nepal's conflict.

Second, the nature of casualties and the number of casualties during the war is fewer compared to other similar conflicts around the world where big number of people have been killed in similar conflicts in shorter time.

The death count of 17,000 is also because of the indiscriminate and cruel killings by the security forces of the state. The number of deaths caused by the Maoists was around 5,000 – 6,000, 10,000 to 11,000 deaths were caused by the security forces of the state.

Some innocent were killed by the Maoists during the war, there are bound to be collateral damages, but the security forces of the state killed indiscriminately even children, females and animals.

Maoists did not kill people indiscriminately and criminals and guilty people proven to be enemies of the people were chosen for physical action. This is the difference between a force motivated by ideology and a reactionary force which is just an instrument of oppression of the state.

Third, during the peace process the election for the constituent assembly was conducted twice.

Fourth, the rebels not only won in the elections, the rebel leaders became Prime Ministers and led the government twice.

Former PLA commanders have been installed in high position in the state machinery, like the vice-president, speaker of the house, ministers and MPs. There are many instances where the rebel force come to power either through compromise or through state capture, but this is the first time where they have done so by winning elections after a conflict.

Fifth, there is no other place where the monarchy has been ousted so peacefully through the parliament.

Sixth, the UN was a mediator in the process but it did not stay the complete course.

Seventh, there was a serious internal conflict within Maoist Party and it split in many factions.

Eighth, the main leadership of the struggle left their aim and surrendered completely to the opposite forces.

Ninth, the rebel force had a control over 80 % of land of the country during the peak of the conflict, which is not found in cases of conflict in other parts of the world.

Tenth, once the peace process is over, the conflict is generally over and relative peace is established. But in Nepal, even when the peace process is over after the promulgation of the constitution, the conflicts and contradictions are far from

over and new conflicts have emerged. This shows that Nepal will be engulfed in new whirlpool of conflicts, threatening the territorial integrity and national sovereignty of the nation.

In the end, the characteristics mentioned make the peace process of Nepal unique and new. It may be because of the unique character of the nation due to its diversity. There are many positive and negative lessons to be drawn from Nepal's peace process.



Madhav Kumar Nepal

Former Prime Minister and Leader, CPN (UML)

How do you evaluate a decade of the CPA?

We have achieved a lot in the last decade but the whole process should not have taken this long. One of the reasons for this protracted process was due to the leadership of Maoist Center. The longer we kept former combatants in cantonments, deeper the problems faced by their leadership. In the name of peace process, some of the leaders made this an avenue to make money. If that had not happened, the peace process would have been much shorter.

We are where we are today because of the CPA and this is a good thing. However, we missed the opportunity to be an exemplary for the world. Nevertheless, we did a decent job and this can still be an example foremothers around the world.

Maoists artificially increased the number of combatants from 6-7 thousands to 30-35 thousand. It came down to 19 thousand later on. Some of the vest combatants from that 19 thousand were kept outside the cantonments to use as political tool and that became useful in the first CA elections.

We should now conclude the process. The state is being burdened in the name of disappeared and what not by different political forces. Those people have to be provided skill training, not donations from the state.

There is no point in pointing fingers for the past mistakes. The state has only supported the families of those killed and the disappeared, but others have been completely ignored. This is not a good sign for the lasting peace. A lot more people have yet to receive any support from the state.

What brought many different forces together in the peace process?

We were trying two different strategies to bring the Maoists to the peace process. First, the path of violence was unending and would not achieve their dreams, and that only peaceful means could fulfil their dreams of a prosperous Nepal. We discussed different models from around the world.

Second, we asked them to stop terrorising people. I even helped them on this. I event talked to KIng Gyanendra regarding the issue. I had also discussed the matter with King Birendra before. With regards to using Nepal army against the Maoists, King Birendra told me, "Look, there is no free lunch." He asked

rationale behind using the Army against our own people.

Because different forces used Maoists, their power had increased significantly. Kings used them to weaken democratic forces, international powers used them to weaken and make their presence felt in Nepal. Girija Prasad Koirala used Maoists to weaken UML. Maoists had upper hand because they were given equal status as UML. However, all those who used Maoists had paid heavy price. Inciting religious, ethnic and other conflicts have never resulted in good outcome. What happened to Bin Laden and Lites in Sri Lanka?

Maoists was a major factor in ending the monarchy.

On the request of Maoists, I conveyed messages to Girija Prasad Koirala and the palace during conversations. The palace, Nepali Congress and UML were the major powers during the time. I was involved in the process from early on. King Gyanendra wanted to make the best of this opportunity. King Gyanendra and Prachanda met in Dhor Patan. It was said that the Maoists pledged to support the King and then King would appoint Prachanda as the prime minister. However, things changed quickly after King Gyanendra took power. This because the perfect opportunity to overthrow the king bring Maoists to the peace process.

I then went to New Delhi and asked Prachanda to come there. But he did not come there. He wanted me to go to Rolpa, and I wasnt in a position to go there. So I sent Bam Dev Gautam and Yubraj Gyawali to Rolpa. I stayed in Bangbhawan after talking to Sitaram Yachuri. Prachanda told that he could not come due to their central committee meeting, but when I told him that we would meet them later, he agreed to come. He asked me to wait for a week because the army helicopter was after him. I then left for Hyderabad and Jaypur. Then Prachanda came to New Delhi. Then I called Girija Prasad to come to New Delhi for “medical checkups.”

Prachanda and I had first round of talks and Narayan Kaji Shrestha drafted an agreement with a pencil. I wasnt happy with that and so we drafted our own. I gave a copy to Prachanda and another to Girija Prasad. He (Girija Prasad) wasn't happy with the draft so he asked Krishna Sitaula to draft one. This was how the CPA was prepared. There was no involvement of India. I first met Prachanda in Noida and later somewhere around Appollo hospital. We then came to Nepal and started talking to five of the seven parties of the peace agreement.

We did a full-body checkup at Appollo in order to make our movements easy. KP Oli and Amrit Kumar Bohara came with me and later KP Oli and I went for a “follow up”.

Gopal Man Shrestha told us that he cant sign the agreement without consulting Sher Bahadur Deuba. I then went to Maharajgunj, along with Gopal Man Shrestha and Krishna Sitaula, to meet Deuba who was put there under

arrest. Shrestha gave Deuba a copy of the agreement. I hastily snatched the paper. Deuba wanted to add fundamental right in the draft but we had agreed not to add anything in the draft. I then called Prachanda from Girija's place. I told him that we already have human rights in the draft and should not be a problem adding fundamental rights, he agreed. I told other party members that they either sign or leave. At the end, all the seven parties signed the document.

We did all this to bring a warring parties to the peace process. However, during negotiations, UML's role was minimized. I told that I wanted to be in the stage during the CPA, as an observer. Our representatives bowed before Nepali Congress. If you look at the photos of the CPA, I have very angry face. I did not want to go, but went on a t-shirt later. They did not even let me see the agreement and was told that our party members have already read it. They treated me like an outsider.

Girija Prasad had become too arrogant. He might have been told that he might become the first president. He told that he would move alone if other parties did not come onboard in the peace process.

Why did the talks between the government and the maoists fail the first two times?

It was due to the demands for the formation constitutional assembly.

How did you connect with the Maoists?

Maoist leaders had satellite phone and wen contcted them directly. We had prior connections as well. We used to plan street protests in Kathmandu during the panchayat. We used to form Independent Student Union panels during the time and it was easy for us to re-establish connections.

Did 9/11 force them to come to the peace process?

More than that, it was when the government started brutal campaigning against them. Moreover, Peru's Shining Path and its demise also played a role. Maoists concluded that regardless of the size of your army, if the leadership is gone then you can never win a war. When I met Prachanda and Baburam in Gorakhpur, Hisila Yami told me, "These two leaders will kill us, please save us comrade." Holding my hands, Baburam Bhat Terai told me in a meeting in Lakhana that they are about to be wiped out and so needs immediate help. However, Prachanda added that this did not mean they are a weak force.

The 12-point agreement is often criticised as it was done under the auspices of India. Was it feasible to do that inside Nepal?

It was not possible to do in Nepal. We were not in a condition to go to areas

under their control. What if the government bomb us? Even if I could go, Girija Prasad wasn't in a position to go. I was under heavy scrutiny under government security forces. They were always with me. We even discussed other venues like Thailand, Norway and the Philippines. But we had transportation issues. We even discussed going in a car to Myanmar and then to Bangkok via ship. We had a round of talks with Thailand's deputy PM and speaker of the Philippines. We even discussed with Sitaram Yachuri about all-night boat ride in Kerala's backwater and it was too far. Maoists proposed their own place in New Delhi.

How do you see India's role in the last decade of the peace process?

India's role has been constructive. I am not aware of India's role in the whole process. I have never been told anything about their involvement. If Nepali Congress and Maoists were contacted, I am not aware of that.

What do you make of TRC and CIEDP?

I have not studied deeply. I only wish them success. We should resolve those issues. And this should not be made a profiteering machine for few individuals.

Are you hopeful that the peace process will usher into lasting peace?

Absolutely



Transition but not transformation: How Nepal's liberal peace fails its citizens

Simon Robins

Introduction

Nepal's peace process has been hailed as a success both at home and abroad simply because armed conflict has not resumed. Domestically, political elites laud a successful transition through which they have re-established a polity in which all major political actors—from both sides of the conflict—have consolidated their positions and ensured a continuation of patronage based, corruption driven governance. It is worth then returning to Nepal's Comprehensive Peace Accord (CPA, 2006) to understand the extent to which the current condition of both nation and state contradict the ambition of that document. Here the letter and the spirit of the CPA will be contrasted with what political transition has actually meant in Nepal. It will be argued that the transformative ambitions of the CPA have been sacrificed in favor of a process constrained by an ideological and globalized understanding of a liberal peace (Duffield, 2001; Paris, 2004) that has in turn been instrumentalized by Nepali elites to their own advantage.

Whilst it may appear premature only months after the new Constitution has been promulgated to state that transformation has failed, here evidence will be presented that the structural embedding of traditional and exclusive power relations in the institutions and polity of Nepal remain unchanged. Transformation is here conceptualized in the terms prioritized by Nepalis themselves, through reference to data concerning their aspirations, concerning both the impacts of conflict and the challenges of everyday life. This understands transformation as addressing what divides societies (Maddison, 2016), and in particular—and relevant in Nepal's case—addressing horizontal inequalities that map on to caste and ethnic difference. There is little potential for fundamental transformation or for most Nepalis to see any real change in their everyday lives following the signing of the CPA. Nepal has experienced an elite-led transition, rooted in an idealized liberal polity that has no resemblance to the social and political structures

that actually exist in Nepal which structurally embed exclusion and inequality, the drivers of historic and ongoing conflict. Here, I will seek to demonstrate the forms that structural inequality take that are not impacted by the changes linked to the 'transition', that demonstrate that the transition is actually something that institutionalizes the current status quo.

Article 3 of the CPA envisages: "progressive political, economic and social transformation in the country", "eliminating the current centralized and unitary form of the state [and] ending discrimination based on class, caste, language, gender, culture, religion and region", "ending feudal land ownership" and policies of severe punishment for "corruption while holding a government office" (CPA, 2006). Whilst armed conflict has ceased, none of these elements has been addressed in the decade since the signing of the CPA, and most are not on the agenda of the current government. Conflict endures as a direct result of discrimination, centralization, inequity and poverty that have continued unchallenged. This echoes Galtung's understanding of a 'negative peace', implying the absence of armed conflict, and a 'positive peace' in which all forms of violence, including the structural, are addressed (Galtung, 1996). The liberal peace is characterized by a commitment to a set of values that are presented as universal, but that emerge from the assumptions of Western liberal democracy, ignore the local and the particular of both peace and conflict, and subordinate indigenous perspectives and traditional culture to a prescriptive technical and procedural approach (Richmond, 2009). Empirical data collected from those who suffered most from violence—both physical and structural—during the years of the conflict will be used to demonstrate the priorities articulated by Nepali citizens and their remoteness from the goals of the liberal peace.

Despite the CPA, Nepal's is a liberal peace in that its implementation has prioritized the institutions of liberal democracy, with an emphasis on elections, institutions and the mechanics of democracy, rather than a commitment to social justice (Richmond, 2002 & 2006). This has been imposed by the powerful, both nationally and internationally, according to a global prescription that serves to reinforce existing hierarchies of power and neglect the social, economic and political needs of those most affected by conflict and by histories of marginalization (ibid). From the signing of the CPA until the emerging re-assertion of development discourse over that of 'post-conflict', the goal of Nepal's transition and peace building process was understood by engaged internationals as emulating the liberal democracies who also were funding much of the transition. Those imposing this global model of free markets, elections

and human rights have been characterized in Nepal as ‘imperial progressives’ (Dixit, 2011), reflecting the neo-colonial nature of this project.

Here, two principal elements of the liberal peace will be discussed to demonstrate how it will struggle to realise the transformative promise of the CPA: electoral democracy and the human rights discourse. Empirical data from work with conflict victims will be used to understand how the priorities of the Nepalis with the greatest needs of the peace diverge from what a liberal peace can deliver.

The liberal peace

Peace building has become a label used by a range of organizations working in conflict and post-conflict contexts as well as by the international institutions of the UN and its powerful member states in describing interventions of all types. Emerging as it did in a post-Soviet world where a liberal-democratic dispensation was perceived as the goal of peace building, the peace that such interventions try to build has been called the ‘liberal peace’ (Duffield, 2001; Paris, 2004). The liberal peace is an articulation of the model society being defined by the liberal democracies of the global North, who see themselves as benevolent models for the rest of the globe. Whilst presented as a natural goal of societies seeking to end conflict, it actually represents a highly ideological approach to the political direction a state takes after conflict, perceiving electoral democracy, economic liberalization and liberal institutions as prerequisites for peace building. As such, in the current global environment, it also represents a neo-liberal peace, whose outcomes coincide with the goals of dominant states of allowing global markets to be opened to international capital.

The strongest critique of the liberal peace is that the institutions of liberal democracy are the priorities of such peace building, with an emphasis on peace agreements, elections and the mechanics of democracy, rather than a commitment to social justice (Richmond, 2002 & 2006). It is argued that the liberal peace is a peace ‘from above’, imposed by the powerful according to a global prescription that serves to reinforce existing hierarchies of power and neglect the social, economic and political needs of those most affected by conflict (ibid). Characterized by a commitment to a set of values that are presented as universal, but that emerge from the assumptions of Western liberal democracy, the liberal peace ignores the local and the particular of both peace and conflict, and subordinates local perspectives and indigenous culture to a prescriptive technical and procedural approach (Richmond, 2009).

The nature of post-conflict settlements globally is criticized for consisting of a range of mechanisms that reflect a liberal bias that emphasizes freedom and liberty over equality (Mani, 2002) and consistently assign lower priority to the gendered and socioeconomic impacts of political violence than the conflict's victims do. As a result such peace building carries with a very particular politics, which in the Nepali context serves to ensure that existing hierarchies are reinforced rather than challenged by its practice.

One lens through which to examine the limitations of Nepal's peace is that of legitimacy, a major issue given continued disputation over the new Constitution and the perceived exclusion of major population groups from both the process of Constitution writing and the broader polity. Legitimacy of governance refers to the acceptance by populations of a regime as correct and appropriate (Brinkerhoff, 2005), ultimately understood to revolve around a population's willingness to be ruled: "A state's (or government's) legitimacy is the complex moral right it possesses to be the exclusive imposer of binding duties on its subjects, to have its subjects comply with these duties, and to use coercion to enforce the duties" (Simmons, 2001: 130). This definition, however, says little about what constitutes legitimacy, emphasizing that it is largely the product of the consent of the ruled.

Post-conflict legitimacy has traditionally been perceived as emerging from normative models of governance and a consequence of the hegemony of liberal approaches is that legitimacy of governance in states emerging from conflict is measured in terms of global benchmarks, focusing on institutional state-based measures and alienated from the lives and needs of populations. The liberal peace has defined 'good governance' as dependent upon liberalization, democracy and human rights (e.g. de Alcantara, 1998; Brinkerhoff, 2007).

Whilst addressing the needs of the population does not figure highly in the governance literature in comparison with the satisfaction of international norms, there is an emerging literature that challenges such norms as the sole basis for the legitimacy of governance. Milliken and Krause (2002), for example, suggest that the addressing of everyday needs is a source of legitimacy for the state, expanding understandings of what creates conditions for governance from security and order to welfare and basic needs. Given that the populations of post-conflict states are often characterized by their extreme and unmet needs, the effectiveness of a state in delivering core services and addressing needs is perceived as impacting upon its legitimacy (Clapham, 2003; Call and Cousens, 2008). Defining legitimacy locally, rather than according to global benchmarks,

and understanding that populations legitimate states according to the lives they lead, has been called “performance legitimacy” (Francois and Sud, 2006), relating both to the policy priorities made and the quality of their realization. A liberal peace that perceives legitimacy as constructed in metropolitan institutions rather than in the communities where people live can be irrelevant to such local priorities and thus struggle to be perceived as legitimate.

The empirical data discussed here offer an alternative to universal and norm-based understandings of legitimacy: an evidence based approach, where the priorities of those most impacted by conflict are understood in the context of the communities in which the social meanings that underpin legitimacy are constructed. Rather than examining the institutions of the state, such an approach studies popular perceptions of them. This kind of methodology is necessarily context dependent, abandoning the idea that there exists a set of liberal criteria that are universally valid in favor of an appreciation that both between and within states, perceptions of legitimacy can vary widely. It also implies not a technocratic, metropolitan-led approach, but one rooted in the everyday lives and experiences of populations emerging from conflict, and this drives the victim-centered approach taken here. The methodologies of such empirical work have largely been considered irrelevant to the international relations milieu from which most discussion of legitimacy originates, but tools such as the ethnographic methods discussed here can both inform and challenge norm-based understandings by allowing the voices of those who determine legitimacy to emerge.

Nepal's broken governance

The development discourse and exclusion

Nepal's liberal peace is built upon a foundation of decades of liberal development approaches, despite these being responsible for the very challenges that provoked conflict. A liberal discourse, combining ideas of democracy, rights and development, has become hegemonic as a result of the priorities and resources of international agencies and the willing cooption of national elites who have benefited from an association with it, through access to funds and careers. The ideologies and institutions of development came to be understood as the definition of modernity even though these were created entirely upon the basis of elite understandings of what a Nepali was and should be:

Instead of building on the traditions and knowledge of the villagers in Nepal, the education they received taught them that the places they came from were ignorant and dirty. Their culture, their religious beliefs,

and their ways of using the land apparently were what prevented them from entering the bright, shiny modern world, not the reality that in that world there was not enough—enough opportunities, enough resources – to go around. They were taught that their poverty was the result of who they were and where they came from—things they could not change - not the result of the deep inequities in the world they hoped to join. (Armbrecht 2009, 163).

This was disseminated alongside the concept of the Nepalis as a high caste Hindu hill people that justified the exclusion of the indigenous, the Madeshi, and Dalits. For indigenous people for example, the conflation of this modernizing agenda of rights and development with a Nepali culture defined by and in the image of elites created a pressure that actively served to erode indigenous culture (Pigg, 1996).

The process of democratization after 1990 was driven by these liberal values but singularly failed to address any of the substantive issues of poverty, social exclusion, or the violence implicit in many economic relations. Whilst supported by a broad mass of the people, the 1990 movement was led by traditional elites who saw democracy in terms of competitive elections, rather than a challenging of the narrow ethnic and caste base of economic and political power. With the onset of democracy local elites learnt to run political parties in their areas as machines of patronage and in many areas the rich and powerful were able to ensure that their chosen candidates won elections. Electoral democracy changed very little in terms of who represented the poor and excluded: elites used the institutions of political parties, networks of patronage, and thuggery to win seats in the new democratic parliament. Similar inequalities in representation in the institutions of the state were not addressed by democracy: the fraction of civil servants coming from the most powerful caste and ethnic groups increased from the 1980s to the end of the 20th century (Thapa and Sijapati 2003), demonstrating that far from addressing issues of social exclusion, the new dispensation that followed the arrival of democracy actually worsened it. In the years following the end of the conflict the Brahmin and Chhetri castes, which constitute some 30 percent of the population of Nepal made up 65 percent of civil service staff (Tribuvhan University, 2014). Ethnic Madeshis represent between 2 and 5 percent of the security forces, despite being around 30 percent of Nepal's population (Madeshi Youth, 2015b). Because the liberal principles on which the democratic state was founded did not challenge the extreme inequalities that existed, indigenous people and others remained excluded.

In the era following democratization both the provinces and the capital the most lucrative jobs lay in foreign development agencies and the national NGOs they supported. Government, which remained substantially corrupt at all levels (Upadhyay 2004), could best access funds by articulating the development discourse in its dealings with foreign donors. As a result significant amounts of donor aid were swallowed by elites who had learned the language of development and rights, and rather little reached rural areas (Ibid.), ironically serving to increase the urban-rural economic divide. It was the inability to tackle the fundamental issues affecting many Nepalese, notably exclusion, poverty and uneven development that led to the success of the Maoist mobilization around the 'People's War'. The challenge for governance in Nepal in the post-conflict era is to demonstrate why electoral democracy and the procedural institutionalism that followed the 1990 People's Movement will produce a different result this time, given that an identical recipe, led by a similar set of political leaders, is now being followed.

Representative democracy and exclusive liberalism

The liberal route to addressing inequality and entrenched privilege is a politics in which parties compete for votes in ways that ensure representative democracy. Political parties are "[a]gencies for forging links between citizens and policy makers' (Lawson, 2005), and electoral democracy is seen as inevitably eroding oligarchy and ensuring social justice, by holding policy makers to account. Beyond this, democratization is portrayed as an almost magical formula for peace in war-torn states. However, the briefest survey of Nepali democracy, and in particular the role of Nepali political parties, reveals the limitations of such an expectation in Nepal.

Candidates and parties in Nepal, at both local and central levels, base their electoral appeal on a promise of the provision of individual and collective incentives. Once a politician has access to the resources of the state—most typically through horizontal and vertical relations within the party—he has the capacity to deliver to a group he has cultivated. As such, patronage is the dominant frame for all interaction between voters and politicians and so votes are perceived solely as a part of a market-exchange system. This has the effect of removing ideology from politics and of institutionalizing systematic corruption not only as part of the political system, but as the very logic that drives it. The rewarding of party clients for services to the party (such as donations or voter mobilization), necessarily demands an engagement with the affluent and the powerful who are best placed to mobilize public support (Hachhethu, 2008). Such a patronage system then ensures that the masses are bypassed in favor

of the political cultivation of precisely those who are most empowered to deliver such services, serving to reinforce existing hierarchies of wealth, power, ethnicity, caste and class. The democracy of such liberalism is then hollowed out, ensuring that oligarchies, both political and financial, can continue to perpetuate themselves. Nepalese political parties then become not vehicles for the aspirations of the people, but sites of contestation for individual positions of influence to be sold, highly centralized and undemocratic. A further consequence has been that political parties have accumulated power at the expense of the institutions of the state, privatizing governance and actively contributing to the erosion of the monopoly of power that the state should hold. This is at the heart of the failure of the rule of law and the tolerance of cultures of impunity in Nepal.

National politics has seen the remarkable transformation of the political party apparently most committed to social transformation—the Maoists of the UCPN (M)—into Kathmandu based politicians who have jettisoned ideology and embraced self-enrichment, a caricature of the very people they took up arms against. Such a perspective allows one to understand the resilience of Nepal's politics in corrupting and compromising outsiders and bringing them within a system that they can then no longer threaten: just as the CPN(UML) were absorbed following the first Jana Andolan, so the Maoists were after the second.

The role played by political parties complicates claims that the recently promulgated Constitution is an inclusive document, realized through an inclusive process. Whilst the traditionally marginalized were present in approximately representative fractions in the forums from which the Constitution emerged, the role played by political parties ensured that not all those individuals were equally empowered in the process. Political parties were the essential units that created the document, and as such the individuals with the greatest power in those parties—overwhelming male and from the caste hill Hindu elite—had far greater influence than the rank and file. Party political culture is to follow a faction leader unerringly such that promotion increases the resources that an individual can extract from his or her political position. As such, most of those purportedly representing the marginalized were actually representing their party or themselves. Political parties then are actually a principle route through which traditional elites maintain control over governance whilst paying lip service to diversity.

Contrasting people's needs with liberal prescription

The empirical study referenced here (Robins, 2013) aimed to use qualitative research methods with a sample of victims of serious violations occurring during the conflict in Nepal to understand their needs. Whilst this focused on those who were 'conflict victims', and in particular family members of victims of gross violations of physical integrity, namely disappearance, this was also a sample that overlapped with victims of the structural violence of social exclusion since victims of both state and Maoist violence overly represented the poor, rural and marginalized. As such, the sample represents those with the greatest needs of Nepal's peace process, in terms both of addressing the violence of the conflict and the broader violence of the social exclusion on the basis of caste, ethnicity and gender that drove it, linked to the historic failures of Nepal's economic, social and political development.

A selection of 10 of Nepal's 72 districts was made, including those most affected by violence, and within these districts cases of persons who were missing as a result of the conflict were selected at random from a list compiled during the conflict and the families of victims visited in their homes. Eighty six families were interviewed and 74 relatives met in 10 focus groups. Focus groups were organized by victims' organizations and by local community leaders. Families of the missing were interviewed using a semi-structured approach driven by a qualitative questionnaire that had been developed iteratively through contact with victims and victims' groups. The aim was to understand families' broad needs arising from their experience of conflict and their expectations of the authorities. Families were asked what needs they saw as emerging from their victimhood. Interviews were recorded, translated and transcribed and these transcriptions constitute the raw data of the study.

The need expressed by the greatest number of families was for economic support; many families having lost breadwinners are confronted with the daily struggle to afford to send children to school and to feed their families: victims living in poverty share the needs of all the poor and confirm the need for a positive peace that emphasizes livelihood and development. Such a peace also entails not a return to the structural violence of the past but a transformative process that challenges the violence of many social relations and the social exclusion seen for example by the indigenous people of Nepal. The normatively driven global emphasis on accountability is not shared by victims: when asked explicitly about the need for prosecutions, only a bare majority understands justice as meaning prosecutions. Justice was seen rather as receiving compensation or other

acknowledgement from the state, or an answer about the fate of the missing. Similarly, a need for reconciliation, which has driven the truth commission as a response to violent pasts, or needs linked to problems within or between communities, were articulated by no-one met, suggesting that the global model of 'truth and reconciliation' does not resonate with their needs. These data challenge a number of the assumptions that underpin rights-driven mechanisms that seek to address legacies of violence after conflict. Victims overwhelmingly prioritized economic issues and the truth about their missing loved ones. The truth they sought however was a private truth, not a public one: they seek not a history of the conflict, but an answer about their relative.

Psychosocial impacts were seen to range from disabling mental illness to a far broader stigmatization in family and community. Since almost all the missing are men, most of those left behind are women, who face challenges arising from the patriarchal structure of their societies and dominant attitudes within them. Both family and community resent the fact that wives do not dress or behave as expected as widows, since many refuse to accept their husbands are dead. Issues over their identity in a society where women's roles are narrowly defined are problematic, with the wives of the missing subject to discrimination and stigma. This demonstrates how the impact of violations arises from the nature of the societies in which victims live and drives women's demands that approaches to the violence of the past must also seek to transform the social hierarchies that increase its impact. This reveals that peace, and indeed any addressing of past violence, must emerge from the local and particular circumstances in which victims live.

In the data of this study, victims of the conflict prioritize livelihoods and the economic well-being of their families: precisely those elements which are least prioritized by the liberal peace. Despite the clear evidence that they are a priority for victims, social and economic rights have taken second place to civil and political rights, in both the acts of post-CPA governments and in the advocacy of civil society, reflecting the political priorities of the liberal peace. Elections, state institutions and an addressing of the legacies of acts of physical violence during the conflict are prioritized over and beyond dealing with the social injustice that drove conflict. In principle, there is 'interdependence and indivisibility' of all rights, but in both the global rights discourse and in praxis (in Nepal and elsewhere), social, economic and cultural rights are far less emphasized. To this author's knowledge, no documents or strategies of advocacy have emerged from the leading Nepali human rights agencies advocating for social and economic rights; potential compensation and economic support for victims is always

framed in terms of a legally based ‘right to reparation’, essentially reframing the issue as a civil/political right. That social and economic rights are secondary has been implicitly acknowledged, in principle in recognition of developing states’ challenges in realizing such rights, through the concept of ‘progressive realization’ of social and economic rights.

The language of need is that used by most victims met in this study, and their daily experience confronts them with unmet needs, very often the most basic; the language of rights is an alien one. In the long term, sustainable solutions to the livelihood deficit seen among both conflict victims and many other sections of Nepal’s population (including those less affected by the conflict) will involve both economic development and the confrontation of the structural inequalities in terms of social and economic exclusion. For an overwhelmingly rural population this demands land reform and mechanisms to ensure that they will never again have their land stolen from them. In contemporary Nepal, the claiming of social and economic rights amounts to a challenge to the social, economic and political order of the pre-transition (i.e. pre-2006) state. Whilst in rhetoric this is accepted at the political level, all those leading the transition—at the political level, and in civil society—have proved themselves unable or unwilling to articulate the economic and social needs of victims and to challenge entrenched hierarchies that ensure most remain poor. The liberal constraints of current approaches and the broken political system of Nepal have ensured that true social and economic reform, that could realize the transformative promise of the CPA, is not even on the agenda.

The false promise of human rights

Liberal interventions after conflict typically consider the state as their principal frame of reference, and a significant driver of liberal peace interventions is the global (and state-centered) discourse of rights, which emphasizes a perpetrator and violation-centered approach to legacies of violence. This has led to a focus on judicial process and ‘truth-telling’ bodies as an intrinsic part of peace building; whilst victims are the principal performers in such mechanisms they operate in urban spaces in the capital, remote from the lives of rural victims. Such approaches neglect the fact that the most extreme impacts of violence are felt at the human level and so efforts to address their legacy must also unfold on a scale far below that of the institutions of the state.

On its own terms the post-conflict human rights agenda in Nepal is a catastrophic failure, largely as a result of the collision between a global liberal

politics that demands accountability for conflict era violations and a national politics led by those who committed such violations. The global liberal agenda to 'end impunity' that is backed by the substantial resources of a range of Western states has ensured the hegemony of such approaches in Nepal, with a number of human rights agencies leading advocacy for an approach to the conflict centered on prosecution of perpetrators, even at the expense of the broader agendas of victims and citizens. However, despite the significant resources that have been devoted to this agenda in the decade since the end of the conflict it has been confronted by the implacable opposition of a network of political parties linked to powerful actors such as the Nepal Army with a vested and very personal interest in ensuring that prosecutions do not take place. As discussed above there has been an integration of the Maoists into traditional political structures of patronage and corruption such that actors from both sides of the conflict now share identical perspectives on impunity. Given that personal position and the maintenance of a network of links to others with power are the principle drivers of Nepal's politics it is unsurprising that impunity has been so effectively sustained. The sole result has been the highly delayed creation of two politicized Commissions (the Truth and Reconciliation Commission and the Commission for the Investigation of Enforced and Involuntary Disappearances) with constraints on their resourcing, independence and operations that appear likely to ensure that the impact they can have on the impunity enjoyed by leading political and other figures will be limited, as well as restricting their capacities in other directions. The only actor that has demonstrated its independence on the issue has been the judiciary, which has been effectively ignored and marginalized. After ten years of indefatigable work by committed activists, we are now beginning to see the dwindling of foreign financial support to this effort, as international donors appear to recognize the diminishing returns it offers. It seems likely, as in many other contexts of negotiated transition, that it will require generational change at the political level to see both truth-telling about the past and ensure eventual prosecutions.

The limits of a liberal human rights agenda

Normatively driven rights-based approaches ensure that the institutions of peace building are steered by experts remote from communities most affected by violations: the subjects of liberalism are constructed on a basis with little resonance with local norms. The discourse of rights, as one of the ideological planks of liberal peace building, serves to ensure that agency lies with elites in the capital rather than ordinary people. In a state where only elites 'know' what rights are, they necessarily become something that are largely claimed on behalf of victims rather than by victims themselves, substituting passivity for

empowerment and dependence upon others:

Understood in this way the human rights discourse is actually often detrimental to the empowerment of victims as it produces a lack of agency (the notion that ‘victims’ or oppressed people cannot wage the struggle by and for themselves) and trusteeship (the idea that others must ‘represent’ or ‘take up the cause on behalf’ of ‘victims’) [...] Despite all the talk about victim empowerment then, the victim produced by transitional justice NGOs and others in the international human rights movement is a hapless, passive victim dependent on NGOs and others to speak for her and argue her case. (Madlingozi, 2010: 6)

Whilst the rights discourse claims to address all rights equally, in practice civil and political rights are prioritized over others, notably the social, economic and cultural (Arbour, 2006), particularly after conflict. Thus, rights come with their own priorities, which serve to depoliticize the discussion of peace building, marginalizing agendas of social and economic justice in favor of a legalism that privileges the civil and political: i.e. regime legitimacy over performance legitimacy. Needs, in contrast, are the natural articulation of perceived deficits that arise in victims’ everyday lives, comprising both direct impacts of the violation to which they were subject and those which emerge from the context of poverty and marginalization that characterize states in conflict. Needs are subjective, local and contingent, situated in and of the highly social worlds people occupy.

The liberal peace also perceives civil society as at the centre of a liberal society, with non-governmental bodies offering both a counterpoint to the state, in terms of advocacy and campaigning for change and a substitute, offering assistance and support where the state is unable or unwilling. An instructive example of both how liberal discourse fails to be transformative, and of the limits of liberal civil society, is seen in the role that the lens of human rights has played through Nepal’s conflict and transition. Through the conflict and in the years since, human rights activists have focused almost exclusively on acts of violence, seeking to prosecute those responsible for violations during the conflict, while entirely neglecting the structural violence—and violations of social, economic and cultural rights—of feudal social relations and ethnic, caste and gender discrimination. This can be traced to both the liberal politics brought to the practice of human rights, and the fact that access to the language of rights and to the education required to work professionally in human rights is restricted to the privileged.

As a result of the elite foundation of human rights activism in Nepal, the definition of a violation of rights implicitly privileges particular forms of violence over others. The violence of the conflict that led to killings and torture—violations of bodily integrity—are violations according to those representing the human rights discourse, while the violence of social and economic exclusion and exploitation are not. Human rights, as a state-centred discourse, sanctions violence that maintains the existing social order, and this is reinforced by both the liberal lens that international actors bring to practice and the fact that rights are articulated by local elites who seek to maintain the socio-economic status quo. In a highly unequal state such as Nepal, social and economic demands challenge the existing social order and a liberal discourse that emphasises the civil and political can serve the powerful, by blunting such claims. This is a symptom of a liberal rights discourse that uses a narrow legalism to ignore the politics that underlie situations that are the result of unequal power relations: “legalism [...] incessantly translates wide-ranging political questions into more narrowly framed legal questions.” (Brown and Halley, 2002: 19). Moreover human rights ‘sees’ with the same partial eyes as the state, and when the state is exclusionary it is likely that human rights practice will also be. The result of this legalism is that rights work in conjunction with existing social and economic power relations as a regulatory discourse, at once normalizing certain relations of power and co-opting more radical political demands.

This failure of rights practice to address collective inequalities—in Nepal and elsewhere—reflects a deeper fault line in the global human rights project that from its inception elevated individual rights over group rights, leading to the neglect of indigenous peoples that Falk has called a ‘normative blindness’ (Falk, 1981). This was reflected in the assimilationist policies that post-1990 Nepali Governments attempted and in the resistance of post-CPA governments to ethnic-based federalism or affirmative action on the basis of caste and ethnicity. An example of the consequence of such an exclusive rights practice can be seen in the failure of mainstream Nepalese human rights NGOs to document or address the killing of Madeshi activists during the 2015 protests against the new Constitution, with leading human rights activists choosing to dispute the effort of international actors to bring attention to such violations (Madeshi Youth, 2015). The net result of this is that human rights as an emancipatory discourse in contemporary Nepal is a tool with limited aims that are politically constrained by a liberal lens that result in it failing to align with the transformative ambitions of those who seek to challenge social exclusion.

Conclusion

The limits of liberal peace building

A number of empirical studies have demonstrated how change is understood by most Nepalis, who prioritize their needs for transformation in social and economic terms, and through agency in local spaces, rather than through the liberal proceduralism prioritized by a prescriptive global peace building discourse (e.g. Robins, 2013). Priorities are for routes to livelihood, most notably through democratizing access to land which remains the principal economic activity of more than 85 percent of the population (Seddon and Hussein, 2002), and access to services—such as education and health-care—and jobs. Very little of the post-CPA debate has focused on such issues, which remain key to maximizing opportunities for all Nepalis and thus for building peace. The social and economic issues are linked to the understanding that a range of opportunities are being denied to large sections of the population on the basis of poverty, caste, ethnicity and gender. Such issues are concerned with the expansion of agency and thus with processes of empowerment: the challenging of power relations which exclude certain categories of persons from playing particular roles in society. Ultimately such empowerment offers the prospect of transformation for individuals, communities and the broader society. This emphasizes how participation and citizenship have emerged as a core requirement of creating a state that enjoys popular legitimacy, including the ‘performance legitimacy’ of delivering services to all (Francois and Sud, 2006). One understanding of peace that emerges from such approaches is that of a state to which citizens are connected, and where non-violent routes to drive change exist. The focus in Nepal on the institutions of the state in the capital as the main frame of reference of the peace process fails to resonate with the routes to change of the poor, for whom the state is remote and unresponsive, and on the true sites of power and influence many of which are outside the state, instantiated in local social and economic hierarchies.

The most visible conflict in Nepal today is that between predominantly hill Hindu elites at the centre of both formal and informal power and those traditionally marginalized by the very idea of what a Nepali is, such as Madeshis and Janajatis. It is unsurprising that the Constitution that emerged from the liberal peace discourse has failed to address the aspirations of such communities, given the power relations from which it emerged. Liberal peace building neglects precisely the structural violence that drove and continues to drive inequality and injustice in Nepal. Emphasizing elections, human rights, markets and the institutions of the state as the routes to delivering transformation ensures that such change is

highly constrained by skewed power relations and social, economic and political structures. Ignoring the structures that maintain the power of the traditionally privileged allows those elites to use peace building, and in particular the resources that come with international intervention, to entrench and advance their dominance. Perhaps the most visible of these are the Local Peace Committees established at district level and with representation almost exclusively from political parties (Bhandari, 2014). These succeeded in duplicating both the interests and power struggles of Kathmandu politics, reducing the space for local improvisation and agency in developing contextualized ideas of peace.

Indeed the LPCs demonstrate the dangers of decentralization as not only failing to address the structural limitations of Nepal's polity, but also potentially exacerbating them. Whilst decentralization of governance does hold the promise of democratizing decision making in ways which empower not only Nepal's regions, but also ethnic and caste groups in their home areas, it also risks multiplying the opportunities for patronage politics. This was seen in Kenya, where following a transitional justice process that sought to empower both the regions and marginalized ethnic groups, new district-based elected offices in control of significant budgets were created. The result was a massive increase in the potential for corruption and patronage.

It has been argued here that the liberal lens that has dominated Nepal's peace process and efforts to reframe governance to address the causes of conflict are condemned to fail precisely because of the limits of a liberal approach. The idea that the liberal democracies that constitute Nepal's principal donors represent a model for Nepal's political development fails to consider how inequality is structurally embedded in its institutions. Political parties represent an institutionalization of corruption that ensures they are unable to confront dominant elites who benefit most from it. The discourse of human rights and the role given to civil society to limit the excesses of the state are themselves instrumentalised by traditional elites who use the liberal foundation of such approaches to depoliticize issues of poverty and marginalization, and ensure that issues of structural violence are considered beyond the remit of both transition and justice.

The empirical studies briefly referenced here offer an alternative to universal and norm-based understandings of peace, both in terms of how peace is understood and routes to achieving it. An evidence based approach, rooted in the subjectivities of those most impacted by conflict, permits needs and possibilities to be understood in the context of the communities in which such social

meanings are constructed. This kind of methodology is necessarily context-dependent, abandoning the idea that there exists a set of liberal criteria that are universally valid in favor of an appreciation that both between and within states, perceptions of peace can vary widely. It also implies not a technocratic, metropolitan-led approach, but one rooted in the everyday lives and experiences of populations emerging from conflict, that the CPA has promised but failed to deliver.

Bibliography

- Arbour, L. (2007) Economic and social justice for societies in transition. *NYU Journal of International law and politics*, 40: 1-27.
- Armbricht, Ann (2009) *Thin places: A pilgrimage home*. New York: Columbia University Press.
- Bhandari, Chiranjibi (2014) Reflection on the Role of Grassroots actors (Track III) in post-conflict peacebuilding in Nepal, National Seminar on "*Strengthening Peace Process through Track II Approaches in Nepal*. 14-15 December, 2014.
- Brinkerhoff, D.W. (2005). Rebuilding governance in failed states and post-conflict societies; Core concepts and cross-cutting themes. *Public Admin. Dev.*, 25, 3–14.
- Brinkerhoff, D.W. (2007). Introduction – governance challenges in fragile states: re-establishing security, rebuilding effectiveness, and reconstituting legitimacy. In Brinkerhoff, D. W., ed. *Governance in post-conflict societies: Rebuilding fragile states*. Oxford: Routledge.
- Brown, Wendy, and Janet Halley. (2002). Introduction. In Wendy Brown and Janet Halley, *Left legalism / left critique*. Durham, N.C.: Duke University Press, 2002. 1–37.
- Call, C. and Cousens, E. (2008). Ending Wars and Building Peace: International Responses to War-Torn Societies. *International Studies Perspectives*.9, 1–21.
- Clapham, C. (2003). The global-local politics of state decay. In Rotberg, R. *When States Fail: Causes and Consequences*. Princeton: Princeton University Press.
- CPA. (2006). Comprehensive Peace Accord Concluded Between the Government of Nepal and The Communist Party of Nepal (Maoist).
- De Alcantara, C.H. (1998). Uses and abuses of the concept of governance. *International Social Science Journal*, 155, 105-113.
- Dixit, Kanak Mani (2011) Khanal the Trojan, <http://www.kanakmanidixit.com/?p=227>
- Duffield, Mark (2001) Global Governance and the New Wars: *The Merging of Development and Security*. London: Zed Books.
- Falk, Richard. (1981). *Human rights and state sovereignty*. New York: Holmes and Meier.
- François, M. and Sud, I. (2006). Promoting Stability and Development in Fragile and Failed States. *Development Policy Review*, 24(2), 141 – 160.

- Galtung, Johan (1996) *Peace by Peaceful Means: Peace and Conflict, Development and Civilization*. Oslo: International Peace Research Institute.
- Hachhethu, Krishna (2008) Nepali Politics: People-Parties Interface. In Gellner, David N. (ed.) *Resistance and the State: Nepalese Experiences*. New Delhi: Social Science Press.
- Lawson, Kay (2005) Linkage and Democracy. In Römmele, Andrea; Farrel, David M. and Ignazo, Piero (eds.) *Political Parties and Political Systems*. London: Praeger, 161-70.
- Maddison, Sarah (2016) *Conflict Transformation and Reconciliation: Multi-level challenges in deeply divided societies*. London / New York: Routledge.
- Madeshi Youth (2105) *Nepal Public Figures Challenge Human Rights Watch*, Retrieved from: <http://www.madhesiyouth.com/human-rights/nepal-public-figures-challenge-human-rights-watch/>
- Madeshi Youth (2105b) *Representation of Madhesis in Nepal Police, APF, Nepal Army*, Retrieved from: <http://www.madhesiyouth.com/political/representation-of-madhesis-in-nepal-police-apf-nepal-army/>
- Madlingozi, T. (2010). On Transitional Justice Entrepreneurs and the Production of Victims. *Journal of Human Rights Practice*, 2(2), 208-228.
- Mani, R. (2002) *Beyond Retribution: Seeking Justice in the Shadows of War*. Cambridge: Polity.
- Milliken, J. and Krause, K. (2002). State Failure, State Collapse, and State Reconstruction: Concepts, Lessons and Strategies. *Development and Change*, 33 (2), 753-74.
- Paris, R. (2004). *At War's End: Building Peace after Civil Conflict*. Cambridge: Cambridge University Press.
- Pigg, Stacey L. (1996). The Credible and the Credulous: The Question of "Villagers' Beliefs" in Nepal. *Cultural Anthropology*, 11(2): 160-201.
- Richmond, O. (2002). *Maintaining Order, Making Peace*. London: Palgrave-McMillan.
- Richmond, O. (2006). The problem of peace: understanding the 'liberal peace'. *Conflict, Security & Development*, 6 (3): 291 - 314.
- Richmond, O. (2009) *Liberal peace transitions: a rethink is urgent*. Open Democracy, 19 November. Available at: <http://www.opendemocracy.net/oliver-p-richmond/liberal-peace-transitions-rethink-is-urgent>
- Robins, S. (2012). "Transitional justice as an elite discourse: Human rights practice between the global and the local in post-conflict Nepal", *Critical Asian Studies*, 44(1).
- Robins, S. (2013). *Families of the Missing: A Test for Contemporary Approaches to Transitional Justice*. New York / London: Routledge Glasshouse. This is the book of my PhD work with families in Nepal and Timor-Leste.
- Seddon, D. and Hussein, K. (2002). *The Consequences of Conflict: Livelihoods and Development in Nepal* (Working Paper 185). London: Overseas Development Institute.

- Sheely, R. (2015). Mobilization, Participatory Planning Institutions, and Elite Capture: Evidence from a Field Experiment in Rural Kenya, *World Development*, 67, 251–266.
- Simmons, A.J. (2001). *Justification and legitimacy: Essays on rights and obligations*. Cambridge: Cambridge University Press.
- Thapa, D. and Sijapati, B. (2003). *A kingdom under siege: Nepal's Maoist Insurgency, 1996-2003*. Kathmandu: The Printhouse.
- Tribuvhan University, Central Dept. of Sociology / Anthropology. (2014). *The Nepal Multidimensional Social Inclusion Index: Diversity and Agenda for Inclusive Development*, Kathmandu: Tribuvhan University.
- Upadhyay, S.N. 2004. *Improving Donor Effectiveness in Combating Corruption Sharing Nepal's Experience*. Paper prepared for the DAC Development Partnership Forum: Improving Donor Effectiveness in Combating Corruption organised jointly by OECD Development Assistance Committee and Transparency International, 9-10 December 2004.



Krishna Prasad Sitaula

Former Minister, Home Affairs and Leader, Nepali Congress

How do you evaluate the first decade of the CPA?

Nepal's peace process is unique. It was resolved after repeated talks between the warring parties. There was no mediation in the real sense. The first decade has been positive. TRC and CIEDP have started their works. The process has been delayed but there is progress.

How did the major parties come together to make the peace process happen?

The political dynamics changed after king Gyanendra took over power. This actually brought together the political parties and the Maoists. Girija Prasad's personality and his international reputation also helped Prachanda to be onboard with the peace process. Nepali Congress had to fight against the king and the Maoists. Our people were being killed across villages. We saw the peace process as an opportunity to end the conflict and suffering. Maoists accepted multi-party democracy and gave up arms.

What was your role in the peace process?

There was chaos all over. People were being terrorized. Army was confined in district headquarters. Girija Prasad wanted to end the conflict for good. We wanted to save democracy and maintain peace. The 12-point agreement had the Indian government's goodwill, which would have been impossible otherwise. However, India was not involved in the process.

After king Gyanendra took over power, India, Europe, USA, and China supported in restoring peace in Nepal.

What was the role of palace during the peace process?

Two talks during king's reign did not come to a conclusion. King was intent on destroying the political parties, and democracy. Political parties became an important part of the whole process and soon realised that the palace was the enemy of peace.

We were in constant touch with the Maoists leaders.

What was the role of India in the peace process?

We obviously had India's goodwill. They wanted to see durable peace in Nepal. I was then home minister and coordinator of the negotiation team. I went to bring Baburam and Prachanda to Kathmandu without security and brought them to Baluwatar to meet the prime minister. Then we signed the CPA. Then we invited UNMIN to monitor the ceasefire.

The interim constitution said the very first meeting of the CA will declare Nepal a federal republic. Then I went to the palace to bid goodbye to king Gyanendra. The political parties were working together and trusted each other.

Was it possible to have the 12-point agreement inside Nepal?

King was under control. Maoists was declared terrorists. Our leaders were sent to jail. We were underground. I was a member of Nepali Congress' movement committee but was underground. Security forces came to my house. So, it was not possible to sit down and meet inside Nepal. All seven parties were not present at one given time. It was only UML and Nepali Congress representing the seven party alliance. It was Girija Babu, Madhav Nepal, KP Oli, Shekhar Koirala and myself. I brought the agreement without signature, which was then signed on November 21. The seven parties signed and Prachanda also signed. This was then publicized. This brought together parties for peaceful protest against the monarchy, and the Maoists committed to end the violence and partake in multiparty democracy.

Was Maoists in a hurry to end the war post-9/11?

I'm sure that played a role. The world was united behind defeating all forms of terrorism.

TRC and CIEDP have started their works. How do you see its effectiveness?

They have to follow and abide by the laws we draft and give them. We believe they will work independently. We would not have formed the commissions if we had doubts about their impartiality. This is the last leg of the process and this is complete the process that was started in 2006.

Do you think the CPA will end conflict for good in Nepal?

A lot of people have lost their lives: young, old, children and more. Rules of war have been ignored. Lots of innocent people have lost their lives. Works of TRC and CIEDP should ensure that there is no vengeance in society.



Ian Martin

Former Head, United Nations Mission in Nepal (UNMIN)

How do you evaluate Nepal's political context after a decade of the Comprehensive Peace Agreement?

The ultimate success criterion for a peace process is whether it brings peace, and whether that peace will endure. In 2005, I came to a Nepal which was in the tenth year of a civil war, with terrible consequences for non-combatants in the villages, a history of failed negotiations, and no clear path to peace. Today, there is no armed conflict, there have been elections which clearly expressed the will of the majority, and power has been transferred peacefully. Beyond that, to secure lasting peace, root causes of conflict should be addressed, institutions reformed, and reconciliation and justice promoted. The CPA was a highly ambitious document in that respect, with commitments to “a progressive restructuring of the state to resolve the existing problems based on class, caste, region and gender”, and to “ensure progressive political, economic and social transformation”. The continuing dissatisfaction of marginalized groups with the constitution and tensions over transitional justice are indications of what still needs to be resolved and political actors still seem more preoccupied with jostling for office than with cooperating to deliver on the promise of social and economic progress.

What was your role in bringing all major parties to one place to ensure subsequent agreements of post-CPA were implemented?

It was a major weakness of the peace process that despite repeated agreements among the parties to establish an all-party mechanism to review overall implementation of the CPA, they never created one; and control of the Ministry of Peace and Reconstruction went from one political party to another as governments changed. The most effective peace process implementation mechanism was the Joint Monitoring Coordination Committee, chaired by UNMIN in accordance with the Agreement on Monitoring the Management of Arms and Armies, which had been negotiated under the UN facilitation. But otherwise the UN's good offices to try to keep the peace process on track took the form of myriad individual meetings with the parties, but only very occasionally all-party meetings convened by the UN itself. Despite the absence

of an overall implementation mechanism, it was strength of the Nepali-style process that the major actors were constantly meeting, even when the process was in its most difficult moments.

Tell us more about the integration of Maoists in Nepal Army. What was UNMIN's strategy for negotiations?

UNMIN was not a party to negotiations on integration: it was only given a mandate to monitor the management of arms and armies. India had resisted the UN being given a wider mandate to include advising on integration. The Interim Constitution required the Council of Ministers to establish a special committee “to supervise, integrate and rehabilitate the combatants of the Maoist Army”, at the same time as the Nepal Army was to be democratized. UNMIN pressed for the special committee to be established and offered to provide it with technical advice, so that we could have an early exit strategy for the mission. But for a long time, the opposition of India and the Nepal Army command to any integration of Maoist combatants into the Nepal Army stalled progress, until an eventual political deal was done.

How did UNMIN engage with multiple actors of the peace process and what were some of the major challenges?

The UN always had good access to the multiple actors, and this began before the formal peace process, through the contacts of the UN Department of Political Affairs in the person of Tamrat Samuel and through OHCHR in Nepal. One should not only focus on the top political and military leaderships: the regional offices which first OHCHR and then UNMIN established enabled us to engage in the districts too. It is easy now to forget the security fears of Maoist leaders when they first came to Kathmandu, and how deep was the mistrust at the beginning of the process, when Nepal Army and Maoist Army commanders sat down at the negotiating table for the first time. So the challenge was never in difficulties of access or dialogue: it was in the non-implementation of commitments made and resistance to the greater assistance that the UN could offer, more because of Indian pressure than of inhibitions of the Nepali actors. This gave rise to a tension between constraining the UN role, yet criticising it for problems that were beyond its mandate or capacities. UNMIN's arms monitors were never intended to police the cantonments and barracks, or supervise financial arrangements: that would have required thousands, not fewer than 200 monitors. They monitored commitments which it was the responsibility of each side's political and military chain of command to respect – and to a great extent, with UN monitoring, encouragement and when necessary public criticism, both sides did so.

As an outsider, what is unique about Nepal's peace process?

Nepalis have always liked to emphasize the extent that it was a Nepali-process, and not one mediated by outside actors. This should not lead one to overlook the role of India, which was often constructive in encouraging agreements and pushing forward implementation, of some of the foreign advisers, or indeed of the UN. But it remains true that Nepalis – civil society as well political party actors – should be proud of their ownership of the process. My greatest admiration is for Girija Prasad Koirala, who was not the easiest interlocutor but whose vision for the peace process deserves the greatest single accolade.

Were Maoists in a hurry to end the conflict, esp. after 9/11 and the resulting international solidarity against terrorism? What is your opinion regarding the Maoists' strategic shift to peace talks?

That is better asked of those who were part of the internal CPN-M debates, and has been well analyzed by others, notably S.D. Muni and Aditya Adhikari. But the first time that the UN – Tamrat Samuel and I – met Prachanda, in 2006 outside Nepal, he gave us a long analysis of the reasons why his party was about to reach what became the 12-Point Understanding. He did refer to the international context and the experience of the Maoist Shining Path in Peru. But most peace processes become possible when both sides recognize that outright military victory is impossible for them. So I believe that this internal factor, and the way in which the then king pushed the Maoists and the parliamentary parties together in opposition to “autocratic monarchy” and alienated India, were more significant than the post 9/11 climate.

TRC and CIDEP have started working to reconcile wartime issues. How do you see the whole process of reconciliation and truth finding? What is the likelihood that this will be internationalized?

International standards should be respected but reconciliation cannot be internationalized, and the case for justice should not depend on the threat of universal jurisdiction. So it is essential that Nepal listens to the voices of the victims. My own experience was that none of the political actors were committed to any degree of accountability, and nor was the Nepal Army. I hope the way that victims and their families have now come forward will give some momentum to the truth finding and accountability which are needed for reconciliation.

Do you think that Nepal's agreement will pave a way to end other conflicts that have emerged in the last decade?

Each situation has its own context and dynamic, so I think that would be too

much to predict. But the UN role in the management of arms and armies in Nepal has been closely looked at by both sides to the current peace process in Colombia, and has been helpful in shaping implementation arrangements and the UN political mission there.

How do you evaluate the role of informal dialogue process like NTTP?

It is often said that peace has to be made between those who were fighting, but nevertheless informal dialogue and civil society can play a most valuable role. Nepali civil society actors made a huge contribution in the period of the 12-Point Agreement, the Janandolan and the negotiation of the CPA. Unfortunately, partisanship and polarization have limited the subsequent effectiveness of civil society, and my particular appreciation of NTTP is that it seems to have succeeded in avoiding these.



The reintegration of the Maoists combatants: What do we need to know?

Dhirendra Nalbo and Jacob Rinck

Introduction

By the end of the “people’s war” in 2006, the Maoist People’s Liberation Army (PLA) comprised of several thousand active combatants. The exact numbers were and remain contested – the Maoists are widely accused of having inflated them, and their opponents of downplaying the real size of the guerilla force. Regardless of what the exact numbers were, ten years after the end of the war, the question poses itself what has become of these people.

One of the key components of the implementation of Nepal’s Comprehensive Peace Agreement (CPA) has been the reintegration of the Maoist combatants. Scholars and Nepal observers applauded integration as one of the major achievements of the peace process and often describe it as the process’s formal conclusion. After years of political wrangling, a total of 19,602 former People’s Liberation Army (PLA), in 2012, were given the choice to voluntarily retire with either a cash package (from \$6000 to \$8,000 depending upon the ranks), vocational training with cash, or be considered for integration into the Nepal Army (NA). In the end, only over 1,450 former combatants chose integration into the NA and fit the rigorous selection criteria, and more than 15,000 combatants retired voluntarily.

Existing perspectives on Disarmament Demonization Reintegration (DDR) by and large assess the success or failure of a reintegration process by whether former combatants assume new, peacetime identities and forms of livelihood, or re-engage either with violent politics or criminal activities: successful reintegration from this perspective requires combatants to effectively vanish from view as they fully integrate into civilian life (Colletta & Muggah, 2009; Torjesen, 2009).. However, by focusing on what these individuals don’t do, rather than on the roles they do go on to play in the broader social

networks they are embedded in, we risk missing important aspects of post-war social change.

Better capturing this social change enables us to understand and explain the changes in political motivations that underpin why often violent conflicts persist. In much of the literature on reintegration, in contrast, the question of political motivations of former combatants remains bracketed out (Colletta & Muggah, 2009). In analyzing why former combatants either fully reintegrate into civilian life or are at risk of re-joining armed groups (Themner, 2013), these approaches mostly use indicators not of “greed” narrowly conceived, but certainly of self-interest, such as viable livelihoods, and status in local communities. This, however, disregards what is often a major factor for why former combatants joined a rebel group in the first place: visions of radical social and political change.

In Nepal, where the armed conflict was settled through a negotiated peace agreement, significant components of the Maoists’ transformative vision became part of the CPA, including constitutional changes to address longstanding issues of inequality; discrimination based on ethnicity, gender, and geography; and the democratization of the NA. Although some parts of this agenda have been addressed – most notably the end of the monarchy – the assimilation of the Maoists into the political mainstream has resulted in fierce internal debate about whether they have compromised too far, leading to four major splits (and some reconciliations) since the end of the war. In this context, the key questions this article seeks to address are: what do these political developments since the end of the war mean to former combatants? And what role has politics come to play in their lives since they left the PLA?

Specifically, we will focus on two aspects of former Maoist combatants’ social lives: the relationship dynamics between them and their extended families, and their evolving ties to political networks. The key arguments in this chapter are based on conversations with 35 former combatants (27 men, eight women) from a variety of ranks ranging from simple combatants to vice-division commanders, as well as neighbors and family members. For reasons of access, it was not possible to speak to any of the over 1,400 former PLA integrated into the NA, and this chapter does not comment on their situation. This article does not claim to present a comprehensive picture of the situation of former PLA fighters. However, it does aim to identify structural issues that are likely to be salient for many of them.

Looking back

During the war, the Maoists filmed many major engagements between them and the police and army. Today, these videos circulate widely among former Maoist combatants. Two former PLA battalion commanders in Jhapa showed us a video of a battle in the mid-west on a smart phone. It was shot right at the frontline. A commander shouted orders through a megaphone while the fighters fired their guns towards the forested hillside, at an enemy that couldn't be seen on the video. The battle lasted for around ten minutes, before the NA soldiers on the other side seemed to have retreated. The PLA unit advanced into the retreated enemy's front line, rifled through the enemy's left backpacks, and was told to retreat themselves. The two commanders we sat with were excited. "This is how we fought", one of them said. "Do you miss it sometimes, your time in the PLA?" – "Yes, of course I do. We were full of energy, and purpose. There was this battle close by [near Chulachuli in Ilam]. We were firing our rifles, smoking our cigarettes – that was a damn good fight".

Of course, not everyone was as excited about combat. Suresh (name changed), a former street child of 14 years old that the Maoists recruited in Kathmandu, remembered his second and last battle as intensely terrifying. It was an attack on a phone tower in Bhojpur. Suman's duty was to bury the dead and carry the wounded off the battlefield. The fight ended for him when a grenade exploded next to him, leaving him unconscious and severely injured¹.

The experiences the PLA fighters made during the war, the reasons and motivations for which they joined in the first instance, and the ways in which their worldviews evolved during their time with the Maoists² all shape how the former combatants think about their own integration since readopting civilian lives. The following section examines the motivations that drove individual decisions to join the Maoists, and the experience PLA combatants made during the war.

The stories of the former combatants we interviewed for this research confirm the broad range of motivations Adhikari discusses (Adhikari, 2014). Despite the great diversity of experiences, however, several broad themes emerge.

Many of the former combatants, who mostly joined at later points of the conflict, said that friends and acquaintances played an important role in their decisions to join. Many of these individuals were still in their early teens at the time. In some cases, friends or siblings who had already joined at earlier points convinced them

to participate. In other instances, groups of young people from a single village joined collectively. This was often a process which began with participating in cultural programs or trainings, leading to roles in the local Maoist militia, and only end with joining the PLA after considerable time (Stirr, 2013). This was often combined with ideas of seeking a meaningful life beyond the often-narrow opportunities available to a teenage villager. One former section commander from a district in the Eastern Hills said when reflecting upon youth enrollment in the PLA: “One needs to do something useful with one’s life, right?”

Many others said they joined because they feared for their own safety, as the war drew closer to their villages geographically. In some cases, students ended up on police lists out of suspicion of being involved in the armed conflict, marking them for arrest or worse. One former PLA medical officer from the Kalikot District (Far Western Hills of Nepal) described how his name appeared on a Home Ministry list of suspects after an attack on a local NC leader. The fact that he had nothing to do with the attack, and that he was a member of the NC student wing, made no difference. When he learned that the police had orders to shoot on sight anyone on the list of suspects, he joined the Maoists. Others said their families were under surveillance, with security forces coming to their homes, because elder siblings had already joined the Maoists, and they feared they could be arrested. Threats by the Maoists, too, ironically, sometimes led people to join them. Several former combatants whose fathers had been local leaders of the royalist Rastriya Prajatantrik Party (RPP), and who were branded as “class enemies” or “feudals”, said that they saw joining the PLA as a way to protect their families from being targeted by the rebels.

This is not to say that ideology did not play a role at all, but only in rare cases does it seem to have been the primary reason for people to join the rebels. That said, many of those who did cite either the role of social networks, or threats as immediate reasons for joining, also said that the Maoists’ political vision, as far as they understood it at the time, did appeal to them. This understanding was often fairly vague but does point to some of the major structural inequalities in Nepali society that the Maoist party aimed to address. In the words of former combatants, as we repeatedly heard, they thought they would fight against inequality between castes and ethnic groups, between men and women, and against feudalism.

The existing literature on the Maoist movement in Nepal broadly contends that people joined the Maoist movement for ideological, sociopolitical and geographical reasons: abolishing monarchy; ending gender, ethnic, caste and

geographic inequalities, discriminations and feudal system (Onesto, 2005; von Einsiedel et al., 2012). This research, in contrast, concurs with Adhikari (Adhikari, 2014) who found that while ideology did play some role, many joined out of fear, threat and intimidation caused by both Maoist insurgents and the state's security forces. This is also consistent with Kalyvas' and Kocher's insight that under the conditions of relatively indiscriminate violence often prevalent in areas affected by civil war, joining a rebel force may not be riskier than remaining a civilian; in fact, joining may reduce relative risk. This flips the commonly assumed collective action problem of rebel groups on its head. Not recruiting fighters per se is a problem, but selectively recruiting the right ones. Based on our research, there is little evidence that economic incentives, as they are considered in the "greed" literature on armed conflict, played any role at all.

Once people had joined the PLA, they became subject to a new set of structural factors. Despite the diverse ethnic, social, political, economic and geographical backgrounds they came from, and despite the variety of motivations for which they joined, the new recruits now came to share a new lived experience, from which a new kind of community emerged. This community existed in its own unique time, space and condition. The actual battles were only part of this experience, albeit an important one. Also prominent in combatant narratives today [and in autobiographies, Adhikari, 2014] are the hardship of everyday life in the rebel force, with weeks of marching across the difficult terrain of Nepal's hills, off the road to avoid detection by the security forces, often with limited food and shelter. "We spent day and night together, cared for each other, ate food from the same plate. How can we forget those moments?" reflected one ex-combatant (ex-combatant, personal communication, 2016).

Many former combatants also say that their initially very limited understanding of Maoist ideology deepened during their time underground. Each PLA unit was headed both by a commander, who held the military command, and a party commissar. The commissars' primary responsibility was to ensure that military tactics conformed to political strategy, but they were also tasked with providing ideological training to the PLA. A key element of the doctrine imparted on the fighters was the dual roles they assumed as Maoist guerilla fighters, who both had to obey orders as part of a military hierarchy, and remain committed to their political cause. A former combatant said: "While you hold a gun in your hand, you are a combatant, when you don't hold a gun; you are a combatant fighting inequality and injustice" (ex-combatant, personal communication, 2016).

Like all historiography, the accounts that the former combatants give of their time at war today are tinged with the concerns of the present. In the post-integration life, a shared memory has become an important medium to keep them close and together. Combatants insist that there is a “special” relationship between them, despite current affiliation with different Maoists parties. These ex-combatants while some of them may genuinely feel pride about their wartime experience, some may simply do so since there is no time left for remorse particularly in the face of the Maoists parties losing political ground and as their opponents continue to question about the relevance of war.

In the cantonments

If the wartime experience played an important role in how the former PLA combatants came to view their reintegration into civilian life, then so did the six years in the cantonments where many of them spent more time than they had actually fighting. The key dynamic that emerged during this period was an increasing rift between a PLA kept in limbo, uncertain about their future, and a Maoist party that quickly adapted mainstream politics.

After the signing of the CPA, seven division-level cantonments and 22 satellite cantonments were set up to house the PLA combatants. Not all PLA combatants entered these cantonments, and not everyone who was registered there had actually been in the PLA. For example, many of the registered PLA were not genuine fighters and many were later disqualified as late recruits. Some of those disqualified were from the Young Community League (YCL), the party’s youth wing that was used as a militia. The exact figures are still unclear, but there are estimates that up to 7,000 former fighters came to constitute the core of the YCL; some of these YCL cadres had never entered the cantonments in the first instance, others had registered but spent most of their time outside.

The CPA stipulated that the cantoned ex-combatants would be settled by integrating them into Nepali security forces. Contrary to this, the Maoists party told the combatants that the time in the cantonment would be “preparation for the final assault” to bring the state under the Maoists’ total control. The interviewed ex-combatants recalled that their morale at the time was high, and that they were patiently awaiting the party’s instruction. “We were invigorated and full of energy at the time, we thought there was no fight we couldn’t win”, said one of them (ex combatant, personal communication 2016). But patience waned. “First we waited for weeks, then weeks became months, then months became years, but the moment never came”. Meanwhile, what was widely known

as the “two-line struggle” became more pronounced, which brought a clear division among the combatants³. Factionalism also had effects in the PLA.

Not only factionalism fed into the alienation of the PLA fighters from broad sections of the party, but also the Maoist leaderships increasingly apparent concern with appropriating material resources. In the accounts of the former combatants we spoke to, three instances of corruption or misappropriation stood out as particularly damaging to morale during the cantonment era.

Initially, 32,250 individuals were registered as combatants. But when the UN-led verification began in 2007, 8,640 individuals were absent (Subedi, 2014). According to ex-combatants interviewed, the party was receiving monthly allowances for all 32,250, with no accountability how the money was being spent. The ex-combatants also expressed their displeasure how the party took up to 2,000 rupees (around \$20) from their monthly allowance.

Commanders soon learned that there was little point in bringing up corruption issues with the party leadership. A senior commander recalled that a substantive consignment of timber, meant for building cantonment facilities, went missing en route. When he found out that party leaders and other commanders were involved, he travelled to Kathmandu to raise the issue with senior party leaders, but says he was roundly ignored (ex-combatant, personal communication, 2016).

There were rumors and allegations about irregularities in numerous other cases, including in the acquisition of the Jana Maitri Hospital in Kathmandu, meant to provide treatment to injured combatants, and which the Maoists bought partially with contributions from the cantonments, and later sold on at a profit. The cumulative effect of the Maoist party’s adaptation both to parliamentary democracy, and to the patronage-based political culture of Nepal’s established political parties was that large parts of the PLA increasingly thought that the party deviated from its core objectives, and that the PLA lost its purpose. The progressively deepening alienation between party and army could be traced through the decreasing frequency of senior party leader visits to the cantonments. This also resulted in changing patterns of relations between the party and PLA, in which those PLAs with individual connections to the party leadership could use those to transition into party careers or access economic opportunities, while others were left out.

In 2012, when the PLA fighters were given the choice between joining the security forces, taking “retirement” cash packages (\$5000 to \$8000), or a mixed

package of training and financial support, the major of factions within the party played a crucial role in shaping decisions.

An ex-combatant who remains close to Baidya-led party recalled that a bulk of combatants gathered and informally decided to solicit the voluntary retirement option and walk out of the cantonments, because they had fundamental disagreements about the party's handling of army integration (ex-combatant, personal communication 2016). According to him, almost all the combatants who took voluntary retirement in the first phase were Baidya supporters⁴.

However, the ex-combatants who supported Prachanda appeared to have a room for decision: whether to go into the NA or restart civilian lives. An ex-combatant who was eligible for an officer-level position in the NA, but opted out for voluntary retirement said, "Going into the army, I would have been an employee with a monthly salary. But as a politician, I would get a chance to serve people."⁵ Others appeared to have made a calculated decision about which integration package to take, and didn't think much about the political merits and demerits of the integration. Rather their decisions were geared towards the post-integration life. For example, husband and wife who held mid-ranking position decided for volunteer retirement because they were attracted to the combined sum of money⁶; those who studied while inside the cantonment and saw further career potentials took the rehabilitation package⁷.

Life after the cantonment

In the four years following the last PLA combatants left the cantonments – either as civilians or as members of the NA – many of them have settled close to one another near former cantonments, as well as in clusters in Terai districts near the east-west highway. What led the former PLA fighters to choose these places, and what have they been doing with their lives since leaving the cantonments? Media reports frequently assert that former PLA fighters face hostility in their home villages, often connected to communities' resentments at the hardships they had to endure during the war. For female combatants, this is further compounded by rumors about the (supposed) sexual permissiveness in the PLA. In the narratives of the former fighters we spoke to, these factors played next to no role. The vast majority, with a few exceptions, said that they were welcome back home. Many PLA fighters seem to have returned home for visits fairly regularly even at the height of the war, and continued to do so during their time in the cantonments. The return home, for many, therefore seems to have been a gradual process, rather than a dramatic shift.

Life in the Terai, and in the vicinity of other former combatants, seems to be attractive for a number of reasons. The first reason people identified when asked why they had settled in these particular places, rather than returning to home districts and villages that are often located in the hills, was the availability of facilities and services, in particular private, English-medium schools, and hospitals. This is particularly important for the many former fighters who, now mostly in their late twenties to late thirties, have married and had children.

This interpretation is further supported by the fact that those from the Terai who had joined, in particular Tharus from Western Nepal, mostly did return to their home villages, and continue to live there now.

This does not mean that other, subtler push factors have not played a role. In particular, moving from impoverished hill villages into the comparatively wealthier plains is often seen as a sign of status and success. Some former combatants did say that they were embarrassed to return to agriculture on their ancestral land – in their home villages often the only viable livelihoods option available – and that they felt others expected them to have more to show for their years with the Maoist force.

Gender roles: Partial reversals?

Often several of these factors came together in influencing decisions on where to live. One former section commander said that she and her husband, who was also in the PLA, had first moved to his village in Ilam, and attempted to make a living of vegetable farming. When income from this proved insufficient, he went to Malaysia to work as a security guard for some years, while she moved to Ilam Bazaar, the administrative headquarters of the district, to send their child to private school. This division of labor is understandable, given that there are severe regulatory impediments in place to discourage Nepalese women from labor migration, but it has also contributed to the households of former PLA fighters falling back into traditional gender patterns.

In addition to regulatory labor migration rule, the two key structural reasons might also be at play for why many female ex-combatants retook the gendered roles. First, several female combatants we met have young children with the responsibility to take care them. Second, with limited qualification and work experience compounded with limited employment opportunity, the choice to stay at home to take care of household work and their children might have been

the only best option left for them. This is not to suggest that this trend means a complete reversal.

In fact, female former fighters continue to challenge the social norms in the post-conflict era. The same former section commander, who is Tamang, also spoke about the difficulties of living with her husband's Chhetri family in Jhapa. Rather than adapting, the course of action traditionally expected of a bride, she said she is planning to establish her own household in the same village, also with the aim of showing other women that a more independent life is possible.

What are the effects of these Maoist couples on the communities they live in? Our own research did not investigate this systematically, so it's not possible to make conclusive statements about this. However, we can offer some thoughts. People on a daily basis encounter former combatants who fought and risked their lives for an idea of change. Especially in the case of female PLA, these already challenges established gendered stereotypes on what kind of lives women can and can't aspire to. Onsari Gharti, the first woman Speaker of the Legislative Parliament elected in 2015, herself was once a PLA. To a certain extent, and in some instances, the former PLA couples also still live the change their party demanded. This is especially true for inter-caste marriages, which stand as a permanent reminder for one of the many dimension of change the Maoists were demanding during their war.

Making a living

For the combatants readopting civilian lives means a new beginning. They had to give up a system of distribution in which their basic material needs were cared for to one in which they found themselves back in the situation the vast majority of Nepalese face, and which is characterized by a gap between aspirations for a good life, and the opportunities available. Some individuals were able to insert themselves into the political networks that distribute serious economic opportunities. Yet, the majority re-joined the larger pool of the Nepalese workforce. Dissatisfaction therefore doesn't necessarily arise from former combatants comparing themselves to their non-combatant peers, but rather from the general gap between aspirations and opportunities available. That said, the combatants experience this gap in a particular way, because they do feel that they deserve continuing compensation for their sacrifices and contributions. The combatants consistently and often proudly refer to abolishing the monarchy and establishing a republic and secular Nepali state as part their core contributions. However, their claimed contributions are at odds with a larger section of society

that obstinately opposed the armed rebellion who rather view them as tool used for perpetrating violence and crime.

Drawing from the research, three key factors are at play for the broader mixture of livelihood activities and occupations that ex-combatants assumed. First, the combatants who held mid or high ranking positions equipped with the interpersonal skill to capitalize sociopolitical networks reinserted back into society relatively well. The two battalion commanders we interviewed in the eastern hills, for example, not only hold senior level party positions at the local (district) level, but also are involved various small scale businesses. One of them runs a restaurant, employing a fellow combatant, has travel and tour company including a security company with the particular focus on sending former combatants to abroad as security guards. The other one is an elected member of multimillion dollar road consumer committee and has involvement in real estate as well as small scale contracts. Second, the mid-ranking combatants who choose politically lesser active life, but focused more on the livelihood, small scale businesses such as poultry farming, pig farming, daily stores, and cosmetic shops appeared to be the popular ones. Of the twelve mid-ranking combatants we interviewed, eight of them run such businesses. Third, most lower or non-ranking combatants who were unable to cultivate their party affiliation and mishandled the money that they received as part of retirement package either do daily labor or went abroad for work. Six out of fifteen combatants, interviewed for this article went abroad, two of them are unemployed and the rest do daily labor. Only two of them are affiliated with a political party.

This diverse integration experiences of the former combatants who are engaged in broader livelihood activities is case in point that having money at hand does not necessarily transforms one's life. For a village life, a sum that the combatants received (\$5000 to \$8000) is not small one. But many combatants who joined the Maoists with high aspiration left disillusioned spent their money recklessly. "I got really frustrated with my life and the politics," recalled a non-ranking combatant. "I bought Rs. 40,000 [around \$400] worth watch, a laptop and went to Dubai." Another combatant bought blankets for each of his relatives, while another one couldn't even recall how and where he spent the money.

Yet, some ex-combatants did reintegrate back into society well (own house, with a fairly frequent income to run the family), but for some the frustration and struggle to make ends meet remains a real challenge. This challenge is directly related to forms of livelihoods and Nepal's social structure where family, kinships, acquaintances and political networks play an important role to lead a decent and

respectable life. In other word, livelihoods often depend on the cooperation that includes both lending and borrowing money between social members in which people with political and economic clout play a significant role. Such a social system, posed a new set of challenge for the former combatants since they often targeted these powerful individuals as their arch enemies referring them as “feudal.” A former Dalit combatant in Bardiya succinctly captured this condition: “It’s hard to now go back to those feudal, whom we attacked and intimidated, who were our arch enemies, with whom we had such bitter relations, and ask for help and loans. It’s a complete loss of dignity.” It is also important to notice that contrary to ex-combatants’ demand for recognition by the state based on their “sacrifices and contribution,” these individuals still face selective isolation particularly from NC (Nepali Congress) and UML (Communist Party of Nepal, United Marxist Leninist) supporters who not only doggedly opposed the conflict but also experienced intimidation and violence from the Maoists. The hatred towards ex-combatants from their opponents has often transformed into non-cooperation and isolating tactics. For example, in Bansgadi, Bardiya, the ex-combatants run “Namuna Bazar” or model bazar where each item is at least Rs. 10 cheaper than other stores. Yet, the ex-combatants who run stores say that they’re struggling, and that people don’t come because those opposed to them still brand them former combatants, which means they are perceived as involved in killing, intimidation and extortion.

One of the direct repercussions of such sociopolitical condition has compelled many former combatants either to leave the country as migrant workers or to remain within the political networks. Then what do these networks mean? And most pointedly how do these networks work?

Networks

The network of former combatants remains centered on former commanders, although only some of them are still with any of the Maoist factions. The network the former combatants maintain among one another is a crucial resource and structuring factor for how they’ve organized their lives and livelihoods after leaving the cantonments.

What’s the shape of these networks? It seems clear that many former combatants – although not organized as such, maintain ties to one another. This takes several different forms. Former PLA living in one area stay in touch, facilitated by the fact that they are now often neighbors. Former senior commanders, who also seem to make it a point to keep track of their former fighters, and maintain

contact with them, in particular maintain inter-regional contacts. The result seems to be dense and integrated local networks nested in a looser Nepal-wide network⁸.

These networks do tie into the Maoist party, but also transcend the ties that former combatants have to the party for which they fought during the war. There is a great deal of alienation, but the majority of combatants we spoke to are nevertheless still associated with one of the Maoist factions (Prachanda-led party). However, levels of involvement vary greatly; only a small proportion of people still work as whole-timers – most describe themselves as associated with one of the different factions without holding a position. Nevertheless, the networks of former combatants appear to remain somewhat isolated from the bitter factional struggles that have torn the Maoists apart over the past years. That said, there does seem to be an element of competition between senior commanders associated with one or the other faction.

It's important not to underestimate the strength of the community that emerged from the fighters' joint experience of the war. Many of the former combatants told us that they missed the war – both the camaraderie and the intensity and thrill of fighting (statements consistent with the experience of war veterans around the world). They say there is a level of understanding shared only by those who fought together (a barbed comment also directed against those in the party who were exposed to fewer risks during the war). Former commanders put great effort into establishing martyrs' memorials that help shape and maintain an identity as former PLA that emphasizes the sacrifices made in contribution to socio-political change. For former combatants, one purpose of their community thus seems to be both positive social valuation, and the continuity of the camaraderie many of them came to treasure during the war.

Their networks seem to mean a variety of things for the former combatants. Many ex-combatants restarted their civilians lives using their own existing network. Establishing small business either lending money to each other or through collective investment was the beginning⁹. While these individuals didn't necessarily made profit from their investments, the business certainly provided an opportunity for them to reengage with the society; restart post-integration lives; and remain closely in touch with their fellow combatants. Holding party positions played an important role as well since it better enabled them to engage in socioeconomic activities, not least as "ex-combatants."

Risk narratives

Security risk and or instrumentalized victim are the primary lenses through which state, development sector, and the media analyze the former Maoist combatants. But this frame of analysis is not simply a perspective from the outside that mainly affects former PLA through policy decisions based on it. Rather, former PLA are acutely aware of how they are being viewed by whom, and take this into account in the ways they represent themselves. The former PLA we spoke to responded in broadly two ways to the notion of them as a risk factor.

Importantly, the rejection of the “risk factor” narrative also contains an assertion of political motivation, and ultimately agency. Many of the former combatants particularly object to their portrayal as greed-driven mercenaries, who can easily be manipulated into taking up arms by any group. Never mind the internal contradiction of this narrative, which implies both the radically individualist agency of a gun-for-hire, and patronizingly characterizes former fighters as naïve prey to savvy political entrepreneurs. In response, many former combatants cite that there was no money and a lot of risk in joining the PLA, and that they did so for political reasons [the truth is of course a bit more complicated, given what we’ve heard about the actual motivations at the time of joining, but then motivations do change in response to experience].

None of this is to say that the former fighters do not make use of their popular association with a capacity for violence – but they usually stress a much less disruptive and uncontrolled kind. This is the case, for example, for those who are involved in public contracts, or have become local broker figures in a more general sense. Both figures, in contemporary Nepal, are often associated with the ability to mobilize gangs for violence if need be. But actual violence is rare, and these actors are also a key resource for the police in fulfilling their primary objective, the upholding of public order. Those among the former combatants who have assumed such positions mostly held senior command positions, and are now able to draw on the implicit assumption that they retain influence over networks of former combatants, regardless of the extent to which this is actually still the case. Second, many of those former combatants who go abroad to work go to Malaysia, where there is a particularly big market for Nepalis as private security guards. Many argue that their background as former PLA leaves them well equipped with skills for the security sector, be it public or private, and some seek entry into the private security sector in Nepal (which is still broadly dominated by retired police and army personnel). This is of course a very different kind of violence.

Perception of being united and capable of violence may also serve for protection. No one said this explicitly, but it showed in descriptions of incidents. For example, Hikmat spoke about an event in Kohalpur: a policeman had teased a former PLA's wife in their own hotel, upon which the former PLA gave the policeman a beating. He was subsequently arrested. Then, a crowd of more than 700 former combatants showed up at the police station demanding his release or they'd vandalize the police station. Their comrade was released. This happened in 2015.

One response is to cultivate and emphasize an image of former combatants as capable of and prone to violence. A former battalion commander who had suffered debilitating injuries during the war said: "We all have Masters' degrees in building bombs and firing guns". Assertions such as this often hide partly contradictory rationales: switching between appeals to the state to take care of former fighters, especially those no longer able to work due to injuries, and threats that the failure to do so would force them to take up arms once again for anyone who is able to offer a livelihood in return. It is perhaps not a coincidence if these arguments closely resemble those put forward by many INGOs and NGOs working on the reintegration of former combatants in post-conflict situations. The same Battalion Commander said: "They've earned millions selling our names, but we haven't received anything so far". If others can make a living off selling the specter of the former combatant as a security risk, why shouldn't the former combatants themselves do the same? It is important to stress that what the dominant literature stresses as the norm, is rather the exception.

Among the people we spoke to, those holding this position were predominantly now affiliated with the Biblav faction. Most of them appeared to have marginal livelihoods activities. Other former combatants argued that the people who joined Biblav and threatened renewed violence were mostly those who hadn't been able to establish viable livelihoods, and were hoping to sustain themselves through "donations" again.

From the perspective of many former PLA, the discussion of whether they should receive additional resources to prevent a turn to violent crime is besides the point not just because for most of them that is explicitly not an option, but also because they think they should receive recognition on altogether different grounds, i.e. that they'd both made a sacrifice and a contribution for changing Nepali society for the better.

Conclusion

Examining integration of ex-combatants simply as a programmatic component of peace building effort gives an incomplete picture. The Maoist leaders whether as mere political stunt or as genuine intention did raise structural inequalities attracting broad-based support particularly from rural area. But many individuals joined the Maoists out of fear and intimidation, including protecting their families from the rebels. These politically novice individual subsequently became fairly well versed cadres who could understand and articulate the core objectives of the rebellion.

Measuring success and failure about the integration based on what these individuals do, therefore, misses the structural perspective of ex-combatants' everyday lives. While some do face real challenges to lead civilian lives for economic reasons, many of them integrated back to society fairly well where they faced sporadic social backlash from community members. Their ability to do so broadly depended on how prudently they were able to utilize the sociopolitical network they have or saw. Their (for both for women and men) shared experience as former combatants, however, is one of the most fundamental source of their network. While integrating back into civilian lives, their lives certainly have taken different directions, but they can effortlessly evoke their wartime experience and quickly invoke their comradeship and bonding. Such comradeship and bonding provides them a foundation for cooperation both financially or otherwise. It is, therefore, important for them to remain in touch for sharing knowledge and support each other.

Unlike many researches that treat these individuals as (use and throw) tool, lacking both political and social agency and considering them needing for aid, these individuals are politically shrewd and have the ability to weave into different social and political strata. They are also deeply self-aware of how the society particularly to those who opposed the "people's war" (negatively) perceive them. While it might be difficult to reconcile and move on for people who directly experienced violence and intimidation from the Maoists, many ex-combatants might deserve to be left alone as they navigate their lives as civilians. The perpetual negative perception on the former combatants neither helps bolster the effort for transitioning from conflict to peace nor helps healing wartime wounds.

Notes

- 1 This person was apparently both IT proficient and a good cook, and for these reasons was assigned to work as an aide for a senior PLA commander. But he eventually left his assignment and went abroad. He now works at a restaurant run by a fellow former combatant. Interview, Ilam, March 2016.
- 2 The Maoists argued that the roles and responsibilities of various departments were clearly defined. It means combatants' responsibility was to fight the battles. Nonetheless, our research repeatedly found that there are various cases where "commissars" whose roles is "political" fought battles along with the combatants. In this sense, to treat or consider ex-combatants as apolitical would be to deny the reality, which is unhelpful for understanding the integration issue as a whole.
- 3 The so-called two-line struggle was on whether to continue mainstream politics or continue the "revolt." Prachanda (and during that time Baburam BhatTerai) supported the former whereas Baidya and his allies (known as hard-liner) supported the latter. The key party meetings held in Palungtar and Kharipati were major showdown for the combatants on who supports who. Further, Baidya and C.P. Gajurel are one of the most senior leaders who never took the ownership of the peace process including CPA. When Prachanda signed the CPA in 2006 flanked by other leaders including Baburam BhatTerai, the two leaders were still in Indian jails (the leaders were released in 31 November while the CPA was signed on 21 November 2006). Throughout the peace process, the two leaders and their allies remained critical of the Party's decisions particularly on the army integration issue. The rift eventually resulted into splitting of the party in 2012
- 4 However, it important to take a note that there are also ex-combatants who now support Netra Bikram Chand "Biplov." In 2014, Biplov split from the Baidya-led party accusing that latter didn't adopt a "fully revolutionary" line. These ex-combatants express full-throated criticism to Prachanda and his party. Most of these individuals opted out for volunteer retirement and consider integration as biggest blunder the party had made.
- 5 If he'd completed the integration process, he would have become a captain. Interview, ex-combatant, Damak, Jhapa, March 2016.
- 6 A soldier level combatant received around \$5000 and based on the rank, other high-ranking combatants received up to \$8000.
- 7 We met two ex-combatants who benefitted from rehabilitation package. One of them is working as an overseer for a hydropower project and the other one is self-employed electrician.
- 8 The network discussed here is an informal one, which is different than what Robins, Bhandari and the ex-PLA research group (2016) discussed. But it is worth noting their research on the formal network. In February 2015, the ex-combatants from across the country gathered in Kailali far-western part of

the country and formed the Ex People's Liberation Army Nepal National Network. The purpose of the network is to raise the issues related to ex-PLAs and continue their role to bring social change in the country. The influence and impact of this network is yet to be seen in social and political sphere, but symbolically, it certainly provides them a platform to reacquaint and share their feelings, issues they face and give continuity to their comradeship and bonding. For more on this see: Robins, Bhandari and the ex-PLA research group, 2016.

- 9 Economic activities that ex-combatant are engaged are but not limited to Real estate, contracting projects, security company, manpower company (migrant workers supply), hotel, restaurant, poultry, pig farming, cow farming, cosmetic shops, grocery stores and vegetable farming. This list is not by any means exhaustive, but the ones we observed during the research. These individuals are actively involved like any other political party cadres be it part for settling disputes in the presence of police or involving in community works

References:

- Adhikari, A. (2014). *The Bullet and the Ballot Box: The Story of Nepal's Maoist Revolution*. Verso Books
- Annan, Jeanie & Blattman, Christopher. (2011). *Reintegrating and Employing High Risk Youth in Liberia: Lessons from a Randomized Evaluation of a Landmine Action Agricultural training Program for Ex-Combatants*. Evidence from Randomized Evaluations of Peacebuilding in Liberia, Policy Report. Retrieved from: http://www.poverty-action.org/sites/default/files/blattman_annan_ex-com_reintegration_ipa_liberia_1.pdf
- Bogati, S. (2014). *Assessing Inclusivity in the Post-War Army Integration Process in Nepal*. Berghof Foundations. Retrieved from: http://ips-project.org/wp-content/uploads/2015/11/IPSPaper11-Assessing-Inclusivity-in-the-Post-War-Army-Integration-Process-in-Nepal_English.pdf
- Blattman, C. (2009). From Violence to Voting: War and Political Participation in Uganda. *American Political Science Review*, (103) 2, 231-247.
- Collier, P. & Hoeffler, A. (2004). Greed and Grievance in Civil War. *Oxford Economic Papers*, (56)4, 563-595.
- Einsiedel, S. (Eds.). (2012). *Nepal in Transition: From people's war to fragile peace*. New York: Cambridge University Press.
- Goodwin, J. & Skocpol, T. (1989). Explaining Revolutions in the Contemporary Third World. *Politics and Society*. 17, 489-509.
- Humphreys, M. & Weinstein, J. (2007). Demobilization and Reintegration. *Journal of Conflict Resolution*, (51), 4, 531-567.
- Humphreys, M. & Weinstein, J. (2008). Who Fights? The Determinants of Participants in Civil War. *American Journal of Political Science*, (52), 2, 436-455.

- International Labor Organization. (2009). *Socio-Economic Reintegration of Ex-Combatants: Guidelines*. ILO Programme for Crisis Response and Reconstruction (ILO/CRISIS). Retrieved from: http://www.ilo.org/wcmsp5/groups/public/-/ed_emp/documents/instructionalmaterial/wcms_141276.pdf
- Jha, P. (2014). *The Battles of Republic: A Contemporary History of Nepal*. New Delhi: C Hurst & Co Publishers Ltd.
- Kalyvas, S. (2006). *The Logic of Violence in Civil War*. Cambridge: Cambridge University Press.
- Kalyvas, S. & Kocher, M (2007). How “Free” Is Free Riding in Civil Wars? Violence, Insurgency, and the Collective Action Problem. *World Politics*, (59), 2, 177-216.
- Lord, J & Stein, A. (2015). Peacebuilding and reintegrating ex-combatants with disabilities. *The International Journal of Human Rights*, (19) 3, 277–292.
- McMullin J. (2013). Integration or separation? The stigmatisation of ex-combatants after war. *Review of International Studies*, (39), 385–414.
- Mazurana, D., McKay, Carlson, C., Kasper, J. (2002). Girls in Fighting Forces and Groups: Their Recruitment, Participation, Demobilization, and Reintegration. *Peace and Conflict: Journal of Peace Psychology*, (8) 2, 97-123.
- Muggah, R. (2009). *Security and Post-Conflict Reconstruction: Dealing with Fighters in the Aftermath of War*. London: Routledge.
- Nilsson, A. (2005). *Reintegrating Ex-Combatants in Post-Conflict Societies*. Stockholm: Swedish International Development Cooperation Agency.
- Ozerdem, A. (2012). A re-conceptualisation of ex-combatant reintegration: ‘Social reintegration’ approach. *Conflict, Security & Development*, (12) 1, 52-73.
- Ozerdem, A. (2009). *Post-War Recovery: Disarmament, Demobilization, and Reintegration*. London: I.B. Tauris.
- Olson, M. (1965). *The Logic of Collective Action: Public Goods and the Theory of Groups*. Massachusetts: Harvard University Press.
- Pugel, J. (2009). Measuring Reintegration in Liberia: Assessing the Gap between Outputs and Outcomes. In Robert, M. (Ed.). *Security and Post-Conflict Reconstruction: Dealing with Fighters in the Aftermath of War*. London and New York: Routledge.
- Richards, P., Archibald, S., Bah, K., Vincent J. (2003). *Where have all the young people gone? Transitioning ex-combatants toward community reconstruction after the war in Sierra Leone*. Unpublished report. London: School of Oriental and African Studies.
- Spear, J. (2002). Disarmament and Demobilization. In Stedman, J. S., Rothchild, D. & Cousens, E. M. (eds). *Ending Civil Wars: The Implementation of Peace Agreements*. Boulder: Lynne Rienner.
- Stirr, Anna. (2013). Tears for the Revolution: Nepali Musical Nationalism, Emotion, and the Maoist Movement. In Tilouine, Marie. LeComte, (eds.) *Revolution in Nepal*. Oxford and New Delhi: Oxford University Press.
- Subedi, D. (2015). Security Dimension of Post-conflict Recovery: Nepal's Experience in Disarmament and Demobilization of People's Liberation Army Fighters. *International Journal of Political Culture and Society*, (28), 143–159.

- Subedi, D. (2014). Dealing with Ex-Combatants in a Negotiated Peace Process: Impacts of Transitional Politics on the Disarmament, Demobilization and Reintegration Program in Nepal. *Journal of Asian and African Studies*, (49)6, 672-689.
- Subedi, D. (2014). Conflict, Combatants, and Cash: Economic Reintegration and Livelihoods of Ex-combatants in Nepal. *World Development*, (59), 238–250.
- Themner, A. (2013). *A Leap of Faith: When and How Ex-Combatants Resort to Violence*. <http://dx.doi.org/10.1080/09636412.2013.786917>
- Weinstein, J. (2007). *Inside Rebellion: The Politics of Insurgent Violence*. Cambridge University Press.
- Woods, E. (2003). *Insurgent Collective Action and Civil War in El Salvador*. Cambridge: Cambridge University Press.
- Wickham-Crowley, T. (1992). *Guerrillas and Revolution in Latin America: A Comparative Study of Insurgents and Regimes since 1956*. New Jersey: Princeton University Press.



Messages from Nepal's integration and rehabilitation process

Geja Sharma Wagle

Introduction

Following the end of the Cold War and the fall of the Berlin Wall, which symbolized the failure of the communist system across the world, it was believed that liberal principles and values, democratic system, rule of law and human rights would prevail in the days to come (Fukuyama, 1992). But on the contrary, the Communist Party of Nepal (Maoist) [(CPN (Maoist))] declared the 'people's war' to establish a 'people's democracy' by putting an end to the multi-party democracy and constitutional monarchy from 13 February 1996 in Nepal (Hutt, 2004). Following the military strategy – protracted war of their ideologue and great communist leader – Mao Tse-tung, the CPN (Maoist) started armed activities from the remote hill districts (i.e. Gorkha, Rolpa, Rukum, Salyan, Sindhuli, Jajarkot etc.) by attacking local police posts and government offices including cadres of political opponents, in particular, the Nepali Congress (NC) and the Communist Party of Nepal (Unified Marxist Leninist) [CPN (UML)] (Lawoti, 2010). Assessing the Maoist insurgency and their armed activities, then government decided to mobilize the Nepal Police to control the armed, illegal and unconstitutional activities of the CPN (Maoist) (Thapa, 2004).

When the government decided to mobilize, the Nepal Police started 'Romeo' and 'Kilo-Sera Two' operations in those districts to control the Maoist's activities by following aggressive and coercive security strategy (ibid). As a result of the excessive use of force, there were gross human rights violations by the Police and they suppressed Maoist cadres including the innocent Nepali people on the pretext of controlling the Maoist's violent and illegal activities (Devkota, 2012). But the Nepal Police could not control the Maoist's activities despite the oppression of the people. Instead, the local people and opposition political parties heavily criticized extra-judicial killings, arbitrary arrest, torture and gross human rights violations (Kandel, 2011). Consequently, the government and the

Nepal Police became unpopular and the CPN (Maoist) got the support from the local people, to some extent, in the given context (ibid).

Despite the suppression by the government using security agencies, the armed conflict emerged as a major challenge to the government and the CPN (Maoist) succeeded in drawing attention of the opposition parties, media and civil society including international community (Thapa, 2003). The CPN (Maoist) also followed counter military strategy to restrain the government's coercive operations (Seddon, , 2003)). The CPN (Maoist) also applied same kind of retaliation tactics against the innocent people, and they used to issue death warrants and used to kill a number of innocent people blaming of spying against the people's war (Dixit, 2011). Likewise, the CPN (Maoist) also followed the highly controversial 'annihilation strategy' against their 'political opponents'. They used to declare 'people's enemy' to all those who did not support them and their armed activities and executed them on the pretext of 'people's action' (ibid).

Cost of the conflict

Those kinds of violence and counter-violence military strategies both from the state and rebellion caused irreparable human and socio-economic loss for a poor country like Nepal. The decade-long violent and bloody conflict caused deaths, disappearances, displacement, damages of property and infrastructure along with economic down turns. Extra-judicial killings, arrest, torture, disappearance, gross human rights violations were regular activities by both security agencies and the CPN (Maoist) during the emergency. The following table divulges on the human casualties, force disappearance, displaced family, abduction etc.

Table 1 Human cost during the armed conflict		
S.N.	Title	Number
1.	Deceased persons	17,886
2.	Disappeared persons	1,530
3.	Displaced persons	79,571
4.	Abducted persons	3,142
5.	Disabled persons	8,935
6.	Widows	9,000
7.	Individual property damaged	17,484
8.	Family of martyrs' of the People's Movement	26
9.	Those injured during People's Movement	4,014
10.	Orphans	620

Source: Ministry of Peace and Reconstruction

As mentioned in the above table, a total of 17,886 people lost their lives during the armed conflict. The number of deaths reached its peak during 2002 to 2004 after the declaration of the state of emergency on 26 November 2001. When the government declared the state of emergency against the CPN (Maoist) and mobilized the Nepal Army, the conflict turned more violent which led to irreparable loss of human lives and rise in casualties. There was significant increase in casualties, disappearance, arrest, torture and human rights violations and reached its peak from 2002 to 2004 (Bhatt, 2010). Likewise, during the despotic regime of King Gyanendra, there was brutal suppression of mass movement and human rights violations were on the rise (Shreshta, 2004).

According to the report of the MoPR, 22,863 families (79,571 persons) were internally displaced due to violence and terror (several forms of violence inflicted by the CPN (Maoist), namely killings, torture, abduction, threatening, extortion etc.) and counter response from the security agencies. Likewise, a total of 1,530 people disappeared during the period of conflict, most of them during the state of emergency. Moreover, the CPN (Maoist) engaged in arbitrary killings, abductions, extortions and forced eviction of the common people and the members of the other political parties during the entire period of decade-long insurgency.

The escalation of violence and deteriorating security situation resulted in the closure of industries under the insurgent's threats, decrease in remittance from abroad, which is a major source of national income and mass migration from the conflict-ridden areas to other parts of the country and beyond. One of the most visible and direct physical impact of the armed conflict is the widespread destruction of physical infrastructure as well as private and public property. The total destruction of infrastructures is summarized in the following table.

Table 2 Destruction of infrastructure and public property		
S.N.	Categories	Total destroyed
1	Schools	2,149
2	Village Development Committee offices	2,072
3	Government offices at district Head Quarters	986
4	Government offices at local level	1,047
5	District Development Committees, Municipalities	130
6	Suspension bridges	101
	Others	2,032

Source: Nepal Institute for Policy Studies' policy paper

The data in Table 2 shows that 8,517 public structures were destroyed during the armed conflict. School buildings top the list of public properties destroyed during the insurgency with 2,149 units followed by Village Development Committee (VDC) offices which numbers 2,072. Similarly, 941 police posts and District Development Committee (DDC) offices including other development infrastructures were destroyed (ibid).

Comprehensive peace accord and major agreements

The People's Movement of 2006 heralded significant political change in the history of Nepal and laid a strong foundation for Nepal's democratic transformation, restructuring the state, and providing space for conflict resolution and sustainable peace (Martin, 2010). Yet the historic movement of 2006 not only established the Federal Democratic Republic by putting an end to the 238-year old monarchy, but also ended the decade-long armed conflict by bringing the than rebellion – the CPN (Maoist) into the political mainstream through a peaceful dialogue process (Upreti, 2009). Nepal's peace process had formally started when the government and the CPN (Maoist) signed the historic CPA on 21 November 2006. But the peace process had informally begun following the signing of the Twelve-Point Agreement between the then Seven Party Alliance (SPA) and the CPN (Maoist) on 22 November 2005 in New Delhi (Mishra, 2009).

The Twelve-Point Agreement between the SPA and the CPN (Maoist) laid strong landmark foundations for political parties to fight for democracy and peace, whereby, the parties and the CPN (Maoist) had agreed to fight jointly against the King Gyanendra's despotic regime (Manandhar, 2008). In fact, the historic milestone of the peace process – the Twelve-Point Agreement paved the way for peaceful people's movement for democracy and peace. Millions of Nepali people took to the streets in the 19-day long historic people's movement in 2006. As a result, the people's movement succeeded in establishing democracy by dethroning the centuries-old monarchy (Wagle, 2013).

The armed conflict was formally put an end following the signing of the CPA thereby agreeing to renounce violence, follow the rule of law, and honor universal human rights principles and democratic norms and values. Furthermore, the CPN (Maoist) agreed to put their armed combatants into 28 different cantonments and store weapons in the containers under the supervision of the United Nations Mission to Nepal (UNMIN) (Martin, 2010). UNMIN completed the verification of the arms and Maoist combatants from 15 June 2007 to 27 December 2007. Likewise, another milestone of the peace process

– the Agreement on Monitoring of the Management of Arms and Armies (AMMAA) was signed on 8 December 2006 between the Government of Nepal (GoN) and the CPN (Maoist) (ibid). The CPA in its article 4.4 also mentioned - ‘the Interim Council of Ministers shall form a Special Committee in order to supervise, integrate and rehabilitate the Maoist combatants’ (The Interim Constitution of Nepal 2007).

As per the provision 4.1.3 of the AMMAA - ‘only those Maoist army combatants properly registered at cantonment sites will be eligible for integration into the security forces fulfilling the standard norms. Discharged personnel will be ineligible for integration. Those eligible for integration into the security forces will be determined by a Special Committee as agreed in the CPA. This integration process will be determined in subsequent agreement with the parties’ (ibid).

On 16 December 2009, the government and the CPN (Maoist) signed an agreement to release the disqualified combatants from the cantonments within a month. The discharge took place from 7 January to 8 February 2010 (Wagle, 2013).

With the exit of UNMIN on 15 January 2011, the Unified Communist Party of Nepal (Maoist), [UCPN (Maoist)]¹ formally handed over the cantonments and the combatants to the Special Committee for supervision, integration and rehabilitation, and their arms to the Nepal Army on 22 January 2011 (Wagle, 2013). However, monitoring of arms and armies was never the function of the Special Committee, but the Secretariat of the Special Committee was given the task to undertake those functions as decided by the Special Committee. The exit of UNMIN left the government with a challenging task of carrying out the monitoring of cantoned arms and armies.

Nonetheless, the Special Committee succeeded in completing its additional responsibilities as well (ibid). Following the decision of the Special Committee to handover the combatants, cantonments and arms to the government on 10 April 2012, brought to an end to dual army in the country. Nepal’s peace process formally concluded on 12 April 2013 with the dissolution of the SC which was formed for supervision, integration and rehabilitation of ex-combatants in October 2008 (Wagle, 2012).

Apart from the aforementioned political agreements and constitutional provisions, there are a number of other agreements that have significantly contributed to the peace process. The agreements are listed in the table below:

Table 3 Major agreements among political parties

S.N.	Agreement	Date signed	Signatories parties/remarks
1	Twelve-Point Agreement	22 November 2005	The Seven Party Alliance (SPA) and the CPN (Maoist)
2	Restoration of Parliament through the	24 April 2006	The then King Gyanendra
3	Royal proclamation	28 May 2006	Endorsed by the House of Representatives
4	Proclamation of the House of Representatives	26 May 2006	Krishna Prasad Sitaula on behalf of the GoN and Krishna Bahadur Mahara on behalf of the CPN (Maoist)
5	Ceasefire Code of Conduct	15 January 2007	The GoN, the CPN (Maoist) and political parties
6	Interim Legislature-Parliament including the CPN (Maoist)	1 April 2007	Political parties including the CPN (Maoist)
7	Interim government	9 August 2006	The GoN and the CPN (Maoist)
8	Joint Letter to the United Nations	21 November 2006	Prime Minister Girija Prasad Koirala on behalf of the GoN and CPN (Maoist) Chairman Pushpa Kamal Dahal 'Prachanda'
9	Comprehensive Peace Accord (CPA)	8 December 2006	Krishna Prasad Sitaula on behalf of the GoN and Krishna Bahadur Mahara on behalf of the CPN (Maoist), and witnessed by the UN Representative Ian Martin
10	Agreement on Monitoring of the Management of Arms and Armies (AMMAA)	15 January 2007	The Interim Government

S.N.	Agreement	Date signed	Signatories parties/remarks
11	Promulgation of the Interim Constitution 2007	23 January 2007	The GoN and the CPN (Maoist)
12	Arrival of UNMIN	15 June 2007	UNMIN carried out the verification process
13	Starting the verification process of the ex-combatants	27 December 2007	UNMIN completed the verification process
14	Completion of the verification process of the ex-combatants	10 April 2008	The GoN
15	Constituent Assembly elections	28 October 2008	The GoN
16	Formation of the Special Committee (SC)	16 April 2009	The GoN
17	Formation of the Technical Committee (TC)	16 December 2009	The GoN and the UCPN (Maoist)
18	Agreement to discharge disqualified combatants	7 January 2010	The MoPR carried out the discharge process
19	Starting discharging process	8 February 2010	Completion of the discharge process
20	Completion of the discharge process	22 January 2011	The GoN and the UCPN (Maoist)
21	The UCPN (Maoist) formally handed over the cantonments and ex-combatants to the SC for Supervision, Integration and rehabilitation	1 November 2011	UCPN (Maoist) Chairman

S.N.	Agreement	Date signed	Signatories parties/remarks
22	Seven-Point Agreement	From 16 November to 2 December 2011	Pushpa Kamal Dahal 'Prachanda', NC President Sushil Koirala, CPN-UML Chairman Jhala Nath Khanal and on behalf of Joint Madhesi Democratic Front, Bijaya Kumar Gachhadar
23	Categorization of combatants Voluntary retirement (1st installment)	From 1 to 14 January 2012	The SC and its Secretariat
	Voluntary retirement (2nd installment)	From 31 October to 10 November 2012	The SC and its Secretariat
24	Integration process into the Nepal Army	5 July to 20 November 2012	The Nepal Army
25	The SC dissolved following the completion of the integration and rehabilitation process	12 April 2013	The GoN

Source: Nepal Institute for Policy Studies' policy paper (Wagle, 2013)

Agreement on integration and rehabilitation

Despite the delays, blame and counter-blame, and contradictions amongst major stakeholders on integration and rehabilitation, ultimately, the major political parties took a historic decision by signing the Seven-Point Agreement on integration and rehabilitation of the ex-combatants on 1 November 2012 (Wagle, 2013). The Seven-Point Agreement addressed all contentious issues like numbers to be integrated into the NA, norms and modality of integration and rehabilitation, and rank determination of the combatants to be integrated into the NA including the minimum and maximum ceiling of the cash amount for voluntary retirement package to be paid off (Wagle, 2012).

In fact, the Seven-Point Agreement is a historic document that paved the way for completion of integration and rehabilitation, which was one of the critical issues of the peace process. The major political parties who represented the SC followed the liberal approach and became flexible putting aside their previous positions for the sake of success of peace process (ibid). The major political parties, therefore, have equally contributed to making the peace process a success by rationalizing their positions.

The Seven-Point Agreement was drafted in line with the Interim Constitution 2007, the CPA, the AMMAA and subsequent political agreements among political parties following fundamental principles of international best practices of integration and rehabilitation (NIPS, 2011) The agreement was the outcome of the perpetual dialogues and negotiation processes among the political parties and the SC members. In fact, political parties themselves envisioned and drafted the contents of the agreement and completed the process without the involvement of third party (ibid).

Unlike other post-conflict countries, the agreements has envisioned and addressed the unique Nepali context on integration and rehabilitation process. The agreement reflects the political, social, economic, security and military context of Nepal. The contents on integration and rehabilitation of the Seven-Point Agreement are as follows²:

- ***Integration and rehabilitation of the Maoist combatants***
 - Existing records of the Maoist combatants residing in cantonments will be updated.
 - The maximum number of Maoist combatants to be integrated will be 6,500. Integration will be done under a directorate of the Nepal Army comprising 65 percent army personnel and remaining 35 percent from the Maoist combatants. The directorate will have the mandate of carrying out development related activities, forest conservation, industrial security and disaster management.
 - Those Maoist combatants opting for integration will have to meet the standard norms of the security agency. However, the existing recruitment policy on age, academic qualification and marital status will be made flexible. With regards to academic qualification of a specific post of the security agency, one step below will be considered eligible. Similarly, age bar has also been relaxed up to three years of the maximum age set for entry into the security agency.

- The rank determination of the Maoist combatants opting for integration will be done as per the standard of the security agency. Integration of the Maoist combatants into the security agency will be done in such a way that it does not bring any negative consequences in the career development of existing officers and other ranks.
 - Maoist combatants opting for integration will have to undergo all the trainings as per the standards of the Army.
 - All the weapons stored in the cantonments will automatically be brought under the government's ownership once the process of integration begins (ibid).
- ***Rehabilitation of Maoist combatants***
 - a) An alternative package of education, training and vocational opportunity will be provided to combatants opting for rehabilitation. Depending on the nature and time frame, the cost of the package will vary from Rs 0.6 to Rs 0.9 million.
 - b) Depending upon their responsibilities, the combatants opting for voluntary retirement will be categorized into four levels and those falling in the highest category will receive Rs 0.8 million while remaining three levels in the descending order will receive Rs 0.7, Rs 0.6 and Rs 0.5 million respectively. The amount will be paid in two installments within two fiscal years (ibid).

Thus, the peace process, which had largely stagnated for the past five years as the parties, could not agree on the modality of integration and rehabilitation of ex-combatants finally found a pedestal to move forward on the road to peace process.

- ***Integration and reintegration process***

Following the signing of the much-awaited agreement – the Seven-Point Agreement the integration and reintegration process started smoothly in the given context despite some level of reservation from some ex-combatants. The NA carried out the entire integration process, the SC carried out the voluntary retirement, and the MoPR took the responsibility of rehabilitation process. The much-awaited integration and reintegration process started from 16 November 2011 and concluded 12 April 2013 by dissolving the SC following the completion of the process. As Table 4 illustrates, a total of 1,422 of 17,052 (13,494 males and 3,558 females) ex-combatants integrated into the NA while 15,624 opted for voluntary retirement of which 3,454 (22.11%) were female. Only six combatants chose for rehabilitation.

It was expected that most of the ex-combatants would choose rehabilitation packages but surprisingly they chose voluntary retirement. According to the Seven-Point Agreement, maximum of 6,500 ex-combatants would be integrated but only 1,422 ex-combatants integrated into the NA (Wagle, 2013). Out of 1,422 ex-combatants only 104 female ex-combatants (4 officer level and 100 non officer levels) were integrated into the NA. Given the contribution and participation of female combatants during conflict (out of 19,602, 15,756 (80.37 percent) were male and 3,846 (19.63 percent) were female), it is fairly low.

A total of 2,456 combatants did not take part in the categorization process and 94 combatants were earlier declared as dead, suspended and deserters (ibid). 32,250 combatants were initially registered and cantoned in 28 cantonments of which 4,008 were discharged as disqualified combatants given their date of birth and date of recruitment (ibid).

Messages of integration and rehabilitation process

Every conflict and peace process is unique in the given political, social, economic and military context. But Nepal's peace process is more unique and indigenous in many respects so that it cannot be compared with any other post-conflict country (From Conflict to Peace, 2011). The Seven-Point Agreement is the guiding document that paved the way for completion of the integration and rehabilitation process (Wagle, 2013). Therefore, the Seven-point Agreement is a unique document of Nepali model for integration and rehabilitation. According to the contents of the Seven-Point Agreement, there are some significant features of the model that Nepal adopted, which embraces the unique principles and precedence for integration and rehabilitation (Wagle,2013). Therefore, the Seven-Point Agreement is not only the guiding document for Nepal, post-conflict countries can learn some positive lessons from Nepali practice with regards to integration and rehabilitation process.

Positive messages

First, Nepal's peace process is a domestic actors-led process. It was the political parties that initiated, led and concluded the entire peace process. There has been involvement of third party (i.e. the UN, the US, the UK, European countries, and neighboring countries during post-conflict) in most post-conflict countries to support and complete the peace process. But, in Nepal, the government and political parties sought solidarity and support in technical issues as per the requirements (i.e. demobilizing the combatants in the cantonments, registration

Table 4 Facts and figures regarding the registration, integration and rehabilitation process				
S.N.	Registration and verification process	Total	Male	Female
1	Total number of registered Maoist Army combatants	32,250		
2	Total number of combatants verified by UNMIN	19,602	15756 (80.37%)	3846 (19.63%)
3	Total number of weapons registered and stored in the containers	3,475		
4	Absentees, automatically considered as disqualified combatants, during the verification	8,640		
	Disqualified combatants			
5	Under the age of 18 as of 25 May 2006 (considered minors)	2,973	1,987 (66.85%)	986 (33.16%)
6	Late recruits	1,035	804 (77.069%)	231 (22.31%)
7	Total disqualified (minors + late recruits)	4,008		
	Outcome of the categorization process			
8	Number of combatants absent in the categorization process	2,456		
9	Total number of combatants present in the categorization process	17,052	13,494 (79.13%)	3,558 (20.87)
10	Dead, suspended and deserters	94	1318 (92.69%)	104 (7.31) 3,454
11	Total number of integrated combatants	1422		
12	Total number of combatants opting for voluntary retirement	15,624	12,170 (77.89%)	(22.11%)
	Total number of combatants opting for rehabilitation	6	6	0

Source: Nepal Institute for Policy Studies' policy paper

and verification of the combatants and arms, monitoring of the arms of the containers and cantonments etc.) from the international community. But it was the political parties that led and concluded the entire process. The political parties themselves envisaged the contents of the peace process and concluded according to the past agreements. Therefore, unlike other post-conflict countries, it is a great success of the government and political parties to be able to complete the process by themselves without the involvement of third parties (ibid).

Second, Nepal's armed conflict came to an end through sustained dialogue amongst political parties. Then rebel party – the CPN (Maoist), which had waged the decade-long armed struggle to establish 'people's democracy through the People's War' gave up armed struggle by renouncing violence and embracing fundamental tenets of peaceful democratic process through the CPA. The CPN (Maoist) not only joined political mainstream, but also transformed itself into a civilian party by dissolving their army and handing over their arms to the government. The message is: a violent conflict can be resolved through peaceful dialogue process following substantial political, social and economic change including the agendas of rebellion (Wagle, 2013).

Third, the SPA and the rebel party – the CPN (Maoist) decided to fight jointly against the king's despotic regime and establish democracy by signing the Twelve-Point Agreement in 2005. Ultimately, they succeeded in establishing Nepal as a democratic and republic nation by dethroning the king. It proved that an armed party, which had waged an armed struggle and unarmed civilian parties that believe in peace and democracy could fight together for democracy and peace through peaceful and non-violent process, and can achieve a success (ibid).

Fourth, despite divergence of views and to some extent disagreement on various contentious issues and process, major political parties did not close the door of dialogue. Because of the continued and perpetual dialogue process, they shared their contradictory views, debated on the issues, and this helped them to understand each-other's perspectives and ultimately they came to an agreement at the end. Therefore, despite the differences among themselves, by keeping the negotiation and dialogue alive, they were able to deliver a positive outcome. The Twelve-Point Agreement, the Interim Constitution 2007, the CPA, the AMMAA and the Seven-Point Agreement are the palpable outcomes of such dialogues.

In fact, political parties followed the principle of ‘consensus through dialogue’ which is a positive and also a unique lesson from Nepal’s peace process. Therefore, by keeping the negotiation and dialogue process alive despite disagreements, they were ultimately able to conclude it with the positive outcome. This is a key message of the peace process of Nepal. Nonetheless, political parties were highly criticized at times because of their never ending and perpetual dialogue series, but they successfully reached agreements on major contentious issues at the end (Wagle, 2012).

Fifth, although Nepal learnt many lessons from other countries’ practices on peace process including integration and rehabilitation, but Nepal did not import or replicate either model. Instead, Nepal developed own model of integration and rehabilitation according to the Interim Constitution 2007, the CPA, the AMMAA and subsequent political agreements among the political parties. Nepal did not follow the technical process of disarmament, demobilization and reintegration (DDR) applied by many post-conflict countries. Nepal did not even use the term - DDR, but the ex-combatants were demobilized and disarmed in 2006. Instead, Nepal used the terms -- management of arms and armies. Nepal also did not use the term – security sector reform (SSR), but it has been following the principles of SSR during the peace process. In fact, Nepal has contextualized content as per Nepali context (ibid).

Sixth, according to the prevalent international practice, there are two options for ex-combatants – integration into security agencies or reintegration into the society. But Nepal introduced a new concept of voluntary retirement as part of the reintegration process in the society. Unlike international practices, it is worth noting that out of the 19,602 ex-combatants, 15,624 chose voluntary retirement rather than integration or rehabilitation. Likewise, 1,422 ex-combatants integrated into the NA and only six ex-combatants opted for rehabilitation. Nepal’s integration and rehabilitation process has been successful because of a generous cash package ranging from Rs 0.5 to Rs 0.8 million. In fact, the voluntary retirement was a new and highly risky experiment but it worked in the Nepali context. It is a Nepali concept and could be applicable to other conflict-ridden countries as part of reintegration into society (ibid).

Seventh, according to the article 146 of the Interim Constitution, the government constituted the cross party SC comprising representatives from the major political parties (the UCPN (Maoist), the NC, the CPN-UML and the Madhesi Parties) entrusting them to complete the peace process. The SC constituted a secretariat comprising representative from the political parties (the UCPN (Maoist), the

NC, the CPN-UML and Madhesi Parties) security agencies (the NA, the Nepal Police and the Armed Police force) and a representative from the ex-combatants to execute its policy decisions.

Even after the exit of UNMIN on 15 January 2011, the SC and its secretariat undertook a very sensitive responsibility of supervision, integration and rehabilitation of the ex-combatants and also the monitoring of the arms and cantonments. It would be worth noting that in a highly politically polarized society and fractured political process, the cross party political mechanism that did not had any experience on peace process not only took all the decisions based on consensus, but also completed the peace process establishing unique model by following some basic international norms (ibid).

Eighth, the NA played an exemplary and instrumental role for integrating its former enemy against whom it had fought a bloody war. Even when political parties had contradictory opinions and adamant position in the given political context that resulted in widening and deepening their differences, the NA gave momentum to the process by proposing integration of the ex-combatants into a new National Security and Development Directorate under it. When the NA proposed to integrate ex-combatants into a new directorate, the major political parties supported the Army's concept. It was the breakthrough from the NA on integration and rehabilitation that contributed to the process to move forward.

The NA not only gave the much-needed breakthrough to the integration and rehabilitation process, but also carried out the entire responsibilities of integration process without any controversy and complains during the integration process and training period of the integrated combatants. The NA at times, seemed more flexible and liberal than the opposition parties on integration issues. It would be worth noting that the army followed relatively flexible approach even for rank determination by accepting to integrate a rank of colonel. Likewise, the NA themselves provided bridging course to the integrated combatants. Had the NA not been positive, the integration would have been more difficult and complex. Had the NA opposed the decisions, even the decisions of the SC and the government would not have been implemented. Therefore, analyzing the role of the army in the post-conflict countries across the world on integration process, no army has played such positive and exemplary role so far (ibid).

Ninth, most of the post-conflict countries asked for monetary assistance to support the integration and rehabilitation process with donor and international community. But Nepal did not follow that trend and instead mobilized Nepali

tax payers' money for integration and voluntary retirement process. Nepal might be the first-ever post-conflict developing country in the world to complete the integration and rehabilitation process by mobilizing its internal resource (Wagle, 2013).

6.2 Negative messages

First, however the integration and rehabilitation process has been completed with the positive note, but it costs more than Rs. 24 billion to complete the process. Spending Rs. 24.58 billion in the peace process is a really expensive given the Nepali economy, which has a per capita income about \$ 717. According to the financial report of the MoPR, Rs. 8.15 billion was spent for voluntary retirement for ex-combatants, Rs 6.34 billion was spent for monthly allowances to the ex-combatants, Rs 2.77 billion was spent for food and daily necessities of the ex-combatants and Rs 68.2 million was spent for physical infrastructure of the 28 cantonments.

Likewise, the Nepal Peace Trust Fund spent Rs 0.743 billion for building roads, Rs 0.341 billion for drinking water and Rs 0.411 billion for other infrastructure for the cantonments. According to the policy paper of the Nepal Institute for Policy Studies (NIPS) UNMIN also spent Rs more than 1.48 billion in 4 years, but the cost may be much higher than that (ibid). Likewise, other donor communities – the US, the UK, Germany, Norway, Switzerland, Denmark, and the World Bank also spent significant amount of money for the peace process, but those expenditure has not been made public so far.

Lack of transparency and misappropriation of money during the voluntary retirement and distribution of monthly allowance to the ex-combatants are also serious issues among political parties even within the UCPN (Maoist). Some political parties have blamed of the UCPN (Maoist) leaders and commanders of the ex-combatants for corruption and misappropriation of money. It was a serious issue even within the UCPN (Maoist) regarding the lack of transparency and misappropriation of money.

The UCPN (Maoist), therefore, constituted an investigation commission within the party regarding the misappropriation of funds but the report has not been made public so far. The Commission of Investigation of Abuse of Authority (CIAA) has also started investigation regarding the misappropriation of funds during the voluntary discharge and distribution of monthly allowance to the ex-combatants. The total cost of the entire period has been summarized in the following table.

Table 5 The Cost of the Peace Process		
S.N.	Title	Total Cost (NPR)
1.	UNMIN	1,47,96,11,450
2.	Infrastructure development of cantonments	68,20,65,017
3.	Food for ex-combatants	2,76,56,14,962
4.	Monthly Allowance for ex-combatants	6,34,97,40,946
5.	Administrative cost of cantonments	13,68,10,804
6.	Road for cantonments	74,31,54,000
7.	Water for cantonments	3,41,46,000
8.	Health facility for ex-combatants	33,11,50,000
9.	Electricity for cantonments	2,53,30,000
10.	Cost of voluntary retirement for ex-combatants	8,15,55,44,000
11.	Expense from the Special Committee	21,80,29,096
12.	Relief fund to conflict victims and their family	3,39,21,15,800
13.	Miscellaneous	27,37,10,567
	Total	24,58,70,22,642

Source: Nepal Institute for Policy Studies' policy paper

Second, Nepal's peace process is exclusively focused on integration and rehabilitation of the ex-combatants. The government and political parties should have given equal attention like ex-combatants to the conflict victims and internally displaced persons as well. But the government and political parties did not pay much-needed attention to conflict victims and internally displaced persons by the decade-long conflict. According to the data of the MoPR, there are 22,863 families (89,171 persons) displaced due to the decade-long conflict.

But the government did not have a comprehensive strategy to address those conflict victims' problems. The major issues were, returning to their habitants, returning of property to rightful owners, relief package etc. The MoPR distributed approximately Rs. 3,39,21,15,800 cash money as relief package to conflict victims. But it is widely believed that leaders and cadres of ruling and influential political parties got those most of the money instead of real conflict victims. They are still living in a miserable condition and are fighting with the government for their rights. Therefore, Nepal's peace process is rather ex-combatants focused process instead of conflict victims.

Third, Nepal's peace process concluded in the positive note because of reconciliatory approach of the government, political parties and rebel – the UCPN (Maoist). Reconciliation among political parties and concerned stakeholders is fundamental basis of peace process of Nepal. But the government and political parties did not even constitute the much-debated Truth and Reconciliation Commission (TRC), and the Commission on Forced Disappearance (CFD), which were integral part of the Interim Constitution and the CPA even within long span of eight years. The government constituted the TRC and the CFD after eight years but with controversial provision of amnesty. None of those two commissions are victims and rights friendly. The TRC and the CFD have started to receive complaints from the victims and people from April 2016 after 15 months of their constitution. But the victims are not hopeful of getting justice from those commissions.

The government and political parties should have brought those perpetrators right after the peace process started who had committed serious crimes during the conflict under the law by putting an end of pervasive impunity. Likewise, the government should have ensured justice to conflict victims. But the government and political parties neither constituted the TRC, and the CFD; nor took any sincere initiative to ensure transitional justice by putting an end to impunity. The situation is so pathetic that according to the data of the MoPR, 1,452 enforced disappearances are still unaccounted.

Despite the Supreme Court directives and the National Human Rights Commission (NHRC) recommendations, the government did not constituted the TRC and the CFD. Some political parties, the NHRC and national and international human rights institutions have been raising those human rights violations, transitional justice and impunity issues. But none of the successive governments paid much-needed attention to them. Therefore, it can be said that successive governments have not been accountable and answerable to the people and they have not followed the very tenets of the rule of law, democratic practice and transparency.

Fourth, the government and political parties offered attractive cash package for ex-combatants for whom the government paid off Rs. 8.11 for voluntary retirement. But the government and political parties did not pay much-needed attention to 4,008 disqualified ex-combatants. The government offered a nominal package to disqualified ex-combatants, but they did not accept the offer because of the dissatisfaction with their 'disqualified' tag and poor financial package. Their mother party - the UCPN (Maoist) also provoked them against accepting

those packages. Special priority should have been given to female ex-combatants and their children but the government, the UCPN (Maoist) and the SC did not take into consideration those serious issues.

Conclusion

Completion of peace process, integration and rehabilitation of rebel combatants and the management of arms of rebel forces, and promulgating a new constitution through the CA are really perpetual, messy and contentious process for any post-conflict country looming with high risks of failure. But despite the delays, confusions and contradictions amongst major political parties on content and process, Nepal's peace process concluded with the positive note. Every conflict and peace process is unique in the given political, economic, social, security and strategic context of every country. But Nepal's peace process is more unique and indigenous in many respects. In fact, political parties of Nepal themselves envisaged, led and concluded the peace process, and integration and rehabilitation of the ex-combatants, and the management of arms of the rebel.

Not only Nepal concluded the integration and rehabilitation process, but also established a unique Nepali model in particular, voluntary retirement, given Nepal's political, constitutional, security and military context following some basic internally acclaimed principles and practices. Nepal learnt lessons from international practices in post-conflict countries about arms management, integration and rehabilitation of ex-combatants without third party involvement. But Nepal did not import and replicate either international model.

It was a relatively long and expensive process but successful completion of the peace process adopting a Nepali model of integration and rehabilitation notion, in particular, voluntary retirement as part of reintegration in the society. There are two options for ex-combatants – integration into security agencies or reintegration into society. But Nepal's peace process developed new option - voluntary retirement as party of rehabilitation process. In fact, voluntary retirement was a highly risky experiment and expensive option but relatively it has been a success in the Nepali context.

Therefore, it cannot be compared with any other post-conflict country and context. Nepal's unique principles and precedence have conveyed several positive messages to conflict ridden-countries for the peaceful resolution of violent conflict through a peaceful process following substantial political change. In fact, conflict-ridden countries can learn positive lessons for Nepal for peaceful

resolution of violent through a sustained negotiation process establishing its own model.

Following the promulgation of the new Federal Democratic Republic Constitution on September, the decade long political transition and peace process have come to the end. But it is sad to note that there are still some unfinished issues of peace process with regards to transitional justice, truth and reconciliation process, forced disappeared persons, and reparation and compensation for conflict victims. On another hand, Nepal's peace process exclusively focused on integration and rehabilitation of ex-combatants but it did not pay the much-needed attention to conflict victims.

Though, given the gross financial amount of the peace process, it might be termed as an 'expensive' process but the peace is less expensive than that of the war. Therefore, like every peace process, Nepal's peace process has also many positive messages and some negative messages to be learned that will be useful to conflict-ridden countries around the globe. Had Nepal completed the peace process addressing transitional justice, truth and reconciliation and disappearance issues along with integration and rehabilitation of ex-combatants, it would have been an exemplary model of comprehensive peace process. But the Nepali model of integration and rehabilitation has conveyed significantly positive messages to conflict-ridden countries around the globe, albeit partial.

Notes

- 1 The CPN (Maoist) and the Nepal Communist Party (Unity Centre) united in January 2009 and the name CPN (Maoist) was changed into the United Communist Party of Nepal (Maoist) [UCPN (Maoist)]. Two breakaway factions of the CPN (Maoist) kept its name CPN (Maoist), one led by Matrika Yadav and another led by Mohan Baidya (Kiran). The author has used the term 'CPN (Maoist)' before unification and the 'UCPN (Maoist)' after the unification.
- 2 The Seven-Point Agreement signed by four major political parties

References

- Bhatt, D. P. (2010). Challenges of Integration and Rehabilitation of the Combatants of Maoist Army. In G. S. Wagle (eds.), *Emerging Security Challenges of Nepal*. Kathmandu: Nepal Institute for Policy Studies.
- Devkota, K. L. (2012). *A Perspective on the Maoist Movement in Nepal*. Kathmandu.
- Dixit, K. M. (2011). *Peace Politics of Nepal*. Kathmandu: Himal Books.

- From Conflict to Peace* (2011). Kathmandu: Asian Study Center for Peace and Conflict Transformation.
- Fukuyama, F. (1992). *The End of History and the Last Man*. London: Penguin Books.
- Hutt, M. (2004). *Himalayan People's War: Nepal's Maoist Rebellion*. Indiana: Indiana University Press.
- Kandel, S. S. (2011). *Maoist: Revolt Debate and Transformation*. Kathmandu.
- Lawoti, M. and Anup, K. P. (2010). *The Maoist Insurgency in Nepal: Revolution in the 21st Century*. London: Routledge Taylor and Francis Group.
- Manandhar, B. G. (2008). *Peaceful Transformation of the Maoist Struggle*. Kathmandu: Martin Chautari.
- Martin, I. (2010). *Nepal's Peace Process at the United Nations*. Kathmandu: Himal Books.
- Mishra, B. P. (2009). *The Nepalese Peace Process*. Kathmandu: Fine Print Inc.
- Reconstruction, M. o. (n.d.). Retrieved from www.rahat.gov.np: [http://www.rahat.gov.np/uploads/4330 File Ashad1.pdf](http://www.rahat.gov.np/uploads/4330%20File%20Ashad1.pdf)
- Seddon, A. K. (2003). *The People's War in Nepal: Left Perspectives*. New Delhi: Adroit.
- Seven-Point Agreement and Challenges for its Implementation*, Vol 6. (2011) Nepal Institute for Policy Studies.
- Shrestha, C. B. (2004). *Nepal Coping with Maoist Insurgency: Conflict Analysis and Resolution*. Kathmandu: Chetana Lokshum.
- Thapa, D. (2003). *Understanding the Maoist Movement of Nepal*. Kathmandu: Martin Chautari.
- Thapa, D. (2004). *A Kingdom Under Siege: Nepal's Maoist Insurgency*. Kathmandu: Print House.
- The Interim Constitution of Nepal 2007*. Kathmandu: UNDP.
- Upreti, B. P. (2009). *Nepal from War to Peace: Legacies of the Past and Hopes for the Future*. New Delhi: Adroit Publishers.
- Wagle, G. S. (2012, November 21). *One of a kind*. The Kathmandu Post.
- Wagle, G. S. (2012, November 20). *Positive and Incomplete Peace Process*. Kantipur.
- Wagle, G. S. (2013). *Nepal's Peace Process: A Brief Overview*. Kathmandu: Nepal Institute for Policy Studies.
- Wagle, G. S. (2013). *Political Insecurity and Armed Conflict: A Threat to Human Security*. Kathmandu: Heidel Press Pvt. Ltd.



Rensje Teerink

Ambassador, European Union Delegation to Nepal

How do you evaluate Nepal's political situation after a decade of the Comprehensive Peace Agreement?

In my opinion, Nepal has achieved significant results after the completion of the first decade of its peace process.

The management of former combatants and arms, two free and fair elections to the Constituent Assembly, the promulgation of a new Constitution, initiation of transitional justice processes and support to conflict affected people are some of the key achievements. However, much more needs to be done, especially in the aftermath of the devastating earthquakes of April and May 2015. Effective implementation of the new Constitution and ensuring its inclusiveness, fostering its acceptability, strengthening legitimate and accountable local governance, rebuilding infrastructures and livelihood for victims of the conflict and earthquake affected people, revitalizing economic growth and fighting impunity and corruption are some of the key tasks that remain.

European Union has remained engaged with Nepal's peace process. In your opinion, what were some of the major challenges of the peace process?

Yes, the EU has remained a trusted partner in Nepal's path to peace and prosperity. We have shown our commitment in funding the Nepal Peace Trust Fund (NPTF) since 2012 and through its intended closure in July 2017. We have been supporting the Government of Nepal and civil society organizations in their efforts to build a stronger basis for sustainable peace that includes mitigating the root causes of conflict.

We believe that some of the challenges encountered during Nepal's peace process were:

- High expectations for social and political change raised during the conflict and accumulated frustration within the general public due to the sense of marginalization and deprivation from socio-economic opportunities; and

- Delays in the transitional justice processes causing conflict victims to feel betrayed.

In your opinion, what is unique about Nepal's peace process?

Nepal's peace process is unique in the sense that it has been led, negotiated and managed by the government of Nepal and national bodies and is currently being managed under the leadership of the Ministry for Peace and Reconstruction. This is one reason why the EU has remained engaged with the NPTF—it is unique in the world as a joint fund led by the host government and we support such nationally owned initiatives. Nepal also was uniquely successful in integrating arms and combatants and promulgating a constitution in such a short time.

The peace process' effectiveness is proven by the fact that Nepal has not relapsed into active armed conflict and that the Government has taken steps towards developing consensus and unity of thought and action amongst the former warring parties.)

Were Maoists in a hurry to end the conflict, esp. after 9/11 and the resulting international solidarity against terrorism? What is your opinion regarding the Maoists' strategic shift to peace talks?

It is important to distinguish insurgency movements from terrorist outfits, due to their differences in motives and ways of action. It is likely that the Maoists resorted to peace talks after having assessed the internal and external circumstances and concluded that they could not overthrow the regime.

TRC and CIDEP have started working to reconcile wartime issues. How do you see the whole process of reconciliation and truth finding? What is the likelihood that this will be internationalized?

It's a welcome move that the TRC and CIEDP, despite the shortcomings identified in their enabling laws and operating procedures have started to deal with the complaints related to conflict era human rights violations. The EU remains firm on its position that there should not be any amnesty in cases of gross human rights violations and to ensure that the transitional justice process is in conformity with international and national laws. The emphasis should be on the victims' concerns, reconciliation, truth-seeking/establishing accountability, reparations, prosecutions and institutional reforms in line with international best practice. We believe that all stakeholders are aware of the fact that any lapses in the processes or non-compliance with the international norms may lead to the internationalization of wartime cases.

In your opinion, how will Nepal's peace process unfold in future?

The EU is very optimistic that Nepal's peace process will yield transformative results for its population. With the promulgation of the new constitution, we expect that most issues identified during the conflict and recognized in the CPA can be addressed in order to achieve a stable and peaceful environment in Nepal.

Do you think that Nepal's agreement will pave a way to end other conflicts that have emerged in the last decade?

Nepal's Peace Agreement may inspire many other countries and conflicting parties to seek domestic solutions to domestic problems. However, to what extent Nepal's peace process can pave the way in ending other conflicts depends on the scenarios in these given countries. I do believe, however, that important lessons can be learned from the Nepal experience. For example, the NPTF as a mechanism for ensuring coordination and partnership between donors and host government in support of the tenets of a peace accord is a model which could be adapted to other contexts.

How do you evaluate the role of informal dialogue process like NTTP-I?

The EU believes that approaching peace building on a one-to-one basis through informal fora like this is an effective way of working. Informal dialogues can be used to pave the way for formal negotiations and agreements. The people who triggered the NTTP-I were key actors who contributed greatly to Nepal's peace process.

Any other information not addressed in the above questions?

Nepal has huge potential and resources for prosperity. We hope that the ongoing peace building efforts will succeed to create a favorable environment to optimize the available opportunities.



Reforming Security Sector Governance in Nepal: Achievements and Failures

Safal Ghimire

Introduction

Security Sector Reform (SSR), one of four pillars in post-war recovery, was a key mandate of the Comprehensive Peace Agreement (CPA) concluded between the Government of Nepal and then Communist Party of Nepal (Maoist) on November 21, 2006. It deserved a foremost position in peace building because Nepal's internecine strife, unlike in some other countries, was fought not between common people, but between two armies. Both armies were well-organized, had considerable combat resources, and functioning top-down command structures. Nepal's peace process demanded an SSR approach because, on one hand, there was a need to end the 'one country, two armies' situation by restructuring the Nepal Army. On the other, governance and policy loopholes in security agencies were so obsolete that they were unable to address new security challenges. Further, some of the root causes of escalation of the war can be attributed to the lack of efficiency in the security agencies, namely Nepal Army, Nepal Police, Armed Police Force (APF), National Investigation Department (NID), Ministry of Defense (MoD) and Ministry of Home Affairs (MoHA).

In the last 30 years, security sector reform, restructuring, transformation or reconstruction took place in more than twenty countries under democratization rubric (Paris, 2011). With the concept of SSR itself unclear about the sorts of activities to be included in its process, emerging donors' reluctance to accept SSR as a component in their development cooperation policies further complicates the debate. Hence, this article reflects upon achievements and backlog in defense reform, police reform, and disarmament, demobilization and reintegration (DDR) in post-war Nepal against the promises set in the CPA, irrespective of whether the activities were conducted under SSR rubric or not. It begins by offering an understanding on the concept of SSR and experiences abroad. After identifying major, mainly external, actors in SSR in Nepal, the central section

discusses the factors that enabled or inhibited fulfillment of CPA promises. The last section derives conclusion.

SSR: Concept and Contexts

There is a conceptual consensus among authors that SSR has transformative capacity at two levels: policy and institutions (see Chanaa, 2002; Schnabel & Ehrhart, 2005; Schroeder & Chappuis, 2014). SSR is expected to open door towards democratic and participatory security policies. Its inheritance of transparency, accountability, gender equality and good governance values sometimes renders elite resistance. SSR reorients existing bodies and creates new ones based on affordability and meritocracy. As Nicole Ball notes, professionalization of security personnel and empowerment of civil institutions help overcome legacies of war through development of new security policies (Ball, 2010). Its goal is also to create advocacy and epistemic communities to enrich resilience. SSR in post-war situations may involve the process different from other contexts. For example, SSR in post-accord peace processes may be different from that in a post-conquest peace process. Depending upon contexts, SSR includes ceasefire declaration, DDR, reconciliation between belligerent soldiers and integration of former combatants into a unified army.

Criticisms on SSR mainly disagree on the universalization of approaches and ignorance towards local practices and methods. They consider SSR a Euro-centric and imported ideology, reinventing the patron–client relationships in security (Ghimire, 2016a) and presenting donors as saviors and the recipients as a wreck (Cooper & Pugh, 2002). Nonetheless, defendants such as Jackson (2011) argue that the reasons behind SSR not being a universal model should not be attributed to its nature, rather to its insensitive application. While underscoring the importance of public trust and local ownership in SSR, Gordon (2014) also posits that the inability to offer immediate and quantifiable results may not be attributed solely to SSR. However, it is underwhelming to see SSR efforts worldwide emphasizing central institutions and ignoring informal and non-state platforms, thereby failing to bridge people's expectations and states' delivery mechanisms (see Graben & Fitz-Gerald, 2013; Schroeder & Chappuis, 2014).

Chanaa's (2002) argument has been widely endorsed by subsequent studies that SSR has a concept–context divide where conceptualization has outpaced the understanding on how the idea adapts to the local exigencies. The need of SSR may be different in different contexts such as areas of tension, 'failed' states, conflict mediation, and transition to peace, and post-conflict societies (Wulf,

2004). But lessons and experiences are inundated by experiences with SSR or SSR-like efforts, keeping us puzzled about solid success stories and pointers on 'how to do' SSR (Schnabel & Bron, 2011). Against this background, experiences in a few post-war countries are worth discussing here.

When resources and results are compared, SSR in Afghanistan appears like a high-profile failure because of conflicts between local power groups and competing roles of external powers. The imperatives of winning the war here emphasized effectiveness over accountability (Sedra, 2013). In Bosnia and Herzegovina, interactions between domestic coalitions and external actors shaped the incomplete reform. Police reform had limited impact because of internal political dynamics, despite considerable progress in defense restructuring. The SSR process in the Democratic Republic of Congo was donor-laden, but the resourceful countries with profound relationships with the host authorities did not cooperate with fellow donors (Justaert & Keukeleire, 2010). Even like-minded donors were fragmented because of conflicting interests and priorities. Georgia was successful in controlling the 'means of the use of force' by the state (Simons, 2012). Here too, post-authoritarian politics remained decisive in the SSR process, as decisive as resources and sustainability remained. Local states and the private sector helped international efforts to facilitate ex-combatants' rehabilitation in Kosovo. But its police service rather than the emergency corps attracted deeper attention (Crossley-Frolick & Dursun-Ozkanca, 2012). In Liberia, internationals were mandated to complete technical aspects of SSR whereas the host government handled its political aspects (Boås & Stig, 2010). International authorities completed their assignments and blamed the local political actors for the incomplete political jobs. Podder (2013) argues that blind replication of international standards ignored sustainability in Liberia. For example, hi-tech data management systems in security agencies were wasteful because of power shortage. Sierra Leone offers an optimistic note to some extent because its SSR process restored public safety and enriched trust in security institutions. However, it was over-reliant on externals. Resource crisis surfaced after these programs phased out. The unaffordability of equipment later weakened the performance of security committees (Ebo, 2006). Timor Leste saw technical successes in defense restructuring, but actors were unconcerned about oversight and decision-making structures (Berg, 2012). Public consultation was limited to elites and international standards conflicted with local stands. Negotiations eventually constituted a hybrid result in SSR, a context that somehow resembles with the SSR efforts in Nepal.

Emergence of SSR as a CPA Agenda in Nepal

Discourse on SSR in Nepal commenced as early as the civil war escalated. Noticeable reforms spurred only after the People's Movement in 2006. SSR agendas in Nepal are insightful but far less researched and unsurprisingly underwritten because of academic undergrowth. Normative ideas (Adhikari, 2011; Dhungana, 2007) and needs identification (Kumar & Sharma, 2005; Upreti & Vanhoutte, 2009) dominate a sparse literature with most focus placed on structure and historical legacies of institutions (Kumar, 2009; Nepali & Subba, 2005). Local discourse is divided on its views on the future structure and size of the security forces. Conservative thinkers represented by former military and police officers opine for a need to maintain strong security forces and oppose their downsizing, whereas critics looking from an economic point of view support downsizing. Questions exist even on the relevance of the military, because of Nepal's location between sizable nuclear powers.

Existing discourse roughly surround four agencies and their civilian overseers: Nepal Army, Nepal Police, APF, NID, MoD and MoHA. APF was principally formed to counter the insurgency; its relevance after the war has ended is questionable. Yet, different national and international actors have been profiting from the structure of existing security agencies (Ghimire, 2016a). In the wake of state restructuring, many still believe that downsizing and limiting the strength of security forces may not be a right choice, whereas others counter these views by referring to the alarming security budget in comparison to development expenditure. The debate is complicated also because of the absence of a National Security Policy. Besides, unconventional issues such as economic security, food security, climate security, disaster response and human security have surfaced as decisive factors.

The CPA was a milestone to internalize and formalize the importance of SSR and envision its blueprint. Section 4 of the CPA (management of arms and armies) dealt with a necessity of SSR [GoN and CPN (Maoist), 2006]. It envisioned a complete integration of ex-combatants (into the society and security agencies) 'to hold the election of Constituent Assembly in the peaceful, impartial and fearless environment'. Its subsection 4.1 delegated a role to the United Nations to verify and monitor Maoist ex-combatants who would reside in seven cantonments and their satellites. By the same token, subsection 4.7 explained about restructuring of the military. It imagined democratization of the Nepal Army—i.e., its control, mobilization and management by a civilian body (Council of Ministers)—right-sizing, inclusivity and pro-people security approach. The CPA allowed

continuation of the roles of Nepal Army in security of border, vital installations and very important persons (subsection 4.8). Interestingly, this document dealt less with Nepal Police and Armed Police Force because the People's Liberation Army (PLA)—an armed wing of the Maoist rebel group had been equated only with the Nepal Army. Thus, defense reform superseded police reform agendas. Two police forces were allowed to continue acting for maintenance of law, order and peace, and conduct criminal investigation (subsection 5.1.6) and their restructuring was left behind the roadmap of peace building. Indeed, they would deserve reform because the policies guiding them were obsolete and their governance structure did not reflect meritocratic values. Besides the Nepal Army, these police agencies were also a part of the war, but were not factored into the peace process.

External Actors

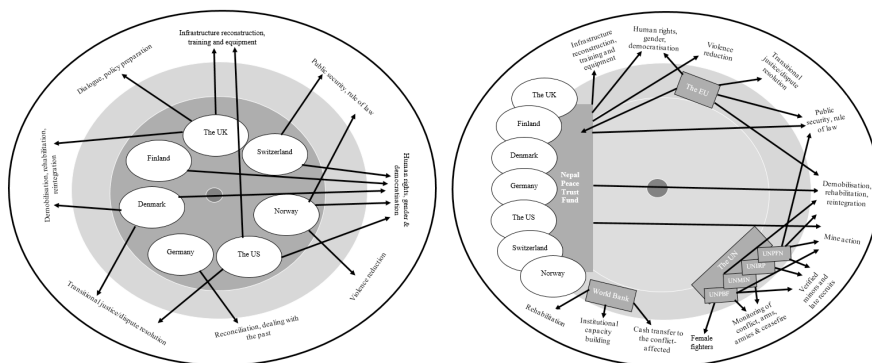
SSR in Nepal's postaccord peace building is unique, partly because of geopolitical frictions between regional and great powers. Security agencies in post-war Nepal sustain historical relations with their Indian counterparts, receive colossal amount of aid from China and attract Western interests in shaping their recovery (Bhatta, 2013). The military and economic rise of China and India in its neighborhood makes south–south cooperation influential in Nepal's security. China has been helping construct a police academy, providing non-lethal military supplies, communication equipment and logistics, and building technical capacity. At least in one case, it has contributed financially to the rehabilitation of ex-combatants. It offers sponsorships to civil and armed personnel in security and defense courses conducted by Chinese military universities. At the other end, India has been selling/providing lethal arms and ammunitions, armored vehicles and logistics for electoral security. It conducts joint drills and trainings with the Nepal Army to contribute to combat readiness and counter-insurgency preparations.

Among the Western actors, the UK, World Bank, EU and the UN share major stakes in providing peace and security assistance. The UK is contributing to modernization of the police by improving capability, accountability, responsiveness and crime prevention skills, rebuilding destroyed police units and supporting training and reintegration of ex-combatants. The UK has been providing aid to promote inclusive dialogues on integration and rehabilitation, democratization of the Nepal Army and preparation of security policies. The World Bank contributes to cash transfer and services to conflict-affected groups and their rehabilitation, as well as institutional support to the Ministry

of Peace and Reconstruction and local peace committees. The EU supported rehabilitation of ex-combatants, their cantonment management and transitional justice. Its member countries in Nepal are involved in police, penal and MoD reforms, SSR debates, public security, integration and rehabilitation of ex-combatants, technical and financial assistance related to SSR, civilian control and parliamentary oversight of the armed forces.

Besides regular agencies, four special UN bodies are/have been involved in SSR issues. The United Nations Mission in Nepal (UNMIN) (2007-2011) was mandated, inter alia, to monitor the management of arms and armed personnel, assist the Joint Monitoring Coordination Committee in implementing the management plan and assisting in the monitoring of ceasefire arrangements. It helped in weapons collection, registration and verification of combatants. Similarly, the United Nations Interagency Rehabilitation Programme (2010-2013) also got involved in rehabilitation and reintegration of verified minors and late recruits (VMLRs) and providing vocational skills, micro-enterprise, health and educational training to them. The United Nations Peace Fund for Nepal shares almost the same goals (except disposal of mines) with short-term projects. Another similar UN body (Peace building Fund) in Nepal (UNPBF) has been created which shares the SSR objectives related to ex-combatants and VMLRs with a focus on female fighters. The figure below illustrates the areas in post-war security in Nepal to which Western bilateral and multilateral donors contributed.

Figure 1 Bilateral (left) and multilateral (right) donors in areas of post-war security in Nepal



Note: All bilateral donors projected on the left further contribute to both or either of the EU and/or the UN funds. US: United States, UNPBF: UN Peace building Fund in Nepal, UNMIN: UN Mission in Nepal, UNIRP: UN Interagency Rehabilitation Programme, UNPFN: UN Peace Fund for Nepal. INGOs excluded.

Source: Ghimire (2016b)

Many of the actors above collaborated with government agencies to implement SSR-like projects. However, some of them actively supported non-government organizations in attempts to achieve their goals. Documenting the activities of such organizations is taxing because they are scattered and uncoordinated, with some of them skipping government records. Ministries and agencies also introduced their reform blueprints; however, they looked more like organization development plans rather than a comprehensive SSR program. Some of such propositions, for example made by the 'High Level Taskforce to Strengthen Security Agencies in Nepal' under the MoHA could not be implemented because successive governments were unwilling to continue them. It made achievements patchy, but arrears dense, about which the following section discusses.

Achievements and Arrears

As discussed above, post-war Nepal was in the need of policy and institutional reforms in the security sector. At policy levels, the formulation of a new national security policy, amendments of rules, regulations and Acts related to the use of force and governance of armed actors were a must. At institutional levels, disarmament, demobilization and de-radicalization of ex-combatants, downsizing the number of Nepal Army personnel, realigning the defense budget, reintroducing promotion, transfer and deployment regulations in the police agencies and unambiguous delegation of responsibilities to security agencies were important. Post-war Nepal achieved some notable success in SSR. Management of combatant cantonments was crucial to ensure that violence did not break out to disturb then ongoing peace process. Further, reintegration and rehabilitation of ex-combatants, though questionable on psycho-social aspects, was completed in 'political' aspects. The agreement regarding this opened further avenues of reforms such as ex-combatant's recruitment in the national army and arms procurement to facilitate regular military training. After the people's movement in 2006, the restored House of Representatives stripped the 'royal' prefix out of the Nepal Army, brought it under parliamentary control and reshuffled the National Security Council. The Army Act (though drafted before the CPA) and a new Constitution further strengthened them. The Constitution ensured control of the military by a civilian authority and its mobilization by people's representatives. Around 277 police posts were reconstructed (though the future of 491 more remaining undecided) and efforts have been increased for transparency and gender-friendliness in the Nepal Police.

Achievements are visible in physical infrastructures, but limited progress can be observed on soft aspects of security. For example, regional powers focus train-and-equip measures. Linkages between the political situation in Nepal and their internal security seem to have guided their security support to Kathmandu. China

emphasizes maintenance of public security and India underscores infrastructure and anti-terrorism efforts. Even the traditional development partners lag behind in exerting efforts on de-politicization of the police, reorientation of security doctrines and identification of unconventional security threats. Further, the Development Cooperation Report of the Ministry of Finance indicates fragmented aid in peace and security, which create too many donors in too many projects with too little contributions (MoF, 2014).

There were limitations for external actors. Unlike in Sierra Leone, Kosovo or Afghanistan, they were not leading but assisting the host government and its organizations in maintaining public security, restructuring security agencies and fighting non-state armed groups. Mandates depended on the result of domestic political willingness and negotiations, which might not always have been rational. Discussions on right-sizing, democratization and reintegration was extremely confined to Track I dialogues where obdurate leaders struggled to decipher vague lines in peace agreements. Indifference to the values of public consultation (Budhathoki, 2009), conflict of interests between political actors (Upreti & Vanhoutte, 2009), frequent splitting of insurgent organizations (Subedi, 2013) and exclusion of armed village defense forces from the peace process (Pandey, 2010) collectively morphed into an incomplete SSR.

Under-implementation of SSR is reflected in competing roles of two police agencies (Nepal Police and APF), ambiguous civilian command structures over the military, prejudice in sequencing of SSR agendas and ideological resistance to SSR and DDR as an 'alien agenda'. This is where the rebel party feared that DDR methods could dismantle their army as a vanquished one and the state army understood SSR as a gambit to weaken and politicize it (Gautam, 2009). The government's intelligence wing, NID, is derelict. MoD's capacity to command and control the military is pitiful with its role limited as a powerless go-between amid the army headquarters and Council of Ministers. Unexpressed, military resistance to remain under MoD leadership and its preference to be under the command of a ceremonial presidency beclouds the restructuring process. Latent in this resistance is the military's wish to avoid politicking and partially to have its legacy of the past command structure under one supreme institution. This structural complexity also reflects how an orthodox model of SSR can be a misfit in host context.

Uncoordinated SSR projects in Nepal thus far stresses on techno-bureaucratic reform without acknowledging that structural problems supersede everyday administration. It seems that remedy is being applied without a proper diagnosis of problems or the sequencing of SSR activities is wrong. Watson & Crozier

(2009) subscribe to this idea to put forth that laying the groundwork for SSR is impossible without ensuring public security at this time. Current interventions snub 'macro' (structure of security) and 'micro' (public security) layers and lose itself in the mist of 'meso' (institutional) issues.

On institutional aspects, Nepal's pre-war security legislation consisted of numerous loopholes. Unlike many countries, Nepal Army Act-2006 does not provide for a fully independent process for dealing with military complaints, for example through a military ombudsman (Leigh, 2009: 20). Similarly, the Police Act-1955 features a complicated process on the selection and promotion of officers. The Armed Police Force Act-2001 and the Armed Police Force Regulation-2003 envisions the APF merely as a reserve armed force to be used in disaster relief, riot control and counter-insurgency operations, but it has been given wider responsibilities related to border security and public security (arrest and interrogation) in the post-war period without due preparation. Many other security-related Acts, rules and regulations lack timely updates. Such instruments which need reforms include the Public Security Act, Provisions related to Private Security Companies, National Parks and Wildlife Conservation Act and Forest Act, Court Martial Act, Local Administration Act, Prison Act, Arms and Ammunitions Act, and Nepal Treaty Act. Hence, there is an observable and wide gap between the promises in the CPA and our achievements in the last 10 years. The following concluding remarks reflect upon this gap.

Conclusion

Much has been achieved in the past 10 years after the signing of CPA, however, some pressing questions on security still remain unaddressed. While overemphasizing the military forces, the CPA overlooked importance of police (Nepal Police and APF) and intelligence (NID) reform. Maoists' apprehension of Nepal Army was one of the reasons behind these institutions not getting proper attention in political negotiations. Besides, in hindsight, the state side seemed to have taken the CPA not as a means to achieve recovery, but to end the war.

As promised in the CPA, negotiating parties could not agree upon modalities of integration and rehabilitation of ex-combatants before holding the elections of the first Constituent Assembly. Some complaints emerged about partiality and fear-mongering during the elections. Integration and rehabilitation of ex-combatants was taken as merely a political process and its psycho-social implications had been overlooked. Nonetheless, the performance of the United Nations mission and the domestic Army Integration Special Committee in

verification of ex-combatants and monitoring and management of cantonments helped ensure relatively peaceful negotiations at political levels. Multi-donor trust funds also assisted this process in terms of resources. Unfortunately, there has been much delay in defense restructuring (envisioned in subsection 4.7), including actions in its right-sizing and transparency. The delegation of the right to people's representatives to control the military is commendable, however much is in backlog in reforming internal structures, meritocracy and military justice system.

Theoretically, assessment of SSR programs seems itself incomplete when it does not embody the actors beyond the host government and local agencies. Such inclusion would be important because material capability, physical proximity and political leverage provide external actors with a specific position to influence post-war SSR. Therefore, Security Sector Governance, rather than Security Sector Reform, can be more embracive to analyze the strengths and weaknesses of the actors at different layers whose roles enabled or inhibited a meaningful recovery.

References

- Adhikari, I. (2011). Nepal: A Debate on Democratisation of Nepalese Army. *Contribution to Nepalese Studies*, 38(1), 1–36.
- Ball, N. (2010). The Evolution of the Security Sector Reform Agenda. In M. Sedra (Ed.), *The Future of Security Sector Reform*. Ontario: The Centre for International Governance Innovation.
- Berg, L. A. (2012). Guns, Laws and Politics: The Political Foundations of Rule of Law and Security Sector Reform. *Hague Journal on the Rule of Law*, 4(01), 4–30. <http://doi.org/10.1017/S1876404512000024>
- Bhatta, C. D. (2013). External Influence and Challenges of State-building in Nepal. *Asian Journal of Political Science*, 21(2), 169–188. <http://doi.org/10.1080/02185377.2013.823800>
- Boås, M., & Stig, K. (2010). Security Sector Reform in Liberia: An Uneven Partnership without Local Ownership. *Journal of Intervention and Statebuilding*, 4(3), 285–303. <http://doi.org/10.1080/17502977.2010.498934>
- Budhathoki, S. (2009). Mainstreaming the Security Sector Reform Agenda in Nepal. In R. BhatTerai & R. Cave (Eds.), *Changing Security Dynamics of Nepal* (pp. 39–66). Kathmandu/London: Nepal Institute of Policy Studies and Saferworld.
- Chanaa, J. (2002). *Security Sector Reform: Issues, Challenges and Prospects (Adelphi Paper 344)*. *The Adelphi Papers* (Vol. 41). New York: Oxford University Press. <http://doi.org/10.1080/05679320208682802>
- Cooper, N., & Pugh, M. (2002). *Security Sector Transformation in Post-conflict Societies (Working Papers)*. London: The Conflict, Security and Development Group.

- Crossley-Frolick, K. A., & Dursun-Ozkanca, O. (2012). Security Sector Reform and Transitional Justice in Kosovo: Comparing the Kosovo Security Force and Police Reform Processes. *Journal of Intervention and Statebuilding*, 6(2), 121–143. <http://doi.org/10.1080/17502977.2012.655595>
- Dhungana, S. K. (2007). Security Sector Reform and Peacebuilding in Nepal: A Critical Reflection. *Journal of Peacebuilding & Development*, 3(2), 70–78. <http://doi.org/10.1080/15423166.2007.360918411040>
- Ebo, A. (2006). The challenges and lessons of security sector reform in post-conflict Sierra Leone. *Conflict, Security & Development*, 6(4), 481–501. <http://doi.org/10.1080/14678800601066447>
- Gautam, K. C. (2009). Rehabilitation and Integration of Maoist Combatants as Part of Nepal's Security Sector Reform. In R. BhatTerai & R. Cave (Eds.), *Changing Security Dynamics of Nepal* (pp. 95–112). Kathmandu/London: Nepal Institute of Policy Studies and Saferworld.
- Ghimire, S. (2016a). Making Security Sector Reform Organic: Infrastructure for Peace as an Entry Point? *Peacebuilding*. <http://doi.org/10.1080/21647259.2016.1156813>
- Ghimire, S. (2016b). Forthcoming. Optimised or compromised? United Kingdom support to reforming security sector governance in post-war Nepal. *Third World Quarterly*.
- GoN and CPN-Maoist. (2006). *Comprehensive Peace Agreement-2006*. Kathmandu: Ministry of Peace and Reconstruction, Government of Nepal.
- Gordon, E. (2014). Security Sector Reform, Local Ownership and Community Engagement. *Stability: International Journal of Security and Development*, 3(1), 1–18. <http://doi.org/http://dx.doi.org/10.5334/sta.dx>
- Graben, S., & Fitz-Gerald, A. (2013). Mind the gap: the importance of local institutional development in peace-building-funded security interventions. *Conflict, Security & Development*, 13(3), 285–316. <http://doi.org/10.1080/14678802.2013.811049>
- Hamre, J. J., & Sullivan, G. R. (2002). Toward Post-conflict Reconstruction. *The Washington Quarterly*, (Autumn), 85–96.
- Jackson, P. (2011). Security Sector Reform and State Building. *Third World Quarterly*, 32(10), 1803–1822. <http://doi.org/10.1080/01436597.2011.610577>
- Justaert, A., & Keukeleire, S. (2010). The EU's Security Sector Reform Policies in the Democratic Republic of Congo. *European Integration Online Papers (EIoP)*, 14(1), 1–30. <http://doi.org/10.1695/2010006>
- Kumar, D. (2009). Democratic Control of Security Forces. In R. BhatTerai & R. Cave (Eds.), *Changing Security Dynamics of Nepal* (pp. 135–160). Kathmandu: Nepal Institute of Policy Studies and Saferworld.
- Kumar, D., & Sharma, H. (2005). *Security Sector Reform in Nepal: Challenges and Opportunities*. Kathmandu: Friends for Peace.
- Leigh, I. (2009). Commentary on the Army Act, (2063) 2006. In H. Phuyal & M. Urscheler (Eds.), *The Security Sector Legislations of the Federal Democratic Republic of Nepal: Commentaries*. Budapest: Brambauer Publishers.

- MoF. (2014). *Development Cooperation Report/FY 2012-2013*. Kathmandu: Ministry of Finance/Government of Nepal.
- Nepali, P., & Subba, P. (2005). Civil-Military Relations and the Maoist Insurgency in Nepal. *Small Wars & Insurgencies*, 16(1), 83–110. <http://doi.org/10.1080/0959231042000322576>
- Pandey, N. N. (2010). Security Sector Reforms in Nepal: If Not Now, When? *South Asian Survey*, 16(2), 253–271. <http://doi.org/10.1177/097152310901600206>
- Paris, R. (2011). Critiques of Liberal Peace. In S. Campbell, D. Chandler, & M. Sabaratnam (Eds.), *A Liberal Peace? The Problems and Practices of Peacebuilding* (pp. 31–54). London and New York: Zed Books.
- Podder, S. (2013). Bridging the “Conceptual–Contextual” Divide: Security Sector Reform in Liberia and UNMIL Transition. *Journal of Intervention and Statebuilding*, 7(3), 353–380. <http://doi.org/10.1080/17502977.2013.770242>
- Schnabel, A., & Bron, H. (2011). *Security Sector Reform: Narrowing the Gap between Theory and Practice*. Geneva: Geneva Centre for the Democratic Control of Armed Forces.
- Schnabel, A., & Ehrhart, H. G. (2005). Post-conflict Societies and the Military: Challenges and Problems of Security Sector Reform. In A. Schnabel & H.-G. Ehrhart (Eds.), *Security Sector Reform and Post-conflict Peacebuilding* (pp. 1–16). New York: United Nations University Press.
- Schroeder, U. C., & Chappuis, F. (2014). New Perspectives on Security Sector Reform: The Role of Local Agency and Domestic Politics. *International Peacekeeping*, 21(2), 133–148. <http://doi.org/10.1080/13533312.2014.910401>
- Sedra, M. (2013). The hollowing-out of the liberal peace project in Afghanistan: the case of security sector reform. *Central Asian Survey*, 32(3), 371–387. <http://doi.org/10.1080/02634937.2013.843387>
- Simons, G. (2012). Security Sector Reform and Georgia: the European Union’s Challenge in the Southern Caucasus. *European Security*, 21(2), 272–293. <http://doi.org/10.1080/09662839.2012.665887>
- Subedi, D. B. (2013). Dealing with Ex-Combatants in a Negotiated Peace Process: Impacts of Transitional Politics on the Disarmament, Demobilization and Reintegration Programme in Nepal. *Journal of Asian and African Studies*, 49(6), 672–689. <http://doi.org/10.1177/0021909613507537>
- Upreti, B. R., & Vanhoutte, P. (2009). Security Sector Reform in Nepal: Challenges and Opportunities. In H. Born & A. Schnabel (Eds.), *Security Sector Reform in Challenging Environments* (pp. 165–187). Munster: LIT.
- Watson, C., & Crozier, R. (2009). Security for Whom? *Security Sector Reform and Public Security in Nepal*. London: International Alert and Initiative for Peacebuilding/EU.
- Wulf, H. (2004). *Security sector reform in developing and transitional countries*. Berlin: Berghof Research Centre for Constructive Conflict Management.



The Role of Supreme Court of Nepal in Transitional Justice: An Appraisal

Tara Prasad Sapkota

Introduction

Conflict, peace and justice have become indispensable segment of human beings. Conflict and peace are two sides of a coin and justice helps to remove the pain and grievances of the victims of conflict. These three segments are interconnected since the very beginning of society and are always associated with power and prestige. Discriminations among the human being, on the basis of origin, region, colors, genders, values, traditions, customs, cultures, language, religious belief, minority, wealth, resources, self-determination (cessation) and educational levels invite different kinds of conflicts that range from peaceful protest against such practices to full-fledged armed conflict.

We have seen discriminative practices done by majority over minority peoples, their values, traditions, customs, cultures, language, religious beliefs; male domination over women; exploitation by the rich over poor; restrictions for access to natural resources, interest in self-determination (cessation) are the major reasons of conflict. Each and every conflict whether peaceful protest or rebellions affects society but all the conflicts and armed conflicts are not successful to bring expected change and progress in the society.

During the last decades of the twentieth century, several countries across the world have overthrown authoritarian regimes and military dictatorships to ordain a new democratic regime. A latest study done by the Global Institute for Economics and Peace (GIEP) in 163 countries of the world; Iceland, Denmark, Austria, New Zealand, Portugal, Czech Republic, Switzerland, Canada, Japan, and Slovenia have ranked as top ten peaceful countries.¹

Each and every conflict brings adverse effects on different sectors and levels in the State- from individual to State and from social to economic but armed

conflicts and repressive regimes comprise a potential threat to the international community since they have spill-over effects, such as massive violence, migration of people, the expansion of terrorism, arms production and proliferation, drugs proliferation, organized crime, environmental damage, poverty, and lack of development, all of which have widespread effect.²

The period before setting up new political system after changed the old political system is known as transitional period. The transitional period becomes complex and poor law and order situation and thereby impunity becomes great issue. "The transition has proven to be a complex process during which the successor regime, as part of the post-conflict reconstruction agenda and in order to establish a sustainable peace, has to deal with the legacy of the past where atrocities and mass human rights violations have deeply divided the members of society."³

Nepal has experiences of different kinds of conflicts from 1940s to till date. Amongst them, some were peaceful and others were internal armed conflicts. The judiciary of Nepal faced greatest challenge during the decade-long armed conflict lunched by the Communist Party of Nepal (CPN-Maoist) on February 13, 1996. The insurgency started to target judiciary and its infrastructure at the district levels and to some extent influenced the functioning of the appellate courts. Court's jurisdiction was compromised as insurgents started their own court system. While district levels courts faced security threats and threat to their jurisdictions, apex courts were functioning. The author in this article has attempted to evaluate the role of the Supreme Court during the conflict and transitional period.

Concept, meaning and definition of armed conflict and transitional justice:

Any conflict having objective of political change, which is violent and used different kinds of arms are known as armed conflict. Armed conflicts are defined as "political conflicts where the use of armed force by two parties of which at least one is the Government of a State results in at least 25 battle-related deaths."⁴ A 'major armed conflict' is a war between states and a current political conflict within a State in which armed fighting or clashes between Government forces and its opponents result in at least 1,000 deaths in the course of the conflict."⁵

Armed conflicts can be categorized into twobroad categories, domestic and international. Domestic armed conflict is a conflict between insurgents and the State and international armed conflict is a war between States.⁶ The

domestic conflict is also known as internal and intrastate-armed conflict and the international armed conflict is also known as external armed conflict. The international armed conflict can be further divided into two categories: involving two countries and involving more than two countries.⁷

Generally, the justice to be provided for both parties-the victims and the violators of human rights and humanitarian law during the armed conflict is known as "transitional justice" and it is also known as "post-conflict justice". "Transitional justice refers to the set of judicial and non-judicial measures that have been implemented by different countries in order to redress the legacies of massive human rights abuses. These measures include criminal prosecutions, truth commissions, reparations programs, and various kinds of institutional reforms".⁸

"The concept of transitional justice stalks from the international human rights movement. At first, it referred to the judicial process of addressing human rights violations committed by dictatorial or repressive regimes in the course of democratic transition. Later on, the term also came to be used for processing war crimes and massive human rights abuses committed in violent conflicts".⁹ At present it covers the establishment of tribunals, truth commissions, lustration of stateadministrations, settlement on reparations, and also political and societal initiatives devoted to fact-finding, reconciliation and cultures of remembrance.¹⁰

The term transitional justice was coined in 1995 by Kritz and the concept has increasingly gained in importance, and has been widely discussed by peacebuilding agencies engaged in war-torn societies during the past two decades.¹¹ Transitional justice is not a 'special' kind of justice, but an approach to achieving justice in times of transition from conflict and/or state repression. By trying to achieve accountability and redressing victims, transitional justice provides recognition of the rights of victims, promotes civic trust and strengthens the democratic rule of law.¹²

The term 'Transitional Justice' is often used to describe the political choices made by States that are undergoing a governance transition, which they adopt in order to deal with human rights violations and/or past abuses and atrocities committed by former governments and non-state actors. In addition to being a response to widespread or systemic violations of the past, it also seeks recognition for victims and to promote possibilities for peace, reconciliation and democracy and the rule of law usually in a post-conflict environment.¹³ In the aftermath of massive human rights abuses, victims have well-established

rights to see the perpetrators punished, to know the truth, and to receive reparations.¹⁴

Transitional justice includes

- (a) Domestic, hybrid and international prosecutions;
- (b) Truth telling initiatives to determine and document violations that have occurred
- (c) Promoting reconciliation within divided communities;
- (d) Reparations to victims including collective and symbolic reparations;
- (e) Constructing legacy and monuments for education of future generations
- (f) Institutional reform.¹⁵ According to Pablo de Greiff,¹⁶ truth, justice, reparations and guarantees of non-recurrence are the measures of transitional justice.¹⁷ Criminal Prosecution, reparation, truth commission and institutional reform are the elements of transitional justice.¹⁸

Generally there are four processes of transitional justice these include: “justice process, to bring perpetrators of mass atrocities to justice and to punish them for the crimes committed; a reparation process, to redress victims of atrocities for the harm suffered; a truth process, to fully investigate atrocities so that society discovers what happened during the repression/conflict, who committed the atrocities, and where the remains of the victims lie; and an institutional reform process, to ensure that such atrocities do not happen again”.¹⁹

TJ is significant to all societies who involved in armed conflicts to: restore for massive human rights abuses, establish rights of victims, see the perpetrators punished, know the truth, and to receive reparations.²⁰

Historical background of armed conflict in Nepal:

The decade-long internal armed conflict severely affected on physical infrastructure, economic, social, cultural, and educational sectors of the nation. Nepal is a small country of diverse social, political, and economic background. In such condition, social exclusion, discriminations, and regional disparity often exist. Nepal’s conflict is the product of social exclusions, poverty, and illiteracy, under development, regional disparity, and educational attainment. The CPN Maoist decided to change and reform the above situation and launched armed conflict.

In 1950, the first armed conflict was launched by Nepali Congress to establish democratic regime by overthrowing Rana Oligarchy Regime. There was no judiciary like present daytime and neither adverse impacts of the armed conflict were noticed nor TJ system was established. The second armed conflict was launched by the Communist Party of Nepal (Maoist) from February 1996 to November 2006. The CPN-Maoist submitted a 40-point demand to the Government on February 4, 1996, which addressed a wide range of social, economic and political agendas, and warned that a militant struggle would follow if the demands were not met. Just one week later, on February 13, 1996, the CPN-Maoist launched an armed insurgency against the Government and the armed conflict lasted on 21 November 2006.²¹

After enforcement of The Comprehensive Peace Accord (CPA) concluded between the Government of Nepal and the CPN-Maoist on December 21, 2006 started to revive the district level courts and after promulgation of Interim Constitution, 2007 greatly improved. However, the Governments attempted to withdraw the cases from the regular courts and gave amnesties to the accused of serious human rights related crimes. The CPA also made provisions for constitution of National Peace and Rehabilitation Commission, and Truth and Reconciliation Commission. The Government constituted National Peace and Rehabilitation Commission immediately and settled the Maoists Combatants and their arms. After eight years of signing CPA-in 2014, the Government constituted the Truth and Reconciliation Commission (TRC) and the Commission on Investigation Enforced Disappeared Persons (CIEDP) in accordance with the TRC Act, 2014 and the CIEDP Act, 2014.

Impacts of armed conflict in Nepal:

The decade long armed conflict of Nepal affected each and every walk of life. Both negative and positive impacts are seen. Positive change in social behaviors, i.e., control in alcoholism, gambling, playing cards, labor exploitation, counterfeiting, cheating, not believing in lucks and superstition were some positive impacts in many rural areas in the country. But the negative impacts were severe and un-repairable. Severe violation of human rights, terrorization, and mental tensions were negative impacts of the armed conflict. Unlawful killing/murder, abduction and hostage taking, physical and mental torture, arbitrary arrest and detention, enforced disappearance to person, rape and sexual violence, looting, seizure, breaking or arson of private and public property was common. Government is responsible to 63 percent and the Maoists 37 percent on the serious violations of IHRL and IHL.²²

As of November 2006, more than 17,886 individuals were killed; 1,530 people were disappeared; 8,935 people were disabled; and 79,571 people were internally displaced and 4,014 people were bodily injured; 620 children orphaned; 9,000 women widowed,²³ some 400,000 to 500,000 people affected directly by the conflict. It is estimated that 5 billion rupees property was lost and of those 12,657 were private properties. All the people of the country were terrorized by the parties of armed conflict and the Government imposed state of emergency for longer period. The National Human Rights Commission stated that 78,689 people were involuntarily displaced and 1,327 forcefully disappeared.²⁴

The Government made commitment to provide NRs.1,000,000 to the family of deceased and disappeared during the conflict but the victims received only NRs. 300,000.²⁵ The government provided interim relief to the families of 14,601 persons killed during the conflict. A total of 14,770 individuals were provided employment/self-employment opportunities. However, victims of sexual violence and torture during the armed conflict have not received any relief yet.²⁶

Almost 9,000 serious violations of international human rights instruments and humanitarian law were committed during the decade-long conflict and following articles of the HRIs and IHL were violated:

- The right to life (Article 6, ICCPR)
- The right to liberty and security of the person (Article 9, ICCPR)
- The right to freedom from torture or cruel, inhuman or degrading punishment or treatment (Article 7, ICCPR and Articles 2 & 16 CAT)
- The right to be free from sexual violence (CAT and CEDAW)
- The right to peaceful assembly (Article 21, ICCPR)
- The right of children to special protection in armed conflict, including a prohibition on their recruitment into the armed forces (Article 38, CRC).²⁷

Impacts on judiciary during the armed conflict:

The judiciary was also targeted by the CPN-Maoist and several district courts were attacked and demolished by bombarding. The Nepali Judiciary was impacted by three ways: attacking on physical structures of the courts; attacking on court's employees; and rejecting governmental courts and their procedures by establishing so-called "People's Court". The Peoples Court, also known as "Kangaroo Court". The then Chief Justice Mr. Keshav Prasad Upadhyaya was also attacked by Maoist insurgents on the route of Surkhet by rifles and Registrar of the Tulsipur Appellate Court (Mr. Dilliraj Pant) was killed on the spot. Some

District Court judges including Mr. Tanka Bahadur Moktan were abducted by the Maoist combatants. No district court judges were residing in their apartments of the district specially in some districts of Mid-western region, Central mountain region, and Eastern mountain regions due to fear of abduction. The Peoples' Court, not only exercised the jurisdiction of the regular courts (District courts, Appellate Courts, Supreme Court) but also motivated the people to withdraw cases from the governmental courts and brought to the Peoples Court for disposal. Several cases from mountain region and western and Central Terai were withdrawn from the different courts and disposed by the so-called Peoples Court. The cases disposed by the Peoples Court were implemented immediately and the cases decided by the regular courts were not implemented.

Money lending, sales and purchase of real state, encroachment of lands cases were largely disposed by the Kangaroo Courts. A large number of judgments specially fines and imprisonment imposed by the state's courts could not be recovered and executed due to greater impacts of the Maoist combatants.

State of transitional justice in Nepal:

The decade-long armed conflict brought enormous pain and suffering for many people. Different reports reveal that millions of people of Nepal were directly and/or indirectly affected by the armed conflict. According to transitional justice jurisprudence, victims of conflict have rights to recognition as victims, to know the truth, to see the perpetrators punished, to receive reparations, and to get relief and rehabilitation. However, the domestic criminal justice system currently poses a number of obstacles to this, including the fact that violations such as torture and the practice of enforced disappearances are not specifically criminalized and victims often encounter difficulties in registering their complaints and ensuring that the police investigate them. The Government had withdrawn 400 cases filed in the different courts against the leaders and cadres of the CPN-Maoist after 2007.²⁸

Unfortunately, neither the disappeared people made public within 60 days from the date of signing the CPA nor constituted the National Peace and Rehabilitation Commission but established a unit under the MoPR. The High-level Truth and Reconciliation Commission was constituted in February 2014 only. In addition, the Commission on Investigation Enforced Disappeared Persons (CIEDP) has been established. Formulation of necessary regulations for the implementation of the mandates of the Commission endorsed only in this year (2016).

The Commissions has started receiving complaints from the victims from April 22, 2016 and 1,042 complaints were submitted on the first day.²⁹ However, the Government distributed some amount to the victims three times as relief but has not maintained fair records as victims. Thus the right to recognize as victim has not implemented fairly. The National Human Rights Commission of Nepal has reported that it has received more than 3,000 complaints regarding disappeared persons during the armed conflict. Impunity is the biggest problem of armed conflict. The perpetrators of armed conflicts are forming government and/or exercising State powers even they are out of government but the victims and associations of victims and their representatives are ignored in the peace process.

The international human rights instruments including seven core human rights treaties,³⁰ the Comprehensive Peace Accord, 2006, the Interim Constitution of Nepal, 2007, the Truth and Reconciliation Act, 2014, The Commission on Investigation Enforced Disappeared Persons (CIEDP) Act, 2014 and their subsequent Regulations, 2015, the Constitution of Nepal 2015, and the precedents of the Supreme Court of Nepal are the legal instruments to address the rights of victims of armed conflict.

The Truth and Reconciliation Commission (TRC) and the Commission of Investigation on Enforced Disappeared Persons (CIEDP) have formally been formed on February 11, 2015. The TRC is responsible for finding out the truth about victims and reconcile in case of the need whereas the CIEDP is responsible to investigate the cases of enforced disappeared persons who were arrested or abducted by the warring forces during the course of the Maoist-launched People's War.

Role of the supreme court of Nepal in transitional justice:

The judiciary of Nepal believes in the rule of law and it is dedicated to deliver justice according to law. The Constitution is the fundamental law of the land and any laws inconsistent to the Constitution are null and void. The judiciary of Nepal is independent and responsible for the protection of fundamental rights and civil liberties.

The Supreme Court of Nepal is the Apex Court and court of record and all the judgments and orders issued by the Supreme Court are recorded. All the judgments delivered and orders issued by the Supreme Court are mandatory to all the people and organs of the State. The Supreme Court of Nepal is also active for exercising judicial activism from which it has issued several directive

orders to the government in order to enact necessary laws (Acts, Regulations, Byelaws, Standards, and Guidelines) for the protection of fundamental rights and personal liberties.

The Supreme Court of Nepal has played significant role to uphold the ongoing peace process and promote transitional justice in the country. The Supreme Court by its orders has established the supremacy of criminal justice system; safeguarding against politically motivated de facto amnesty; reparations, compensation, the rights of the victims; and the use of international law.³¹ The cases from which the Supreme Court has established the above matters are briefly observed below:

(1) Rabindra Prasad Dhakal on behalf of Rajendra Prasad Dhakal v. Ministry of Home Affairs, the Government of Nepal and others:

The petition was lodged pursuant to Articles 23 and 88(2) of the Constitution of the Kingdom of Nepal 1990. In this case the 27 principal petitioners claimed that state agents detained and kept different persons in unlawful detention and the status of the detainees were kept secret for an extended period of time and these petitions were filed on different dates preying for the release of the detainees through the issuance of an order of habeas corpus for the declaration of their status. The Division Bench comprised of Hon. Justice Mr. Khil Raj Regmi and Hon. Justice Mr. Kalyan Shrestha issued directive orders to the respondents (Government) to enact legislation to protect persons from enforced disappearance, establish an inquiry commission to investigate enforced disappearance, and initiate legal proceedings against the perpetrator.³²

(2) Devi Sunuwar v. district police office, Kavrepalanchok and others:

The petition was lodged pursuant to Article 23 and Article 88(2) of the Constitution of the Kingdom of Nepal 1990. In this case the petitioner claimed that The army personnel arrested her 15-year old daughter Maina Sunuwar on February 28, 2004 at 6:00am from her home and the following day February 29, army personnel extra-judicially killed her at Barrack and for that Army Headquarters had court-martialed to Colonel Babi Khatri, Captain Amrit Pun, and Captain Sunil Adhikari under the Army Act, 1959. It was intentional homicide and the Army Act does not apply in this case and the Chapter 1 of the General Code (Muluki Ain) and Schedule 1 of the Government Cases Act, 1992 is applicable. With the intention of having legal action taken against the culprits, a First Information Report (FIR) was registered immediately after the incident at

the office of respondent No.1 but no actions were taken to punish the culprits. The Division Bench comprised of Hon. Justice Min Bahadur Rayamajhee and Hon. Justice Ram Prasad Shrestha held that the civilian courts have jurisdiction over the killing of civilians during the conflict by the army...therefore, the respondent should complete investigation within three months from the date of receiving this order.³³

(3) Purnimaya Lama v. District Police Office, Kavrepalanchok and Others:

The writ petition was lodged before the Supreme Court pursuant to Articles 32 and 107(2) of the Interim Constitution of Nepal, 2007. Mr. Arjun Bahadur Lama, husband of petitioner was kidnapped by the Maoists on April 29, 2005 and brought him to the Charkilla area of Buddhakhani Development Committee of Kavre District and in the last week of June 2005 killed him. The culprits are liable for punishment pursuant to Section 13(3) of the same Chapter. Therefore, with the intention of seeking their punishment, the petitioner and fellow villagers approached the respondent District Police Office on July 05, 2007 with the purpose of registering FIR naming the suspect as per the Section 3 of the Government Cases Act, 1992. But the Police refused to register the case. The Division Bench comprised of Hon. Justice Ram Prasad Shrestha and Hon. Justice Mr. Damodar Prasad Sharma held that refusal to register an FIR in case of conflict-era rights abuse is unconstitutional; the government has an obligation to investigate and prosecute notwithstanding the possibility that transitional justice commissions may be created...and issued mandamus order to register the FIR brought at District Police Office.³⁴

(4) Jayakishor Lav v. district police office Dhanusha, Janakpur:

The writ petition was filed pursuant to Articles 32 and 107(2) of the Interim Constitution. On October 8, 2003, the writ petitioner's 24-year old son Sanjeeb Kumar Karna, alias "Dipu" left home at 7 o'clock with the purpose to go picnic with his friends and they were preparing meals at picnic spot uniformed police and army personnel and some in civilian clothes circled 11 people including Sanjeev and were beaten indiscriminate manner and were taken them at the Regional Police Office, Janakpur and the petitioner reached there and saw his son standing blindfolded in front of the main building but police did not allow him to meet his son, after that he went to the SamajUthan Kendra and ask to contact Police Office and they informed that they were interrogated by SSP and he and the Coordinator of SamajUthan Kendra tried to contact the SSP but failed. In the evening the DSP informed that they were transferred to an unknown place and disappeared. The writ petitioner asked detailed

information about extra-judicial killing of his son but could not get information. The Division Bench comprised of Hon. Justice Mr. Damodar Prasad Sharma and Hon. Justice Mr. Prakash Wostiheld that the FIR should be duly registered and proceed with the necessary investigation and inquiry in accordance with the law.³⁵

(5) *Madhav Kumar Basnet and others v. Chairman, Council of Ministers and others:*

There is no provision in the CPA to constitute separate TRC and CIEDP. The Government also framed single Bill for TRC and CIEDP Acts. The writ petitioner lodged a petition praying for the order to set up TRC and CIEDP separately. The Supreme Court held that Truth and Reconciliation Commission and Disappearance Commission may separately be set up.³⁶

(6) *Sushil Pyakurel and others v. Prime Minister Jhlanath Khanal and others:*

The then Hon. Prime Minister JhlanathKhanal appointed Mr. Agni Sapkota as Information and Communication Minister. He was alleged in the charge of disappearance of Mr. Arjun Bahadur Lama, the former husband of Purnimaya Lama. The petitioner lodged the petition praying for issuance of Stay Order by the Supreme Court for stopping appoint Mr. Agni Sapkota as Information and Communication Minister in the Government headed by Hon. Prime Minister Jhlanath Khanal. The Division Bench comprised of Hon. Justice Mr. Ram Kumar Sah and Hon. Justice Mr. Prakash Wostiheld that though the naming of a sitting minister in an FIR does not require the Government to remove him from his position, the government has an obligation to investigate and the accused has an obligation to cooperate to police. The Attorney General's office is responsible to ensure that investigations move forward free from political pressure and manipulation.³⁷

(7) *Bhim Prakash Oli and others v. His Majesty's Government and others:*

The writ petitioners were the victims of the armed conflict and was lodged the writ petition to the Supreme Court pursuant to Articles 23 and 88(2) of the Constitution of the Kingdom of Nepal 1990 with seeking to bring relief mechanism by the Government to the victims of the armed conflict. The Division Bench comprised of Hon. Justice Mr. Min Bahadur Rayamajhee and Hon. Justice Mr. Rajendra Kumar Bhandari held that formulate clear legislation and make appropriate arrangements to address the needs of the conflict victims.³⁸

(8) Bhojraj Timalsena and Others v. Nepali Congress Party and others:

The writ petitioners were internally displaced peoples (IDPs) and the Government had not provided any relief to IDPs and was filed the writ petition pursuant to Articles 32 and 107(2) of the Interim Constitution praying for issuance order to the Government to address the needs of the IDPs. The Division Bench comprised of Hon. Justice Mr. Bala Ram KC and Hon. Justice Mr. Tahir Ali Ansari held that take action to address the needs of IDPs and provide relief to the Conflict victims.³⁹

(9) Buddhi Bahadur Praja and others v. the Government of Nepal and others:

The relatives of the writ petitioners were labourer of Shree Shubha KarkiSamuha Construction Pvt. Ltd. and working at Kotwada airport of Kalikot District. Nepal Army killed the relatives of writ petitioners in an encounter with the terrorist at Kotwada airport of Kalikot District. The writ petition was lodged to the Supreme Court pursuant to Articles 23 and 88(2) of the Constitution of the Kingdom of Nepal 1990 with seeking remedy and compensation and impartial investigation by the independent body. The Division Bench comprised of Hon. Justice Mr. Anup Raj Sharma and Hon. Justice Mr. Bala Ram KC held that victims of violations of humanitarian law are entitled to a remedy including compensation and impartial investigation by an independent body.⁴⁰

(10)Kale Tamang and others v. the Government of Nepal and others:

The security forces had killed five innocent people on November 27, 2002 at Kaule village under the Baal Gaon of Nuwakot District where a temporary camp of security forces was stationed. The writ petition was lodged to the Supreme Court pursuant to Articles 23 and 88(2) of the Constitution of the Kingdom of Nepal 1990 with seeking appropriate compensation. The Division Bench comprised of Hon. Justice Mr. Anup Raj Sharma and Hon. Justice Mr. Ram Kumar Prasad Sah held that the state must pay compensation to civilians killed by security forces personnel during the armed conflict; legislation must be enacted and an independent body must be formed to determine appropriate compensation.⁴¹

(11)Liladhar Bhandari and others v. Government of Nepal and others:

The writ petitioners were the victims of armed conflict and the Maoist Combatants were seized their property. The writ petitioner requested to the

Government and political parties to release their property but they did not release. The writ petition was lodged pursuant to Articles 32 and 107(2) of the Interim Constitution praying for issuance order to the Government to return their property and provide remedy and compensation to the victims. The Division Bench comprised of Hon. Justice Mr. Min Bahadur Rayamajhee and Hon. Justice Mr. Kalyan Shrestha held that impunity for conflict-era rights violations cannot be tolerated; the government has a responsibility to ensure a remedy for rights violations including the unlawful seizure of property by non-state actors during the conflict; district level committees with victim representation should be formed to oversee the return of occupied property.⁴²

(12)RajendraGhimire and others v. office of the Prime Minister and others:

The writ petitioners were the victims by torture by security forces during armed conflict and lodged the writ petition before the Supreme Court pursuant to Articles 23 and 88(2) of the Constitution of the Kingdom of Nepal 1990 with seeking to criminalize torture and provide compensation. The Division Bench comprised of Hon. Justice Mr. Bala Ram KC and Hon. Justice Mr. Tahir Ali Ansari held that the government of Nepal has the constitutional and international obligation to criminalize torture and provide compensation to torture victims.⁴³

(13)RajaramDhakal v. office of the Prime Minister and others:

The writ petition was lodged before the Supreme Court pursuant to Articles 23 and 88(2) of the Constitution of the Kingdom of Nepal 1990 with seeking issuance order to the Government to enact effective legislation to implement the Geneva Conventions governing international humanitarian law. The Division Bench comprised of Hon. Justice Mr. Hari Prasad Sharma and Hon. Justice Mr. Khil Raj Regmi held that enact effective legislation to implement the Geneva Convention.⁴⁴

(14)The Government of Nepal v. Gagan Raya Yadav and others:

The son of Appellant Mr. Shambhu Patel was shot by the suspect Gagan Raya Yadav on January 23, 2000 and the mother of Shambhu Patel filed a First Information Report (FIR) naming the suspect in an attempted homicide on January 24, 2000, a second FIR against the suspect was filed on Jan 28, 2000, again Pawan Kumar filed a FIR against the suspect on February 4, 2000 for international homicide. The Government requested on November 17, 2008 for withdrawn the case and the Council of Ministers withdrawn the case on December 17, 2008. The Division Bench comprised of Hon. Justice Mr. Min Bahadur Rayamajhee

and Hon. Justice Kalyan Shrestha held that criminal cases cannot be withdrawn without a compelling justification; the courts have a responsibility to review proposed withdrawals to ensure that there is an appropriate basis for withdrawal; these requirements apply to allegations of conflict-related human rights abuses.⁴⁵

(15) Advocate Sunil Ranjan Singh and others v. office of the Prime Minister and Council of Ministers and others:

The writ petition was lodged pursuant to Articles 32 and 107(2) of the Interim Constitution praying for issuance Stay Order to the Council of Minister for preventing Mr. Kuber Singh Rana as an Additional Inspector General of Nepal Police to carry out works with the capacity of AIG of Nepal Police due to involvement in killing people during armed conflict. The Division Bench comprised of Hon. Justice Mr. Kalyan Shrestha and Hon. Justice Mr. Tarka Raj Bhatta held that enact and implement all necessary laws and measures concerning the vetting process for the appointment, promotion and retention of persons in public posts. These laws and measures must determine whether a person who is seeking a public post or currently holding a public post has been involved in past human rights violations and whether he or she has respect for human rights and the rule of law.⁴⁶

(16) Ram Kumar Bhandari and others v. Chairman, Interim Election Council and office of the Council of the Ministers and others:

The Writ petitioner lodged petition before the Supreme Court for not implement the contradictory Sections of the Disappeared Persons and Truth and Reconciliation Ordinance 2069 with the Interim Constitution of Nepal. The Single Bench presided by Hon. Justice Ms. Sushila Karki held that do not implement Sections 2, 23, 25, and 29 of the Ordinance on the Disappeared Persons, Truth and Reconciliation Commission, 2069 since its contradictory to Article 12(1), 13(1), and 26 of the Interim Constitution of Nepal.⁴⁷

(17) Advocate Govinda Sharma Bandi v. Attorney General Mr. Mukti Pradhan, office of the Attorney General and others:

The journalist of Dailekh, Mr. Dekendra Thapa was murdered and investigation was not taken effectively and the informant lodged a writ petition for Mandamus by the Appellate Court of Surkhet and had issued show cause order and the Dailekh District court had remanded the accused Lakshiram Gharti. The Office of Attorney General ordered to the Police Headquarters to remain continue till the final decision of this case and not to intervene into the ongoing process of

investigation. The Single Bench presided by Hon. Justice Mr. Kalyan Shrestha held that it seemed inappropriate at this stage for the Attorney General to intervene by writing to the Police Headquarters since the case is still being criminally investigated and has not been submitted for prosecution. Further, the reasons and grounds stated in the letter do not confirm with the Constitution, the law and basic principles of the criminal justice system.⁴⁸

On the basis of the above orders issued by the Supreme Court, it is evident that the Supreme Court has been playing important role for institutionalizing the peace process and promote transitional justice.

Analysis of the Supreme Court's Role and the Legal Provisions:

The armed conflict was resolved on the basis of CPA done on November 21, 2006. The CPA has not been implemented completely yet and the rights of the victims i.e., right to recognition as victims, to know the truth, to see the perpetrators punished, to receive reparations, and to get relief and rehabilitation have not enforced. The most awaited Commissions, i.e., TRC and CIEDP have constituted and have started works from April 21, 2016. These Commissions should be capable to provide justice to the victims of the armed conflicts.

The Supreme Court has been playing significant role for the completion of peace process and delivery of justice to the victims of the armed conflicts. In deed, no other agencies except the Supreme Court are playing constructive role to make the peace process successful as per the CPA and IHIs and IHLs. However, the domestic legal provisions are not enough to ensure fairness towards TJ. The victims of the armed conflicts are not included in the transitional justice mechanism. The government is not responsive enough to the victims therefore; victims are expressing doubts to get fair justice.

Retributive, restorative and distributive justices are required in a post conflict society. One of the elements of retributive justice is to guarantee that those who had committed war crimes will not retain positions with power in the new regime but it has never been applied in Nepal. All most all human rights perpetrators have been continued to their position and promoted to the higher position.

The role of human rights and TJ related agencies and Development Partners are also playing significant role for the implementation of CPA. The human rights related agencies supported for making CPA and improving the quality of TRC

and CIEDP Bills and framing their subsequent Regulations. The Development Partners have been supporting the peace process by creating Nepal Peace Trust Fund (NPTF), which is responsible for the implementation of CPA. The NPTF is a Joint Undertakings of the Government of Nepal and the Development Partners, which is financing for the implementation of CPA. The NPTF is responsible for financing for; the management of cantonments of the Maoist combatants and reintegration in the society, reestablishment of security forces in the conflict affected areas through mine clearance and reconstruction of Police Units, conduction of two Constituent Assembly elections, constitution of Local Peace Committees (LPCs), providing relief and recovery for conflict affected persons, supporting TJ, and Constitution making. The NPTF has created NPR 23 billion (US\$230 million) funds from 2006/07-2013/14 and NPR 2.5 billion (25 Million US\$) for the period of 2014 to July 2017.

Concluding remarks:

The decade-long armed conflict brought unprecedented consequences to Nepal. CPA implementation took a decade and it may take couple of years for its full implementation. Management of cantonment and reintegration and rehabilitation of Maoist combatants took longer time than expected. The TJ component is taking place very recently it will also take time due to its complexity. The victims need to wait for couple of years to remove the stains scratches of injuries. But it is not hundred percent sure that the TRC and the CIEDP will success to achieve the said objectives.

The attitude of the Government authorities and the leaders of major political parties shows that reconciliation provisions of CPA will be applied instead of punishing to the perpetrators of human rights violators as per the IHIs and national laws.

The Supreme Court has been playing positive role for the protection of human rights and humanitarian laws but a large numbers of cases related to armed conflict have not entered into judicial courts and more than 400 cases charged against the Maoist leaders were withdrawn in 2007. The TRC and the CIEDP should be able to bring the cases under investigation with a view to provide justice.

The TRC and the CIEDP have started actions but these will face great challenges by the leaders of major political parties as well as Security personnel. Both the parties of the armed conflict are reluctant to punish the perpetrators as per

the international standards. Both the parties of the armed conflict-The Maoist leaders and the Security forces want to save their cadres and forces from harsh punishment.

The perpetrators of the cases of serious human rights violations should be prosecuted and reparation should be provided to the victims as per the international standards. There is a need to carry out fair investigations upon all alleged extra judicial executions.

The Government authorities and the leaders of the political parties must be sincere for creating conducive environment for delivery of justice, reparation, compensation and rehabilitation to all the conflict victims.

Notes

- 1 Institute for Peace and Economics. (2016). *Global Peace Index: Ten Years of Measuring Peace*. Retrieved from <http://reliefweb.int/sites/reliefweb.int/files/resources/GPI%202016%20Report2.pdf>.
- 2 Clara S. V. (2011). *Transitional Justice: Key Concepts, Processes and Challenges*, Institute for Democracy & Conflict Resolution. Briefing Paper, IDCR, BP-07/11, p.1.
- 3 George, K. (2008). *An Introduction to the Concept of Transitional Justice: Western Balkans and EU Conditionality*. UNISCI Discussion Papers, N° 18 (October 2008), ISSN 1696-2206 Hellenic Centre for European Studies. Retrieved from <https://www.ucm.es/data/cont/media/www/pag-72511/UNISCI%20DP%2018%20-%20KASAPAS.pdf>.
- 4 Pettersson, T. & Peter W. (2015). Armed Conflicts, 1946-2014. *Journal of Peace Research*, 52(4). Retrieved from http://www.pcr.uu.se/research/ucdp/datasets/ucdp_prio_armed_conflict_dataset/.
- 5 Wallensteen, P. and Margareta, S. (1998). Armed Conflict and Regional Conflict Complexes, 1989-97, *Journal of Peace Research*, 35 (5), 621-634. Retrieved from <http://www.un.org/esa/socdev/rwss/docs/2001/15%20Armed%20Conflict.pdf>.
- 6 International Committee of the Red-Cross. (2002). *The Law of Armed Conflict*. Retrieved from https://www.icrc.org/eng/assets/files/other/law1_final.pdf.
- 7 See above note 1.
- 8 International Centre for Transitional Justice, USA, (2012). *Transitional Justice*. Retrieved from <https://www.ictj.org/about/transitional-justice>.
- 9 Kritz, N. (ed.), (1995), *Transitional Justice: How Emerging Democracies Reckon With Former Regimes*, Washington DC: United States Institute for Peace Press, Minow, Martha L, (1998), *Between Vengeance and Forgiveness: Facing History After Genocide and Mass Violence*, Beacon Press, Ruti G. Teitel. (2000). *Globalizing Transitional Justice: Essays for the New Millennium*, Oxford University Press.

- 10 Martina F. M. (2011). *Transitional Justice: Theory And Practice*. Retrieved from http://www.berghoffoundation.org/fileadmin/redaktion/Publications/Handbook/Articles/fischer_tj_and_rec_handbook.pdf.
- 11 See above note 2, p.1.
- 12 See abovenote 8.
- 13 Ibid.
- 14 Ibid.
- 15 Ban, K. M. (2004, August23). *The Rule of Law and Transitional Justice in Conflict and Post Conflict Societies*. Report of the Secretary General,p.1.Retrieved from <http://www.ictj.org/en/tj>.
- 16 United Nations Human Rights Office of the High Commissioner, (2012,May 01), UN Special Rapporteur on the Promotion of Truth, Justice, Reparation and Guarantees of Non-Recurrence.
- 17 A Bisset, L. M. &Jvan Z. S. (2014, April 02). *The Rule of Law and Transitional Justice in Nepal: Options for Coordinating a Truth Commission, Criminal Justice Mechanisms and Personnel Reforms*. Bingham Centre Working Paper 2014/02, London, Bingham Centre for the Rule of Law, BIICL.
- 18 Supra above note 9, p. 1.
- 19 Supra above note 2, p. 2.
- 20 Supra above note 8.
- 21 The United Nations Office of the High Commissioner for Human Rights. (2012). OCHNR Nepal Conflict Report 2012, Geneva, 39.
- 22 Pathak, B. (2008, March 8). *Human Rights and Nepal Police, Kathmandu, CS Center*. Retrieved from https://www.transcend.org/tms/2015/05/nepals-enforced-disappearance-commission-roles-of-international-community/#_ednref27.
- 23 Government of Nepal, MoPR, National Peace Trust Fund Secretariat. (2015). *Nepal Peace Trust Fund Strategy 2014-17*. Kathmandu: Peace Trust Fund Secretariat, p.5, Table 3.
- 24 Pathak, B. (2011, December). *Comprehensive Peace Accord: Human Rights Status 2006-2011*. Kathmandu.
- 25 NHRC Nepal, (2015, March 22), The NHRI Nepal Joint Submission for the Second Universal Periodic Review of Nepal submitted to The United Nations Human Rights Council Geneva, 3, (2016, April 17). Retrieved from http://www.nhrcnepal.org/nhrc_new/doc/newsletter/NHRI%20Nepal%20joint%20Submission%20for%202nd%20UPR%20Review-2015.pdf).
- 26 Ibid.
- 27 See above note 21, p.62.
- 28 Koirala, S. P. and Tripathi, R. R. (2010). Withdrawal Serious Criminal Cases: A Threat of Rule of Law. *Nepal Bar Council Journal*. Kathmandu: Nepal Bar Council, p.145.
- 29 The Truth and Reconciliation Commission, (2016, April 18). Retrieved from <http://trc.gov.np/>.

- 30 Slavery Convention, 1926; 1953 Protocol Amending The Slavery Convention, 1926; Convention on the Prevention And Punishment of the Crime of Genocide, 1948; Convention on the Political Rights of Women, 1953; Supplementary Convention on the Abolition of Slavery, The Slave Trade and Institutions and Practices Similar to Slavery, 1956; International Convention on the Elimination of All Forms of Racial Discrimination, 1966; International Covenant on Economic, Social and Cultural Rights, 1966; International Covenant on Civil and Political Rights, 1966; Optional Protocols to the International Covenant on Economic, Social and Cultural Rights, 1966; International Convention on the Suppression and Punishment of the Crime of Apartheid, 1973; Convention on the Elimination of All Forms of Discrimination Against Women, 1979; Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment, 1984; International Convention Against Apartheid in Sports, 1985; Second Optional Protocol to the International Covenant on Civil and Political Rights Aiming at the Abolition of Death Penalty, 1989, Convention on the Rights of the Child, 1989; Optional Protocol to The Convention on the Elimination of All Forms of Discrimination Against Women, 1999; Optional Protocol to the Convention of the Rights of the Child on the Involvement of Children in Armed Conflict, 2000; Optional Protocol to the Convention of the Rights of the Child on the Sale of Children, Child Prostitution and Child Pornography, 2000; Convention on the Rights of Persons With Disabilities, 2006; Optional Protocol to the Convention on the Rights of Persons With Disabilities, 2006. Government of Nepal, Ministry of Law and Justice, List of Multilateral Treaties to Which Nepal is a Party and a Signatory, September, 3-7, (2011).
- 31 Bandi, G. S. (ed.). (2013). *Transitional Justice and Right to Remedy: Supreme Court Jurisprudence in Nepal*. Kathmandu: International Commission of Jurists and Nepal Bar Association, pp.viii-xi.
- 32 Writ Nos. 3575, 100, 104, 323, 500, 45, 41, 155, 162, 164, 167, 97, 110, 111, 142, 211, 250, 223, 262, 378, 418, 485, 617, 632, 635, 54(0002) 0004, 2588/0038), Habeas corpus, June 18, 2007, cited in Bandi, above note 31, pp.245-46.
- 33 Writ No.0641 of the year 2063 (2007), Mandamus, (Supreme Court, September 18, 2007), cited in Bandi, above note, 31, pp.298-299.
- 34 Writ No.1231 of the year 2063 (2007), Certiorari/Mandamus, (Supreme Court, March 10, 2008), cited in Bandi, above note 31, pp.309-10.
- 35 Writ No. 063-Wo-0681 of the Year 2063 (2007), Mandamus, (Supreme Court, February 02, 2009), cited in Bandi, above note 31, pp.319-22.
- 36 Writ No.069-Wo-0057 of the Year 2069, Mandamus, (Supreme Court, January 02, 2014).
- 37 Writ No.1094 of the year 2068 (2011), Certiorari, (Supreme Court, June 21, 2011), cited in Bandi, above note 31, pp.332-33.
- 38 Writ No.3394 of the Year 2061 (2005), Mandamus, (Supreme Court, February 10, 2006), cited in Bandi, above note 31, pp.341-42.

- 39 Writ No. 2063-Wo-0920 of the year 2063 (2006), Certiorari/Mandamus, (Supreme Court, December 17, 2007), cited in Bandi, above note 31,p.345.
- 40 Writ No.3448 of the year 2063 (2006), Mandamus, (Supreme Court, May 12, 2008), cited in Bandi, above note 31,p.355.
- 41 Writ No.0238 of the year 2063 (2006), Mandamus,(Supreme Court, October 26, 2009), cited in Bandi, above note 31,pp.363-64.
- 42 Writ No. 0863 of the year 2064 (2008), Mandamus,(Supreme Court, January 07, 2009), cited in Bandi, above note 31,pp.372-73.
- 43 Writ No. 3219 of the year 2062 (2005), Mandamus,(Supreme Court, December 17, 2007), cited in Bandi, above note 31,pp.395-97.
- 44 Writ No.2942 of the year 2059 (2002), Certiorari/Mandamus, (Supreme Court, January 09, 2004), cited in Bandi, above note 31,pp.413-14.
- 45 Criminal Appeal No.3302 of the year 2061 (2005), Homicideregarding the withdrawal of cases, (Supreme Court, January 07, 2009), cited in Bandi, above note 31,pp.421-22.
- 46 Writ No. 067-Wo-1198 of the year 2067 (2010), Including Certiorari, (Supreme Court, August 13, 2010),cited in Bandi, above note 31,pp.429-34. 47 Writ No.2069-WS-0058 of the year 2069 (2013), Certiorari, (Supreme Court, April 01, 2013), cited in Bandi, above note 31,p.450.
- 48 Writ No. 2609-Wo-04740 of the year 2069 (2013), Certiorari, Mandamus, (Supreme Court, January 15, 2013), cited in Bandi, above note 31,pp.451-52.
- 49 See above note 23, pp.3-7.



Bhim Rawal

Former Minister, Home Affairs and Leader, CPN (UML)

How would you evaluate Comprehensive Peace Accord (CPA) in Nepal after 10 years? Is it a document or an epicenter of the political process?

CPA was an important process for bringing Nepal towards the path of Peace from violent conflict. This also led the political process of Nepal towards peace from violent conflict on the fundamental basis. In this regards, today also we consider CPA as that document which provided the direction to peace and political parties jointly towards the path of democratic practice.

There were issues of institutions and processes in CPA along with the lines of Socio-economic transformation. In your opinion, to what extent those commitments are fulfilled?

If we consider the economic, social and political commitment mentioned in CPA, we were engaged in the discussion of those issues during the constitution making process in Constituent assembly. We have included majority of the issues in the meetings of committees formed under CA. We are able to include economic, social, cultural, peace and democratic practices in the constitutional provisions which were the agreements reached among political parties during CPA.

What are the reasons behind the 10 years long transition in Nepal? What were the loopholes in CPA or it is the weakness of the actors to consider CPA as a neutral document?

Political Situation of Nepal is the reason for the prolonged transition in Nepal. Internal Power balance, geopolitical situation of Nepal and external factors are responsible too. However, the pace of peace process was anticipated to be more efficient the way role of UN was imagined. Later on, we thought the Process was delayed, we acknowledged the role of UN and led the process move forward ourselves. For instance, We were able to complete the process of rehabilitation and reintegration of ex-combatants after UNMIN left. Some of the provisions mentioned in the CPA became obstacles for timely fulfillment of the commitments made.

In regards to the constitution making process, this is the issue to be decided by the sovereign Nepali People. So there are certain issues in the constitution making Process which were not mentioned earlier in The CPA. The prolonged constitution making process has less to do with CPA. This is the impact of Political situation of Nepal, vision of political parties and geopolitical situation of Nepal which includes internal and external dimensions.

Do you think the political agencies reached into the mindset that for peaceful Political change it is not necessary to resort to arms? Do they have the capacity to contain Violence?

Nepali Politics actually didn't demand the situation of violence and resort to arms. It has various dimensions. It is not possible to present all those with in this interview. In multiparty system the contents and discontents in the ingredients of constitution is obvious. I cannot imagine the politics of violence and weapons in democracy immediate after the promulgation of new constitution through elected CA. Neither the peoples' aspiration is that why to resort to arms. Political rights, Press freedom, human rights are ensured in Nepal. Also, all the political parties have the opportunity to justify their principles, programs and policies and lead the government after being elected.

Do you think that political Culture is developed among all the actors and characters?

I am not still confident that the political culture is fully developed among all the actors and characters. Division among the political parties, number of political parties, social rift through partisan interest, dependency on external factors is major hindrances for the practice of peaceful political culture. However, after the promulgation of new constitution, political parties are found moving towards the competitive path.

The political development after social contract established by CPA and the acceptability of new constitution is still questioned. Do you think that CPA leads to better future or new social contract is required?

CPA was one phase. That phase is ended. You have mentioned social contract as a small agreement. After that, we have entered into new agreements through new constitution. It has entered into a new phase. Nepali people voted twice. None of the agreement is significant than peoples' mandate. CPA provided the avenue for peace, democracy and people's right. Certainly, CPA is the background for this all. Now we are in the phase of implementing new constitution. Those political Parties who believe in democracy and people should practice this constitution while moving forward. If some political parties claim that they bear

proper principle and political programs that should be justified through peoples' vote.

How would you summarize the peace process in Nepal?

Nepalese peace process is a unique feature initiated by Nepalese. This created a path to peace and democracy significantly in the land between two giants India and China. Thus, CPA is the milestone for political development and peace process in Nepal.



General reflection on a decade of Nepal's peace process

Chandra Mani Gautam

Introduction

Many changes and fluctuations have appeared in the decade after Nepal Government and the then armed revolutionists, the Nepal Communist Party (Maoist), signed the historical Comprehensive Peace Accord, which aimed to end the ten-year long civil war, institutionalize peace, bring about fundamental changes, and establish a new state mechanism. The common people, who had just undergone a civil war where thousands had died, disappeared, and hundreds of thousands had suffered in direct and indirect ways, were saying that there is “no other oath but peace, no point of violence”, and pressurizing both sides to come to a meeting point. On the other hand, the international community was stressing that “violence cannot be used for political means”, and making constant efforts so to make the “Comprehensive Peace Accord” happen.

The period between 2005 and 2010 was known as a period of agreements and accords between Nepali Government, parliamentary political parties, the NCP (Maoist), other political parties, and social organizations. All these agreements were aiming for the democratic management of armed forces, the sovereignty of the people, rule of law, and the move towards the establishment of fair and equitable society. The solution oriented progressive dialogues and openness between the opposing forces of the conflict, public opinion, efforts of the friendly nations including the neighbors, facilitating by the INGOs and the UN, peace loving people and the different sides of the conflict themselves being in agreement on the content of the agreement and the group effort by all concerned people and organizations is a proof of the fact that the CPA of Nepal is an example of the few successful peace agreements in the world.

The main objectives of the CPA were:

- 1 to end the decade-long armed conflict so that every citizen can feel the concrete achievement of a stable peace in the nation.

- 2 to contain the Nepali Army in their barracks and the PLA in the camps,
- 3 to store and control the weapons of the Nepali army and the PLA in equal numbers, -
- 4 to classify the actions which can be done and which can not be done by the Nepali Army and the PLA respectively,
- 5 to define the role of the UNMIN,
- 6 to form and decide the role of the Joint inspection coordination committee.

In the present situation when the CA has successfully churned out and promulgated the constitution, it will be practical and objective to judge the decade after the CPA under the gauge of whether the objectives of the CPA have been met or not.

The process

Because there are other agreements and understandings, incidents and activities associated with the CPA, this report and analysis has been prepared centered on the fundamental objectives of the CPA while considering the facts and figures in that greater context. This write tries to analyse the facts and figures, agreements and understandings and the political write ups that represent the condition before the CPA and the decade after that. This tries to include the developments in terms of management of conflict and establishing of peace, interactions with the various parties of the process, the changes observed in the political parties and other stakeholders, compromising nature and state of mind and the general psyche of the people in the society.

Therefore, instead of the formal vocabulary, the general public's social style and viewpoints have gotten priority in this write up. Because the peace process of Nepal is a institutionalized effort with a collective cooperation at the national and international level, various agreements, dialogues, initiatives and efforts are official, transparent and in public knowledge. This has made the peace process open with easy to access to facts and figures rather than confusing with dubious sources and unnecessarily complex.

The situation preceding the Comprehensive Peace Agreement

Before the Comprehensive Peace Accord, there had been many different attempts, in different rounds, at peace talks. The country was in a triangulated situation with the so-called parliamentary political parties on one side, the

Maoists on the other, and the king, army, and other traditional forces on the third side. Manifestoes of the political parties used to read “to solve permanently the Maoist problem and bring stable peace and security.” When Krishna Prasad Bhattarai became Prime Minister after the general elections of 1999, he formed a high level commission, under Sher Bahadur Deuba, to study the Maoist problem, hold talks with the Maoists, and solve the problem. But the talks failed before reaching a logical ending. According to officials of the state, the government was sacked before term because of this failed attempt.

Because of a lack of agreement about how to make this triangulated situation into a situation with just two sides, and a competition about who would get credit for bringing lasting peace, someone or the other was always disturbing effort at peace talks. The Monarchy, which had been a power center, had started discounting the existence of political parties, especially after the army had been mobilised. The monarchy had started to fight against the political parties through a strategy of attrition. Prahakar Samsher, who was known as King Gyanendra’s aid, said in an interview, “There are only two remaining forces in Nepal, the monarchy with its army and the Maoists” (India Today, July 2, 2003). “As long as the 1990 Constitution remains, the aims of the King’s February 1, 2005 announcement will not be fulfilled,” (Dr. Giri, 2005) This proved that the monarchy was also keen to terminate the Constitution of Nepal, 1990, which was considered an achievement of the People’s Movement that the parties had organized, and which was the basis of government formation. Conflict experts say in this regard, ‘For the first time, on 9 April, 2002 from the all party assembly at Khula Munch at Kathmandu, all parliamentary parties committed to talks with the Maoists themselves, but immediately after that the government announced prize money on the heads of many top Maoist leaders.

When the government was under pressure from all the political parties to carry out talks with the Maoists, then Prime Minister Sher bahadur Deuba dissolved the parliament. The last time, when some efforts in this regard were picking up momentum, Interpol issued a red corner notice in the name of Maoist leaders.

Arms/Military race

The establishment of the state’s Armed Police Force happened during the armed conflict. The Nepal Army, which numbered just 47,000 during the People’s Movement of 1989 had reached 195,000 troops in 2001, when the army was mobilised. During the 2001-2002 fiscal year, the defense budget was at Rs. 18.38 bn, which was about four times that of the defense budget of 1995-

1996 fiscal year. Since then, the defense budget continued to grow each year. On Nov 24, 2001 when the Maoist army attacked the Nepal Army's barrack in Dang, they did not just start battles with the Army, but showed that the revolution had entered the phase of counter attack from the guerilla warfare stage. They also tried to prove their claim that they had formed seven divisions of the PLA.

At the same time, that the United States of America started its war against terror, after the terrorist attacks on September 11, 2001. Nepal Army had been mobilised against the Maoists. America became more interested in Nepal at this point. In the long run, there was reason to say that America had become a part of the Nepal's military strategy – in 2002, the United States of America declared the Nepali Maoists terrorists, and that tag was finally taken off a decade later, in July, 2012 (Statement, USA, 2012). On December 31, 2002, the non-surrender accord was signed between the United States and Nepal, where they agreed to not give refuge to each other's citizens, and to not take each other to international court. On 25th April 2003, the two countries signed an “anti terrorism agreement”. Anti terrorist training, technical assistance, etc happened as a part of this agreement. The Bharatiya Janata Party, a major political party in India, which had declared the Nepali Maoists terrorists before Nepal did, requested that the Maoists be kept away from Democratic processes (Adwani, 2006).

Casualties during the war

In the decade of armed conflict, 5,560 development and service infrastructures were destroyed. In the latest statistics and data available in the Peace and Reconstruction Ministry, this number is at 3,647. Among these were structures linked to everyday lives of people, such as Village Development Committee buildings, police posts, post offices, educational institutions, drinking water plans, electricity offices, bridges, banks, etc. Because local elections had not happened for a long time, rebuilding processes are slow and filled with barriers, even though rebuilding is an important part of sustainable peace.

The overall number of victims of the armed conflict seems to have increased in the last official report, while the number of victims in 11 districts (Lalitpur, Morang, Udaypur, Rolpa, Rautahat, Solukhumbu, Myagdi, Bhaktapur, Khotang, Saptari, and Nawalparasi) have decreased.

A 2015 report by a 7-member team formed under the coordination of former parliamentarian Nar Bahadur Pun:

Table 1 Destruction of infrastructure and public property

S.N.	Categories	Total destroyed
1.	Number of casualties: 18030(+144)	17,883
2.	Disappeared by the Maoists or State : 1613 (+83)	1,530
3.	Displaced people : 80,222 (+651)	79,571
4.	Loss of personal property : 17,969 (+485)	17,484
5.	Wounded or disabled: 9820 (+1629)	8,191
6.	Kidnapped: 9820 (+791)	9,029
7.	Children orphaned by war: 3762 (+620)	3,142
8.	Total affected: 1,41,236 (+4403)	136,833

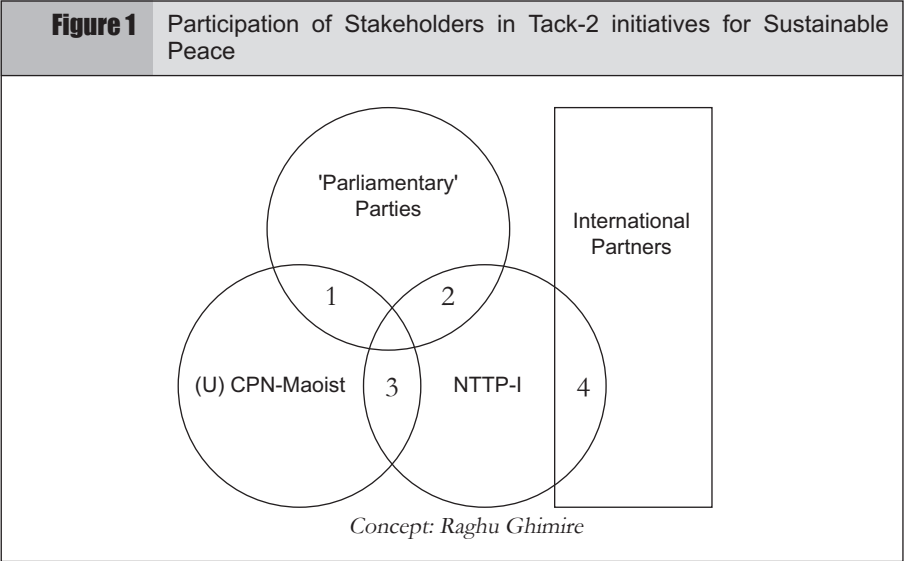
Out of 3,115 VDC buildings, 1,300 (about 34%) were destroyed in the decade-long armed conflict. Out of them, 285 buildings out of 813 were in the Eastern Development Region, 334 buildings out of 1,199 were in the Central Development Region, 221 buildingd out of 865 were destroyed in the Western Development Region, 165 out of 575 VDC buildings in the Mid-Western Development Region were destroyed, and 316 VDC buildings out of 383 in the Far Western Development Region were destroyed in that time frame (Gyawali, Maede, 5)

Mediation, talks and track two efforts

There was increased pressure to hold peace talks with the Maoists, and officials from the United Nations started displaying positive interest after such efforts were started. Kul Chandra Gautam, who as then the Assistant Secretary General of the UN presented, for debate, a draft proposal titled “Reconstruction and Reconciliation: a way forward for Nepal”. This increased the United Nation’s interest in Nepal (Gautam, 2005). The draft talked about the need to build common understanding on three basic agenda: political reforms, socio-economic rebuilding, and good governance. It was also proposed that after the success of the peace talks, a high commission of internationally-renowned personalities would be formed to oversee widespread preparation for reconstruction and actual implementation of the process as “Nepal’s well-wishers. But this proposal could not become a reality. India, Switzerland, and Norway showed no interest in mediating.

The Nepal Transition to Peace Institute (N'TTP-I) was established in 2004 to aid agreement through direct conversations about the peace process between stakeholders, non-governmental and unofficial talks and efforts (track 2). Through

different pathways, this organization played an important part in bringing logical conclusions to agendas about management of conflict and establishment of lasting peace, and to empower changing political actors to have homwgrown talks and agreements independently.In fact, because the NTTP-I was trying to build a common understanding among government and non-governmental forces as well as the civil society and other national actors, it is often refered to as a “track one-and-a-half mediator” instead of a track two mediator.



The NTTP-I has been working on issues relating to the peace process, especially to aid the Constituent Assembly’s Constitution writing process by forming dialogue groups in national and local levels. It created an environment for national understanding, organizing all-party conferences, workshops and interactions at the local level, organizing meeting between leaders of political parties and relevant national and international experts, and organizing conferences and meetings inside and outside Nepal to foster agreements that might be useful to Nepal’s peace process, and monitoring other conflict-ridden country’s experiences. It is found to be successful in creating a feeling of mutual coexistence, developing a culture of cooperation in challenging times, and to decreasing disagreements to develop a modus operandi around understanding.

As shown in the chart, the parliamentary forces that were a part of the people’s movements, and the Maoist(U) have been involved with NTTP-I independently and without any reservations. Number 1 shows the two-sided

contact, conversation, communication and interaction between the political parties and the Maoists(U) on NTTP-I's stage. Number 2 shows the facilitation that NTTP-I provided to the political parties. Number 3 shows the tripartite relationship between the political parties, the Maoists (U), and NTTP-I, as well as the gatherings and meeting with national and international experts. Because of the role that NTTP-I played, the absence of an international mediator was not felt. There is no other example, anywhere in the world, of an organization that played such an extensive and effective role, even as a think tank, in a country's peace process. Nepal's unique experience in NTTP-I's conflict management has already been institutionalized.

The Comprehensive Peace Accord

When the Maoist rebels and the Nepal Government signed the CPA, with a preamble, 10 points, and 16 subpoints, on 21 November 2006, many people asked why the Maoist party, which started a rebellious “war” in 1996 on the basis of a 7-point announcement, came to peace talks, even though point 3 of their declaration read, “This plan (of People's War) would be based on the aim of completing the new democratic revolution after the destruction of feudalism and imperialism, then immediately moving towards socialism, and, by way of cultural revolutions based on the theory of continuous revolution under the dictatorship of the proletariat, marching to communism - the golden future of the whole humanity. We are firm that it is a crime against the proletariat and the general masses of the people to start an armed struggle without the firm conviction of carrying it out to the end. We shall never allow this struggle to become a mere instrument for introducing partial reforms in the condition of the people, or terminating in a simple compromise by exerting pressure on the reactionary classes. Thus, our armed struggle will be totally free of all sorts of petty bourgeois, narrow nationalist, religion-communal and casteist illusions.”

The Maoists came to the first and second peace talks with a slogan to “unite for a new revolution”, which seems to have four underlying goals.

1. To get rid off the terrorist tag,
2. To dissolve the red corner notice against the Maoists,
3. To make the government take back the prize money on the leaders' heads, and
4. To make the government release imprisoned cadres.

In a situation where there was no warm relationship between the political parties and the pro-monarchy forces, and where the situation was “fighnting to finish”,

the political parties and the Maoists came close to each other. When talking about how close the two sides had become, Pushpa Kamal Dahal “Prachanda”, chairman of the Maoist party said, “He [Girija Prasad Koirala] used to give us advice on how to make our military strategy effective, and to get rid off the authoritarian monarchy. I would use our forces to follow his advice” (Prachanda, 2011).

Activities of war happen within relationships, and not with unknown parties. Like Nelson Mandela said, “Dialogue happens with a foe, not with friends”, the Maoists and the political parties, who had been behaving like enemies, started engaging in dialogue. The peak of this close relationship and dialogue was the 12-point accord, as well as the code of “understanding, cooperation, and unity” which led them to jointly lead the People’s Movement -2006. The autocratic king played a big role in making the monarchist parties of the past pro-republic, and pushing them to close proximity of the Maoists. In fact, fear and caution was clearly seen in the leaders of the Seven Point Alliance when they signed the 12-Point Understanding. Their major fears were perhaps that the national and international community would start perceiving them as terrorists because they had signed a peace agreement with a party that was on international terrorist list, or that the Maoists would overtake all power after the monarchy ended, or that they would be weaker in their fight against the monarchy. For this, it was not called an “agreement” but an “understanding”, and although the document is similar, the Seven Party Alliance and the Maoist signed different copies, dated differently, in different places.

The Comprehensive Peace Accord many agreements signed thereafter that prove unlike many South Asian countries, Nepali political parties, regardless of the magnitude of conflict between them, display the kind of political culture that allows them to partake in dialogue and come to an agreement.

Unlike the 21 rounds of failed and partly-successful peace talks in Columbia, non-transparent talks in Guatemala, Colombia, and Angola, Nepal’s peace process and unofficial talks were extremely transparent. The Maoists have an exceptional role to play in the fact that unlike in countries like Angola, where violence restarted after peace talks, Nepal’s peace talks moved forward. The Crock Institute for International Peace Studies, a famous American organization that studies and documents organized violent conflicts around the world and creates strategies for stable peace, evaluated the first nine years of the peace process in Nepal and gave Nepal a score of 72% (Kroc, 2015).

We can see that historically, since the Movement of 195, after every revolutionary step, when two forces go into an agreement, there is the end of a third force. The agreement between the parliamentary parties engaged in the People's Movement of 2006 and the Maoists resulted in the end of the monarchy. Similarly, the agreement that was reached after the People's movement of 1989 ended the "Panchayat System", which had come to rise by stepping on the sanction of political parties. The People's Movement of 1951 and resulting change brought an end to the supremely powerful Rana Regime.

The Maoists' insistence, at the signing of the one-point understanding, that the United Nations Mediate the peace process can be seen as a move that was geared towards dropping their "terrorist" tag and being considered a "constitutional rebels". With the same goal, the Maoist had decided, at a meeting in Chunawang in Oct 2005, that they would create a parallel government in collaboration with the parliamentary political parties, who had launched a movement against the monarchy, and write to the United Nations asking for recognition.

After five rounds of talks in five different locations between top leaders of the Maoist party and leaders of the Nepali Congress, NCP(UML) and other leftist parties, both sides were able to sign the 12-point Understanding. The 12-point agreement was the stepping stone for a fundamental change and the foundation for the Comprehensive Peace Accord.

The stakeholders in Nepal's peace process had to go through 20 very difficult steps to get to the Comprehensive Peace Accord. The main ones are the second MOU between the Seven Party Alliance and the Maoists, the announcement, on 12 May 2006 of the parliament, which included representatives from the Maoist party, the code of conduct for the ceasefire signed on 26 May 2006 by the government and the Maoists, the eight point agreement signed by leaders of the Seven Party Alliance and the Maoists on June 2006, the letter to the United Nations sent by the Nepal Government and the Maoists in 2005, the Oct 2005 two-point agreement between the Seven Party Alliance and the Maoists, and the November 2005 six-point agreement between the leaders of the Seven Party Alliance and the Maoists. There are uncountable successful/ unsuccessful attempts of talks that took place with a goal of weaving together an agreement. In fact, the leadership of the government and political parties devoted a lot of time and energy around these agreements.

The socio-economic aspects of the Comprehensive Peace Accord

According to the chief of the United Nations Mission in Nepal, Ian Martin, the Comprehensive Peace Agreement can be understood from five different angles.

- One to share power and establish agreement
- Two to transform rebel forces to respect multiparty democracy and rule of law,
- Three to change the field of security, and to complete their commitments to intergrate and rehabilitate Maoist combatants and to democratization of the Nepal Army
- Four to see into completion the revolutionary and ambitious agenda of political, economic and societal change that the Comprehensive Peace Accord had set out for, and
- Five to fulfill their commitments to address the needs of the victims of war, end impunity, and establish rule of law.

These commitments are the common basis of the peace process. Regardless of what anyone says, they are necessary in a successful peace process. (Martin, 2009)

When the Comprehensive Peace Accord was signed, Nepal was on a list of 53 least developed countries on a list of socio-economic indicators. There had been a steep decline in production and export, a large wealth gap, and huge increases in unemployment and poverty. In addition, defense was taking up a significant portion of the development budget and there was the trade deficit with neighbouring countries (especially India), an increase in imports for daily consumption, violence, and unproductive activities, and increasing dependence on foreign aid. At the same time, the pressure of population had exceeded limits, because of migration from villages to cities, district headquarters and productive workforce was leaving the country. The country was going through an extreme period characterized by brain drain and the outflow of money. In view of this situation, some socio-economic commitments were also made

- To determine a common minimum program for socio-economic transformation, and take it forward with common understanding,
- To make a policy to implement scientific land reform program to end feudal land holdings,
- To adhere to policy regarding conservation and promotion of national industries and resources,

- To adopt policies to establish all citizen's rights to education, health, housing, employment, and food security, to create a learning environment in schools, to prevent the capture and/or use of educational institutions, and to not cause interruptions to teaching and learning activities,
- To come up with a common conception for socio-economic transformation and justice,
- To arrange for strong punishment for those who abuse government positions, engage in corruption, and amass wealth immorally,
- To ensure the professional rights of wage labourers and to make and implement policies that will increase opportunities for employment and income by increasing investments for industries, businesses, imports, etc.
- To not take over anyone's personal wealth, unless it is by law, and
- To not disturb industrial environments and continue production, respect the collective bargaining rights and social security in industries, and to peacefully resolve issues between the industry and workers.

The Interim Constitution

A 2006 declaration by the parliament made Nepal a secular state, the Interim Constitution of 2007 made it a federal state, and the first meeting of the Constituent Assembly declared it a republic. But the army, the ousted king, or his allies did not create obstacles. When the Constitution of the Kingdom of Nepal, 1990 was discarded, many uncertainties emerged from forming a drafting committee of the Interim Constitution (also known as the Documentation of the Political Parties' Agreement) to making multiple amendments in the Constitution. The Interim Constitution was characterized by a lack of decentralization, control and balance of power among state bodies, as well as the lack of importance given to constitutionalism and rule of law.

The Constitution drafting committee was made bigger (16 members instead of 6) after people protested that it wasn't inclusive. The drafting of the Interim Constitution took eight months instead of the stipulated 15 days, and the Madhesh movement started the day after the Interim Constitution was promulgated on Jan 15, 2007. Important changes were made through the first amendment, which added a part D to article 33, dictated that every state body should have a proportional representation of Madhesis, Dalits, indigenous people, ethnic minorities, women, laborers, farmers, people with disabilities, and disadvantaged communities and regions. It changed article 63 to say that

electoral constituencies would be revised according to population, added a part A to article 154 to include a “Election Constituency Planning Commission” and a progressive restructuring with federal system of governance (Article 138).

Names of political parties is not mentioned in Constitutions anywhere in the world. But Nepal’s Interim Constitution mentioned the name of specific parties in Article 45, parts A, B, and C. Perhaps there is also no Interim Constitution that has been amended 14 times like this one. The interim government and political parties have misused the provision of amendments to correct political weaknesses, and mistakes, by increasing the timespan of the Constituent Assembly. In the history of democracy and constitutionalism of the nation, malpractices started right from there. Systemic anarchy was patronized and that ultimately created the situation where constitution could not be promulgated on time.

Arrival of UNMIN

On the invitation of the Prime Minister of Nepal, the UN GA resolution 1740 decided to send the United Nations Mission in Nepal, a peace mission without the peace keeping force in Nepal, and it started functioning in Kathmandu with 1080 employees and a tenure of one year since Jan 23, 2007. On April 1, 2007 the Peace and Reconstruction Ministry was formed. UNMIN extended its tenure six times and finally left the country on Sept 15, 2015. On Jan 22, 2007, when the combatants were handed over to a special committee, UNMIN was not present in Nepal.

UNMIN was established by the special efforts of the then Secretary General Kofi Annan. The mandate for UNMIN was to carry out the management and inspection of Nepal Army and the Maoists army, to assist in implementation of the joint monitoring agreements, to assist the Election Commission technically in planning and conducting the election of the CA in a free and fair manner and monitoring the ceasefire. UNMIN was full of controversies. Initially, they were said to be more sympathetic to the Maoists, and then more close to the political parties and later to Nepal Army. Its role in the peace process was continuously questioned.

Regardless of what was going on internally, both neighbours helped and supported UNMIN in its work. Rs. 1,67,00,00,000 was donated by the Chinese government sent to Nepal. India sent vehicles for UNMIN, containers to store the weapons of the combatants, and tents necessary for temporary camps for Maoist soldiers.

Election of the First Constituent Assembly

A Constituent Assembly election was on the agenda of the revolt of 1951. It finally happened in 2006. The Maoist party, which was drenched in Mao-Tse Tung's idea that "power comes from the barrel of the gun", raised arms to gain power. It put down its weapons to participate in this election. This was the party's first experience in multiparty democracy elections. But for a few years after signing the Comprehensive Peace Agreement, until 2010, the Maoist party had not completely given up on its strategy of state capture. Until then, it was still presenting strategies like the April thesis, urban revolution, etc.

Although the date was fixed and postponed many times, the election of the CA was finally conducted in 2008. The Maoists emerged as the largest party, and formed the government. Other big parties in the CA were Nepali Congress, UML and the MJF respectively. The first meeting of the CA declared Nepal a republic.

Why did the parties, other than the Maoists agree to the election of the CA without resolving the matter of combatants in the camps? It looks like a comparatively easy option chosen in the fearful environment after the 12-points agreement. There was a fear that after the combatants are made armless, party will lose its bargaining power, and hence in Kami Danda, it was decided that weapons will not be submitted at any cost. Making that the base, a section of the Maoists had built a lot of pressure on the party leadership which caused them to leave the government. They could not go into the elections ignoring the emotional divide that was already seeded in the party. The party was not in position to accept a defeat in the elections if in case it happened

The first Constituent Assembly, with 601 members, was complete in terms of inclusivity and proportional representation, and had a 33% representation of women. But it was unable to write a constitution. The CA, which was elected for two years, kept increasing its own term while getting lost in power struggles and encouraging the chaos on the streets. This was a big setback to democratic processes and people felt hopeless about the Constituent Assembly. It was a time when democratic elections in countries such as Thailand, Ukraine, Belgium and Egypt (TUBE countries), which are more developed than Nepal, had turned out to be regressive and hurt the democratic process itself. In Nepal, there were four governments under four different Prime Ministers, but the Constitution writing process did not move ahead. At the end, the heated debate about federalism caused the dissolution of the Constitution Assembly, and a

second Constitution Assembly election was announced for the first time in the world.

Nepali Army and integration of the PLA

With the changing situation, Nepal Army brought about reforms in itself. The army proved that it is committed to the protection of human rights through zero tolerance for violations of human rights, institutionalizing various instruments within the army. There was no instance of violation of human rights from the time of the cease fire and till the CPA. It also agreed to integrate the PLA combatants into the army after fulfilling certain basic military criteria. A total of 4008 combatants were disqualified on two basis-

1. Those born after June 14, 1988
2. Those recruited after May 25, 2006, cease fire agreement.

Out of the 19,600 combatants in the camps, 1460 wanted to voluntarily get integrated with the Nepali army and they were integrated by setting up a new Directorate General. According to the special report submitted by the Peace and Reconstruction Ministry to a Special Committee for reintegration of PLA, the total expense to the state in management of the combatants was Rs 19,71,52,68,393.

The debate on re-structuring

There is no other example of a unitary state turning into a federal system without an existing structure in the world. Most of the big parties have been in power but none have come up with a federal model. After the CPA, in search of the right model of governance, the leaders paid attention to a wide expanse of models from Switzerland to Nicaragua, from France to China. But Nepal cannot backtrack from the federal system now which has also been mentioned in the constitution. According to the constitutional provision, 110 federal laws, 22 state laws and 6 local bodies need to be enacted immediately. Without enacting 73 different laws, the state restructuring process cannot move forward.

Despite national consensus and commitment on forming five identity based states and four based on economic viability, the federalism debate became the seed of the Madhes movement. The issue of the total number of states to be formed in Nepal has been far from consensus: 7, 8, 6, 5 and in the end 7 was agreed upon number and the debate now rests on the issue of demarcation of the states. The next source of a nation-wide conflict will likely to be questions

about provincial capitals. Instead of a fruitful discussion and logical solution, if the debate takes the form of hysteria and conflict, federalism may turn out to be a curse.

Second Election of the CA

After two years of political vacuum since the dissolution of the CA, the election for the CA was conducted again. When the political parties were unable to conduct an election, the political parties were forced to make the Chief Justice of the Supreme Court head of the executive and conduct the elections.

A wave of conflicts and agreements was seen in Nepal's political scene. From the 12-point agreement to the end of 2015, there were almost 30 such agreements, declarations and memorandums.

A report by the Constitutional-Political Dialogue and Agreement Committee of the CA put forward a total of 101 such declarations and agreements between various parties and the state organized by the 'Peace and Reconstruction Ministry.

Out of the total 782 points in various such agreements, 5 for preamble, 8 for general, 37 for state policy, 24 for fundamental rights, 41 for state restructuring, 10 about election system, 1 about basic content of constitution, 2 about Nepal Army, 2 about responsibilities of the state, 1 about executive, 10 miscellaneous points and 4 others could be drawn out.

Commission of Investigation on Enforced Disappeared Persons (CIEDP) and Truth and Reconciliation Commission (TRC)

Another obligatory agreement of the Comprehensive Peace Accord was a transitional justice system to give justice to the victims of the civil war, and punishment to perpetrators. Both commissions should have been formed right after the Accord was implemented. However, because of attempts to form the Commissions on ordinance, to grant pardon to some perpetrators, there was the risk that the Commission would be seen as a body that would justify and glorify violent crimes and torment victims further. Although similar risks do not remain, the Commission has completed half its term and the process of research and justice have not caught speed, and the situation is still uncertain.

The United Nations Office of the High Commissioner for Human Rights has been in Nepal since 2004. It has compiled a report of over 9,000 human rights abuses, and the it is now the Commission's work to address these abuses.

The Commissioner of the United Nations Office of the High Commissioner for Human Rights, Jyoti Sanghera said, 'I found that in Nepal, the political forces are patronizing the criminals. I will convey to the political parties through their leaders that politics should not protect crime. Impunity is prevalent here because the crime has entered politics. This is a grave problem for Nepal.' Nepal can not ignore such suggestions from international institutions in the present situation when it is passing through a complex transition, and transitory justice has to be practiced.

Problems

1. The constitution should have given a message that the conflict is over and an environment of national harmony has been built. But the constitution has not been able to generate that confidence. Many conflicts that emerge time and again and the agreements resorted to for managing these conflicts is a proof of the fact that there are still different reasons for conflict in our society. There has been an unnatural change in the situation. The Maoist party, which was a part of the CPA, is now divided into five different groups and the process has not stopped yet. There is a vast difference of opinion among the divided groups in their outlook towards peace agreement, Constituent Assembly and the constitution. And meanwhile, there has been an uprising in Madhes three times.
2. Death toll due to political or extra judicial killings in the decade after the CPA is 3,151. The number of crime incident recorded in the transition period of 1990 was 4,893, 2006-2007 the figure was 10,132. Total number of crimes recorded was 29,371 by 2014. When we look at this data from the decade after the CPA, we can make out that in terms of grave violations of human rights, extra judicial killings, and violence, Nepal does not fare well. This shows that reasons for conflict in society are still alive, crime is being patronized and peace is precarious.
3. Negative aspects in the implementation side is also equally serious and complicated. There has been promises and agreements, almost eight times, for rehabilitation of the internally displaced leaders and cadres of other democratic parties, and to facilitate their re-integration without fear and without other restrictions and to return land captured illegally during the conflict era. However, these agreements have not been implemented. There

are many documents of the agreement but there are hardly implemented. As a result, the transition period lingering on.

4. There is an urgency to increase the government expenditure in the productive sector to fulfill the economic and social commitments but the situation is depressing. It is said, 'good news in the economic field is good news for politics'. It is difficult to understand why the budget allocated for productive sector remains unspent when the regular budget expended completely. This clearly shows that it is not a question of capability but intent. This is giving an opportunity to people with vested interests who want to fuel public rife and cause violence in the society. Even the budget spent is not free of corruption.
5. The bureaucracy, which is also called the permanent government, is still not inclusive. The system of reservation has been misused. Since 2008, 8,530 people have entered the administrative service. However, from the really backward communities and castes like Paswan, Mushar, chidimar, Tajpuriya, Koche, meche, Kisan, Raji, Halkhor, Bhediyar, Chepang, Jirel, Churaute, Kusunda etc, few have been able to benefit from the system. On the other side, the bureaucracy is politically divided and the associations have become aligned to one or the other political parties and hence to expect resolve and dedication in service of the nation is impossible.
6. In the decade long people's war, 5,560 development and service infrastructure were destroyed, including Village Development Council buildings, police stations, post offices, educational institutes, drinking water projects, local electricity centers, bridges, banks etc, which are closely linked to common people's lives. Out of 8916 demands for development of physical infrastructure, only 33% have been completed. In the financial year 2013-14, 75 district level, 55 municipality level and 2900 VDC level peace committees have been formed. But activities and achievements are almost none. Because of lack of elections of the local bodies, reconstruction of the destroyed infrastructure is not well coordinated and executed.

Suggestions

1. The government machinery should be fully mobilized to implement the commitments regarding social, political, economic transformation and conflict management that are mentioned in the CPA (point 3).
2. The bureaucracy should be delinked from political interference and develop and modernize it into a dedicated and stable government.
3. The political parties should be committed to stopping the practices like, strike, closures and blockades. All energies of the state should focus on economic growth.

4. The judiciary should be made very effective. Transitional justice mechanisms should be active to control crime in the society the root causes should be addressed.
5. Election of local bodies must be held as early as possible to strengthen the local leadership and people's representation.

References

'Nepalma Dwanda Bata Shanti Tira' (Shanti Samjhautaharu- 2063-067) Published by Asian Study Center on Peace and Conflict Transformation.
Himal Khabarpatrika, 1-15 Sawan, B.S. – 2065
Report submitted by the CA committee for Constitutional-Political dialogue and agreement.
'Nepalma Sangheeya Rajya-Sanrachana- Auchitya Tatha Bahas' by Chandra Mani Gautam



Ten years of Comprehensive Peace Accord: An assessment from peace and stability perspectives¹

Uddhab Pyakurel

The Comprehensive Peace Accord (CPA) signed on November 21, 2006 by the then Seven Party Alliance (SPA) and the then Communist Party of Nepal-Maoist (CPN-M), can be considered as a formal beginning of Nepal's peace process. In fact, the CPA not only declared the "end of conflict" but also directed senior leaders of the parties to be sincere for a long-term peace. That is why one can argue that the permanent peace is one of the major objectives of the CPA. While talking about the CPA, it is necessary to remember 12-point understanding as a background of Nepal's peace process. Besides the 12-Point understanding and the CPA, there were other agreements such as 25-Point Code of Conduct agreed on May 25, 2006 and 8-Point Agreement signed on June 16, 2006. The government and the then CPN-Maoist had also sent letters to the United Nations with the similar viewpoints of establishing peace in the country after the successful mass movement in 2006.

In fact, the CPA is a document that is instrumental in mainstreaming the CPN-Maoist in democratic process by bringing it in the competitive and peaceful multi-party politics (Pyakurel & Adhikari, 2011). Thus, the CPA forced CPN-Maoist² to make some binding agreements according to which they had to return the properties confiscated during the insurgency to their rightful owners and allow other political parties to engage in political activities unhindered including in the CPN-Maoist controlled villages. Similarly, CPA also envisaged elections of Constituent Assembly for the making of a new constitution, establishment of High Level Special Committee for Army Integration, Truth and Reconciliation Commission and Commission for the Investigation of Disappeared People to investigate the wartime cases and State Restructuring Commission for making federal structures. The first section of this paper reviews the peace related tasks guided by the CPA, and analyses state of peace in Nepal today. The last section will focus on CPA and political stability.

The CPA and Combatants' integration and issue of peace

Since management of Maoist combatants and their arms was one of the important aspects of Nepali peace process, the government of Nepal and CPN-Maoist reached an agreement on monitoring of management of arms and armies on 28 November 2006. The United Nations Mission in Nepal (UNMIN), on the request of the Interim Government and the CPN-Maoist, established its office in Kathmandu on January 23, 2007 in order to facilitate the work of the arms and army management. The management process of the combatants of the UCPN-Maoist began on 15 June 2007, and the UNMIN announced the first result of the verification of Maoist combatants on 27 December 2007³. However, the issue of management of Maoist combatants was politicized to such an extent that it had posed a great problem to the whole peace and constitution writing process for quite a long time. Despite arguments and counter-arguments over the issue, the integration process concluded in 2013 with the integration of former Maoist fighters into the Nepal Army.

Once major political parties agreed to dissolve the Special Committee which was formed to look after supervision, integration and rehabilitation of Maoist combatants as per the Interim Constitution 2007 (Pyakurel, 2015) in April 2013, 1422 ex-combatants, out of 17,052 (13,494 males and 3,558 females) were selected for integration. Of this, 15,624 opted for voluntary retirement and six went for rehabilitation. A total of 1,352 ex-combatants performed the 'passing-out' parade of Nepal Army on 4 July, 2013 after completing basic army training for different rank and files along with the other 70 ex-combatants who underwent training for officer level (A Nepali Model of Peace Process: A Policy Briefing Paper, 2014).

Most leaders, including then Prime Minister Baburam BhatTerai, argued that peace process had come to an end. Pushpa Kamal Dahal, head of the then High Level Political Mechanism and chairperson of the UCPN-Maoist, said on April 12, 2013 that they have concluded army integration process by sorting out all the debated issues. But can PLA integration alone be considered as conclusion of Nepal's peace process? Reports suggest that out of total deaths of 17,619 during the armed struggle, 1,327 were the victims of extra-judicial killings, 1,495 involuntary disappearances, 4,305 were arbitrarily injured, husbands of more than 9,000 women were killed, and some 1,219 were forcefully kidnapped. According to available statistics 78,798 individuals (21,099 families) were internally displaced and 11,775 families lost private properties during the course of armed conflict of 1996-2006. What about the justice to the victims of these incidents?

‘Peace’ and reconciliation

As stated earlier, the CPA had envisioned two commissions—Truth and Reconciliation Commission and the Commission on Enforced Investigation Disappeared Person—in order to go for reconciliation and peace. However, these commissions were not formed until recently due to many reasons. The five-member Truth and Reconciliation Commission (TRC) was constituted by the government of Nepal on February 10, 2015 in accordance with the Enforced Disappearances Enquiry, Truth and Reconciliation Commission Act, 2014 after concerns were raised from various corners, including international communities, regarding transitional justice. The objectives of TRC are as follows:

- To find out and publish the incident of the grave violation of human rights committed in the course of the armed conflict between the State Party and the then Communist Party of Nepal (Maoist) from 13 February 1996 to 21 November 2006 and of the persons involved in those incidents upon realizing the essence and spirit of the comprehensive peace accord,
- To create environment conducive for sustainable peace and reconciliation by enhancing spirit of mutual good faith and tolerance in the society upon bringing about reconciliation,
- To provide for reparation to the victims, and
- To make recommendation for legal actions against those who were involved in the serious offence related with those incidents.

Since it was part of the commitment of CPA to establish TRC, the commission was introduced through ordinance which was signed by the then President Ram Baran Yadav in 2013 because legislative parliament was not there at that time. Moreover, the donor community had been reluctant to support TRC saying that it did not meet international standards. Nepali conflict victims and human right activists have challenged the TRC ordinance on similar grounds in the Supreme Court. According to Human Rights activists, the TRC should have been used to create viable peace. However, it seems like TRC is being used to show to the international community and also to avenge the political opponents.

The Maoists want a blanket amnesty on incidences of violence during the armed struggle while other political parties and various I/NGOs and advocacy groups are lobbying against providing such amnesty. Though Maoist party has split into several factions since the CPA, all, including Nayashakti Party led by Dr. Baburam Bhat Terai, have uniform voice: Do not look into the conflict era cases. It is said that after TRC started functioning, the threat of war crimes triggered merger of 10 splinter factions under the umbrella of ‘Maoist Center.’

INGO workers, for reasons that are difficult to discern, are trying to complicate the issues by arguing that TRC is not up to the international standard. In fact, the TRC which could have been instrumental for reconciliation and establishment of viable peace in the country has become a platform for political parties to scare off each other. For example, cadres and followers of one political party have complained against leaders of other political parties in the TRC. Following two news reports speak volumes:

CPN (Maoist Center) leader Krishna KC filed complaints at the Truth and Reconciliation Commission (TRC) against former King Gyanendra Shah and five former prime ministers. KC, who was jailed for 27 months during the Maoist insurgency, reached the TRC office on Sunday and lodged complaints against the former king and ex-PMs Girija Prasad Koirala, Surya Nahadur Thapa, Lokendra Bahadur Chand, Krishna Prasad Bhat Terai and Sher Bahadur Deuba, demanding to take action against them (Maoist leader files complaints against former king, ex-prime ministers, 2016)

Another report goes as follows:

Fanindra Luintel of Okhaldhunga district has moved the Truth and Reconciliation Commission against CPN-Maoist Center Chair Prachanda and other Maoist leaders, in connection with the abduction and killing of his father Guru Prasad Luintel during the Maoist insurgency. In his complaint, Fanindra has also accused in-charge of the Maoists' Eastern Command at that time, Ram Bahadur Thapa 'Badal', member of the CPN-Maoist Center Peshal Khatiwada and former lawmaker and then chief of a local people's government, Keshav Rai, then Okhaldhunga district in-charge and YCL President Ram Chandra Sharma 'Bigyan'. Fanindra has also charged Maoist leaders and cadres Baburam Gautam of Pokali, Mohan Khadka of Simhadevi, Anita Ghimire of Ragani, Suresh Thapa of Fulbari and Tilak Khatri with the crime. He has also blamed Nandahari Dahal of Baruneshwor, Tanka Khatri of Harkapur and Pushpa Raj Poudel 'Jivanta' of Sainpu, Ramechhap, for the abduction and killing of his father, who was teacher at Gyan Prakash Higher Secondary School based in Ghorakhor, Okhaldhunga. (Son moves TRC Nepal against Prachanda, 2016)

The Commission for Investigation on Enforced Disappeared Persons (CIEDP) received 1,778 complaints as of June 6, 2006. TRC has already received 17,631 complaints. The number of complaints received by CIEDP exceeds

the government record of only 1,495 cases of disappearances during the decade-long Maoist insurgency. Even though Commissions were formed and have started functioning, people have little faith in them. First, they think the Commission is outcome of compulsion of Nepali leaders. “Had there been no international pressure and anxiety within the top leadership along with the imprisonment of Kumar Lama in UK, there would have been no commission”, most say. Those who believe in this logic argue further and say that they (the leaders) will not provide conducive environment for the commissions to work. They cite some of the cases registered against top leadership and argue that it was guided by ill-intention to avoid justice to the real victims. On the other hand, some of the conflict victims hope those involved in heinous human rights abuses will be punished. As mentioned earlier, no conflict victims (6,050 families whose land, houses and factories were seized by Maoists, 12,000 families whose movable property such as gold, silver, crops, cattle and machinery were looted by Maoists, the family members of 1,360 people who went missing during 1996-2006, disqualified combatants and the families of 17,800 people who were killed) are satisfied with the peace process. If their concerns are not addressed, the relatively peaceful situation can worsen any time.

Notwithstanding these issues, peace process has had some achievement towards sustainable peace. Army integration process was completed and the Special Committee for supervision, integration and rehabilitation of Maoist combatants was dissolved after sorting out all the debated issues and these had been considered as a major path breaking events for lasting peace, and democratic consolidation in Nepal (Pyakurel, 2015). There are contradictions within the Maoist party about the peace process and commitment for peace in the country. This discontent even caused the formal split of the party during the time of integration process. The Maoist Party, which was good at resolving difference of opinion in the party, failed to handle the same on the issue of army integration and hence it had to witness the several splits starting June 18, 2012. The negotiations and agreements made with other parties led Maoists to compromise on many issues that they had initially called non-negotiable. Some groups in the party found the compromises unacceptable, which initially led to the rift between the Maoist Party leader Pushpa Kamal Dahal (Prachanda) and the second man Mohan Baidhya 'Kiran'.

Nepal faces multiple conflicts even after a decade of the CPA. Even if CPA was successful in bringing a larger section of the Maoist in the peaceful political net, violent culture has been witnessed in society as a whole. For example, the government of Nepal, in 2009 recorded, 109 armed, semi-armed, and criminal

groups intensifying their activities in the country and most of these were active in Terai-Madhes. The number has been increasing day-by-day and most of such groups have been led by persons who had some association with the Maoist party during insurgency. It is said that most of the groups had their own military wings and their strength varies from 150 to 2000 in number (Upreti, 2009). Several researches have suggested that there are many overlapping problems that are directly-indirectly responsible for increasing the numbers of armed and semi-armed groups inside Nepal after the CPA (ibid) . These problems arose mainly 'due to low regulative capacity' (Dahal, 1998) of Nepali state and limited "presence of the state" that badly affected government-run development and other activities. In fact, the SPA government failed to implement CPA in its letter and spirit. The government freed all the UCPN-Maoist cadres from prison, withdrew all the cases filed in the courts and lifted the terrorist tags on the UCPN-Maoist for "making a suitable environment for strengthening the peace process". The situation encouraged Maoists to carry out activities unabated. Even after coming to peace process they have not completely given up violent tactics that they used during the armed rebellion. Some groups who were unhappy with Maoists or were troubled by the Maoists during the armed struggle also started counter-action against the UCPN-Maoist activities by taking law and order in their hands. When the UCPN-Maoist led the government after the CA election in 2008, the situation worsened.

The unfulfilled hope of common people (Pyakhurel, 2007) in general and unaddressed aspirations of ethnic communities regarding ethnicity-based autonomous states could become the source of another conflict in Nepal in future. During the armed struggle, the Maoist Party said that it would provide states with ethnic identities after its 'victory', in the regions where particular ethnicities had significant population. They proposed for a Limbuwan state for Limbus (with 1.6 percent national population) which occupy 27 percent population in the area proposed as Limbuwan. In what would be Kochila there was less than 24 percent population of such groups. Gurung state (Tamuwan) was proposed for less than 22 percent population of Gurungs in the particular region. And Magar state (Magarat) was proposed for 28 percent Magars in the regions. When the CPN-Maoist signed the CPA, the communities and its leadership saw less hope of having a state as promised by Maoists. Later, when leaders of these communities came to know that the CPN-Maoist leadership is not serious about the ethnicity based federal set up, a large number of CPN-Maoist cadres and supporters belonging to Madhesis, Tharu, Newar, Limbu and other communities started quitting CPN-Maoist party to start their own movements. More people from Madheshi and indigenous groups deserted the party when they saw that CPN_M

agreed to promulgate the Interim Constitution 2007 without mentioning Nepal as a federal democratic republic. Interestingly, they continued replicating CPN-Maoist's strategy of selling emotions of indigenous/ethnic communities and adopting their mobilization tactics as well even after they left the UCPN-Maoist. Indeed, they have become smarter and intelligent through the knowledge gained by their involvement with the CPN-Maoist during the insurgency. The cadres indoctrinated by the armed tactics of CPN-Maoist have mostly led the other armed groups. They have been putting forth various demands in front of the state.

It can be argued that the violent conflict has increased due to the weak and personalized peace process. Conflict management is the process of concluding a dispute or conflict in which the adversary parties, with or without the assistance of mediators, negotiate or otherwise strive toward a mutually acceptable agreement or understanding, taking into account each other's concerns (Kriesberg, 1999, p. 443). Any conflict resolution can be defined as a new formation that is acceptable to all actors and can be made sustainable by them only. The trends of emergence of conflict suggest that mostly the sources of conflict are indigenous in nature and means and methods of resolution of such conflict also should be searched at local level where the formation of conflict is rooted. The logic is that the indigenous method can be only a sustainable solution. If some outside parties are called as mediators, they themselves might have some interests and would like to solve the conflict the way they want in such a way that they get 'credit' for end of the conflict (Galtung, 2003, p.20). Most importantly, the sustainability of violence depends on whether the indigenous resolution methods have managed adequate provision for the post-conflict arrangement and addressed maturely the transition and questions of reconciliation (Dahal, 2003). If we go through each and every agreement in the CPA, we can find many appealing and catchy terminologies used to describe the vision of future Nepal. However, Nepali transition and peace process could not go smoothly because of lack of effort to institutionalize it. In fact, it was like the personalized issue especially between the two personalities—then PM Girija Prasad Koirala and Maoist Supremo Pushpa Kamal Dahal. Many important decisions taken between them were not documented; leaving many issues open to interpretation.

Awareness and expectation of people especially of marginalized categories were increased by the catchy slogans of UCPN-Maoist during the insurgency that radicalized the entire society. But these increased expectations remained unfulfilled after the political change. Though they came in the peace process, participated in the government and parliament, became the largest party in CA elections (2008),

and formed the government twice under their leadership, Maoist party has failed to make significant policy changes towards peaceful and democratic politics. They were also perceived as equally corrupt, irresponsible, unaccountable and incompetent to provide the good governance. They were also perceived to be less honest to the expressed commitment. As a result, hopelessness and frustration was increasing among the various deprived communities who had no expectation from other parties, and had been supporting CPN-Maoist with great hope for change that could be felt.

In brief, it can be said that organizational transformation from armed rebellion to peaceful politics depends on three preconditions—faction, followers and friends. The rebel group's degree of internal cohesion during the peace process, its level of popular support among the population at large at the time of the transition, and the amount of legitimacy that the international community is willing to grant to the rebels through the transition period helps in examining how the rebellion groups are being transformed (Kovacs, 2007, p.8). When the CPN-Maoist opted for playing with their two-line struggle, it seems that they have lost their internal cohesion and control over the party cadres. Due to this, ex-Maoist combatants and cadres were using violence for criminal activities. Other 'armed' groups were also following Maoists' tactics but most of the time for purely criminal reasons. Hence, some commonalities could be found in most of the groups if their movements and demands are seriously analyzed. In every negotiation between the government and the armed groups, they commonly demand eventual integration of their combatants into national security forces. Militant's integration into security forces has become one of the major hopes of most armed groups. In other words, possible integration in security agencies and rehabilitation in society with handsome amounts of money from the national treasury has become a great precedence. The agreement between the government and the CPN-Maoist for the management of the latter's combatants encouraged others to take up arms. The trend is likely to persist for few more years to come due to high rate of youth unemployment in the country.

CPA and political stability in Nepal

Stability and development have been popular buzzwords in Nepal since 1996 when Nepal witnessed frequent changes in the government. Some of the scholars, including Baral (Baral, 2016), refer to Nepal's condition as if it is in permanent transition and blames the situation as a major factor that has not allowed the economic and other developments of the country. Generally

speaking, transition is used to denote change in political regimes. Transitions are understood as political changes that occur in countries that are moving from authoritarian rule to democratization (Diamond et. al., 2014, p.86). The transition in the sense of 'democratic transition' was first used by Dankwart Rustow in his much cited article titled "Transitions to Democracy: Toward a Dynamic Model". In 1986, a four-volume work on transition titled *Transitions from Authoritarian Rule*, edited by Guillermo O'Donnell, Philippe Schmitter and Laurence Whitehead was published. They defined transition in border terms as an interval between one political regime to another, where the other political regime could be democracy or another form of authoritarianism (Diamond et. al., 2014, p.87). Political transition starts from one political regime generally an authoritarian one and culminates in another one (generally liberal democracy) different from political life in the past (Nifosi, 2004/2005, p. 80).

Ward and Gleditsch have shown that smooth and gradual transitions have lower risks of war whereas rocky or violent transition is less probable to lead to peaceful and stable democracy (Stradiotto & Guo, 2010, p.11). Rapid transitions result in greater uncertainty because it generally requires due process of time for evolution of democratic institutions and rule of law but rapid transitions do not allow for that (ibid). In fact, the scholars in the West were encouraged to search for transition paradigm due to problems faced by or collapse of authoritarian regimes in different parts of the world. The fall of right wing authoritarian regimes of Southern Europe in 1970s, the replacement of military rule by elected popular governments in Latin America from late 1970s to late 1980s, the collapse of communist regimes in eastern Europe in late 1980s, the breakup of Soviet Union and formation of 15 republics by breaking of Soviet Union and liberalizing trends in Sub-Saharan Africa and South Asia spurred interest in study of democratic transition (Carothers, 2002, p.5). Analytic model of democratic transition was built up especially by democracy supporting and promoting communities in the US and the Western Europe assuming that there was a certain pattern in transformation from authoritarian rule to democratic rule in certain countries of Latin America to Southern Europe. The same model was thought to be applicable for 'democratizing' countries in Sub-Saharan Africa and Asia and in post-Soviet Republics (Carothers, 2002, p.6). This model was widely used by US government and think tanks in different 'stages' of democratization to facilitate democratic transition.

However, the terminologies such as "stability" and "political transition" have been used and popularized in Nepal differently. In a democracy, one needs to examine whether system is stable rather than counting how many governments

have changed. From this angle, it can be argued that Nepal was having unstable political system from 1951 to 1959 as frequent changes of government were witnessed. The then king Tribhuvan had committed to holding Constituent Assembly elections. "The government of our people will henceforth be carried out according to a democratic constitution prepared by the constituent assembly elected by them," he had said. But he did not even want to hold general elections in the first place. That is why it took almost a decade to hold popular elections of the house of parliament. But the parliament and the government elected by the house were abruptly dissolved in 1960. Party-less Panchayat system continued until 1990. This period can be called stable period because the system was stable under the monarchy even though prime ministers were changed often. Again, Nepal witnessed a short political transition for few months in 1990 from April to October as there were some uncertainties about political system to be followed after that. However, the 'transition' ended along with the promulgation of the Constitution of the Kingdom of Nepal, 1990 with clear picture of constitutional monarchical democracy.

The political system introduced in line with 1990 constitution was in full function till 2002. But seasoned constitutional lawyer like Ganesh Raj Sharma argued that Nepal was still in transition and politically unstable phase. He said, "the constitution envisages a prime minister with the powers to provide a democratically strong government...The result: we have had seven prime ministers in five years" (Sharma, 2001). Another write-up published in 2005 by SANEI Network, India also tried to follow Sharma and argued: "Over the past several decades Nepal has witnessed significant political instability. Since the restoration of multi-party democracy in 1990 alone, more than fourteen different governments have been formed and numerous cabinet reshuffles and no-confidence motions have occurred." It also stated that "the fifteen years proceeding democratic restoration in 1990 were also marked by a high incidence of political instability".

Based on these observations, it can be argued that scholars have tried to impose the term "instability" wrongly while analyzing Nepal's politics. They have not taken note of the fact that government change through due process is one of the major in-built characteristics of a democracy. Since the situation was wrongly interpreted and popularized by scholars, politicians also joined hands with them to use it according to their convenience. Opposition would keep on trying to topple the government to be in power whereas the ruling party or alliance would rather refer the possibility of "instability" if the government would be changed. This is how democracy in Nepal has been defamed as root cause of 'unstable politics'.

Following the frame discussed above to analyze the recent political situation, especially after 2006, it can be argued that Nepal is no more in the transition. Nepal is not in unstable condition either. A short period of time from 2006 April to January 2007 can be considered as political transition as there were some ambiguities and uncertainties witnessed about the future political course of Nepal. However, such situation was over once political parties signed the CPA and promulgated the Interim Constitution in early 2007. Even if the constitution was named as “Interim” in 2007, it had already shown future direction of Nepali polity by declaring Nepal as federal, democratic republic. Since all the political forces on the left and right have come to the democratic mainstream, and new constitution has been promulgated on September 20, 2015, one should not hesitate to argue that Nepal is a stable democracy now. Here, critics may argue that transition is not yet over as there are some controversies in implementing the constitution. As the constitution has clearly outlined the political institutions that would exist in federal Nepal, issues such as delineation and naming of the provinces are not and should not be considered as hurdles to realize the course charted by the CPA.

It should be noted that the term “instability” has been used by ruling parties as a strategic card to remain in power. Leaders and cadres belonging to the ruling party often invoke “instability” and argue that it is not good to change government time-and-again. But the same people become active to change the government when they are not in it. If one sees those small issues as transition, then no country in the world could be considered as stable society. In other words, changes in the government, change of boundary and numbers of political structures within the country, amendment of the constitution, etc. are not the indicators of political transitions but are obvious and day to day business in a democracy. In a dynamic democracy, people have every right to change government if they lose their trust, and to demand for restructuring the political set-up within the limit. Otherwise, it is not democracy but the authoritarian rule by the other name.

To conclude, it appears that a section of political thinkers and analysts in Kathmandu continued trying to make common people believe that Nepal is still in political 'transition', and it is the reason for the country not being able to take the course of economic and social well being. The political class and elites seem to have made a nexus in this regard so that they could enjoy undue advantage in the name of ‘transition’. If one asks elites benefiting in politics of transition, about why state has not been able to deliver something to the commoners as per promises made, they will have a common voice to argue. They say that

Nepal is in transition and politics for prosperity, just distribution of resources and appropriate value allocation will begin once the transition ends and there is political stability. They use transition to justify state failure in service delivery. But same 'transition' has not prevented them from increasing the facilities for themselves. Politicians specially ministers and members of parliaments have quite often increased their salaries, allowances and other benefits for them. While doing so, they forget the ongoing "transition." Common people and intellectuals alike should not keep quiet and allow them to rule indefinitely without much accountability in the name of transition. Even amidst transition, many things can be done to make lives of people easier and better.

Scholars see a strong linkage between peace and stability. Lok Raj Baral considers stability as one of the prerequisite for a peace (Baral, 2016). That is why this is now time to argue before international community and within Nepal that Nepal has overcome political transition, and it is high time for political actors to form consensus to start addressing social, economic, educational and health service related issues of the commoners. Only the improved delivery system in these sectors will contribute to peace and political stability in the long run.

Notes

- 1 I acknowledge the contribution made by Shiva Prasad Tiwari in prepration of this article.
- 2 Following the merger of Communist Party of Nepal-Maoist (CPN-M) with the Communist Party of Nepal — Unity Centre (Masal) on 13 January 2009, the party was renamed the Unified Communist Party of Nepal-Maoist (UCPN-Maoist). That is why the article this points onwards uses the new name UCPN-Maoist to refer the party. {Note: When diverse Maoist parties and factions got united with the UCPN (Maoist) on May 9, 2016, they announced the formation of a new party called Nepal Communist Party (Maoist Center)}.
- 3 The type of weapons registered so far are 91 mortars (of which 55 were locally made), 61 machine guns, 2,403 rifles, 61 automatic weapons, 9 sub-automatic guns, 114 side arms, 212 shot guns, 253 miscellaneous and 244 home-made weapons.

References

- Carothers, T. (2002). The End of Transition Paradigm. *Journal of Democracy*
Retrieved from <http://www.journalofdemocracy.org/articles-files/gratis/Carothers-13-1.pdf>,

- Dahal, Dev. Raj., (2003). Conflict Resolution: A Note on Some Contending Approach in Ananda P. Shrestha and Hari Uprety (eds.), *Conflict Resolution & Governance in Nepal*. Kathmandu: NEFAS.
- Diamond, Larry et al. (2014), "Reconsidering the Transition Paradigm. *Journal of Democracy*. Retrieved from <http://www.journalofdemocracy.org/sites/default/files/Reconsidering%20the%20Transition%20Paradigm-25-1.pdf>,
- Galtung, Johan. (2003). Peace by Peaceful Means. Oslo: PRIO, 1996 p.89 cited in Dev Raj Dahal. "Conflict Resolution: A Note on Some Contending Approach" in Ananda P. Shrestha and Hari Uprety (eds.), *Conflict Resolution & Governance in Nepal*. Kathmandu: NEFAS.
- Gans-Morse, Jordan. (2004). *Searching for Transitologists : Contemporary Themes of Post-Communist Transitions and Myth of Dominant Paradigm*. Retrieved from <http://faculty.wcas.northwestern.edu/~jlg562/documents/Gans-Morse--PSA.pdf>,
- Kovacs, S. Mimmi., (2007). *From Rebellion to Politics*. Sweden: Uppsala University.
- Louis. (1999). Conflict: Social. In Adam Kuper and Jessica Kuper (eds.) *The Social Science Encyclopedia*. London: Routledge.
- Maoist leader files complaints against former king, ex-prime ministers. (2016, June 12). *Setopati*. Retrieved from : <http://setopati.net/politics/14717/>
- Nifosi, Ingrid. (2004/2005). *A New Conceptual Framework for Political Transition : A Case Study on Rwanda*.
- Petrov, Kristian. (n.d.).The Concept of Transition in Transition. Retrieved from <http://balticworlds.com/wp-content/uploads/2014/04/BW-Transitology-1-2014.pdf>
- Pyakurel, U.P.(2013). Changing Patterns of Nepali Ethnic Movement and Consequences. In V.R. Raghavan (ed.) *Internal Conflicts: A Four State Analysis (India, Nepal, Sri Lanka, Myanmar)*. New Delhi: Vij Books India Pvt.Ltd.
- Pyakurel, Uddhab.(2015) .Maoist Insurgency and Peace Process in Nepal: Integration (of the Maoist Combatants) and the Divide within the Maoist Party In D. Suba Chandran and P. Chari (eds.). *Armed Conflict, Peace Audit and Early Warning 2014: Stability and Instability in South Asia*. New Delhi: Sage Publication.
- Pyakurel, Uddhab Pd. (2013.) A Socio-Political Analysis of Nepal's Constitution-Making Process. *Peaceworks*, 3(1).9-26.
- Pyakurel, Uddhab. Pd, and Adhikari Indra, (2013), *State of Conflict and Democratic Movement in Nepal*. New Delhi: Vij Books India Pvt. Ltd.
- Stradiotto, Gary A. and Sujian Guo. (2010). *Transitional Modes of Democratization and Democratic Outcome*. Retrieved from http://online.sfsu.edu/sguo/My%20articles/Democratic%20transition_proofs_IJWP.pdf



Devendra Raj Pandey

Civil Society Leader

How do you look back to the days when peace process happened?

As a matter of fact, people looked at the peace process from different angles. Each had their own understanding about it. But as far as my observation is concerned, I remember the days when I was active meeting Prachanda in Delhi and leaders like Girija Prasad Koirala and others back at home in 2005. Then I had only one thing in my mind: peace and democracy.

People were tired of Maoist violence. The country had had enough of it. The war had to end and if it had to end, we had to respond to some of the legitimate demands of warring Maoist party. After all, the Maoist had not been demanding anything impossible. They were asking for Constituent Assembly, which was the demand of the people since 1950. But the Seven Party Alliance was vehemently opposed to it without really knowing why. The two sides were trapped in their own little cocoon. They had to be brought to the common ground. People were tired of bloodshed. So the Maoist had to be brought to the political process. It was this spirit which guided us to work for peace process. Then the 12-point pact happened and the rest is history. However, the spirit with which the whole process started to melt down in the course of time.

Why so? Will you elaborate on it?

The other interest groups including the external powers had something else in their mind right from the beginning. The SPA had emerged because then King Gyanendra was pushing the parliamentary parties to the wall one after other. Earlier there were only about five parties protesting against the King at Ratna Park and Bhotahity. But when the King started to tighten his grip over the parties, they got united.

The SPA had a reason to go into the peace process mainly because they wanted to get back the power in their hands from Gyanendra's hands. Maoists were also trying to find a way out. They were negotiating with Gyanendra, Dhirendra and other actors secretly. Maoists were looking for a way out, while SPA also needed Maoist support to fight the king. They were clearly decidedly determined to leave the battlefield and to come to some kind of compromise. Thus the peace process is the marriage of convenience of these two parties. People of

Nepal supported the cause only for peace. But for politically aware people like us, peace was not enough. The country also needed inclusive democracy, social justice and equality. This could be done only through the constitution brought through Constituent Assembly. This is why Citizen's Movement for Democracy and Peace also pushed this cause.

What do you think were the interests of the external powers?

Their basic interest was demobilization of Maoist army. They wanted to make Maoist party like other mainstream party. We used to say: Maoists have to change but not to become UML. The idea of change and transformation had to be taken forward. But this is not something that external powers were interested in. They were interested to see how the integration of Maoist army into Nepal Army would take place. I cannot tell if this was their real objective but they were seeking as minimal role for PLA in Nepal Army as possible. In this process, Maoists got more humiliated. After first CA election, the party itself broke into several factions. One misstep led to another.

But many think that Nepal's peace process is an example of success.

Peace process did not just mean integration of PLA into Nepal Army or bringing the constitution through CA. Our constitution continues to be debated. One goal of the peace process was to give birth to the constitution that addresses the concerns of all communities. Has it happened? Other agenda was democratization of Nepal Army. Did that happen? If the whole objective was to make the Maoist party like one of those parties, the process has become successful. Maoists have become like other parties—regular mainstream political parties that exist for a purpose other than what is stated as a purpose. But if the objective was to create a new vision of Nepal where everybody has a stake, where prosperity does not remain a dream, I must say the peace process is in limbo. It has not moved forward. A potential force (Maoist) was changed or co-opted, if you like, into the process of status quo in the name of peace process. Today there is no political force that we can call the harbinger of change. Peace process had to bring the fundamental change in the society through meaningful process of state restructuring. This has not happened.

What will be its repercussions?

The consequences are there in front of us. Lack of accountability. State of anarchy. If this state continues politics and development will slowly slip out of our hands. What can be worse for a country than this situation?



Mohan Baidya 'Kiran'

Chairperson, CPN-Maoist

How do you evaluate ten years of peace process?

The last decade marked the end of People's War that Maoists had waged for the socio-economic transformation of the country. But the peace process did not start the way it should have. I do not mean to say the peace process should not have happened. We were never opposed to peace per se. But then it was taken to the end in such way, it did not address the aspirations of Nepali people and Maoist fighters. Peace process has come thus far, but the problems of the martyrs' families and those disappeared during the war have not been addressed. The Truth and Reconciliation Commission was formed very late, against the spirit of the peace process. This has also complicated the problems. In a nutshell, there are many things which have not happened as per the wishes of the people.

What led the major political forces to come together on peace process? What triggered the process?

It would not be right to say the major forces came together on peace process. Yes, they came together for 12-point understanding. Peace process is a different thing. There were a lot of differences even within the Maoist party regarding peace process. Those differences could not come out in public in the right time.

What was your role in peace process, in particular?

When the peace process started I was in India's jail. When I was released and returned to the country, it took me time to understand the whole issue. When I understood, I knew that it was evolving in a wrong way. So I advocated for PLA integration in a dignified way. I advocated that army integration and constitution writing should go hand in hand. Even our party had taken that decision. But it was not implemented.

Number of peace talks were held but they would be broken down soon. Why?

Yes, talks were held but they were not meaningful. Such talks seemed to be directed towards only engaging us rather than solving the problems. Perhaps we

also failed to play important role. But mainly, the governments of the day were not interested to address our demands.

To what degree was the palace involved?

The palace was never positive about us. This was natural. As a matter fact, the palace was the root of the problems. But every actor seeks their position in history. That's a different matter. The palace had played no positive role to bring Maoists into peace process.

What were the points of contact between Seven Parties and the Maoists?

We had varied sources of contacts. The leaders of the seven parties were all known to us. We in the party would designate certain leaders to be in touch with the SPA leaders. And they would establish contact with them secretly. We would contact on the phone and also meet each other personally.

What was India's role?

I believe India took it as a chance to consolidate its penetration in Nepal. It used the peace process as an alibi to establish its dominance in Nepal.

India role is raised with suspicion because 12-point deal had not been happened in Nepal.

There must be several reasons behind this. I cannot tell you what because back then I was still in jail. I had heard that the 12-point deal would be concluded within our base area. Leaders from UML party had come there too. But it was later reported than Congress leader Girija Prasad Koirala wanted to make it in Delhi. Perhaps this is the reason.

What about the 9/11 event? Had not that forced the Maoists to come to peaceful politics?

That incident of the US had nothing to do with our struggle in Nepal. It would not affect our struggle either. I think Maoist leadership made that event a good excuse.

How do you see the functioning of TRC and CIEDP?

TRC and CIEDP have only just started their work. Therefore, it is too early to say how they will work. All that we want to say to transitional justice bodies is that they should work in positive manner. It all depends on what is their intention to what end are these bodies being used.

Do you think this peace process will end conflict for good?

Whether the conflict will end or not should be analyzed in the context of what led to conflict. New People's Revolt had started in Nepal to address the issues of nationality, janatantra (people's rule) and to solve people's livelihood issues for good. These issues do not seem to have made a qualitative progress even ten years after the peace process. Yes, republic, federalism, secularism and proportional inclusion have been enshrined in the constitution. However, the goal of new people's rule, janabadi satta, for which we raised arms in 1996 has not been met yet. In other words, people's power and people's rule have not been established. The objectives of people's war have not been fulfilled. Thus you cannot say the conflict has come to a complete end. Problems remain and as long as they do, seeds of conflict will also remain.

What do you think are the main problems of peace process?

Though a number of issues had been sorted out among Maoist and seven parties, the key stakeholders of peace process, there were other issues that were yet to be resolved. Differences had emerged even within the Maoist party which finally led to the party split. The root of the split was the flaw in peace process. Today, the key stakeholder of the peace process (we Maoists) is not in the current political process. The concerns of all forces should have been accommodated during the constitution process. This could not happen.



Implementation of Comprehensive Peace Agreement: A retrospective from Human Rights and Gender Aspect

Mohna Ansari

CPA: A Comprehensive Agreement for Peace

When then Prime Minister of Nepal Girija Prasad Koirala and Chairman of the Communist Party of Nepal (CPN-Maoist) signed the Comprehensive Peace Agreement (CPA) on 21 November 2006 in ceremony witnessed by national and international dignitaries, no one imagined that road to the peace and reconciliation as embedded into the accord was going to be such long and bumpy. A jubilant atmosphere to see formal end of the devastating armed conflict which claimed lives of several thousand, and a wishful dream of Nepal transforming into a republic, federal, secular and inclusive state to end all type of discrimination and inequalities was overwhelming among Nepalis. The CPA had in the preamble expressed commitment towards the Universal Declaration of Human Rights (UDHR) and to the basic principles and values of the human rights. Furthermore, the CPA included a specific provision on the Compliance to Human Rights, Fundamental Rights and Humanitarian Laws and a clear commitment to the protection of rights of women and children, preventing use of children aged 18 or below into armed forces. In practice, it took three years to formally discharge the child soldiers verified as minors by the United Nations Mission in Nepal (UNMIN), from the Maoist cantonments.

Management of Maoist army combatants was one of the major issues in the peace process. A politically agreed and orderly managed integration and rehabilitation of the combatants was essential to ensure lasting peace. However, end of consensus politics soon after election of the Constituent Assembly (CA) jeopardized the consensual spirit of the peace process and brought unexpected complexities to its implementation. The combatants' management issue dominated the political dynamics between the parties for years to come while they were compelled to live in the cantonments for exceptionally prolonged period.

People were badly affected by the armed conflict in many ways. Thousands were killed, tortured or forcefully disappeared. Women were sexually assaulted and widowed. Children were separated from families and made orphan. There was a dire need of immediate relief and support for conflict affected people. The government and many nongovernment organizations implemented relief and support programs for the conflict victims. The programs included financial assistance, scholarship, training and education, health and psychosocial counseling and livelihood support. Thousands of the conflict victims including the families of the deceased and the internally displaced received interim assistance. There were several shortcomings reported in these programs, yet they contributed in psychosocial healing of the conflict affected population and also in normalizing the situation in a post conflict society.

Investigation of the incidents of serious human rights violation during the conflict and making the perpetrators accountable is still awaited after ten long years of the signing of CPA. The Truth and Reconciliation (TRC) and the Commission of Investigation on Enforced Disappeared Persons (CIEDP) were constituted in 2015 after several hitches and pressure from the domestic and international stakeholders. These commissions face a widespread criticism for not complying with the international laws. Moreover, the government hasn't acted upon amending the domestic laws which are necessary for these commissions to accomplish their tasks. Erstwhile ruling coalition of UML and Maoist disclosed a nine-point agreement which undermines the Supreme Court decisions on the transitional justice and also adversely affects works of these commissions. The agreement raised critical opposition from the media and human rights institutions including United Nations Office of High Commissioner for Human Rights (UNOHCHR). This wasn't the first time though in Nepal's peace process when the political parties attempted to compromise the human right principles for their political interest.

The armed conflict was frightening and harmful for everyone who was affected directly or indirectly. But it was much more disastrous for women, who were one of the most vulnerable groups during the brutal conflict. Women were victimized by sex and gender-based violence both by Maoists as well as the security forces. However, very few individual incidents of sexual violence were reported. Weak social status of Nepali women combined with social stigma attached to sexual assault and fear of retaliation prevented women from reporting these crimes during and after the conflict. Unfortunately, the peace process has largely overlooked the gender perspectives despite clear commitments in CPA, Interim Constitution and international forums. Women were sidelined in the peace

negotiations and reduced to mere relief recipients, that too for the loss of their husbands, not for their own sexual assault. The government programs didn't consider victims of sexual violence and torture eligible for interim relief.

Political background

Nepal, once regarded as a peaceful Himalayan kingdom, has experienced unprecedented political and social changes and, security challenges in a relatively short span of time. In 1996, CPN Maoist led an armed struggle aimed to overthrow the parliamentary democracy under a constitutional monarch and to establish a communist rule. The multiparty parliamentary democracy was restored just five years before following a popular uprising which scrapped the thirty years old party-less Panchayat regime and reduced the executive monarch to constitutional one in 1990. In a semi-feudal Nepali society, the country's resources and the state powers were monopolized by the political elites represented by the so-called upper caste hill people. Deep rooted discriminatory practices based on caste, ethnicity, language, gender and social groups created a sense of alienation in a large number of populations. Imbalance in the regional development and economic inequalities created widespread frustration. Expectations were high from the restored democracy, and the government's response was either slow or not adequate to affect a substantive change into people's lives.

In this context, the CPN-Maoist started its armed revolution, popularly known as People's War, from a small village of Rolpa, a district in the western region of Nepal mostly resided by the Magars, an ethnic group which would form a core force of the Maoist's People's Liberation Army (PLA) in the days to come. The 10 years long armed insurgency brought such level of violence and atrocities both from the rebels and the state forces which Nepali society had never experienced before. According to the Ministry of Peace and Reconstruction, 17265 people were killed during the armed conflict, more than 1300 people were disappeared and over a hundred thousand people were internally displaced. According to UNICEF, about 8000 children were made orphan by the conflict (UNICEF, 2010). Forced disappearance, torture, rape, maiming, extra judicial killing and unlawful detention was widespread throughout the conflict era. A majority of victims were civilians who didn't take active part in the war. Women and children were victims of revenge and often suffered inhuman treatment from the warring parties. Story of a 15-year old girl, Maina Sunuwar, sent shockwave around the world she was brutally tortured to death in an army barracks on the alleged links with the Maoists. The rebels continued gaining strength and resisting security operations and large areas were brought under their control where they practiced

“people’s rule”. Children were recruited in the Maoist militia as fighters and helpers. The government forces were also reported to be using children as spies.

Following a failed peace talk with the Maoists, the government imposed national state of emergency on 26 November 2001 and mobilized Royal Nepal Army to disarm the rebels. At the same time, the Terrorist and Destructive Activities (Control and Punishment) Ordinance (TADO) was also promulgated which gave excessive powers to the security forces to search, arrest and detention. The fighting was intensified and hundreds were killed in the following months. The TADO was adopted by the parliament in 2002. Another peace talks and truce was unsuccessful in August 2003. Finally on 4 October 2005 King Gyanendra sacked the government and took reign of the country in his hands which became a turning point in Nepali politics.

Beginning of the peace process

King Gyanendra’s move to assume the executive powers created conditions for the mainstream parliamentary parties and the rebel Maoists to join hands against the autocratic rule of the king. The famous 12-point agreement between the Seven Party Alliance (SPA) led by Girija Prasad Koirala and Prachanda, Chair of CPN-M and supreme commander of PLA marked the beginning of the peace process and paved way for a people’s uprising, popularly known as People’s Movement II. King Gyanendra was compelled to reinstate the parliament and surrender the powers. Maoists declared a truce and engaged in the formal peace negotiations with the interim government led by Koirala. The government and the Maoists separately wrote to the United Nations Secretary General seeking international assistance in the peace process. Eventually, the CPA was signed formally ending the armed conflict and allowing the rebels to join open politics and pursue their goals through peaceful means. Subsequently Interim Constitution was drafted and an interim legislative parliament was constituted to include Maoists. In January 2007, the UN Security Council deployed a special political mission to support in the peace process including monitoring of the ceasefire arrangements and the agreement on the management of the arms and armies as well as technical assistance to Constituent Assembly (CA) elections.

Management of a peace process and political transition in a post conflict country is always a challenging task. Nepal’s peace process gave high expectations to the conflict affected people and general population. It envisaged a full course of national transformation from abolishing the 240 years old monarch to embracing

secularism and restructuring the state from unitary to federal structure. The future aspirations included to end all forms of discrimination and exclusion of the marginalized social and ethnic groups, women and geographically remote areas. However, the following years exposed a mismatch in the promises made and capacities of the political leaders to deliver. The decade-long Maoist movement combined with many other factors had contributed to the awareness raising of many socially excluded and historically marginalized groups such as Dalit, Tharu, Madheshi, Muslim, hill indigenous communities and women. Having been suppressed under one national identity politics imposed by the ruling elites in past, the disadvantaged groups wanted to see identity recognition, language rights, inclusion and proportional representation and a fair share in state powers. This gave rise to the identity and regional politics threatening the establishment of the ruling class which was uncomfortable with the changes. The armed groups emerged, mainly in the southern plains reflecting new peace and security challenges. The CA election was delayed for about a year from the expected schedule.

In 2008, a strong protest known as ‘Madhesh Movement’ forced the government to sign eight point agreement with Madheshis, a social/ethnic group residing in southern plains, who wanted the southern plains to be declared as Madhesh state in the federal structure. The first CA election took place in April 2008 and the Maoists emerged as the largest party, yet not having majority to form a government on its own without an alliance. This was the end of consensus politics in Nepal which, in the following years, impacted the peace process and also issues of national interest. The first elected CA failed to produce a constitution in four years and the second CA was elected in November 2013. The new constitution was promulgated on 20 September 2015 with nearly absolute majority of CA members but the dissatisfied ethnic groups and political parties launched strong protests opposing provisions of the constitution and over 50 people including security personnel were killed in the clashes between the protestors and the security forces. Various human rights groups observed excessive use of force by the security forces in containing the demonstrations.

In 10 years of CPA implementation, Nepal has had 9 governments. These years were marked by the political bargaining for power sharing, shifting alliance and re-alliances to make or topple a government, dozens of multiple-point agreements and gentle (verbal) consensuses which were rarely implemented and, a growing culture of neglecting human rights, women’s rights, justice and reconciliation in exchange of political advantages.

CPA Implementation: Nepal's unique experience

The CPA encompassed the key components which are normally considered essential for the transformation of conflict, from relief and rehabilitation support to the conflict affected population to addressing the conflict related offenses and to address the structural causes of the conflict to ensure long lasting peace. The document laid down a basic framework for country's political transition and provides justice to the victims of conflict. However, it lacked two major aspect; a well-conceived mechanism to oversee implementation of the agreement and, the organized monitoring arrangements of the implementation. The National Peace and Rehabilitation Commission envisaged in the accord was never materialized. Instead a new ministry for peace and reconstruction was created within the government to take lead on the peace process implementation.

Generally peace process is a complex process and success is based on the broad consensus, national commitment, willingness and involvement of the actors, participation of the affected communities as well as international support to the process. This article will focus on three main areas of peace process including integration and rehabilitation of the Maoist army combatants, relief and rehabilitation of the conflict affected people and, transitional justice for accountability of the crimes committed during the conflict both by the Maoists and the state forces.

Integration and rehabilitation of Maoist army combatants: Situation of female combatants

While Maoists and Nepal Army largely maintained the ceasefire and provisions and the Agreement on the Monitoring of the Management of Arms and Armies (AMMAA) throughout, management of the combatants was central to the implementation of the peace process and, one of the most contentious issues and bargaining chips for years.

“Women in armed conflicts may be both victim and agent of change though they often have no choice in these matters” (Afshar, 2003b). This statement is fully true in Nepal's context. Nepali women have been deeply affected by the conflict. They were not only subject of sexual violence both by the Maoist and the state forces, but also suffered forced recruitment, lost their husbands and family members and were displaced from their homes. At the same time, women's participation in the political, cultural and military structures of the Maoist movement was unparalleled in Nepal's history. To quote from Maria

Villellas's paper titled "Nepal: A Gender view of the armed conflict and the peace process" : "Nepal's armed conflict was deeply gendered, not only in its consequences, but also involving its origin, the ideologies underlying it and the discourse around it, both by the confronting parties and in the analyses carried out in politics and in academic research" (Arino, 2008). Among the 19602 Maoist army combatants verified by the UNMIN, 3846 were women making 20 percent of the PLA strength, majority of them being from socially excluded groups. At the same time, Nepal army was reported to have two percent of women.

Both Interim Constitution (2007) and CPA had mentioned that supervision, integration and rehabilitation of the combatants would be done by a Special Committee constituted by the government. The Maoist combatants were kept into seven main and 21 satellite cantonments established throughout Nepal. Management of the cantonments and allowance of the verified combatants was borne by the government from 2007 until integration of 1422 combatants into national army after six years of cantonment life. According to the Ministry of Peace and Reconstruction (MoPR) website, nearly NPR 20 billion was spent in the cantonment management. The critical aspects of the integration and rehabilitation included supervision and control of the combatants, modality and ranks for the integration of the fighters into security forces and, nature of the rehabilitation packages. Maoist's expectation to integrate large number of combatants into Nepal Army was resisted by major political parties which prolonged the negotiations.

In addition to regular PLA members, 2973 combatants were verified as minors and 1035 as late recruits both commonly referred as "disqualified combatants" or verified minors and late recruits (VMLRs). One third of the verified minors were girls. Ideally this group should have been demobilized and reintegrated into society soon after the verification concluded. The CPA's article 7.6.1 outlines that both parties agree not to recruit or use children of 18 years and below into armed forces and, the affected children will be urgently rescued and rehabilitated. It took three years to sign a Joint Action Plan between MoPR and the Maoist commanders in presence of Special Representative of the Secretary-General for Children and Armed Conflict Radhika Coomaraswamy, which made possible to officially discharge the disqualified combatants from the cantonment in early 2010.

The discharged former combatants were offered vocational and education training designed by the UNICEF, UNDP and UNFPA to rehabilitate into a normal civilian life. According to UNDP public information, 56 percent of

the 4,008 VMLRs enrolled in various programme and 81 percent of the total enrolled had completed training or education program by the end of December 2013. UNDP boasts that gender specific needs of the former girls and women combatants were responded in accordance with the provisions of UN Security Council Resolution 1325 (2000) on Women, Peace and Security and the UN Convention on the Elimination of all forms of Discrimination Against Women (CEDAW 1979). However, reports and case studies suggest former combatants especially females, facing various challenges to integrate themselves into society. An effective rehabilitation should include substantive gender approach, which was overlooked in Nepal for various reasons. Women combatants may face rejection in the society for their past association with the rebels, being involved or supporting the atrocity, breaking the gender norms, perceived impurity for being with men or inter-caste marriages. Among the 136 former female combatants interviewed by Saferworld in a study, 80 percent feared rejection from their families and communities based upon their changed gender role and community perception of female combatants as promiscuous and aggressive (Colekessian, 2009).

Among the regular PLA members, integration of 1422 combatants was concluded in 2013 and over 15000 took voluntary retirement with a cash package in a unique Nepali process of integration and rehabilitation of the former combatants. There was no program designed to support or make a follow up of the dispersing former combatants. Only about a hundred women chose to integrate into Nepal Army while majority of them returned to the same traditional patriarchal society which they had hoped to dismantle and replace with a new progressive society which respects equal rights of women. There is no sufficient information available on how these women combatants are integrating themselves into the families and the communities after voluntary retirement.

Spending long seven years in the cantonments, many female combatants were now married, had children and were accustomed in traditional gender role of taking care of household. Reportedly, many of them were encouraged by the male PLA members to prioritize cash package over the option of making a career in the army.

Concluding integration and rehabilitation of the combatants was counted as a major task accomplished under the CPA implementation. However, gender aspect of the process was largely overlooked, as was the case with applying international best practices in rehabilitating the former combatants. Not including more female combatants into Nepal Army can be viewed as a missed

opportunity to make the national army inclusive as well as honor the women's contribution in People's War.

No relief for survivors of sexual violence

The MoPR, supported by the international partners, led the activities to restore normalcy and to give a sense of relief to the people affected by the conflict. Many national and international nongovernmental organizations contributed into relief and rehabilitation initiatives. The CPA outlined a number of measures for normalization of the situation which included immediate relief to the conflict victims, creating environment for free movement and returning of the internally displaced people (IDP) as well as implement programs to promote peace. The MoPR worked in the districts through the Chief District Officers (CDO) and local representatives. Local Peace Committee's (LPC) were created to resolve, through dialogue, the issues affecting peace. Victims were registered and information was gathered on the conflict related cases such as displacement, loss of property, land capture, disability caused by conflict related incident, disappearance and, death.

The perceived enemies were killed, tortured or eliminated through forced disappearance. Their properties were vandalized. Women and children were punished with rape and other forms of sexual violence. Civilians were left with lasting impact on their physical, psychological, and socioeconomic wellbeing even after long years of the conflict. One of the difficulties in assessing the peace process in Nepal has been lack of reliable and consistent data related to the conflict especially on the sexual violence. In March 2011, the MoPR updated conflict related total death to be 17,265 and the number of disappeared person to be 1302. In 2010, National Human Rights Commission (NHRC) had received over 3000 complaints on the disappeared persons. At the same time, the Society of the Families of the Disappeared (SOFD) claims that there were about 5700 cases of conflict related disappearance in Nepal. According to MoPR official data, 78,675 people were internally displaced, 4305 were injured to disability, and 419 women were widowed and a total of 12657 private properties were damaged into conflict related incidents (Nepal Monitor, 2011, July 23). There was no attempt made from the government to record and document the conflict related sex and gender based violence which should be termed as a weak part of the peace process.

An interim Relief and Rehabilitation Program (IRRP) was started by the government with US\$ five million grants from the World Bank in 2008 to

provide quick financial and material support to those harmed by the conflict. The program was designed to provide various kinds of compensation and support to the families of the deceased, families of disappeared people, persons with conflict-related disability, internally displaced people and the ones whose property was damaged. Scholarships were provided to the children of deceased, disappeared and persons with permanent disability. According to a report, 95 percent of the deceased family by 2012 had received financial assistance¹. More than 30,000 victims and 80,000 internally displaced people were benefited by the IRRP program (Carranza, 2012).

The compensation programs provided some level of relief to the conflict victims, helping to recover from the pain and suffering. This also contributed in situation normalization. IDPs were resettled in their communities. Widows and affected children were assisted. However, the program failed to take in account the gender considerations and specific needs of the vulnerable groups due to shortcomings in administration and implementation of the relief delivery. The IRRP did not include the victims of torture and sexual violence. No adequate measures were taken to ensure that the money received by the widows of the deceased or disappeared persons will not be taken away by in-laws. At some point, the decision was made to exclude from the compensation the widows who were remarried. Findings in a research report highlighted that “government’s decision to distribute cash grants failed to take into account Nepal’s distinct gender roles and overlooked the particular needs of and difficulties faced by female victims, has facilitated abuse of the program by allowing in-laws and other relatives to demand the relief money from the women who received it” (Docherty, 2013).

Administration and implementation of the relief program was highly politicized, it was complex for the target groups and inaccessible to the poor people residing in remote areas, particularly the women who couldn’t travel to district headquarters on their own. Lengthy bureaucratic process and corrupt practices made it difficult for the vulnerable groups to receive the compensation easily. Those who had the political connections could receive the benefits faster. The program called ‘victim compensation’ focused and didn’t include broader aspects of the rehabilitation such as psychosocial support, assistance for sustainable livelihood as well as other important reparation elements. The financial packages were insufficient in scope and size to meet the need and expectation of the victims.

A well designed and implemented relief and rehabilitation program with adequate consideration of vulnerable groups is precursor for the successful peace process. Given the patriarchal nature of Nepali society and women's weak status, female victims should be at the center of the relief and reparation programs. The government and the donors should consider implementing long term rehabilitation and reparation programs supporting the conflict victims and the communities to ensure sustainable peace.

TRC and CIEDP: Politics of transitional justice

In December 2014, eight national and international human rights organizations jointly wrote to Prime Minister Sushil Koirala requesting him to incorporate specific concerns of women survivors, including survivors of sexual violence, who have been left out of government reparation programs, and who have been stopped from filing claims in court due to a 35-day statutory limitation, in the process of Truth and Reconciliation Commission and the Commission of Investigation on Enforced Disappeared Persons (CIEDP) formation. Further they called government attention to align the TRC Act in line with the international law and appoint commissioners in a transparent, fair and credible process (Human Rights Watch, 2014)

The Supreme Court of Nepal on 2 January 2014 ordered the government that the TRC process should prohibit amnesty for acts which are regarded as crimes under international law. The Commission of Investigation on Enforced Disappeared Persons, Truth and Reconciliation Act 2014 was passed by the Parliament on 25 April 2014 and in August 2014, the conflict victims filed a petition in court raising concerns on the several provisions of the bill such possibility of forced reconciliation without the consent of victims (Section 22), the discretion that vests with the Ministry of Peace and Reconstruction to act on the commissions' recommendation and seek prosecution of individual perpetrators through the Attorney General's Office (section 25 and section 29), and the amnesty powers that vest with the commission for a range of crimes (section 26).

Transitional Justice (TJ) has proven to be one of the most critical and politicized issues of Nepal's peace process while the conflict victims await justice in their life time before it's late. In the CPA which was annexed to the Interim Constitution 2007 as its integral part, both parties to the conflict agreed to establish a 'Truth and Reconciliation Commission' to probe those involved in gross human rights violation during the armed conflict. They also agreed to 'make public within 60 days of the signing of the agreement information of the people who 'disappeared'

or were killed during the conflict and convey such details to the family members'. However, formation of TRC and CIEDP was materialized after eight years and, that also with legal flaws putting its credibility and acceptance under question. On 26 February 2016, the United Nations Office of High Commissioner for Human Rights (UNOHCHR) issued a position paper declaring its inability to support the TRC and CIEDP commissions unless the laws and procedures of these are brought in compliance with Nepal's international legal obligations (OHCHR, 2016). Earlier in June 2014, the OHCHR had issued a note concluding that the provisions in the Act that give the commissions powers to recommend amnesties for gross violations of human rights and humanitarian laws failed to comply with Nepal's international legal obligations, and were inconsistent with the United Nations policy on amnesties (OHCHR, 2014).

There were all attempts since 2007 to undermine the transitional justice, delay the process and somehow introduce blanket amnesty for perpetrators of the gross human rights violations during the conflict era. It was only close watch and lobbying of the national and international human right workers, civil society and the victims of conflict which forced the political parties not to layoff the transitional justice discussions from the ongoing peace process. The Supreme Court played a vital role in guiding the government to respect international human rights and humanitarian laws. In February 2015, the Supreme Court annulled the provision in the Act which granted the TRC and CIEDP the discretionary power to recommend amnesties for those responsible for violations or abuses of human rights. The Court also "directed that victim's consent should be made mandatory for reconciliation". Earlier in March 2013, the government had attempted to establish, through ordinance, a TRC commission with powers to recommend amnesty which evoked criticism in and out of the country. The UNOHCHR urged the government to rectify the provisions which would contravene international standards and commented that, "such amnesties would not only violate core principles under international law but also weaken the foundation for a genuine and lasting peace in Nepal" (Pillay, 2013). The Supreme Court struck down the ordinance in February 2014.

The five members of the Truth and Reconciliation Commission, including two women were constituted on 10 February 2015 in accordance with the Enforced Disappearances Enquiry, Truth and Reconciliation Commission Act, 2014. As of July 2016, the Commission received 53016 complaints of the human rights violation during conflict period. Likewise, the Commission of Investigation on Enforced Disappeared Persons has received 2775 complaints. The complainants mentioned senior political leaders and government officials including the former

King Gyanendra Shah as perpetrators of human rights. The commissions are expected to accomplish the task within two years mandate which seems difficult to achieve. Apart from the political goodwill, the commissions would require adequate secretarial support and resources to handle the huge log of complaints and accomplish the task in remaining tenure. Meanwhile, the challenges remain in political willingness and support as well as the provision of necessary domestic laws to fulfill the objectives of the transitional justice.

The government has yet to act on the recommendations of the commissions to bring legislation to criminalize the torture, scrap the 35 days statutory limitation of filing charges for rape and criminalize the forced disappearance. The TRC commission submitted an eight-point proposal to amend laws to the government on 20 December 2015. The CIEDP has also written to the government seeking criminalization of the enforced disappearances, without which it couldn't carry out investigation and recommend any action against the perpetrators of enforced disappearances.

On 5 May 2016, a 9-point agreement was made public between the current government led by Prime Minister KP Oli and the United Communist Party of Nepal Maoist (UCPNM) chairman Prachanda in order to save the ruling coalition. The agreement drew a widespread criticism for having provisions to withdraw all wartime cases before the courts and to provide amnesty to the alleged perpetrators. The agreement became obsolete after the coalition collapsed in July and new coalition emerged to install Prachanda as new Prime Minister. However, it seriously mars the political parties' commitment towards fulfillment of the peace process agreements and providing justice to the conflict victims.

There is a need for victim-centric transitional justice in Nepal which has elements of truth, justice, reparation and guaranty of non-recurrence. Reconciliation should not be conceived as substitute of justice. Recognition of the victims and economic support for livelihood should be ensured. A robust, transparent and credible process in line with international human rights and humanitarian laws will increase acceptance of the transitional justice which is overdue. Adequate gender considerations should be given to the process in order to ensure that victims of sexual violence get justice and reparation. A Human Rights Watch report says:

The procedures adopted by the proposed Truth and Reconciliation Commission and any investigations and trials should be gender-sensitive and designed and adequately resourced to protect the privacy and dignity of survivors to minimize stigma and avoid re-traumatizing

them and their families. The government should also take special measures to encourage women to report these crimes. The reparation program for survivors of conflict-era sexual violence should address long-term health care, mental health services, and livelihood support (Cedillo, 2014).

CPA and human rights monitoring

During the armed conflict, both security forces and Maoist combatants frequently violated international human rights and humanitarian laws including unlawful killing, torture, and enforced disappearances. Women and girls were verbally, physically, and sexually assaulted by both sides in the conflict, although there were fewer accounts of sexual violence by Maoists. The scale and nature of the human rights violation was significantly increased after imposition of state of emergency and mobilization of Nepal Army in 2001 to suppress the People's War.

National Human Rights Commission of Nepal (NHRC) was established in the year 2000 as a statutory body under the Human Rights Commission Act 1997 (2053 BS) and upgraded to constitutional body by the Interim Constitution 2007. The NHRC established five regional offices and carried out human rights monitoring, protection and promotion activities during and post-conflict period. In addition, the UNOHCHR Nepal office was established in 2005 after King Gyanendra assumed powers and the battle was intensified between the Royal Nepal Army (RNA) and the People's Liberation Army (PLA). In the CPA provisions related to implementation and monitoring, both sides agreed to monitor the human rights provision of CPA by the OHCHR (9.1) and also the NHRC to carry out monitoring of the human rights as mentioned in the agreement (9.4) in addition to its regular human rights work. The NHRC has submitted total 738 recommendations, including the human rights incident of conflict era, to the government since its establishment in 2000. According to the NHRC report, only 14.3 percent of its recommendations have been implemented so far (NHRC, 2016). The UN OHCHR Nepal office was closed in March 2012 before end of the peace process, following refusal of the government to extend its mandate.

Peace process beyond CPA

The CPA was a well drafted document which includes multiple aspects of a peace process. Peace processes are the political processes in actual. Nepal's peace

process is much broader issue which requires continued political commitment, national ownership and sensitive approach towards national healing, justice and reconciliation. Apart from addressing the immediate consequences of the conflict, it requires a long term approach to address deep rooted causes of the conflict such as poverty and oppression, social exclusion, caste and ethnic based discrimination and, sex and gender based inequality as well as unemployment, impunity and absence of rule of law.

The CPA and the Interim Constitution laid down a framework for progressive transformation of the country to end all forms of discrimination against the socially excluded and marginalized groups, geographically disadvantaged regions and the women. However, activities of the major political parties didn't cultivate trust and confidence among these groups that their concerns would be addressed in the peace process. Regional, ethnic and political movements emerged soon after the beginning of CPA implementation, some of them being violent and giving rise to chaos. Rule of law was made weak and a culture of impunity was widespread due to politicization of violence and crime. Women continued suffering from the sex and gender-based violence. Impunity was so high that even the incidents of rape were dealt through all party mechanism, mediation and political negotiation at local level instead of applying rule of law. Armed groups emerged mostly in southern Terai but also in northern hills which brought new security challenges. Successive governments signed several dozens of agreements with various groups in these years but they were rarely followed. There is genuine need to engage the political and social groups for a meaningful dialogue instead of suspending voices of dissents.

Peace process and Madhesh movement

After eight years of efforts and two consecutive Constituent Assemblies, promulgation of the new constitution in 2015 should have been marked as one of the biggest achievements in Nepal's peace process. But the constitution left a section of Nepali population unhappy, especially the Madheshi, Tharu and indigenous groups, over the provisions regarding federal boundaries, citizenship, proportional representation and others. A second Madhesh uprising was seen and the month's long protests against the constitution killed more than 50 people including civilian and the security personnel in clashes between the demonstrators and the police. An economic blockade at the border points induced by the protestors caused acute supply shortage including the essential drugs for several months. Monitoring by the NHRC and others highlighted serious human rights violations by the protestors and the security forces. An Amnesty International

report released on 19 July 2016 said that members of Tharu community were subjected to arbitrary arrests, torture and other ill-treatment at the hands of the police in connection with the killings of eight security personnel and a child on 24 August 2015 in Tikapur, Kailali (Patel, 2016).

The government and the political leaders showed inefficiency to resolve the differences through peaceful dialogue and prevent violence. The unexceptionally prolonged protests and political deadlock not only added to the hardship of people who were already affected by repercussions of the conflict, especially those poorer segments of the society, but also had a propensity to disrupt social harmony and create another conflict. While a long-term political solution is desirable to address grievances of the Madheshi, Muslim, Tharu, Dalit and indigenous groups, there should not be delay in providing compensation to the deceased and injured persons, investigating the human rights abuses during the protests and making the violators accountable as preconditions to discourage culture of impunity.

Conclusion

Unfortunately, women were not the part of the peace talks at any period of the conflict and post conflict in Nepal which made the gender aspect weak and a neglected affair in the peace process. In the words of Ian Martin, head of UNMIN who said “at all the political negotiating tables I have seen in Nepal during the peace process, not once I have seen a woman at the table. So far in the peace process, decisions are being made by men for women” (as cited in Arino, 2008). One of the lessons learned from Nepal’s peace process is that gender considerations should be adequately incorporated into the process from conceptualizing to the implementation phase with clear monitoring benchmarks.

The 10 years implementation of the CPA shows that women’s wellbeing and gender equality has been overlooked in all parts, from relief and rehabilitation distribution to the army integration as well as the transitional justice processes. This is also ironical for a peace process which was expected to end the armed conflict which attracted big support from women for its promises to end structural gender disparities in Nepali society. The government, political parties, media, civil society and international community all of them missed the point that the peace process didn’t sufficiently address the specific issues of women who were the most vulnerable group during the conflict. Discrimination, including on the basis of gender, caste, class, ethnic origin and religion, persisted during the peace

process. Women from marginalized groups, including Dalits and impoverished women, continued to face hardships because of discrimination.

The peace process represent unique opportunities not only to put an end to the violence but also to achieve a far-reaching goal of transformation. Nepal's peace process in that sense is not an activity but an ongoing process which should include holistic and consensual approach to achieve a shared vision for country's transformation. A vision which was outlined in the Comprehensive Peace Agreement in absolute words: To "pursue a political system that fully complies with the universally accepted fundamental human rights, rule of law, social justice and equality and , to end discriminations based on class, ethnicity, language, gender, culture, religion and region and to address the problems of women, Dalit, indigenous people, ethnic minorities (Janajatis), Terai communities (Madheshis), oppressed, neglected and minority communities and the backward areas by deconstructing the unitary structure". Avoiding the problems will only lead the problems to persist. The government and the parties should look forward to building a peaceful, stable and progressive country by committing to the peace process and not wait for another conflict. It is not too late to adopt corrective measures to the ongoing peace process to make it women-friendly.

Note

- 1 According to a World Bank report, 14,101 families of the deceased of 14,800 eligible received payments by November 2012.

References

- Afshar, H. (2003b). Women and Wars: Some trajectories towards a feminist peace. *Development in Practice*, 13(3), 178-188 .
- Arino, M. V. (2008). *Nepal: a gender view of the armed conflict and the peace process*. Escola de cultura de pau.
- Carranza, R. (2012). *Relief, Reparations, and the Root Causes of Conflict in Nepal*. International Center for Transitional Justice.
- Cedillo, A. (2014). *Silenced and Forgotten: Survivors of Nepal's Conflict-Era Sexual Violence*. Human Rights Watch.
- Colekessian, A. (2009). *Reintegrating Gender: A Gendered Analysis of the Nepali Rehabilitation Process*. Santo Domingo: UN-INSTRAW.
- Docherty, B. (2013). *Assistance Overdue: Ongoing Needs of Civilian Victims of Nepal's Armed Conflict*. USA: IHRC.
- Nepal: *Joint Letter Regarding Formation of the Truth and Reconciliation Commission and the*

- Commission on Enforced Disappearances*. (2014, December 18). Retrieved from [www.hrw.org: https://www.hrw.org/news/2014/12/18/nepal-joint-letter-regarding-formation-truth-and-reconciliation-commission-and](https://www.hrw.org/news/2014/12/18/nepal-joint-letter-regarding-formation-truth-and-reconciliation-commission-and)
- Nepal: OHCHR *position on UN support to the Commission on Investigation of Disappeared Persons and the Truth and Reconciliation Commission*. (2016, February 16). Retrieved from [www.ohchr.org: http://www.ohchr.org/Documents/Countries/NP/Nepal_UN%20osition_supportTRC_COIDP_Feb2016.pdf](http://www.ohchr.org/Documents/Countries/NP/Nepal_UN%20osition_supportTRC_COIDP_Feb2016.pdf)
- NHRC. (2016, June-July). *Nepal Study Report*. Retrieved from [www.nhrcnepal.org: http://www.nhrcnepal.org/nhrc_new/doc/newsletter/NHRC_Nepal_Study_Report_NHRC_Recommendations_victim_status_Nep.pdf](http://www.nhrcnepal.org/nhrc_new/doc/newsletter/NHRC_Nepal_Study_Report_NHRC_Recommendations_victim_status_Nep.pdf)
- OHCHR Technical Note : *The Nepal Act on the Commission on Investigation of Disappeared Persons, Truth and Reconciliation, 2071 (2014)*. (2014, May 21). Retrieved from [www.ohchr.org: http://www.ohchr.org/Documents/Countries/NP/OHCHR_Technical_Note_Nepal_CIDP_TRC_Act2014.pdf](http://www.ohchr.org/Documents/Countries/NP/OHCHR_Technical_Note_Nepal_CIDP_TRC_Act2014.pdf)
- Patel, C. (2016, July 19). *Nepal: Investigate police torture of Tharu community members*. Retrieved from [www.amnesty.org: https://www.amnesty.org/en/latest/news/2016/07/nepal-torture-of-tharu-community/](https://www.amnesty.org/en/latest/news/2016/07/nepal-torture-of-tharu-community/)
- Pillay, N. (2013, March 20). *United Nations High Commissioner for Human Rights*. Retrieved from [www.ohchr.org: http://www.ohchr.org/en/NewsEvents/Pages/DisplayNews.aspx?NewsID=13163&LangID=E](http://www.ohchr.org/en/NewsEvents/Pages/DisplayNews.aspx?NewsID=13163&LangID=E)
- Recording Nepal Conflict: Victims in Numbers. (2011, July 23). *Nepal Monitor*. Kathmandu.
- UNICEF. (2010). *Child Povert and Disparities in Nepal: Nepal Report*. Kathmandu: UNICEF.



Transitional justice after Nepal's CPA: Victim's perspective

Ram Kumar Bhandari

Introduction

Ten years after the 2006 Comprehensive Peace Agreement (CPA), Nepal's political parties have failed to bring stability in the country. Despite the promulgation of a new constitution in 2015, major pieces of the fragile peace process are yet to be settled, including justice for victims of human rights violations of over 1,500 people who disappeared during the conflict, and reintegration of ex-combatants into society. In addition, Nepal's peace-process continues to be undermined by country's deeply entrenched system of impunity, corruption and nepotism. In the absence of community ownership and grass-roots access to any meaningful participation in the peace process, parts of Nepal may experience an increase in orchestrated community violence, as indicated by the recurrent radicalization of ethnic movements and the splitting of political parties.

Against this backdrop, Nepal's conflict victims, who mostly live in rural communities with limited economic means and little or no educational background, continue to be ignored by the state agencies. Needs and demands of the victims are mostly excluded from the agenda of the political elites in Kathmandu. No conclusive formal transitional justice processes have been implemented so far. The betrayal of political leaders and the state's denial to recognize victims' rights is related to the potential threat of renewed violence that may further unravel the peace process. Surveys show that in the absence of any meaningful non-violent alternatives and only limited access to participation in the political process, politically isolated conflict victims and traditionally marginalized groups are particularly prone to turn to violence as a means of self-empowerment (Bhandari, 2012). The questions, therefore, are:

- How useful can be the involvement of these groups in any future peace and reconciliation process if they continue to be kept largely voiceless, increasingly frustrated and ill-prepared for their future?

- How can the potential for renewed violence in those districts with a large population of conflict victims be reduced?

These questions link the transitional justice process to its ultimate goal of preventing the recurrence of violence.

In both, constitution making and the transitional justice process, one key stakeholder remains largely marginalized, and this is Nepal's victim groups. This group represents around 20,000 families across Nepal. Such victims groups at village and district levels have taken the step to organize non-violent struggles through a unified resistance, not aligned to any political party, and coordinate with other alliances fighting against injustices.

Cases of disappearance murder, and gross human rights violations were committed by both sides during Nepal's ten-year civil war (1996-2006). It is also the focus area of grassroots mobilization with a high proportion of poor, marginalized communities, indigenous Tharu people, Dalit and illiterate women. In the face of growing frustration over the lack of accessible transitional justice progress, it is essential to keep local conflict victim groups, ex-combatants and radical youth groups from returning to violence as a means to claim political participation.

The ongoing victims' movement, the radical Maoist resistance, the Madhes movement, disputes on federalism, religious and ethnic tensions along with systemic corruption have almost turned Nepal into a failed state. To make matters worse, the new constitution has failed to reflect the country's realities and real transformation agreed in the CPA in 2006. This document has instead laid the foundation for renewed conflict by failing to address the issue of structural violence, exclusion and poverty - primary reasons for the Maoist conflict.

The new constitution has deeply polarized society and this could lead to endless conflict. The political class believes that leftist violence has been relegated to history, but a radical faction of the Maoist party, led by Netra Bikram Chand, has publicly announced that the peace process has failed. The radical Maoist party has declared a 'Peoples' Constitution', 'Peoples Councils' and 'Peoples' Assembly' as a parallel administration and is reviving the 'People's Army', creating the possibility of a new rebellion, potentially alongside militant groups that are likely to emerge in the Madhes if the ongoing crisis is not addressed.

The CPA and commitment to transitional justice

In the preamble of the CPA, it states that “reiterating commitments to competitive multiparty democratic system, civil liberties, fundamental rights, human rights, complete press freedom and all other democratic norms and values including the concept of rule of law; Remaining committed to the Universal Declaration of Human Rights 1948, international humanitarian laws and the fundamental principles and basic principles and norms related to human rights; Keeping democracy, peace, prosperity, forward looking economic and social transformation as well as independence, integrity, sovereignty and dignity of the country at the centre..” However, the political parties and the government never fulfilled their committed agreement to resolve conflict and to transform the nation, respecting the rule of law and human rights (CPA, 2006).

Transitional justice, as an idea and a practice, first emerged from the mobilization of grassroots victim groups against Latin American authoritarian rulers. Transitional justice today is the terrain of human rights lawyers, international experts and NGOs. Although the internationalization of transitional justice has led to the spread of robust standards, it has also pushed victims out of the conversation by creating a political arena easily navigated by state and national elites who are well versed in the legalese of human rights work.

Since the beginning of the CPA, the voices of conflict victims were sidelined and hijacked by the state, various interest groups and political parties. Even today, the perpetrators continue to demand amnesty. Ten years after the CPA promised a robust transitional justice agenda, the prospects for independent, victim-centered truth and disappearances commissions are illusory. Victim’s movement in Nepal maintains a clear demand for a transitional justice process built around access to justice, economic support for families, and the truth about the fate of loved ones.

The situation of the victims of the conflict

This paper seeks to clarify the current need of victim-centred transitional justice means to settle war-time injustices. The paper aims to understand the current practice of transitional justice from a victim’s perspective and to recommend how a victim-centred transitional justice process might be articulated. Victims’ needs should be understood the way the victims understand their needs themselves.

The social impact of the conflict was extreme, with victims (especially families of the disappeared and rape victims) stigmatized in their families and communities. Families have long sought recognition of the incidents that occurred and recognition of themselves as victims, and demand a comprehensive reparation process to create an environment for reconciliation.

The organizations of victims and their networks represent the most effective way for victims to contribute to the transitional justice process. The primary challenge for those trying to advance a transitional justice agenda is to ensure that advocacy represents an agenda rooted in the experience of those who need truth, justice, livelihood support and sustained peace.

Several NGOs have documented cases of human rights violations during this period. The conflict left a legacy of some 15,000 dead (INSEC, 2007); 9,000 women who lost their husband (Relief and Rehabilitation Unit, 2010), 833 abducted, 4,305 injured (ibid) and more than 1,400 (ICRC, 2010) disappeared. The National Human Rights Commission of Nepal received more than 3,000 complaints regarding the disappeared during the armed conflict. The Relief and Rehabilitation Unit of the Ministry of Peace and Reconstruction has recorded 17,886 dead, and 1,530 disappeared.

While the primary victims were the victims of disappearances, extra-judicial killings, torture, rape, displacement and loss of property or damaged property, their families are also victims, a fact that is often overlooked. For a victim's children, parents or wife, the principle unit affected by the incident is the family. Victims' organizations are the representatives of victims, aiming to articulate their demands. They can bring all families with similar pain and experiences together and provide space to the families to develop mutual support and solidarity.

Victims are willing and able to participate in the transitional justice process. They have undertaken campaigns in all the 73 districts affected by the conflict, with the aim of bringing attention to the pain and suffering. Without active participation of the victims, the transitional justice process cannot guarantee a victim-centered approach. The challenge is to create such an environment where victims come together to participate in justice process.

Transitional Justice Mechanisms

The formal peace process has given rise to a range of measures that seek to institutionalize peace, including the establishment of a Ministry for Peace and Reconstruction (MoPR), integration of ex-Maoist combatants, and the creation of a Peace Trust Fund, to use donor support to strengthen peace. There has been no comprehensive reparations process. The Interim Relief Program (IRP) was implemented in 2008, and provided relief to over 100,000 victims, the majority of whom were displaced during the conflict. The IRP included significant payments to the families of those killed and disappeared.

Article 5.2.5 of the Comprehensive Peace Agreement paved a way to set up a Truth and Reconciliation Commission (TRC) and a Commission of Investigation on Enforced Disappeared Persons (CIEDP), within six months of the agreement. The commissions were finally formed in February 2015. The Supreme Court of Nepal annulled the amnesty provisions of TRC and CIEDP, and said that they are incompatible with the established principles of justice, constitutional provision, international law and the Supreme Court's earlier verdicts on victims' demands.

Conflict victims common platform on transitional justice

To gain strength and solidarity, frontline activists and organizations have formed collective campaign through organizations such as Conflict Victims Committee, Bardiya (CVC, 2006), Committee for Social Justice, Lamjung (CSJ, 2007), Conflict Victims Society for Justice (CVSJ, 2008), National Network of Families of Disappeared and Missing persons (NEFAD, 2009), Solidarity campaign for justice (SOCAJ, 2010), National Victims Alliance (NVA, 2013) and – most recently the Conflict Victims' Common Platform (CVCP, 2014). CVCP is now the umbrella organization of victims of the conflict and it has a strong focus on victim-centered approaches to transitional justice.

All these initiatives have given strength to the victims, and have produced leaders to advance the cause. When the victims agreed upon a common agenda of truth, justice, reparation and reconciliation, they have gained a national voice for truth, memory and justice.

Local campaigns and movements for victims' rights have empowered people and addressed their need for contact with others. Some of the psychosocial issues are actually addressed by the movement itself. For example, family members come and join the organization and share feelings with each other. This encourages

the victims' community to deepen solidarity and manage campaigns that can intervene in the whole political process.

There are various challenges faced by the members and their leaders. Some key challenges are mentioned here:

- The day-to-day livelihood and responsibilities of families, which result in the justice movement lacking cohesion and strength;
- There are often strong social stigma affecting women, such as wives' actions being viewed as the cause of their husbands' disappearance/or death;
- Lack of adequate technical and financial resources to properly document evidence and the memories of affected families;
- Lack of coordination between individuals and organizations working for the same cause;
- Division between victims and communities because of specific interests and lobbying by political parties.

The CVCP platform at this phase has succeeded in uniting various victim groups and in bringing together district representatives from both sides (the State and Maoist victims), for a common agenda. This is a progressive step to advance victims' struggle for justice and to represent a majority of conflict victims from across the country.

Transitional justice process: Nepal's failure

Many of alleged perpetrators now sit in senior positions of Nepal police. Other perpetrators have likewise risen to senior ranks in Nepal Army and in other political institutions. The withdrawal of crime related cases, promotion of alleged perpetrators, perpetuation of false narratives around the peace process and undermining the criminal justice system, disrespecting the Supreme Court verdict, the NHRC and the UNHRC recommendations have demonstrated that there is little hope for justice.

Nepal underwent its Universal Periodic Review (UPR) in November 2015 and March 2016 at the UN Human Rights Council, a ritual where states are held accountable for their record on human rights. During Nepal's session at the UPR, member states expressed serious concerns about the persistence of widespread impunity and the ineffectiveness of transitional justice mechanisms. Among the areas highlighted by the review were Nepal's failure to pursue accountability for crimes committed during the armed conflict, including failure to investigate and prosecute perpetrators of such crimes or to provide justice and reparation

to victims; the 35-day statute of limitations on reporting rape cases, and the excessive use of force by security forces during recent demonstrations in the aftermath of the new constitution.

Victim-centric approach to TRC

- The first and the most obvious expectation that victims have is implementation of the CPA and transitional justice measures. Truth-seeking requires active participation of individuals who wish to express their grievances and report on the facts and underlying causes of the violations and abuses occurred. Also, reparations will only be successful if victims and civil society are involved in designing the schemes, so the measures are commensurate to the harm inflicted and contribute to the recognition of the victim as primary rights holders.
- Second expectation is that reconciliation is not to be conceived as a substitute for justice. In many parts of the world, reconciliation has been used by members of predecessor regimes as a demand for victims to forgive and forget and, therefore, as a way of placing one more burden on the victims. This must not happen in Nepal in order to maintain long-term peace and reconciliation.
- Third expectation is recognition. The issue is linked to the long-term social exclusion that facilitated their victimhood. In this sense, reparations and victimhood in the conflict are inextricably linked to on-going political debates in Nepal about the role of minority communities and acknowledgment of histories of exclusion:

“Nobody asked about my everyday needs and family problems. The major challenge is to continue individual, family and social life. I have a little trust that these commission processes will address my needs and sufferings.” (personal communication, December 2015)

- Fourth expectation is to receive economic support to ensure livelihood, and addressing other immediate needs such as psychological, medical treatment and rehabilitation concerns. The victims of the conflict continue to emphasize socio-economic needs, associating them with justice. In the everyday lives of conflict victims, the meaning of justice relates to their psychological and material needs.

Lack of victim-centric approach

Both process and approach play a significant role in letting victims learn, act and represent themselves in developing and implementing their justice concerns. In Nepal, the victims have little or no role in this process.

Victim participation, representation and role as engaged participants must be defined and ensured in the overall process of policy drafting and implementation. The transitional justice process and the mechanisms (such as the two commissions, and a potential reparation scheme) through which their work “tend to be prescriptive and top-down: they are created by elites (often those who were themselves involved in the conflict that preceded the transition) and supported by an international community that is disconnected from the context on the ground and local practices” (Robins, 2011, p.75-98).

A flawed reconciliation

Political actors place strong emphasis on reconciliation between victims and perpetrators, without much consideration for victims’ needs. Reconciliation is not an event but an extremely personal and complex process. For example, without an acknowledgement of the crimes committed in the past, without addressing even the most basic needs of victims and without including them in the process of transition, victims are not likely to want to reconcile.

“If others make a decision for our destiny and prescribe us to forgive in the name of peace, we will go for revenge and not participate in such a the false reconciliation process.” (personal communication, December 2015)

Victims

Those who have lost sons and daughters demand a pension and health care, children who lost parents want educational support, as well as employment and social rehabilitation.

Women, especially victims of sexual violence, wives of the disappeared and widows in rural villages are suffering socially, economically, culturally and psychologically, and need special measures to address their need.

The hill Dalits, Dalits in the eastern Terai and indigenous Tharu women in the western Terai need special treatment, including linguistic support to even understand official TRC processes.

“As far as victims are concerned, the ultimate goal of transitional justice processes and interventions is not just to ‘heal’, compensate, and honor victims’ memories, but it is ultimately to contribute to the transformation of the political subjectivity of victims in ways that enable them to engage as active citizens, whose capacity to think, speak, act, and revolt is acknowledged and respected.” (Madlingozi, 2010)

Way forward

Despite various formal and informal initiatives, the situation of conflict victims has yet to be significantly transformed. Nepal’s transitional justice process continues to be led from Kathmandu with a reluctant government having other priorities, cajoled by national and international NGOs who have little contact with ordinary victims in rural areas. The agenda of civil society is one that comes from a global human rights discourse, emphasizing criminal accountability over all other approaches, despite the demonstrated breadth of priorities and needs of victims. Reparations have at last become an issue for NGOs but are only meaningful if they arise from an engagement with victims.

In the post-conflict environment, justice and reconciliation efforts remain fragmented and the grief of thousands of victims’ families is being held hostage to political interests and a narrow legalistic understanding of transitional justice. Victims and survivors of violations have not been effectively re-integrated in their respective societies. A Strong political commitment is needed for honest implementation of the CPA and related political agreements to transform both conflict and society for sustained peace.

References

- Carranza, Ruben. (2012). *Relief, Reparations, and the Root Causes of Conflict in Nepal*. Kathmandu: ICTJ.
- Fajardo, Carla and Farasat, Warisha. (2008). *Nepali Voices: Perceptions on Truth, Justice, Reconciliation, Reparations and the Transitional Process in Nepal*. Kathmandu: ICTJ and Advocacy Forum.
- Hayner, P.B. (2001). *Unspeakable Truths: Confronting State Terror and Atrocities*. London: Routledge.
- ICTJ. (2013). *Beyond Belief: Addressing the Rights and Needs of Nepal’s Wives of the Disappeared*. New York : ICTJ.
- IHRC. (2013). *Assistance Overdue: Ongoing Needs of Civilian Victims of Nepal’s Armed Conflict*. USA: IHRC and CIVIC.
- Madlingozi, Tshepo. (2010). On Transitional Justice Entrepreneurs and the Production of Victims. *Journal of Human Rights Practice*, 2 (2), 208-228.

- McEvoy, Kieron, and McGregor, Lorna. (2008). Transitional justice from below: An agenda for research, policy and praxis. In McEvoy, Kevin and McGregor, Lorna (ed.), *Transitional justice from below: Grassroots activism and the struggle for change*. Oxford: Hart.
- Robins Simon. (2009). *The Families of Missing in Nepal: A study of their Needs*. Kathmandu: ICRC.
- Robins, S and Bhandari, Ram. Bhandari. (2012), *From victims to actors: Mobilising victims to drive transitional justice process. A participatory action research project with families of the disappeared in Nepal*. Kathmandu: NEFAD
- Robins, S. (2010). *Families of the Missing: A Test for Contemporary Approaches to Transitional Justice*. New York: Routledge
- Robins, S. (2011). Towards Victim-Centred Transitional Justice: Understanding the Needs of Families of the Disappeared in Post-conflict Nepal. *The International Journal of Transitional Justice*, 5(1), 75–98.
- Robins, S. (2012). Proceedings from ISA 2102, April 1-3: *Constructing meaning from disappearance: Local memorialization in post-conflict Nepal*. San Diego.
- Robins, S. (2012). Transitional justice as an elite discourse: Human rights practice between the global and the local in post-conflict Nepal. *Critical Asian Studies*, 44(1).
- Robins, S. (2013). *Families of the Missing: A Test for Contemporary Approaches to Transitional Justice*. New York / London: Routledge Glasshouse.
- Roht-Arriaza, N. (2006). Introduction. In Roht-Arriaza, N. and Mariezcurrena, J. (Ed.). *Transitional Justice in the Twenty-First Century: Beyond Truth versus Justice*. Cambridge: University Press
- Selim, Y. (2014, April 24). The Opportunities and Challenges of Participation in Transitional Justice: Examples from Nepal. *Journal of International Development. The Comprehensive Peace Agreement*. (2006).



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How do you evaluate the peace process initiated by the CPA?

Signing of CPA by the then Prime Minister Girija Prasad Koirala and Prachanda marked the historic event of Nepali political conflict, not only as an event but even the content and intent of the CPA to affirmatively resolve existing conflict in the country. Girija Prasad Koirala signed not only as the Prime Minister only but also was backed by Seven Political Party Alliance. Prachanda signed not only as the head of the CPN (Maoist) but had the expectation and aspiration of women, Janajati, Madhesi, Dalit who were also a part of conflict and part of their struggle. Preparation of the content of the CPA and the process could have been better but it was sufficient to begin with. Specially with the subsequent drafting of the Interim Constitution, the consensus document, which has captured the aspiration of all the Nepali, and implementing it was good progress and indication that Nepal is moving towards right direction of peaceful resolution in creating a just and peaceful society heading to establishing a full-fledged democracy and lasting peace.

Now after ten years of signing of the CPA, where we are today; it seems we have been tremendously slow pace in making progress. The whole journey of ten years seems not on implementing CPA but on dismantling it. The existing various discontented groups like Madhesi group, Janajati, Dalit and Women, falling and failing of first CA, instable government are some of the evidence of it. The country still remained divided. We still maintain status quo of who is higher and who should be lower, who should be powerful and who should be powerless. Definitely transition is a long and slow process but the direction and intention could have been correct, consistent and continuous. Having said this, it will be unfair not to acknowledge some of the achievement and progress it has made. But the truth is that progress has been very selective and cosmetic only which often lead to question the honesty and seriousness of the leaders and politicians in the implementation of CPA.

Do you think Nepal's political institutions and agencies have successfully adapted with the promise of change made in the CPA? How do you view the peace process from gender perspective?

Successful implementation of any peace agreements depend on conditions to be fulfilled. Nepal Comprehensive Peace Agreement too had clearly given directive and guidance. In the preamble of the CPA, it is stated that "Both the sides shall give necessary directives to all agencies under their control for immediate implementation of this agreement and to abide by it and implement it and get it implemented." It is beyond adaption by Nepal's political institutions and agencies. CPA has clearly demanded for restructuring of state including political parties and calling for political resolution, and economic-social and cultural transformation through the Constituent Assembly. It has also stated to deconstruct the current centralised and unitary structure, by restructuring in an inclusive, democratic and forward looking manner. CPA has provision for the creation of various commissions such as Peace and Rehabilitation Commission, High Level State Restructuring Commission and High-level Truth and Reconciliation Commission. In simple words, CPA had committed to restructure and transform existing political institutions and agencies and to also create some institutions and agencies.

Some progresses made are such as having Interim Constitution, Interim Legislative Parliament which includes CPN (Maoists), election of Constitution Assembly, reintegration of Maoists combatant and management of their weapons, forming of Local Peace Committee. But they were created very late with weak and unclear mandate and therefore could not yield good result. These institutions are dominated by dominant group of major political parties and the main objectives of resolving conflicts remained under the shadow. The composition and function of these commissions could not sufficiently capture the true spirit of CPA.

With regards to gender perspective, Peace Talks, Negotiations and Agreements remain a matter of men. UN Women survey has rightly stated that when women are included in peace process there is a 20 percent increase in the probability of an agreement lasting at least 2 years and a 35 percent increase in the probability of an agreement lasting 15 years. In the recent Colombian peace negotiations, however, women participated as gender advisors and experts, negotiators, and in delegations of women affected by conflict, making up one-third of peace table participants and over 60 per cent of victims and experts. Relatively, there is some improvement. Between 1992 and 2011, four per cent of signatories to peace agreements and less than 10 per cent of negotiators at peace tables were women. In case of Nepal CPA, women participation was nil neither as negotiator nor as observer. 51% of the total population of Nepal is women and when more than half of the population is excluded from the Peace Agreement, definitely, the implementation of CPA faces challenges and hurdles.

Passing of 33% women representation by the first session of the Reinstated Legislature was a giant leap and therefore was hailed by the whole world. It was kicked back when the list of interim constitution drafting committee was formed having five members, all men and no women at all. The percentage of women in the first Constituent Assembly was the result of Nepali women pressure and protest who didn't blink their eyes and keep it wide opened. Unfortunately, the pressure from women still is continuing though we have woman as President, Speaker of the Parliament and Chief Justice. Janajati women, Madhesi women, Dalit women and Disabled women still are reminding for inclusive and proportionate representative.

Have the post-CPA developments in the last decade inculcated a political culture in Nepali polity which is conducive to management of conflict by peaceful democratic means?

The spirit of CPA, the Interim Constitution and the result of First Constituent Assembly election clearly had given message and mandate for Consensus politics, Coalition culture based on the Principle of coexistence and the process to be inclusive and proportionate. One cannot deny some changes in political culture in Nepali polity, eg, Dr. Ram Baran Yadav holding the position of the First President of Nepal, to witness the colourful members in their traditional dress in Constituent Assembly Hall, Raute King coming to Kathmandu and demanding for their rights, member of Blue Diamond being nominated as member of Constituent Assembly and Legislature, one third of Constituent Assembly occupy by women indicate a change in political culture. But CPA core demand for shifting of power and position, transformation of political structure and sharing of resources remained unchanged. The dominant group with highly internalised superiority complex and the marginalised and excluded group with highly internalised inferiority complex could not come out of the complex leading to widening fear, suspicion and mistrust.

At political level, coalition culture, collective and consensus decision making as mentioned in the CPA and Interim Constitution could not flourish. There have been no sufficient efforts to cultivate, nurture, practice and promote it also. Unfortunately, after the election of the First Constituent Assembly, the article relating to political consensus decision making was amended and reinstated the majority and minority system. Someone has rightly said that we are difficult and slow learners. Implementing CPA and peace building is a collective and shared responsibility. It is respecting and accepting of different wisdoms

4Evaluating the CPA as the historical document after a decade, do you see any inherent problem in the CPA itself?

Comprehensive Peace Agreement as mention earlier was sufficient to begin with. It had captured people mandate and aspiration. But now after 10 years of time frame, it seems that it is losing its intention and interpretation. Definitely CPA could have been drafted through a very inclusive and consultative process having captured the spirit of various agreements reached between the Government and groups like agreements with women, Janajatis, Madhesi, Dalit and Disabled group. CPA therefore was only bilateral and could not be multilateral.

Any final thoughts for future of Nepali society?

CPA is a document to address the issues and concerns raised by CPN (Maoist) and its decade long armed struggle and as the by product it has indirectly addressed some of the issues of discontented groups. The CPA process has been very costly in terms of money, time and resources. It is therefore important that the issues and concerns of the discontented groups be addressed on time. As the saying goes, "A stitch in time save nine". Nepal is a country blessed with diversity and diversity is not disputes and division.



Social reality of war and peace: Expectation and reality of female ex-combatants in Nepal

Chiranjibi Bhandari

Context

In general, differences between men and women are often thought of only in biological and physiological terms. However, the differences are far more complex when seen in society. It is the term 'gender' that encompasses the socially constructed roles, activities, and behaviors that a given society considers appropriate for men and women. These roles vary according to socio-economic, political, and cultural contexts; and are affected by other factors, including race, age, class, religion, and ethnic group. Furthermore, gender roles are learned and reinforced through education, political and economic systems, social expectations, legislation, religion, culture and traditions (Upreti, 2008). Due to the patriarchal norms and values, women were systematically discriminated in Nepal for a long time. Maoist war was one of the breaking points to gain a career and equality of women. In the war both male and female ex-combatants were perceived as equal and encouraged to act in the same way and have the same roles and responsibilities, encouraging female ex-combatants a sense of pride, self confidence and equal footing in war (Yami, 2007).

Nepali women have been long considered victims of other forms of social oppression as a result of ethnic, political and cultural framework of society. Surprisingly, overcoming the barriers of social and cultural, women played an important role as combatants in civil war of Nepal (1996-2006); every third guerilla was a woman (Gautam et al., 2001) in People's Liberation Army (PLA). As combatants, women were mobilized as fighters under radical and progressive social agendas for the betterment of their livelihood and political transformation (Yami, 2007). With an experience of war and life in cantonment, combatants returned to the society in 2012 and their agenda rolled back. During reintegration, ex-combatants experienced a wide range of challenges associated with social and political integration. Female ex-combatants strongly experienced the value of

the Maoist cause in women's rights in Nepal and irreversible changes that had occurred in the communities as a result of the people's war (Bhandari & Simons, 2016).

The issue of integration has been is dealt by academicians, practitioners, researchers in Nepal for the last ten years. However, the published literature in conflict and peace building don't not adequately address the female combatants' perspectives on social integration from participants' voice. In this background, this study tries to offer important social realities of women of all ages engaged in combat, guerilla units and other tactical activities during the civil war. Based on this context, this paper discusses the social reality of female ex-combatants with their current situation and future trajectories.

Methodology

The study is based on thematic analysis of the data received from participants' verbalization of life experience. The interviews from forty five participants were undertaken in a collaborative learning opportunity during the rehabilitation project led by the researcher in between 2013 and 2016. While participants' interviews offered primary source of data, the thematic outcomes were corroborated by local and national newspapers articles, and the researcher's observation and experience¹ as an official to the Secretariat of Special Committee for Supervision, Integration and Rehabilitation of Maoist Army Combatants from April 2011 to June 2013 helped to validate and contextualize the data with full rigor. Researcher's access to ex-combatants, the cantonments and interaction with key state and non-state stakeholders offers deeper insights into the data collection and analysis and reporting. This paper is limited to considering the reintegration of female ex-combatants who remained in cantonments until 2012. It is important to clarify that this paper does not concern itself with those female ex-combatants who were discharged, verified late or declared minor recruits by UNMIN in 2009.

Reintegration: Theoretical concept and practical aspects

The term reintegration has wider meaning in post-conflict peace building. Reintegration "is the process by which ex-combatants acquire civilian status. Reintegration is essentially a social and economic process with an open time frame, primarily taking place in communities at the local level. It is part of the general development of a country and a national responsibility, and often necessitates long-term external assistance."² At the process, reintegration comes

under the process of Disarmament, Demobilization and Reintegration (DDR)³. DDR and Security Sector Reform (SSR)⁴ are widely applied concepts in terms of management of arms and armies in post conflict societies. The first two steps: disarmament and demobilization create security and the trust necessary for implementing peace agreements. Reintegration, the final step, is a complex and long-term process through which ex-combatants and their dependents are assisted to (re)settle in post-war communities in various ways; socially, politically, economically and psychologically⁵. Primarily, reintegration programs include two measures; short-term, such as financial assistance or in-kind material benefits to address the immediate needs upon leaving the armed groups, and also longer-term such as vocational training, seed capital and counseling, which aims to reintegrate former combatants into the social and economic structure of the society. In all DDR cases, third-party security guarantee is critical for the combatants to agree to demobilize their combatants for problems related to information uncertainty and credible commitment problem (Walter, 2001). Successful conversion of ex-combatants into civilian life is achieved not only where former combatants are able to establish peaceful and sustainable livelihoods, but also when they no longer see violence as a legitimate means to seek political or personal gain and submit to the laws and norms of civilian society (Pouligny, 2004; United Nations, 2010). The United Nations defines reintegration as ‘the process which allows ex-combatants and their families to adapt, economically and socially, to productive civilian life’ (United Nations, 2010).

Process of reintegration in Nepal

Comprehensive Peace Accord (CPA) in November, 2006, signed between the government of Nepal and then Communist Party of Nepal (Maoist), became instrumental to end a decade long armed conflict (1996-2006). This agreement prioritized the issues of conflict transformation and post-conflict peace building such as writing new constitution, transitional justice and reconstruction. Out of various issues, one of the key priorities of this agreement was disarming, containing, rehabilitating and reintegrating of Maoist Combatants (CPA, 2006). Integration and reintegration of ex-combatants into civilian life and security agencies was highly debatable issue in Nepal and socio-politically and technically challenging at both political and societal level (Bhandari, 2015). The underlying reason for this issue being the most challenging is hostilities between security agencies and the PLA combatants linking the past experience of enemy image between each other, sensitivity within Nepal Army regarding political orientation of PLA combatants, and lack of clarity on Disarmament Demobilization Reintegration modality. The Agreement on Managing Arms and Armies (2006)

succeeded in receiving approval of effective administering of the national army vs. insurgents.

As a neutral third party, the United Nations Political Mission in Nepal (UNMIN) was established by the United Nations Council to monitor the arms and armies. In the second round of verification, UNMIN verified 19,602 ex-combatants. And a total of the 3,834 combatants were recorded as female. Later, government team, Secretariat of Special Committee for Supervision, Integration and Rehabilitation of Maoist Army Combatants, also verified the number of combatants in 2011 and found that around twenty percent (3350) of all combatants were female (UNMIN 2007, Bhandari, 2015). Nepal successfully integrated its former combatants, where many other post-conflict countries have failed or are currently engaged in unproductive and protracted negotiation and dialogue. The rationale for successfully accomplishing supervision, integration and rehabilitation of Maoist Army Combatants is an output of locally driven process by national actors. Nepal proved its unique approach by taking ownership by national actors in supervision, integration and rehabilitation, while widely considered unorthodox and unacceptable by international organizations, was largely successful in reintegrating former Maoist combatants back into communities that marked the successful completion of the peace process because the model itself was beyond the established notion of DDR and SSR approach. The following agreements and structures of Special Committees for Supervision, Integration and Rehabilitations prove the process as politically owned and locally driven by technical experts.

As a neutral third party, the United Nations Mission in Nepal (UNMIN) was invited to monitor the arms and armies on the basis of the request of an 8-point letter from the government of Nepal and the then CPN (Maoist) on the 9th of August, 2006 (GON, 2007)⁶. UNMIN was entrusted to monitor the activities of Nepal Army and Maoist combatants as agreed in the Agreement on Monitoring and Management of Arms and Armies⁷. In order to facilitate the technical aspect of peace process by national actors, a decision was made by the council of ministers to form the Special Committee for Supervision, Integration and Rehabilitation of Maoist Army Combatants. The Committee was established in 2008. On 22nd January, 2011, all the combatants came under the committee through the declaration ceremony and committee facilitated the supervision, integration and rehabilitation of Maoist Army Combatants.

Table 1 Major Agreements related to Management of Arms and Armies			
S. N.	Agreement	Date Signed	Signatories
1	Twelve Point Agreement	22 November, 2005	SPA and CPN (Maoist)
2	Ceasefire Code of Conduct	26 May, 2006	Government of Nepal and CPN (Maoist)
3	Letter to the United Nations	9 August, 2006	The GoN and CPN (Maoist)
4	Comprehensive Peace Agreement	21 November, 2006	GoN and CPN(Maoist)
5	Agreements on Monitoring Arms and Armies	8 December, 2006	GoN and CPN (Maoist) witnessed by UNMIN
6	Interim Constitution of Nepal 2007	15 January, 2007	The Interim Government
7	Directives for Supervision, Control, Direction and Code of Conduct for Maoist Army Combatants	16 September, 2010	Special Committee
8	Seven Point Agreements	1 November, 2011	Four Major political Parties (Including UCPN-Maoist)

Following the decision of the SC and the provisions mentioned in the Seven Point Agreement, the Secretariat accomplished the task of updating and regrouping, which was completed between the 17th of November 2011 and the 2nd of December, 2011⁸. The process was entirely locally driven and owned. Based on the seven point agreement, three options were finalized. Integration into the Nepali Army⁹, cash grant-based voluntary retirement¹⁰ and rehabilitation¹¹ into the society with formal education and vocational skills were first, second and third available options respectively. As technical body of Special Committee, the Secretariat of the Special Committee was entrusted with the task of updating and regrouping the ex-combatants according to their preferred mode of reintegration.¹² Finally, ex-combatants were categorized into various alternatives of integration, rehabilitation and voluntary retirement.

Table 2 General Overview of Ex-combatants into Different Categories				
S. N.	Category	Total	Male	Female
1	Verification by Secretariat	17052	3350	13702
2	Integration (into Nepali Army)	1422	104	1318
3	Voluntary Retirement	15624	3246	12378
4	Rehabilitation	6	0	6

Source: Special Committee Secretariat, 2012

Women in War

One of the central questions of Maoist insurgency in Nepal was the involvement of women as soldiers in PLA. Women in battlefield are important context to explain the reason for their involvement as combatant in the Maoist insurgency in Nepal. Since the very beginning, Maoist insurgency surprisingly mobilized large number of women¹³. As structural causes, poverty, inequality, lack of opportunities and discrimination based on gender roles¹⁴ were considered. As direct cause, it is clearly mentioned that ideology was the major issue to attract the women and other people towards PLA. An important reason is that revolutionary ideology, associated with Marxist-Leninist idea for equality of people in society was one of the reasons.

The involvement of women in war was completely supported by structural agendas and mobilization of agency. As an agency to organize women into the war, the Maoists established a women wing in 8th March 1996 called All-Nepal Women's Association (Revolutionary) (ANWA[R]) which was established with its role to play as a similar role of agent like Lenin's Vanguard party in Soviet Union¹⁵. At the beginning women, who were not conscious about revolutionary ideology and the agency, were trained in revolutionary idea through women wings at national, district and local level (Yami, 2007). Also, the fantasy followed Lenin's revolutionary ideology in ANWA (R) linking with overall goal of the party to establish a socialist democratic state¹⁶. It has also changed perceptions around the political participation of women and younger members of the community. A female ex-combatant (29) in Nawalparashi shared her involvement in PLA:

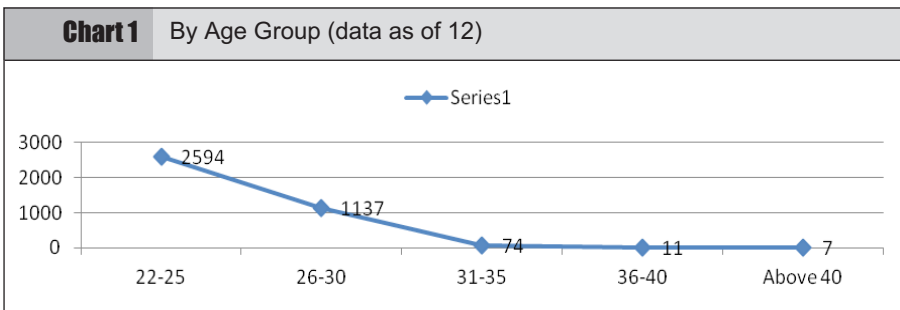
"At the earlier stage of my life, I was not aware about politics. During my school age, I was just intoxicated with Maoist ideology and its principle of equality between rich and poor people as well as prosperous country and opportunities of livelihood for poor and marginalized people. This is why I joined the Maoist party".

Furthermore, given the strict, conservative and traditional restrictions on women's freedoms, caste discrimination, forced marriage, and limited decision-making roles in public and the private spheres, women saw Maoists as egalitarian compared to patriarchal communities that they left. In addition to the perceptions of women, the Maoists actively promoted women's issues and promised equality between men and women and the abolition of caste and ethnic discrimination (Bhandari, 2015). It was accepted that women were not directly involved as combatants before the Maoist struggle in Nepal.

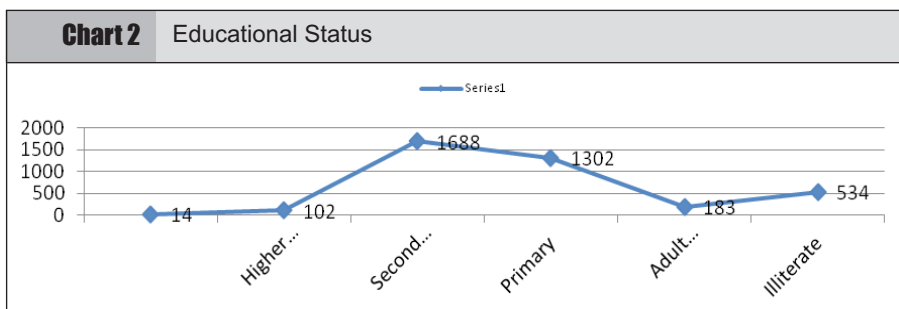
Table 3 Verification of Female Ex-combatants by UNMIN as of 2007		
S. N.	Division	Number
1	Division I, Ilam	355
2	Division II Sindhuli	311
3	Division III Chitwan	722
4	Division IV Nawalparashi	674
5	Division V Rolpa	549
6	Division VII Surkhet	568
7	Division VII Kailali	667
8	Kathmandu Security	8
	Total	3,834

Source: UNMIN, 2007

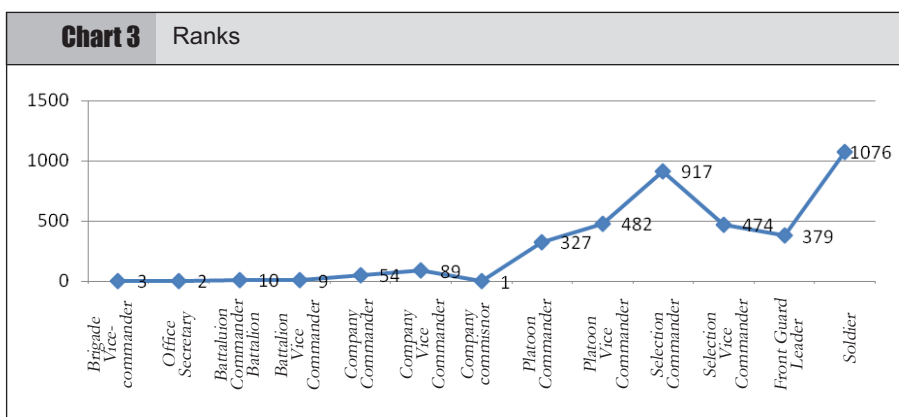
The detailed data of female ex-combatants, based on their age, academic qualification and ranks are as follows¹⁷.



Source: UNMIN 2007



Source: UNMIN 2007



Source: UNMIN 2007

Common Perceptions and status of Female Ex-combatants

It is commonly observed that after war, female ex-combatants are expected to return to their traditional roles, something they are often reluctant to do. Increasing divorce and experiencing domestic violence after the reintegration are considered common problems of female ex-combatants. For example, in Eritrea, the divorce rate of female ex-combatants was 27 percent among married female ex-combatants after the demobilization process. Likewise, female ex-combatants suffered domestic violence at hands of their husbands in Chad, Namibia and Nicaragua¹⁸. Out of 45, individuals interviewed for the purpose of this study, not surprisingly, informed that in the preliminary stage of social reintegration, female ex-combatants were vulnerable socially and economically. Lack of familiarity in new settlement, limited amount of cash package as well as lack of trust from community people, government bodies were major problems noticed in earlier phase. Also, a majority of female combatants are viewed with fear and hate by community people. However, ex-combatants believe major

changes in the country as an output of war and see themselves as catalyst for lasting peace in Nepal¹⁹. Few exemplary statements and linked thematic issues received from the female ex-combatants offer deeper insights into the social integration process and present realities.

Participants Statements	Themes
"Dreams of betterment have collapsed after leaving cantonment with five lakhs Nepali rupees in two installments. Our contribution is compared with cash package. Now I'm completely back to normal role of housewife. I'm not much interested to do politics. People frequently ask our perception regarding the past experience, neither have I felt good nor bad regarding my association with the People Liberation Army. I was hoping for betterment in the lives of people like myself, but we are left out. I have inter-caste marriage, during the period of war and I lost the support from my family and relatives". <i>Parbati Shrestha²⁰ (31), Surkhet</i>	Expectation of betterment has not been fulfilled.
"I joined the PLA during my school age. It was because of my family. I had interactions with Maoist cadres back in the days. The communist ideology, abolition of class based domination attracted me to join the party. I was happy during the war and cantonment life. Now I feel helpless as our revolutionary ideology is no more functional. My involvement in party was not just to provide the space for a few people in government, it was completely for social and political transformation, which is still at the crossroads". <i>Smriti Bohara (34), Kailali</i>	Party leadership Dysfunctional.
"I opted voluntary retirement in 2012. I was interested to join Nepal Army. I had two children and my husband was wounded. Then I realized that my children would suffer if I join the Army. Therefore, we bought a plot of land and constructed a house from the cash that we received. Now we lack regular income and opportunities. We are struggling, it is difficult to manage household expenses, treatment of husband and education of children". <i>Usha Lama (33)</i>	Familial issues are important and critical.
"Farming was not sufficient for survival. I joined the PLA, which was not my interest. It was a compulsion and since we were living on poverty and inequality. My parents could not afford to send us me to school. There was nothing to do and I decided to join PLA. I was trained to handle weapons during the insurgency. After reconciliation, I received money and built house, own a small business since 2014. Relatives treat me well. I don't trust the party, since it has no goal. I have no further hope from the party and the party leadership". <i>Bindu Pariyar (30), Nawalparashi</i>	Livelihood consequences are critical to rural life.

Social reintegration proved challenging for both male and female combatants. A vast majority of ex-combatants did not return to their village of origin. They settled close to former cantonments. After the reintegration, the relationship between ex-combatants and local communities has been marked by tension and many communities expressed serious reservation in accepting former rebellion. This has resulted into alienation of the ex-combatants. Sabanam Thapa (32) said:

"I followed husband. He was a Maoist. I received military training, messenger service and support staff in the war. I got married during the war. My husband was Dalit, socially perceived as lower caste in Nepali society. Currently, I'm living in new settlement in the vicinity of previous cantonment area, which is new for us. But I can't go back to my house because parents are still unhappy with me for inter-caste marriage and they are not happy with my decision of join PLA".

Many female ex-combatants, with violent histories and inter-caste marriage, experienced issues to be accepted into local communities. Financial and economic rationalization of reintegration of ex-combatants proved short-sighted. It only helped to release ex-combatants from cantonments. It failed to re-integrate them into the society. Sangita Rai (28) from Sunsari expressed problems of livelihood:

"I ask myself: why did I joined the PLA ?. I have no answer. Back in society, we feel even more helpless. Life can't sustain in dream. We must live in reality, where power, prestige and wealth matters for quality of live. I'm trying to explore opportunities for job. I realized my academic qualification stopped at eighth grade. I'm planning to go for overseas job. I have heard that foreign job is not good for women, but I have no option."

A report of Nepal Peace Trust Fund show that no significant steps were taken by donors and other agencies to enhance the process of social reintegration²¹. The study shows that ex-combatants preferred being resettled in new locations, especially nearby their cantonments, where they have better facilities and livelihood options compared to their place of origin. Many ex-combatants complained of being discriminated against in their place of origin from their communities and families.²² Moreover, there is also a concern that the new settlements may further alienate ex-combatants from the mainstream society. These issues merit further research, including longitudinal inquiries.

Central to the social reintegration of Maoist ex-combatants is the question of identity transformation. As revolutionary actors, ex-combatants were exposed to dramatic changes, including confinement in the cantonments and then with complexities of social reintegration (Bhandari, 2015). Ex-combatants shared with this writer that post-conflict changes had not kept pace with aspirations: “The level of society is the same but the expectations of the people have drastically changed”.²³ Many young ex-combatants had very high expectations of creating a positive change in society but they have been forced to adjust in society that has the same inequalities, social polarizations, and caste discrimination that they fought to destroy.²⁴ Moreover, there is also a perception that due to various factors there are even less opportunities for social advancement than before the conflict. While there has been some political reintegration of ex-combatants within the Maoist party—all ranks who were willing to accept party positions received roles²⁵ in party committees at the central, district and local levels—serious political concerns remain. Some of the ex-combatants were of the view that Seven-Point Agreement was humiliating and disrespectful to them, which became one of the reasons for Maoist split.²⁶ The split along ideological lines cannot be entirely divorced from fragmentation within the ex-combatants caused by failures in the post-conflict social and political process to address their aspirations.²⁷

Current Realities of Female Ex-combatants

Available evidence suggests that very few female ex-combatants appear to be engaged in income generation and are primarily engaged in the rearing and caring of their children while their male counterparts are involved in income-generating activities. This indicates that even after participating in the insurgency many women returned to the traditional gender roles they hoped to change (Bhandari, 2015). Female ex-combatants are also facing the challenge of dealing with the fact that after being treated as equals within the PLA and bearing arms, they are now encountering rejection from their communities and struggling to the return to traditional subordinate female roles. Women ex-combatants not only face a challenge from lack of skills and being forced back into domestic servitude, they are also bearing the brunt of social discrimination due to inter-caste and inter-ethnic marriages that took place during the ten-year insurgency. There are many accounts of couples facing discrimination from their communities of origin and have been forced to move away from the traditional support networks of their families and communities. This explains why a large number of ex-combatants chose to live together in new settlements. Debika Khanal²⁸ (35) shared her experience:

"I joined the PLA in 2003 and married in the cantonment. Life after marriage was happy while we were in cantonment. After getting voluntary retirement package, it was difficult for us to be back in village. Ours was an inter-caste marriage, so the family was not happy. Sometimes, the issue of inter-caste marriage created the conflict between us as we had to participate in social and cultural functions."

Many women faced further discrimination and rejection from their natural communities due to inter-caste or inter-ethnic marriages that were encouraged during the insurgency. Nevertheless, it bears mentioning that the Maoist insurgency has had a significant impact in opening up discussion on gender relations, increasing women's political representation and participation in the public sphere, and strengthening women's rights activism.

Following the voluntary retirement from cantonment, a majority of female combatants are back to their traditional roles. They are completely isolated from their active political roles in party, society and politics. They are suffering through unaddressed reproductive health concerns and psychosocial problem, which was identified as an important issue for female ex-combatants²⁹, as well as skill development training and livelihood support program that guarantees long-term employment such as vocational training to support newly acquired gender norms and equality; a participatory approach; and a community driven reintegration process are considered the needs of female ex-combatants in Nepal³⁰. It clearly shows that the experience of ex-combatants in social life are similar with other post conflict countries, where ex-combatants are reintegrated. In a decade-long armed conflict, combatants romanticized their life and saw as the agent of cultural change in Nepali society. There were many inter-caste marriages (between the higher caste and "untouchables") which were against the caste-based Nepali customs and were unacceptable to Nepali society³¹. In post-cantonment life, combatants found that the society has not changed as much as they had expected during the insurgency. The community usually expected to return them to their traditional roles after the war. About one third of combatants were women during armed conflict and after the 6 years of the peace accord, a high rate of divorce can be observed in Nepal³².

Conclusion

Reintegration of female ex-combatants is arguably one of the most challenging issues facing any post-conflict society. It has only been four years since the process of reintegration began and it would be premature to term it complete. The

evidence suggests female ex-combatants who received financial packages have used it to positively impact their life. In terms of social and political reintegration, despite the successful closure of the cantonments, there is continued hesitance of social acceptance of ex-combatants. Nepal's experience can potentially help develop and enhance the current global discourse on reintegration of former female ex-combatants.

Notes

- 1 From July-October, 2013, author worked as an expert at Interdisciplinary Analysts for Vertical of Monitoring of Nepal Peace Trust Fund Projects, in order to quantify the ex-combatants perception towards the Nepal Peace Trust Fund implemented projects, a sample survey with 897 ex-combatants was undertaken. Similarly, 30 interviews were carried out for data triangulation. Despite the reality, while author collected more than hundred testimonies of ex-combatants for Birmingham University, UK (October-December, 2014). While this may have been advantageous, it also inevitably raises questions concerning the objectivity of the research. Despite extensive experience with ex-combatants, and interview with more than 200 ex-combatants in different points of time, author has not cited any unpublished information from previous work.
- 2 UN Secretary General (2006, 8)
- 3 DDR is a process by which a quantity of combatants belonging to either the official armed forces or armed oppositional groups, individually or collectively, disarm, demilitarize, and reintegrate back into civil life, the armed forces, or the security forces of a country (Muggah, 2005). DDR programs are widely used and have become key features of most peace agreements that end civil wars (Gilligan, Mvukiyehe&Samii, 2012). According to the 2006 Uppsala Peace Agreement data set, 36 percent of peace agreements mentioned the provision of DDR between the period of 1989-1999 and 59 from 2000 to 2005.
- 4 Security Sector Reform (SSR) is a continuous process in all countries and regions, including politically stable states, fragile states, and post-conflict countries. SSR has multiple dimensions such as political, societal, economic, institutional, and cultural dimensions. SSR is; therefore, a primary component of the peace building process in post conflict transition, and helps to create a secure environment conducive for other political, economic, and social development through the reduction of armed violence and crime that ensures the security sector becomes responsible, transparent and accountable to the citizens and their welfare (Knight, 2009).
- 5 Resettle in post war communities (social), become part of the decision-making process (political), engage in sustainable civilian employment and livelihoods (economic), as well as adjustment to attitudes and expectations and/or deal with their war related mental trauma (psychological).

- 6 As requested, the UNMIN was established on 23 January 2007 for an initial term of one year. However, the term was extended seven times at the request of the government, and UNMIN stayed in Nepal until January 15, 2011, when the mission officially closed. Based on its mandate, UNMIN verified 19,602 Maoist combatants and monitored the situation of the verification of the combatants in the cantonments. After the completion of the registration and verification, from 2007 to January 2011, UNMIN was assigned the mandate to monitor the management of arms and armed personnel of the Nepali Army and the Maoist army, in line with the provisions of the Comprehensive Peace Accord, and assist the parties through a Joint Monitoring Coordination Committee (JMCC) to implement their agreement on the management of arms and armed personnel. Between February and March of 2007, the cantonments were set up and the Maoist Army Combatants were contained in seven main camps and 21 satellite cantonments. In November, UNMIN and the UN arms monitors were deployed in the seven cantonments and 21 satellite cantonments and the Nepal Army container site
- 7 The first phase of registration took nearly a month; it was started on the 16th of January 2007, and was completed in all the cantonments by the 17th of February 2007. After the successful completion of first phase of registration of the Maoist arms and combatants, the second phase started on the 19th of June, 2007 and ended on December 21st, 2007, this information was cited from the press statement of UNMIN in the period of 2007 to 2008.
- 8 Seven teams were deployed at the field under the leadership of secretariat members, altogether 210 surveyors were deployed at seven main and 21 satellite cantonments.
- 9 The process was to be overseen by the Special Committee and was subject to a maximum ceiling of sixty five hundred ex-combatants as specified in the Seven-Point Agreement. Apart from the political consequences of the mass entry of Maoist combatants into the Nepali Army, the limit also highlighted concerns over the growing size of the Nepali Army, which expanded from 46000 in 1996 to 96000 at the end of the conflict, and its political and fiscal implications. Hence, integration could not have been the only option offered.
- 10 It was widely seen as an expeditious way of dealing with the issue. Supervised by the Special Committee, the grants were tied to rank (discussed in detail further below) and the general consensus was that the only way to successfully complete the peace process was to address the biggest obstacles directly and the financial packages were seen as the best way to quickly reintegrate the ex-combatants and close the cantonments.
- 11 Rehabilitation was assigned to the Relief and Rehabilitation section of the Ministry of Peace and Reconstruction. The rehabilitation package included the provision of education, training and vocational opportunities. Depending on the nature and timeframe, the cost of the package varied from 600 to 900 thousand rupees. Despite more than two-dozen options of education, training

and skill development, rehabilitation packages remained the lowest priority amongst the three alternatives provided to the ex-combatants.

- 12 Seven teams were deployed at the field under the leadership of secretariat members, altogether 210 surveyors were deployed at seven main and 21 satellite cantonments
- 13 A total of approximately four thousand female combatants were recorded during the second round of verification after the CPA in total of twenty thousand.
- 14 During Maoist a with the state, they formed various revolutionary wings initially starting from the remote districts of Rolpa and Rukum. Most of the PLA recruits were Janajatis, Madheshi, Dalits and members of various ethnic groups from lower economic strata of the society (Upreti, 2009). The women were attracted because of social, cultural, legal and political discontent (Manandhar and Bhattachan, 2001), (Bhattachan, 2001 and Bennett, 1983) (FWLD, 2001) (Shrestha, 2001) (Sharma and Prasain 2004).”
- 15 Lenin said “Consciousness can’t emerge within people it must bring from somewhere outside, which he called Vanguard party bring consciousness on people (Lenin cited in Cohen and Fermon, 1996).”
- 16 They indicated only such democratic state ensures their rights and liberates them from oppression of social political sphere. IT was quoted in HishilaYami's book. Maoist included in its manifesto several ‘rights’ issues pertaining to women (Upreti, 2009).
- 17 At the initial phase, the number was 3834, which was decreased after a few years of cantonment while 8 female combatants were deceased and 3 dismissed from the cantonment. Therefore, the detail of ex-combatants is presented on the basis of 3823.
- 18 <http://www.sirclund.se/Dokument/Conf2011.pdf>
- 19 This is personal inference of author, which was gathered through the interaction and observation with ex-combatants and community members for last five years.
- 20 All the names used in the citation are being changed, which don't represent their original names.
- 21 Third party monitoring reports prepared by Scott Wilson and published by Nepal Peace Trust Fund in 2012 and 2013
- 22 www.nptf.gov.np
- 23 Interview with an ex-combatant, who was a former division commander of the People’s Liberation Army and serving as elected CA member in Constituent Assembly
- 24 Based on the narratives collected from the field (interview with ex-combatants in Kathmandu, Kailali, Chitwan, Dolakha, Surkhet, Nawalparashi, Mahottari, Sunsari, and Dang)

- 25 One former combatant who opted for voluntary retirement is serving as a constituent assembly member and some other senior commanders are in positions on the central committee and standing committee of the party
- 26 Interview with a Maoist leader who affiliated with CPN (Maoist) led by Mohan Baidhya Kiran
- 27 Interview with a central committee member of UCPN (Maoist) in Kathmandu April, 2014
- 28 Interview with a female ex- combatant (Aashtha) at Nawalparashi, 2015
- 29 Currently, researcher is working as training coordinator at Combatants to Peacemakers program and it was directly observed by researcher and proved by the experts i.e. on psychosocial issues, TPO, during the training for ex-combatants and project implementation.
- 30 Focus group discussion with female ex-combatants in Purandhara, Dang 2016
- 31 Inter-caste marriage was common phenomenon during the war and in the cantonment.
- 32 The researcher met 4 female ex-combatants during field visit who recently got divorced because the families of their male counterparts refused to accept them as their family members.

References

- Bennet, L. (1983). *Dangerous wives and sacred sisters: Social and symbolic roles of high caste women in Nepal*. New York: Columbia University Press.
- Bhandari, C. (2015). Reintegrating ex-combatants into Nepali society. *Economic and political weekly*. Mumbai
- Bhattachan, K. B. (2001). *Sociological perspectives on gender issues in changing Nepalese society*. (K. B. Manandhar, Ed.) Kathmandu: Central Department of Home Science, Women Studies Programme and FES.
- Bogati, S. & Muggah, R. (2011). *How golden is the handshake for Nepal's demobilized Maoists*. In Republica National Daily (July 13). Kathmandu: Nepal Republic Media
- Bohara, R. *Ladakulai Sena Banauna Ru Bisarba* (RS 20 Billion for combatants to make Army). 2013. August 13. Himal Weekly.
- Comprehensive Peace Accord*. (2006). Kathmandu: Ministry of Peace and Reconstruction.
- Dhakal, A. (2010). People's Liberation Army. In B. Sapkota (Ed.), *Nepali surakashya khestra: Ek sangarba* (pp.169-184). Kathmandu: National Campaign for Peace.
- Dutta, A. (2009). *Women rebels: Stories from Nepal and Nagaland*. New Delhi: Aakansha Publishing House.
- Gautam, K. C. (2009). *Rehabilitation and integration of Maoist combatants as part of Nepal's security sector reform*. Kathmandu: Nepal Institute for Policy Studies.
- Government of Nepal. (2007). *Agreements and understanding on peace negotiation of Nepal*. Kathmandu: Peace Secretariat.
- Government of Nepal. (2007). *Agreements on monitoring of the management of arms and armies*. Kathmandu: Government of Nepal.

- Hutt, M. (Eds.) (2004). *Himalayan's people war : Nepal's Maoist rebellion*. London: Hurst & Company
- International Crisis Group. (2011). *Nepal: From two armies to one*. Kathmandu: International Crisis Group.
- Martin Chautari. (2013). *Political risk and ex-combatants*. Policy Brief No. 9. Published by Martin Chautari, Kathmandu.
- Muggah, R. (2005). *No magic bullet: A critical perspective on disarmament, demobilization and reintegration (DDR) and weapon reeducation in post conflict context*. Round Table 379:239-252.
- Muggah, R. (2009). *Security and post- conflict reconstruction: Dealing with fighters in the aftermath of war*. New York, NY: Routledge.
- Pouliny, B. (2004) *The politics and anti-Politics of contemporary disarmament, demobilization and reintegration programs*. Paris: CERI/SGDN.
- Scott Wilson Nepal (2012). *Project sheets of cluster I and II projects*. Kathmandu: Available at Nepal Peace Trust Fund website www.nptf.gov.np
- Scott Wilson Nepal. (2011). *External monitoring of Nepal Peace Trust Fund (NPTF): Final report*. Kathmandu: Available at Nepal Peace Trust Fund website www.nptf.gov.np.
- Seven Points Agreement*. (2011). Kathmandu: Major Political parties.
- Simons, R. and Bhandari, R (2016). *Poverty, stigma and alienation: Reintegration challenges of ex-Maoist combatants in Nepal*. A participatory Action Research project with ex-PLA fighters in Nepal.
- Thapa, D. (2003). *Understanding the Maoist movement in Nepal*. Kathmandu : Martin Chautari & CSRD.
- The Interim Constitution of Nepal*. (2007). Kathmandu: UNDP Nepal.
- United Nations. (2010) *Integrated disarmament, demobilization and reintegration standards*.
- Upreti, B. R. (2008). *Women's role in Nepal's peace process: A special reference to inclusion in peace structures*. A paper presented at national seminar on Women in Constitution organized by Women for Peace and Justice (Core Commission) at Hotel Yak and Yeti, Kathmandu 18-19, August, 2008.
- Upreti, B. R. (2009). *Nepal from war to peace: Legacies of the past hopes for the future*. New Delhi: Adroit Publishers.
- Walter, B. (2001). *Committing to peace: The successful settlement of civil wars*. Princeton: Princeton University Press.
- Yami, H. (2007). *People's war and women's liberation in Nepal*. Kathmandu: Janadwani Publication.

Unpublished documents

- Terms of Reference (TOR) of Special Committee (2008). Kathmandu: Council of Ministers.

Terms of Reference (TOR) of Technical Committee (2009). Kathmandu: Special Committee

Special Committee. (2010). Directives for Supervision, Control, Direction and Code of Conduct for Maoist Army Combatants. Kathmandu: Special Committee.



Nepal's peace process from the perspectives of indigenous people

Parshuram Tamang

Background

The people's movement of 2006 was peaceful revolution that ended the monarchy-- which had 200 plus years of history-- and went on to adopt federal republic model. This was a step towards freeing Nepali people of caste, class, regional, gender and social and cultural discrimination and exclusion. The people's movement was a result of the twelve point agreement, which was signed on November 25, 2005 between the parliamentary parties and the CPN Maoist. After the people's movement, a Comprehensive Peace Agreement (CPA) between the Seven Party Alliance's Government and the Maoist rebels was signed on November 21, 2006. Since then, the Maoist combatants have been integrated. The Commission of Investigation on Enforced Disappeared Persons (CIEDP) and the Truth and Reconciliation Commission (TRC) have recently started their works.

The Constituent Assembly promulgated the new Constitution on September 20, 2015. However, the Madhesi and indigenous people started protests citing dissatisfaction over the new constitution. This article discusses the peace process from the perspective of Nepal's indigenous and ethnic minorities.

The social structure of Nepali society and the structure of the state

Nepali is a multi-ethnic, multi-cultural, multi-religious and multi-lingual country. According to the 2011 census, there are 125 caste and ethnic groups, 123 languages and dialects, and ten of the world's major religions. The government of Nepal recognizes 59 groups as indigenous and ethnic minorities. Indigenous and people from ethnic minorities made up 37.2% of Nepal's population in 2001, and 35.2% in 2011. The Muluki Ain (Legal Code) of 1954 termed these minorities as "*Matwalis*".

Table 1 Nepal's caste/subcaste population structure (2001 & 2011)				
Majority Caste/ SubCaste	Caste / social group	Caste/Subcaste Arrangement	Population Percentage	
Hindhu Caste Group	Brahmin, Chhettri	Pahadi(hills)Brahamins Pahadi (hills)Chhettri	12.7% 18.1%	12.7% 17.8%
		Madhesi(Terai) Brahamin Madhesi Middle Caste Group	1.9 % 12.9%	0.5% 15.4%
	Dalit	Pahadi Dalit Madhesi Dalit	7.1% 4.7%	8.7% 4.6%
Indigenous Nationalities Group	Newar	Newar	5.5%	6.2%
	Others	Pahade Indigenous nationalities & Terai Indigenous Nationalities	21.9% 9.8%	21.8% 7.1%
Religious minority	Muslim	Muslim	4.3%	4.3%
Others	Avgrikrit Group	Avgrikrit Group	1.0% 100%	1.0% 100%

Source: Nepal statistics and Indigenous Nationalities. UNDP and NTG, 2006 and Nepal Social Inclusion Survey 2012, Central Department of sociology/ Anthropology, Tribhuwan University. KTM, Nepal.

Nepal's ruling group and class termed the country multiethnic. However, the state established one-nation-one-country model. By promulgating the "Muluki Ain" in 1854 by Janga Bahadur Rana, he institutionalized the caste system as per the Hindu classification and put non-Hindus into the Hindu caste system. Chandra Samsher ordered that Nepali, Hill-Khas language, to be the only written language used in court, and banned written version of all other languages. The state's feudal system by making seized kippat (communal lands) of indigenous groups and distributed them to the attendants of Gorkha kings, as well as the Brahmins and Chhetris that aided in expansionism in the form of jagir, birta, guthi etc.

This created a coalition of feudal and hill upper-caste that eventually became characteristic of Nepali ruling class. The state merged the identity of indigenous groups and ethnic minorities into the Hindu caste hierarchy, strengthening the mono-cultural rule (caste hegemony). During the Panchayat (1960-1990), the state used adapted the policy of Hindu king, Hindu country, under one language, one people.

The revolt of 1950, the Janaandolan of 1990 and the Janaandolan of 2006 have not been able to break the legacy of this nationalism. All of Nepal's struggles so far have ended in an agreement between these communities and class groups. Although the structure of Nepal is multi-cultural, one single group remains dominant in the state. In 1845, 95.1% of the officials / courteseans who approved the Muluki Ain were from high castes. In 1999, 145 years later, feudals from the same high castes occupied 91.5% of the positions in the state and in the high ranks among the monarchy's servants (Tamang, 2005: 61). If we are to analyse the power structure of the state according to caste and ethnic ascendancy, there are five concentric circles, starting from the center and moving outwards. At the center of this power structure are Hill high-caste Hindus, followed by Hindu Newars and Terai Brahmins in the second circle, upper caste matwali in the third concentric circle, Bhote (Tibetan / Sherpa), Tamangs, Tharus, and other low caste matwalis in the fourth circle, and the untouchables in the outer-most circle (Tamang, 2005: table 6, figure 1). Because of this power structure, there is structural discrimination and exclusion between the upper caste group and lower caste group. Therefore, while the polity based on unitary nation-state (Khas-Arya) is the main cause of the problem; structural discrimination and exclusion are its results. It was in this backdrop that the Maoists started civil war in order to establish a new people's government under the leadership of the proletariat. The indigenous groups and ethnic minorities started their struggle before the Maoists and they are still struggling for their rights.

Issues raised by the indigenous groups and ethnic minorities

The Maoist conflict was ideological, but it was rooted deeply in social inequalities. The indigenous groups and ethnic minorities aimed to emancipate from the oppression and exclusion that they had been facing for ages. Their struggle was to change the structure of the state in order to end structural discrimination, as well as to establish power sharing with groups that were powerful within the state structure. This can be understood as a five pronged approach.

a. Respect for identity and formation of state based on identity

The movement to establish a Hindu nationalism (unitary nation-state) has jeopardized the existence and identity of indigenous groups and ethnic minorities. Therefore, the main issue of the indigenous groups and ethnic minorities was the formation of a multi-ethnic state that belonged to all ethnic groups. They introduced a different perspective on state building: state-nation instead of a nation-state, that of multiple national languages instead of one, secular instead of a Hindu kingdom, multicultural instead of mono-culture, unity among different ethnic groups instead of blind nationalism and a smart nation.

b. Values of indigenous rights: End of discrimination and marginalization

Most of Nepal's indigenous groups and ethnic minorities lived in their ancestral lands and were self-governed. But once the modern Nepali state was formed, their self-rule ended. They are now a group without sovereignty. They want to conserve, develop, and pass their ethnic identity, culture, social organizations, and traditional legal systems to future generations.

c. Ethnicity-based federalism for power sharing

A country with over 125 ethnicities, two groups --Brahmins and Chhetris-- have established dominion, occupying over 80% of state positions. Because of an oligarchy, led by three-party syndicate, the state is centered on two caste groups. It is for that reason that ethnic minorities see identity-based federalism as a model of cooperation between ruler caste groups and those that have been marginalized. Indigenous people see identity-based federalism as a system in which there is local self-rule (at state level) and common rule in the center.

d. Respect for reservations and special rights

The notion that "everyone is equal before law" was a major contribution of western liberal democracy. Equality principle increases the difference in the community of unequals. So Marxists put forward a new thought that financial equality should be the base for legal equality. Those communities who were not a part of the governing body were left behind in every index of development. The indigenous communities are taking prioritization, special rights and reservation as a step towards equality. Thus to reduce differences in governance, ownership, and control, indigenous communities are demanding political rights and reservation.

e. Establishment of proportional, inclusive democracy

The Madhesh movement established federalism in Nepal. Likewise, the indigenous people and ethnic minority movement has a big contribution to make state inclusive and proportionally representative. The proportional system was championed by indigenous people. It served as a savior for minorities who were struggling as they could not win the required number of votes to be elected into the democratic state structures.

The Comprehensive Peace Agreement and indigenous people

The Comprehensive Peace Agreement had three major goals: a. to write a constitution through the Constituent Assembly b. to manage Maoist cadres and weapons, and c. to form CIEDP and TRC to investigate war crimes. The latter two were concerned with the Maoist movement, but the first goal was concerned with the oppressed groups and classes. The “Interim Constitution Drafting Committee” was formed, following June 16, 2006 agreement between the Seven Parties and the NCP (Maoist). This committee was not representative. People protested demanding a more representative body and forced the Committee to change its decision. Women law professionals and professionals from ethnic minorities were then added in the committee.

The Comprehensive Peace Accord was signed between the Nepal Government and the NCP (Maoist) on November 21, 2006. One of the points in the agrees to “carry out an inclusive, democratic and progressive restructuring of the state by ending the current centralized and unitary form of the state in order to address the problems related to women, Dalit, indigenous people, Janajatis, Madheshi, oppressed, neglected and minority communities and backward regions by ending discrimination based on class, caste, language, gender, culture, religion, and region.” Based on these agreements, the Seven Party Alliance and the CPN (Maoist) promulgated the Interim Constitution on June 15, 2007.

Neither the peace accord nor the Interim Constitution talked about including rights to self governance with self-determination and proportional representation based on population that the indigenous people and ethnic minorities had demanded. Indigenous people, the Madhesis, Dalits, and women launched protests stating that the Interim Consititon did not address issues like regional and ethnic self-determination and federalism. Indigenous people and ethnic minorities, Madhesis, women, Dalits, Muslims and other backwards groups who had historically been subject to discrimination, oppression and exlusion by the state had been revolting for a long time. Even after the Comprehensive Peace

Accord was signed, these groups raised their voice, and the government had to sign different agreements with each of these social and political forces. In the eyes of the indigenous and ethnic minorities, the Interim Constitution was not complete and lacked details, even though it talked about progressive restructuring of the state. Because of the Madhesh movement and the revolt by indigenous people and ethnic minorities, which rallied for self-determination, federalism, and proportional representation, the Interim Constitution was amended (First Amendment, made on April 13, 2007) to include progressive state restructuring to make way for democratic federal governance.

The constitution writing process and issues of indigenous people and ethnic minorities

Controlled process

The new constitution was drafted based on the 16-point agreement between the four major political parties: the Nepali Congress, CPN (UML), CPN (Maoist) and the MDRF. But when it was time for the constitution to be promulgated, one of the four parties left the coalition, citing disagreements with the other three parties. As a result, 28 of the 31 parties that had been a part of the Constituent Assembly were outside the promulgation process. Although the 28 parties are not significant in terms of their number of seats in the assembly, their lack of involvement creates serious challenges for the implementation of the constitution.

There was no effort to include any of the parties that had decided to boycott the Constituent Assembly elections. There was a three-day window for collecting citizen feedback on the draft constitution. Less than one percent of the country's population participated in this process. In a multilingual country, the constitution was distributed only in Nepali language and because of language issue, 56% of the Nepali people could not access the draft Constitution. In this way, the Constitution was unable to gather consent from non-Nepali speaking Nepali citizens. On the other hand, indigenous people's groups and Madhesi parties boycotted the feedback-collecting sessions. Big parties like the Nepali Congress, UML and Maoists created pressure in the Constituent Assembly, either forcing CA members to withdraw their proposals for revision, or not allowing them to present their proposals at all (Political Proposals, 2016). It is thus evident that from start to finish, the constitution writing process aimed to put aside the issues of indigenous people and ethnic minorities, and to not let their agenda be included in the constitution.

Restriction on self-discretion, premediated participation of unrelated parties and communities, and promulgation of the constitution without discussing with citizenry, were some of the acts that went contradicted the vision and the stance of the constitution (Political Report of SEJAP, 2015).

The second Constituent Assembly decided to take upon the issues agreed upon by the first Constituent Assembly. However, the exact opposite happened, and issues regarding indigenous people and ethnic minorities that were agreed upon by the First Constituent Assembly were not included in the constitution.

Marginalization of indigenous people and ethnic minorities

In the first CA, Adivasi caucus was formed, which did not happen in CA II. The Monitoring Committee with the United Nations Declaration on the Elimination of all Forms of Racial Discrimination and National Human Rights Commission's Committee on Fundamental Rights and Directive Principles had recommended writing the constitution by achieving meaningful consultations and broader agreement through a special instrument or a committee within the CA.

Although the indigenous people and ethnic minorities pushed to form such instruments many times, the government or the CA did not establish such a body. The Supreme Court had directed that the members be chosen to represent the indigenous people and ethnic minorities which had not been represented in the CA at all. However, the political parties ignored that and nominated their own party cadres. Because of this reason, even the members nominated in the indigenous people quota could not raise the issues of indigenous people.

Violation of the agreement between the government and the indigenous people and ethnic minorities

It was stated in the preamble of the Interim Constitution that “the fundamental right of the Nepali people to write a constitution for themselves.” Because the issues of identity and federalism were not addressed by the comprehensive peace agreement, the ethnic minorities, as well Madhesi and indigenous communities were forced to start a movement.

The agreement between the state and Nepal Janjati Federation and indigenous people and ethnic minorities promised a proportional and inclusive representation in the restructuring of the state. It also promised a minimum of one representation

for one ethnicity. The agreement with the Federal Limbuwan State Council promised a state of Limbuwan with the rights to self-determination.

In a 9-point agreement with the Adivasi Janjati Struggle Committee, it was promised that federalism based on identity would be implemented. In an agreement with the Federal democratic liberation front, Limbuwan, Khumbuwan, Taamsaaling, Tharuhat and other indigenous communities a federal system based on the historic background, language, geography, economic resources and values of the communities was also promised. An agreement was signed with Tharu Joint Struggle Committee to form Tharuwan – Tharuhat, Simrongadh, Kochila state. In an agreement with Tamsaling Joint Struggle Committee, it was promised that constitutional provisions will be enacted to ensure the ownership of the indigenous people, ethnic minorities and local community on the natural resources, rivers and minerals as per the UN declaration. Tamsaling state with right to self-determination and Tamang language as the official language of the state was also promised.

Nepal's peace agreement cannot be called a 'comprehensive' peace agreement. It is rather a 'peace agreement' signed between the government and the Maoists.

Indigenous people and ethnic minorities' dissatisfaction with the Constitution
The constitution includes matters of lasting importance, such as secularism, republicanism, inclusion, and federalism. These are the results of Nepali citizens' struggle. Some leaders consider it to be the end of the movement for democracy that has been ongoing for about 80 years, and the beginning of a new era in Nepal. Some have come to the conclusion that no more political movements will be needed in Nepal.

Indigenous people and ethnic minorities are not satisfied with present achievements, and they feel that the Constitution was uncharitable to their concerns. The Adivasi Janjati National Movement, which includes social federation of the indigenous people and ethnic minorities, state struggle committees, the ethnic and regional front associated to different political parties, have expressed a 19-point note of dissent on the Constitution. Lawyer's Association for the Human Rights of Indigenous People (LAHURNIP) has identified four kinds of discriminatory provisions in the Constitution in terms of indigenous people's rights

1. Eleven provisions against indigenous people and ethnic minorities
2. Provisions that discriminate against indigenous peoples and ethnic minorities (23 articles)

3. Forty-nine articles that promote exclusion of indigenous people and ethnic minorities exclude, and
4. Five articles that promote the hegemony of one ethnic/caste group.

Below are some of the points of dissent expressed by the indigenous people:

Indigenous people and ethnic minorities' ownership of the constitution

There is a problem with definition of two words that have been used in the Constitution. One is that ethnicity and nationality are synonyms. There are groups in Nepal that share a common language, geography, and they want autonomous rule. The formation of states according to ethnicity/ nationality is a practice that is recognized in international liberal politics and law. This constitution defines multicultural Nepal as one-nation (article 3). This will keep oppressed communities from exercising their rights to good governance and autonomy, even in federal Nepal. In addition, the phrase "multinational state" which was in article 4 of the draft constitution was intentionally removed from the Constitution before it was promulgated. To remove those words from a descriptor of the state is to give continuation to the one nation-state that has been in practice for the last two hundred and fifty years.

Similarly, secularism has been defined as protecting the religion that has been passed on for generations (since the ages), cow is still our national animal, and crimson is still a national symbol. The Nepali Brihat Shabdakosh (dictionary) defines sanatana Hinduism as a streak of Hinduism that is currently prevalent. Therefore, Nepal is essentially a Hindu state.

The Constitution has made the Nepali language, written in devnagari script, the official language for government works. The constitution has gone back on the Interim Constitution's declaration of Nepal as a multilingual country.

This Constitution defines Khas-Arya but does not define any other groups. This is a barrier for indigenous people, ethnic minorities and Madhesis and to own the Constitution.

Questions of ethnic identity and autonomy

The indigenous people and ethnic minorities' movement, the People's Movement of 2006, the Maoist armed revolution and the Madhesh Movement anticipated

changing the basic power structure of Nepal. Republicanism was the packaging for this change. A state that is not formed on the basis of identity can not give indigenous people, ethnic minorities, and madhesi the right to self-determination, good governance, and autonomy. The ideal of federalism is autonomy and good governance at the local and regional levels, and co-governance at the central level. Without identity and self-determination, provinces and states do not give people special rights. The new Constitution has determined the structure of the state, with seven unnamed provinces. The demarcation of these provinces has been done in such a way that the Khas-Arya community makes up a majority in all provinces except province 2 (table 2).

Table 2 State & Major Caste/ Caste (in %)				
Province	Biggest Caste	Second Caste	Third Caste	Fourth Caste
1	Aryan Khas (28)	Terai Indigenous Nationalities	Rai (11)	Limbhu (8)
2	Madhesi (52)	Madhesi Dalit (16)	Muslim (12)	Terai Indigenous Nationalities (8)
3	Aryan Khas(37)	Tamang (20)	Newar (17)	Pahade Dalit (5)
4	Aryan Khas(42)	Magar (17)	Pahadi Dalit(17)	Gurung (11)
5	Aryan Khas(30)	Magar (16)	Tharu (15)	Padhade Dalit (10)
6	Aryan Khas(62)	Pahade Dalit (23)	Magar (11)	Others (4)
7	Aryan Khas (60)	Tharu (17)	Pahade Dalit(16)	Others (10)

Source: Hachhethu, K, 2016.

Identity based federalism will not be established under this Constitution. According to the Constitution, the name of the province is determined by a two-third majority, and that is not possible. According to a report by the first Committee on Restructuring of the State and Division of State Powers, the 14 provinces proposed in 2009 and the 10 provinces suggested by the High Level State Restructuring Commission (SRC), formed by the government after agreement between the Maoist, Nepali Congress, and UML were formed on the basis of identity, and demarcation has been done in such a way that some group

have a majority, in terms of population in each province. If demarcation and naming of states had happened according to the suggestions of the Committee, excluded minority groups would have access to and control over provincial politics. Small minority communities could have influence in the politics of local and of special structures (autonomous regions, protected areas and special areas).

Proportional representation on the basis of population

One of the main tools of state restructuring is proportional and inclusive representation. A mixed electoral system was used to hold the Constituent Assembly Elections, 42% representatives elected directly, and 48% through proportional representation. For that reason, there was a huge increase in the representation of women, Dalits, Madhesi, and ethnic minorities in the 2008 and 2013 elections, as compared to the 1999 elections (see table 3). Even this system was not able to give many excluded communities fair representation

Table 3 Community representation, including women, in the Parliament & Constituent Assembly						
S.N	Community	Population Percentage 2011	Parliament 1999	Constituent Assembly Member 2008	Constituent Assembly Member 2013	Constituent Assembly Member (in %) 2013
1	Pahade Aryan Khas	31.27	119(9)	201(62)	234(50)	40.69
2	Pahade Dalit	8.60	0(0)	35(15)	27(13) _	4.69
3	Pahade Indigenous nationalities	27.24	44(1)	160(56)	135(44)	23.48
4	Madhesi Caste/ subcaste	14.96	28(3)	122(34)	95(30)	16.52
5	Madhesi Dalit	4.74	0(0)	16(10)	12(7)	2.09
6	Terai Indigenous nationalities	8.72	12(0)	%(0)-!%(0)_	53(21)	9.22
7	Muslim & others	4.48	2(0) _	17(5)	19(7)	3.30
	Total	100	205(16)	601(197)	575(172)	100

Source: National Census 2011, Election Commission, 1999, 2008 and 2013! Female numbers in parenthesis.

(Karen Vollen, 2015). But the new Constitution has decreased the 48% proportional representation, which has been practiced twice already, to 40%. It is certain that from an inclusive democracy, we will go back to being a unitary-caste dominion.

Centralized judiciary

The constitution has imagined the judiciary as Supreme Court, High court, and district court. The judges and all employees for each of the three levels of judiciary are hired by the same Federal Constitutional Council, Judiciary Council and Service Commission. Also, high court and district courts will have rights delegated to them by the Supreme Court. This unitary judiciary system is against the spirit of federalism. The function of constitutional court, which is supposed to deal with political issues, is also given to the Supreme Court. The act of giving political functions to the Supreme Court, which is a legal body, is the start of an erroneous process in itself.

Make-do commissions

According to Article 261 of the Constitution, there should be a Commission on Indigenous people and ethnic minorities, and according to article 163, a commission on Tharus, a group that is recognized as indigenous and minority. But the Constitution is silent about the work, duty, and rights of these commissions, saying that those issues will be federally decided. A study of other commissions of the same nature shows that they are just make-do bodies that are limited to doing research and producing reports. They do not have paralegal rights, or even the right to register a court case. In addition, according to Article 265, these bodies will be reassessed in every 10 years.

Promulgation of the constitution and Madhesi-Janajati movement

Some people welcomed the new Constitution by lighting up their houses, and others protested the constitution by chaving a backout and displaying the bodies of those who had died in protests. The Constitution was first amended less than a month after it had been promulgated. This Constitution has not determined the names of state or their capitals. According to the Constitutional provision, this Constitution has to be fully implemented before January 18, 2018, local, state and federal elections must be conducted and a new government needs to be formed. If this can not happen, there will be a constitutional crisis.

Nepali Congress and UML won two-thirds of the seats in the second Constituent Assembly. They refuse to acknowledge ethnic identities of the Madhesi, indigenous groups and ethnic minorities as a political force. Eventually, they created a Constitution that was pro Khas-Aryan, but denied rights to indigenous people and ethnic minorities, Madhesi, Dalits, Muslims and other backward communities. After the promulgation of the Constitution, ethnic minorities' movements, especially that of the Tharus, reached a peak. About 50 Madhesi were killed, among them some policemen. Eight months after the Constitution was promulgated, the movement is still not complete.

During this movement, representatives of the United Democratic Madhesi Front (UMDF) presented the Nepal government's delegation with a list of eleven demands. The Adibasi-Janajati Rastriya Andolan, a coalition of 50-60 indigenous peoples and ethnic minorities social organizations, regional federations of indigenous people and ethnic minorities associated to political parties, political parties and people that worked around indigenous people and ethnic minorities' rights, released a 11-point disagreement on the Constitution. Similarly, eight ethnic groups that make up more than 1% of the national population, such as Magars, Tharus, Tamangs, Rais, Gurungs, Limbus, and Sherpas rallied to express their disappointment with the Constitution. On April 18, 2016, 29 political parties, and federalist alliances affiliated to different fronts, made public their differences of opinion with the Constitution, and started nationwide protests.

Conclusion

Nepal's peace process was just an agreement between the government and the NCP (Maoist) but a determination to fulfill the ambitions of the Maoists' armed struggle, and to solve the problems of oppressed groups and labor classes. But the peace process could not live up to these expectations. The Comprehensive Peace Agreement was an agreement between the government and the Maoists, and in that sense, it was not comprehensive at all.

The agreements that the government made with indigenous people and ethnic minorities, Madhesi, Dalit, women and other oppressed communities were as much apart of the peace process. Nepal's peace process was multidimensional and had multiple sides. But Nepali Congress, CPN (UML) and the Maoists took a conservative stance and refused to address the agreements made with these communities. Although many topics were addressed in the Interim Constitution, many issues remain unchanged.

The main purpose of writing a new Constitution was to empower the people who were oppressed by mono-ethnic state and to restructure the state so that people from excluded castes and class communities could also be part of the state. It could not accommodate rights for oppressed castes, classes, regions, and genders that the Interim Constitution and first Constituent Assembly had agreed upon. Leaders from the ruling castes thought that this was a complete Constitution but people from oppressed communities think otherwise.

However, we have secured important fundamental rights, such as secularism, republicanism, federalism, and inclusive representation. This is the result of Nepali people's eight-decade long struggle and must not be discounted. But the rebelling indigenous people, ethnic minorities, Madhesis have demands and aspirations about identity, self-determination, autonomy, equality, and freedom, as well as right, social justice, and change. It is wrong to discount these demands and aspirations and oppress them. Eventually, instead of resolving conflicts, the Constitution increased conflict. From the perspective of the indigenous people, the peace process is still incomplete.

References

- Agreement between Nepal Federation of Indigenous People Committee and Indigenous Nationalities Joint Struggle Committee, 2065 Shrawan 22.
- Agreement between National Foundation for Development of Indigenous Nationalities and Nepal Government, 2069/2/9.
- Nepal Federation of Indigenous Legislation, 2002, Nepal Government, Kathmandu.
- Nepal Federation of Indigenous People presented public statement to the constitution, 2072 Ashoj 2, Kathmandu.
- Indigenous People National movement Nepal presented 19 Points shared manifesto to the Constitution of Nepal, 2072 Ashoj 26, Kathmandu.
- Central Bureau of Statistics (2012), National Population Census Report, Kathmandu.
- Agreement between Tamshalin Joint Struggle Committee and Nepal Government Talk Team, 2065 Chaitra 29.
- Tamang, P. (2065). *Hamro Nepal: Federal democratic republic*, Kathmandu: Monitoring and Evaluation Publication House Pvt. Ltd.
- Tamang, P. (2065). *Ethnic Administration and Federalism*. Kathmandu: Chandrakala Rai and Shyam Kumar Gurung.
- Agreement between Tharuwan sangharsa Committee and Nepal Government Talks team, 2069 Jestha 10
- Nepal Election Commission's election results, 1999, 2008, 2013
- Peace process agreements, understandings, and declared the decision of the collection, (12 points understandings and elaborated peace agreement) Bhaisak 2071, Nepal Government, Ministry of Peace and Reconstruction, Singhadurbar,

Kathmandu.

Nepal Interim Constitution, 2063 (Documented agreement between 8 parties)
Aayush aublication, Kathmandu.

Consitution of Nepal 2072, Nepal Government, Law & Justice book management
committee, Kathmandu.

Constitutional Analysis on the Rights of "Indigenous and Ethnic people, Kathmandu
Federal Liberation Party's (2063) report on political ideological program, Kathmandu.

Agreement between Federal Limbhuwan Council and 7-party Government talks
team committee, 2063/12/06.

26 points issued by Federal coilation, 2073 Baishak 6.

Talk between Federal Republic Government and 7-party, Chaitra, 2064.

Constituional Assembly, Committee on State Restructuring and Distribution of
state power (2066), Constitutional Assembly and Committee on Distribution of
state power submitted manifesto letter and initial draft of the report. Lalitpur.

Committee on Restructuring Recommendations High Level Commission, 2068,
Committee on Restructuring Recommendations High Level Commission
Report, Lalitpur

Joint Democratic Madhesi Front submitted 11 point Proposal to Nepal Government,
Kathmandu.

Hachhethu, K. (2015). *Territorial management and disputes*. Nagarik Daily, (2072) 30
Poush, Kathmandu.

Vollan, K. (2015). *Elections in Nepal*. Kathmandu: Himal Books

Gurung, O. et. al.(2014). *Nepal Social Inclusion Survey 2012*. Kathmandu, Nepal: TU
Central Department of Sociology/Anthropology.

Tamang, P. et. al. (2006). *Nepal Statistics and Indigenous Peoples*. Kathmandu, Nepal:
UNDP & NTG



CPA implementation in security sectors: A gender perspective

Indra Adhikari

Background

People's movement established political change in Nepal in 2006, following the spirit of Twelve-Point Understanding and Eight-Point Agreement between the Maoists and the Seven Party Alliance (SPA). As a result, the Comprehensive Peace Agreement (CPA) was signed between the government of Nepal and the CPN (Maoist) and the Interim Constitution of Nepal (2007) was promulgated. Both the documents expressed a commitment to carrying out a progressive restructuring of the state by addressing issued agendas of marginalized groups, including gender-related problems (see the Preamble of the Constitution).

Similarly, provisions on fundamental rights that assure special legal arrangements for women employment and social security, and the rights of women and rights against exploitation of women and children (Article 12 to Article 32 of the Constitution) have also be included. Overall impression was that security organs like other sectors of the country were not gender sensitive and women friendly, and hence women could not feel secure in their own institutions where they work. Such situation discourages women to join security forces on the one hand and makes it hard to accept their role as security provider. Additionally, criteria of recruitment and structure of the organization was masculine in nature, projecting male as model. It is one of the main factors that discourages women to be recruited in security organizations and adopt it as a profession. Therefore, inclusion of women was one of the major agendas of Security Sector Reform (SSR) under the broader notion of the restructuring of the state as agreed in CPA to create a 'New Nepal'.

Nepali state tried to address it through several initiatives taken at governmental and institutional/organizational levels for creating more inclusive, gender sensitive and women friendly environment Nepal Army (NA), Armed Police Force (APF) and Nepal Police(NP). National Investigation Department (NID)

has not been dealt here because its responsibility is to gather information rather than to act as security provider directly. This article tries to retrospect implementation of CPA in post-conflict Nepal from gender perspective. It has been measured mainly with the help of five indicators:

- (1) policies, programmes, and procedures,
- (2) inclusiveness in organization and professional opportunities,
- (3) structural arrangements,
- (4) response of female security providers, and
- (5) public faith and response.

Policies, programme and procedures for security sector reform

Initial steps toward security sector reform are constitutional and legal initiatives taken by executive and legislative authorities of the state. It normally covers the spirit of requirement of conceptual and contextual change in policies, programmes, and procedures that are fixed through and minutely dealt with acts, guidelines and regulations. There are several legal initiatives taken by the Government of Nepal (GoN) at central level and NA, AFP and NP at institutional level. The table given below shows such initiatives.

Table 1 Legal Initiatives on Policies, Acts, Regulations and Procedures		
Responsible Body	Policy, Law and Regulations Issued	Issues Addressed
Government of Nepal	Interim Constitution 2007	- carrying out a forward-looking restructuring of the state to address gender-related problems (preamble) - instituting special legal arrangements for women; provisions on employment and social security, provisions on the rights of women and provisions on rights against exploitation of women and children (fundamental rights from Article 12 through Article 32)
Ministry of Home	Police Act 2012, - Police Regulation 2014	- inclusive institution - reform
Ministry of Defense	Army Act and Regulation, 2006	- inclusive institution - reform

Responsible Body	Policy, Law and Regulations Issued	Issues Addressed
Ministry of Peace and Reconstruction	National Action Plan On Implementation of the United Nations Security Council Resolution 1325 & 1820, 2011	- gender mainstreaming and social inclusion (GESO) - need for increasing women's participation in other professional sectors, including security - a need for building capacity and empowering women working in security sectors - need for women's participation, both in terms of quantity and quality, to be ensured in these sectors (NAP:6) - improve access to justice for conflict affected women and children - provide gender sensitive justice by carrying out investigation into different kinds of incidents of violence against women - a need for developing women and child-friendly environment in service providing bodies to effectively implement the laws made against perpetrators of sexual and gender based violence against women
Ministry of Defense	- Policy of establishing gender unit	- Establishment of gender unit with inclusion of women members
Nepal Police	- Nepal Police Gender Policy, 2012 - Code of Conduct against Gender Based Violence - formation of separate Directorate for women and children	- includes the behavior to be adopted inside NP against gender-based violence - while providing service to the public, priority must be accorded to elderly, students from remote places, children, pregnant women, women and people with disability. - provision of holiday

Responsible Body	Policy, Law and Regulations Issued	Issues Addressed
Armed Police Force	- FPU Selection Guideline, 2013	- increasing the number of women sent abroad
Armed Police Force	- General Principles for Promotion and Recruitment in APF, 2013	- Increasing women's participation through inclusive promotion principle based on positive discrimination policy
Nepal Army Recruit Secretarial Department	1. Related to recruitment (Recruitment Regulation, 2012) 2. Training related (Recruitment Regulation, 2012) 3. Pregnancy leave (Recruitment Regulation, 2012) 4. Professional development (Women Recruitment Guideline, 2012) 5. Transfer (Women Recruitment Guideline, 2012) 6. Promotion (Women Recruitment Guideline, 2012) 7. Group Division (Women Recruitment Guideline, 2012) 8. Sexual Misbehavior (Code of Conduct, 2010) 9. Beautification (Code of Conduct, 2010) 10. Participation of women recruits in peace mission (Peace Service Work Process, 2013)	
Nepal Army Peace Mission Conduction Directorate	1. Construction of infrastructure (residence) for women 2. 'Child Protection' training related to security of children conducted as a package to recruits who go to serve in peace missions	

Sources: Saathi, 2014, pp.11-15 & NAP, Ministry of Peace and Reconstruction

Structural arrangements

Nepali security forces, especially the NA, which is also the oldest institution in the country and is most traditional. It's one of the main responsibilities is 'to protect tradition and culture', but it has also realized the need to change to meet people's expectations in new context. Security organs of Nepal adopted several policies, programmes and procedures to meet the required changes in the traditional structures of respective institutions. Its major essence is to accept that women and children are fragile in terms of security in any conflict and conflict prone societies. Women are neither encouraged in the law enforcement mechanism nor are seen as security providers. They are also the people who have limited to justice mechanism. This ignorance and unawareness causes further

victimization of large number of population. It further recognizes that women's participation in security organization can play multiple roles. Such participation helps empower institutions through sensitization that assures justice to women and children, to counsel and guide women to avoid the risk of violence and to encourage women to report crime against them, and to empower women through role models.

All policies and programmes adopted by security organs are guided by the spirit of institutional reform through internalizing and adopting policies of women recruitment, promotion and opportunity to reflect structural reforms in institutions. Such reform is expected to lead the institutions towards overall professional advancement that builds capacity, knowledge and skills of women. It also helps to enhance competency to deal with violence against women and children and to promote women participation and gender sensitization of their male counterparts. These moves not only assure security of women but also promote easy access to justice at institutional and functional levels. Women can also serve in these organizations “to deliver integrated services,” in providing shelter, medical, legal or psychological assistance to victims of violence and crime. They can also play role in disarmament, arms control or even in organizing local security committees (Bastick & Witman, 2013). Such engagement of women in state security forces help to widen the scope of their work. As a result, women also have been hired by private security agencies as security guards.

To meet the objective, and concept and context of CPA, some initiatives have been taken by government of Nepal and its security forces: NA, APF and NP, which are given in the table 2.

Issues related to women

Being an important justice provider and law enforcement mechanism, NP provided trainings, such as capacity development programme to female police. In addition, NP provided trainings like ToT on gender/children related crime investigation and counseling, about sensitivity on women and children, human rights, GBVAW, gender responsive investigation, counseling skill, assuring justice for children and psychological treatment/intervention training for more than 3000 personnel at different levels (Nepal Police HQ, 2016). Being mindful of the different roles and responsibilities of women, the security organs have to make effort to establish child centers, changing rooms and separate buildings to ensure privacy. There also has to be separate carrier plan to recruit and promote women in their respective institutions so that women are able to manage family and get chance to advance their career the same time.

Table 2 Strengthened and reformed justice and security system to address SGBV		
Body	Name	Status
Nepal Police	- Formation of Central Gender Unit - Establishment of Infant Care Center June 15, 2010	- Construction of gender friendly women cells and infant care buildings - Sensitivity applied when mobilizing women police officers for specific assignments and places - Enhanced provision for hearing complaints - Gender perspective included in all training related to tele-film transmission
Nepal Army	Nepal Army Gender Code of Conduct Guideline 2013 to Address Complaints and Investigation Related to Gender Based Violence in the Workplace	- Effective implementation of zero tolerance policy against GBV
Ministry of Home Affairs	- Total 240 Women and Children Service Directorate/Center functional - Establishment of gender desk in District Police Offices - Gender Contact Person in all offices - Establishment of separate building for women and children service center in 5 districts by Nepal Police and it is in the process of expanding to 15 districts - Construction work of women's toilet in police units of 25 districts is ongoing - Construction of women's prison in Nakkhu Jail - Provision of two mobile vans for Nepal Police Women and Children Cell and 24 hours toll free hotline	- Women police assigned to take VAW complaints, and to prepare case reports. - Development of Victim Support Guideline to provide a secure environment for women victims to file complaints and providing training. - Publication of compilation of laws related to women and girls - Efforts to make police regulation gender friendly - Developed Nepal Police Policy related to gender violence - Development and distribution of Code of Conduct against GBV. - Two-day training on SGBV for officials of DAO who are responsible for handling such cases.

Body	Name	Status
Ministry of Defense	- Minimization of violence against women and training on human rights, gender mainstreaming, zero tolerance on GBV etc.	
Ministry of Home Affairs	- Developed policy for Nepal Police related to gender violence. - Code of conduct against gender based violence developed and distributed - Establishment of women and children service center in 240 places from the central to the local level through Nepal Police - Provision of separate building for women and children service center in 5 districts by Nepal Police and is in the process of expanding to 15 districts - Construction work of separate women's toilet in police units of 25 districts is ongoing and 65 percent work is completed - Development of Victim Support Guideline which creates an environment for women survivors of violence to file complaints and ensure security (training is ongoing) - District Police Offices generating awareness through screening and exhibition of related movies Construction of women's prison in Nakkhu Jail (ongoing) - Provision of two mobile vans for Nepal Police Women and Children Cell and 24 hours toll free hotline - Two-day training on SGBV to employees of the branch of District Administration Office.	

Sources: Ministry of Defense, Ministry of Home, NAHQ, NPHQ, APFHQ & Saathi, 2014, pp.31- 36)

The National Action Plan on monitoring [UNCHR 1325 and 1820 (Ministry of Peace and Reconstruction, 2011)] has laid emphasis on zero tolerance on incidents of sexual violence inside security sector by taking action against the culprits to ensure justice to the victims. The data of action taken against the offenders in security organs in 2014 show that efforts have been made as per the zero tolerance policy. Punishments that included dismissal from service, suspension, demotion, barring promotions, warnings, cautioning have been found to be effective in protecting victims and ensuring justice. In total, twelve cases in NA, 17 cases in APF and 3 cases in Nepal Police respectively were filed against the offenders. All the culprits were convicted but two cases were not decided because they were under proceeding (Saathi, 2014, p.33-37). NP adopted 8-point gender policy followed by strong operation policy that included fixed time-frame and responsible unit for implementation, and advanced indicators for monitoring and evaluation. (Nepal Police Gender Policy, 2012)

There are going to be challenges in gender-sensitive Security Sector Reform because it may not be liked at local levels. Argument is that it does not match with local culture that prevents the implementation and ownership of reforms (Gordon Welch & Roos, 2015). Strong argument was against 'positive discrimination' of women in security sector arguing that their involvement may weaken the profession. However, such ideas cannot stop the wave of social transformations with acceptance of roles and abilities of women in security sectors. If we analyze the issue in essence, inclusion of women in Nepal can be justified for two reasons:

- (1) increasing women participation in terms of quality and quantity, and
- (2) accepting diversity and variety of caste/ethnic marginalized groups and ensuring opportunities to the most vulnerable and marginalized groups in its structures. Women composition in NA and APF reflect not only the overall structure of these institutions but also reflect society. In NP and AFP, there were 1971 and 782 women from Brahmin/Chhetri categories respectively. Similarly, there were 939 and 310 from Adibasi Janajati, 270 and 10 from Madheshi and 277 and 37 from Dalit categories in NP and AFP (Awasthi & Adhikary, 2012, p.32).

Participation of women in security forces

Nepali state did not recognize women's role in security and military activities before the Nalapani War (1814-1815), when they fought in support of Nepali/Gorkhali troops against the British (Adhikari, 2015, p.133). With the process of modernization of state institutions, women's participation in the military also started but they were there in their traditional roles such as nursing, working as parachute folders and medical doctors since 1961. This was made possible by amendments to the Army Act of 1953. State was compelled to realize and accept women's role in logistic, arms and combat after 2004, and in general service areas in aviation in 2011 (Nepal Army, 2016).

Women were caretakers and laborers whereas security related functions of carrying arms and ammunitions were largely work of men. Such understanding of division of labour was partly challenged by significant involvement, active participation and good performance of women combatants of Maoists army in combat role (Lohani-Chalise 2008, p.172) and partly by the increasing awareness in society about gender through socio-political movements and activities in the country. Number of males in security forces also decreased because a large number of policemen had already left their job because of threat posed to their life and to their family members by the Maoists. More importantly, women

participation in military became a necessity when society was in war. Security checks by security forces during civil war became controversial because of male's involvement in searching female travelers' bodies, and several issues of sexual abuse also came into surface.

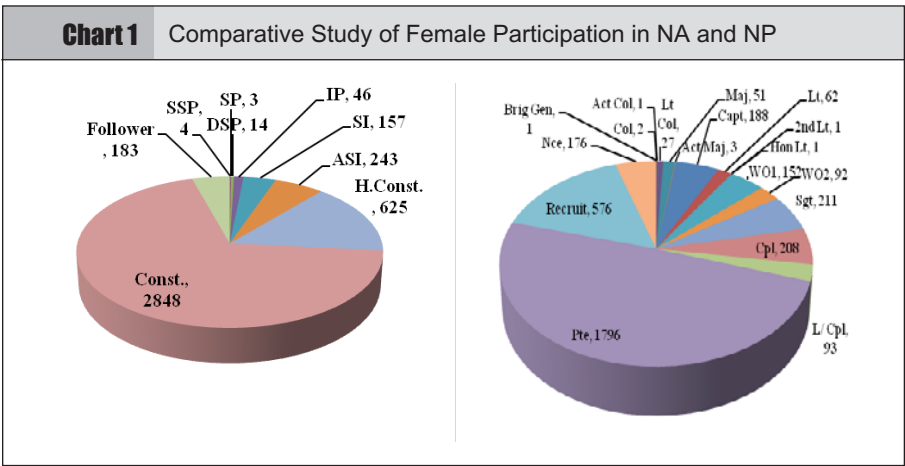
Verbal harassment to women in the security check posts were reported after imposition of the State of Emergency in 2001. Male soldiers too felt uncomfortable searching females bodies, checking bags and other utensils of women travelers. Such social unease and institutional complexity of the military could not convince common people of the military logic that they were there for relief and safety of common people. Common people felt that soldiers were instead causing problems. That made spying, communication and information collecting difficult. On the other hand, Maoists advocated issues of equal treatment to women and recruited them in their military wings with 'stronger' and more responsible roles. This policy of recruitment and distribution of responsibilities to women effectively intensified its military strength in terms of quality and quantity. Being the national army, NA felt the responsibility to increase the participation of more than half of the population constituted by women in Nepal. It felt obliged to respond to its worldwide criticism of being a protector of human rights, international conventions, treaties and agreements on the issue, women's rights to dignity, equality and women empowerment, among others. His Majesty's Government of Nepal accepted strength and distinct capacity and quality of women in armed activities and started to recruit them in logistic, supporting arms and combat position of the Royal Nepali Army (Adhikari, 2013, pp.9-10). Its objective seemed to gain sympathy in the society that would make its institution more dependable and respectful in the eyes of public.

However, women participation in NP dates back to 1951. Chaitamaya Dangol was the first female constable (Women and Children Service Directorate, 2016) and retired as Assistant Inspector. Women were recruited at officer level in 1968 and in other posts such as traffic management after adopting an inclusive policy in 1977 (Ibid; All Nepali News 2013:5). The policy institutionalized women's participation with a creation of a separate Woman Police Company in 1986 and establishing a specialized Traffic Woman Company for the Kathmandu Valley in 1995 respectively (Women & Children Service Directorate, 2016). Recently, NP established Women and Children Service Centers in all districts of the country (Women and Children Service Directorate, 2016).

Numerical strength of women in security organs

Women constitute more than half of the population but are in a small fraction in the security organs. For the first time, the government introduced gender-responsive budgeting in 2007-2008, and provisioned a quota system for the recruitment of marginalized groups in the public sectors, including the NA, AFP and NP in 2007 through a bill that was later converted to an act in 2009. According to the provision, 20 per cent of the total reservation (which was 45 per cent of the total) were for women in all forces ensuring 9 percent of the total number for the women (Adhikari 2013; Adhikari 2015) in future.

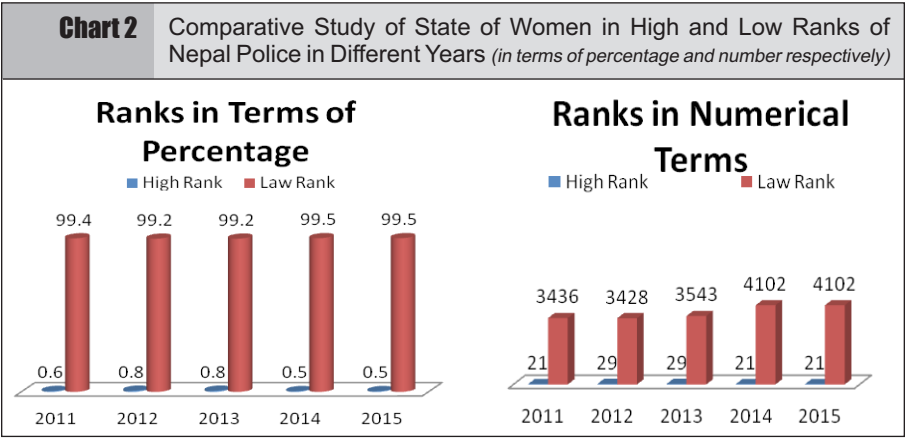
Some state security institutions have also adopted internal regulations and policies to make their forces women friendly. Moreover, the NP announced that it aimed to bring the overall percentage of female police to 10 per cent of the total force by 2018 (All Nepali News, 2013). As a result, the number of women within the NP has increased every year since the introduction of the targeted policy in 2012. There were 3458 police women in 2012, 3,572 in 2013, then 4,162 in 2014 and 4, 525 in 2015 (Women and Children Service Directorate, 2016) that constitute 7 per cent of the total force size. Similarly, NA had a commandment in 2007 to increase women's participation in its organization up to 5 percent. The strength of women in NA was 1073 in 2012 (Adhikari, 2013) that has reached to 4123 in 2016 (NA 2016). Women constituted 1.2 percent in 2012 and 1.54 in 2013 (Adhikari, 2012), 3.22 percent in 2015 (Saathi, 2014; Rai 2015) and 3.5 percent in 2016 of NA (Nepal Army, 2016). The diagram given below shows the numbers of women in NA and NP.



Source: Women and Children Service Directorate (2016) and Women in Nepalese Army, (2016)

The increasing number of women recruitment has great impact in the overall vertical and horizontal structure of the organization. The data shows that even if total number of women in security forces is increasing, their participation in high ranks is somehow static or sometimes decreasing than in previous years. According to a data of Nepali Army in 2012, out of the total female strength in NA, female officers – Second Lieutenant to Brigadier General - occupy 7.49 %. Out of which, junior commission officers recruited directly from Second Lieutenant constitute 8.01% and Non- commission female officers promoted from the other posts occupy 64.77%. Vertically, female soldiers are thus dispersed: 39 in para folder, 163 in nursing, 180 in technical field, 164 in military administration, 58 as followers, 554 soldiers etc.(Adhikari 2013). Normally women recruited in infantry work in administration as assistant of senior officers and top brass, military police, and logistic responsibility rather than artillery in NA. Gender segregated data is available in none of the security organs in Nepal, except for the description of women participation in their respective organizations. A majority of women's service in police is merely confined to women and children service centres. The tradition has limited them in dealing with violence against women and children but they get less access to the knowledge and experience of overall security issues and less opportunity in crime investigations under the jurisdiction of NP administration.

It may be a barrier for promotion to top positions in future for them. The figure with chart below shows that increasing women's participation in low ranks, but it is not reflected in the case of higher ranks. If we see the women's position in higher rank in share and percentage, it's decreasing, as 0.6 percent women were in high rank in 2011 but 0.5 were in 2015), though number of high ranking women was equal (12) in both the years.



Leadership development, decision-making and women

While analyzing trends of recruitment, number of women and their roles and responsibilities in security forces, the responsibilities given and the positions in the organization are very important. Recruitment is open for women in officer and non-officer ranks and they are free to fight for almost every field allowed to men. Those working in technical fields, even if they are in higher position hardly contribute to the value of military/combat professionalism. Every major decisions are taken at headquarters of respective institutions, directorates, divisions of NA and regional offices of NP which are headed by high ranking officers (Brigadier General and above in NA and Deputy Inspector General and above in AFP and NP) in which women's number is almost nil. Nor do women in NA and APF have chance to command barracks from where the leadership grooms and grows. The numbers of women in NP, (DIG 1, SSP 4, SP3, DSP 14 and Inspector 46) and Nepal Army (Brigadier General 1, Colonel 2, Lieutenant Colonel 28) from Technical field in NA show remote possibility of women's good number of participation in top brass of decision making bodies in the near future. The following table illustrates the number of women vis-à-vis men in higher ranks of security forces.

Table 3 Women in Top Brass in NA and NP						
Body	Higher Ranks	2012		Posts	2016	
		Male	Female		Male	Female
Nepal Police	IGP	1	0	1	1	0
	AIG	10	0	11	11	0
	DIG	32	2	34	33	1
	SSP	69	5	77	73	4
Armed Police Force	IGP	1	0	1	0	0
	AIG	4	0	6	0	0
	DIG	11	0	18	0	0
	SSP	11	0	27	0	0
Nepalese Army	Gen	1	0	1	1	0
	Lt Gen	2	0	2	2	0
	Major Gen	16	0	20	20	0
	Brigd Gen	26	2	77	76	1
	Col	221	2	130	128	2

Source: (Saathi 2012:14), Armed Police Force, Head Office, Kathmandu. (20May 2016), NA Adjutant General Department (Record Office), Kathmandu (23May 2016), Police Headquarter, Naxal, Kathmandu. (20May 2016),

NA and APF have no clear and fixed career plan for women. New recruits in infantry and supporting arms may have the opportunity to command the major units of NA such as sections, platoons, companies, battalions, brigades, divisions and NA as a whole on the basis of seniority in experience, required trainings and other qualifications. Hard military trainings like commando, staff college course and battalion commander course are prerequisite for commanding such units. Barrack stay is also equally important to lead, because without being familiar with barracking, no one can grow up as a commander. However, no woman officer meets the criteria and qualifications required to command such units as practiced in the institutions. NA and APF do not have separate units for female like in NP where females have chance to run and gain experience to lead.

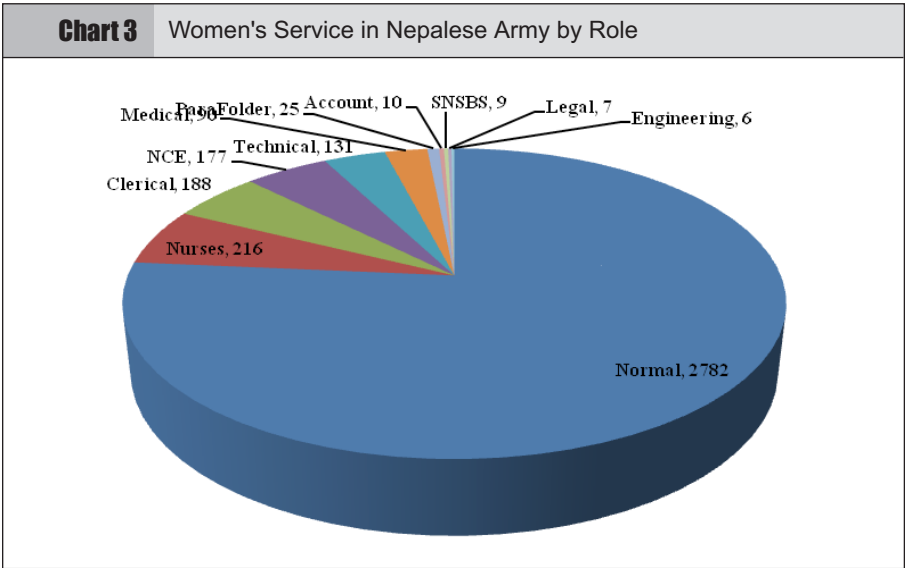
In the history of NA, a woman officer from technical field commanded a medical battalion for 17 months, but she says that "female command hurts the male psychology" and "they think how woman can command and control us ... how a woman can do better than us" (Adhikari 2013:53). Nepali security sector still believes in stereotypes (Blair 2011). Many stereotypes serve as reasons to explain why women could not possibly succeed in combat. Women are considered emotionally fragile for combat and physically weak for the battlefield. It is also believed that the presence of women causes sexual tension in training and battle. At times it is also assumed that male troops will become distracted from their missions because they have to protect female comrades. Women are thought to be not able to effectively lead men in combat. Such views were experienced by a lady officer. She said, "our thin voice and soft words hardly reach to them [male] and our staying away makes us weak in front of juniors". A male officer said - "female as an instructor in front of us seems to be a kind of punishment" (Adhikari 2013:54). These statements from people serving army are enough to demonstrate that women are constructed as inferior sex in security forces.

Opportunity to women in security organs

Chaitamaya Dangol was the first female constable but responsibility prescribed to her were conventional: carry out search and arrest of the women involved in the criminal activities (Women and Children Service Directorate 2016). Recognizing sensitivity of women and saving the victims from further victimization in police office were also considered activities of police-women. At present, Women and Children Service Directorate is making women more organized and trying to specialize to deal with the issue of Gender Based Violence against women and children. A large number of women in NP are recruited for traffic management. By tradition, women are not usually trained and allowed to act in combat role

in NP and NA. Before 2005, women in NA served exclusively in medical, engineering, legal service and parachute folding and other 'feminine' activities. At present, women serve in the military police, administration as office staff, as technicians, and in combat and combat supports well (Kathmandu Post 2014). Analysis of data shows that large fraction (77%) of women serving in NA are in general service, including military police. This is applicable to a large number of junior female officers up to the rank of major.

Thus most of the female officers are found to be working in administration and juniors are found to be working as military police rather than in combat position (Adhikari 2013). It is not only the Nepali psyche but similar trend is seen in the West as well. According to Cynthia Enloe (1988:15), "Women – because they are women, not because they are nurses or wives or clerical workers – cannot qualify for entrance into the inner sanctum, combat. Furthermore, to allow women entrance into the essential core of the military would throw into confusion all men's certainty about their male identity and thus about their claims to privilege in the social order.... Women may serve the military, but they can never be permitted to be the military". Thus in 2016, there were 3614 women serving in the Army, with 77 per cent (2,782) in general service, 5.5 per cent were nurses and clerical staffs respectively (216 and 188), 4 per cent (177) in technical service, 2 per cent (90) in medical and others as given below (Nepal Army 2016)



Women's participation in security sector needs social recognition and acceptance of their work, role and responsibility like male security personnel, women working in security sectors have several opportunities to get exposure and experience by participating in different UN peace keeping missions. All organs have their plans to increase the number of female representation in the upcoming missions. According to a UN report, several plans have been charted out to integrate more female peacekeepers with a belief that skilled and trained female peacekeepers could be useful in future peacekeeping operations (Pariyar 2016).

Though army and police agree to increase the number of women in the missions, it is difficult for women to participate because of some structural regions and policy gaps. Out of 594 APF personnel deployed in UN Missions in 2012, only 15 were women, the highest rank among female participants was inspector (Saathi 2012:17). The table below reflects the women's participation from NP and NA in UN Missions.

Table 4 Women in Top Brass in NA and NP				
Sectors	Missions	Total Number	Number of women police	%(data from 2012-14)
Nepal Police	UNPOL	2625	87	3.31
	FPU	3910	269	6.87
Nepal Army	UNPKM	19146	228	1.91

Source: (Saathi 2014:21)

According to Nepal Police official website, 6 women are serving out of 83 UNPOL and 28 women are there out of 212 Nepal Police under FPU. Similarly, as of 16-May-2016, the Nepalese Army has deployed 4362 soldiers in 15 missions around the world but total number of female soldiers is 93(NA Official Website, 23 May 2016).

Women as security providers and public response

It is understood that women's role in security sector is one of the major issues of SSR. It is natural to expect more female participation in state's security organizations. Non-governmental organizations' report that number of cases of violence against women are increasing. The numbers of reported cases of violence against women in Nepal were 2348 in 2013, and 3522 in 2014 (INSEC

2015:7). More than 70 per cent of the reported cases were of domestic violence, followed by sexual abuse (10 per cent) and rape (7 per cent). Similarly, it is also reported that more than 2225 cases of violence against women had been reported from January to December 2014, with 1503 cases of domestic violence, 199 rapes, 40 murders and 20 attempted murders, among others (WOREC 2015).

According to a government report, the number of cases of domestic violence against women and children have risen dramatically over the past few years. The number of cases reported in NP were 1800 in 2013. It increased to 6,835 in 2014 (Women and Children Directorate 2016). The data shows that cases of rape, attempt to rape, trafficking, abortion, polygamy, child marriages are also increasing. Table 5 below shows increasing trend of violence against women and children. It also shows that the number of women recruitment has great impact in overall vertical and horizontal structure of the organization.

Table 5 Yearly crime data related to women and children							
Fiscal Year (BS)	Rape	Attempt to rape	Trafficking	Abortion	Polygamy	Child marriage	Domestic violence
053/054	112	34	117	74	101	5	337
054/055	181	34	130	101	135	3	228
055/056	141	18	110	181	96	1	432
056/057	186	33	120	89	96	5	711
057/058	122	35	92	55	75	1	449
058/059	129	21	40	14	51	-	410
059/060	157	18	55	15	69	2	569
060/061	154	19	56	8	44	3	922
061/062	188	25	72	11	66	1	730
062/063	195	38	97	14	65	1	939
063/064	317	70	112	3	94	7	1100
064/065	309	73	123	13	122	4	881
065/066	391	75	139	12	170	2	968
066/067	376	101	161	8	146	7	983
067/068	481	151	183	12	197	3	1355
068/069	555	156	118	13	249	12	2250
069/070	677	245	144	28	350	19	1800
070/071	912	414	185	12	421	17	6835

Source: Nepal Police Official Website: Women and Children Service Directorate, <https://cid.nepalpolice.gov.np/index.php/cid-wings/women-children-service-directorate>, and Nepalese Army Official Website: Women in Nepalese Army, <http://www.nepalarmy.mil.np/wia.php?> Accessed 12 May 2016

Trend of filing cases about domestic violence in Women's Commission and offices of Women and Children Development at district level is increasing (Kantipur, 2016 May 20). These data do not necessarily figure out that trend of violence in Nepal is increasing, but the tendency to report crime and file cases against has improved significantly. It is partly because of empowerment of women, increasing social awareness and collapse of traditional and informal form of justice system at community level that sorts out conflict at the local level. It is also partly because of change in modus-operandi, where NP is working closely with community based organizations, NGOs and others. Additionally, current initiatives taken at institutional level of NP are encouraging a gender sensitive approach and to increase the number of women in its ranks and women involvement in dealing with the women and children related cases. Secondly, the fear of repercussions from the perpetrator and long physical distance to a service providing institutions also contributed in fewer reporting of cases. Male police working in remote areas are being trained to make them more responsible and gender sensitive. The policy of establishing police post at ward level also has increased victim's access to justice. Institutional effort taken to improve services to female victims; by creating women and children service centers (WCSC) in all 75 districts as part of a broader gender-sensitive policing program and "service with smile" encourage women to report crime to the police (ADB, 2014; Himalayan Times, 2016). A qualitative study conducted in 2013 on security perceptions at district level shows that women feel more comfortable approaching WCSCs, and "discussing security concerns with female staff of those institutions" (Saferworld, 2013, p.12). More importantly, women are investigating and addressing the reported crime and are providing counseling, advice and guidance.

Structural adjustment to women as women

One of the issues of security sector reform is to make security sectors women friendly by adopting two major initiatives. The first initiative is integrating women in security organizations. The second is changing the structure of the organizations to adjust women. Previously it seemed that security organizations are formed for male and by male because only male were qualified to serve in these organization by tradition (Adhikari, 2010; Adhikari, 2013; Rana & Rana 2011).

Even uniform that is traditionally of male is perceived as a symbol of power to exert authority. Retired Deputy Inspector of Police (female), Parbati Thapa Magar, says that women can't afford to wear *saris* in uniform because that

would immediately change the perception of our ability as officers (Kathmandu Post, 2014). In addition, females who are able to adopt to male characters are considered successful officers in police organization. Female personnels share that they are happy because their parents are happy and they are "not [their parent's] daughters but sons" and serving in police and army "like...son-- brave, strong and responsible to the family, society and the state" (Adhikari, 2013, p.48). Most female security personnel's attraction to join police and army was power. Shifting women recruited in infantry to logistic is rationalized with the argument about their 'safety'. They are not expected to go to the forefront of war, carry heavy loads, and face the rival force and bear physical exertion (Adhikari, 2013).

Some of the structural challenges that bar women's professional advancement are being gradually addressed by security forces. All forces provide maternity leave, infant service centre and flexible service duty to women at the last stage of pregnancy and after delivery. The APF adopted an additional provision of three-month leave without pay as maternity leave, in addition to two month with pay. The APF also has provision for paternity leave and is more gender sensitive in this respect. NA has taken several progressive measures to make the institution women and junior friendly. Most soldiers and officers are continuing their studies. Provisions for separate toilets, rooms for changing clothes and environment for maintaining privacy of female soldiers are yet to be there. Even women barracks do not have required space for drying their clothes and separate compound. Regarding military-family, all forces have their 'Wives Organizations' as part of the organization system. These 'Wives Organizations' have high recognition and easy access to the resources of the Well-Fare Fund of the respective organizations, but there is no such institution for the family (husbands) of female personnel yet. Women in Wives Organization are not selected by the members of the organizations but get the position automatically after their husband's promotion in the respective forces. For instance, wife of the chief of the force automatically gets the position as President of the respective Wives' Organization, and second man's wife is automatically in second position and so on. However, husbands of women serving in respective forces are still not accepted as a part of the same organization.

Terms to address the commander of different units of NA in Nepali language indicate/represent only the male rank, there is no debate initiated to search gender neutral terms. The term "pati" (lord) is still in use as suffix in the name of the units to reflect power and authority of commander. Ganapati (battalion commander), Gulmapati (company commander), Bahinipati (brigadier commander), Pritanapati (division commander), Chamupati (core commander)

Senapati (chief of the army staff) denote male ranking. Even followers and solders are called jawans (young men). That could be quite natural in the history where no woman served before and all unit commanders were males. Similarly, woman officers are also addressed "sir" and wives of generals as "ranishaheb". There have been institutional circulation to stop these but such practices remain. Similarly, more than a dozen taskforce was formed to formulate career plan for women soldiers and officers recruited in combat.

Conclusion

Since 2012, the number of women in state security forces has steadily increased. Inclusion of women in security forces has brought tremendous changes in the respective organizations both at institutional and professional levels. These organizations have been trying to make their policies and actions to make their institutions women-friendly. However, a noticeable gender gap is seen in all ranks of NP and higher ranks of NA and APF. Participation of women in security forces has provided women the range of opportunities, rise in their social, economic and symbolic status. It has further motivated younger generation to contribute something to family, society and the state. Women, especially in police, are providing several services like controlling and investigating crime, providing justice, and counseling and guiding women to avoid the risks of violence at home and in community. The process of reform is moving towards positive direction but the pace is slow.

Only women are not enough to lead the change. Nepal's experience shows that women's leadership in the Ministry of Defense alone does not lead to much policy changes. Her leaders and associates in the cabinet and party, colleagues in parliament and administration under her could be conventional. The cabinet and political parties seem to be less gender friendly. In such context, women positioned at the top of the organization alone cannot bring big changes. Hence, a collective initiative is required to reconstruct and redefine the role of women in security forces and defense. It is possible only through advocacy, research and promotion of women in the security and defense-related fields. Simultaneously, a debate has to be initiated on how the participation of women in the armed forces can weaken deep-rooted masculine institutional character. Equally important is to recognize women's potential contribution in combating threats to the nation-state and in promoting peace.

References

- ADB. (2014, November 12). *More Police Service Centers in Nepal Help Reduce Violence Against Women*. Asian Development Bank. Retrieved from <http://www.adb.org/news/features/more-police-service-centers-nepal-help-reduce-violence-against-women>
- Adhikari, Indra. (2010, September 29). *Women in uniform*. The Kathmandu Post.
- Adhikari, Indra. (2013). *Women in Nepalese Army: A research report*. Kathmandu: NSV/ Nepal.
- Adhikari, Indra. (2015). *Military and Democracy in Nepal*. New Delhi: Routledge.
- Awasthi, G. D., and Adhikary, R. (2012). *Changing in Nepalese Civil Service After the Adoption of Inclusive Policy and Reform Measures*. Kathmandu: Support to Participatory Constitution Building in Nepal and UNDP.
- Bastick, Megan, and Whitman, Tobie. (2013). *A Women's Guide to Security Sector Reform*. Geneva: The Institute for Inclusive Security (DCAF). Retrieved from: http://www.dcaf.ch/content/download/118408/1830053/file/AWomensGuidetoSSR_final.pdf.
- Enlone, C. (1988). *Does Khaki Become You? The Militarization of Women's Lives*. University of California.
- Police Committed to Tackling Violence. (2016, January 22). *The Himalayan Times*. Retrieved from: <https://thehimalayantimes.com/kathmandu/nepal-police-serious-about-tackling-violence-against-women/>.
- INSEC. (2015). *Human Rights Yearbook*. Kathmandu: INSEC. Retrieved from : <http://www.insec.org.np/pics/publication/1429808399.pdf>.
- NEPAL: Rehabilitation Challenge for Child Soldiers. (2010, January 12). *IRIN*. Retrieved from: <http://www.irinnews.org/report/87704/nepal-rehabilitation-challenge-for-child-soldiers>
- Jane, Blair. (2011 May 27). Five Myths about Women in Combat. *The Washington Post*.
- Pariyar, Kamal. (2016, April 6). Nepal Army Gives Top Priority to Female Representation in UN peacekeeping missions. *My Republica*. Retrieved from: <http://www.myrepublica.com/society/story/40049/nepal-army-gives-top-priority-to-female-representation-in-un-peacekeeping-missions.html>
- Ministry of Peace and Reconstruction. (2011, February 1st). *National Action Plan On Implementation of the United Nations Security Council Resolution 1325 & 1820 [2011/12 – 2016/17]*. Kathmandu: Government of Nepal.
- Nepal Police. (2012). *Nepal Police Gender Policy 2069*. Kathmandu: Police Headquarters.
- Nepal Police. (2016, May 10). Women and Children Service Directorate. Retrieved from: <https://cid.nepalpolice.gov.np/index.php/cid-wings/women-children-service-directorate>.
- Nepalese Army. (2016, May 12). *Women in Nepalese Army*. Retrieved from : <http://www.nepalarmy.mil.np/wia.php?>
- Racovita, Mihaela. (2015). Lethal Violence against Women and Girls. In *Global Burden of Armed Violence*. Geneva and Cambridge: Cambridge University Press.

- Retrieved from: <http://www.genevadeclaration.org/measurability/global-burden-of-armed-violence/gbav-2015/chapter-3.html>.
- Racovita, Mihaela, Murray, Ryan and Sharma, Sudhindra. (2013). *In Search of Lasting Security: An Assessment of Armed Violence in Nepal*. Geneva: Small Arms Survey. Retrieved from: <http://www.smallarmssurvey.org/fileadmin/docs/C-Special-reports/SAS-SR20-In-Search-of-Lasting-Security-NAVA.pdf>.
- Rai, Bhrikuti. (2015, December 24). *Is Nepalese Army the Most Inclusive Armed Force in The World?* Retrieved from: <http://southasiacheck.org/fact-check/is-the-nepalese-army-the-most-inclusive-armed-force-in-the-world/>)
- Saathi. (2012). *Nepal NAP on Implementation of the UNSCRs 1325 & 1820 -1st Year Monitoring Report 2012*. Kathmandu: Ministry of Peace and Reconstruction and 1325 ActionGroup/Saathi. Retrieved from: http://www.saathi.org.np/images/stories/pdf/NepalNAPonImplementationoftheUNSCRs1325&1820-1stYearMonitoringReport2012_en.pdf.
- Saathi. (2014). *Nepal NAP on Implementation of the UNSCRs 1325 & 1820 Mid Term Report 2014*. Kathmandu: Ministry of Peace and Reconstruction and 1325 Action Group/Saathi. Retrieved from: <http://www.saathi.org.np/images/stories/pdf/saathimidtermreportenglish.pdf>.
- Saferworld. (2013). *Snapshot of Local Security and Justice Perceptions in Selected Districts of Nepal*- View Resource. Kathmandu: Saferworld Nepal. Retrieved from: <http://www.saferworld.org.uk/downloads/pubdocs/Snapshot-of-local-security-and-justice-perceptions-in-selected-districts-of-Nepal.pdf>.
- Towards a Gender-Friendly Police Force. (2014, March 23). *The Kathmandu Post*. Retrieved from: <http://kathmandupost.ekantipur.com/printedition/news/2014-03-22/towards-a-gender-friendly-police-force-260725.html>.
- NA Set to Recruit More Female Soldiers. (2014, February 23). *The Kathmandu Post*. Retrieved from: <http://kathmandupost.ekantipur.com/news/2014-02-23/na-set-to-recruit-more-female-soldiers.html>.
- Women & Children Service Directorate. (2016). *Current Status of Women Police*. Retrieved from: <http://cid.nepalpolice.gov.np/2012-03-21-09-51-02/women-children.html>.
- WOREC. (2015). *Violence Against Women*. Retrieved from: <http://www.worecnepal.org/index.php/vaw/>.



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Leader, Terai Madhesh Democratic Party

How do you evaluate a decade of the CPA?

This was an organic practice in Nepal. Even the conflict was very unique to Nepal. Those who wanted to change the very character of Nepali society were in favour of the war. As the war went on, the palace and political parties tried using the war to their own benefit. A former home minister from Nepali Congress once told me that Maoists war would ultimately destroy UML in Nepal. And the then UML secretary told me, "Congress thugs will be pulverised by this Maoists war." Rabindra Nath Sharma told me once that the war will be an impetus to destroying democracy by the palace.

All major parties involved understood the war to their benefit. En route to the peace process, Nepal's politics had the seven political parties, the palace and the Maoists. There was also a cozying up of the palace and the Maoists at some point. I think it was somehow related: Maoists punished Baburam Bhat Terai and King Gyanendra take over power in Kathmandu. Any arrangement between King Gyanendra and Prachanda broke and then the political parties aligned with the Maoists. International community had well understood Nepal's democracy and Nepal's political parties got support from the people and outside forces. After 9/11, it became very difficult for the Maoists to wage war. Even Nepal's Army wasn't in a position to win the war outright. All these forced Maoists to come to the table.

Girija Prasad Koirala was worried about the future of democracy and so then wanted to entertain Maoists idea of constitution assembly. Like I said before, the king, political parties and the Maoists were trying to form different alignments and so there was a lot of confusion. But both domestic and international environment moved everyone towards the peace process.

How did the political parties come together?

I tend to not value the roles of individuals in the peace process. I also had regular conversations with Maoists leaders, especially with Baburam Bhat Terai, Krishna Bahadur Mahara, and Ram Karki. I also helped conveying messages between political parties and the Maoists.

Why did different negotiations fail?

The negotiation with king Gyanendra had to be suspended. And the talks before that were used to understand each other's psychology. The overall environment was not conducive for the talks.

What was the role of the palace en route to the peace process?

Gyanendra was intent on distancing the political parties and the Maoists. King wanted to run one-party dictatorship. King and the Maoists were assured of huge unpopularity of the political parties. However, the parties were too big to be ignored. King Gyanendra wanted to use the army and finish the political parties, and then scare the Maoists as internationally labelled terrorists in the global campaign against terrorism.

The palace was somewhat successful in alienating the parties, but then the Maoists were doubtful of king's intentions. The size of the army doubled, quasi-armed force was set up and there was global campaign against terrorism. The increasing militarisation of the state worried Maoists and they ultimately aligned with the political parties against the king.

What were reliable sources of contact among the political parties, the Maoists and the palace?

The palace was alert to ensure that the Maoists and the political parties weren't talking. Gyanendra was putting leaders behind bar on corruption charges. The 12-point agreement sealed the deal between political parties and the Maoists. There was no turning back.

What was the role of India in the peace process?

India was outside of this whole process. They were alert, studying closely the whole process. They also saw China, USA, palace and the Maoists come together. Maoists also understood later that they needed international guarantor to ensure the sustainability of the peace process. Maoists were not winning the war and so they also wanted India's involvement. Brajesh Mishra, SD Muni, Shyam Sharan and Shiva Shankar Mukharjee all played important role. This helped us to move towards peace.

Why did the 12-point agreement not happen inside Nepal?

The agreement did not happen at one place and in one sitting. A non-paper was being circulated, and amendments were coming in. The agreement came to me 2-3 times. It was announced once all the parties agreed to it. It was not like everyone sat together and signed.

TRC and CIEDP have started their work. What do you make of the whole process?

This is long overdue. Delays in the process have also hampered the peace process. This is political deception because the parties agreed on this long time back. This was a road map to Nepal's peace process.

UML and Nepali Congress undermined the Maoists. However, they became the biggest party after the first CA elections. Nepali people gave them a chance.

Do you think the CPA will usher Nepal towards lasting peace?

No. This helped in concluding one conflict. Until and unless there is fundamental restricting of Nepali state, we will have one or the other forms of conflict.



Comprehensive Peace Accord and Madhesh aspirations

Chandra Kishore

Introduction

Nepal is currently at one of the most difficult crossroads in its history. At this point, it is likely that the country will make a great leap towards peace and prosperity. Old structures have changed because of the peace process, and the new aspirations brought by this change are slowly being institutionalized. However, although many of the old structures have been discarded, in many ways, its vestiges remain. Similarly, the lack of common understanding between the forces involved in the transformation of the country has led to a slowing down of the pace of change. Egos, ambitions, and self-interest of the political parties and players at the forefront have also slowed down the pace of change.

The then Communist Party of Nepal (Maoist) and the Seven Party Alliance heading the government signed the Comprehensive Peace Agreement on November 21, 2006. This started a new journey for Nepal. For the first time in history, the people's representatives were making a common commitment about what path they wanted to go take. They also developed an agreement for a peaceful path. A week after they signed the Comprehensive Peace Agreement, the parties also signed an agreement about the monitoring of Maoist combatants and weapons. An interim government was formed with participation by the UCPN (Maoist), and the Interim Constitution was promulgated. Because the basis for peace was established in such a short period, the constitution had terminated the vision for a federalized country; this led to the Madhesh movement.

There was a conflict between the collective political movement of the Madhesh and the former rebels, due to the views and behaviors of the Maoists during the Madhesh Uprising, which started on January 16, 2007, the day after the Interim Constitution was promulgated. This added risk to the otherwise natural and easy progression of the peace process. In this regard, it is essential, when analyzing the decade following the Comprehensive Peace Agreement to observe

it from the angle of the Madhesh. This article attempts to assess the journey of the Madhesh after the Comprehensive Peace Agreement, its effect on national politics and imminent challenges.

Starting point

The Madhesh uprising was searching for the logical conclusion to the Maoist civil war and complete, wholesome democracy. The international community also supported the Agreement. The idea that the state must be captured with force through an armed rebellion is not new in Nepali Communist uprisings. This has been an ongoing debate among top leadership since the establishment of the Communist Party. According to an article by Professor Krishna Khanal Himal Khabarpatrika:

‘ “The Maoists’ armed struggle is the most united, extensive and the longest armed struggle in Nepal’s history. Before this, Nepali Congress had started an armed revolution in 1951, and taken up arms again after 1960. Similarly, the Communists had also taken up arms during the “Jhapa Uprising”, with the aspiration to “destroy the class enemies”. There were other smaller incidents in Nepal’s politics when weapons were used. But the character, organizational structure and management of the Maoist armed struggle makes it different as well as far-reaching than other conflicts. For the first time (in Nepal’s history), the Maoists created an army that was motivated by political philosophy and a major part of the party’s structure. The army was an important tool in the Maoists’ quest to spread influence, control and war. On the other hand, other sides engaged in the drafting and implementation of new agreements for political resolve have a reason for doubt and caution.

The Twelve-point Agreement that was signed by the Seven Party Alliance and the Maoists in November 2005 marks the beginning of the establishment of peace in Nepal. The Third Article of this Agreement allows for peaceful revolution. In contemporary history, the Second People’s Revolution of 2006 was such a movement. Article 3 of the article reads:

The country, today, demands the establishment of a permanent peace along with a positive resolution of the armed conflict. We are, therefore, firmly committed to establish a permanent peace by bringing the existing armed conflict in the country to an end through a forward-looking political outlet of the establishment of the full democracy by ending the autocratic monarchy and holding an election of the constituent assembly that would come on the basis of aforesaid procedure. The

CPN (Maoists) expresses its commitment to move forward in the new peaceful political stream through this process. In this very context, an understanding has been made to keep the Maoists armed force and the Royal Army under the United Nations or a reliable international supervision during the process of the election of constituent assembly after the end of the autocratic monarchy, to accomplish the election in a free and fair manner and to accept the result of the election. We also expect for the involvement of a reliable international community even in the process of negotiation.

The Second People's Movement, led by the Seven Party Alliance, took place between April 6 and 24, 2006, causing the king to surrender before the people. When the king reinstated the parliament he had earlier dissolved, the Maoists agreed to be a part of this parliament with 33% of total seats. The two parties wrote separate letters of the same kind asking the Secretary General of the United Nations to help Nepal in its peace process.

According to the book "Peace Process and Federalism in Nepal":

"The Code of Conduct between the CPN (M) and the Government was signed in May 2006. By the proclamation of the House of Representatives in May 2006, the power of the King was stripped by removing him from the position of Supreme Commander of the Army and suspending his role as head of state."

Discussions are ongoing about the influence and achievements of the Twelve Point Understanding reached between the Seven Political Parties and Nepal Communist Party (Maoists) in New Delhi, India, and about the void that is remaining. By the time the peace processe moved from the Twelve Point Understanding to the reinstatement of parliament, the country had only two power centers, as opposed to three. The Twelve point understanding had given the Maoists heart to rest their arms, and the Second People's Movement had endorsed this. The most important effect of the twelve point agreement was the people's movement of 2006. The 12 point agreement was important because the rebels had agreed to the idea that people's sovereignty and true democracy are the means to peace and prosperity. It had also made the Maoists' transition into democracy simple, stressed settlements and understanding and thus voided parties' self-interests on issues of national importance, and create a space for parties to work together for a peaceful resolution to problems of national significance. With this understanding two main stakeholders of Nepali Politics (the Seven Parties and the Maoists) agreed, in a written document, to peacefully

resolve the country's problems; they had also succeeded in it creating a rough outline for this peaceful resolution. The understanding brought closer to violent conflict, Nepal's most pressing issue at the time.

The Constituent Assembly election, the quickness of the peace process, and broad definition of people's sovereignty, legally and in practice, are all results of the twelve-point agreement. The Maoists could switch from being a rebel force to being in the establishment because of the people's endorsement of their desire for peace. Nepal was declared a republic so that the children of commoners could serve the country in its topmost position. The twelve-point understanding was the beginning of change because such historical leaps were only possible because of it.

The Constituent Assembly and the Madhesh issue

Democracy (Loktantra) is a system where humanity and the basic belief of politics are protected; it is a political system where the people have full rights in every sphere. In democracy, the people are the sovereign. They are decision makers, and have the right to govern themselves. There is rule of law in democracy, and no one is more or less important in the eyes of the law. Every citizen has a respectful, equal part to play in governance and other spaces within the state, and unelected bodies do not have arbitrary power. Democracy is the rule of the people; the people have ownership over the state.

Attempts at modernization and democratization of Nepal have been moving forward, stalling, and getting tangled up in conflict since 1951. However, after the People's Movement of 2006, this process started with a new determination. The Constituent Assembly was seen as a legal body that would will into action, in the restructuring of the state, ideas such as the unity within diversity in society, democratic values, inclusive participation, and proportional representation. In many ways, the class and caste make-up of the rulers or leaders determine a country's characteristics. In Nepal, the hill people have a large presence in the ruling class, but with time, there have been demonstrations against this disparity. The voice of dissent that emerged right against this disparity after the promulgation of the Interim Constitution of 2007 slowly transformed into the Madhesh Uprising. Following the Madhesh uprising, there is a new trend of political awareness in the Madhesh. It is a big enough challenge to channel the energy of growing awareness into nation-building from within the boundaries of democratic philosophies and conduct. Managerial skills are indispensable for this.

The Madhesi issue stems from an identity crisis. The Madhesis are demanding that they should get social, economic and political rights based on their identity as Madhesis. Geographically, Nepal is divided into the mountains, hills, inner Terai, and the Terai (plains), because there are two main kinds of topography in the country, the hills and the plains. The Madhesis are indigenous people who are not from the hills, who do not speak Nepali as their mother tongue, and who have their own unique language, culture, clothing and lifestyle. There is a tendency in Nepal to define, as people of Nepali heritage, only people of hill heritage as Nepalis. Madhesis are generally not recognized as indigenous people of Nepal.

In a country like Nepal, where there is such diversity, the state mechanisms have to be democratic, pro-people, participatory, and inclusive for the establishment and development of a successful polity. Identity and recognition are major problems for the Madhesis. The issue of restructuring of the state should not be viewed simply as an issue of creating a new geographical and administrative unit, because that kind of structure cannot take the nation towards a transformative direction. Mentalities and strategies that force a single identity on people and reject (refuse) diversity are unacceptable in a democracy. In that way, the Madhesh uprising should be addressed and imbibed in this sense. The state must see the society post-Madhesh uprising, both as a challenge and as an opportunity. The issue of the Madhesh has five components: identity, representation, access, autonomy over natural resources, and territory. The origin of the problem is identity, only by settling the issue of indentity can we ensure the mainstreaming of the Madhesi community.

Even after the beginning and end of the first and second Constituent Assembly's terms, some questions remain from the Madhesh angle. The Third Madhesh movement is ongoing. The Madhesh movement is confronting the attitude that a certain ethnicity, a certain face, and a certain language was the definition of nationalism. It came up as a movement for proportional participation in the state, which would ensure coexistence and civilian rights. It was an expression against the center's attitude, which treated the Madhesi people only as a vote bank. Basically, the Madhesi movement was caused by the conceptual conflict between Nepaliness and Nepaliyan. This came as a reaction to the psyche of common Nepali people of looking at the belongingness to the nation of a community based on 'Nepalipani' even after the Second People's movement. 'Nepalipani' institutionalizes the unitary central state system, monarchy, hindu religion and Nepali speakers identity as being Nepali where as the concept of Nepaliyan aims at building a unified nation Nepal with a federal state system in a

democratic republic, national army, multilingual society and culture, equal claim on resources and unity in diversity. Madhesh rebellion wanted to establish such a Nepal, with Nepaliyan as the guiding spirit.

For the Madhesis, the monarchy was not just a system of governance but a symbol of prolonged slavery. Madhesi commoners have fought a long battle for freedom from the chains of domestic colonialism which the monarchy was patron of. The monarchy was the at center of the cultural and economic marginalization that Madhesi commoners felt within the boundaries of Nepaliness, as well the the pain that they experienced. Their want for freedom from this enslavement emerged at times in the form of Durga Nath Jha, and other times roared in the form of Raja Prasad Singh. Many Madhesis have incurred great losses and many others have died while fighting freedom from the moose that the monarchy handed to them.

It is necessary to dig out the history of how the monarchy tried to oppress the Madhesis' intelligence, and how it tried to enslave them. Unless a equality is established, Madhesis will continue to feel and express how they feel stifled. They will raise their voice for freedom in villages and cities throughout the Madhesh. They will keep singing songs of rebellion in Kamala and Koshi rivers. The implementation of the republic is the official sendoff of the monarchy. Although legally, the monarchy is outside the political field of vision, shadows of the monarchy will remain regardless of who is president, unless the state is representative and grudging towards issues of identity.

The Constituent Assembly has produced Nepal's Constitution 2015. But this Constitution has not been implemented. Nation-wide implementation of the constition means that people of different geographical regions and different identities are able to trust the Constitution, and accept it from their hearts. In these circumstances, everyone would feel that the constitution assured a secure present and a common future for them. The Constitution can not be implemented naton-wise if it brings division among the people, or encourages discrimination. If we can make the Constitution that everyone can own, or if it can be everyone's constitution regardless of their identity, then it is possible to implement the Consition. It is necessary for everyone to feel warmth towards the constitution.

Conflicting sides

At the present, there are two major tasks for the nation: creating an environment where everyone who lives inside our borders needs to believe that we have a secure present, and hope for the future, and then we need to reduce social conflict dramatically. We need a way for everyone to feel a sense of belonging, and the Constitution may be a way to ensure this. What all actors need to understand is that there is no alternative to creating a unique and respectable state in Nepal, and that for this to happen, we need to work on the basis of understanding between different communities and regions. If any group tries to move ahead on the basis of hatred, prejudice, or vengeance, achievements that have been made due to pressure will not be able to result in longterm peace and prosperity. Regardless of where federal borders are drawn, states are going to have mixed populations; even if a single group forms a majority, they will need the assistance and support of minorities.

It is necessary to stop polarization in society so that we may convince everyone, including those that feel that the country is theirs but the state isn't, that the state is theirs too. Regardless of where extremism is coming from, we should discourage it. Close communal relationships can be a starting point for stability, peace and prosperity. It is necessary, not just in the short-term, but also the long-term, for one community to understand the problems of another community, and to help voice their opinions when their voices are suppressed. No system will work until the hills and the Madhesh can work together. It is treachery to try to misunderstand the centrist Madhesis, who are linked to the redefining of democracy and nationalism, to create a conflict between Madhesis who live around the highway, and those that live more to the South.

The Nepal government and United Democratic Madhesi Forum (UDMF) reached eight-point agreement on February 28, 2008. The then Prime Minister Girja Prasad Koirala signed the agreement on behalf of the Nepal government. As a result of this agreement, the Madhesi political parties participated in the first Constituent Assembly elections. An agreement reached among the Prime Minister and the President of the Nepali Congress, as well as the Chairpersons of the NCP(UML) and the Maoists, and was primarily a contract between Nepal government and the Madhesi parties. The Madhesh expected ownership over the first and second Constituent Assemblies based on this contract.

Madhesi-Maoist relations

In his book “Battles of the New Republic: A Contemporary History of Nepal”, Prashant Jha writes:

“On 19 January, a Maoist team was travelling from eastern Nepal to Birgunj, a town in the central Terai. Senior Maoist leaders were in a jeep while other Maoist activists had crowded into a couple of minibuses. In Lahan, the team came across Ramesh Mahato and other protestors from the MJF who refused to allow them to proceed. They stopped their vehicles next to the town’s petrol pump. A skirmish followed, with young men of both sides jostling each other. Suddenly, eyewitness accounts say, Siyaram Thakur, a Maoist, pulled out a gun and fired. The bullet struck Mahato on his chest.”

The relationship between Maoist and Madhesi social groups was complicated even after Maoists joined the peace process. Madhesis sympathetic towards the Maoists were dissatisfied because of the Maoists’ silence when federalism was not in the constitution. The distance between these two parties increased after Ramesh Mahato was killed in Lahan, and in some ways, there was a feeling of revenge. There is a long backstory for the formation of these attitudes. After the first Madhesh movement, many armed revolutions started in the Terai that tried to replicate the Maoist’s armed revolution. Former members of the Maoist party, like Jaya Krishna Goit and Naagendra Paswan left the party to start armed movements, accusing the party of being hill-centric. Influenced by them, many other armed movements began in the Terai. In addition to carrying out other activities, these armed groups were also motivated to avenge the Maoists.

When the Maoist party became the largest party in parliament after the first Constituent Assembly election, the Madhesi People's Rights Forum (MPRF), the largest party in the Terai, and the Maoist party, which was a major power nationally, started a partnership out of respect for the people’s mandate. Both the Maoist party and the Forum had emerged in national politics through revolutions, and are considered forces of change. There were some unique commonalities between the manifestos that they had produced in the run up to the elections. When a government was formed under Baburam Bhattarai, who was the Prime Minister when the first Constituent Assembly was dissolved without writing a Constitution, the Maoists had signed a four-point agreement with the Madhesi parties.

The Maoist party was one of the creators of the new Constitution, which brought forth by the second Constituent Assembly. When there were protests against the new Constitution in the Madhesh, the Maoists were participating in celebrations across Kathmandu. Right now, a central leader of the Maoist party and a leader of the civil war is heading the government. He seems positive about Madhesi issues.

Safe landing of the peace process

The integration and management of ex-combatants has taken place following the signing of the Peace Agreement. Bodies have been formed to provide justice to the victims of the civil war, investigate into the status of missing people, and resettle displaced people. The biggest challenge when it comes to talking about transitional justice and accountability is that there is little interest in those topics. While impunity is growing, there is little discussion surrounding how to stop this. Accountability refers to the idea that people in public office or people who have official responsibility are answerable for the situations that emerge because of their action or inaction. Issues about how to hold perpetrators of serious human rights abuses answerable are still complex. During the conflict, there were a vast number of human rights abuses. Search for a political consensus on how to address these human rights abuses and extremities is ongoing.

Impunity must not be encouraged by any side in Nepal. Lasting peace cannot be established, when transitioning from a situation of violence to democratic political practice, if we cannot come up with a good solution to questions about how to address human rights abuses from the past and how to ensure justice for victims. Supporters of the peace process should push for positive change so that violence does recur. In essence, politics should be free of violence, and common Nepalis should be able to feel fearless.

For half a decade after CPA, there were armed struggles in the Madhesh, surrounding the Madhesi issue. Currently, those issues have become minor. The issue that is of prominence now is that unless there is a just management of matters raised by the centrist Madhesi forces and the peaceful movement, there will not be a stable peace in the Madhesh, and unless there is peace and stability in the Madhesh, there cannot be peace and stability in the national politics. When we talk about political complexities and challenges of Nepal's conflict or of the days of transition that followed, the Madhesh must also be talked about. After the peace process, there was the expectation that those in peaceful politics would be strengthened, democratic processes would find an important place,

caste, regional, gender, religious and social discriminations would be addressed, issues regarding the livelihoods of common Nepali people would be addressed, extremist political doctrines would be weakened, and the state would be more inclusive, but a decade has passed, and there is still work to be done. If the main political forces are satisfied with things as they are and do not address the issues of change and livelihood that the people have raised, extremist forces will be more active and effective.

Epilogue

The beginning of the Twelve Point Understanding reads:

“Therefore, it has become an inevitable need to implement the concept of full democracy through a forward - looking restructuring of the state to resolve the problems related to class, cast, gender, region and so on of all sectors including the political, economic, social and cultural, by bringing the autocratic monarchy to an end and establishing full democracy.”

This has been defined in more detail in the Comprehensive Peace Accord. This also proves that the Madhesh issue does not fall outside these contexts or processes. The relationship between one citizen and the state defines the relationship between other citizens and the state. In democracy, individuals are provided with the opportunity to hone their skills and use their skills and energy to benefit the largest number of people possible. The relationship between the state and any one community or region defines the relationship between the state and other communities or regions. Because of the conservative activities of the state, relationships between communities and regions are crumbling, and this is being revealed in tangible and intangible ways.

The purpose of democracy is to make the people stronger than the state, and for that purpose, citizens must be at the center of the state. Because of the Comprehensive Peace Accord, republicanism, federalism, secularism, and inclusion have been institutionalized, the election has happened twice, and there is a new Constitution. The most crucial need is to make the Constitution more acceptable. It is also necessary for the forces that have accepted the Consitution to make a unified effort to carefully examine the complexities and contradictions in the Constitution. If in case this Constitution fails, we cannot even imagine what alternative democracy will be like.

The centrist Madheshi forces are also a part of the mainstream transformative politics, and this issue involves them as well. There are still ways out. If the constitution is endangered, the destination of the peace processes will be inaccessible. The peace process can not be considered complete unless it is able to change society, and unless it is able to translate into the lives of common citizens. We can start practicing accountable politics in the future by carefully evaluating the (politics of) the last decade. We must understand that in practical terms, the people are a resource that will help build the country. The peace process must not be taken as a step that was taken to bring some armed force into power, or to bring the detested parliamentary parties back into the politics of power. The main intention of the peace process was to defeat all the factors that have limited Nepal so far and create a peaceful, self-respecting, prosperous and independent country. This is what common Nepali people mean when they talk about a New Nepal.

References

- Twelve Point Understanding reached between the Seven Political Parties and Nepal. Point three.
- On the request of the Nepal Government and the NCP (Maoist), the 5622nd meeting of the United Nations Security Council unanimously decided, on January 20, 2007 to establish the United Nations Mission in Nepal (UNMIN). The UNMIN's mandate was to monitor the ceasefire, and help in the preparations for Constituent Assembly elections, and to monitor the disarmament of both warring sides as well as the integration of Maoist rebels.
- Uprety, B., Topperwin, N., Heinieger, M. (2009). *Peace process and federalism in Nepal: Experiences, reflection, and learning*. p. 40.
- Gupta, Jay Prakash. (2009). Madhesh uprising: The purpose of the Constituent Assembly, *Madhesh: Messages from the pending third uprising*. pp. 16.
- Jha, Prashant. (2014). *Battles of the new Republic: A contemporary history of Nepal*. pp. 206.
- (August 28, 2011). The agreement between the NCP(Maoist) and the United Democratic Madhesi Front about main and basic issues regarding the peace process, the Constitution, and working in a coalition government. Chairman Pushpa Kamal Dahal of the Maoist party signed the agreement, along with Bijay Kumar Gachhedar, Mahantha Thakur, Rajendra Mahato, Jay Prakash Gupta, and Mahendra Prasad Yadav from the Madhesi Front.



Madheshi perspectives on Nepal's peace process: A gaze at the CPA

Mohan Singh

Nepal's constitutions have been changed a number of times in recent history, and none of the changes could relieve the Madheshi people's fear of being marginalized and excluded. Hence, Madheshi people have been launching separate movements after every major changes in Nepali polity, demanding just and equal representation in state organs. After the birth of democracy in Nepal in 1950, Vedanand Jha started Terai Congress, after restoration of democracy in 1992, Gajendra Narayan Singh formed Nepal Sadbhawana party and after the People's Movement of 2006, Upendra Yadav launched Madhesh Protest to raise the discontent of Madheshi People.

The political changes occurred at the onset of CPA was supposed to address the discontent of Madheshi people towards the state but that did not happen. Madheshi people are still dissatisfied. Their struggle is still going on. The recent political changes also couldn't relieve the Madheshi people's fear of exclusion.

Madhesh has expectations from CPA, mainly because of followings reasons:

- (i) CPA has de-facto effects on Madhesh as it was giving direction to Nepali politics.
- (ii) Madheshi people were involved in the Maoists movement, a key partner of CPA.
- (iii) One of the major Madhesh-based parties, Nepal Sadbhawna Party, also signed the CPA.

(i) De-facto effects of CPA on Madhesh

Madhesh had major grievances with the monarch of Nepal. Madheshi leaders were critical of late King Mahendra's policy of "Eutai Bhasha- Eutai Bhesh": one-language, one-culture, one-religion and one-costume. The policy of one language, one culture and one religion, adapted right from Prithvi Narayan Shah to Panchayati rulers, merely focused on power consolidation and sustaining dynastic rule, depriving ethnic communities of their linguistic, cultural and

religious rights (Tumbahang, 2009). The policy put language, culture and custome of Madhesh in danger. For example, district administration office did not provide citizenship to those who did not use photos wearing dhakatopi (Nepali cap).

A major struggle of Madheshi people was for restructuring of the state to resolve the problems. However, the Madheshi parties have been very specific about the way of state restructuring. They demanded state restructuring through federalization of country.

(ii) Madheshi connection to Maoists

Communist Party of Nepal (Maoists) launched civil war against the government of Nepal in 1996. The primary casual factor of war was inequality between different sects of society. Maoist is the first national party who adopted the idea of state restructuring through federalism, which was the agenda of Madheshi brought out by Gajendra Narayan Singh of Nepal Sadbhawana Party.

The Maoists formed a separate wing called "Madheshi National Liberation Front" to expand itself in Madhesh.

With regards to the role of the Madheshis during the Maoist insurgency, the CPN (M) established the Madheshi National Liberation Front (MRMM) in 2000, under the leadership of Jai Krishna Goit. This was part of the Maoist strategy to tap into identity politics and to win support among regionally-excluded communities (Mabuhang, 2015).

(iii) Nepal Sadbhawana Party as a signatory to CPA

Nepal Sadbhawana Party is the oldest surviving Madhesh-based party in Nepal. This party is the first to raise the demand of state restructuring through federalism. However, the major concern of Madheshi people, which was restructuring of state through federalism, was left aside from the beginning of the execution of CPA.

As per the mandate of CPA, article 21 of the interim constitution ensured state restructuring by including Madheshi community in state agencies.

Women, Dalits, indigenous ethnic groups [Adivasi Janajati], Madhesi communities, oppressed groups, the poor farmers and labourers, who are economically, socially or educationally backward, shall have the right to participate in state structures on the basis of principles of proportional inclusion (Government of Nepal, 2007).

Evolution of demands for state restructuring through federalism

A part of Madhesh was annexed into Nepal as the de-facto effect of the memorandum of 1816 and treaty of 1860 with the East India Company. Through the memorandum of December 8 1816, the Company government handed the region between west of Koshi and east of Rapti river to Nepal, instead of paying two hundred thousand rupees per year as previously agreed upon on Gurkhas' request for supporting living cost of their employees. The region west of Rapti and east of Mahakali came through the treaty of 1860 as a reward to Gurkhas for their support to the East India Company for suppressing Sepoy Mutiny of 1857 to 1859 and is also called *Naya Muluk* (Kumar, 2009). This is not different from the formation of state from most of the part of the world but the treatment given to people of newly annexed part in Nepal made Madheshi people struggle for a separate province.

Though the land of Madhesh was annexed under the rule of Nepal government, the language, culture, costume of the people residing were not provided the same national status. Further more, Madheshi people were discriminated during recruitment in civil service, police, army and judiciary.

According to a study conducted by the centre for Economic Development and Administration (CEDA), 80% of the position of power and profit are held by the hill Brahmins, Chhetris and Newars. A subsequent survey has revealed that more than half of the government civil servants is drawn from the Kathmandu Valley only which contains about 3% of the population of Nepal (Ahiraj, 2006).

To alter the situation, Gajendra Narayan Singh formed Nepal Sadbhawana Party in 1993, and for the first time in history, the political party demanded federalism as a tool to protect language, custom, culture and identify of Madheshi people. His major argument was that state restructuring through federalism would end all discrimination and injustice to Madheshi people, as it was assumed to give the Madheshi people to form their own police force, bureaucracy and judiciary within their province (Ray, 2016).

The interim constitution did not ensure state restructuring, which was thought to be the only medication to end the discrimination against Madheshi people.

Madhesi Janadhikar Forum Nepal, which was ideologically close to Maoist and was an ally of Maoist, separated itself from them and launched civil demonstration across Terai region under the leadership of Upendra Yadav. The party floated the concept of One-Madesh-One-province. Following the civil protest, some prominent leaders of Nepali Congress and CPN(UML), like Bijay Kumar Gachhadar, Mahantha Thakur, JP Gupta, Mahendra Yadav, joined the protest. After the civil protest in Terai-Madhesh, the government of Nepal ensured the federalization of nation in Interim Constitution. However, it does not make the complete resolution of Madesh issue.

Madhesh issues in the CA

As per the mandate of CPA, first elections of CA has been held successfully. But the first constituent assembly dissolved without drafting the constitution that was supposed to address the demands of Madhesi people. It should be noted that the first CA could not issue the constitution as it failed to reach all-party consensus regarding the model of federalism.

The presence of Madhesh-based parties was very weak in the second CA, which failed to address the demands of Madhesi people in the way they wanted. CA-II promulgated the constitution and also restructured the country into seven provincial units. The big political parties were able to secure more than 90 percent of total votes in CA. Hence, the current model of seven province designed by bigger parties have been issued in constitution.

But, the model was not as desired by Madhesi people. Madhesi people have been claiming that the state restructuring adopted by new constitution would not address the problems for which the state restructuring was demanded. In the current model of federalism, among 22 districts of Madhesh, 14 districts havenot been included in the Madhesh province and they have been added in the hills. The current model will not serve the purpose for which federalism was sought after.

Thus, to reject the model of state restructuring given by new constitution, Madhesi people launched massive protest, which is still on-going.

Conclusion

The CPA paved a way to fulfil the aspirations of Madhesi people by ensuring the restructuring of state to include Madhesi people in state agencies. However,

Madheshi people are still discontent because of the way in which the restructuring of state happened.

References

- Ahiraj, R. (2006). Status of Madheshi in Nepal. *Madheshee*. Retrieved from <http://madheshee.blogspot.com/2006/02/status-of-madheshi-in-nepal.html>
- Comprehensive Peace Accord (2006). Government of Nepal: Singhadurbar
- Hachhethu, K. (2007). *Madheshi nationalism and restructuring the Nepali state* (First Ed., p. 2). Kirtipur: Centre for Nepal and Asian Studies Tribhuvan University. Retrieved from <http://www.uni-bielefeld.de/midea/pdf/Hachhethu.pdf>
- Kumar, V. (2009, March 30). *Non-resident Madheshis*. Retrieved April 07, 2014. <http://madhesh.org/articles/whole-Terai-belongs-to-madhesh-historical-facts/>
- Mabuhang, B. (2015). *From peace settlement to political settlement state restructuring and inclusive measures for marginalised groups in Nepal* (1st ed., p. 11). Berghof Foundation. Retrieved from <http://ips-project.org/wp-content/uploads/2015/11/IPSPaper-10-From-Peace-Settlement-to-Political-Settlement.pdf>
- Macours, K. (2015). Increasing inequality and civil conflict in Nepal. *Oxford Economic Papers*. 63(1)
- Nepal's Divisive New Constitution: An Existential Crisis - International Crisis Group. (2016). Crisisgroup.org. Retrieved 21 May 2016. <http://www.crisisgroup.org/en/regions/asia/south-asia/nepal/276-nepal-s-divisive-new-constitution-an-existential-crisis.aspx>
- Tumbahang, G. (2009). Process of democratization and linguistic (human) rights in Nepal. *Tribhuvan University Journal*. 26(1), 1.
- Upreti, B. (2015). *Federalism, conflict and question of stability in Nepal*. Retrieved from <http://bishnuupreti.blogspot.com/2010/01/federalism-conflict-and-question-of.html>



Jorg Frieden

Former Head, Swiss Development Corporation (SDC) in Nepal

In your opinion, what is unique about Nepal's peace process?

During the conflict, violence was exercised under strict political control. It could, therefore, be stopped immediately when the conflicting parties agreed about a possible roadmap to peace. The UN human rights mission exercised a large influence on the government response and contributed to the peace process more than in other similar circumstances. It was also clear that politicians of all parties could communicate at ease as they belonged to a large extent to the same social and cultural elite.

Were Maoists in a hurry to end the conflict, esp. after 9/11 and the resulting international solidarity against terrorism? What is your opinion regarding the Maoists' strategic shift to peace talks?

We never felt a sense of hurry on the Maoists side and the American influence was too small for the 9/11 to play a role. I believe that the self-inflicted demise of the monarchy and the people's movement created the space and the opportunity to join "a bourgeois revolution" that the Maoists believed was the unavoidable and historical way forward. The elections of 2008 confirmed, in my view, those assumptions.

How did Human Security Division / Embassy of Switzerland engage with multiple actors of the peace process and what were some of the major challenges?

We did not have an embassy at the time. The Swiss Agency for Development and Cooperation represented my country.

We were engaged at three levels: development in conflict; promotion of human rights; and dialogue with all political forces. I was personally involved with the first and second level.

I think the most original part of our approach was to manage the development program with full recognition of the ongoing political and social conflicts, with the understanding that the management of development resources and activities could contribute to mitigate violence or to exasperate it.

The international donor community established the Basic Operating Guidelines for the conduction of development activities immediately after the King's coup. This framework allowed us to operate in the conflict, avoiding – at least to a reasonable extent – to be manipulated by the conflicting parties.

We faced a number of challenges: the denial by the government authorities about the Maoist presence and their control over a large part of the countryside; the mythology that community centered development would be immune from the political influence and could be isolated from the ongoing civil war; and that the presumption, endorsed in particular by the multilateral development banks, that growth would absorb poverty and prosperity would eliminate conflicts.

TRC and CIDEP have started working to reconcile wartime issues. How do you see the whole process of reconciliation and truth finding? What is the likelihood that this will be internationalized?

My observations of similar processes make me believe that truth, punishment and reconciliation become likely only after 15 – 20 years after the end of the hostilities – if the memory of abuses and injustice is kept alive. The risk of open conflict must abate and society should mature before substantial progresses can be achieved in these areas in order to consolidate the peace process.

In your opinion, how will Nepal's peace process unfold in future? Do you think that Nepal's agreement will pave a way to end other conflicts that have emerged in the last decade?

My sense, from a distance, is that many of the causes of the conflict have not been addressed and that the peace process itself has nourished new tensions and conflicts. Only a decentralized and real democracy seems to be able to respond to diffuse expectations of many communities. Moreover, it is indispensable for Nepal to achieve levels of economic growth compatible with the expansion of the welfare state and the geographical integration of all parts of the country.

How do you evaluate the role of informal dialogue process like NTPP?

It seems crucial to me that political actors can meet outside their official functions and roles, to find a common way forward. A critical task of NTPP is to associate the new generations and civil society to a dialogue about present challenges and the future of Nepal.



Ten years of peace process and Dalits' inclusion

Yam Bahadur Kisan

Maoist conflict and peace process completed after promulgating the "Constitution of Nepal" by the Constituent Assembly (CA) on September 20, 2015. However, caste-ethnicity, gender, religion, language and region-based conflict and peace process concern to traditionally marginalised groups of Nepal, including Dalits are yet to be completed. Moreover, identity vs territorial federalism, full vs partial secularism, proportional representation vs tokenism and decentralisation under centralised mindset that has been seen during and after the promulgation of the Constitution as emerging issues of Nepali peace process.

Dalits, a part of Nepali marginalised groups, comprise three sub-racial groups such (i) Hills Dalits¹ (ii) Indigenous/Newar Dalits² and (iii) Madhesi Dalits.³ They share similar physical characteristics, speak similar language, denote a common national identity within the sub-group united under the common identity as 'Dalit' for decades.

Negotiation and Dalits' inclusion

The Comprehensive Peace Accord (CPA) was a foundation stone for establishing discourse of "non-discrimination and "social inclusion" which directly/indirectly concerned to Dalits and marginalised groups (Section, 3.5).

- (i) Agreements and decision of between seven parties' alliance (SPA) and Maoist clearly mentioned, "indigenous people, inhabitants of Terai, Dalit, backward class, minorities, Muslim and women will be proportionally represented in all organs of the State (Section 4)" that for the first time adopted the term and concept of proportional representation in the State.
- (ii) A comprehensive decision made by SPA and Maoist leaders on November 8, 2006 for effective implementation of previous agreements adopted about the inclusive composition of Interim Legislature-Parliament/ILP (Section 8/A/iii) and Mixed Electoral System (FPTP

and PR) for forthcoming election of Constituent Assembly (CA) (Section 9/c).

- (iii) A 'general consensus' of major political parties including Maoist, that made on March 30, 2007, readopted the concept of proportional representation of women, Dalits, IPs, Madhesi, PWDs, backward region and other marginalized groups in all agencies of the State (Section D/3). Furthermore, adopted for elimination of caste-based discrimination, untouchability, and eradication all forms of discrimination against women including rape, domestic violence and trafficking (Section D/13 & D/14).
- (iv) An agreement between the GoN and MJAF-Nepal on August 13, 2007 adopted various issues of inclusion on marginalized perspective. The agreement says that, "(i) proportional representation and participation of Madhesi, Dalits, women, indigenous people, other backward caste/class (OBC), minority, person with disabilities (PWDs) in all structures, organs and level of the State including equal sharing of power and resources shall be ensured (Section 4). (ii) A high-level inclusion taskforce shall be formed for necessary laws and policymaking (Section 8). (iii) Inclusion of marginalised groups in all types of political appointment including in constitutional bodies, ambassadors, and leadership in educational institutions shall be considered (Section 12), and (iv) reservation scheme for Dalits in employments and assurance the necessary land for all landless Dalits (Section 20).
- (v) An agreement between GoN and United Democratic Madhesi Front on on February 28, 2008 that adopted the provisions of proportional representation of Madhesi, Dalits, women, indigenous people, other backward region and minority in all appointment, employment and promotion and proportional representation in Nepal Army including Madhesi and other groups in line of group-based recruitment (Section 4 & 5).
- (vi) Agreement between GoN and Muslim struggle committee on April 12, 2009, provisioned political, economic, social, cultural, and educational rights of Muslim, IPs, Madhesi, Tharu, Dalit and minority groups and arranged their segregated data (Sections, 2, 3 & 5).
- (vii) Agreement between GoN and Tamsaling United Struggle Committee on April 11, 2009 agreed that Nepal Army shall be inclusive by formation of separate brigade of each caste/ethnic groups and the ownership of IPs and local people over natural resources shall be established (Section 5 & 7).

- (viii) Agreement between GoN and Nepal Federation for Indigenous Nationalities (NEFIN) on August 7, 2007 agreed several issues of inclusion. For example, the agreement says, (i) State Restructuring Commission with inclusive representation of IPs, Madhesi, Dalits, women and other marginalized shall be formed (Section 4); (ii) proportional representation of all marginalized groups in all agencies and level of the State shall be ensured (Section 8); and (iii) equal participation of IPs, women, Dalits, Madhesi and other marginalized groups during sharing of development plans, programs and benefits of the State shall be ensured (Section 10).
- (ix) Agreement with Badi (a backward caste within Dalit community) on October 15, 2007 adopted the provisions for formulating taskforce to study the problem of Badi and make realistic recommendations; to band the derogatory words that had been used against Badi women such as 'bhand (destructionist)' and 'patar (prostitutes)', and to arrangement for providing citizenship cards to all Badi across the country (Section 1).

There are dozens of agreements, consensus, decisions and proclamation to include issues of social inclusion of Dalits and marginalised groups in the State systems. In addition, it provided the guidance for formulating and amending laws, policies, programs, schemes, mechanism and institutions and materialising those instruments during and post-conflict peace process.

Interim Constitution and Dalits' inclusion in state institutions

Based on those agreements, consensus, decisions and comprehensive peace accord (CPA), the Interim Constitution of Nepal, 2007 was the first to codify the term "Dalit" in the constitution.

Article 13/3 (Right to Equality) of Interim Constitution, adopted the concept of affirmative action policy (AAP) and categorized Dalits as a beneficiary of this policy, along with other marginalised groups. Similarly, Article 21 (Rights to Social Justice) further adopted the principle of proportional representation of Dalits, based on population ratio, which was very progressive in the history of Nepali constitutionalism. Likewise, Article 154 adopted the institutional inclusion of Dalits by recognising the National Dalit Commission by the constitution.

Codification of laws and Dalit's inclusion

The Constituent Assembly Member Election Act 2007/2013 opened the door of inclusion in CA/parliament for Dalits and other marginalised groups such as IPs, Madhesi, and backward region including Khas-Aryan. Section 7(7) of CSA allocated altogether 45 percent of seats to be fulfilled by competition among the marginalized groups as per the affirmative action policy. The total allocated 45 percent of seats have further divided among six groups of beneficiaries such as women (14.85%), indigenous people (13.15%), Madhesi (9.05%), Dalit (4.05%), persons with disabilities (2.25%) and backward regions (1.8%) as well which is bellow of half of their respective national population percentage ratios. The remaining 55 percent of seats are allocated for open competition among general candidates including those marginalized groups.

Several acts and regulations of the Civil Service Act made inclusiveness of State services and opportunities respectively. For instance, Scholarship (fourth amendment) Regulation, 2010; Local Self-governance (fourth amendment) Regulation, 2010; Legislative-Parliament Secretariat Service Act, 1993 (amended on 2007); Army Act, 2001 (amended on 2009); Police Act, 1955 (amended on 2009). Similarly, Armed-Police Act, 2006 (amended on 2009); Nepal Special (intelligence) Service Act, 1985 (amended on 2009); Development Committee Act, 1956 (amended on 2009); Education Act, 1971 (amended on 2009); and Nepal Health Service Act, 1997 (amended on 2009) amended in different time and context based on the provisions of Civil Service Act (Section, 7/7).

Dalit's inclusion in the new constitution

Although, the Constitution of Nepal safeguards the issues and rights of Dalits and marginalised groups, articles/sub-articles and sections/sub-sections, including the preambles, need revision.

The preamble of the constitution adopted the "principle of proportional inclusiveness and participation" and "elimination of all forms of discrimination including caste-based discrimination and untouchability" which may helpful for further defining other constitutional provisions on social inclusion.

Moreover, Article 18/3 (Right to equality) has adopted the principle of affirmative action policy (AAP) and Article 38/4 (Rights of women), Article 40/1 (Rights of Dalits), Article 42/1 (Right to social justice) and Article 285/2 have adopted the principles of proportional inclusion.

Similarly, Article 84/2 (constitution of House of Representatives), Article 86/2/a (Constitution of National Assembly), Article 176/6 (formation of Provincial Assemblies), Article, 222/3 (Village Assemblies) and Article, 223/3 (Municipal Assemblies) are provisioned for Dalit's inclusion. 12 percent seats in the National Assembly are reserved for Dalits.

Regarding inclusion in executive agencies, the Article 76/9 (Federal Executive) and Article 168/9 (Provincial Executives) strategically used the term 'principle of inclusiveness' that can be perceived and defined as per own understanding. Recognising the National Dalit Commission (Article, 255) and other marginalised rights commissions as constitutional agency is the best example of institutional inclusion in Nepal.

Conclusion

The provisions of social inclusion for Dalits and marginalised groups in the new Constitution are progressive. However, the spirit of the provisions need to be translated into laws, regulations, policies, plans, programmes, schemes, strategies for effective implementation in Nepal.

The Constitution has adopted the concept of affirmative action, social inclusion and proportional representation to ensure effective representation of Dalits and marginalised groups. There is no doubt remaining issues of Dalits and marginalised groups will be addressed by Constitutional amendment in coming days.

Notes

- 1 Hill Dalits (Badi, Damai, Gaine, Kami and Sarki) belong to Indo-Aryan sub-race speaks Khas Nepali language and resides all the hills and mountain ecological zones including Terai-Madhesh.
- 2 Indigenous/Newar Dalits (Pode and Chayme) belong to Tibet-Barmis sub-race speaks Nepa:/Newar language and resides in Kathmandu valley originally.
- 3 Madhesi Dalits (Chamar, Musahar, Dushadh, Tatma, Khatwe, Dhobi, Bantar, Chidimar, Dom, Halkhor, Kalar, Natuwa, Dhandi, Dharikar/Dhankar, Kori, Sarbariya, Khatic, Kakahiya, and Pasi) belong to Indo-Dravidian sub-race speaks Maithili and Thethi/Magahi language(eastern Terai), Bhojpuri language (Mid-Terai) and Awadhi language (Western Terai) and resides in 22 Districts of Terai ecological zone.



Commitment for land reform: What was promised and what is outstanding?

Jagat Basnet

"The peasants were born in fields, grew up with spades and died in the fields with almost nothing to show for it. This was generally the fate of all cultivators. These kinds of problems led to underdevelopment and backwardness" (Thapa, 2000:133 quoted, Rahman, 1986).

Background

The Seven-Party Alliance (SPA) and the Communist Party of Nepal (CPN-Maoist) signed a consensus document on the 8th of November, 2006 to end the decade-long armed conflict. As agreed upon by the Seven Political Parties (SPA), Pushpa Kamal Dahal (Prachanda), Chairperson of (CPN-Maoist), and the then Prime Minister Girija Prasad Koirala signed the Comprehensive Peace Agreement (CPA) document on November 21, 2006 committing for the 'scientific land reform' on behalf of the marginalized farmers and landless people. Ten years will have elapsed ever since the signing of the CPA with commitment to land reform. During this period, the government of Nepal, especially the Ministry of Peace and Reconstruction, made several agreements with different movement groups and agitating parties to end the conflict and start the full peace process. During the conflict, one of the core issues was 'land reform and rights' of farmers, tenants and landless people. Maoists had won the sentiment of poor and marginalized people by giving the slogan of "land to the tillers." The CPA included the issue of land reform under different themes which were subsequently reflected in the Interim Constitution. Both parties, SPA and CPN-Maoist, had accepted the word 'scientific land reform'. In this context, this paper has tried to review the CPA and its related commitments on land reform since November 2006. It analyzes the context of CPA and land reform, efforts of government to translate the CPA commitment into action, furnishes analysis of different kinds of agreements between the government and movement committees and agitating parties, related programs, budgets and the recapitulation of the findings.

Context of CPA and land reform

Land was one of the many root causes of Nepal's decade-long conflict and political unrest. Major political parties gave the slogan "land to the tillers" for capitalizing the sentiment of marginalized peoples. They initiated and led the people's movement which was characterized by both violence and non-violence. For example, the CPN (Maoist)'s initially presented 40-point demands in 1996, and it called for "land under the control of the feudal system to be confiscated and distributed to the landless and homeless" and for land belonging to certain classes of people to be "confiscated and nationalized" (Carter Centre, 2015, p.56). To advance Maoist movement and political control in rural areas, the Maoists seized land from larger landowners and from their political opponents during the conflict. When there was negotiation between SPA and CPN (Maoist), one of the issues was "land reform and land to be returned from the Maoists, which was seized during the conflict period" (ibid). Before CPA, different political parties had been using different words to address the issues of land inequity deeply embedded in Nepal since 1940. For instance, 'revolutionary' land reform by CPN (Maoist), 'progressive land reform' by Nepal Communist Party, United Marxist and Leninist (CPN-UML) and 'pro-people land reform' by Nepali Congress, etc. Despite the fact that there were the discrepancies on the understanding on the meaning of 'scientific land reform' between and among the protagonists of CPA, they ultimately accepted it. Even to date, the major discrepancies among them have been the notions of the 'land distribution' and 'land productivity'—both being included in the CPA.

In November 2006, the Maoists and the SPA agreed that "all seized land" during the decade-long conflict would be returned while steps would be taken to develop policies for "scientific land reforms." Both sides agreed to: (i) adopt a policy to introduce scientific land reforms by ending feudal land ownership; (ii) adopt a policy to provide land and other economic and social security to the economically backward classes including landless, bonded laborers, and pastoral farmers, and (iii) create an inventory of governmental, public and private buildings, land and other properties occupied, locked up, or not allowed [for] use in [the] course of armed conflict and to return them immediately".

The CPA has expressed commitment to adopt policy for managing land as well as economic and social security for the landless, Kamaiya and the downtrodden known as Haliya, Haruwa, Charuwa including marginalized farmers and landless people (NHRC, 2009, p.13). The CPA and subsequent political agreements wanted the commitments to be fulfilled by the Maoists to return seized land to its

owners and underscored on the commitments from the side of the government to promote a more equitable distribution of land by implementing land reform policies on behalf of marginalized farmers and landless people (Carter Centre, 2015, p.56). These agreements included general principles on abolition of feudalism, land reform, economic policy, employment, land and socioeconomic security, etc. These principles are nearly identical with those included in the CPA and suggested that the government of Nepal, the CPN (Maoist), and the SPA develop a common action plan and policies to translate the commitment of CPA into actions (Wennmann, 2009, p.15). Agreements between CPN-Maoist and government of Nepal in December 2007 and June 2008 reiterated these commitments but later on they focused on the land return and the organizing of land reform commissions to study land reform policies and practices.

The Interim Constitution of 2007 mandates Nepal government to adopt a policy to implement scientific land reform with a view to minimize the widespread inequality in the access to land through the abolition of feudal systems of land holding. Article 18 (3) guarantees every citizen's right to food sovereignty as provided by the law. Article 34 (4) specifies that the fundamental economic objective of the state is to prevent the available resources and means of the country from being concentrated within a limited section of society, and by making arrangements for equitable distribution of economic gains based on social justice.

Similarly, Article 35 (6) requires that the state encourage peasants by increasing productivity; create conditions for economic progress of majority of the people who are dependent on agriculture, by launching a land reform program, and by developing the agricultural sector as an industry (Sharma, 2011). This indicates that the major political forces and government of Nepal have realized that there exists the feudal structure in land and agriculture even today and therefore, much remains to be done to address the issues of land reform and marginalization of tiller farmers.

Governmental efforts on CPA implementation

The government of Nepal developed a three-year Interim Plan (2007-2010) that also included scientific land reform and planned to distribute land among two hundred thousand landless families at the very least. Before the election of the first Constituent Assembly (CA) held in 2008, government and political parties said that the commitment of CPA would be addressed upon the installation of an elected government (by the people). Most of the political parties included the

issue of 'scientific land reform' in their manifesto but in reality, it was merely done to win the sentiment of poor people, not for the genuine land reform. People voted the Maoists and made them the first party in the CA because they had given strong slogan, 'land to the tillers', during the conflict period and election of first CA in 2008.

Following the election of CA in 2008, a Maoist-led government was formed in collaboration with UML. NC and some regional parties, especially Madeshi parties, remained in opposition and raised the issue of returning the seized land but they did not raise the issue of land reform and tenancy rights of the tillers who were denied to file the tenancy cases since April 2008. When the landless and tenant farmers questioned the political leaders and parliament members, they retorted: "It is the time for drafting the constitution, not for the land reform. There would be land reform after the drafting and promulgation of new constitution" (Basnet, 2013, p.87). Between the period of 2008 and 2015, NC and Madeshi parties frequently raised the issue of return of seized land but they did not raise the issue of 'land reform', which was committed in the CPA and Interim Constitution.

After the election of first CA, the Maoist-led government formed a High Level Land Reform Commission (HLLRC) under the chairmanship of Haribol Gajurel (Maoist leader), which failed to submit the report within the stipulated time. The HLLRC was formed as the powerful agency with a chairperson having the status of cabinet minister who was directly responsible to Prime Minister. Unexpectedly, the Maoist-led government resigned, leading to the untimely demise of the HLLRC. Then, CPN-UML-led government was installed. They again formed another High Level Commission on Scientific Land Reform (HLCSLR) under the chairpersonship of Ghanendra Basnet (UML leader), who was accorded the status of state Minister and was held responsible to the Minister of MoLRM. The Gajurel-led commission filed the petition at Supreme Court but it gave the recognition to Basnet-led commission which worked continuously for six months and submitted its report within stipulated time to the then Prime Minister Madhav Kumar Nepal. PM Nepal promised to implement the Commission's report but his government was forced to step down. He was succeeded by Jhala Nath Khanal who also expressed his commitment to implement the Commission's report but he was also forced to step down in a short period (within six months). Haribol Gajurel-led Commission submitted its report to PM Baburam Bhattarai.

National Land Rights Forum (NLRF), a people's organization of landless, tenant and marginalized farmers with a support of Community Self-Reliance Centre

(CSRC), brought one thousand women in Kathmandu in 2011 and pressured to implement the Commission's report, including land rights of women farmers enshrined in the CPA and Interim Constitution (CSRC, 2007). But the frequent change of the government created unfavorable situation for its implementation. In December 2011, the government formed a Committee under the MoLRM to study previous land reform recommendations, identify areas of overlap and difference, and issue recommendations for implementation of comprehensive land reform policy. The Committee identified 13 major land-related issues and developed recommendations to address them, including suggested timeframes for implementation. Notably, the Committee has recommended that the government conduct a comprehensive land census to assist with formulation of policies governing land use, land ceilings, redistribution, and other matters. The Committee's report was submitted to the government in April 2012 but it was not implemented (The Carter Centre 2012. pp.4-5). The Council of Ministers did not recognize and accept the Committee's report for the implementation.

In December 2009, four people were killed in clashes triggered by land grabs in Dudgehari, Kailali, far-western region, supported by the Maoist party, giving rise to fears for the peace process (The Carter Centre, 2015, p.20). The UML-led government formed a Landless Problem Solving Commission (LPSC) to settle the landless issues but it was given a limited authority. As per the ToR of Landless Problem Solving Commission 2010, it only got the authority to review of applications of past commissions' pending work. It distributed 30,548 land certificates which were in pending from the time of previous commissions. The genuine landless people could not benefit from this LPSC as agreed upon by CPA (NLRF, 2016).

During Baburam Bhattari-led government, another LPSC was formed in November 2011 and the chairpersonship of Bhakti Prasad Lamichhane (Maoist leader) and additional Committees were also formed in 25 districts. As per the ToR of Landless Problem Solving Commission 2011, the primary mandate of the LPSC was to collect information on squatters/landless people and to issue identity cards to Nepali denizens verified as landless. It collected applications from landless and marginalized farmers and distributed few identity cards in some districts. Since it was formed with the cadres of Maoist party, other NC and UML parties boycotted its functioning and did not support its work. Later on, all major parties agreed to stop work on this. Following election to the second CA in 2013, another LPSC was formed in 72 districts under the chairpersonship of Sarada Prasad Subedi (UML cadre) in 2014, which collected 861,317 applications from 72 districts. NC and CPN (Maoist) boycotted and

did not send the representatives. Ruling Nepali Congress (NC) also did not send its representatives to LPSC (CSRC, 2015). Later on, the Supreme Court suspended its work. It worked for six months and collected applications without identification and then, it was forced to stop working due to the non-cooperation of the major political parties (CSRC, 2015). It was given the political color and the case is sub-judice at the Supreme Court.

Though the government had constituted two HLLRCs and four LPSCs within 10 years period, due to the political dispute, they could not work and distribute the land to the genuine landless and marginalized people (NHRC, 2009, p.45). Although there was much debate on the issue of the collection of land seized by the Maoist, government failed to collect the data. When the Maoist-led government was formed, NC raised the issue of returning of land seized by Maoists rather than discussing the land reform, including justice to the tillers and landless people.

On September 9, 2011, the government called for immediate return of land and property captured during the decade-long conflict (The Carter Centre, 2012, pp.2-3). On September 13, 2011, the government of Nepal announced that the Prime Minister's Office (PMO) had issued directives to District Administration Offices (DAOs) to immediately begin the process of returning seized property, starting with collecting data on all outstanding cases (ibid). The Prime Minister's Office also reported that central and district-level mechanisms would be formed to monitor implementation of the process and resolve local disputes related to land return. A ministerial-level committee composed of the then Finance Minister Barsaman Pun from Unified Communist Party of Nepal-Maoist (UCPN-M), the then Minister of Energy Post Bahadur Bogati (UCPN-M), and the then Information and Communication Minister Jaya Prasad Gupta (MJP-Republican) was formed to monitor land return (The Carter Centre, 2012. p.3).

On November 1, 2011, the UCPN (Maoist), United Democratic Madhesi Front (UDMF), NC, and UML signed a Seven-Point Agreement that reiterated major commitments in the peace process. The agreement was mainly focused on resolving issues related to integration, voluntary retirement, and rehabilitation of Maoist combatants, and made a significant step forward on this core peace process commitment. The agreement also included points on land return and land reform similar to those contained in previous accords. Specifically, the parties agreed that:

- UCPN (Maoist) shall return all property seized or occupied by the party to rightful owners within November 23, 2011. With the return of

the land, the owners will be given appropriate compensation;

- Farmers' rights will be ensured as per the spirit of the CPA, Interim Constitution and scientific land reform system; and
- Local administration will monitor and implement the agreement pertaining to the return of the seized property (The Carter Centre, 2012, p.4).

On January 16, 2012, the Cabinet announcement stated that land dealings authorized by the Revolutionary People's Councils under the conflict-era Maoist People's Governments would be recognized and made legal (The Carter Centre, 2012, p.5). Reportedly, the government instructed District Land Revenue Offices to begin issuing land certificates to people on the basis of the conflict-era decisions (*ibid*). In some districts, People's Governments had issued hundreds and thousands of rulings on land-related issues during the conflict (The Carter Centre, 2015). The announcement was strongly opposed by the opposition parties including the NC and UML. Both NC and UML strongly announced that they would boycott the legislature-parliament until the decision was withdrawn (The Carter Centre, 2012, pp.4-5). On January 19, 2012, the Supreme Court stayed the government from implementing the decision. Although the decision formally remained pending in the cabinet, on February 9, 2012, Prime Minister Baburam Bhat Terai addressed the legislature-parliament and promised that the government would not implement the decision in order to end the NC and UML boycott.

CPA, land reform and agreements with different agitating parties and groups

Following the CPA, a total of 71 agreements have been signed between government of Nepal and agitating parties and groups (Ministry of Peace and Reconstruction till December 2014) but none specifically took the position on the 'scientific land reform', which was one of the core issues of conflict and commitment expressed in CPA. However, some of them touched on the issue to return the seized land during the conflict period. Following the CPA, a number of agreements were also signed among the major political parties and Maoists but the issue of scientific land reform was kept in a limbo.

The government of Nepal and Nepal Federation of Indigenous Nationalities (NFIN) signed an agreement on August 7, 2007. The agreement's point 18 promised to speed up the work of rehabilitation of freed Kamaiya (Ministry of Peace and Reconstruction, 2014, pp.93-95). Another political indigenous

group, Indigenous and Tribal People Struggle Committee (Suresh Ale Magar led-Committee) signed an agreement with the government of Nepal related to indigenous people on May 22, 2012 (Ministry of Peace and Reconstruction, 2014, pp.96-97). The Struggle Committee only focused on the inclusion and participation of indigenous and tribal people in the state structure but they did not touch on the issue of indigenous peoples and scientific land reform. One of the core issues of indigenous and tribal people is land. The report shows that they are losing their ancestral land. As per Caplan's study, Limbus living in the eastern part of Nepal lost their Kipat land where they had autonomous rights for cultivation and use (Caplan, 2000). The traditional landholding rights of the ethnic minorities passed onto the hands of the rich moneylenders. The rights of the Chepang, Limbu, Sunuwars and other ethnic groups passed in the hands of influential local functionaries through usurious methods (Thapa, 2000, p.114). Chepangs have lost their land rights where they had been doing shifting cultivation and collecting forest products from which a majority earned their day-to-day livelihood. Bhote Majhis of Nawalparasi were alone when there was malaria and now they are landless. Jhapa and Morang's Santhal were landlords, now they are landless and struggle to survive.

Government of Nepal signed an agreement with Madhesi Janaadhikar Forum Nepal (MJFN) on August 30, 2007 and agreed to return the seized land by Maoists during the conflict period. The agreements point 15 clearly mentions to return the seized land by Maoists but agreement did not mention the implementation of scientific land reform. Point 12 touched on the issue of landless Dalits' housing land (Ministry of Peace and Reconstruction, 2014:98-100). One of the core issues of Madhesh is landlessness and tenancy rights, but the agreement made by Madhesi parties did not touch on this. General agrarian relations in Terai districts, 'a few large and rich farmers owned substantial areas of land and the vast number of small farmers possessed very little' land (Ghimire, 1998, p.54; Karki, 2002:3-4).

On October 15, 2007, an agreement was reached between Government of Nepal and Badi Struggle Committee ((Ministry of Peace and Reconstruction, 2014:103). Both parties agreed to form a committee to study on the Badi communities' demands but it did not include the issue of land rights of Badi. The study committee also developed an action plan of education and employment but did not mention specifically the land rights of Badi communities who are still landless and homeless. Most Badis in Bardiya, Kailali and Surkhet are living in the forestland, where they face opposition from Range Post and District Forest Office.

On February 28, 2008, an agreement between the then Prime Minister Girija Prasad Koirala and Sangyukta Madeshi Loktrantrik Morcha was signed (Ministry of Peace and Reconstruction, 2014:104-105). The agreement did not discuss land issue, which was agreed by all parties in CPA. MJF raised the landless Dalits' housing land mentioned in the previous agreement but latter agreement was silent on the land rights of Dalits. The agreement only mentioned the participation of Madeshi people on the government structure but it did not discuss landless Dalits and marginalized farmers of Madesh.

On March 1, 2008, an agreement was signed between senior leaders of seven political parties and Sanghiya Ganatrantric Rastriya Morch (five different political groups and their sister organizations) did not mention any issue of land reform and but only focused on the representation of indigenous people (Ministry of Peace and Reconstruction, 2014, pp.106-107). As per Jaganath Adhikari (2008):

There are social barriers for the excluded to have access to or control over land because of the deeply rooted feudal systems shaped by customary beliefs and highly skewed power relations. For example, women and indigenous communities are cultivators to ensure household and national food security and to protect and promote biodiversity and environment. But they were usually denied the land titles. The same case applies to the Dalits communities. Even though they had been land cultivators as ploughmen and wage laborers at a time when there was plenty of land, they were denied for land ownership and controlled because of their castes and traditional division of labor. They continue to remain as ploughmen (Haruwain Terai or Haliya or Hali in the hills), which is considered as a semi-bonded labor. Similarly, women were denied their land title, because they have to, according to tradition and legal provisions, depend on males.

On September 5, 2008, another agreement was signed between Rastriya Haliya Mukti Samaj, a federation of Haliyas (ploughmen) and government of Nepal (Ministry of Peace and Reconstruction, 2014, p.110). The first point of the agreement mentions the annulment of loan of Haliyas and emancipation of Haliyas but it does not have the provision to provide land to the Haliya families who were emancipated by the government's promulgation. Maoist-led government promulgated the emancipation of Haliyas but the issue of rehabilitation with land was left out.

On March 14, 2009, an agreement was signed between the government of Nepal and Tharu and Tribal Community but the agreement did not mention the land issue (Ministry of Peace and Reconstruction, 2014, p.123). Tharu people were involved in the armed conflict by blaming the hill people as land grabbers. Similarly, the different sister organizations of major political parties, and Tharu leaders signed the agreements without raising the issue of ILO 169. Most of the Kamaiyas are Tharus. As per UNDP report 2004, 22.83 percent of Tharus were landless, 6.36 percent semi-landless and 17.93 percent were marginal cultivators (Adhikari, Nepali & Gurung, 2009, p.73, table 5.16). Still the unanswered question is: why Kamlari, Haruwa or Charuwa system are still in practice and conflict among the different community and classes? As per Anjita Parajuli, most of the Tharus by tradition are farmers but they are landless and there is not enough to feed their family. So the rich and landlords are taking the advantage of landlessness of the Tharu community and asking them to provide the daughter as Kamlari if they wish to till their land. Parajuli writes:

The recent case of a 12-year-old Srijana Chaudhary, who was found dead at her employers' house, is a glaring example. Her father, Gangu Chaudhary, revealed that though Srijana had already been rescued by an organization and was attending school, the family could hardly afford to keep her at home. He already had seven children to look after, and the only source of income was his share of harvest from working as a sharecropper on his landlord's fields. The landlords were affiliated to a powerful politician of the Rastriya Janamukti Party at whose interest Gangu sent his daughter to Kathmandu. He now had one less mouth to feed at home, and also did not have to fear about not being allowed to till the land, the sole source of livelihood for the family. One day, two years later, Gangu was summoned to Kathmandu to perform the funeral rites for his daughter (The Kathmandu Post, May 17, 2013, p.6).

On May 23 and 26, 2012, an agreement was concluded between Tharu Sangharsha Samittee, Loktrantri Tharu Morcha and government of Nepal without mentioning the land issue (Ministry of Peace and Reconstruction, 2014, pp.162-163). On May 27, 2012, government of Nepal signed another agreement with Rana Tharu Sangarsha Samittee (Indigenous group from Kailali and Kanchanpur districts) which also did not touch land issue of Rana Tharu (Ministry of Peace and Reconstruction, 2014:169). Rana Tharu claimed that they are first indigenous people of Kailali and Kanchanpur that controlled more than 84 percent of land but now only 16 percent of Tharus hold the land, most of them were Kamaiyas and now sharecroppers.

On May 20, 2012, an agreement was signed between the government of Nepal and Rastriya Muslim Gathabandhan to solve the problem of Muslim Community (Ministry of Peace and Reconstruction, 2014, pp.125-126). This agreement did not include the land issue of Muslim communities. One of the core issues of Muslim community is land. Still a large number of Muslims are landless and marginal cultivators. On April 25, 2012, government of Nepal and Other Backward Castes (OBCs) signed an agreement without touching the land issue (Ministry of Peace and Reconstruction, 2014, p.131). Different groups of OBC made agreements with government more than three times with the same fate. One of the core issues of OBC groups is land. A large number of OBCs are landless and are sharecroppers.

On April 11, 2009, Tamsaling Sanyukta Sangharsh Samittee made an agreement with the government of Nepal (Ministry of Peace and Reconstruction, 2014, pp.132-133). The seventh point of the agreement mentioned the implementation of ILO 169 but the land reform agenda was again kept in limbo. One of the core issues of Tamang community is land because most of them are sharecroppers and tenants of higher caste and class. As per the UNDP report 2004, still 16.69 percent are totally landless, 6.3 percent are semi-landless and 31.29 percent are marginalized cultivators of Tamang (Ahhikari, Nepali & Gurung, 2009, p.73, table 5.16).

On December 29, 2011, an agreement was concluded between Sangyukta Rajnitik Dalit Sangharsh Committee and Dalit Parliament Members on the issues of Dalit community (Ministry of Peace and Reconstruction, 2014:147). The agreement did not include the land issue of Dalit community. On May 26, 2012, there was another agreement signed with the same Committee which included the landless Dalits' issue on point 1 (F) but they did not follow up on this. As per UNDP report 2004, 43.98 percent Terai Dalits and 15 percent hill Dalits are totally landless, 9.89 percent and 15.24 percent are semi-landless and 26.19 percent and 44.55 percent marginalized from land respectively in Terai and hill (Adhikari, Nepali & Gurung, 2009:73, table 5.16). Dalit's ownership of land is small and many (almost 90 percent) are functionally landless. Within that women do not have access to land at all. According to another study conducted by National Dalit Commission, 22.5 percent Dalit households in Kailali, 37.66 percent in Banke, 51.21 percent in Mahottari, 63.13 percent in Dhanusa, 74.14 percent in Siraha, and 53.62 percent in Saptari are landless (Adhikari, Nepali and Gurung, 2009, p.70).

On May 26, 2013, the government also signed an agreement with Karnali Swayatta Pradesh Sangharsh Samittee to solve the problem of Karnali but the agreed points did not touch on the land reform of Karnali (Ministry of Peace and Reconstruction, 2014, pp.167-168). Feudalism is extant in Karnali and therefore, some are tenants of landlords and others are tenants or sharecroppers of Guthi land.

Several agreements have also been concluded by the government with Limbuwan, Khumbuwan, different political groups of eastern region and Terai/Madesh or different indigenous groups to solve their problem, without mentioning the land reform issue of any marginalized groups which was one of the core issues of CPA (Ministry of Peace and Reconstruction, 2014). These agreements were concluded only to pacify the movements.

Land distribution in Nepal is very skewed and unjust, which has created various kinds of discrimination and conflicts. Land was utilized as a way to gather political and military support by the government or the state. As a result, large parts of productive and quality land were distributed to powerful people in the form of grants (Adhikari, 2008, p. 6).

As per Jaganath Adhikari (2008), landlords are not interested to improve the situation of agriculture in Nepal. They only want to secure their power and control over the landless and tenant farmers. When land distribution was made in Nepal, the quality land was distributed as a reward only to henchmen, supporters, relatives, army personnel, and bureaucrats and to a few Hindu priests, who actually did not remain as farmers (Regmi, 1975). Land was not available to the general public, who were tilling the land for generations. The legacy of the past feudal governance is still reflected in the land ownership pattern in Nepal. Issues pertaining to land reform, tenancy rights, landlessness, scientific, revolutionary, and progressive land reform, have been contentious issues since 2006. The political parties have coined their own words and language to show how they are different from other issues of the landless, tenant farmers and general population. However, all this remains limited to political speech, nothing translating into action. For the last 20 years, cadres of political parties have been forming one after another commission. But there has not been genuine land reform and economic transformation of marginalized farmers in Nepal.

Table 1 Program and Budget for CPA Implementation

S.N	Area of focus	Projects/programs		Budget		Development Partner and GoN (NPR in million) (Approximate)														
		Number	%	Amount (NPR in million)	%	NPTF	Multiple DPs	UN (UNFPN, UNDP, UNWFP)	Germany / GIZ	USAID	World Bank	EU	Embassy of Denmark	DFD	Norway	Switzerland	ADB	Finland	Unknown DP	GoN
1	Peacebuilding	21	19.3	3198	3.6	396	565	1002	24	327		31				389			116	348
2	Election	11	10.1	18151	20.7	8341	2183	12		2270			116	5200	29					
3	Land Reform	1	0.9	121	0.1			121												
4	Security and Justice	11	10.1	12260	14.0	2399	2948	56				31	176	6650						
5	Transitional Justice	3	2.8	137	0.2		137													
6	Socio economic Services	14	12.8	28918	32.9	450	8481	893		529							8317			10248
7	Socio-economic reintegration and rehabilitation	15	13.8	15848	18.0	1433	1086	1307			9088	38								2896
8	Social inclusion and representation, rights of women and children	33	30.3	9227	10.5	669	295	579		2381		328		4400	234			341		
Total		109	100	87860	100	13688	15695	3970	24	5507	9088	428	292	16250	263	389	3317	341	116	13492

Source: EU support to enhance the capacity of the Ministry of Peace and Reconstruction with a specific focus on the Peace Fund Secretariat in Nepal. Mapping of CPA and current projects/programs supporting its implementation Feb to March 2014 Page IV and Table B.

CPA and land-related program

Government of Nepal generated the resources to translate the commitment of CPA into actions. Donors also contributed a lot to support the peace process. Seventy six percent of the total budget was earmarked for socio-economic service with focus on reconstruction and rehabilitation. More specifically, focus was given to the reconstruction of building and development projects which were demolished during the conflict period. Twenty one percent of budget was earmarked for socio-economic reintegration and rehabilitation. Priority was given to the internally displaced peoples (IDPs) and disappeared people. The remaining three percent was earmarked for peace building capacities, especially for the 4700 village level peace committees but the government of Nepal did not earmark any budget for the land reform and land rights for the marginalized farmers as committed at the CPA.

The Peace Fund Secretariat implemented more than 109 projects. Out of this, only one project was implemented on land reform from UNDP/IOM/UN Habitat which spent less than 0.1 percent budget. The Peace Fund distributed 87,860 million Nepali rupees. Only UNDP contributed limited financial resources to address the issue of land reform but other donors, who tirelessly talked about Nepal's conflict, did not share even a single penny for it. The table 1 above shows that big donors are not interested on land reform and they did not share their financial support and nor they pushed the government for land reform as committed in the (table 1) CPA.

In the last 10 years, MoLRM spent its valuable time by merely talking about Kamaiya and Haliya issues, which have not been addressed yet. The rehabilitation of Kamaiya program started since 2001 but the Ministry is still working on it. In 2008, Maoist-led government announced the elimination of Haliya system but government of Nepal has failed to rehabilitate Haliyas with land. The economic condition of Haliyas is poor and they are struggling to find land. The government of Nepal even did not touch the Haruwa and Charuwa issue, which is even worse than Haliya and Kamaiya.

April 2008 was the last date to file the application of tenancy rights. The registered tenants who have been tilling the land for the generations are exploited by the landlords. But they are still struggling to get the 50 percent land as per the fourth amendment to Land Reform Act 1964. Even though parliament endorsed the sixth amendment of Land Reform Act 1964 in September 2015, the MoLRM did not prepare the working procedure of filing the cases for the tenancy rights.

Thousands of tenant farmers filed the cases at the District Land Reform Office or District Land Revenue Offices claiming the tenancy rights before April 2008 but they have not got the justice yet. As a result, they have been visiting the District Land Reform Office or Land Revenue Office and spending whole economic value of land but justice for them has been far-fetched.

In the name of land return, local Maoists from some districts are benefiting financially from transactions of conflict-era seized land such as by purchasing the land at low rates from landowners and then reselling it at market prices (The Carter Center, 2012:7). To date, there has not been sufficient political will and effort from any side to reach agreement on principles for land return and to design and enforce mechanisms for their implementation. Early steps by the government and some district administration offices (DAOs) to collect data on alleged cases of land capture were encouraging but they were not accompanied by policies and procedures to move forward with resolution of outstanding cases or sufficient political consensus to move the process forward (The Carter Centre, 2012, p.14). Land return that had taken place was achieved through informal negotiations between the Maoists, landowners, and tillers, rather than through a formal, state-led process. In the absence of a formal, state-led process for land return, informal negotiations on conflict-era land cases continued and resulted in a variety of outcomes. These outcomes ranged from the landowner regaining all powers over the land to conditional return in which the landowner was able to collect some share of the harvest from tenants (The Carter Centre, 2015, p.57).

Country's failure to create employment opportunities at home through land reform led thousands of Nepalis to leave the country to work abroad as migrant workers during the period (NHRC, 2009, p.13). Due to lack of commitment from the political parties and the successive governments, the land reform agenda of CPA remains unimplemented.

Recapitulation

Nepali citizens have experienced many revolutionary changes: from 1951, 1990 to 2006 along with establishment of democracy, re-establishment of democracy and establishment of the republic. However land ownership and tenancy systems are like that of feudal or semi-feudal conditions where market forces control everything. One of the core-points of CPA was the elimination of feudalism and land distribution to landless, tenants, smallholders and marginalized farmers but government of Nepal and major political parties failed to do so. Donors

talked much about the conflict issue but they did not support land rights of tenants, landless farmers, sharecroppers, smallholders or tenure security of land of marginalized farmers (which was the root cause of the armed conflict and continues to be the cause of conflict even now).

International non-governmental organizations (INGOs) and civil society organizations (CSOs) have also failed to support the land rights of marginalized farmers. CPA only regarded and recognized People's Liberation Army (PLA) integration, IDPs rehabilitation, and reconstruction of demolished government structures and formation of the peace committees. Despite the conclusion of 71 agreements between government and different political and struggle groups, none took strong position on land reform. Donors spent more than 87,860 million Nepali rupees but only less than 0.1 percent was ear-marked for land reform. Huge amount of financial resources of government of Nepal was spent for the activities of HLLRCs but their reports remain largely unimplemented. Four LPSCs were formed and thousands of landless people filed their cases but all in vain. Tenant and marginalized farmers have been mobilized by spending lots of time for tenancy rights but the issue of receiving 50 percent of tenanted land has been a far-fetched. MoLRM developed 13-point action plan but it remains unimplemented. It was also committed to develop a number of land reform plans, but none of these worked for landless, tenant and marginalized farmers of Nepal.

Those who sold the slogan, "land to the tillers" held the MoLRM from 2006 to present, but they have failed to amend the Land Reform Act 1964. In the first Constituent Assembly and Legislature- Parliament, leftist parties had 62 percent seats in the parliament but they never tried to introduce comprehensive land reform as committed in CPA. The MoLRM, its departments and district land reform and land revenue offices, failed to implement land reform on behalf of the land-poor. The whole discussion was focused on returning seized lands by Maoists but no specific attention was given to 'scientific land reform and security' of marginalized farmers as committed in CPA and Interim Constitution.

In Nepal, a family without land in a peasant society is handicapped as most of the government services are connected to land ownership certificates. Access to land is also essential to enable rural poor to have equal opportunities created by market, economic, local and global systems. Tenant, landless and marginalized people do not have these opportunities as they do not have access and/or security to land. Land is one of the most valuable natural resources of the country which represents a principal form of wealth and main source of economic and political

power. It is also seen as a vehicle for human and rural development and food security and production across Nepal and the world.

References

- Adhikari, J, Nepali, B.B., Gurung R. (2009). *Access to Land and Marginalization in Nepal: A Political Economic Approach*. Final Report of a Research Study, SIRF/RF/07
- Adhikari, J. (2008). *Land Reform in Nepal, Problem and Prospects*: Kathmandu: NIDS and Actionaid Nepal
- Basnet, J. (2013). *Marginalization from Land and Its Implications for Education: A Case Study from Mid-Western Nepal*. Thesis Submitted to Tribhuvan University in Partial Fulfillment of the Requirements for the Degree of Master of Philosophy in Education.
- Caplan, L. (2000). *Land and Social Change in East Nepal. A Study of Hindu Indigenous Relations*. Kathmandu: Himal Books.
- Chaudhary, J.K. (2008). *Landless and Its Impact in the Life of Mushabars: A Study of Madhesi Dalits people at Pothiyahi, VDC in Rautahat, District Nepal, Field Research Article (Code no SIRF AG/07), Social Inclusion Research Fund*. Nepal:SNV.
- CSRC. (2007). *Annual Reflection*. Kathmandu, Nepal
- CSRC. (2015). *Bhumiadhihar Bulletin*, 2071, Kathmandu, Nepal
- Ghimire, K. (1998). *Forest or Farm? The Politics of Poverty and Land Hunger in Nepal*. Delhi: Oxford University Press.
- Karki, A. (2002). Movement from Below: Land Rights Movement in Nepal. *Inter-Asia Cultural Studies*, 3(2).
- Ministry of Peace and Reconstruction. (2014). *Agreements, Understandings, Declarations and Decisions on Peace Negotiation of Nepal*. Kathmandu: Government of Nepal.
- NHRC. (2009). *Three-Year Comprehensive Peace Accord (CPA) Summary Report 2006*. Kathmandu: National Human Rights Commission.
- NLRF. (2016). Demand paper of NLRF to the Ministry of Land Reform and Management
- Rahman, A. (1986). *Peasant and Classes: A Study on Differentiation in Bangladesh*. Delhi: Bikash Publishing house
- Regmi, M.C. (1975). *Land Ownership in Nepal*. CA: University of California Press.
- Regmi, M.C. (1999b). *Imperial Gorkha: An Account of Gorkhali Rule in Kumaun 1791-1815*. Delhi: Adroit.
- Report on Parliamentary Committee on King's Land (2007). *Progress Report of Parliament Committee on Natural Resource, Government of Nepal*
- Sharma, P. (2011). Review of land-related legislation in Nepal in preparation of an integrated land law for FAO and Ministry of Land Reform and Management
- Thapa, S. (2000). *Historical Study of Agrarian Relations in Nepal (1846-1951)*. New Delhi: Adroit Publishers.
- The Carter Centre. (2012, June 20). *Land Commitments in Nepal's Peace Process: An Update on Implementation*.

- The Carter Centre. (2015). *Political Transition Monitoring in Nepal 2009-2014. Final Report*.
- UNDP. (2004). *Human Development Report 2004*. UNDP: Kathmandu Nepal
- Wennmann, A. (2009). *Socio-Economic Inequalities and Peace in Nepal*. Geneva: Centre on Conflict, Development and Peace Building (CCDP).



Remains of Nepal's conflict and peace process

Lila Mani Pokharel and Raghu Ghimire

Background

Conflict and struggle are absolute, while unity and agreement are relative. This is a global belief. In light of this belief, the process by which conflict begins, is resolved, begins again in another form, and is resolved, is ongoing. According to classical beliefs, this process goes on until the time a society reaches the heights of its development and the state disappears. There are many different perspectives on the existence and mobilization of the conflict. Marxists see class conflict as mandatory in a class-based society. The history of conflict in Nepal is long, but the nature of the conflict is diverse.

At a grim point where where neither warring sides can win, there is a compulsory need for an agreement. That is exactly what happened in Nepal in 2007. The 12-point agreement and the Comprehensive Peace Agreement was signed between the Maoists, who had raised arms to establish a government in the leadership of the proletariat through a class struggle, and the parliamentary parties that were engaged in a peaceful struggle to end autocracy and to maintain the parliamentary system that included the monarchy.

Each of those efforts aimed at ending the ongoing conflict and to take the nation towards a peaceful path in order to create a prosperous Nepal. In a complex whirlpool of the peace process that spanned the following decade, small and big movements around important issues, including social- economic-regional issues, gender, ethnicity and culture have happened, and about five dozen other agreements were signed. Each of those efforts was to end the ongoing conflict. Some important issues have been resolved, others are partially resolved, some are moving towards a solution, and others are deformed. In this piece, we try to start a debate about possible solutions to those issues that were raised but remain unresolved.

Bases of the conflict

The most important issue in the peace process today is the Maoist civil war and the issues that it brought up. Issues raised by the Maoist war were class oppression and exploitation. The state forces of that time, as well as the opposition forces, used force to gain power. It was, and is, the just and scientific solution to the exploitation that the autocratic monarchy engaged in.

Religious, caste-based, linguistic and gender discrimination and oppression, deprived of inclusion in the state system, practices around untouchability seen in society, and the endangered cultures due to the encroachment on literature, national identity against local culture and language; unequal treaties, encroachment of territories, interference of foreign powers on natural resources and the threat to national sovereignty caused by the activities of International Non Governmental Organizations and missions, as well as Intelligence Agencies were the main issues that started the conflict. These issues were raised by Nepal Communist Party (Maoist) in their civil war with the belief that they would be resolved only when the old regime, established under the leadership of the proletariat, would end and a new regime would be established under their the leadership. The NCP (Maoist) built a united force who were dissatisfied with the government's lack of interest in solving problems like unemployment, inflation, corruption, social crime, impunity, lack of access to education and health services, lack of legal rights and protectionism etc.

Form of conflict

"People's War" began in 1996 and the country polarized. People who were seen as feudals, cheats, and intelligence by Maoists, whose rebellion had started in rural areas and the state responded violently. But many innocent, unarmed people were killed just because they fed the rebels and let them stay at their homes. There were many instances of rape, abduction, arson, and physical assault. Although the state termed this as "terrorism", society was divided about whether to call it terror, or a political rebellion. In essence, it was a violent political rebellion. Both parties agreed, and looked for a solution through the peace agreement after a certain balance of power was established.

Main actors in the conflict

The NCP (Maoist) was able to channelized mass dissatisfaction from all over the country and create a rebellious force using violence.

On the other side, there were the parliamentary forces, made up of parties and coalitions, that had been executing strategic game of the state forces in the name of liberal democracy within the constitutional monarchy.

The power balance became triangulated when the monarchy, with ambitions of establishing an autocratic regime with a support of Nepal Army, tried to take advantage of the contradictions between the parliamentary parties and the Maoists. But this situation did not last long.

The parliamentary parties and Maoists were on one side and the king was on the other side after the 12-point agreement. Additionally, the situation internationally was also not favourable for the monarchy. Even the Maoists had engaged class, caste, regional, language, gender and cultural oppression and unemployment and corruption, to lead the war. The peace process moved forwards because it was not possible for the rebels to take hold of the center and the state could not defeat the Maoists.

But when the Comprehensive Peace Agreement was signed, the nature of the conflict changed. The parliamentary parties on one side, and the Maoists on the other. When questions of class struggle or a class authority came up, parliamentary parties tend to stand one ground in opposition to the Maoists. When wartime issues, state restructuring, and inclusive proportional representation come up, the political equation often changes.

There have been dozens of protests and dozens of agreements about the Constitution drafting process after signing of the Comprehensive Peace Agreement and the promulgation of the Interim Constitution. Recently, many dimensions of the conflict have changed, and the purview of the conflicting sides has also become bigger. Issues of identity, fundamental rights and inclusion have gotten priority.

Peace talks, strategy and mediation

It is evident that the governments in power (after 1999) tried to control the warring Maoists not by engaging in peace talks, but by using legal and administrative forces. The Maoists were accused of murder, violence, looting, and destruction. The then monarch Birendra is observed to have engaged in indirect (Track II) talks. Gyandendra tried the same, when his relationship with the parliamentary parties was bitter. When King Gyanendra took rule in his hands, result-oriented talks finally happened. There were multiple meetings between the Maoists and

parliamentary parties in Siliguri, Ropla, Delhi and Kathmandu where they talked about cooperating against the monarchy for appropriate political solution. To work together against the king's autocracy, the then Janamorchha Nepal and Ekata Kendra Masal played a decisive role as messengers in peace talks, whose agenda included peace and a new Constitution. Through these messengers, the "Rolpa Agreement" was signed between representatives of the parliamentary parties and the Maoists in October 2005. This created a platform for the "Delhi Agreement-2", and took the course of Nepali politics into uncharted territories.

There was no official mediation between these rounds of talks. Although there were silent observers in some of the talks, there were not playing the role of witnesses. Agreements were often breached, and there was a lack of trust. There are no records of decisions made during this period. As a result, points within the agreement were defined according to convenience, torn apart, turned upside-down and not implemented.

The peace process and peace agreement

Nepal's conflict was different from other conflicts in the contemporary world. Communist revolutions anywhere in the world are characterized by a struggle against class oppression and aim for class-based capture of the state. It always aims for a change of power in the state. Conflict in Nepal, India, and the Phillipines was based on similar reasons. The revolt in Nepal sparked because of class exploitation, unitary governance, oppressed nationalism, gender and caste-based discrimination, and cultural oppression. In India, there was the oppression of indigenous people by landholder, and in the Phillipines, there was similar oppression and discrimination. These revolts were started to capture the state, but comparison of the philosophies of and approaches to the conflict are different. In other countries, conflict is often triggered by language, ethnic, cultural religious issues, or geographic divisions and minority statuses. But the conflict in Nepal came up as a class struggle. They are very different from religious and regional conflicts in Africa and the Arab nations, and are thus not comparable to those conflicts.

It is not wrong to say that the United Nations played a minor role while drafting and signing of the Comprehensive Peace Agreement. Because the integration of the Maoist army into the state security force was an important part of the peace process and the Peace Agreement, it happened because of our own decision.

When the power balance changed after the Second Constituent Assembly election, there was a tendency to view the Maoists as a force that had lost the war. This further complicated the implementation of the Agreement. Work surrounding Truth and Reconciliation, as well as investigation of the disappeared has not been effective.

Issues that peace process missed

The fact that the constitution was written by a Constituent Assembly means that the people are the sovereign. The fact that the CPN (Maoist-U) has expressed their opinion about their differences with the Constitution means that their issues are not resolved, and their struggle is not over yet.

The biggest conflict in society is class conflict. It is the main issue in Maoists' philosophy, policy, programs, work plans, organizations, and struggles, and it does not look like it has been resolved. Documented agreements from before the beginning of the peace process, such as the power-sharing agreement, seem to have disappeared. Unequal agreements and deals, encroachment of the border, national use and conservation of natural resources, and other topics related to nationalism are contested. In the backdrop of this, actors within the Maoist party have expressed their grievances about the Constitution.

A possibility of continuation of conflict, and situations for a new conflict are real.

Anyone can raise, at any time, one of the issues that have been put on hold because of the Agreement. In these changed circumstances, positive management of these issues could aid the reduction of conflict. If we look through the angle of the awareness that the Maoists' civil war and the People's Movement developed in people, some of the agreements in the past seem to contradict each other. Because of the state's dominion, it is possible that these demands may come up again. In addition, although the communal harmony that exists in the Hills, as well as the Madhesh, and slogans of "Madhesi nationality", "Hill nationality", "Mountain nationality" and "internal colonization" have settled down for the time being, there is the possibility that they may come up at another time in another caliber altogether. We have already seen traces of separatists in the last Madhesh uprising.

Regardless of whether the agreements signed were good or bad, conflict resolution depends on how well it is implemented. Conflict and peace are

both deformed. Even issues with an easy resolution are in dilemma. The new constitution has been promulgated, some issues have been kept pending and new issues have become complicated. The class struggle, and issues of land reform have not been touched, and the important issue of inclusion in state bodies are unresolved. Implementation of federalism is being spoilt, the issue of nationalism has been captured by ethnic nationalism.

Foreign elements in internal conflict

Nepal has strategic significance in South Asia. Because it is a land locked country between two major global powers with different political systems, there are some difficulties. Effects on economic, political, social and cultural relationships caused by open border with India will continue to affect Nepal. Developed capitalist powers are interested in the land use of Nepal because it borders China, and India seems to be interested in Nepal because of its natural resources. In this regard, India is involved in macro and micro-managing, rather than respecting Nepal's sovereignty and independence. Its latest steps were its involvement in Madhesh uprising and the blockade. We have bitter experiences of India's behaviors around issues of Nepal's sovereignty and integrity.

New steps

It is necessary to look minutely at indicators of what the conflict was and what results have been achieved, and the need to have serious discussions about these issues.

The last election has changed the power-balance. Although the warring forces were in government, one faction of the Maoist has threatened to take up arms again, claiming that the class conflict has not been resolved. Issues of Madhesh, the multidimensional oppression within the Madhesi, growing separatism, and issues of identity has not been resolved.

Nepal's peace process could not have followed the deductions that were made from other countries' ethnic and linguistic conflicts. Because the conflict was primarily a class conflict, agreements and the constitution have not solved all the issues that were raised. Issues of forces of production, production itself, relations of production, and ownership have not been resolved. Issues of livelihoods are far from being resolved. There are forces that have rejected the Constituent Assembly, the Constitution-drafting process and the Constitution. Conservative forces that carry the legacy of the monarchy, and forces that are

critical of progress also exist as a problem in this space. Only large-scale national unity can address issues such as equitable distribution of land and production, federalism, ethnicity, identity, separatism, etc.

What's next?

To move forward, the forces that are represented in the Constituent Assembly should come to a meeting point on a number of issues including amendments to the constitution.

Regardless of whether they are in government, all political parties must prepare a framework for a joint program which will determine national priorities for an independent economy enabling quick economic growth. They should manage investments by mobilizing internal revenues to produce and distribute energy so that dependence on foreign sources may be reduced. They must establish and implement transparent governance, make the peoples' representatives responsible, and establish and implement mechanisms to make all state bodies more people-centered. Prohibiting and preventing external interference will be the basis for the country to take one leap forward.

There is a risk of us suffering from regional politics, as well as global and regional competitive power struggle and relationships. Even the forces that established the Constituent Assembly have officially filed their disagreements on different articles of the Constitution. We need to prevent another impending violent conflict and start a debate about how to go from sustainable peace to a prosperous Nepal.

Only prosperity and equality can create sustainable peace. It is natural for the debate to be centered around this issue. Otherwise another scary conflict is certain.

Notes

The author's referred to Maoists' 40 point demands, , records/ transcripts of the peace talks that happened during the cease fire, Comprehensive Peace Accord, Agreements that were made with Madheshi parties as well as ethnic, regional, Dalit, and other groups, Constitution of Nepal 2015, Peace Accord Matrix (Kroc Institute for International Peace Studies), etc.



Upendra Yadav Chairperson, Federal Socialist Forum Nepal

How do you evaluate the peace process initiated by the CPA?

Comprehensive Peace Accord has been successful in the safe and peaceful landing of 10 years long armed conflict into Nepal's political process. But, the achieved success is facing the test of time. There are three major aspects in peace process – ending the armed conflict and related violence, promulgating Constitution to address issues of discriminated and minority communities, and integration of Maoist combatants into Nepal Army. However, there are issues leading to the conflict which are yet not resolved. Discrimination on the basis of ethnicity, region, and class still persist. Issues of Adibasi/ Janjati, Madheshi and Dalit have not been addressed adequately.

Have the post-CPA developments in the last decade inculcated a political culture in Nepali polity which is conducive to management of conflicts by peaceful democratic means?

A large number of agreements have been signed but no honest efforts are made to implement these agreements. Conflict Management is not possible without understanding the root causes of conflict. Nepal is a country of diversities on geographical and socio-cultural bases. Conflict in Nepal will continue until the mentality of “Ruler” and the “Ruled” remains intact. Signing of Comprehensive Peace Accord could only help in resolving the Maoist conflict in Nepal but the issues of Madhesh could not get addressed. People of Madhesh have been the most oppressed, and voices against these oppression and discrimination are raised. Oppression and peace cannot go hand in hand. A good political culture is yet to be developed and practiced in Nepal. If we observe the course of the past 10 years, politics in Nepal seems to be in its initial stage of the long political development, and has not been institutionalized.

Evaluating the CPA as a historical document after a decade, do you see any inherent problems in the CPA itself?

There certainly are some problems. There was a split within the Maoist party due to non-compliance of the agreements. There are various groups in Nepal interested to initiate armed conflicts. These issues are yet to be resolved. The

main reason behind conflict in Nepal is lack of seriousness in resolution of problems and the political parties' interest in power games among each other.

Any final thoughts for future of Nepali society? How can Madheshi aspirations be carried forward in the future?

There should be an end to the attitude of the leaders in Kathmandu to treat people of Madhesh as the people of their colony. There is a need for their inclusion in the national mainstream as identity and recognition in the political offices as well as public administration is important. Madheshi identity is not accepted in these fronts. Now, we have federalism and autonomy with self-rule of the states are the crux of it. Madheshi issue can be resolved only by providing Madheshis their rights to decide on their own future. This is only possible by implementation of meaningful federalism.



SD Muni

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How do you evaluate Nepal's political context after a decade of the Comprehensive Peace Agreement?

After a decade of Nepal CPA, Nepal's political context looks hopeful though not fully reassuring and satisfactory. The question of Maoists combatants has been resolved though not ideally. No restructuring of the Nepal Army has taken place nor will it. Nepal's politics looks highly fragmented and faction ridden. Leadership in all the parties have lost credibility and clout and look less effective than ever. The country stands sharply polarised along socio-cultural fault-lines and development agenda has remained rhetorical yet. Constitution has been promulgated, and it has enshrined rights, but it took too long, and only after a second Constituent Assembly was brought into being. Issues still remain with the new Constitution to be resolved. Marginalised groups like the Madhesi's, Janjatis, Dalits and women have reservations, some of them very strong, vis-à-vis the new Constitution. Issues also remain to be resolved regarding Peace and Reconciliation and justice to those affected by the 10 year old civil war. These issues need to be treated as a special basket, rather than being seen as traditional cases of crime and violence. The onus of peace and reconciliation does not lie on Maoists alone, but also on the Nepali State that was as guilty of violence and human rights violations as the insurgents were.

How did India engage with multiple actors of the peace process and what were some of the major challenges?

India was positively engaged with the major players and principal stakeholders of the peace process until the elections to the first Constituent Assembly. The unexpected victory of the Maoists disturbed the pre-CPA political equations and that involved India as well. There after India got focussed more on mainstreaming the Maoists then promoting Constitution making, peace building or developmental agenda. The ensuing fragmentation of the Nepali political process was contributed by India as also affected India's role. Nepal would have made better progress on all counts if the basic understanding between the Maoists and the Seven Party Alliance, particularly, the Nepali Congress that led

the SPA, could remain intact, backed by India's support and creative engagement. Breakdown of the first Constituent Assembly without delivering a Constitution was a major setback.

Most of the Maoists leaders were hideouts in India when they were launching their movement against the Nepali State. India has often been alleged as a country that provided Maoists a safe haven at the same time, pushed Maoists and then seven party for a 12 point understanding. Was India comfortable with both these roles?

India was seldom comfortable with the Maoists. Maoist safe heavens in India were inevitable as that has been the way of Nepali political life. After all, the first communist party of Nepal was on the Indian soil. The acceptance of Nepali Maoists on Indian soil was with considerable circumspection and reservations on the part of the Indian political establishment. What facilitated New Delhi's push towards SPA-Maoist understanding on 12 points was the obstinacy of the Nepali King Gyanendra, who refused to heed the Indian advice of working with the mainstream political parties within a Constitutional democratic framework. India was not at all comfortable in accepting the Maoists in political mainstream, but it did not have any other option under the circumstances that evolved in Nepali politics of the time.

In your opinion, what is unique about Nepal's peace process?

The most impressive feature of the Nepali peace process is the mainstreaming of the Maoists. There is hardly any radical insurgency movement in the world that has so peacefully been transformed into a democratic process.

Were Maoists in a hurry to end the conflict, esp. after 9/11 and the resulting international solidarity against terrorism? What is your opinion regarding the Maoists' strategic shift to peace talks?

Maoists were obviously conscious of the changing global mood and political dynamics after 9/11. The global war against terrorism had started tilting strategic balance against the Maoists who realised that even if they could defeat a Monarchical state, they were not in a position to sustain their victory. This is where they thought of opening their external channels of communications with diverse countries, especially India. Internally, they gradually distanced themselves from the King, after a spate of negotiations and explored possibilities of working with the democratic political forces.

TRC and CIDEP have started working to reconcile wartime issues. How do you see the whole process of reconciliation and truth finding? What is the likelihood that this will be internationalized?

I have made some broad observations on this issue. International community is already involved in these issues since the role of the UN Peace Mission in Nepal. But there is hardly anything laudable objectively in the record of international community's role in preserving human rights and peace building processes. This is not the place to go into the details of this issue here. TRC and related issues must be addressed within the framework of CPA which was based on intrinsic national political consensus. These issues must not be used either as political instruments in settling partisan scores or as tools of personal and political vendetta.

Do you think that Nepal's political development will pave a way to end other conflicts that have emerged in the last decade?

Hopefully it will, and it should be. However, the political context prevailing in Nepal is not very constructive or inspiring.

How do you evaluate the role of informal dialogue process like NTTP?

The informal dialogue process like the NTTP certainly has a positive role. It can mediate in the existing and evolving political fault-lines. It can also contribute towards creating social consensus on questions of ethnicity and community groups. But its success would depend only on how must the ruling elites accept its credibility and provide it a scope for nudging diverse and conflicting perspectives closer to each other.



Nepal's homegrown model: Integration and reintegration of Maoist combatants

Deepak Prakash Bhatt

The Comprehensive Peace Accord (CPA) 2006 and the Interim Constitution, 2007 paved a way to resolve Disarmament, Demobilization and Reintegration (DDR) and Security Sector Reform (SSR) in Nepal. DDR is developed in post-conflict societies and SSR has been a topic of debate since the 1990s, notably because of the model introduced in post-Soviet countries where there was conspicuous lack of national security institution on the ground. Worldwide experiences of post-conflict developing societies replicate negotiations between domestic realities and international involvement with best-practice-lessons-learned models. DDR and SSR models are anticipated to support state building and peace building process in any country towards participatory democratization and inclusive state institutions.

The purpose of integration and rehabilitation of the combatants was to ensure security and stability in post-conflict environments so that recovery and development can gain momentum faster. Integration and rehabilitation of the combatants of the Maoist army was a multidimensional process. It has political, security, military, socio-economic and humanitarian dimensions. The success and failure of integration and reintegration programs depends upon the joint efforts of politicians, key stakeholders of peace process, individuals, families and communities (Duthie, 2006, p. 41) This is the first step in the transition from conflict to peace. To be successful on this, social and cultural capital should be taken into account. At the same time, this is the phase for right-sizing of the existing armed forces and redistributing to human security areas—health, food, education and environmental security downscaling from defense and other core security areas. Integration and rehabilitation of ex-combatants have short term, medium and long-term goals and implications. It is helpful to establish peace, security and stability in short term. Medium term is an extensive and expensive process. Taking some of the combatants into the security forces or particularly into the military sector reduces the problem (Licklider, 2008). However, some

view that this act of allowing entry into the military sector should be a long-term solution, as most countries need to reduce the overall size of their military after war. And, achieving sustained socio-economic balance for the stabilization of community should be the long-term goal of reintegration.

Armed conflict declared in 1996 caused large number of deaths, dislocations, disappearances, displacements, violent damage of property and infrastructure. Ministry of Peace and Reconstruction (MoPR) produced the data below:

Table 1 Human Cost of Conflict		
S.N.	Title	Number
1	Deceased Person	17,886
2	Disappeared Person	1,530
3	Displaced Person	79,571
4	Abducted Person	3,142
5	Disabled Person	8,935
6	Widows	9,000
7	Individual Property Damaged	17,484
8	Orphans	620

Source: Ministry for Peace and Reconstruction, 2013.

Associating DDR and SSR in practice

In principle, international practices of reintegration are not free from practical problems. Disarmament, Demobilization, Reintegration (DDR) and Security Sector Reform (SSR) formulations have been developed to express a developmental approach, to advance a secure and firm environment enabling recovery, peacebuilding and development enthusiastically. DDR focuses on specific target groups, especially putting the ex-combatants and their dependents at the center, and aims to take opportunities for their orderly integration into agreed upon future defense forces for their disarmament, demobilization and reintegration into peaceful civilian roles. SSR focuses on reforming the security system and its component parts to promote the prospects for effective, legitimate and accountable provision of justice and security services in the country as it emerges from conflict. Thus, although they have distinctive approaches, the aims of SSR and DDR overlap in many key areas i.e. a) sustainable dismantlement of illegitimate or undesirable armed groups and command structure b) appropriate resizing and restructuring of defense forces c) addressing the security and other needs of ex-combatants and associated vulnerable groups, as well as recipient

communities as part of wider peace and security building, and d) military and defense reform. Still, there are many challenges and priorities of coordinating short and long-term processes and objectives (Ryan, 2008).

During the early phase of integration and reintegration, DDR programs were extremely vague and, in the past, UN mandates on these processes were equally unclear. So, these programs were often carried out in a disjointed and disintegrated way due to poor coordination, planning, support, and sometimes due to competition among peacekeeping operations, agencies, funds and programs. As a result, national and international efforts to establish security were not adequately supported, thereby weakening the chances of a successful peace process. The Brahimi Report of August 2000 stresses the importance of UN agencies, funds and programs in the framework of UN peace operations all working towards the same goal (UN, 2006).

Nepali characteristics of peace process

Table 2 displays that large number of physical infrastructures destroyed during conflict.

Table 2 Lose of Infrastructure during Conflict		
S.N.	Categories	Destruction
1	Schools	2,149
2	VDC Offices	2,072
3	Municipalities/DDC Offices	130
4	Government offices at local level	1,047
5	Government offices at district level	986
6	Suspension bridge	101
7	Others	2,032

Source: Ministry for Peace and Reconstruction, 2013.

At the beginning of the peace process, the Maoists and Seven Party Alliance (SPA) promised to resolve the reintegration and rehabilitation process within six months and reconstruction of damaged infrastructures within three to five years. However, ‘Nepali Model’ emerged from revisiting and bridging orthodox DDR and SSR models and lately introduced Infrastructure for Peace (I4P) approach. But experiences elsewhere have shown that the latent or active conflict and post-conflict scenario have shaped the modalities of DDR in practice. At the beginning, because of Nepal’s regional security and influential rising power politics, these models and even terminologies have been rejected labeling DDR

and SSR as an ‘anti-communist’ in spirit, ‘orthodox’, ‘western’, ‘neo-liberal agenda’ and ‘donor driven’ model.

In Nepal both the works—integration into the army and reintegration of ex-combatants into the society—must be seen as a part of broader security sector reform (SSR). Also, this must be seen as a de-militarization of the Nepali society because UCPN (Maoist) has set the instance of armed struggle and has made it realize, though it is not correct, that only the violent means can change the political course. Following this, many armed groups were active in eastern Terai and eastern and mid-hill regions. At the same time, the discourse of inclusive institutions is emerging. The security forces can take this as an advantage to build an institution of national spirit. At the same time defense review is widely discussed, and less planned and implemented dimension in Nepal.

Existing security institutions during mid 90s were doubled in size during insurgency, which created a big debate of rightsizing security. Royal Nepal Army, which was 45,000 in size even during mid conflict, went up to 95,000, Nepal Police with 35,000 force doubled to 72,000 and new Armed Police Force of 40,000 force was created.

Many countries have emphasized on training and security assistance over governance and accountability. But the ‘imperatives of winning the war’ and counterterrorism efforts were prioritized over SSR and peace building principles (Sedra, 2013). Nepal showed just the opposite result. Internal political horse-trading shaped the depth and breadth of police and army restructuring in both places. The sustainability of SSR policies in Nepal remains doubtful because of the replication of international standards.

Constitutional provisions and political agreements

Seeking international assistance, two letters, one from the government of Nepal and another from CPN (Maoist), were sent to the UN. Both the letters requested for the United Nations (UN) assistance in five areas for the management of arms and armed personnel. Parties had reached an agreement to seek the UN assistance in “the management of arms and armed personnel of both sides”, deploy qualified civilian personnel to monitor and verify the confinement of CPN-M combatants and their weapons in designated cantonments. It was also agreed that the modalities for all arrangements, including of arms and ammunitions, would be worked out among the parties and the UN.

Agreement on Monitoring of the Management of Arms and Armies (AMMAA) of December 8, 2006 (point 4.1.3) agreed that all the Maoist army combatants would be registered at the main cantonment sites. This registration would include the provision of age, name, rank, responsibilities within unit/formations, date of entry into service and would provide the basis for a complete list of personnel. Only those individuals who were members of the Maoist army before 25 May 2006 were to be eligible to be cantoned. Upon registration, Maoist army combatants, if found to be born after 25 May 1988, were to have been honorably and automatically discharged. Only those Maoist army combatants who were properly registered at cantonment sites were eligible for possible integration into the security forces fulfilling the standard norms. Any discharged personnel were to be ineligible for possible integration (The Interim Constitution of Nepal, 2007). And, it was agreed that a special committee would determine eligibility for integration into the security forces. This integration process was supposed to be determined in subsequent agreement with the parties.

Point 2.2.3 of the agreement reached among the Seven Parties on 25 April, 2008 with regards to those verified Maoist combatants' integration stated to make a provision whereby only those duly registered at the temporary cantonments mentioned in Point 4.1.3 of the AMMAA, signed between the Government of Nepal and CPN (Maoist) and witnessed by the United Nations, will be deemed eligible for possible integration with the security bodies after fulfilling the standard requirements (*ibid*).

The verified combatants of the Maoist army were also to be offered a choice between an economic package and other alternatives for rehabilitation. It was stated that a special committee having the representation of main political parties in the Constitution Assembly would be formed and for this purpose Article 146 of the Interim Constitution will be amended. (The Comprehensive Peace Accord, 2006).

It was also agreed that integration and rehabilitation process of verified Maoist army combatants would be completed in maximum of six months' limit. For this purpose, Special Committee (SC) was to be formed by representatives of major political parties in the Constituent Assembly (CA), as directed by the Article 146 of the Interim Constitution. A Technical Committee (TC) of experts under this special committee was also provisioned. Special committee was supposed to be created and was to start its work within 15 days of the formation of cabinet. Government was not to take any responsibility of the combatants, who couldn't be integrated despite their verified status, after six months (*ibid*).

International experiences: Emergence of Nepali model

Integration and reintegration is complex combination of political and technical processes. Both are seen as politically sensitive issue in any given circumstances. In highly politicized post-conflict contexts, it often becomes important to find ways to discuss the support, planning and implementation of both. They also involve substantial technical complexities and procedures.

(a) Integration

In Nepal's context, integration became the point of entry of Maoist combatants into Nepal Army. The term is understood to mean a process of integration of qualified Maoist army combatants into security sector components such as Nepal Army, Nepal Police, Armed Police Force and National Intelligence Department and possibly newly proposed security bodies.

UCPN (Maoist), Nepali Congress, CPN (UML) and Madhesi Janadhikar Forum (MJF) could not reach any conclusion on the number of combatants to be integrated into the security forces; the modality of integration and the rehabilitation package to be offered to the combatants. Arguments and counterarguments were made about integration and reintegration. Integration was seen as the most challenging step of peace process in Nepal. There were four schools of thought on integration issue. First, the CPN (Maoist) was in favor of formation of new national army after PLA integration. Maoists had claimed many times that they are ready to introduce new security structure like Border Security Force or Industrial Security Force which can function as para-military security structure also. The most practical option would be to make national security policy and integrate both the armies in Nepali context and to form a national army. Relation between both of our immediate neighbors, India- China, is developing to new heights and both are nuclear power and Nepal doesn't have any conventional or direct threat by any of them. So, the number of future Nepal Army should be limited to 30 to 40,000¹.

Second, Nepali Congress was reluctant to integrate Maoist combatants into Nepal Police and Armed Police Force but ready to integrate them into Nepal Army taking high ranking officer into confidence. They also wanted to send all of them back to the society after providing some skills training. The third school of thought, led by the CPN (UML) was in the middle of both the extremes and put a way forward as partial integration of Maoist combatants into Nepal Army. Some of them were to be integrated into the Armed Police Force and rest into society, UML argued. Fourth view is of the regional Terai Madhesh-based

political parties like Madhesi Janadhikar Forum (MJF), Sadbhawana Party and Terai Madhesh Loktantrik Party (TMDP) which are demanding for group entry of Madhesh origin people into Nepal Army because of poor representation and also, somehow, as part of broader Security Sector Reform process.

Several views regarding integration were presented by politicians, experts and policy makers regarding inclusive structure of existing security institutions. It was said that some groups that have been historically marginalized and under-represented in the Nepal Army and other security organs should be given preference over others in the larger national interest' (Gautam, 2009, November 27). Women, Dalit, Madhesi and other historically under-represented sections of the Nepali society can be in this priority. Madhesi parties were of the view that Madhesi people are underrepresented in Nepal Army so this process must implement the previous agreement and introduce proportional and group entry for Madhesi community because the government has accepted that proportional, inclusive and group entry of Madhesi and other communities to give Nepal Army a national and inclusive character, as per the agreement between the government and United Democratic Madhesi Front.²

(b) Reintegration or rehabilitation

Reintegration is the process by which ex-combatants acquire civilian status and reintegrate into wider community—hopefully with sustainable and useful employment, income and social position (UN, 2006). This was seen as a reintegration of Maoist ex-combatants into the society as civilians with social respect. That will include vocational training, micro-enterprise support and educational advancement of ex-combatants. It was appropriate to treat ex-combatants differently from other war affected groups, such as civil returnees, internally displaced persons and conflict affected families.

As per the agreement, the Maoist combatants were to be kept in cantonments for six months but they stayed for more than five years inside the camps. Ex-combatants, who can play a significant role in peace building in the post-conflict situation, were ignored as they didn't create hurdles by regrouping and involving in criminal activities. Failure to provide skill, training and employment opportunities to the combatants can be costly. So that there was need to give a special attention for the rehabilitation program.

Incentives, skill generating trainings and programs of educational enhancement programs were discussed for ex-combatants while rehabilitating into the community. Categories for ex-combatants discussed in the Technical Committee

were-

- a) Self-employment seekers-opting rehabilitation directly
- b) Those who want rehabilitation willingly but seeking some skills / education from the state
- c) The above categories basically include those who want integration into security forces but fail to be integrated due to inability to meet the norms required
- d) Disabled combatants
- e) Lactating/pregnant female combatants
- f) Seriously ill or wounded combatants

Issues concerning the Maoist Army Combatants that fall into the following categories were also discussed in the Technical Committee.

- a) Human Rights violators
- b) Deserters, those who left the existing security forces and joined Maoist
- c) Those having criminal record and pending cases in courts

(c) Rehabilitation packages

Different categories of programs and packages of rehabilitation were discussed at the Technical Committee, Special Committee and the Secretariat.

i) Education-formal and informal

Education was offered to the combatants who want to go for education package, as day-scholar for primary, middle, secondary and higher secondary education in government schools. The area of such formal and informal education can be like veterinary, teaching, forestry, computer, management and journalism but it was completely discouraged by Maoist party leadership.

ii) Vocational trainings

Ex-combatants were offered trainings, stipend to meet the expenses for lodging, foods and the basic expenses related to education or training. After the completion of training, each combatant must be provided with basic tools and the seed money to start business. Skilled trainings should be offered in the areas like-welding, electric wiring, plumbing, brick-laying and carpentry, driving-light vehicles, cuisine, tailoring and mechanical repairs. In medical field, they were offered trainings for lab technician in pathological laboratory, dental technician in laboratory, community medical assistant, community health workers, and maternity community health workers. Agro- based education like basic agricultural concepts and trainings for the production of off-seasonal vegetables, different kinds of fruits, seeds and cash crops were discussed. In the area of

animal husbandry- cows/buffalos farming, poultry, goats or sheep farming, pig keeping, fishery, bee keeping, silkworm farming and butchery were offered to the ex-combatants. In the hotel related area, housekeeping, bartending, hotel boy, barber, beautician, florist and chef were offered but all these options were completely rejected by Maoist party leadership.

Table 3 Number of Combatants during Verification, Integration and Rehabilitation			
S.N.	Total	Male	Female
Total participation during verification (lined up)	32, 250	-	-
Verified by UNMIN	19,602	15,756 (80.37%)	3,846 (19.63%)
Absent during verification	8,640	-	-
Arms stored in containers	3,475	-	-
Disqualified combatants	4008	2,791	1,217
Minors (below age of 18 on 25 May 2006)	2,973	1,987(66.85%)	986(33.16%)
Late Recruits	1,035	804(77.07%)	231(22.31%)
Present during categorization for integration, volunteer retirement and rehabilitation	17,052	13,494 (79.13%)	3,558 (20.87%)
Absent during categorization	2550	2268	282
Dead during cantonment stay	94		3,454 (22.11%)
Opted volunteer retirement	15,624	12,170 (77.89%)	104 (7.31%)
Opted integration (to join Nepalese Army)	1,422	1,318 (92.69%)	-
Opted rehabilitation package	6	6	—

Source: Secretariat of the Special Committee, 2013

Disqualified ex-combatants

A total of 1700 out of total 4,008 Verified Late Recruits and Minors (VLRM) were disrupting integration and rehabilitation of UNMIN verified ex-combatants so that they were released from the cantonments in January-February 2010 through formal discharge program coordinated by the United Nations Integrated Reintegration Program and Ministry of Peace and Reconstruction. Large number of disqualified ex-combatants, which falls under this category, were not in contact. As per the tripartite agreements between the Nepal Government, United Nations, and CPN (Maoist) it was agreed that the disqualified ex-combatants would be immediately discharged from the cantonments after the verification process, however, the discharging process was completed after three years after the verification process, which was completed in December 2007.

Challenges

Maoists were claiming equal positions in all rank and files at par with Nepali Army. Worries of the non-Maoist parties in general were-

- Maoist party will try to integrate more numbers of their combatants than agreed upon among senior leaders of the parties.
- Maoist's were trying to integrate more number of the combatants into Nepali Army and might politicize them later.
- Security forces may face mutiny, insubordinations, disobedience, fight in line, loss of weapons and politicization activities.
- Maoist party will retain its influence over the integrated forces.
- Security forces may loose professionalism due to integration.

There were worries from the Maoist side-

- If promises given to combatants can't be fulfilled party leadership will lose credibility.
- Integrated ex-combatants may be treated like second-class citizen.
- Maoist party may be forced to accept the existing norms of security forces.
- If asked to accept the existing norms of security forces, the number for integration may reduce drastically.

One of the most significant factors during army integration was the management of the process. All major political parties significantly enhanced this in a flexible and adoptable manner. Inclusive integration process was planned and managed

by Special Committee and by its Secretariat, which tried to address exclusion on social and economic marginalization based on caste, region and gender.

Issue regarding community stabilization was under discussion while talking about integration and reintegration process. It was crucial to know how communities are going to deal with the ex-combatants and manage social and economic challenges and conflicts that may result from providing hard cash to them. Job creation for ex-combatants was the first and foremost responsibility of the state but the most affected area by the insurgency was private sector so their concerns were seriously taken into notice for sustainable peace and requested to contribute in such a way.

Lessons

A number of lessons through this process can be summarized as follows:

- Some ex-combatants are active in group work and participating in local development and planning process, and taking lead role in conflict resolution at local levels. This gives a lesson that it is important to give them space to work among community because they can communicate similar message to other youth.
- Most of the ex-combatants properly managed cash payment investing on land, business, foreign employment and livelihood related areas.
- Ex-combatants play a crucial role to make the community participatory. Pro-activeness of these individuals also assists to coordinate with community. So that they are part of peacebuilding not only be part of extremist ideas in future.
- Ex-combatants have very strong connection and cooperation among them. Where political parties, civil society, local and national government agencies are crucial to effectively involve them to mobilize in social activities with government support.
- Ex-combatants integrated into Nepali Army are not creating any hindrance.

Notes

- 1 Views expressed in the Technical Committee by UCPN (Maoist).
- 2 Collection of Understandings, Agreements and CPA. Government of Nepal, MoPR, Singhadarbar, Kathmandu, 2007.

References

- Duthie, R. (2006). *Transitional Justice and Social Reintegration*. Background Studies: Stockholm Initiative on Disarmament Demobilization and Reintegration. Stockholm: Ministry for Foreign Affairs Sweden.
- Gautam, K. C. (2009, November 27). Proceedings from seminar organized by Nepal Institute for Policy Studies: *Integration and Rehabilitation of Maoist Army Combatants*. Kathmandu: NIPS.
- Licklider, R. (2008). *Merging Militaries after Civil War: South Africa, Bosnia and a Preliminary Search for Theory*. Retrieved May 23, 2010, from [www.allacademic.com](http://www.allacademic.com/meta/p280687_index.html): http://www.allacademic.com/meta/p280687_index.html,
- Ryan, O. G. (2008). *Linking and Coordinating DDR and SSR for Human Security after Conflict: Issues, Experience and Priorities*. Saferworld and Univeristy of Bradford.
- Sedra, M. (2013). The Hollowing-out of the Liberal Peace Project in Afghanistan: The Case of Security Sector Reform. *Central Asian Survey*, 32(3), 371-387 .
- The Comprehensive Peace Accord. (2006).
- The Interim Constitution of Nepal. (2007).
- UN. (2006). *Operational guide to the integrated disarmament, demobilization and reintegration standards*. Retrieved from www.unddr.org: <http://www.unddr.org>



Hannes Siebert

Senior Advisor, NTTP and Peace Secretariat (2005 to 2008)

Please share your historical background that directly reinforces your role in NTTP process. How did you become a part of NTTP process?

It was in the month of festivals, October 2004 when I first visited Nepal at the invitation of the All Party High Level Peace Committee and the Nepal Peace Secretariat. The Peace Committee and Secretariat have decided to create a capacity building, technical support and informal dialogue structure to prepare for and facilitate dialogue between the parties, government and the Maoists. They were interested to jointly reflect on two processes I was involved in: South African peace process and its National Peace Secretariat; and the One-Text Initiative of Sri Lanka, a confidential all-party dialogue forum that was created when that country's formal talks broke down.

My first meeting was with "the facilitators" -- five respected Nepali elders. Each of them remarkable leadersthat have played a pivotal role in the country's peace process and the only ones that were consistently able to convene all the top political leadership. Their personal integrity and inclusive people-focused vision united the diverse political players in a change process that was values/ rights-driven. I would always refer to them as mentors from whom I learned and who's "suitcases" I helped carry on Nepal's critical journey towards peace.

We could not foresee during these early days of 2004 that the Nepal Transition to Peace (NTTP) initiative would become one of the future pillars of the peace and dialogue process, reinforcing and complementing the work of the facilitators, formal talks and mandated peace structures. This ground-breaking mechanism unique to Nepal, was jointly designed by the all the political parties and the Peace Secretariat. The CPN-Maoists joined NTTP after King Gyanendrastepped down and his government resigned in 2006.

In the months after those first meetings in 2004 with all the political leadership, the Peace Secretariat and Government, Nepal emerged from its devastating civil war and began confronting the difficult task of achieving peace, justice, and reconciliation amidst a troubled environment. Although a negotiated solution had seemed elusive at first, the tireless efforts of all actors involved led to the gradual consolidation of the country's peace process, and paved the way for securing the "peace" and eventually the adoption of the new constitution.

This was the “people’s journey” I was privileged and honored to be part of.

What were the initial days like? In terms of convening, facilitation, participation of leaders in the forum?

Following the Delhi-Kathmandu “virtual” ceasefire negotiations of 2005/6 with two facilitators in each city, the parties invited Dr Gunther Bachler and myself to be the co-facilitators of the process. I initially turned-down the request but later accepted on the understanding that we will be co-facilitators in support of the country’s lead facilitators, Mr.Daman Nath Dhungana and Mr. Padma Ratna Tuladhar. In most meetings Mr. Dhungana and Mr. Padma Ratna were the conveners and chairs, supported by ourselves, the NTTP team and the Peace Secretariat Secretary – initially MrVidhyadhar Mallik and later Mr. Janak Joshi. In exceptional cases, such as the negotiations of the UN mandate for monitoring and arms management, and the confidential meetings between the Maoist leadership and Nepal Army Generals, Gunther and myself directly facilitated and co-chaired.

The All-Party Talks which took mostly place at Prime Minister GP Koirala’s house were chaotic, unstructured, but focused. The top leaders negotiated directly for weeks at a time until they reached agreement on the challenges they faced: on the future of the monarchy, elections reform, military integration and the structure of their future state. Talks had to stop every time Koirala needed a rest or medication and continued when he woke-up. But a remarkable characteristic of the All Party Talks was that the leaders continued this ritual for days until they reached agreement on an issue – a process that lasted almost two years

“Inclusivity” -- as referring to the inclusion of all main parties in the All-Party Talks, or in the NTTP Forum, or the all-party Peace Committee -- was one of the strong and positive characteristics of the Nepal peace process.Yours was a peace process driven and owned by the political stakeholders themselves. But, where and when external powers interfered in the process, one or more party paid an unfortunate price to the detriment to the overall process and destabilization of the country.

What do you consider to be the major achievements of these 11 years? Can you remember any specific memorable incident/event/role which you personally played or were involved in?

To me, the CPA, together with the final joint ceasefire agreement, the momentous people's movement of 2006, and historic elections of April 2008 were the key turning points in Nepal's transition to from a monarchy to a democratic republic. It was only on the night of May 28th, 2008 when the 601-member Constituent Assembly and Parliament convened and we listen to the many voices of this

first legitimate people's chamber that one was able to breathe deeply with relief and gratefulness. That night was a wonderful celebration of the achievements of those that quietly and relentlessly worked to make this new fragile democratic republic a reality.

The saying goes: "too many cooks spoil the broth". But in Nepal I learned cooking is often a wonderful joint occasion of preparing meals for the whole family. During many festival celebrations 10s of different small dishes are prepared by several members of the family. So it was with the Comprehensive Peace Agreement (CPA). A challenging creation of many cooks with the intent of serving the whole Nepali family -- carefully prepared in true Nepal tradition with ingredients that would provide long-term nourishment. But one major difference between cooking Nepali food and negotiating political agreements is that the latter often stretched to the edge of self-destructing cliffs before its "cooks" managed to prepare a meal that everyone could eat.

The CPA was shaped and crafted through an intense negotiations process of almost 20 drafts and agreed by the inclusive all-party Peace Committee in the Peace Secretariat. The Committee's draft was presented to the negotiators and top leadership that finalized the agreement. The Accord captured the parties' collective hopes and vision for a future Nepal, stated their shared values and principles, outlined a roadmap and key elements that will determine the change process, and identified the key implementation mechanisms to secure the peace process with the intent of creating a space for an equitable, inclusive and participatory political process. In the years to come, the CPA remained the essential 1st agreed national contract between all parties, a reference document and vision to which the parties returned to and through which they held each other accountable.

But the key turning point in the peace process was the Jana Andolan II (Peaceful People's Movement) in 2006. After a series of failed ceasefire attempts and severe oppressive actions by the King's government, the political parties, Maoists and civil society mobilized more than 8 million Nepalese and brought the country to a standstill. It was initially only going to last 4 days, but it soon became clear the depth of commitment and determination was much deeper. The leadership across the political spectrum were determined to end the King's oppressive rule. During those courageous and heroic three weeks, the historic people's movement changed the course of history and brought centuries of monarchy rule to an end. Young and old took to the street – including mothers and wives of the soldiers and policemen with their children.

Before the people's movement I had been in the country for almost 9 months supporting the national facilitators in their efforts to secure a ceasefire and revive the formal negotiations which they have been facilitating for almost a

decade. In the week before the movement started they suggested I should return to Sri Lanka for a few weeks. I was confused and concerned that I have done something wrong. We met on my way to the airport. I asked them to be honest and frank with me, I really needed to know why they wanted me to go. Their main concern was that I would try and prevent a confrontation between the King's Army and the people's movement and convince them to negotiate with the King's government prematurely. They were right.

The conversation that morning reminded me of my own country, South Africa and how many times "mediation" re-legitimized the apartheid government's power and how these efforts "equalized" the rights of people suffering under oppressive governments, with the "rights" and interests of the oppressor.

The people's movement was reaching its climax three weeks later. Many international brokers – particularly India – tried to negotiate a compromise, but the movement's leaders refused. On the Friday evening at the end of the 3rd week, Padma Ratna called from prison and asked that I return. That night thousands of people -- including women and children -- marched peacefully towards the palace. The palace was heavily guarded by the Nepal Army and ready to open fire on the unarmed crowd, but two extra ordinary events took place that prevented an almost certain massacre. A heavy rainstorm broke out as the protesters approached the palace that flooded the roads and caused much confusion. But what surprised and shocked us most, was that despite the King's orders to the army to open fire, the Chief of Army (his step brother) refused to act against his own people.

Days of intense negotiations followed with many of the democratic leaders and activists refusing to leave prison until the king stood down. The parties released a list of demands that was delivered through several channels to the King's Government and Army.

On the Monday morning the Peace Secretary, Mr. Mallik and myself met with the Chief Secretary to deliver the message from the imprisoned facilitators. He was clearly worried but still confident. After laying out to him the demands, a discussion followed on the Government's options and way forward. Mr. Mallik delivered one of his most passionate pleas I have witnessed. His courage that morning was remarkable. On our way out, he gave the Chief Secretary an intense Nepali greeting. It was the last time we saw him in that position. That night the King finally stepped down, his government resigned, and he handed over power to the people.

The days following the King's historic speech were something words can hardly describe. Millions of people marched around and through the city, celebrating. It was indeed a people's victory! As we drove and walked with the

crowds that day, the experience of being part of a moment so much bigger than ourselves were overwhelming. It left a permanent imprint on my political awareness. It made us all humble and grateful to see what can happen when all stands together embracing the humanity of each other.

What aspects would you change in the light of hindsight in the past 11 years?

The final ceasefire agreement and CPA had several shortcomings that caused significant problems in the implementation phases. The negotiators often left certain provisions vague or ambiguous for all sides to agree upon, but these haunted them during the implementation phases. I will mention only a few that haunted me:

- i. Although the CPA refers to the Truth & Reconciliation process, no framework was provided for amnesty conditions and provisions. Both sides had very different interpretations of the provisions in the agreement. This caused significant delays in the finalization of the Truth Commission instruments;
- ii. The vagueness in the CPA on the integration of Maoist cadres into security forces caused significant challenges in the implementation phases. In subsequent negotiations the leaders used many of the proposals that resulted from the confidential talks between the Maoist leadership and Army generals. But, unfortunately the leadership did not include enough details from these proposals to sufficiently guide implementation. Much suffering and disappointed resulted from these omissions;
- iii. The overall process roadmap that was developed in 2005/6 started with the ceasefire and ended with the Constituent Assembly (CA). More details could have been included in the CPA about the implementation phases after the CA;
- iv. Although the national facilitators, Peace Secretaries and NTTP played an essential deadlock-breaking and consensus-building role in the overall process, more of these mechanisms could have been build into the formal structures during the constitution-drafting process. The national facilitators' role should have been strengthened and formalized as part of a more long-term consensus building structure
- v. In each phase of the peace process since 2003, the formal peace infrastructures transformed based on who was in power, the nature of agreements, or the success or failure of the processes. The CPA could have included more specific provisions for the future peace structure to ensure its inclusiveness and joint ownership by all parties.

It was important that this structure ensured that the prerogatives and responsibility for peace was co-owned by all parties. Following the establishment of the Peace Ministry and its local structures, the instruments of peace became again single stakeholder-owned (by the party in government).

What are the ways ahead for the NTTP Institute? What is your personal opinion?

I would like to suggest the following points for NTTP-I to consider in carving its way ahead:

- i. Consider to reactivate and strengthen NTTP political parties' research units and shared knowledge resources;
- ii. Develop a deeper integration of shared knowledge components into the facilitation and dialogue strategies;
- iii. In this post-constitution and implementation phase, NTTP could serve as an accompanying mechanism for refining legislative provisions, facilitate ongoing implementation, building democracy and ensuring people's voices are heard, and act as a permanent consensus-building mechanism;
- iv. Diversify NTTP's funding base to be reflective of the political diversity among NTTP stakeholders;
- v. As a Track 1.5 initiative, consistently innovate new ways to strengthen representative democratic processes and serve as link between track 1, 2 and 3 processes;
- vi. Based on its historic role, strengthen and continue its relationship with the Peace Ministry and compensate for any shortcomings or limitations in the formal structures;
- vii. Together with the current national facilitators, build the capacity of a new generation of credible and respected national facilitators.



Dissecting an endogenous peacebuilding mechanism in Nepal: Informal dialogues and Nepal Transition to Peace Process

Simon Richards and Pankaj Adhikari¹

Background

This paper examines the contributions of Nepal Transition to Peace (NTTP) the Nepal's peace process, identifying central elements of success and discussing ongoing challenges. It starts from a consideration of the peace process as a transformative process aiming to reduce violent conflict and increase justice in interactions between different groups in a society and within its social structures (Lederach, 2003:14). Nepal's peace process can be considered transformative in nature as the critical elements shaping the nature of society in Nepal, such as the constitution and associated political processes are fundamentally being redefined. The authors clarify critical features of Nepal Transition to Peace Institute's (NTTP-I)² work contributing to transformative peace processes informed through two major research strategies to collect data: 57 key informant interviews with major national protagonists and drawing on the Institute's documentation³. Informants were chosen purposively and through 'snowballing sampling'⁴ to ensure that perspectives on the peace process from across the political spectrum and from representatives of key stakeholder groups (e.g. women, ethnic and marginalized groups) were garnered. In addition, key actors, participants and observers of NTTP-I facilitated processes were consulted for 'insider' views.

Political crisis and conflict are functions of a country context, history and the choices that actors make. As suggested by scholars from strengths-based and appreciative approaches like C. Dureau (2011), John McKnight & Jody Kretzmann (1993) and others, approaches to peace processes may broadly be categorized as those where exogenous third party actors take the primary lead in resolving issues, hybrid approaches where international and national actors work together, or endogenous approaches where the conflict parties surface

appropriate resolutions to these conditions by themselves. NTTP-I is such an endogenous mechanism actively contributing to the Nepali peace process.

Peace processes

Though criticized by a number of writers, peace processes are often approached through technical, linear progressive methods (Lederach, 2005; Darby & Mac Ginty, 2008). In recent years, non-linearity is increasingly recognized, challenging the assumption that a cessation of hostilities or signed peace agreement will inevitably lead to positive progression and sustainable peace (Körppen, 2011). Global patterns suggest they may break down and regress, or that ongoing conflict persists in some form (Stedman, 1997). In 2006, the Nepal Comprehensive Peace Agreement (CPA) was signed envisaging a new peaceful collaboration on the basis of political consensus to ensure the sovereignty of the Nepali people, forward looking political resolution, democratic restructuring of the state and economic-social and cultural transformation through the Constituent Assembly (Preamble, CPA, 2006). To achieve this vision, commitments were made by the parties to the agreement to settle issues and differences through mutual talks, understanding, consensus and dialogue later expressed formally in Article 38 and 43 of the Interim Constitution in 2007 (CPA, 2006). The latter article noting that Government of Nepal business should be conducted in ‘consonance with the spirit of the people's joint movement, political understanding and culture of collaboration’⁶.

The demise of a common enemy- the monarchy, brought those who signed the CPA face-to-face and their fundamental differences with roots in political ideology reemerged. Each component of the CPA expresses a key dimension of the conflict and its implementation has created further crisis points over the last 10 years, exposing the vulnerability of the peace process. As political negotiations stalled in each critical, contentious component⁷, this has exacerbated the need for alternative methodologies to support struggling formal processes. A critical response has been the NTTP initiative, serving as a non-partisan space for low-key confidential dialogue processes among political actors.

Characteristics shaping peace process

Key contextual characteristics of the Nepal's polity shaping in the political landscape and peace process include a pervasive political party culture coupled with personality centric and hierarchical patronage systems (Sharma, 2008). Intense regional and identity politics are also still prevalent (Hoftun, Raeper, &

Whelpton, 1999). Nepali politics, according to respondents interviewed,⁸ have traditionally been confrontational, short-term with self-interested maintenance of power being the dominant features. These characteristics hindered implementation of provisions negotiated in the 2006 CPA. The 2006 CPA and the Interim Constitution called upon political parties to form the national unity government at least until the promulgation of new constitution by the Constituent Assembly. Power maneuvers during the formation of the first republic government after the Constituent Assembly elections in 2008 broke the promise of national consensus brought by the CPA. Maoists backpedaled from initial positions to support the then PM Girija Prasad Koirala for the first President of FDR Nepal, and former rebels were forced to head the majority government led by UCPN (Maoist) Chairperson Pushpa Kamal Dahal 'Prachanda'. This became the first 'domino' to fall in a chain of increasing mistrust and dishonoring of mutual agreements (some formal some informal) between the CPA signatories. The combination of perceived 'success' of the peace process (e.g. incorporating insurgent armed groups into the army) and the election losses by the Maoists in the second Constituent Assembly election⁹, interpreted as signifying that the 'people's movement' had lost its popularity, strengthened widespread belief from current senior leaders across many parties that the peace process is complete, especially after the promulgation of the Constitution of Nepal 2015. Despite several shortcomings on followed processes and contents, foundations for the peaceful, democratic and prosperous Nepal have been laid with the new Constitution. If voices represented by the ongoing Madhesh, Janajati and Dalit movements are accommodated in a meaningful way, it is likely to further consolidate these foundations by increasing its ownership and willful legitimacy among all groups. However, issues related to restructuring of the state in terms of change in the distribution of historical power dynamics, implementation of transitional justice process, scientific land reform, rapid economic growth, social inclusion and good governance will remain crucial for years to come.

NTTP-I's unique approach

Several technical processes support the implementation of CPA components, but NTTP-I operates at the interface of technical political development and the more nebulous contextual and cultural characteristics of the 'landscape of division' (see table below). Simultaneously reshaping and addressing these characteristics, NTTP-I works with protagonists to create alternative solutions circumventing or unblocking political deadlocks threatening to derail the process.

It uses a 'Track 1.5' approach (incorporating elements of both track one diplomacy and track two simultaneously but neither one exclusively) involving informal discussions with and between key powerbrokers involved in the peace process with political power to influence change, as well as influential stakeholders not directly involved in the political processes.¹⁰ It has been able to bridge the intent within the aspirational peace process agenda and the reality of politics, as well as the gap between formal and informal processes, through provision and management of this non-partisan space for dialogue. In particular, the convening power of the facilitators has been critical in bringing the right people to the table. Processes and meetings take place in private under Chatham House rules¹¹ allowing trust to be developed between actors whose relationships have been molded by conflict and the norms of political confrontation. This privacy enables exploration of political positions without being tied to official party politics or loss of face if the debate were in the public realm. NTTP-I has maintained NTTP forum as the highest dialogue table composed of key negotiators from major political parties and dissident forces, and other five thematic groups on youths, women, Madheshi, Janajati and Dalits, composed of political party and civil society leaders. Importantly, these fora are responsive, iterative and demand-driven with participants deciding the agenda.

In order to narrow down the differences on issues and propose constructive options, NTTP-I utilizes an organic combination of individual and group approaches involving intraparty and interparty dialogues which serve as connecting links, information sharing mechanisms and trust building measures. For instance, issues and potential political stumbling blocks identified during NTTP-I facilitated discussions may be explored by the facilitators with different key stakeholders and/or power-holders, informally on an individual basis to better understand their concerns, perspectives and initial parameters for negotiation or convergence. As the dimensions of the issues are disentangled, this provides opportunities for their further discussion and exploration within that broader stakeholder group (e.g. political party, ethnic group, etc.) without their being placed in a confrontational position with other groups. When appropriate the issues can then be discussed between parties and avenues for solutions emerged together. Being organic there is no set formula for these processes as they are dependent on the issues at hand, the nature of the blockages, the involvement of different stakeholders and the level of significance and import they may ascribe to that issue. The process may require a number of intermediate 'cycles' or repeat loops of consultation and discussion at different levels; individual, intra-group or inter-group, to enable progress forward.

Additional helpful methods for exploration of the issues used by NTTP-I include reflective processes and opportunities, taking protagonists to locations out of Nepal or their usual locales to create new environments, relationships and objectivity from altered spaces. Periodic use of respected, senior external ‘peace experts’ provides neutral ‘ears’ for protagonist perspectives and identifies issues for further reflection (Lederach, 2015). Providing cross-party learning and research opportunities deepens commonly developed and understood evidence bases for policy options and avenues to overcome peace process obstacles. Evidence-based researches feed into the dialogue processes and facilitation strategies which provide impetus for non-partisan fact-sharing whenever required. Respondents across the board were unanimous and extremely vigorous in their support of the importance and usefulness of this unusual accompanying mechanism.

Table 2 Addressing and Re-casting Contextual Characteristics	
Contextual Characteristic	NTTP-I Approaches
Non-Linear nature of peace processes	Iterative demand-driven processes according to participant priorities and emergent issues.
Pervasive political party culture and hierarchical patronage systems	Addressed obliquely through forums for second tier leaders
Confrontational politics	Addressed by altered practice and non-partisan space
Continual shifts in political power	The only forum trusted by Maoists and marginalized groups.
Intense regional and identity politics	Provides opportunities for regional and marginalized voices to participate including more women, ethnic minorities and dalits.
Senior leaders’ belief the Peace Process is complete	NTTP-I maintains an eye on critical issues
Loss of confidence by the people	Public outreach encompassed in NTTP-I communications strategy

Challenges facing NTTP-I

There are critical tensions though, identified by stakeholders, within NTTP-I’s modus operandi that also require thoughtful adaptation to ensure maximum effectiveness. These include finding the balance between:

i. Convening and facilitating

The original facilitators are highly respected leaders who, because of their history of participation in various political movements in the past for democracy and human rights coupled with trust among political rights and lefts are able to bring senior political leaders together through force of personality and exertion of a moral imperative. The nature of the political blockages and way that political leaders paint themselves into confrontational corners requires this degree of political 'weight' to bring them to the table and consider compromise solutions. However, the next generation of senior 'independents' does not have the same degree of political gravitas, which suggests the need for a disaggregation of functions between convening and facilitation and strategies to address them.

ii. Developing younger generation of facilitators

Given the historical background of the senior facilitators, their wider acceptability among the Nepali polity was a product of trust gained from the conflicting parties during highly critical times of violent conflict. Their involvement as formal facilitators in the negotiations between the government and the Maoists in 2001, 2002 and 2003 legitimized their roles after the success of 12-point understanding in 2005 and the subsequent Comprehensive Peace Accord in 2006. NTTP-I needs a serious strategy to produce younger generation of facilitators who can mold themselves as actors in historical junctures and play critical roles as peace negotiators building on the legacy of its senior facilitators.

iii. Ensuring powerbrokers are present but do not become unhelpful gatekeepers

This tension recognizes that without the presence of power brokers, creation of solutions to blockages is unlikely, as final decision-making is still firmly entrenched in the top leadership of political parties. However, this approach also risks entrenching their role as gatekeepers in the long term. It also reflects a fundamental characteristic of the context being addressed by the forum in trying to create a more positive broader democratic organizational culture within the Nepali polity.

iv. Inclusivity and diverse voices, versus functional management

The challenge of entrenched power in the political party leadership articulated above is to broaden the forum to necessarily include a greater diversity of voices. This is particularly relevant to those groups that have traditionally been marginalized within mainstream politics and that supported the challenges to

the status quo that resulted in armed struggle and the peace process. However, the more stakeholders that are involved in the forum may also risk diluting the success of the mechanism as a tool to address significant political crises and changing the fundamental nature of the forum.

v. *Addressing short-term, crisis driven needs versus of long-term peace, and responsive versus proactive in bringing issues to the forum*

A further tension facing NTTP-I is how to shift from being responsive and managing crises or conflicts that emerge, to being proactive in a way that enables upcoming blockages to be prevented, transformed or circumvented before they arise to create the crisis.

Perhaps the greatest challenge consistently identified by stakeholders is the issue of ensuring outcomes and consensus apparently reached in the forum, are then carried forward by stakeholders with commitment outside of that space in the 'real world'. Even more, the political landscape has generated newer ramifications featured by multiplicity of new actors, including political parties and increasing involved international community, multiplicity of conflicting issues resurfaced after the promulgation of the new Constitution and decreasing legitimacy of the political parties leading to lack of decision-making capability in senior political leaders triggered by a widening gap between the people and the leaders.

Implications of the challenges for NTTP-I

In this section, the authors discuss and comment on the challenges and issues noted above that emerge from the primary qualitative data obtained from a broad range of informant interviews from diverse stakeholder groups and NTTP-I documents.

The ongoing evolution of NTTP-I peace mechanisms

Peace processes necessarily evolve as they progress from initial cessation of hostilities, setting out a roadmap for change, through to a broader societal renovation of governance systems. Both the success and continuing challenges of NTTP-I suggest that this evolution deserves deeper analysis so that the institution can also evolve simultaneously so as to remain relevant and address both emerging needs and service stakeholders. In other words, how can the nature of the accompaniment of the peace process evolve as the peace process itself evolves, to increase the potential for achieving long-term sustainable

peace. This is particularly challenging within the context of, not only a perceived ‘completed peace process’ and diminishing risk of return to violence, but the accompanying reduced incentive to change entrenched political behaviors in key leaders, noted above (such as exclusivity, lack of bridges across party divides and lack of broader representative inclusivity in democratic processes) that arguably brought about the failure of mechanisms in the first place.

Narrowing the gap between conflict transformation rhetoric and reality

Ironically, in some cases, the challenges and relative successes facing NTTP-I reflect the broader challenges of democratization and peacebuilding that face the country. Armed, violent struggle to achieve political change inherently points to the failure of existing mechanisms or forums to address differences, reflect diversity and stakeholder aspirations for participation in their future. Failure of political mechanisms may shift resolution of the contest in to the military arena and debate further into the public media domains. This latter risks descending into a propaganda war and simplification of the issues at hand.

The failure of formal mechanisms also highlights the gap between the aspirational rhetoric of peace and practical considerations of how to achieve it in the painful aftermath of violence and the inadequacies of the existing system. NTTP-I has partly been able to bridge this gap. Potentially ‘hardline’ public and party positions arising from hierarchical patronage systems, in the context of inadequate formal systems require functional compensatory mechanisms to compensate while either the systems are reshaped, or entrenched, normative behaviors modified to create a more flexible culture enabling the system to function more effectively.

The individual as driver of institutional change

NTTP-I’s role within the peace process has been to offer a critical range of alternative avenues to explore difference and find common ground. Its initial success bridging communication barriers between key protagonists has stemmed from a fundamental building block – trust in individuals of recognized integrity and sufficient authority (both from a moral and seniority perspective). Preliminary shuttle diplomacy leading to the signing of the CPA and increasing trust in the approach provided the opportunity to broaden communication avenues between protagonists within the landscape of division. As the initiative has continued, it has highlighted the profound importance of personal integrity and trust to overcome entrenched positions. Within the forum, for younger second tier leaders who participate regularly, trust has shifted from being simply a set of bipartisan relationships with the senior facilitators, to a broader mutual

trust across party divides. The senior party leadership though, do not appear to have undergone the same sort of change in relationships. This reflects the need identified by authors such as Lok Raj Baral (2008), not only for democratization across state institutions but an accompanying simultaneous process for change within the political parties for sustainable peace.

NTTP-I's fundamental strength has been to apply the same methodology that has successfully brought about the CPA, to the ongoing critical blockages within the unfolding peace process. However, the issue is how to evolve the mechanism from crisis management and change at the individual level (of political leaders) based on personal appeal (of the key facilitators), to a higher, broader cultural change in leaders. In the informal domain, NTTP-I has been very successful, at this stage, in achieving this transformation at the second tier of leadership according to respondents. Based on a data from respondent interviews, younger and upcoming political leaders maturing and working cross-party within the NTTP-I forum, report deeply valuing the less hierarchical, listening, participatory and more problem-solving approaches to doing business espoused and practiced within NTTP-I. Their expressed challenges in taking these models of practice outside of this unique space suggests that lasting change in political leadership behaviors, as within other peace processes, may require a generational change before they appear visible in the public domain. Whether this will eventuate or, whether the next generation of political leaders end up emulating the same behaviors as their predecessors remains to be seen.

The formal versus informal nature of the forum and its role in social change

The implicit next stage though, of translating this progression into assured institutional change outside the forum into political parties and formal domains is where the gap currently remains. The continuing gap between the most senior party leadership and the emerging leaders, who represent this significant change in behavior from the informal sphere of the forum, also highlights and reflects the difficulties in assuring practical implementation of any consensus achieved in NTTP-I. It allows leaders not present an 'opt out', and to consider such potential solutions as non-binding given their physical absence from the discussion. Ironically, if the top leaders do not strongly acknowledge the ongoing formal importance of NTTP-I as a problem-solving space, it potentially reinforces the hierarchical and non-democratic nature of party leadership. Thus, NTTP-I needs to accentuate and implement several pathways for translation of the formal or informal, procedural or content-related, position or interest-based agreements/understandings/resolutions reached at its fora by involving

the influential position of its forum members in their respective political parties, joint meetings with thematic groups, researchers from different political parties based at NTTP-I and individual/group meetings of NTTP facilitators and senior staffs with the top level leaderships. On a wider scale, meetings with civil society and interactions with people by conducting field visits to conflict-prone areas are to be prioritized in order to contribute to build support for peace or reconciliation on a mass scale.

Addressing inequalities between and within groups

Inclusion and participation of all groups is fundamental to democracy and peace (Lawoti (2010) citing Dahl, Lewis and Lijpwitz, etc). High levels of inequality in the polity have in the past and may in the future potentially lead back to political violence (current examples of risk in this regard could include the Madhesi and Muslims). In evolving alongside the peace process, NTTP-I is also trying to understand and find the right balance between broadening participation in the forum, as the peace process has also inevitably expanded out from the initial relatively few senior protagonists and signatories of the CPA, to a more inclusive forum representing diversity. This influences both how the forum functions and its purpose as well. For instance, the 'crisis unblocker' role is not necessarily possible with a larger group of people who may not be primarily involved in the blockage, even though it affects everyone. This diversification of roles of the forum is a positive adaptation to the evolution of the peace process and its accompanying needs, but one that also requires thinking through. The expanding needs and expanding number of participants creates management challenges. Ironically, creating a range of new spaces within the forum may also create a perceived and exclusive hierarchy of participants, mirroring the contextual feature it has been attempting to change.

As an endogenous mechanism situated at the interface of technical political development (e.g. through providing viable technical political options), and the cultural contextual informing and shaping the divisions (e.g. through providing a unique alternative space for dialogue), NTTP-I is intentionally addressing the needs from both domains simultaneously.

This highlights though a further set of challenges noted by Kymlicka (Lawoti, 2010) on how to balance basic differences and inequalities between groups in broader society (e.g. how to include minority ethnic groups) and the additional layer of how to address marginalized individuals or other types of group (e.g. women) within groups or these traditional societies. Thus the forum provides an opportunity for women and other groups, such as Dalits, to discuss issues

together, but finds it difficult to facilitate and find meaningful ways for these considerations to influence the power-brokers.

Relationship between endogenous and exogenous approaches

While an endogenous solution to conflict issues suggests a particularly unique role in recognizing and addressing contextual influences shaping the 'landscape of division', it also raises the question of how the broader international development community can better support peace processes other than within the purely technical domain to increase the possibility of bringing about successful long-term sustained peace.

Continuing need for informal dialogue mechanism

Dissidence in regions including Terai-Madhesh reflect acute potential areas of future conflicts: federalism and demarcation of boundaries, inclusion and other latent conflicts posing challenges to the new Constitution (signed September 2015) coupled with issues of wider ownership and legitimacy. This promulgation has also kept all Madhesh-based parties, Mohan Vaidya's Communist Party of Nepal (Revolutionary Maoists) and Biplav's Communist Party of Nepal (Maoist) disengaged from the process, creating further challenges for NTTP-I. The question of how to maintain protagonist engagement with the process and better bring peripheral voices to the discussion becomes increasingly pertinent. Whelpton (1997) explores the issues involved in the creation of a national identity and the fractals

Madhav Joshi and Mason studied the relationship between political power distribution and its concentration in land resources with levels of state violence during the Maoist insurgency: state violence decreases as states become more democratic (Joshi & Mason, 2010). This suggests that a failure to increase democratization processes at the sub-national level does risk a return to violence and strongly reinforces the need for continuing informal dialogue mechanisms with a wider scope. Lok Baraj also suggests the need for implementation of policies of accommodation and empowerment of groups across the polity rather than aiming for their assimilation within a single dominant political narrative (Baral, 2008). This supports the indication that NTTP-I's role in and contribution to the peace process should now also shift, not only to support political crisis management, but to a more intentional role transforming the underlying, prevailing cultures and norms of behavior at the sub-national level in addition to tackling national political leaders and political parties to become more participatory, inclusive of diversity and less confrontational in their actions. This

would also fit with its strategy of widening participation in the peace process both at national and regional levels, even if its influence at the uppermost levels of the polity are less direct.

It also points to the need for a deeper understanding of the non-linear nature of peace processes, the contextual characteristics of the political landscape, and how they can best be supported and influenced positively at scale by relatively small initiatives modeling different ways of doing business.

Conclusion

This paper reinforces the understanding that context creates the problem but also provides material for transformative endogenous solutions. NTTP-I's informal problem-solving approach to political blockages is only part of its success. The safe space for reflection, debate and learning, enables processes that take place there to be part of the conflict transformational mechanism itself. This in turn allows stakeholders to escape systemic socio-political constraints shaping their positions and reinforce behaviors and attitudes that sustain long-term peace. It also highlights questions of how endogenous mechanisms can better evolve in parallel to reflect developing peace processes and intentionally address and influence the transformation of underlying contextual cultural drivers of behavior that may impede the achievement of sustainable peace.

Notes

- 1 The authors gratefully acknowledge the useful inputs and constructive suggestions from reviewers Professor Madhav Joshi and Professor John Paul Lederach to improve the clarity and substance of the paper.
- 2 Earlier, NTTP process was conceptualized as Nepal Transition to Peace Initiative project (2005-2009) and later as Nepal Peace Support Project (NPSP, 2009-2014) with NTTP Forum as intrinsic pillar throughout the decade. As an independent national peace entity, Nepal Transition to Peace Institute (NTTP-I) was registered in May 2014 and became functional from February 2015.
- 3 Internal documents accessed included reports from weekly NTTP Facilitator's meetings, periodic progress reports, commentary, discussion papers, research papers, strategy papers, etc. produced by the NTTP process since 2005.
- 4 Snowballing sampling refers to a process whereby key informants are asked for further suggestions on potential interviewees who would have useful, informed, interesting and relevant perspectives (for instance complementary or alternative) from different stakeholder groups.
- 6 The Interim Constitution, 2007 stated that the Council of Ministers be formed

under the chairpersonship of the Prime Minister, on the basis of political understanding.

- 7 E.g. disarmament and integration and rehabilitation of armies, or writing a new Constitution through the Constituent Assembly
- 8 This emerged from qualitative data collected through respondent interviews.
- 9 The authors gratefully acknowledge the useful inputs and constructive suggestions from reviewers Professor Madhav Joshi and Professor John Paul Lederach to improve the clarity and substance of the paper.
- 10 Earlier, NTTP process was conceptualized as Nepal Transition to Peace Initiative project (2005-2009) and later as Nepal Peace Support Project (NPSP, 2009-2014) with NTTP Forum as intrinsic pillar throughout the decade. As an independent national peace entity, Nepal Transition to Peace Institute (NTTP-I) was registered in May 2014 and became functional from February 2015. Internal documents accessed included reports from weekly NTTP Facilitator's meetings, periodic progress reports, commentary, discussion papers, research papers, strategy papers, etc. produced by the NTTP process since 2005.
- 11 When a meeting is held under 'Chatham House Rules' this means that the participants are free to use the information received during the course of the meeting but are not allowed to disclose the identity or source of the information nor the affiliation of the speaker or any other participant. (See the Chatham House website <https://www.chathamhouse.org/about/chatham-house-rule> - for more information.)

References

- Baechler, G. (2008). *Emerging Archetypes: A Comparison of Patterns of the Peace Processes in Sri Lanka and Nepal*. Berghof Handbook Dialogue 6. Berghof Research Center for Constructive Conflict Management. Retrieved from www.berghof-handbook.net
- Baral, L.R. (2008). Nepal: The restructuring of a "Neo-patrimonial" state. In L.R. Baral (Eds.). *Nepal: New frontiers of restructuring of state*. (p.28). New Delhi: Adroit Publishers
- CDA Collaborative Learning Projects. (2004). *Reflecting on Peace Practice Handbook*. Cambridge, MA: CDA. Retrieved from www.cdainc.com/cdawww/pdf/manual/reflectingonpeacepracticehandbook_Pdf.pdf.
- Comprehensive Peace Accord*. (2006). Kathmandu: Government of Nepal
- Darby, J. & Mac Ginty, R. (2008). Introduction: What peace? What process? In Darby, J. & Mac Ginty R. (Eds.) *Contemporary Peacemaking*. UK: Palgrave Macmillan.
- Dureau, C. (2010). *Australian Africa Community Engagement Scheme (AACES): A Resource for Strength-Based Approaches in Development*. Canberra: AusAID.
- Hoftun, M., Raeper W. & Whelpton, J. (1999). *People. Politics and Ideology: Democracy and Social Change in Nepal*. Kathmandu: Mandala Book Point
- Interim Constitution*. (2007). Kathmandu: Nepal Law Commission.

- Joshi, M. & Mason, T.D. (2010). Land tenure, democracy, and patterns of violence during the Maoist insurgency in Nepal, 1996–2005. *Social Science Quarterly*. 91(4), 984–1006.
- Körppen, D. (2011). Space Beyond the Liberal Peacebuilding: Consensus – A Systemic Perspective. In Daniela Körppen, Norbert Ropers & Hans J. Giessmann (Eds.): *The Non-linearity of Peace Processes. Theory and Practice of Systemic Conflict Transformation*. Opladen & Farmington Hills. Barbara Budrich Publishers.
- Lederach, J.P. (2003) *The Little Book of Conflict Transformation*. PA: Good Books, Intercourse
- Lederach, J.P. (2005). *The Moral Imagination: The Art and Soul of Building Peace*. Oxford: University Press.
- Lederach, J.P., Neufeldt, R. & Cubertson, H. (2007). *Reflective Peacebuilding: A Planning, Monitoring and Learning Toolkit*. University of Notre Dame and Catholic Relief Services East Asia Regional Office.
- Lederach, J.P. (2015). *Memoirs of Nepal: Reflections across a decade*. CA: The McConnell Foundation.
- Mac Ginty, R. (2008). Indigenous Peace-making versus the Liberal Peace. *Cooperation and Conflict*, 43(2), 139-163.
- McKnight, J. & Kretzmann, J. (1993). *Building Community from the Inside Out. An Asset Based Approach to Community Development*. Illinois: Northwestern University.
- Ropers, N. (2008). *Systemic Conflict Transformation: Reflections on the Conflict and Peace Process in Sri Lanka*. In Körppen, D., Schmelzle, B., & Wils O. (Eds). *A Systemic Approach to Conflict Transformation: Exploring Strengths and Weaknesses*. Berlin: Berghof Hand- book Dialogue Series, 11-41
- Sharma, P.R. (2008). "Restructuring the state in South Asia: Some impressions and ideas. In L.R. Baral (Eds.). *New Frontiers of Restructuring of State*. New Delhi: Adroit Publishers
- Stedman, S.J. (2001). *Implementing Peace Agreements in Civil Wars: Lessons and Recommendations for Policymakers*. IPA Policy Paper Series on Peace Implementation. New York: International Peace Academy, Center for International Security and Cooperation, Stanford University.
- Stedman, S. J. (1997). Spoiler Problems in Peace Processes. *International Security* .22(2), 5–53
- The World Bank. *World Development Report 2011: Conflict, Security, and Development*. Washington, DC: The World Bank
- Whelpton, J. (1997). Political identity in Nepal: State, nation and community. In David N. Gellner, J. Pfaff-Czarnecka & J. Whelpton (Eds.). *Nationalism and ethnicity in a Hindu kingdom: The politics of culture in contemporary Nepal*. Amsterdam: Harwood Academic Publishers



Local peacebuilding in interaction between national and local dynamics: Why some local peace committees in Nepal performed well and others did not?

Andries Odendaal and Kiran Prasad Dhungel

Introduction

Local peace building in a post-agreement context is invariably determined by the interaction between national and local conditions. Local peace building in a post-agreement context means the efforts at sub-national level to implement the objectives of the peace agreement, including preventing further violence, re-building social cohesion or reconciliation in a context of deep trauma and distrust, and addressing local conflicts exacerbated by the national violence or ignored by the peace agreement (Odendaal, 2013, pp. 24-31). Post-agreement local peace building is neither a bottom-up nor a top-down effort. It takes place in the interaction between national and local actors, between national elite interests and those of local elites and communities, and between state actors and civil society actors. It is determined as much by the collective national political will as by local agency.

One consequence of this interaction is a fairly high degree of variance in local peace building outcomes across districts within the same country. It is, actually, to be expected that uniform outcomes will be unlikely because of the role played by local actors. The question is rather whether we have an accurate understanding of the demands of local peace building and the conditions that enable it. In other words, have we, in the design of local peace building processes, taken sufficient note of the nature of the interaction between the national and local levels and planned accordingly?

This article is about Local Peace Committees in Nepal. In Nepal the chosen mechanism of the signatories of the Comprehensive Peace Accord (CPA) to implement local peacebuilding was Local Peace Committees (LPCs). These committees have been established in all 75 districts with the objective

to implement the Comprehensive Peace Accord at the local level. A number of reports have been produced of their impact and the conditions that they have been faced with (B. Sapkota, 20008). From these reports the variance in performance is clear. Many have failed to live up to expectations, but some have had significant impact. What is also clear is the combined impact of national and local factors, either positively or negatively.

The objective of this study is to interpret the variance in outcomes achieved by Nepal's LPCs. The article is written from the perspective of peace building practitioners. In other words, our main intention is to arrive at conclusions that will have a practical impact on the performance of current and future LPCs in Nepal and elsewhere. We also need to declare that we do not write with complete disinterest. Odendaal was involved in the design of the Terms of Reference (ToR) of LPCs and the Implementation Manual in 2006 – 2007 as a consultant for NTTP (Nepal Transition to Peace Initiative). He wrote the first draft of the ToR, which was obviously heavily influenced by his own South African experience with LPCs. This draft, however, developed through several iterations as the consultation process progressed and was finally amended by Cabinet in 2007 and again in 2009. Dhungel was an Under Secretary in the Ministry of Peace and Reconstruction (2006 – 2008) and, as an independent consultant, part of a team that prepared a manual for use by LPCs.

The Terms of Reference of LPCs determine that LPCs will be discontinued once a new constitution is in place. This has been interpreted to mean once local government elections have taken place in line with the new constitution. This date has not yet been determined, but cannot be postponed for much longer. There have been voices calling for continuing with LPCs into the new dispensation. It is hoped that this assessment will assist in making that decision. Structurally the article provides, first, a brief definition and description of LPCs. The next section presents the main arguments for implementing such a structure in Nepal. The article proceeds to discuss how the issues of national political control and bureaucratization have affected the LPCs. These discussions include a brief history of the conceptualization of LPCs and implementation strategies. The last section focuses on the role of local agency. The article is based on available reports and case studies on LPCs in Nepal and, more particularly, three case studies prepared for the purpose of this article.

What are LPCs?

There is a wide variety of bodies that may be called Local Peace Committees.

They vary from small initiatives by volunteers to statutory bodies deployed throughout a nation. Their main objective is to work for peace within a local community. However, the LPCs of Nepal that will be discussed here belong to a category of bodies established by virtue of a national peace agreement and with a statutory mandate. These LPCs, therefore, find their *raison d'être* in the national accord and exist to achieve the objectives of the peace accord at the local (i.e. sub-national) level. They enjoy official status, meaning that the state is obliged to implement these bodies and ensure their effective operation.

Such LPCs are normally inclusive of the signatories of the peace accord, but often pursue inclusion of relevant civil society institutions and local government representatives (Odendaal, 2013, pp. 6-14). In Nepal the Terms of Reference for LPCs of 2007 prescribed a specific formula determining the composition of LPCs, namely all political parties that were signatories to the CPA, other relevant political groups with a significant presence in the district, organizations that legitimately represent marginalized groups such as women, the Janajati (indigenous ethnic groups), Madhesi (inhabitants of the Terai), and Dalits (“untouchable” castes), conflict affected groups, as well as civil society organizations relevant to the peace process in the district. The offices of the Chief District Officer, District Development Committee, the District Police Office and other district level offices may attend meetings as observers. It is therefore a platform at the local level where political actors, representatives of marginalized groups, relevant civil society actors and, on invitation, local government officials jointly discuss and negotiate the implementation of the letter and spirit of the peace accord in that district.

The arguments for LPCs in Nepal

There were, in 2007, four main categories of arguments in favor of establishing LPCs. The first had to do with the local nature of conflict in Nepal. Nepal is a highly diverse society with 55 distinguishable ethnic and caste groups (Gurung, 1996). The Hinduization of society under the Shah monarchy resulted in a strict social hierarchy that ordered the position of each group. This hierarchy determined not only social status and dignity; it also controlled access to land, resources, jobs and opportunities. The demographic distribution of identity groups, however, differed from district to district, creating a variety of conflict patterns across the districts. In other words, structural inequality based on caste and ethnic identity affected all of society, but the specific way it played out in every district was different due to local demographics, local histories, and local personalities. As a result, conflict patterns across the country were not the same,

and not all districts experienced the same level of violence.

It resulted in the very definite rural character of conflict in Nepal. The Maoists framed their struggle as a typical class struggle. The objective was to destroy the “feudal system”. On the ground, though, it was more complex. The Maoists soon realized that ethnicity and caste were stronger forms of identity than class, having greater potential as bases for political mobilization (Adhikari, 2014, p.116). They therefore had to make ‘adjustments’ to their class ideology in order to achieve the support of ethnic minorities.

Conflict in the Terai, for example, had different dynamics than in the hills; and districts in the west struggled with different issues than those in the east. Because of the differing patterns of conflict and violence, building peace could not rely on one simplified and nationally determined recipe. “Peace” had to have different meanings for different communities.

The argument for LPCs, therefore, was that they would provide inclusive local leadership to the processes needed for peace and reconciliation in that district. Related to the first argument was the sense that healing from the trauma of civil war would require a specific local focus. There is no agreement on the statistics regarding fatalities. The figure for fatalities varies between 13 000 and 18 000, as well as hundreds of thousands displaced, and between 1 500 and 5 000 disappeared (Adhikari, 2014, p. 243; Bhatta, 2008; Lahoti, 2007). More important than accurate statistics is the fact that the insurgency contributed to substantial trauma and hardship in society. As in many civil wars, atrocities were at times committed by neighbors or fellow inhabitants of the same villages. An inclusive committee at district level would be well-placed to initiate or coordinate efforts aimed at the “healing of memories” and the reconstruction of a form of social cohesion.

The third main argument for LPCs was their potential to prevent localized violence. It was clear at the time that the signing of the CPA did not bring an end to violence. In fact, INSEC, a well-known human rights organization, reported that since the April 2006 ceasefire till 2010 between 1,883 and 1,893 persons died in incidents of political violence (International Crisis Group, 2010, p.2). An International Crisis Group Report of 2010 stated: “Social mistrust and fear are still deep, exacerbated by continuing intimidation and violence; there have been a number of revenge killings... The general atmosphere of mistrust is tangible.”(ibid, p.2)

An important contributor to the ongoing violence was the role played by the Young Communist League (YCL). Established post-agreement by the Maoists, they effectively served as a replacement for the People's Liberation Army. Their principal tactics were intimidation and coercion, exploiting the weakness of law enforcement institutions (Adhikari, 2014, pp.209-210). Whereas this type of violence can be seen as 'top down' violence, the period also saw a rise in identity-based conflict and localized violence. Overall violence became more unorganized and uncontrolled, much of it rooted in local communities' unresolved anger. Dahal and Bhatta referred to the "increasingly fragmented political situation" with armed conflict becoming "more local and regional in character" (Bhatta, 2008, p.5).

LPCs, according to the expectations at the time, would provide a locally owned, inclusive platform for discussing and planning preventive action and for defusing or calming boiling tensions. With elections for Constituent Assembly looming in 2007 (that eventually took place in 2008), expectations were also high that LPCs would be able to defuse violence that would threaten the prospects of credible elections, as well as potential inter-party conflicts.

Lastly, political parties in particular were expecting LPCs to fill a vacuum that existed in the districts since elected local governments were dissolved by the king in 2002. An alternative All-Party Mechanism, consisting of representatives of all political parties, was in place, but through the inclusion of civil society and marginalized groups the LPCs offered a broader forum for reaching consensus on contentious matters.

At the time of the inception of LPCs these arguments had not been seriously contested. On the contrary, the concept of LPCs met with wide acceptance (Mallik, 2013, p. 127). The evaluation report of NTIP in 2008 mentioned, for example, that "virtually every one" of the 250 persons consulted in 28 districts welcomed and appreciated the concept (B. Sapkota et al., 2008). The International Crisis Group stated in 2009 that "LPCs could be a crucial element of the peace process" (ICJ, 2009, p.34).

One reservation that was expressed at the time was if it was a viable concept in light of the likelihood of political capture. The threat of "bureaucratizing" local peace building was also a concern that was raised.

National Political Context: Was there sufficient legroom for local peace building? The decision to establish LPCs was a thoroughly political decision taken at the

national level. It was made at the level of the national political leadership and was the subject of negotiation between the political parties before, during and after the Comprehensive Peace Agreement was signed. The concept of LPCs was first discussed at a joint meeting of several key political parties that included the three most prominent ones at the time—Nepali Congress (NC), United Marxist-Leninist (UML), and the Communist Party of Nepal - Maoist (CPN-M). The idea was also discussed on several occasions at the High Level All Party Peace Committee consisting of political parties and civil society representatives. As a consequence, the Comprehensive Peace Agreement of November 21, 2006, Article 8.3, mentioned that the National Peace and Rehabilitation Commission could form peace structures as necessary to make the peace campaign a success (B. Sapkota et al., 2008).

In October 2006 the then Seven Party Alliance Cabinet made the decision to establish LPCs in all 75 districts. The CPN-Maoist, however, was not part of this decision and implementation was therefore postponed. With the CPN-Maoist joining the Government in April 2007, the Common Minimum Programme of the eight parties then in government mentioned (in part B, no. 3) the implementation of LPCs. The Government subsequently decided to upgrade the then Peace Secretariat (that provided administrative support to the peace process), to a full-scale Ministry, the Ministry of Peace and Reconstruction (MoPR). The Terms of Reference (ToR) of MoPR specified implementation of and support to LPCs. In the last week of August 2007, the Government finally approved a detailed ToR for the LPCs.

The acceptance by all political parties of the need for LPCs suggested that sufficient political will existed at the time to support local peace building. The reality, however, was more complex. In this respect it is important to understand the political culture of Nepal.

Nepal's political culture has been widely criticized for its narrow elitism, extractive nature and centeredness on Kathmandu (ICG, 2010; ICJ, 2012; Hurst, 2004)). Yet, the notion of a complete disconnect between the centre in Kathmandu and the rural areas as if the elite in Kathmandu lived without “political nerve endings” (Hurst, 2004) in districts was not completely correct. Political parties are the most organized and representative social formations in Nepal. An estimated 60 percent of citizens belong to a political party (ICJ, 2010, p.21; Carter Center, 2011). Since 1990, when a new multiparty constitution was adopted, society increasingly came to depend on the informal distribution of state resources through political patronage networks (ICJ, 2010; Carter Center, 2010). In fact,

the key source of economic and physical security for ordinary citizens was their connectedness to a political party. Adhikari mentioned that King Gyanendra, following the royal coup d'état when he dissolved parliament in 2001, came to realize with some shock "... that for all their faults, the parliamentary party organizations had deep roots in society" (Adhikari, 2014, p.78; ICJ, 2010, p.40). These political patronage networks were of course flowing from the top to the bottom with the interests of the top leadership dominating.

With the dissolution of elected local governments by the king in 2002, local party representatives retained considerable influence over VDC (Village Development Committee) and DDC (District Development Committee) budgets. The distribution of the available budget was, in most cases, settled through negotiations between local politicians in the 'All-Party Mechanisms'. They were, however, disbanded in 2012 following allegations of widespread corruption (Mallik, 2013, p.61).

On the one hand the local negotiations can be seen as local democracy functioning in spite of the dysfunctionality of state institutions. On the other hand, though, neither local politicians nor the bureaucrats in local government truly represented the interests of local populations. In order to benefit from the patronage networks of political parties, local politicians were beholden to their party leaders. The career of bureaucrats, similarly, depended on satisfying their superiors rather than the population (Grävingholt et al., 2013). The ICG report of 2010 referred to "... the vast networks of patronage and loyalty with which the parties encircle the state..." (ICJ, 2010). This political culture is at the heart of much of the discontent and distrust that citizens have in the political class. Sections of Nepalese society, especially intellectuals and social activists, saw this situation as the area in greatest need of transformation.

Against this reality, LPCs would be doomed even before they started, some commentators therefore insisted. Politicians would not allow their control of events to be diluted. The politicization of society went even deeper because civil society itself was deeply politicized, despite claims to be an independent voice. This was specifically true of the NGO sector. LPCs, in this view, would therefore soon become yet another victim of political patronage.

There was a small window of opportunity for civil society and the peace building community to influence the design of LPCs to mitigate the threat of political capture. This opportunity existed because MoPR, when tasked to submit a ToR to Cabinet, turned to NTTP (Nepal Transition to Peace Initiative) for support.

NTTP was a rather unique service organization at the time. It was established primarily to provide a platform for the activities of two well respected Nepali facilitators, Padma Ratna Tuladhar and Daman Nath Dunghana. NTTP facilitated regular meetings between party representatives that served as an informal opportunity to test the acceptability of draft political documents. Successive drafts of the LPC ToR were therefore submitted to the NTTP Forum, and amended by them on at least four occasions.

The NTTP team consulted as widely as circumstances at the time allowed. The consultation included relevant NGOs operating in the field, international agencies including UNMIN (United Nations Mission in Nepal), selected embassies, as well as local level politicians and civil society actors in four districts (Kaski, Baglung, Dolakha and Dhangadhi). Substantial criticism was voiced at the time and afterwards that the consultation process was inadequate and that much more research was needed. Ram Bhandari, for example, stated that the concept for the local peace infrastructure was “never discussed with local actors, but was designed from the top down, based on political negotiation and donors’ recommendations” (Hopp-Nishanka, 2012, p.7). More intense consultation and research would indeed have been helpful, but the reality was that with elections for a Constituent Assembly looming the pressure by Cabinet on MoPR to speed up the process was intense.

What stood out from these consultations was that three measures had to be in place to ensure that LPCs achieve their potential against the threat of political capture. These were:

The high level peace commission

A first and most important assumption was that LPCs would operate under the guardianship of a multi-party national body. A condition to the establishment of MoPR was, in fact, a High Level Peace Commission. This Commission would exercise joint control of MoPR and therefore of the peace process. It was further assumed that once LPCs were up and running, they would report to and find guidance from this body and not the Minister of Peace and Reconstruction. Subsequent developments, however, showed that the instinct of political parties to exercise exclusive control trumped their verbal commitment to joint peace building.

It has to be remembered that at the height of the Maoist insurgency they controlled large parts of the rural areas. In 2004 around 70 percent of the countryside was under insurgent control (Adhikari, 2014, p.91). The degree of

control, however, varied across the districts, but was nowhere absolute since the state had a presence even in Maoist strongholds (*ibid*). Effectively two parallel regimes were in place with no-one in full control. In 2007, with elections for Constituent Assembly scheduled, political control of the countryside was of paramount importance and clearly the political parties saw control of LPCs as an important aspect of their strategy.

In late 2007 the CPN-Maoist withdrew from government. One of the main reasons was their perception that the peace process as managed by MoPR was biased against them. At the time the Minister of Peace and Reconstruction was the Secretary-General of the Nepali Congress. The Maoists demanded that the High Level Peace Commission be established and MoPR disbanded as a precondition to their return to the government of national unity.

The following year, however, the Maoists emerged as the strongest party following elections for a Constituent Assembly and formed the new government. They took control of MoPR, but made no effort to install the High Level Peace Commission. The Maoist-dominated Cabinet approved a new ToR for LPCs in 2008, giving MoPR greater powers of control. The other parties objected strongly. Eventually, in 2009, a ToR was accepted based on consensus among the major parties, but shortly thereafter, in May 2009, the Maoists withdrew from government in a standoff regarding the dismissal of the army chief. The MoPR was then headed by UML, the new party in government, again with no attempt to install the High Level Peace Commission. This was the pattern in all subsequent changes of government, but the ToR for LPCs of 2009 was not amended again. There were two attempts to install other interim bodies to fill the void, namely the Peace and Reconstruction Consultative Committee of MoPR, which was meant to provide guidance to MoPR and LPCs, and the Peace and Conflict Management Committee, which was formed in March 2008. None of these really came off the ground.

The tussle for political control of MoPR and, thereby, the LPCs impacted negatively on the performance of LPCs. In 2007, following the approval of the ToR, approximately 30 LPCs were established. When the Maoists withdrew from the unity government, it left these bodies in political limbo since in many of the districts (though not all) Maoist members withdrew. When, in 2008, the Maoists came to power and adopted a new ToR for LPCs, existing LPCs had to be disbanded and re-constituted. The first batch of LPC secretaries (*i.e.* civil servants responsible for the administration of LPCs) were recruited in April 2009. Most of the appointed secretaries were Maoist cadres or sympathizers. Their contracts were not renewed by the UML government who came to power

in 2009. LPC members were left frustrated and demoralised (B. Sapkota et al., 2008; Carter Center, 2011. p.2). On its part UCPN (Maoist) boycotted LPCs during the best part of 2009-2010 as part of their general boycott of the UML government then in place.

Significant pressure was also exercised by the donor community and the UN Mission in Nepal (UNMIN) to install the High Commission, but to no effect. In addition, donors made several proposals to improve the performance of LPCs which were not approved "...possibly because the Ministry of Peace and Reconstruction wanted to preserve its control over the LPCs and thus rejected any form of external technical support" (Grävingholt et al., 2013, p. 44).

The failure to establish and maintain joint management of LPCs at the national level and the one-party control of MoPR had serious consequences for LPCs. It contributed to the bureaucratization of LPCs that will be discussed below. The most important consequence, however, was that LPCs were robbed of a national parent body that would support LPCs in three ways: (a) by symbolizing the joint responsibility and leadership of parties to implement the CPA; (b) by providing active leadership to LPCs on specific issues that LPCs struggled with; and (c) by being a platform where the voices from the districts articulating the needs of local communities would be heard. Put differently: it became a bit farcical that LPCs were expected to build peace in the districts in an inclusive manner when the example from the top was the opposite. There is a significant difference between implementing instructions coming from a ruling party through the MoPR and receiving guidance from a body that is inclusive and representative of all the role-players.

Furthermore, the failure to implement joint peace building at the national level meant that the reigning political culture of competition for control of patronage networks was not substantially challenged or transformed. The incentive for local actors to adopt a different political approach to conflict was low given the example set at national level. The Carter Center, for example, reported in 2011 that many LPCs became dysfunctional because of inter-party disputes regarding who should lead (Carter Center, 2011, p.8). These disputes were informed by the misunderstanding that LPCs would control significant resources (Sapkota et al., 2008, p. 15). In the same vein they reported a "widespread belief" that, when it came to administering relief to victims—what came to be the major activity of LPCs—the real victims were not receiving compensation, only people with the right political connections. Clearly some local politicians saw LPCs as an extension of their patronage system.

A professional support structure

The ToR for LPCs envisaged the establishment of a panel of expert facilitators at the national level that would be deployed to assist the formation and functioning of LPCs. The rationale was that local conflicts were complex and deep-rooted. The notion that local conflicts were simpler in nature than national conflicts purely because they were smaller in scope, was patently false. Local conflicts are as complex as any other conflict, with the added dimension of a high level of emotionality because of the intimacy of personal relationships in small-scale communities (Odendaal, 2013, pp.29-31). The expectation that local communities would pull themselves up by their own bootstraps without any professional assistance, was not only unrealistic, but also unfair.

The facilitators on the panel would be available on call and be well-versed not only in the skills of mediation and facilitation, but also in understanding the role of LPCs. These facilitators would be deployed firstly to assist with the formation of LPCs. The plan was not that LPCs should be established by virtue of a bureaucratic instruction from MoPR, but through a carefully facilitated process, led by a facilitator, to ensure optimum understanding of the role of the LPC and buy-in from all the parties. Following the establishment of the LPC, the facilitator would further assist in the analysis that was needed to determine priorities for the LPC in that district and, when necessary, to actively support the facilitation of dialogue or mediation. The facilitators were supposed to have operated under supervision of the multi-party body at national level.

The panel of facilitators was not operationalized. The consequence was that LPCs were indeed left to pull themselves up by their own bootstraps. None of the preparatory steps envisaged took place before forming the peace committees (Sapkota, 2009). The notion of reliance on professional facilitators was clearly distrusted in Kathmandu. UNDP offered to support MoPR with LPCs in 2008 (when a Maoist minister was in charge). They were particularly interested in funding and supporting the panel of facilitators, but the offer was not accepted (B,Sapkota, personal communication, 2009 April 6). The ToR for LPCs of 2009 still mentioned that facilitators might be used, but it was purely lip-service. In reality no effort was made to make this panel operational.

There are two conclusions to draw in this respect. The first is that the panel of facilitators was a victim of Nepal's political culture. The fear of ceding control to a body not under control of the party was too great. The second conclusion is

that this failure was probably the most devastating blow to the prospects of LPCs. Most of the problem areas identified by a number of field reports could have been dealt with by an effective panel of facilitators: the confusion regarding the LPCs' role and mandate; inadequate inclusion of marginalized groups; inaction because they were waiting for instructions from MoPR; inaction because of inter-party conflicts on leadership of the LPCs; and non-performance on the essential peace building tasks that they were created for (Carter Center, 2009, 2011; Grävingholt et al., 2013, Sapkota et al., 2008). In some cases civil society organizations stepped in and offered this facilitation service—with good effect (Carter Center, 2011, p.3). It is a sign of what could have been.

Trusted local leadership

A third critical feature of effective LPCs is local leadership. In international mediation the emphasis is on the impartiality of the mediator. However, at the local level impartiality is not necessarily judged as the most important factor, but rather that community members across the spectrum of opinion have confidence in the integrity of the mediator. Wehr and Lederach were the first to point to this fact and they coined the concept 'insider-partials'—persons who are part of the community and possibly partial to a specific position, but who are trusted by all to be fair and honest (Lederach, 1991).

In light of this, efforts were made to ensure that politicians would not be appointed as leaders ("coordinators") of the LPCs, but rather people who conformed to the description of 'insider-partials'. Even before the ToR of 2007 was finalized, this notion was resisted by the political parties. The compromise eventually was that politicians could be elected, but that there would be a 6-month rotation of the coordinator position to prevent one party from capturing the chair. In addition, a small 'executive committee' (called 'peace promoters' in the ToR) of insider-partials would be established to ensure that the peace process was implemented in an inclusive manner.

In 2012 the well-known conflict transformation scholar John Paul Lederach, who was an international adviser of NTTP at the time, said that many LPCs were failing because they were led by politicians. The success of LPCs depended upon the capacity of politicians to work together and mediate disputes. However, they found this difficult as they were only used to competing for power. The LPCs' remit of mediating conflicts should be handled by civil society and independent members, he stated. Only then would communities trust these committees (Mallik, 2013, p.129).

From the available reports on LPCs it is quite clear that leadership played a crucial role in LPCs that had been successful (Carter Center, 2009, 2011; Grävingholt et al., 2013; Sapkota et al., 2008)). Local politicians had in fact been in the leadership of some successful LPCs, but they clearly had the quality of ‘insider-partials’. What these leaders had in common was a clear commitment to bring peace to that district. Leadership is the one ingredient of successful LPCs that is idiosyncratic and therefore difficult to plan for, but in its absence LPCs will most possibly flounder. It was, however, a significant blow to the prospects of LPCs when the ToR allocated this task to local political leaders.

The bureaucratization of LPCs

At the time of its inception the concern was also expressed that LPCs would, because of their official status, do damage to emerging or existing conflict transformation initiatives at the local level. Many civil society organizations were doing impressive work on the ground. During the civil war, for example, a number of potentially violent incidents had been defused by civil society organizations, and agreements on dealing with crisis situations had been mediated (UNDP, 2004). Some organizations have invested in developing community mediation structures .

In addition to the work of civil society organizations, a range of traditional conflict resolution mechanisms existed (Bhatta, 2008). The Carter Center, in their study of local conflict resolution mechanisms, noted the widespread belief that local problems should be settled by local people. “Several interlocutors said that formal mechanisms may provide a legal sanction, such as a fine or imprisonment, but that they do not resolve the social consequences of the action or the underlying cause of the disputes” (Carter Center, 2010, p.5). The traditional mechanisms relied heavily on arbitration or mediation by prominent citizens.

LPCs, therefore, would not enjoy a monopoly on conflict resolution efforts, neither would they be the first to seek to mediate and resolve conflict. They would, in fact, be late-comers. Because of their official mandate, though, they might end up smothering or overriding what already existed.

This concern is not only relevant in Nepal. It is a more general concern regarding the implementation of so-called “infrastructures for peace”. In a recent article Lederach clarified the inherent dilemma that informed this concern (Lederach, 2012). The institutionalization of a peace infrastructure, he argued, holds both

promise and significant challenge. The promise relates to the fact that such an infrastructure promises commitment to an ongoing investment in peace building in a coordinated and sustainable way. The challenge lies in the danger of bureaucratization. Bureaucracies and institutions have the inherent tendency to rigidify roles and regulations; to compete with other institutions at the cost of “generative interdependency”; and to be overly concerned with self-perpetuation. The differences between the concepts institution and platform best describe this tension. With the former (“institution”) the emphasis is, however subtly, on fixed structures and procedures; with the latter (“platform”) the emphasis is on dynamic but sustained interaction. Peace structures as institutions would tend to control and dominate; as platforms they would focus on dynamic interaction, relationships and opportunities for innovation and adaptation. When applied to LPCs, it means that if they were to operate as platforms they should offer opportunities for dynamic, relationship-oriented interactions that have been structured to ensure sustainability and adaptation. If, however, the emphasis shifted to offices, staff, and bureaucratic procedures and prescribed tasks, LPCs would lose their relevance.

This was indeed the concern of a number of civil society actors at the time, not only questioning whether, given the reigning political culture, LPCs would be allowed to operate as dynamic platforms, but also expressing the fear that the LPC would come to dominate peace building initiatives in a district and thereby stifle existing initiatives.

While there is little evidence of LPCs crowding out civil society initiatives, there can be no doubt that the fear of bureaucratization became reality. The majority of LPCs in Nepal stagnated as instruments of MoPR. The one activity that most LPCs performed was to review and certify conflict-affected persons’ application for relief for reference to MoPR. Of course victim relief is not insignificant as it is a crucial aspect of reconciliation and a number of LPCs went beyond the mere registration of victims and assessing their applications. But, as Mallik stated, MoPR was mainly using LPCs to collect data on conflict damage and victims (Mallik, 2013, p. 129). In addition, the bulk of other LPC activities were promotional and public awareness activities, and training for LPC members themselves (Carter Center, 2011, p.5). The Carter Center mentioned that some LPC members whom they interviewed saw themselves as directly implementing MoPR instructions and were waiting for their directives before taking on any additional tasks (Carter Center, 2009, p.3).

Role of local agency

From the above the conclusion is clear that the national context was not conducive to the optimal implementation of LPCs. Yet, it would do an injustice to the society of Nepal to suggest that all was a failure. The International Crisis Group report of 2010 pictured Nepal as in the midst of a complex rite of passage: "... there is already more evidence of structural change than most interpretations admit" (ICJ, 2010, p.6-7). Ten years ago the country was ruled by an autocratic king. Today the president is a woman. The Constituent Assembly has been more inclusive than any previous elected body, and there was no return to the civil war. At the local level, and especially in LPC meetings, politicians directly interacted with members of marginalized groups and civil society. Admittedly this interaction was often less productive than desired, but much more productive than doing nothing. The LPC formation process was deficient, but still much more broad-based, inclusive and transparent than many other committee formation processes in the districts (Sapkota et al., 2008, p.11). In this respect LPCs led the way. The ground has indeed shifted in Nepal and LPCs were part of the complex equation.

It is particularly important to note the relative success of some LPCs. Though admittedly in the minority, they point to the role of local agency and the fact that some legroom indeed existed for LPCs to perform a constructive role.

In Rolpa, the birthplace of the Maoist insurgency, the LPC was active in monitoring reconstruction projects in conflict affected villages and conducting joint field visits. They were, for example, working with the government to transform Jailbhang, one of the worst affected areas in the district, into a model peace village. A road was constructed to connect this remote village with the outside world, offering crucial new economic opportunities (Rajhandari).

In Kavre, a district that was severely affected by the civil war, the LPC provided a place where political parties could meet to repair relationships. The relationship between UCPN-Maoist and the other parties was especially tense, but through the dialogue facilitated by the LPC it was normalized to the point where collaboration on development projects became possible (Badal, 2013).

In Surkhet the LPC had successfully intervened in and resolved several conflicts, and calmed considerable political tensions in May 2010 during the UCPN-Maoist protest program (Carter Center, 2010, p.3, 2011, p.7).

In Dhankuta the LPC developed a Code of Conduct for political parties (Carter Center, 2011, p.7). In Chitwan the Chief District Officer referred all sensitive conflicts to the LPC, resulting in numerous mediations. The LPC had also been active in preventing violence (Sapkota et al., 2008, p.25-26).

In what follows the case studies on LPCs in Bhaktapur, Jhapa and Dhadedura will be briefly analyzed to identify the factors that enabled local agency to come through.

Bhaktapur is the smallest of all the districts of Nepal. Located in the eastern part of the Kathmandu valley, it was the capital of a dominant Newari kingdom in the valley up to the middle 15th century. It is known for its ancient temples and architecture, dating back almost 900 years. The Newars are the largest population group at 55.9 percent, with Brahman, Chettri and Tamang constituting minorities in the district (Daha). Tourism is the main economic activity, accounting for up to 60 percent of its income.

The LPC in Bhaktapur was established in 2009. It consisted of 20 members, of whom half were representatives of political parties and four were women. The LPC also included four representatives of conflict affected groups. The civil war affected 70 families directly, with 56 persons killed, 7 disappeared and 7 physically disabled . (Bhaktapur LPC Secretariat, personal communication, April 2006)

The LPC was active in two areas. First, they have been quite successful in dealing with and preventing violence. For example, in 2009 they intervened in a situation where citizens attacked and caused damage to the property of a brick factory. A lorry driver of this factory had killed a local bicycle driver in an incident that many thought was not a pure accident. The LPC intervention resulted in defusing the incident. Interestingly it also involved the police, whose investigation practices had unsettled some of the community members. The police apparently conducted their investigations at night, which some community members found quite disturbing. In the same year the LPC also intervened in a situation where two youths were accused of abducting children. It caused an uprising of anger in the community, leading to the vigilante killing of these youths and injury to members of the crowd. The LPC again intervened, held discussions with interest groups, and calm was returned.

These incidents are fairly typical of community conflict in post agreement contexts that, if not managed well, may spiral out of control. Such incidents are easily politicized with political groups taking opposite sides. While on the surface they were therefore not ‘political’ conflicts, they had the potential to cause a serious destabilization of the district, leading to more community violence.

The second area of intervention was the LPCs’ attention to families of those directly affected by the violence of the civil war. Apart from the more bureaucratic process of identifying and registering those that qualified for aid relief, the LPC went further and offered training to the conflict affected communities in various practical skills to enable them to make a living. They also facilitated talks between the two groups of conflict affected—those who suffered from the hands of security forces and those from Maoists. These talks had a positive impact on the relationship of these groups and facilitated the reintegration of Maoists into the society. In addition, they published a document “Bhaktapur in Conflict” with details of those affected by the conflict. The focus on families directly affected by the violence was clearly a substantive contribution towards longer-term reconciliation in the community.

A factor that has aided the relative success of the LPC was that the top political leadership of the district sat on the committee. In fact, the coordinator of the committee was a NC politician who, incidentally, also did not follow the 6-months rotation rule. Not all had equal appreciation of the fact, but the positive side to it was that the collective political leadership was committed to the LPC. The LPC also clearly enjoyed good relationships with the CDO (Chief District Officer). An aspect that stood out regarding the LPC was that minorities felt listened too even though the listening did not always translate into action. The LPC, it seemed, was indeed a platform for dialogue and collaboration in spite of the considerable odds it had to contend with.

Jhapa is a district in the south-eastern corner of Nepal bordering India. It is a district that has seen a significant influx of people both from the hill country and from India since the 1950s. It is in fact a highly diverse society with significant internal identity-based tensions. Some of the Limbu communities want Jhapa to form part of Limbustan, their view of a greater autonomous region. Some Tharus, on the other hand, were lobbying for Tharuwan, an eastern Tharu federal state, while Madhesi parties were lobbying for Jhapa to be part of a unified Terai Madhesi federal state. Whatever the eventual outcome of the continuing struggle around federal borders, the Jhapa community face a considerable challenge to forge internal collaboration and trust.

The district was exposed to considerable violence during the civil war—253 persons were killed, 14 disappeared, 46 families displaced, 16 wounded and 5 abducted. The district, as other districts surrounding it, also experienced violence during the constitution writing process (Jhapa LPC Secretariat, personal communication, April 2016).

The LPC was formed in 2009 and consisted of 28 members of whom 14 were politicians. The coordinator is a representative of a minority party and had served in this position for three years. The LPC has been successful in mediating a number of conflicts, ranging from land disputes (one of which was 15 years old) to the re-integration of a family into a community after they had been chased out following the suicide of the husband. They defused a threatening 3-day stay-away (or *banda*) by Tharuwan activists. They have also, as in Bhaktapur, been active on dealing with the issues of the conflict affected and facilitating dialogue between the groups.

This LPC is characterized by a strong and shared local political commitment. One of the successes of the LPC was that the relationship between politicians improved considerably over the years. While the dominance of politicians on the LPC was problematic, there was clearly a lot of dialogue taking place between members—among politicians themselves and between them and the civil society representatives. Of particular interest is the role played by Sambad Samuha, a civil society organization that focused on assisting the LPC in its task. The four years of their interventions coincided with a period in the life of that LPC that saw significant achievements. This role is noteworthy because it demonstrates the importance of professional assistance to LPCs.

Dadeldhura is a district on the impoverished far western side of the country. The district is noted for tense relations between segments of the Tharu population of the Terai and ‘hill-origin’ or Pahadi people. During the insurgency it experienced extensive violence, with all DDC buildings, VDC buildings and village police posts destroyed. 144 persons were killed, 94 families displaced, 3 persons disappeared and 65 were disabled (Dadeldhura LPC Secretariat, personal communication, April 2016).

The LPC consists of 19 members, 7 of whom are political representatives. The coordinator is a civil society representative. It was formed in 2008, but initially struggled through a period of confusion and disorganization due to a lack of clarity on the mandate for LPCs and significant tensions between the political groups. Relationships on the LPC, however, improved over time, specifically

with the Maoists. As one interviewee stated, the problems have been solved through discussions. Incidentally this LPC does not enjoy the same level of political commitment as the other examples above. Political representatives are not the top local politicians. The LPC has been active, as the other two examples discussed above, in taking care of the concerns of the conflict affected and facilitating dialogue between them. They also organized a sports event between these groups. It succeeded in mediating some conflicts such as a conflict between bus companies that led to the closure of markets for a number of days.

The LPC did substantial work in collaboration with the outlying villages and village-level peace committees. Much of this related to raising awareness through radio programs regarding the need to work for peace. These included, for example, debating competitions for school children.

What is most striking about the Dadeldhura case study, however, is the shared appreciation for the inclusive nature of the LPC. While struggling with considerable logistical and political problems, they managed to forge a mutual understanding for their role and respect for each other. At the village level Dalits and women have been appointed as coordinators, while at the LPC level there was clearly substantial dialogue taking place between all the groups.

In summary, the following conclusions can be made:

- i. In spite of the considerable challenges and uncertainties that LPCs struggled with, these case studies demonstrated that sufficient legroom was indeed available for those LPCs where local leadership was committed enough to make it work.
- ii. The most important impact of the LPCs is intangible: the improved relationships between political actors; the improved relationships between groups of affected families; the care taken of conflict victims thus alleviating their suffering; the implicit and explicit message that peace was possible.
- iii. The fact that conflicts were successfully resolved through LPC mediation is important. In addition to the practical benefits for the actors involved and the larger community, it sent a powerful message that problems could be solved through local collaboration.
- iv. The strong commitment of local political leaders to the LPC gave it considerable clout. This of course also had a downside in that it created the impression of political dominance. But it demonstrated that with strong joint local ownership of the peace process it was possible to overcome some of the negative aspects of the national situation.

- v. The role of the service organization in Jhapa is noteworthy because of the implicit message that the performance of LPCs can be enhanced considerably through adequate professional assistance.
- vi. The support given to the victims of violence and their relationships point to the supportive role played by MoPR. It underlines the importance of external support for LPCs.

Conclusion

The fate of LPCs in Nepal was determined by the interaction between national and local dynamics. The national political culture acknowledged, on the one hand, the importance of local peace building and created instruments (the LPCs) for its facilitation. On the other hand, political parties flinched when faced with the responsibility to create the mechanisms that would enable the productive functioning of the LPCs. Their entrenched interests in maintaining the patronage systems trumped their responsibility in this respect. However, where local leaders stood up to the challenge, they were able to make a difference.

Under the watch of MoPR considerable bureaucratization of LPCs took place. This was not primarily the fault of MoPR as bureaucrats cannot be expected to approach their task in anything but a bureaucratic way. Where LPCs have been active, though, they found the support of MoPR helpful.

Perhaps the greatest regret regarding the past history with LPCs was that a stronger pact between peace building institutions and LPCs was not forged. Where civil society organisations got involved (and Jhapa was not the only example) the impact was discernible.

In general, though, the lessons that stand out are the necessity of an inclusive national body to provide guidance to LPCs; the importance of a professional support service that is skilled in facilitating complex processes; the need for leadership of the LPCs by people with the credibility to do so; and the importance of understanding the LPCs as an inclusive and adaptive platform and not a rigid instrument of government. The fact that the political context was challenging was par for the cause. There is no need to implement LPCs in stable, democratic and egalitarian societies. But when LPCs are implemented, it is important to support and empower local agency as much as possible because this is the key to successful local peace building.

References

- Adhikari, A. (2014). *The Bullet and the Ballet Box. The Story of Nepal's Maoist Revolution*. New Delhi: Aleph.
- Badal, A. (2013). *The Potential for and Challenges of a Local Peace Committee (LPC): A Study of the District Level Peace Forum in Kavre, Nepal*. Retrieved from [www.beyondintractability.org/http://www.beyondintractability.org/casestudy/badal-lpc](http://www.beyondintractability.org/casestudy/badal-lpc)
- Bhatta, D. R. (2008). *The Relevance of Local Conflict Resolution Mechanisms for Systemic Conflict Transformation in Nepal*. Berghof Foundation.
- Carter Center. (2010). *Brief Overview of Political Dispute Resolution at the Local Level in Nepal*.
- Carter Center. (2011). *Observations on Local Peace Committees*.
- Daha, D. (n.d.). *Social composition of the population: caste/ethnicity and religion in Nepal*. Retrieved from [www.cbs.gov.np: http://cbs.gov.np/image/data/Population/Monograph_vol_1_2\(1-10,11-21\)/Chapter 03](http://cbs.gov.np/image/data/Population/Monograph_vol_1_2(1-10,11-21)/Chapter%203/Final%20Report%20on%20Review%20and%20Impact%20Assessment%20of%20Previous%20and%20On-Going%20Support%20to%20LPCs%20and%20Support%20to%20Discussions%20of%20Experience%20and%20Future%20Program%20Directions)
- Final Report on Review and Impact Assessment of Previous and On-Going Support to LPCs and Support to Discussions of Experience and Future Program Directions*.
- Grävingholt, J. et al., (2013). *Struggling for Stability, International Support for Peace and Democracy in Post-Civil War Nepal*. German Development Institute.
- International Crisis Group. (2012). *Nepal's Constitution (II): The Expanding Political Matrix*. Asia Report N°234.
- International Crisis Group. (2009). *Nepal's Future: In Whose Hands?*
- International Crisis Group. (2010). *Nepal's Political Rites of Passage*, Asia Report No. 194.
- Gurung, H. (1996). *Ethnic Demography of Nepal*. Retrieved from [www.nepaldemocracy.org: http://www.nepaldemocracy.org/ethnicity/ethnic_demography.htm](http://www.nepaldemocracy.org/ethnicity/ethnic_demography.htm)
- Hopp-Nishanka, U. (2012). *Giving Peace an Address? Reflections on the Potential and Challenges of Creating Peace Infrastructures*. Retrieved from [www.berghof-foundation.org: http://www.berghof-foundation.org/fileadmin/redaktion/Publications/Handbook/Dialogue_Chapters/dialogue10_hopp_nishanka_lead.pdf](http://www.berghof-foundation.org/fileadmin/redaktion/Publications/Handbook/Dialogue_Chapters/dialogue10_hopp_nishanka_lead.pdf)
- Hurst, M. (2004). *Himalayan 'People's War' Nepal's Maoist Rebellion*. London: Hurst.
- Lahoti, M. (2007). *Contentious Politics and Democratization in Nepal*. Los Angeles: Sage.
- Lederach, J. P. (2012). The origins and evolution of infrastructures for peace: a personal reflection. *Journal of Peacebuilding and Development*, 7(3).
- Lederach, J. P. & Wehr, Paul. (1991). Mediating Conflict in Central America. *Journal of Peace Research*, 28(1), pp. 85-98.
- Mallik, V. (2013). *Local and Community Governance for Peace and Development in Nepal*. German Development Institute.
- Odendaal, A. (2013). *A Crucial Link. Local Peace Committees and National Peacebuilding*. Washington DC: USIP.

- Programme, U. N. (2004). *Support for Peace and Development Initiatives. Annual Report*. Kathmandu.
- Rajhandari, J. G. (n.d). *Local Peace Committees: Still a Model of Cooperation across Conflict Lines*. Retrieved from [www.asiafoundation.org: http://asiafoundation.org/in-asia/2009/08/05/local-peace-committees-still-a-model-of-cooperation-across-conflict-lines/](http://asiafoundation.org/in-asia/2009/08/05/local-peace-committees-still-a-model-of-cooperation-across-conflict-lines/)
- Sapkota, B. (2009). *Local Peace Committees in Nepal: A Lost Opportunity?* Retrieved from <http://asiafoundation.org/in-asia/2009/05/20/local-peace-committees-in-nepal-a-lost-opportunity/blog>
- Sapkota, B., Prasain, D., Visser, P. (2008). *An Assessment of Local Peace Committees in Nepal*. Kathmandu: NTTP; Carter Center.
- Peace Fund Secretariat.. (2015). *Local Peace Committee functioning has improved, but overall effectiveness remains unclear*. Government of Nepal: MoPR.



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How do you evaluate the peace process initiated by the CPA in Nepal?

The peace process is still incomplete and work in progress. There are splinter rebel groups, many with small arms and mild violent activities. There is significant delay in constitution implementation and challenges to creating a larger ownership, especially among Madhesi and Janjati groups. Socio-economic aspirations of common people are largely unfulfilled and frustrations are high. The fault-lines of conflict are still conspicuous and unaddressed. State restructuring is yet to happen and carries deeper division of opinions. Dream of 'New Nepal' is getting lost somewhere in the power struggle of political parties and strong regimentation of conservative status-quoist elites.

Yet there are many achievements of Nepal's indigenous peace post CPA. Adoption of constitution by the elected constituent assembly and management of rebel arms and armies are some of them. Recently established TRC and the Commission for Disappeared people are also promising institutions to wrap-up the transition.

Could you shed light on the role of government agencies, especially the Peace Secretariat, and later Ministry of Peace and Reconstruction in the different phases of the peace process?

The Peace Secretariat was established to engage and facilitate political dialogue between various political parties, stakeholders and the Maoist rebels in 2005. It was largely successful in its mission by being an acceptable government institution for conducting all initial activities during early peace process, which included ceasefire and its monitoring, interim constitution drafting, drafting of CPA and bringing UNMIN to Nepal for monitoring the CPA and its implementation. The Secretariat was later converted into the Ministry of Peace and Reconstruction to continue the same with added responsibilities for reconstruction of conflict affected public infrastructures and rehabilitation of Maoist combatants, IDPs and other conflict affected victims. In terms of CPA implementation, the MoPR was successful in its delivery. But the dialogue and political engagement process gradually became its remote part- which was facilitated more by the Ministry

of Home and the Prime Minister's Office or the political parties' various mechanisms- both formal and informal- including NTIP Forum.

Do you think Nepal's political institutions and agencies have successfully adapted with the promise of change made in the CPA?

I don't think so. Rather they have failed Nepali people's aspirations and expectations. People see them wrangling over petty political interests and immediate power games. The promises of socio-economic transformation, land reforms, inclusive democracy and state restructuring all are elusive now. Transition management is lingering and state institutions or political parties have not demonstrated any fundamental behavioral change to embrace popular aspirations of the people's movement of 2006 and the spirit of the CPA.

With the experiences of Nepal in hindsight, what problems do governments (as agency of the state) usually face in implementing peace agreements?

The government and its various constituents need adequate mechanism, resources and high level political commitment to ensure proper implementation of the peace agreements. Mere words and promises are not enough. They create more frustrations and future conflict – if proper design of peace infrastructures is not done or continuous follow-up is not maintained. Transparent public dealings with accountability towards the stakeholders and 360 degree monitoring of implementation of the peace agreements are the basic ingredients for success. Continuous capacity building of the government and non-government machinery involved in the peace agreement implementation process is another important factor for success.

Any final thoughts on future of Nepali society?

Nepali society has a huge social capital and high positive energy. Their resilience capacity is unparalleled. Also, at national, regional and sub-national levels, Nepali masses have demonstrated time and again, huge energy for radical social and political transformations in the past eight decades. They are rather failed by their own leaders. I feel the society will endure the present stress and contain all internal conflicts in an accommodative and synergic way. It will be able to create critical pressure needed to change behavior of its political leaders or change the present failing leadership. Any sad scenario that over looms at present is temporary pain to the Nepali public and they know this.

From shared narratives to joint responsibility

Dirk Splinter and Ljubjana Wuestehube

Supporting reintegration of former Maoist army combatants and community resilience to violent conflicts through mediation, dialogue and storytelling¹

“I felt the pain that we caused to each other and after we shared our stories we felt relieved.” (Ex-combatant, Nepali Times, 2013)

“From shared truths to joint responsibility”(sha:re) is an approach for interpersonal dialogue, which was co-designed by a group of Nepali facilitators and the authors of this article in the framework of a project to support the reintegration of ex-combatants after the dissolution of the cantonments. It combines mediation with dialogue and dealing with the past by making use of story telling methodology.

Background

One of the major challenges after the signing of the Comprehensive Peace Agreement was the question of rehabilitation and reintegration of Maoist combatants. It took years until a political settlement about the modalities was reached and the cantonments were dissolved in April 2012.

Some 15,000 former combatants settled in mostly large groups of up to 700 people (Martin Chautari 2013) in VDCs, most of them near the cantonments. The majority did not want to return to their original communities because they “complained of being discriminated against by their communities and families” (C. Bhandari, 2015). In many cases, their presence significantly changed the demography of the VDCs. Donors’ concerns – based on international experience – that the retirement money might be used in a short-sighted manner did not materialise: most ex-combatants used the money wisely to buy land or shops and create job opportunities. The reintegration can be seen as very successful in this regard (Timalsina, 2014; C. Bhandari, 2015).

Nevertheless, tensions and resentments have existed under the surface and in some cases they have become explicit. “The relationship between ex-combatants and local communities has been marked by tensions, and many communities have expressed serious reservations about accepting former combatants into their midst. This has created a dynamic that had led to many ex-combatants being alienated from wider society” (C. Bhandari, 2015). In a situation where many resources are already scarce, a sudden influx of people is likely to cause problems. And this is only the superficial layer. The underlying issue is related more closely to the past grievances and exposure to violence during the civil war. While some former PLA members feel that they risked a lot for a good cause and should be better rewarded for this by society, others do not trust them due to painful experiences in the past. In that case, mistrust, fear and trauma are likely to shape the relationship between the longstanding community members and the newly arrived ex-combatants. Fuelled by these resentments, minor conflicts can quickly escalate into community conflicts.

Anticipating these types of conflict, in January 2011 GIZ – the German international cooperation agency which had been working in the cantonments for many years (Gutsche 2013, 2015) – and the Swiss Agency for Development and Cooperation (SDC), which had supported psychological counselling for the ‘discharged minors’ after their release from the cantonments in 2009 – consulted with the authors of this article, who shared their experience from mediation and dialogue projects in various countries. Applying the insider-partial model of mediation (Mason and Wils 2009, Lederach 2015), we thought that the only effective way to resolve conflicts and improve trust between ex-combatants and community members was to have teams of mediators from both groups who would be able to work together constructively. No single mediator from only one side would be able to gain trust from both groups, according to the underlying hypothesis. Although many community mediation projects had been working successfully in Nepal before (see, for example, Lederach and Thapa 2012; Suurmond and Sharma 2012), they did not involve ex-PLA as mediators: this was simply not possible before 2012 because the latter were concentrated in the cantonments.

Secondly, assuming that conflicts would be influenced and triggered by a general mistrust related to the past, we thought that mediators should be able to tackle this layer of mistrust not only in acute conflicts, but also as a preventive measure, combining mediation with dialogue and dealing with the past.

Thirdly, if ex-combatants and longstanding community members were to work together as mediators, one would have to assume that this mistrust applies to them as well, so they would need to undergo the process of dialogue and trust-building themselves first.

In April 2012, shortly after the first ex-PLA members had arrived in the communities, these preliminary hypotheses were tested in a workshop with GIZ field staff who had witnessed the process on the ground. Conflicts and tensions were mapped and analysed. It became clear how conflicts about access to resources are influenced by underlying fears and mistrust, rooted in past events (see Box: Water Tap Conflict). On the one hand, many community members took the view that the Maoists originally aimed to change the country positively and thus should be warmly welcomed. However, elite groups within the communities seemed to regard them as a potential threat to traditions such as the caste system, largely due to the Maoists' practices such as inter-caste marriage. Most of the longstanding residents considered the amount of money paid to ex-combatants as a retirement package to be far too high while the ex-combatants felt humiliated by the fact that they had never officially been honourably discharged from the rebel army. Rather than returning as heroes of a victorious struggle for social change, they re-entered civilian life as part of an unwanted minority of strangers and losers.

Box 1 Water Tap Conflict (Reported in April 2012)

A group of ex-combatants who had just settled in a VDC near their old cantonment asked for access to the existing watertap. Old community members rejected this request, arguing that water was scarce and with the retirement package, the ex-PLA should have enough money to install their own watertap. The latter argued that this water tap was built in the framework of a project supporting the cantonment and nearby communities—so without them it wouldn't exist. Secondly, there would be enough water for everyone if only it were not being wasted. Underlying needs, fears and emotions of the two groups were analysed and mapped, using the *twiceberg* metaphor (in boxes: common needs/fears of both groups).

Box 2 Statements from the focus group interviews (Pro Public 2012)		
ex-combatants	community members	feel threatened, because we have been victimised by Maoists before
want access to existing water tap	want them to build separate water tap	We feel dominated, treated unfairly (less money)
I feel ... Want to be part of community	Fear of violent eruption	
I fear ... angry	We wish to live in harmony	We wish to maintain our culture; afraid of cultural demolition by Maoist culture
I wish ... Fear of being rejected	We want recognition of our suffering	

This was corroborated by a baseline study from September 2012 conducted in five districts by Pro Public on behalf of GIZ (Pro Public 2012) and by subsequent research (Martin Chautari 2013, Timalisina 2014, C. Bhandari 2015, Bogati 2015) and media reports (e.g. Republica 2014). The baseline study showed that in general, positive attitudes were displayed by ex-combatants and old community members towards the other group. However, a significant number of comments indicated the underlying level of mistrust. We assume that this level must have been much higher due to a methodological research problem: When we asked people about reintegration and their relationship towards the other group, we often found that people would in a first encounter respond very positively, presumably because this was thought to be most face-saving. To reveal problems would be seen as embarrassing. Only after an intense dialogue and trust-building would they reveal in hindsight that there had been mistrust before. Even three years after the cantonments were dissolved, some participants in dialogue groups report that this was the first time they had actually met any ex-combatants.

Box 3 Statements from the focus group interviews (Pro Public 2012)

"They welcomed us with thoughts of harmony"

(Ex-combatant in Banke talking about how he was received by the community)

"I promised them that I will not engage in war again"

(Ex-combatant in Sunsari, explaining why he thinks the community has a positive perception of him)

"They have a negative attitude towards us, because we have been engaged in warfare"

(Ex-combatants in Kailali, explaining why they think the community has negative perceptions of them)

"The ex-combatants must not settle in a new community.

They have to go to their home.

Why aren't they going back to their home?"

(Senior Police Officer, District Police Office)

"ECs might secretly keep some old weapons, so there really is a challenge of insecurity among the people. They were the victims of the Maoists in the past, and they still have feelings of revenge."

(Former Chairperson, Nepali Congress)

"ECs have arrived. There is a kind of a fear due to their past history, but gradually things will go well."

(Social activist)

"People can't say 'NO!' to them. They are accepting them unwillingly... The VDC needs extra police force and more safety measures since their arrival"

(Secretary, Mother Group)

"ECs have started a small business in this VDC. They are providing modern and quality services. Old businessmen are feeling the competition. So the community people are not accepting them."

(Principal, Higher Secondary)

"Accepting those persons, who created lots of problems in the community, is really difficult. The feeling of revenge may arise."

(Coordinator, Local Peace Committee)

"They were used to getting a free lunch. But now they have to do something with the money they received for their livelihood and family."

(Chief, District Veterinary Office)

Project design

Based on these preliminary findings and considerations, four districts were chosen, according to where GIZ had been active before and had been seen as a trustworthy actor, and the numbers of incoming ex-combatants. Among these four districts were the three with the highest number of PLA in the cantonments: Kailali, Chitwan and Surkhet (Timalsina 2014), with Saptari being the fourth project district. It could thus be assumed that these districts would be particularly challenged by the reintegration. Pro Public set up a group of potential mediators/dialogue-facilitators, consisting of new community members² with a PLA background as well as longstanding members of the communities and local NGOs. They underwent 15 days of training, conducted by inmedio on behalf of GIZ, between November 2012 and April 2013. Based on the experience gained on the ground and during training, as well as experience in other countries, the methodology for combining elements of mediation, dialogue and dealing with the past (storytelling in particular) was developed through collaboration. We later started to refer to this approach as sha:re – from shared narratives to joint responsibility. After completion of the training, which was funded by GIZ and coordinated by Pro Public, the group members started to offer their services with the aim of supporting the reintegration process in their districts by

- conducting informal dialogues/mediation in acute conflicts, particularly group conflicts related to the settlement and reintegration of the former combatants,
- organising peace events and interactions,
- initiating and facilitating dialogue groups and dialogue camps in which members of different parts of society undergo an intense trust-building process.

In late 2014, the group of facilitators decided to be independent and started to found their own NGOs in the four districts, now known as the sha:re centers for mediation and dialogue facilitation. They successfully expanded their activities in 2015 and 2016, supported by inmedio and the Berlin-based NGO Culture for Peace, funded by the German Institute for Foreign Relations with support from the German Federal Foreign Office. By April 2016, they had conducted five dialogue camps and facilitated 32 dialogue groups, more than 50 informal dialogues/mediations and other interaction programmes.³

The sha:re trust-building process

The approach that we chose for the training sessions, which was later modified and further developed in a joint process with the group, was based on our own experience of working with war refugees from the former Yugoslavia in the late 1990s (Wuestehube 2007). It was inspired by the work of the Israeli psychologist Dan Bar-On, who initiated dialogues between survivors of the Holocaust and children of Nazi war criminals and, later, between groups of Israelis and Palestinians (Bar-On/Kassem 2004), and by the socio-therapy groups in post-genocide Rwanda (Richters 2010).

The underlying thought is:

When dealing with collective atrocities and traumatic experience, a fundamental improvement of relations and a true reconciliation with the past will not happen unless the painful memories, gruesome (war) experiences and stories of the victims are being shared in front of members of the 'others'. When experiencing the authenticity of the story telling and the authenticity of the reactions of listeners, a change of mind and sometimes even a change of perspective can happen. This is the basis for the development of new trust and readiness to cooperate when working for a better future.

While this seems to be common sense, a 'forgive-and-forget' approach was being discussed by a significant number of politicians in Nepal at that time (Spring 2012). In peace/dialogue events, the desire for peace was often expressed but the problem of mistrust was not addressed. There was hardly any culture of 'working through' the conflict, which seems to fit into a common stereotype that encouraging people to express feelings of anger and sadness was not culturally appropriate in Asia. This results in a shying away from openly dealing with the past. However, other experiences were also gained, not only in the project at hand. John Paul Lederach (2015) refers to the MSBK Project (Mahila Shakti Kendra Nepal), which used a storytelling approach with rural single women: "(...) women from different sides of the warring parties who had lost husbands to the other side were suspicious and angry with the other women. Only after hearing other women's stories could the feelings of anger be reduced. They initially wanted to be in separate groups, but once the stories emerged, the women realised that friendship could develop" (ibid. p. 72). Similarly, the Hatey malo Accompaniment Program, ICRS's psycho-social support programme for families of missing persons in Nepal, found that sharing their painful stories was very much appreciated by the victims' families.

Unlike official hearings in truth commissions, Gacaca courts (Rwanda) or victim offender mediation, in this type of dialogue, individual perpetrators are not confronted with ‘their’ victims. Typically, however, people who have been victimised emotionally view any member or proxy of the other group as a representative of ‘the perpetrators’. The process is challenging, but it has its own healing effect.

Sha:re dialogue groups

The idea of sha:re dialogue groups came into being: Up to twelve old and new community members meet for five to ten sessions, which are led by at least two facilitators. Their objective is to contribute to a smooth reintegration of the ex-combatants in the VDC, to the creation of trust and to the resolution of conflicts within their communities. They would undergo an intense trust-building process and – if things turned out well – plan and implement joint activities for the community. After some preliminary trust-building and the joint assessment of the current situation, the sharing of painful memories (usually related to the times of the insurgency) is at the core of the approach (“From shared narratives ...”).

This often paves the way for joint activities that promote development in the community, social harmony and conflict prevention (“... to joint responsibility – sha:re”). The underlying theory of change here is that a change of perspective and trust-building are more likely to happen in smaller groups and cannot be a one-off event. The attitudinal change of the group members will affect the whole community through the joint activities they implement, as well as through their general interactions.⁴ The group process is of course flexible – however, certain steps are typical and are generally applied:

1. Getting to know each other/joint assessment of the situation
2. Joint conflict analysis and preliminary trust-building by stepping into each other’s shoes
3. Sharing of painful memories
4. Discovering resources: Positive childhood memories
5. Joint activity planning

Two elements proved to be particularly important in this process of developing trust among the groups: The joint analysis of conflict between ex-PLA and old community members using the method of conflict perspectives analysis, and the sharing of painful stories and experiences from the time of the insurgency. These elements will be therefore discussed in more detail.⁵

1. Getting to know each other/joint assessment of the situation

The session starts with a song, poem or ritual and some general information about the facilitators and the approach and purpose. However, the introduction of the participants and the general assessment are combined by choosing the methodology of partner interviews: Participants team up in pairs, consisting of an ex-combatant and a longstanding resident. They are requested to interview each other on the question: ‘What has worked out well with the reintegration of the Maoist ex-combatants, and what difficulties have arisen?’ After this, they return to the large group and report what their partner has told them. In this way, the opportunity is provided to slowly start approaching each other and begin to undertake an initial change of perspective.

2. Conflict perspective analysis and iceberg metaphor

The goal of this step is to analyse a typical conflict between two groups in such a way that each side is able to develop empathy for the other. From a methodological perspective, the well-known iceberg model and the ‘empathy lists’ from conflict perspective analysis are helpful tools in this regard, because they foster empathy and change of perspectives (Splinter/Wuestehube et al. 2013, 2015; Walter 2013). After introducing a case study – a specific conflict between old and new (ex-PLA) community members from the participants’ VDC or from the facilitators’ experience, e.g. the watertap conflict (see above) – the group is requested to split into two homogeneous groups. The participants are asked to step into the other’s shoes and express wishes, emotions and fears the other side might hold. Through brainstorming, they are encouraged to speak solely from a first-person perspective; this means that new community members stepping into the shoes of the old community would make statements starting with “We, the old community, feel... (wish ... / fear ...)” and vice versa. Facilitators list the statements (see illustration above). Subsequently, the sub-groups unite and present each other with their lists. In the concluding feedback rounds, it is usually highlighted that examining the other side’s needs, fears and feelings was a completely new experience for most of the participants. It generally creates a degree of trust and understanding, which paves the ground for the next step.

3. Sharing of painful memories/storytelling

As mentioned before, we regard the sharing of individual stories and experiences, mostly painful memories from the time of the insurgency, as a crucial step in facilitating trust-building, healing and readiness for reconciliation. It is of course crucial to determine the right time in the group process. A degree of confidence is needed, yet it is not possible to wait indefinitely. Facilitators need to assess

whether it is likely that the group members have a certain level of openness and are willing to listen to the others' stories. Naturally, individuals are afraid that others will ridicule their stories, particularly if the listeners are members of the group perceived as perpetrators in that incident. Facilitators have to create a conducive atmosphere through the preliminary trust-building activities (see above) and create a safe space by setting clear ground rules, such as: "We will make sure that everybody's story is listened to – nobody will be interrupted or ridiculed."

Different from most other approaches, whenever possible we chose to work with pictures, meaning that we ask the participants to begin by drawing a picture of the incident/their story. This is very common in trauma counselling, but is used less often in dialogue. It often creates some confusion at the beginning, yet it is very helpful: Firstly, a picture helps participants to stay focused, making the story more vivid and real. Secondly, with a picture it is much easier to actually tell your own story, rather than simply reacting to the stories of others. Thirdly, with a picture it is also a lot easier to keep on listening, even after one has already heard six or seven stories. Fourthly, drawing a picture is to some extent a symbolic externalisation of the story. This creates a greater mental distance to the painful memories. This is already a first step on the way to owning a story as opposed to being overwhelmed by it.

The guiding question is:

"What happened in your own or your family's life that shaped your view of the other group (here the former Maoist combatants/the civilians) and/or your beliefs regarding the conflict/the insurgency? Please think of one specific incident and draw a picture that symbolises the incident."⁶ Usually, the old community members would tell stories of how they/their friend or family members were victimised by the Maoists or the National Army⁷ – how they witnessed killings or lost loved ones. Ex-combatants would often tell stories of how they happened to become PLA members, how they were sometimes falsely accused and put in prison for being Maoists and became Maoists later; stories of how they were afraid for their lives in skirmishes, how they were wounded, tried to save their comrades' lives and sometimes lost them.

Everybody is asked to share his or her story and present the drawing. The drawing of the person who is telling the story is placed in the middle of the circle and participants usually take five to thirty minutes per person and story.

If the person's story is very short, facilitators encourage her/him to go into more detail. They do so by asking questions which explore the background and emotions of the story, focusing, for example, on specific details in the drawing or how the person felt in a particular situation. They reflect back the emotions that have been expressed between the lines, e.g. "So you must really have been afraid for your life in that situation?" and thus demonstrate their understanding. In this way, they act as a role model for the other participants, showing how to acknowledge the stories.

Often, people start from a certain incident but then they happen to tell their whole lifestory. Sometimes the storyteller gets sucked into the whirl of events that they experienced and drifts off into more and more details, finally getting stuck in the story. If the participant gets lost in his/her emotions, the facilitators ask some factual questions that relate to the present (e.g. "Has the village been rebuilt now?", "How many years did you spend in prison before you were released?", "What is that person doing these days?").⁸

After the storyteller has finished the story, showing appreciation is crucial. We recommend starting by simply saying "thank you for that story". The facilitators continue by commenting on each story with much empathy and compassion. They then encourage the other participants to express their feelings of compassion and empathy. Many listeners find themselves shedding tears. When we conducted a storytelling session with a group from Odessa (Ukraine), one participant commented: "We learned how to shed tears together." We call this the 'compassionate sharing round'.

Box 3 BOX: Resource-oriented reframing

A person who has just told the story of a situation in which his/her life was in danger will be asked by the facilitator: "How did you manage to survive in that terrible situation?" The person explains, for example, that she managed not to panic, but to stay calm and react in a very focused way. Facilitator: "So thanks to your ability to stay calm and focused – even in such a horrible situation – you managed to survive that incident." The underlying psychological assumption here is that it will be very helpful for the person if she doesn't see herself as a completely helpless, victimised person, but as somebody who could do something in order to survive. The facilitator might also add: "And I'm glad you survived and that you are here with us today". That focuses again on the present.

A person who has just told the story of a situation in which his/her life was in danger will be asked by the facilitator: “How did you manage to survive in that terrible situation?” The person explains, for example, that she managed not to panic, but to stay calm and react in a very focused way. Facilitator: “So thanks to your ability to stay calm and focused – even in such a horrible situation – you managed to survive that incident.” The underlying psychological assumption here is that it will be very helpful for the person if she doesn’t see herself as a completely helpless, victimised person, but as somebody who could do something in order to survive. The facilitator might also add: “And I’m glad you survived and that you are here with us today”. That focuses again on the present.

After everybody shared his/her story, including the compassionate sharing rounds, facilitators would wrapup with a quick reflection: “How did you feel before you shared your memories, and how do you feel now?” Here are some typical statements that also explain the rationale and effect of that approach:

- Felt pain and sadness.
- I remembered friends or loved ones with sadness.
- I was in a dilemma about how to tell the story.
- I had to muster courage to share my story with my friends.
- There was a fear that friends might ridicule my story.
- Before, I had the feeling that I was the only one who is in pain – now it’s different.
- There was a sense of pain but that has gradually eased with the storytelling process.
- When others listen to my story attentively, it eases my pain and gives me hope.
- This was the first time I told this story to anybody. I felt suffocated before. Now I feel much lighter.
- I understood that everyone has the same pain.
- I felt that the other side of the war also has all these feelings.
- Before, we thought that journalists and human rights activists falsified the truth, but here we got to know Mr. ...whom we now respect very much.
- The impact of the conflict has lasted longer and we cannot see the pain from the surface.
- Each individual has to face suffering, pain, ups and downs, in their life. It gives us courage that even in such a situation, we can move forward as human beings.
- It gives us strength to deal with the difficulties.
- It helped to develop a consciousness for the future generation on the way to peace.

4. *Discovering resources: positive childhood memories*

In order to contrast the painful memories with something beautiful and to strengthen the bonding process within the group, it is good to examine positive childhood memories. This frequently evokes the feeling of having something in common: Despite all the differences in political beliefs etc., we were all children at some point. Usually this insight leads to an impulse of parental care for one's own children and the future in general.

Share facilitators usually start with a relaxation exercise, focusing on body awareness. Then they ask participants to take a 'walk' through their childhood memories and stop at a place where, as a child, they felt really good and secure. Even if their whole life has been one of suffering so far, there must have been (at least) one happy moment. Sharing these stories about happy childhood moments usually brings up a lot of laughter, as these stories are about love and care or funny incidents.

5. *Joint activity planning*

Building upon this positive energy, it is now possible and often desired by the dialogue groups to start working on plans to organise joint activities that will help the community and spread the trust that was built within the dialogue groups. These activities might consist of joint celebrations, working together on community infrastructure or sports events.

Future prospects and challenges

The approach based on a trust-building dialogue which includes individual storytelling, discussed above, can and should be combined with arts- and media-based activities in order to reach more people; it should be applied to other social divides, the most urgent being the current ethno-political tensions in the Terai; it should be linked with the official transitional justice process in Nepal; and it should explore how political dialogues on track 2 and track 1.5 could benefit from integrating elements of storytelling.

a) *Arts- and media-based outreach*

While the described approach has proved to be effective for the people it is working with, it is clear that it only reaches a limited number of people directly. One of the challenges is how to reach more people in order to transform a whole community. On the one hand, this is already part of the approach because the members of the dialogue groups are supposed to design joint activities and will spread the message of trust-building in this way. However, it could be followed up

more systematically. Since 2015, we have therefore encouraged dialogue groups to use an arts-/media-based approach more systematically – which means using arts and media for the joint activities and involving relevant experts, producing radio clips, videos, photo exhibitions, plays, booklets, poems etc. It is not new to use arts and media for peace building activities, but here the merits lie in the combination with the share-dialogue, because it is more powerful if the message of peace is conveyed not only by those who already believe in the process but also by former ‘enemies’ who have only recently experienced the dialogue themselves and can authentically report about it. An interesting methodology for combining storytelling with playback theatre in order to bring ordinary peoples’ stories on stage and reach more people has recently been introduced by Anne Dirnstorfer from the German NGO CSSP in cooperation with Pro Public⁹. Close networking between artists, journalists and dialogue facilitators is essential to combine dialogue with arts- and media-related activities. This still poses a challenge in many districts.

b) Relevance: What is the role of ex-combatants in relation to current and potential future tensions?

Another question concerns the potential impact of the described community-based trust-building and reconciliation work on the national level. After the violent protests since August 2015, to what extent is the relationship between ex-combatants and their communities still relevant to the overall security situation? On the one hand, the fears that former PLA members would take up arms or join or establish armed groups have not materialized in the short term. On the other hand, the high level of frustration and pessimism among ex-combatants (Boginda 2015, Timalisina, 2014; C. Bhandari, 2015, Women ex-PLA struggle for living, social acceptance, 2014, April 2) could fuel a readiness to resort to violence and increase the likelihood that protests in Terai districts will turn violent. Even if ex-combatants were not directly involved – although this has sometimes been the case – they might influence others. It is well-known from conflicts worldwide that a social group’s sense of frustration can trigger violence which may then be carried out by others as well, often young people. Little evidence-based research is available on whether this applies to Nepal or not. More in-depth analysis is needed.

c) Tackle current tensions

Despite the unanswered question of the role of ex-combatants in relation to current tensions, it is obvious that the most dominant social divides in most of the Terai region after the promulgation of the constitution and the violent clashes in August/September 2015 are not between old community/new

community members but, rather, between Madhesi and Pahadi, and between Tharu and Undivided Far West etc. It goes without saying that in order to promote effective dialogue between these groups, trust-building is essential. The more violent incidents took place, the greater the need to include dealing with the past elements in trust-building processes. The sha:re approach can easily be applied not only in trust-building between ex-combatants and longstanding community members but also to any opposing identity, religious or political groups in polarised societies. It has been applied in Ukraine (pro-European/Russian-leaning groups), Egypt (Islamists/secular regime critics/regime supporters) and South Caucasus (Armenian/Azerbaijanis) so far. We believe that this approach has great potential to reduce the current tensions. Immediately after the tragic events in Kailali, the team at the Kailali sha:re-center decided not to carry out any activities because it was seen as too risky, apart from technical problems due to the curfew. However, they later started to engage with political stakeholders in order to promote dialogue. Specific results are still awaited. This is not to say that sha:re dialogue can replace the settlement of the disputed issues at a national political level. Rather, it can complement it and increase actors' readiness to support political dialogues and their respective agreements and to overcome the repercussions of the violent incidents at the local level, which can otherwise even have an effect on the next generation(s). It is important not to repeat the frequent mistake of postponing the local reconciliation-oriented dialogue until a political settlement is reached.

d) Link with official transitional justice process

Furthermore, we believe that it is a great opportunity to link up community-based storytelling dialogue with the official transitional justice process in Nepal. The latter has often been criticised for being too Kathmandu-centrist and not sufficiently focused on the needs of the victims and people affected by the conflict. Furthermore, the public debate is very much focused on the question of which type of atrocities should be dealt with solely by prosecution and punishment, and under which circumstances amnesties can be considered. Research, however, shows that apart from the question of punishment, other aspects are important from the victims' perspective, such as compensation, economic prospects, social inclusion, symbolic acknowledgement, and different forms of remembering those who died, e.g. naming squares after them or memorial sites (ICTJ 2014). A wide range of scholars and institutions agree that transitional justice processes should be holistic and integrate formal and informal mechanisms (see, for example, Fischer/Petrovic-Ziemer, 2013; Hamber 2015, UN Security Council 2004). There is a substantial body of inspiring international experience of community-based bottom-up reconciliation and truth-telling

initiatives, e.g. REKOM, a regional commission for truth-telling about war crimes in the former Yugoslavia initiated by local civil society organisations (Fischer/Petrovic-Ziemer, 2013), the Recovery of Historical Memory Project (REHMI) in Guatemala, the community-based Fambul Tok in Sierra Leone (see Hamber, 2015) and the Ardoyne Community Project in Northern Ireland (Bickfors, 2007). Yet if official transitional justice processes are to be accompanied by local bottom-up dealing with the past efforts, dialogue comes into play, because financial or other form of reparation that comes without acknowledgment fails. As Hamber (2015, p.12) puts it, “(...) offering reparations without acknowledging the truth about a certain event or doing justice will inevitable result in the accusation that this is ‘blood money.’”

Similarly, naming places after missing people or creating memorial sites, for example, can have a very powerful effect and can be decided at a local level (assuming that a framework for such decisions exists); however, it is much more effective if it is the outcome of a dialogue process rather than being imposed by a few decision-makers. The share approach to dialogue could play a strong role in this regard. However, a framework (legal and financial) needs to be put in place in order to facilitate this type of local dialogue-based transitional justice mechanism on a broad scale. Conflict victims’ organisations and international agencies need to keep advocating and demonstrate how this can be done. The Conflict Victims Common Platform (CVCP) recently hosted a conference on unofficial truth-telling in Kathmandu with support from UNDP, which was a step in the right direction (Victims initiate unofficial truth-telling activities. March 25, 2015)

e) Integrate into political dialogues

Looking at peace processes in general, we firmly believe that elements of this approach, namely the sharing of individual stories, have great potential to enhance dialogues, not only in relation to grassroots interpersonal dialogues but also at a political level, not least because political dialogues and mediation processes on track 2 or 1.5 often end up in stalemates because deep-rooted mistrust cannot be overcome. Meeting the others as individual human beings and learning more about their background and aspirations – by storytelling! – can significantly change dialogues and bring them back on a constructive track. There is a great deal of anecdotal evidence about how negotiators were able to deal with each other on a more personal level when they found some common ground (see, for example Lederach, 2005), which in turn gave new momentum to the talks. Sometimes facilitators try to make these moments more likely by offering spaces where members of negotiation teams can have more informal

exchange. However, whether they actually make use of it is not something that can be planned. Is there a more systematic way of offering this space for a more personal exchange in the sessions themselves? Of course this is a sensitive issue. This is a context, where participants meet each other with a significantly different motivation than in individual grassroots dialogue. Here it is clearly not about exchanging personal stories, but about exploring possibilities for cooperation, enforcing or convincing others of political positions. ‘Exercises’ which seem to have a ‘pedagogical’ agenda are not really appreciated in that context.

However, what if, in a moment where the dialogue/negotiation is stuck and people have a certain readiness to try something new in order to overcome the stalemate, dialogue facilitators were to suggest putting the substantive issues aside for a while and focusing more on personal stories of how the individuals came to hold a certain political view and struggle for the one or the other political cause – simply in order to make the subsequent discussion more effective? When we worked with political party representatives and parliamentary candidates in Egypt who had fundamentally different views, we asked at one point: “What kind of experiences caused you to hold your political opinion?” The storytelling that followed had a very positive effect on the subsequent discussion. Similarly, a colleague who works in a Southeast Asian country with insider peacebuilders who cover the full spectrum of the conflicting parties one day asked them: “How do you continue doing your work despite the fact that it is so nerve-wracking, tedious and may even be in vain?” What followed was an exchange about their personal biographies and relationships to the conflict, clearly generating trust-building momentum. We firmly believe that more of this should be tried.

Conclusion

As the experience of the sha:re centers, on which this article is based, shows, dialogues that deliberately include a dealing with the past dimension through a storytelling approach can help to build trust not only between ex-combatants and longstanding members of communities where they have settled, but also between opposing identity groups in relation to the current ethno-political tensions in Nepal. This type of dialogue can, furthermore, be seen as a community-based bottom-up transitional justice mechanism and thus complement official transitional justice processes. It has potential to be integrated into political dialogues as well. Often, people fear that the sharing of personal painful narratives wouldn’t work because it would not fit into cultural patterns and the wounds of the past were ‘too fresh’ or – if it worked elsewhere – it wouldn’t in

Nepal. Yet the experience describes in this article clearly indicates that it does work in Nepal and elsewhere. It is possible. It just needs to be done.

Notes

- 1 The authors express their thanks to Raphael Vergin from Culture for Peace and to Jyotshna Shrestha for their many helpful ideas and constructive feedback and to all the share center dialogue facilitators on whose experience this article is built.
- 2 When reflecting on conflict, it is important to have names for the groups in conflict. One of the obstacles in this regard was that many ex-combatants did not like to be labelled as ex-PLA or 'Maoists' because they saw it as stigmatising (see also Timalsina 2014). Others felt 'ex-PLA' was at least much better than 'ex-combatants' (the official government and 'donor speak'). In fact, the common distinction made at that time between ex-combatants (or ex-PLA) and community members implies that the former are not community members. From a linguistic perspective, the social divide that needs to be overcome is reinforced by this. So the trainees decided to refer instead to the groups as old community members and new community members, which emphasises that the recently settled ex-combatants are now members of the community – at least they should be seen as such.
- 3 For more information see www.sharecenternepal.org, www.inmedio.de/papers/The%20Share%20Center%20Broschuere.pdf, www.youtube.com/watch?v=TolluDMbiMw
- 4 We later found that this process of 'spreading the news' to the broader community needs more systematic support, e.g. through arts- and media-based activities (see 'Future Prospects and Challenges').
- 5 For a detailed methodological description, see Wuestehube/Splinter 2016.
- 6 Facilitators emphasise that it is not a drawing competition and demonstrate that just using symbols and child-like drawing is perfect, averting participants' fears that they would not be able to draw properly.
- 7 When we did this exercise the first time with the core group, many old community members told stories of how they were victimised by the state security forces, rather than directly confronting the PLA. When we did it again six months later, significantly more of them told stories in which the Maoists were perpetrators. We see this as an indication that trust had grown in the meantime.
- 8 There are widespread fears that re-traumatisation and flashbacks might occur. One could argue that only fully trained psychotherapist should deal with potentially traumatised people. While we agree that facilitators should be sensitised and know how to deal with flashbacks, we do not agree that those flashbacks are more likely to occur during such activities. The point about flashbacks is that they cannot be controlled by the person and they can happen anytime in daily life. The fact that a person consciously decides to memorise

a certain incident in the storytelling exercise makes flashbacks rather unlikely. Since they could happen any time it is also inevitable that non-professionals have to deal with them. Rather than only focusing on a few highlyqualified professionals, many people need to be sensitised.

9 <https://www.youtube.com/watch?v=NeLF-nr7FSA>

References

- Bar-On, Dan & Fatma, Kassem. (2004). Storytelling as a Way to Work through Intractable Conflicts: The German-Jewish Experience and Its Relevance to the Palestinian-Israeli Context. *Journal of Social Issues*. 60(2). 289-306.
- Bhandari, Chiranjibi. (2015). The Reintegration of Maoist Ex-Combatants in Nepal. *Economic & Political Weekly*. L (9).
- Bhandari, Ram Kumar. (2016, February 3). A lost opportunity. Nepal's transitional justice mechanisms have failed to involve victims in their activities. OPED. *The Kathmandu Post*.
- Subindra Bogati. (2015). *Assessing Inclusivity on the Post-War Army Integration Process in Nepal. Inclusive Political Settlements Paper 11*. Berlin: Berghof Foundation.
- Fischer, Martina & Ljubinka Petrovic-Ziemer (eds.). (2013). *Dealing with the past in the Western Balkans*. Berlin: Berghof Report No. 18.
- Gurung, Rabindra and Drew, Elizabeth. (2015). *Peace Audit Nepal*. International Alert
- Gutsche, Heidi. (ed.). (2013): *From Armed Conflict to Civilian Responsibility. A Contribution to the Peace Process in Nepal*. Kathmandu: GIZ.
- Gutsche, Heide and Anina Vontobel (eds.). (2015). *The German contribution to the Nepali peace process: A decade in review*. Kathmandu: GIZ.
- International Centre for Transitional Justice. (2014). *To Walk Freely with a Wide Heart: A Study of the Needs and Aspirations for Reparative Justice of Victims of Conflict-Related Abuses in Nepal*. Kathmandu : ICTJ.
- International Committee of the Red Cross. (2014). *The Hateymalo Accompaniment Program.: ICRC's comprehensive psychosocial support program to the families of the missing persons in Nepal*. Kathmandu: ICRC.
- Hamber, Brandon. (2015). Dealing with Painful Memories and Violent Pasts. *Berghof Dialogue Series No. 11*. Berlin: Berghof Foundation.
- Lederach, John-Paul. (2005). *The Moral Imagination: The Art and Soul of Building Peace*. Oxford: Oxford University Press
- Lederach, John-Paul. & Thapa, Preeti. (2012). Staying true in Nepal. Understanding community mediation through action research. *Occasional Paper No. 10*. Kathmandu: The Asia Foundation.
- Lederach, John-Paul. (2015). *Memoirs of Nepal: Reflections Across a Decade*. Kathmandu: The McConnel Foundation.
- Mason, Simon and Wils, Oliver. (2009). *Insider Mediators: Exploring their key role in informal Peace Processes*. Berlin: Berghof Foundation for Peace Support.

- Martin Chautari. (2013). Political Risk and Ex-Combatants. *Policy Brief No. 9*. Kathmandu: Martin Chautari.
- Klatzel, Frances. (2013, April 26- May 2). Telling each other's story: Nepalis on both sides of the conflict step into each other's shoes in a unique reconciliation effort. *Nepali Times*, 653.
- Pro Public. (2012). *Consultation processes for Community-based Integration of Ex-Combatants in Five Pilot Communities*. Baseline Study. Kathmandu: Pro Public.
- Bickford, Louis. (2007). Unofficial Truth Projects. *Human Rights Quarterly*, 29, 994-1035.
- Richters, Annemiek et al. (2010). Psychotrauma, Healing and Reconciliation in Rwanda. *African Journal of Traumatic Stress*, 1(2), 55-64,
- Women ex-PLA struggle for living, social acceptance. (2014, April 2). *Republica*
- Victims initiate unofficial truth-telling activities. (2016, March 25). *Republica*
- Splinter, Dirk and Wuestehube, Ljubjana. (2013). *Shimgelina: Merging Ethiopian Wise-Counsel Mediation and Facilitative Mediation. A Training Manual*. Ethiopia: House of Federation.
- Splinter, Dirk and Wuestehube, Ljubjana. (2015). From Shared Truths To Joint Responsibility: Combining Storytelling, Dialogue And Mediation As A Means Of Trust-Building Within Or Between Divided Societies. *Korea Forum Special-EPRIE*.
- Splinter, Dirk and Wuestehube, Ljubjana. (2016). *From Shared Truths To Joint Responsibility (Sha:Re) – Trainer's Manual*. Berlin/Kathmandu. (will be accessible online via www.inmedio.de and www.sharecenternepal.org by end of 2016).
- Suurmond, J. and Sharma, P.M. (2012). Like Yeast That Leavens theDough? Community Mediation as Local Infrastructure for Peace in Nepal. *Journal of Peacebuilding and Development*, 7:3, 81-86,
- Timalsina, R. (2014). *Addressing issues of ex-combatants in Nepal: Deciding Hastily and Implementing at a Snail's Pace*. Kathmandu: Tribhuvan University.
- United Nations Security Council. *Rule of Law and Transitional Justice in Conflict and Post-Conflict Societies. Report of the Secretary-General S/2004/616*. New York :UN.
- Wuestehube, Ljubjana. (2007). Konfliktbearbeitung mit Kriegsflüchtlingen aus den Ländern des ehemaligen Jugoslawiens, *Perspektive Mediation*, 2007/4. S. 201ff. (English: Conflict transformation with war refugees from the former Yugoslavia).
- Walter, Willibald. (2013). Durch Einfühlungslisten zum Perspektivenwechsel.In: Knapp, Peter (ed.): *Konflikte lösen in Teams und großen Gruppen*, Bonn.(English: Fostering a shift of perspectives through empathylists).



Malla K. Sundar
Leader, Civil Society

As someone who closely watched the peace process, where do you see it 10 years later after its beginning?

One thing that must be said about Nepal's peace process is it is unique in the world. Elsewhere, the peace process of this kind and magnitude has not become possible without the involvement of the third party. Norway mediated peace process between the government and Tamil rebels in Sri Lanka. Likewise, France played the role of a mediator during the war between India and China. Major conflict has not ended without the third party involvement in other countries. Nepal's case is exemplary because the stakeholders came to the negotiating table themselves, without any third party mediation. In that respect, Nepal's peace process is an example for the rest of the world to replicate. While this is the best thing about our peace process there are some downsides as well.

What are those downsides? Will you elaborate on it?

One biggest downside of the process is also one of its best aspects. There was lack of mediator between two groups of stakeholders. So we have no witness of what transpired between the two stakeholders when they were negotiating the future course of action. We do not know of the actual agenda they had discussed and the actual agreement the two sides had reached. There is no witness of what the agreed agendas were. None of the meetings were documented. As a result, both the governments and Maoist party started to dispute what was already declared as agreed issues right since after CPA was signed. Both started to interpret the agreement to suit their interests. Take the case of integration of Maoist combatants into Nepal Army. The parties disputed how many PLA soldiers were to be integrated into Nepal Army. Both the government and the Maoist forces presented their claims and counterclaims. We had no way of knowing what they had actually agreed on. If the Seven Party Alliance (SPA) and Maoist leaders had also involved mediators from Nepal, members of civil society for example, we would have had a legitimate authority to tell us what had actually happened.

Another mistake was not maintaining minute of the meetings that took place between SPA and Maoist leaders. Nothing was documented. The third mistake was there was no guarantor to ensure the agreements would be fully implemented. A Norwegian Minister had stood as a guarantor between Tamils and Sinhalese. In Nepal we had no such guarantor.

Do you mean to suggest that all this led our peace process to the wrong track?

Yes, we lost the track somewhere in the middle. For example, the CPA had given time-bound duties and responsibilities to its signatories. It had clearly stated by when the Constituent Assembly elections would take place and by when PLA integration should be completed. It had also clearly stated by which time transitional justice bodies would be formed. None of these things happened in time-bound manner. Army integration happened seven years after of CPA and TRC and CIEDP were formed only last year.

The 12-point pact, CPA and Interim Constitution (2007) had laid the groundwork for new constitution and forward looking politics. But as the parties started compromising with the spirit of CPA, the goals of CPA remained unfulfilled. A major stakeholder of peace process, Mohan Baidya and Netra Bikram Chand-led Maoist parties, is still outside the process. Even today, they are talking about resuming armed struggle. Thus our peace is only partially successful. We do not know what Chand and Baidya are planning to do. Perhaps they will resume arms, who knows? And if this happens, the country will suffer another pain and suffering. If the violent conflict resumes, it will be more devastating. It will lead to more bloodshed. This has been the case everywhere in the world. The country faces the possibility of reverting to conflict because the agenda of socio-economic transformation, inclusion, addressing aspirations of Janajatis and Madheshis have not been addressed completely. Some forces, if not Chand and Baidya, might cash on it and revert to violence. Therefore this danger of return to the conflict cannot be completely ruled out.

It is also said that we are in this situation today because CPA had set too ambitious goals. What do you think?

I do not think so. Before we had CPA, we had 12-point pact. The 12-point pact is the basis of CPA, which was instrumental in ending decade-long conflict. CPA is an elaboration of 12-point. Thus it would be inappropriate to say CPA was an ambitious document. The problem started because neither party to CPA acted with the sincerity and honesty.

Earlier you said that our peace process had no third party involvement. But it is widely believed that India had acted as moderator during 12-point pact and CPA. What is your opinion?

I was talking about track one of the peace process. At this level, only SPA leaders and Maoist leaders were involved. In track two, there were people like us from the civil society. We worked to facilitate the dialogue between two actors. India was in track three level. It may have lobbied to secure its interests in the process but its role was of tertiary importance. India was involved only in track three.



Community governance: Archetype for transmuted insurgency into peacebuilding in nepal

Keshav K. Acharya

Introduction

Multi-party democracy was reinstated in 1990, after a collective mass movement of political forces, civil society, professional groups and the general public. The outcome of the democratic movement was a new avenue for the people to fulfil their hopes and aspirations. But as it may be the political framework started to fracture in 1993 due to conflict of internal interest of leading party Nepali Congress. Subsequently, Prime Minister GP Koirala recommended the king to dissolve breaking the parliament and announced the mid-term elections. The midterm election was held in 1994. Meanwhile CPN-Maoist was united after integrating several small segments of leftist parties and submitted a '40-point' demand to the coalition government. The CPN-Maoist believed the existing structural problems of the country, including semi-feudal structure, regional disparity, and oppression of nationalities cannot be solved through reforms under the existing political system, and therefore they waged 'People's War' for establishing a new socialist system by overthrowing the semi-feudal structure of the state.

In 1996, CPN-Maoist launched the 'People's War' under the basis of '40 points' demand on nationalism, political restructure, economic and socio-cultural transformations of the country (Geiser, 2005). To accomplish the 'People's War', CPN-Maoist adopted the strategy to establish the base areas in the rural villages, to eventually surround urban areas and seize the state power. They initially entered remote areas where communities are deprived of all kinds of state-led services and opportunities. Later, they began to attack public institutions, local elites, local educated persons and middle class economy groups and captured the services and resources, and defunct laws and order, social security, markets and aid agencies' engagement (Sharma, 2004).

The ideology-based insurgency stopped in 2005 after the so-called '12 points'² agreement. By then the war had already killed 15,000 people, displaced many thousands, and destroyed people's institutions, collapsed the locally established democratic practices, and destructed basic infrastructures including schools, hospitals and other development endeavours (Robins, 2011). On November 22nd, 2005, a 12-point agreement was signed between the Communist Party of Nepal Maoist (CPN-M) and the Seven Party Alliance (SPA)³ in New Delhi, India to bring the CPN (Maoist) into democratic rule-based political mainstream. Correspondingly, a Comprehensive Peace Agreement (CPA) was endorsed in 2006 between the government of Nepal and the CPN-M on the foundation of dissolving monarchy, holding CA election and drafting Interim Constitution. This was a major ideological shift to bring warring Maoists on board. Vanaik (2008) argues the shift of CPN-M into democratic rule based system was influence of USSR model 'Peristroika'⁴ and 'Glasnost'⁵. Other authors (Breslin, 2007; Gillen, 2011) also point out the neoliberal approach not only helped boom the Chinese and Vietnamese political economy, but also opened an avenue to other socialist movement for their sustainability. This changing discourse led to ideological move of the CPN-Maoist from insurgence struggle to democratic rule based system (Dudouet, 2012). After enforcement and reinforcement of Indian bureau-political pathology, CPN-M with SPA came to conclude the 10-year insurgency into professed peacebuilding process. In addition, an agreement to construct two commissions: Truth and Reconciliation Commission, and Commission to Investigate Forced Disappearances- to set the transitional justice mechanism and hear the victims' concerns and address the issues of human rights violations. Furthermore, these commissions would carry out the prosecution, was agreed look into forced disappearances, forced migrations and the issue of their repatriation.

Nevertheless, voice of the victims and local communities were not properly assimilated in the existing peace building process. The prime reason was non-conceptualization of the peace building efforts. Additionally, all initiatives were preoccupied by the top down apparatus and directed merely by neoliberal viewpoints, which have largely denied the stake of actors beyond the political system and downstream practices and contributions Communities as primary stakeholder of insurgent activities were also not encompassed in the peace building process, methodology and into its logical end. Local Peace Committees (LPC) were formed in each districts and VDCs/municipalities to prevent and reduce the violent activities, conduct the peace dialogues, and reconcile peace initiatives, clear terms of reference and power functions.

Experience indicate that government of Nepal adopted a number of peace building initiatives under neoliberal regime, which extensively denied the community-based initiatives such as locally constituted institutions, norms, values, and ethics, which are primarily known by community governance. Concurrently, community governance is approach to address the existing social and political unrest, and balance the powers and authorities between hierarchy (state), market (competition) and network (clans) (Lowndes & Skelcher, 1998). It fosters the action of governing related to power and performance (Halachmi, 2005); steers a systematic process and rationale structure of liberal minimalism (or representative governance), and associationalism (collective actions, participation and engagement), so that all actors equalize the power functions to reach the collaborative consensus based democratic frameworks (Armstrong, Francis et al., 2005).

In war affected societies, the capabilities of community governance have been reflected in many ways. First, it mediates the opposite ideology based actors to come close to win-win situation and inspires them to engage in power functions and the decision making system. Second, it injects local knowledge, practice and rule of the game in the peace building process. Third, it contributes in possible effective amelioration of poverty, create enabling environment for exclusion mainly in remote areas and marginal communities. Finally, it encourages local communities to be organized into locally constituted organizations, so that they can raise the voices in organized manner (Acharya, 2015).

Against this background, this paper investigates the role of community governance, a community possessed archetype that contributed to shift the insurgency towards peace building process in Nepal.

Peace building process and approaches

In the late 1960s, many nations of the world were unable to provide the basic services due to failure of the market mechanism (Bowles & Gintis, 2002). O'Brien and Penna (2008) argue that institutional crisis is a basic reason of market failure that causes democratic catastrophe, economic vulnerabilities, and obscure the service delivery. Pyakuryal and Suvedi (2000) describe that endogenic and exogenic factors are simultaneously responsible for the onset of poor service system in these nations. To these end, many developing nations tried to transform their policies, and legal provisions in the late 1980s towards good governance through legislative process, as they believed governance enables broader actors such as state, market, civil society and community not

only to be a part of the rules of the game, but enforce them what values are established in a society, such as justice, collective identity, belongingness, trust, and solidarity (deSouza, 2003). In these nations, governance is functioning as art of steering that connects the multiple agencies in a structured system, and builds their relationships to operationalize the power and performance (Cowell & Murdoch, 1999).

In 1997, the UK government formally introduced the term 'community governance' in the development discourse by intermingling the various indigenous practices, rules, norms and values. Community governance is a flexible approach that extends beyond government, to a greater sharing of power between the state, the market and civil society via new network and partnership structures (Acharya, 2015). The purpose of this new discourse was to inspire the “communitarian movement” and accentuate the pluralism of power distribution within local communities and the power of associative with civil space in market-based societies (McCluskey, Stein, Boyle, & McLeod, 2009). In recent periods, community governance has become a powerful instrument of local community that has created opportunities for the involvement of broad-based community partners in the policy process through devices such as people's panels. With this belief, the community governance creates a common ground for community people and institutions through participation, building social capital, and central-local relationships.

In Nepal, the practice of community governance is associated with the notion of dharma (religion) and culture that determine institutional duties, power practices and the governing system (Dahal, 2010). At the grassroots level, there are more than a hundred ethnic groups, traditions, beliefs, and institutions. These have contributed to maintain indigenous democracy, identify and prioritise community needs and activities, manage community contributions in trail repairing, constructing irrigation canals, determining cultural calendar, maintaining rituals and practices, resolving community disputes, enforce informal judiciary practices, and building social cohesiveness (Bellamy, 2009). Some authors claim that the practice of the traditional governance system in Nepal has contributed to preserving social harmony, by shaping social dynamics, social power, and a self-governance system at the grassroots level (Bellamy, 2009). The reluctance of public, inter-government, non-government and donor sectors to incorporate norms of community governance in policies, acts, regulations and guidelines weakened people-led governance. In this regard, participatory efforts have become valuable instruments capable of transforming indigenous governance into a modern form (Dahal, 2010). The major outcome

of community governance in Nepal has been the growth and empowerment of critical masses from excluded communities, such as women, Dalits, and ethnic, religious and regional minorities.

Furthermore, inadequately theorised neoliberal agenda is reluctant to address war debris and emergency relief of community, reunion process of family, community and belonging places; and economic and social rehabilitation. On the other hand, it has rejected to create the enabling environment to the 'social capital system' and 'community self-governing mechanism that exclude the communities to participate in the peace building process (Crocker, 1992). OECD (2008) argues that each and every peace building theories cannot be a blueprint for holistic approach. The changing context of time, location and the relationship between causes and effects to prove any particular theories are appropriate in any one context will remain elusive. Experience points out the wide range of peace building theories in Kosovo did not significantly contribute to prevention of violence due to numerous lapses in articulating the process, maintaining transparency, clarifying the consequences and impacts of peace building process (Dulic, 2007).

In contrast, present discourse demonstrate various concepts and approaches that are closely connected to systematic transmission of insurgency, which involves acquiring skills related to management, awareness of war and conflict modes, war related communications, and establishing a structure for management of war via actions, results, attitude, and organisational setting. In a war affected society, the transformation of insurgency is a procedure of cultivating new situations and new cultures which includes obliging contacts in the middle of adversaries and building up standardized relations between ordinary citizens on both sides of radical gatherings (Bush and Saltarelli, 2000). It keeps up gainful conditions for sustainable social, financial, and political development of all people. In recent years, a new trend has appeared in the discourse on peace and other closely related areas of security and development: a shift from state security to human security. The theory of "endogenous development" focuses on local communities that are regarded not as passive objects of development aid, but rather as active agent of peace building (Oda, 2007). In 1996, the Canadian government started a peace building initiative to enhance the indigenous capacity of a society to manage conflict without violence. In addition, the United Nations also underlined the so-called "Brahimi Report", which focuses on the role of local actors in peace building. "Effective peace building requires active engagement with the local parties, and that engagement should be multidimensional in nature" (Gray, 2001).

In Nepal, contemporary initiatives were also incomplete to address the peace building processes. The principal reason is that peace building process is characterised by horizontal axis of upper layer rather than bottom level inclusivity, resulting in lack of national-local connectivity. In addition, there was absence of 'linking and learning' culture from the local to the national level. In this sense, contemporary peace building practices seem to be rooted in the same false assumption as the various resistances to the impacts of global capital is typically ill mentality of neo-liberalization and virtual death of the Neoliberal Consensus (Pugh, 2005). The major flaw of this system is institutional incapability, vested interest and unholy engagement between aid agencies and state lead actors to resolve internal disputes (Baral, 2006).

Nonetheless, communities of Nepal had a long practice of inclusive resource allocation for benefit to the poor and excluded segments, building social capital, mobilising micro-finance for addressing rural fund crisis, implementing small infrastructure initiatives for immediate relief activities, well practice on local democracy and prominent governance system (Sharma, 2006). These practices proved community governance system as flexible approach extended beyond government uphold justice and equality, which has been widely extended post market failure. During this period, non-profit corporations, cooperatives and credit unions have risen as alternative avenues of the governance agents mainly at the grassroots level to address poverty, ineffective service delivery, and inclusive decision-making process, providing members with adequate bargaining power, ensuring increased economic security, and promoting community self-governing system (Turner, 2012). Examples of the communities exertion, such as Chipko movement (Agarwal, 1992) and Jan Swasthya Abhiyan in India (Campbell, Cornish et al., 2010); the community forestry movement, rural cooperative and Ama Samuhas' movement in Nepal (Khatri-Chhetri, Joshi et al., 2007); the rural credit movement and Swonirvar movement in Bangladesh (Islam, 2005); and the Sarvodaya movement in Srilanka (Candland, 2000) are key community movements that lead to the inclusion of people from marginalized segments of the community.

Blair (2000) recommends that 'communitarian movement' reinforce the community governance that accentuates the pluralism of power distribution within local communities and the power of association with common space in market-based societies from numerous points of view. In the first place, the poor are stimulated to construct their own particular associations and increase support from the state and more extensive common society. Such associations, once composed, can impact the central and local government, private sector, civil

societies, and NGOs to incorporate their priorities in planning, and implementing development programs that consider livelihood security and poverty reduction. Second, it stands as safeguard for effective service delivery through a participative and collaborative manner at the grassroots level (Gaventa, 2004). Third, they play a significant role in addressing inequality, isolation and poverty. Fourth, they foster awareness creation, democratic exercise, and governance practice. At long last, they concentrate on offering 'voice to the voiceless' and clout to the weak (Acharya, 2015). This study proposes few proposals with respect to the operations of a sound peace process at the grassroots' level through community governance.

Methodology

Five VDCs (Panchkule, Purandhara, Bagmare, Shantinagar, and Pawannagar) of Dang district were selected for the study. The study area is located in Inner Terai, some 300 km west of the capital city, Kathmandu. The total population of selected VDCs is 52,012 in which male consisted of 45.75% and female 54.06%. Among the VDCs, Purandhara has the largest number of population (37.37%), followed by Pawannagar (16.71%). The major ethnic population in these VDCs were Kshatry (46.09%), Hill Brahmin (35.73%), Tharu (11.36%), Dalit (Damai, Kami and Sarki - 2.14%), and Magar (1.22%). Muslim, Sanyasi and Others (3.46%). The selected VDCs are characterised by remote, difficult terrain, poor and highly fragile due to the war. Of the total population, a majority are ethnic and disadvantaged. The representation of marginalized groups, such as women, Janajati, Dalit, and Tharu in the business sector was low and only 15% of the woman, and 22% people from Janajati, Dalit, and Tharu were engaged in business sector. A vast majority of businesses are sole proprietorship firms, of which almost 90 % were owned by men.

Both primary and secondary (institutional records such as government policies, government Acts, operational plans and minutes of group meetings) data were collected to accomplish the study. As for unit of analysis, 50 CBO groups were chosen in which 25 Community Forestry User Groups (CFUGs), five from each VDC, and similar amount of Women Development Groups (WDGs) were chosen from 5 VDCs of Dang district. WDGs led socio-economic development exercises at the grass roots level, upheld by national and nearby government and also other advancement accomplices. Overall, the aim of these groups was to advance and promote people's participation in the community development endeavour and to contribute to the existing peace-building process of Nepal from the below.

Five Focus Group Discussions were done in each VDCs in February 2014 to monitor the discussion within a selected group of individuals, and record their views. The rationale for the choice of the FGD was to gain insights into people's experiences concerning community issues, and how individuals and communities were influenced by insurgency war and contributed to peace building process. During FGDs, 25 persons participated in each VDCs comprising chairpersons, managers, secretaries, treasurers and members of CFUGs and WDGs. In addition, representatives from local peace committee, VDC secretaries, and women activists, member from the indigenous group, Dalit activists and teachers from community schools were involved in focus group discussion. Each FGD lasted for approximately 90 minutes. Proceedings were recorded electronically, and later transcribed and presented in a written format.

Correspondingly, in-depth interview was also conducted in March – April 2014 to gather more information. Forty five people from different spheres of society were selected for the interview. For in-depth interviews, executive and general members of different CBO groups, grassroots level local government officials, local leaders of political parties, women activists, and officials in charge of extension service centres, District and VDC level chair of LPC, chief District Officers, Local Development Officers, journalists, civil society leaders, chiefs of line agencies, private sector representatives, development activists, district level NGO operatives, representative of local government associations, and decentralisation activists were brought in. These interviews were designed to gather the opinion and attitude of participants about the contribution of community governance to transmute the insurgency into peacebuilding process.

Both open-ended and open-structured questionnaires were administered for FGD and interviews. Interviews averaged one hour and these were recorded electronically and later transcribed and presented in a written format.

Community initiatives for peacebuilding

Some practices of community-based governance systems were instituted that directly contributed in transmuting the insurgency into peacebuilding process. The Comprehensive Peace Accord 2006 was a landmark to promote local development initiatives, integrate the development programs, specialised functional activities, and scale-up to local economic growth and utilise the local natural resources that shaped the government and communities both for partnership in grassroots actions.

Strengthening community initiatives

In Dang district, both formal and informal community based organizations were constituted and have been operational since 1980s, which were further fuelled by Rapti Integrated Rural Development Project. Later, the facilitation was enlarged by the community forestry programme. In addition, government and non-government agencies, as well as community themselves, were also engaged to constitute the CBOs. During the conflict period, many communities' initiatives emboldened to restore the number of proponents. First, communities developed Vacha Patra (creeds) and thumb rules as guiding principles that enlarged discipline, democracy, and public trust to the communities. The community developed guiding principles to support women and disadvantaged groups to build the confidence and avoid the social discriminations. Equally, many communities localized legal provision and various national and international agreements, such as LSGA, CFUG guidelines, CEDAW and the Civil Code of 1963 at the community level and created space in decision making process as they succeeded in executing the effective positive discrimination policy, 33% women participation in decision making, and 10% Dalit participation in each development committees. Similarly, they enacted 10% budget allocation for the women and deprived groups concerned program from each agencies. Furthermore, they contributed to reduce the structural exclusions such as untouchability, Kamaiya and Kamlari (bound labour) practices; and mainstreamed in the society that led them to be a crucial part of the society, increased the voice of the poor, and promoted social accountability. In order to address the significance of social and political empowerment at the community level, a female member expressed her views that:

After implementation of the women development programme, our behaviours have changed; we gain confidence, social respect and better position. Before, the community was divided into two segments such as touchability vs untouchability, male-female, rich-poor, and son-daughter. Now we are entrepreneur and facilitator; we have skills, knowledge, and resources. Most importantly, we have the confidence and public voice.

Second, they knitted collaborations and networks, institutionalised participatory approach and espoused social accountability. In order to implement such activities, two types of methods were employed. First, this was embedded to 'locality development'. For example, the Chiregar irrigation project provided paid irrigation facility to all households according to their land size. The collected fund was utilized for developing medium-scale cooperative which offered agriculture-related services such as credit, fertilizers, seeds and pesticides to

community members. In this reflection, some communities developed a concept of “Aadharsila” (the foundation), which supported the people, particularly the women, and marginal communities, to involve in community-level decision-making system. Additionally, it supported these groups to participate in the service system that empowered the leadership capacity, increase local ownership, and make them accountable for community need-based projects.

Third, communities institutionalized participatory bottom-up planning process that reduced overlapping and parallel activities, minimizing the duplication of resources and programs, and streamlining the local level planning according to community concerns. This bolstered the confidence, particularly of the women, the poor, and the marginal communities. These positive outcomes enabled them to participate in the planning process, take a greater degree of ownership, tackle the issues and improve services. Further, these results added to change the patron-client relationships from the individual to the community, and upward responsibility to downward accountability. Through this procedure, the voices of communities were heard at the strategy level so that policy makers were committed to define group inviting approaches and techniques.

Finally, frequent meetings and discussions of CBO groups have become instrumental for bringing out deep rooted socio economic issues in surface and helped exploring solutions. Some communities initiated to make open defecation free zone, and others were initiated community saving credit scheme to avert short-term fund crises at the community level. Generally, each member contributed 20 rupees a month of which 10 rupees was for the saving scheme and the other 10 rupees for social welfare activities. Until recently, each group had more than 100,000 rupees as savings. Many participants reported that they had started businesses, and were able to avoid traps of local money lenders that led to decrease the dependency of communities.

Despite such best practices, many communities seemed fragile as they were hassled to go back their governance activities. This led weak capacity and poor performance with respect to security and development. Alongside, vulnerable groups such as the chronically poor, women, or disadvantaged groups in these communities experienced high levels of isolation and suffered dissimilarities. Nevertheless, many cases revealed that where inclusive people’s participation and downward accountability were instituted, unnecessary complexities and the risks of corruption and elite capture were diminished. These were the positive outcome of power and resources sharing, deliberate efforts by community to control their own mission and purpose.

Downward accountability

A robust outcome of the Comprehensive Peace Accord was strengthening downward accountability and answerability of the communities. Communities as strategic development actors at the grass roots levels adopted downward accountability in their roles, responsibilities and actions through acts from the below, performing actions as responsive leaders, maintaining impartiality and neutrality in service delivery, creating enabling environment through policy and regulations, and formulating responsive organisation groups. These processes guaranteed to increase the access in resources and opportunities, involve people in building simple rules and procedures, and remove administrative barriers, and manage systematic monitoring and evaluation.

Empirical findings indicate there were two types of leadership practised. First is the path-breaking or innovative community leadership, which was valuable for the community concerned. Such leaders not only had the willpower, but also the persuasive influence to motivate the community to follow new avenues toward a better, healthier and more secure future for all. The second type of leadership was characterised primarily by responsiveness. Such leaders engaged in raising awareness and tried to create enabling environment to solve the existing problems. At the same time, many communities were organized into a loosely coupled citizen forums to facilitate the local democracy where the local body institutions were absent. In such communities, CBO members are engaged in 'silent revolution' for social transformation process, through institutionalized public hearing and public audit to maintain social harmony, community cooperation, mitigating and eradicating social evils such as open defecation, child marriage, gender based violence, racial discrimination, witch hunt practices and dowry system.

Regardless of such achievements, many actions were operated in isolation and influenced by disharmonised bureaucratic culture and political actions. Post- CPA, GoN engineered a structure of the All-Party Mechanism (APM) to drive the local development. However, APM facilitated to spread a patronage system and captured the political space. Complications of governance such as corruption, lack of accountability, fiduciary risk and financial obscurity were recognized at the grassroots level.

Building social capital

A broad view of social capital is a set of horizontal associations between communities, social networks and existing norms and values, institutional dynamism, governance system and organizational efficiencies that are produced

by communities' long experience. Post-CPA, communities practiced inclusion that created trust and reciprocity between individuals and associations, mainly poor and marginal groups. It provided the communities a bigger voice and wider choice and improved communities' confidence, heightened community participation, enhanced wellbeing and reduced malpractices.

Empirical findings show social capital at the grassroots level involved constructive relations with the communities and creation of networks among the HHs within the community that helped diminish household risk in service mechanism. Thus, communities played significant roles through integration of people in common agenda, collective action in service mechanism, establishment of social harmony, and building trust to communities' actions. These activities supported in rule formulation and breaking down power structures and countering elite capture. These inspired the people to engage in community activities and collective action. Many participants explained that the process from individual to collective action supported a break from the centralised system and opened new opportunities for marginalized sections of the population. One participant declared:

CBOs effort at the community level remains to transform the communities from individual to collectiveness. It focuses on marginal and poor segment of the communities, inclusive leadership, and representativeness in village decision making system and impartiality in political and social actions. Under its leadership, each member is encouraged to participate in identifying their problems, and engage in resolving the problems. This process has enabled grassroots governance at community level.

Additionally, groups created enabling environment to organize the people in groups (association) and inspired them to engage in group activities. These endeavours promoted strong capacity, a positive working culture and defined rules and regulations (*bidhan* and *karya nirdesika*). Experiences show that public access has been increasing in health service, such as growing concern of antenatal and pre-natal caring (PNC), completion of vaccination cycle, polio and vitamin-C, increasing school enrolment and sectoral agencies generated strong alliance between service providers and communities. Correspondingly, the formation of paralegal committees enabled many women's issues to be settled at the village level. People from the same locality were encouraged to organise themselves into groups: A participant's comment shows how CBO activities have resulted in building social capital:

We are the best alternative and resource institution for community development. So far we have contributed in community infrastructure

development and provided small scholarships to poor and marginal groups. These have increased trust among our community members.

Notwithstanding, some factors contributed poor results during the period of insurgency. There were working culture variations, the magnitude of invested time and resources for collaboration, the applied approach (strengths-based), an absence of terms of reference (ToR), rigid funding arrangements; lack of skilled human resources, weak organisational structure, a 'one-size-fits-all' approach to work and overambitious plans, all of which contributed to weakening community capacity.

Reinforcing local democracy

Local democratic practices are embedded with the process of regular and fair leadership selection, equal distribution of power and resources that ensures the participation and marginal segments and high level of civil liberties and autonomy for the association, assembly and arguments. However, insurgency created many obscurities that remained critical for weakening democratic practice at the community level. First, the social transformation forces were captured by combatants. Second, the situation was further devastated due to the lack of peoples' representatives in public institutions that created upward accountability and limited freedom of speech and encouraged power hunger actors to abuse the position of power. Third, manipulation of information obstructed people from sharing their knowledge, views, and ideas with communities. These processes made local democracy of the powerful groups only. The main reasons for the variation in this activity were feudal legacy, a low level of awareness and access, complex legal practice and policies and most importantly, insurgence effect.

Despite such adversity, CPA carried hopes and aspirations of resuming grassroots democracy. Experiences indicate communities cautiously amended two categories of local democratic practice. These were representative democracy (elections, political parties, and elected officials) and participatory democracy (civic engagement, non-governmental and community-based organisations, and consensus-oriented policy making). Although both were highly prominence, which encouraged the people to be involved in the decision-making system directly, experience shows the higher degree of adoption was participatory democracy at the local level that informed the citizens about community issues, provided service more efficiently and facilitated citizen involvement in decision-making. These processes associated mainly in two ways. First, it contributed to remove the barrier of hierarchical power structure. Second, it conferred to establish the community power structure that put the community at the centre

and increase the effectiveness of governance for accessible, equitable, and quality assured service delivery. Additionally, community dialogue, maintaining a community calendar, communicating about policies and programs, providing practical information on service delivery, providing feedback and citizen input and organising local and neighbourhood associations were best outcomes for local democracy.

Additionally, many communities promoted democratic culture and created a platform for negotiations and deliberations. They worked jointly with development agencies, followed instructions and guidance of the social mobilisers, which opened a space to work jointly with sectoral line agencies, local government and NGOs. This shows that local democratic practice strengthened accountability, political skills and service integrity. These outcomes not only inspired community members to organise themselves in groups, but also encouraged them to aware the community on social justice in advocating the right of civil freedom, equal opportunity, fairness and participation in the educational, economic, institutional activities.

Resource mobilisation

Resource is a superlative instrument of every society that measures the effectiveness of service delivery. Communities' roles, performance and behaviour at the grassroots level were determined by the amount of resources, capacity of mobilisation and the management system. Nevertheless, some cases such as absence of efficient coordination and alignment between agencies at national and sub-national levels, centralised 'bottom-up' policy approaches demonstrate the behaviour of the leadership as abnormal or corrupt. On the other hand, threat of the insurgents violated financial disciplines, rules, regulations and policies. Many cases found resources either was captured by insurgents or projects were implemented by non-beneficiary groups and the real users were excluded from the implementation process. Most of the resources were controlled either by politicians, technical or power access government staff or local elites as they used for their individual purposes.

Regardless such convolutions, the communities sustained numerous instituted practices such as field assistant system, integrated village development activities, local-private enterprises, irrigation system approach and Gaun Sallah (village dialogue). CPA assisted the communities to scale up its confidence to gain awareness in generating and managing local resources at the community level, mobilising local resources in community development activities, and increasing community concerns in consolidating resources and sharing them with

development agencies. One participant expressed his view about the mobilization of resources by government and local government at the community level and appreciated community institutions as vehicle of service delivery.

Sanstha le garda Gaun ma Vikas Ayo, Janta Le Kam Payo (Development came to village due to the CBOs and people have jobs).

Some communities were more conscious in developing networks with different agencies, as per memorandum of understanding (MoU) for regular funding support. This enabled the communities to obtain community trust and in turn, those communities were able to change their economic and social behaviour, by establishing community-based enterprises and social actions in two ways. First was local forest resources improvement. Second, it concerned with enhancing livelihoods assets comprise with variety of capitals, such as natural, human, physical, social and financial capital.

Empowerment

Community empowerment process is embedded together with local value and belief systems and help people or groups to gain power and control over their own lives. At the grassroots level, empowerment process is related to a number of activities such as social, political, economic, institutional, and community empowerment. Experience shows social and political empowerment enhanced the community to raise their voice, in creating an enabling environment on many issues. First, the deliberate alliance between local government and community with institutional facilitation contributed in empowering communities. Under this alliance, local community received a regular annual budget from the local government for social empowerment issues. Second, the strategic alliance among the government, non-government and community enhanced local capacity. Much evidence shows that non-government organisations and donors also supported with software packages to foster social mobilisation, awareness raising, advocacy, lobbying, and skill-based income-generating activities, planning and monitoring activities. The following comment of a participant expresses the importance of a social intelligence system:

In order to pay a greater attention to community services, most of the CBO groups have formed the 'Nagarik Sarokar Samiti' (Citizen Concerned Groups) to investigate the realities of public services' misuse and circulate information to the people and encourage them for necessary actions.

Likewise, institutional empowerment shows organisational transformation process from a conventional to a new system, inclusive management facilities,

implementation procedures, working culture and public responses are highly imperative for the empowerment activities. The establishment of horizontal and vertical linkages and networking, developing institutional vision, mission, policy and guidelines, breaking of the top-down command system, preparation of citizen charter for effective delivery of annual programs, resources, and decisions and evaluation of activities and regular audit system made communities more responsive and accountable.

Despite these, unequal power sharing, exclusion, poverty, illiteracy, injustice and discrimination esteemed people to be restless. Although communities conducted various awareness campaigns as tools to raise awareness of social and political rights, marginalized communities problems in political, social, and economic transformation. To address ambiguities and empower communities economically, socially and politically, several communities developed their skills on settling conflict and disputes, fair share resource allocation and mobilisation, advancement of negotiation skills and confidence to mediate the conflicting parties, and enlarge social cohesiveness that contributed in shifting the insurgency to peace building process.

Transparency and accountability

An instant outcome of transparency and accountability improved responsiveness of local communities, sharing and verifying the actions, and most importantly, it increased public's rights to information in service mechanism. Some tangible results through score cards for public services, involvement of local independent media (FM radio and local newspaper), social audits and the public hearing system increased effectiveness in community service system. In communities, they established a social intelligence system for improving transparency and accountability. The social intelligence system worked as a surveillance process of community actions. At the community level, the concept of a social intelligence system has been maturing due to its interactive nature. Many people in the community put their trust in this organised community-based watch dog group because the functions of this entity were more reliable, trustworthy and were community-owned. It involved accurate identification of the status and progress of activities, suppression and delays.

However, the rate of adoption was lower in some groups. The main reason of this reluctance on the social intelligence system was misuse of economic resources, manipulation of information, and engagement culture between group leaders and development partners. Some cases found the lower participation of groups and their unwillingness to hold regular meetings and conduct public

and social audit programs show poor community governance. In addition, some communities misused significant resources and power at the community level. Leadership in almost all communities was highly influenced by nepotism, cronyism and favouritism.

Nevertheless, public concern shows people were highly conscious to the information, communication, and education of the service delivery system. Many communities formed Nagarik Sarokar Samiti (Citizen Concerned Groups) to investigate the strengths and weakness of service system. The Samiti generally checked actions, collected public responses, and followed the existing rules and regulations. Their involvement made it possible to access the information, reducing theft, resource misuse and manipulation in work. The information further points out the roles of Samiti in improving community-managed schools, drinking water schemes, and watershed conservation practices.

Institutionalization of community governance for peace initiatives

In Nepal, CPN-Maoist escalated insurgency on the foundation of structural (economic and social) and geographic dynamics. Equally they highlighted economic and social transformation agenda. They educated people about the proletariat doctrine and accelerate the ambition of the people, socially and economically deprived and unemployed youth. Under these attainments, they built strategy into three phases. First, they adopted defensive policy and extended political organisation entire the country. Second, they built strong organisation across the country and took offensive policy that begun to attack police security posts and government structures at the village centres. Third, they become robust in organisational and armed structures. A major achievement of CPN-Maoist was attack at Dang district headquarters in 2001 where they were able to capture strategic materials, including long-range and short-course weapons. This success led transmuting of Maoist agenda from socio-economic transformation to regime capture, priority concentrated on resources collection and strengthening combatants. Furthermore, numerous human rights violations such as death penalty, shram sibir (labour camp), jan adalat (people's court), kidnapping, extortion, illegal land grabbing, forced economic contribution and physical property capture were enforced that led to the lost of trust in communities.

However, an oscillation in functional strategy began in 2002. A central committee meeting was held in October 2005 in Chunbang of Western hill, where some central committee members argued with major functional strategy of CPN-M as

they decided to align with the parliamentary parties to establish a republican set up in the country. Both groups (hardliners and soft-liners) criticised each other and alleged deviating from major ideology of CPN-M. Among other things, a tiny group (mainly minority) of CPN-M appraised all actions, strategic direction and behaviours of leadership. They concluded that the movement was going in the wrong course that needed a safe-landing.

In 2006, the CPN-M consented to end the war under the framework of the Comprehensive Peace Agreement. It allowed the United Nations Mission in Nepal (UNMIN) to bolster the peace process in Nepal. On 23 January 2007, UNMIN was sanctioned by the United Nations Security Council Resolution 1740, with a mandate to monitor the management of arms and furnished staff of Nepal Army and the Maoist armed force, in accordance with the Comprehensive Peace Agreement. Initially, UNMIN neglected to watch, persuade, adjust and organize adequately to help the parties.

In Nepal, the demand for CA was ongoing before the movement against Rana Regime in 1950. The first CA election was held in April, 2008. However, the CA failed to deliver a new constitution and was dissolved in 2012 and announced second CA election. The prime reasons were dispute between single-ethnic-based identity and multi-ethnic-based identity in the federal states. That created public frustration and gradually lost ethnic harmony, national integrity and the feeling of national unity. However, the power-equation changed after the second CA held in November 2013. With a greater effort of majority political parties (excluding some Pro-Indian Madheshi parties), the Constitution Assembly declared new Constitution in September 2015 with the presence of 89% CA members. However, 13 elected CA members and some Proportional Representation (PR) members of Pro Indian Madheshi parties created ambiguities to implement the Constitution. Apparently, CPN-M stimulated unemployed, frustrated and uneducated youth from remote places. The CPN-M forced people to be organized as combatants and provided salary and other logistic support to the families.

In addition, CPN-M wrongly assured the combatants that they would be unified with the Army and hold significant positions. In the course of peacebuilding process, PLAs were settled into a number of cantonments. Some political parties and actors took this process as an opportunity to push the Maoists into democratic mainstream and get rid of their armies before promulgation of the new constitution. However, scenario was changed after signature of the political parties 'seven-point'⁶ agreement to conclude the peace process. The

agreed seven-point did not address the expectations of the combatants, nor were they in line with what the Maoist leadership had promised. Consequently, few were integrated into Nepali Army and a large number of them with retired small amount of retirement fund. Additionally, many injured combatants, women combatants with offspring and disqualified combatants were excluded. The state restructuring was primary agenda of peacebuilding process, which was directly associated with political re-imagination of the state as per the spirit of the time. It primarily hinges on three organs of the state - the judiciary, legislature and the executive body. It deals with how best all the three organs of the state can be made more representative and pro-public so that more and more citizens are collectively taken into the institutional life of the state and no group/caste/ethnicity/religion is left behind. The state restructuring agenda in Nepal was colored with ethnic flavor. According to Upreti (2014), restructuring of state the basis of ethnic identity will not only weaken national identity, but also political existence comes under threat. It will allow only dominant ethnic groups to rule over others, which would create first class and second class citizens.

Nepali community is broadly classified into three segments: Pahadiya Khas, Indigenous Ethnic, and Madheshi. Some ethnic and Madheshi campaigners raised the issue that indigenous ethnic, and Madheshi communities were suppressed, oppressed and depressed by Pahadiya Khas for nearly 300 years. After completion of CPA between Government of Nepal and CPN-M, it opened up a number of opportunities, mainly those communities which were excluded with services and opportunities. In 2006, Madheshi and indigenous ethnic communities upsurged their voice and claimed equal opportunities as Pahadiya Khas on the basis of inclusion. In 2006, an interim Constitution was promulgated that guaranteed the rights of minorities on the basis of reservation in political, administrative, security forces, development projects, and economic and social aspect of life. Despite these situation, Pahadiya Khas argued against unfair reservation policies and inclusive legal procedures. Additionally, unnecessary imposition of donor and landslide entry of disqualified candidates created obscurities in structure and functions of the state system.

In 2013, the CA election was held second time to promulgate the Constitution because of failure first Constitution Assembly. A greater consensus was made by several protest groups, and countless public pressure and broad stakeholder participation enforced government to declare the constitution. Finally, Nepal proclaimed a progressive, inclusive, and applicable Constitution in September 2015. Initially, people from all strata of society and geography welcomed the

new Constitution. Later, Indian pressure to Madheshi leaders opposing the Constitution disrupted Nepali life style and economy. In state restructuring process, political decision as well as experience of people's representatives, recommended 7 federal states. Madheshi leaders with Indian prescription wanted all Madhesh in one state from east to west. Madheshi leaders and cadres announced endless strike, including blocking Indian entry points and forcing people to participate in strike. However, the movement could not achieve any significant success and public outrage against Indian blockade peaked.

Although the CPA was structured to reach to a logical end of insurgency war where peace discourse and practices were influenced by same falsification Western neoliberalization. Experience indicates that the peacebuilding process of Nepal, including peace dialogue, peace agreement, CA election, army integration, Constitution promulgation and state restructuring were held by few senior leaders of certain political parties, while the whole Constitution Assembly was in isolation and peoples' representatives were engaged as only rubber stamp. These actions created ambiguities and triggered institutional deficiency in peace process, lack of ownership in constitution building process, and continuation of exclusion in state restructuring. Many post-conflict societies believe that durable peace can only be achieved through inclusive actions and appreciate locally owned practices. In such context, communities as neutral agent emerged as alternative for peace dialogue that can ensure partnerships, promote empowerment and autonomy, create ownership, confirm the rule of law, and safeguard peacebuilding process through solidarity and associations.

Conclusion

In 2006, a major exertion was made to stifle the insurrection by different people, lawmakers, societal activists, statespersons and universal boards. A common consensus was built to abolish the monarchical framework and conduct an election of a Constitutional Assembly to draft and an inclusive constitution. Be that as it may, the peace-building procedure couldn't add to the organized framework and the nation couldn't change from traditional framework.

In Nepal, communities have assumed an important part in kickstarting various discourse in grassroot level. The constitution is a noteworthy benchmark to regulate the peace process in Nepal that guarantees basic human rights, multi-party system, supremacy of the people, rule of law, social equity and fairness. Notwithstanding the protected instrument, the quantities of strategies were changed to organize the devolution as a type of half and half decentralization,

inclusivity, fairness and rights-based methodology and administration. These added to lawful and regulatory structures and made a space for peace-building processes. Be that as it may, the effect of the uprising was profoundly established at the grassroots level, which controlled not just communities' versatility, and social collaborations, it additionally influenced individuals' sentiment security in general.

Community governance in the peace-building process concentrates on responsibility of the group in settling inner debate. Considering grassroots encounters, this study recommends that significant segments of group administration can't be dispensed unless more prominent activities of peacebuilding are initiated at the national level.

Notes

- 1 The 40-point demands put forward by the United People's Front (UPF) have the core content of the People's War in Nepal, which are divided into three parts, viz. nationality, democracy, and people's livelihood.
- 2 12-Point Understanding Concluded between the Seven Political Parties and the Communist Party of Nepal (Maoist).
- 3 SPA includes seven political parties- recently unified Nepali Congress (NC) and Nepali Congress (Democratic), Communist Party of Nepal Unified Marxist-Leninist (CPN-UML), Communist Party of Nepal (Maoist), Nepal Sadhavana Party (Anandi Devi), Smayukta Jana Morcha Nepal (SJN), Nepal Workers and Peasants Party (NeWPP) and United Left Front (ULF).
- 4 'Perestroika' refers to the reconstruction of the political and economic system where people participate in the democratic exercise and argue to the government weaknesses. Similarly, it focuses on de-monopolization and some semi-private businesses to function, and promoted market competition. Unfortunately, such an economy took time to thrive, and people found themselves stuck in a worn-out economy, which led to long-lines, strikes, and civil unrest.
- 5 "Glasnost" promoted "openness" through social and political reforms to bestow more rights and freedoms. Its goals were to include more people in the political process through freedom of expression. This led to expose news of government corruption and the depressed condition of the Soviet people. Glasnost also permitted criticism of government officials, encouraging more social freedoms like those that Western societies had already provided.
- 6 The Communist Party of Nepal-Unified Marxist Leninist (CPN-UML) on February 3, 2011 signed an agreement with the Unified Communist Party of Nepal-Maoist (UCPN-M) to get its support in the prime ministerial election and to end the seven month-old deadlock.

Reference

- Acharya, K.K., (2015). Community Governance and Peacebuilding in Nepal. *Rural Society*, 24(1): 65-84. doi: 10.1080/10371656.2014.1001477.
- Adhikari, B. (2004). *Building Capacity of National Human Rights Institutions: The Case of Nepal*. Kathmandu: Right to Education Foundation.
- Agarwal, B. (1992). The Gender and Environment Debate: Lessons from India. *Feminist Studies*, 18(1): 119-158. doi: 10.2307/3178217.
- Armstrong, E. (2005). *Integrity, transparency and accountability in public administration: Recent trends, regional and international developments and emerging issues*. Retrived from: <http://unpan1.un.org/intradoc/groups/public/documents/un/unpan020955.pdf>, 11th July, 2016.
- Baral, L. R. (2006). *Nepal: Quest for participatory democracy*. New Delhi. Adroit Publishers.
- Bellamy, B. (2009). *Tradition in transition: Tharu traditional governing system in post-conflict Nepal*. ISP Collection: SIT Study Abroad, Paper 798. SIT Graduate Institute/ SIT Study Abroad, Retrived from: http://digitalcollections.sit.edu/isp_collection/798, 19th July 2015.
- Blair, H. (2000). Participation and accountability at the periphery: Democratic local governance in six countries. *World Development*, 28(1), 21–39. doi: 10.1016/S0305-750X(99)00109-6.
- Boege, V. (2007). *Traditional Approaches to Conflict Transformation: Potentials and Limits*. Australian Centre for Peace and Conflict Studies (ACPACS). Brisbane. University of Queensland.
- Bowles, S., & Gintis, H. (2002). Social capital and community governance. *The Economic Journal*, 112(483), 419-436. doi: 10.1111/1468-0297.00077.
- Breslin, S. (2007). *China and the global political economy*. Palgrave Macmillan Basingstoke.
- Bush, K. D., & Saltarelli, D. (2000). *The two faces of education in ethnic conflict: Towards a Peacebuilding Education for Children*. UNICEF Innocenti Research Centre.
- Campbell, C., Cornish, F., Gibbs, A., Scott, K. (2010). Heeding the Push from Below: How Do Social Movements Persuade the Rich to Listen to the Poor? *Journal of Health Psychology*. 15(7) 962-971. doi: 10.1177/1359105310372815.
- Candland, C. (2000). Faith as social capital: Religion and Community Development in Southern Asia. *Policy Sciences*, 33(3), 355-374. doi: 10.1023/A:1004857811117.
- Chandler, D. (2002). *Faking democracy*. London: Pluto Press.
- Cowell R., & Murdoch, J. (1999). Land use and the limits to (Regional) Governance: Some lessons from Planning for Housing and Minerals in England. *International Journal of Urban and Regional Research*, 23(4), 654–669. doi: 10.1111/1468-2427.00221.
- Crocker, D.A. (1992). 'Functioning and capacity: The foundations of Sen's and Nussbaum's development ethic.' *Political Theory*, 20 (4):584-612. doi: 10.1177/0090591792020004003.
- Dahal, D.R. (2010). Post-Conflict Peace-Building in Nepal: A Perspective from Civil Society. *Nepalese Journal of Public Policy and Governance*, (24)3, 1-14.

- DeSouza, P. R. (2003). The Struggle for Local Government: Indian democracy's New Phase. *Publius: The Journal of Federalism*, 33(4), 99. doi: 10.1093/oxfordjournals.pubjof.a005015.
- Dudouet, V. (2012). Intra-Party Dynamics and the Political Transformation of Non-State Armed Groups. *International Journal of Conflict and Violence*, 6(1), 96-108.
- Dulic, D. (2007). Peace Building and Human Security: Kosovo Case. *Governance*, 13(3): 1-14.
- Gaventa, J. (2004). Towards participatory governance: Assessing the transformative possibilities. In S. Hickey & G. Mohan (Eds.), *Participation: From tyranny to transformation?: Exploring new approaches to participation in development* (pp. 25-39). London: Zed Books.
- Geiser, A. (2005). *Social Exclusion and Conflict Transformation in Nepal: Women, Dalit and Ethnic Groups*. Bern, Swiss Peace Foundation.
- Gillen, J. (2011). A battle worth winning: The service of culture to the Communist Party of Vietnam in the contemporary era. *Political Geography*, 30(5), 272-281. doi: 10.1016/j.polgeo.2011.05.001.
- Gray, C. (2001). Peacekeeping after the Brahimi Report: Is there a Crisis of Credibility for the UN? *Journal of Conflict and Security Law*, 6(2), 267-288. doi: 10.1093/jcsl/6.2.267.
- Halachmi, A. (2005). Governance and risk management: challenges and public productivity. *International Journal of Public Sector Management*, 18(4), 300-317. doi: <http://dx.doi.org/10.1108/09513550510599238>.
- Islam, R. (2005). Bureaucracy and administrative development in Bangladesh and Nigeria: A comparative analysis. *International Journal of Public Administration* 28(11-12): 1009-1030. doi: 10.1080/01900690500241051.
- Khatri-Chhetri, A., Joshi, N. M., & Maharjan, K. L. (2007). Intervention on livelihood management through community-based organizations: Evidence from rural Nepal. *Journal of International Development and Cooperation*, 13(1), 187-208.
- Lowndes, V., & Skelcher, C. (1998). The dynamics of multi-organizational partnerships: an analysis of changing modes of governance. *Public Administration*, 76(2), 313-333.
- McCluskey, M., Stein, S. E., Boyle, M. P., & McLeod, D. M. (2009). Community structure and social protest: Influences on newspaper coverage. *Mass Communication and Society*, 12(3), 353-371. doi: 10.1080/15205430802478685.
- O'Brien and Penna. (2007). Social exclusion in Europe: some conceptual issues. *International Journal of Social Welfare*, 17(1), 84-92. doi: 10.1111/j.1468-2397.2006.00478.x.
- Oda, H. (2007). Peacebuilding from Below: Theoretical and Methodological Considerations toward an Anthropological Study on Peace. *Journal of the Graduate School of Letters*, 2, 1-16.
- OECD (2008). *Guidance on Evaluating Conflict Prevention and Peacebuilding Activities*. Paris: OECD

- Pugh, M. (2005). The Political Economy of Peacebuilding: A Critical Theory Perspective. *International Journal of Peace Studies* 10(2), 23-42. doi:10.15355/epsj.8.2.26.
- Pyakuryal, K., & Suvedi, M. (2000). *Understanding Nepal's Development: Context, Interventions and People's Aspirations* (pp. 1-125). East Lansing: Michigan State University.
- Rahman, S. H., Khatri, S. K., & Brunner, H.P. (2012). *Regional Integration and Economic Development in South Asia*. Massachusetts: Edward Elgar.
- Ricigliano, R. (2003). Networks of Effective Action: Implementing an Integrated Approach to Peacebuilding. *Security Dialogue*, 34, 445-462. doi:10.1177/0967010603344005.
- Robins, S. (2011). Towards victim-centred transitional justice: understanding the needs of families of the disappeared in post conflict Nepal. *International Journal of Transitional Justice*. 5 (1):75-98. doi: 10.1093/ijtj/ijtq027.
- Robinson, W. & Harris, J. (2000). Towards A Global Ruling Class? Globalization and the Transnational Capitalist Class, *Science & Society*. 64(1). 11-54.
- Rocha, A. M., & Kilpatrick, K. (2005). Towards more effective peace building: a conversation with Roland Paris. *Development in Practice*, 15(6), 767-777. doi: 10.1080/09614520500296666.
- Rotberg, R. I. (2004). The Failure and Collapse of Nation-States: Breakdown, Prevention, and Repair. In R. I. Rotberg (Ed.), *When States Fail: Causes and Consequences* (pp. 1-49). New Jersey: Princeton University Press.
- Sharma, K. (2006). The Political Economy of Insurgency in Nepal. *World Development*. 34 (7): 1237-1253. doi: 10.1016/j.worlddev.2005.12.001.
- Sharma, P. R. (2004). *The state and society in Nepal: historical foundations and contemporary trends*. Kathmandu: Himal Books.
- Turner, M. (2012). 'Decentralization, Politics and Service Delivery.' *Public Management Review*, 14 (2):197-215. doi: 10.1080/14719037.2012.657960.
- Upreti, B. R. (2014). Nationalism and Militarization in Nepal: Reactive Response or Long-Term Phenomenon? *Asian Journal of Peacebuilding*. 2(2): 217-239. doi: 10.1080/00472336.2013.868022.
- Vanaik, A. (2008). New Himalayan Republic. *New Left Review*, 49, 47-75.



Nepal's national dialogue: What worked and what did not

Bishnu Sapkota

Background

Ten years from the signing of the Comprehensive Peace Accord (CPA) is a good occasion to reflect and analyze on what worked and what did not in Nepal's national dialogue. Was Nepal's peace process a structured one? Does Nepal's dialogue qualify to be called a dialogue in the proper sense of the word? Did Nepal's dialogue incorporate features from other peace processes that were supposed to be effective? How did it work? These are some of the questions this essay will try to answer. The answers will be both analytical and reflective as the author was involved in managing peace process support programs in various capacities right from 2003 when a second round of failed dialogue had taken place between the government and the Maoists.

Nature of early talks

The first peace talks that took place during the ten-year insurgency (1996-2006) was in 2001. The brief ceasefire was big respite from the escalating violence, the course of talks could bring about some hope in people for peace. However, other than that, the dialogue process was not structured in a proper way. For instance, there were two well-respected civil society leaders (former politicians) nominated as facilitators. But they did not have any facilitation role for the talks except being witnesses to the process. There was no documentation of the discussions, and there was no secretariat for the dialogue. Although the talks had begun, there was deep mutual distrust. Therefore, as one of the facilitators, Mr. Padma Ratna Tuladhar put it, "They were more like talks about talks, rather than them being a dialogue" (Tuladhar, Kathmandu 2016). The second round of dialogue (2003) was more structured compared to the first one. There were written agenda points shared by the negotiating teams of both sides, hence they had made formal presentations on their positions on the agendas. The

effectiveness of the ceasefire was monitored, the dialogue continued even when the change of prime minister took place. However, there was no structural mechanism to collect people's feedback for the negotiations.

The peace talks of different rounds between 2001 and 2004 were strategic in nature for both sides. The Maoists were using the talks to show to the general civil society and international community that they welcome a peaceful solution to their insurgency. To the successive governments formed during these periods, a similar strategy was a dominant factor. Since establishing peace had now become a major national agenda, every government was pressured to make it a priority to initiate whatever process was possible to begin dialogue with the Maoists. The temporary ceasefires and talks provided the Maoists a good space to interact with civil society and intellectually to communicate their positions and issues. They could also reorganize their guerilla force while they used the initiative to earn legitimacy and recognition internationally.

In hindsight, although there were those talks taking place, the situation was not ripe for a genuine dialogue. Because a bottom line demand of the Maoists was election of a Constituent Assembly to write a new constitution, which could be a republican one. When the powerful monarchy was the decisive institution during those years, any dialogue was bound to fail. No prime minister had the mandate to negotiate to write a new constitution. The dialogues of those periods were thus temporary respites from violence, if not more. When King Gyanendra staged a coup to take over absolute power in February 2005, a new dynamic was created that brought the mainstream political parties and Maoists together for a strategic alignment to get rid of the monarchy and initiate a peace process. Time was now ripe for a genuine dialogue.

National peace process

The comprehensive peace process was launched in Nepal after the success of the second People's Movement in April 2006. The mainstream democratic political parties and the Maoists took more than six months to sign the CPA in November 2006. There was already a broad "pro-change" mandate given by the joint People's Movement. That mandate was to end Nepal's violent insurgency through a peaceful dialogue, Maoists would accept multi-party democratic polity, and the other parties would be ready to get away with the absolute monarchy, and write a new constitution through a directly elected Constituent Assembly. There were some good early foundations for the national dialogue process to start. A code of conduct was developed for the monitoring of ceasefire, an

interim constitution was negotiated to replace the old, an interim parliament was reformulated to bring in the Maoists into the structure, and a coalition government was formed between the Seven Party alliance and the Maoists. This all led to the signing of the CPA without any major obstacles. However, once the CPA was signed, its implementation was slowed, and some of the key elements of the peace process took longer than expected to be resolved for lack of a structured dialogue process. Because of which, the peace process has not been completed yet, with the transitional justice and issue of forced disappearances still being dealt through the two commissions.

Role of facilitation

Nepal's peace process had facilitators but there was no facilitation. Daman Nath Dhungana and Padma Ratna Tuladhar were accepted as facilitators in the earlier rounds of peace processes in 2001-2004. However, although they were called facilitators, their role was more of a witness to the process than that of a facilitator. The two "facilitators", and three more, namely Dr. Devendra Raj Pandey, Laxman Aryal and Dr. Mathura Shrestha were nominated as "observers" to the peace process that was implemented through the signing of the CPA. The term "observer" was more realistic than the word "facilitator" for their actual role during the process. The presence of senior civil society personalities as facilitators-observers brought in a big value to the process. It helped in giving legitimacy to whatever was negotiated between the two parties. The civil society personalities represented some of broader people's concerns which could be communicated directly to the negotiation tables occasionally, and as and when needed. It also helped in giving a positive message to the watching international community that Nepal's actors were leading the peace process in a legitimate way. However, it was the parties themselves who managed the process.

Peace secretariat

The evolution of the Peace Secretariat dates to 2003. The original mandate of the secretariat was to host the peace dialogue, and provide a secretariat to the whole process. The formation of the Secretariat was one of the positive aspects of Nepal's dialogue. The Secretariat became the venue to host the dialogue most of the times as a common and neutral venue. The staff of the Secretariat could take care of the logistic arrangements for any preparation and conduct of dialogue. The Secretary of the institution directly reported to the Chief Secretary, who was the secretary of the cabinet. In this way, the Secretariat was directly under the prime minister's office, and was a good design. However, when

the peace process began to expand with the management of the former Maoist combatants and reconstruction of the damaged properties and structures during the insurgency, the major political parties “upgraded” the Peace Secretariat as a Ministry of Peace and Reconstruction (MoPR). While the MoPR carried out and oversaw several important works of peace process, the political parties took it as a substitute for High Level Peace and Reconstruction Commission. Structurally, unlike a commission, the ministry could never become inclusive because it was bound to be led by a minister belonging to a political party. Whereas the commission could have respectable civil society members and experts to serve as a body to oversee and monitor the implementation of the peace process. Due to the absence of an inclusive commission, the Local Peace Committees (LPCs) were in practice under the ministry. As they were under the ministry, they could not play the role of an autonomous local peace body as they were envisioned to be. In sum, while the formation of the Peace Secretariat was a good beginning, the lack of political will to form an inclusive high level peace commission was a weak aspect of the process.

National dialogue: How the process worked

On April 28, the leader of Seven Party Alliance Mr. Girija Prasad Koirala became prime minister after the king surrendered to the People’s Movement. The restored parliament declared to go for an election of Constituent Assembly to write a new constitution. The Maoists and the government had both declared a ceasefire to initiate the process of dialogue. On 10 May 2006, the CPN-Maoist announced a negotiation team under the leadership of Mr. Krishna Bahadur Mahara with Mr. Dina Nath Sharma and Mr. Dev Gurung as members. On 19 May, the government formed its negotiation team under home minister Mr. Krishna Prasad Sitaula, with two other ministers Mr. Pradeep Gyawali and Mr. Ramesh Lekhak as members. This was the formal beginning of the 2006 national dialogue leading to the restoration of peace.

The key political negotiations and understanding took place between top leaders of Nepali Congress and the Maoists. The CPN-UML, the second largest party after the Congress, was very much part of the process but on some key political agenda, the UML was not consulted. The UML had made its dissatisfaction public on occasions, as an example of it not being fully on board with every negotiation. For instance, in the restored parliament, the UML had 83 seats, a few lower than Congress’. NC president agreed to give the Maoists a similar 83 seats strength in the interim parliament, to make them at par with the UML, about which the latter was extremely unhappy. But on other key aspects of the

peace process, including on the content of the CPA, the Seven Party Alliance led by Koirala, was fully on board. With the political arrangements of restoring the parliament through the movement, formation of an interim parliament with the Maoists entering it with 83 seats, forming an interim government also with Maoists on board, and a negotiation to write an interim constitution until an elected Constituent Assembly would write a new constitution, the CPA was signed on November 21, 2006.

The CPA is an internationally standard peace agreement, with a set of comprehensive features on it to not only end the violent conflict but also to initiate a socio-economic reform process (Comprehensive Peace Accord, 2006). Its provisions to form high level Peace and Rehabilitation Commission, Truth and Reconciliation Commission, Commission on Disappearances, among others, are important aspects of the agreement. At the moment of signing, when there was the euphoria of the launch of the peace process, it did not sound like an ambitious agreement. However, the slow pace in implementation of many of its key aspects, the lack of political will to form a transitional justice instruments in time and the political dishonesty to address the socio-economic change agenda, including land reform, have been weaknesses of the Nepali peace process.

Nature of dialogue and agreements

For the top and senior-level political leaderships, peace process meant ending of violence, and Maoists' entering a multi-party democratic process, while getting rid of the monarchy. While this was all true, there was no serious discussion about different key issues of peace process signed in the CPA. When the trust level was high among top leaders at the beginning, they thought every detail would be resolved easily and quickly. However, since those issues were not thought through and internalized even by the top, there was resistance and dissatisfaction within the respective political party constituencies in the later phases. The negotiation teams would try to work out on everything that was possible at their levels. Whenever matters got complicated, they would refer to the party bosses, and to Koirala and Prachanda in most cases. However, the process was not participatory even within the parties.

The five civil society "icons" were involved as observers of the dialogue as discussed above, however even those five were not consulted for their opinions on the content of the CPA and other processes. The larger civil society was not consulted either. Several key informal understandings were not documented and signed by concerned leaders. When the trust was low or there was disagreement

on one key issue, there would be distrust and disagreement on all other issues despite the earlier understandings, as such understandings were not properly documented. This resulted in moments when the Maoists pulled out of interim government twice before finally agreeing for the CA election date. Therefore, the CA election was postponed twice, delaying the whole process with costs that are still paid by the country.

The Comprehensive Peace Agreement and the Agreement of the Monitoring and Management of the Arms and Armies (AMMAA) were the two most important agreements in addition to several small understandings and agreement reached in this negotiation process. However, they have not been fully implemented yet. Even those aspects that were implemented, it was done much too late on many key issues. Many of the agreements and understandings were less relevant and not suitable to be implement (as they were self-contradictory and mutually exclusive), but still they were deliberately signed simply to avoid violence on the day and to continue with the major tasks obstructed from the protests and opposition. Implementation of some of these agreements were not practically feasible and some of them even lacked a political will.

Weaknesses of the process

While Nepal's peace process is one of the successful ones globally for all the achievements it has made, it has had some critical flaws too (Peace Accords Matrix, Kroc Institute, 2016). Its successes are it has could largely transform the armed conflict into a peaceful democratic mainstream, managed the arms and army of the rebels, wrote a new constitution and adopted major political changes like republicanism, secularism and federalism. But among its serious flaws, it has not been able to address the issue of transitions justice in a satisfactory way. A Truth and Reconciliation Commission, and Commission on Investigation of Forced Disappearances have been formed. But they were formed nine years after the CPA was signed, the truth commission's mandate has not been as per the international standards, and for the same reason not fully acceptable to a wide section of human rights community and the United Nations. Besides, it's still a long to go for them to address the transitional justice issues in a satisfactory way. The major political parties did not agree to form a neutral or inclusive high level peace process monitoring mechanism as envisaged in the CPA. As of result of this, there were issues on interpretation of certain clauses of some peace agreements, and the whole political transition was stuck for years over the debate on sequencing of events. As an example, the Maoists did not agree to manage their arms and army for a long time without finalizing a new constitution through

the Constituent Assembly. The first Constituent Assembly was a hung parliament like the second one. But the first one was dissolved without giving a constitution even after extending its tenure from two years to four. The second CA has given the country a new constitution. However, it has not been able to satisfy the ethnic Madhesi and some sections of the Janajati populations. Because the transition was protracted, newer issues came to the fore, and the political parties most often have been stuck and overwhelmed with power-sharing priorities at the cost of delay in addressing key issues of transition.

Conclusion

Nepal's national dialogue offers some interesting dynamics and insights for a comparative view to look at peace processes globally. On the one hand, it was informed by other peace processes and their successes and failures. On the other, it has its own uniqueness and genius. The CPA is a reflection of how it was informed by other peace processes. It has provisions to address transitional justice, and other mechanisms as would have been standard in any other process. However, much of what would be implemented later depended on the political will and strategic interests of the few powerful parties, internal as well as external, of the process.

Sequencing of the peace process provisions turned out to be a key challenge in Nepal's dialogue process. The "tacit" understanding between the two powerful signatories of the CPA- Girija Prasad Koirala and Pushpa Kamal Dahal "Prachanda"- on the number of Maoist combatants to be integrated into national security forces was the trickiest of all. Although they finally agreed to integrate 6500 out of the verified 19000 combatants, it took more than half the life of the first four year Constituent Assembly because the Maoists did not want to conclude the integration before finalizing the content of the constitution. It may be noted here that only 1400 combatants opted to join the Nepal Army ultimately and the constitution was promulgated only through a second Constituent Assembly. This sequencing was intricately linked with power-sharing ups and downs that took place during those fateful years post-CPA.

Nepal's dialogue negotiated a CPA that had most of necessary elements on it but the dialogues showed a serious lack of proper attention on or lack of realization of the value of the structures and mechanisms to implement the peace process. Most of the times the dialogue team members were overwhelmed with political negotiation on "big" issues like constitution or integration of the combatants. As a result, or at the same time, they were not able to work on the details of

the transitional mechanisms agreed during the negotiations. While looking at the nature of the dialogue, the parties agreed on establishing these mechanisms without neither internalizing the value of those mechanisms nor having a political will to implement them. In sum, the dialogue as such was structured. However, there was no structure to monitor what was implemented and what was not. Nor was there any independent mechanism to watch who was faulting at implementing what clause of the agreement. The facilitators' roles could have been made more effective and structured. There was also no mechanism to communicate to the public whenever there were important decisions made at the negotiations table or at the top leaderships level. This would have made the process more transparent. Because the process was not transparent and participatory, and was top-led, those who do not agree with some of the pro-change agenda have always found it easy to blame on some conspiracy hatched by outsiders, including on the major agenda of federalism and secularism. If the dialogue had been more effectively organized, and the dialogue secretariat made more efficient, it would have helped in ensuring a wider ownership of the process by the people, and it would have been easier to implement the new constitution.

Notes

1. CPA text was refereed from Peace Accord Matrix (PAM). <https://peaceaccords.nd.edu/accord/comprehensive-peace-agreement>
2. Padma Ratna Tuladhar was interviewed on 15 January, 2016 at NTTP Secretariat, Kathmandu, Nepal.
3. This article draws some information from "A Study on National Dialogue in Nepal" co-authored by the author and Dr. Bishnu Upreti for National Dialogue Handbook, which is being published by Berghof Foundation in November 2016.



Dev Gurung
Leader, CPN (Maoist Center)

How do you evaluate ten years of peace process?

It has not been able to achieve to the degree that it should have, though you cannot deny relative achievements it has brought. What we have got in terms of republic, federalism (geographical though), proportional representation of marginalized communities and the fundamental rights are positive. But in totality, it has not been able bring the desired change.

What brought the political actors together to establish peace?

After the royal palace massacre of 2001, the question of nationality became a pressing issue. Thus the need of the time was not continued conflict among political parties but a level of compromise, coordination and dialogue for the cause of preserving national sovereignty. I believe this factor made us all realize the need for Comprehensive Peace Agreement (CPA).

What was your role?

I worked on behalf of the party. I carried out the responsibilities the party assigned to me.

Why did the first and second rounds of talks fail?

This was because the state used talks only as a tactical move. The talks were only to show to the outsiders. They were not sincere for change. This is why it did not work out. The state was not ready to accept federalism, republic and Constituent Assembly, key agenda raised during the People's War. This is why first and second rounds of talks failed. Part of the reason was some external forces bent on not letting parties united. It was easy for them to influence the parties also because the parties themselves had a number of weaknesses. However, I should also mention the fact that the mediators played vital role. It was because of them that second round of talks was possible.

To what extent was the palace involved? What was its role?

We were not in contact with the palace. Thus there is no way of knowing what it wanted from us. We held talks with talks teams. Whatever agendas the talks team

would present, we would assume them as the voice of the palace as well.

What established contact between SPA and Maoists?

We were in informal contact with the leaders of Nepali Congress and CPN-UML. Maoists, NC, UML and the palace were the major forces of the day. First, we held talks with the parliamentary forces. The second round of talks was held between the palace and Maoists but it made no headway because the parliamentary forces had been excluded. Third peace talks happened between Maoists and SPA, palace was not involved in it. For us, both SPA and the palace were the representatives of the state and we took it as such. But on hindsight, all forces, Maoists, SPA and the palace, should have stood on the same page on matters of sovereignty and independence. The dialogues should have taken from this perspective. It did not happen. This was one of the fundamental flaws of our peace process.

What was India's role?

India's role should be seen from two perspectives: that of Indian people and that of Indian establishment. The goal of the establishment has been to establish dominance in Nepal for a long time. It has been trying to implement its design of Sikkimization and Bhutanization. As for the people, Indians think well of Nepal. Thus people-to-people relation has always been good. The establishment should understand this spirit while dealing with Nepal. But it has not done so.

Why did the 12-point deal not happen in Nepal?

I came to know about this happening in Delhi much later. I was in Tamuwan area at the time. There was no earlier indication of all this happening in Delhi. We had been discussing that the deal should be conducted Nepal, somewhere in the hill towns or roadside towns. I came to know about it much later through media. I am unaware about the factors that pushed political actors to Delhi.

What is your comment on the ways TRC and CIEDP are working?

The spirit of CPA dictates that all war-time cases be withdrawn, and detainees released. Thus the wartime cases has been settled through the CPA. But then various power centers started to play inside Nepal, demanding that wartime cases should not be withdrawn. So the parties reached an agreement to form TRC and CIEDP so as to settle the issue through reconciliation. But then some started to say it needed a separate act, the role and jurisdiction of these bodies started to be debated and it took years to form TRC and CIEDP.

We were in favor of forming a constitutional commission but the parties did not agree. But what would TRC and CIEDP do when the cases are in the court? Also, many people do not trust these commissions. First of all, wartime cases should be withdrawn or annulled because they are political cases, not criminal. If those cases cannot be withdrawn, we need to form a judicial commission to investigate them and to forge reconciliation. But this is not happening. It seems they are deliberately creating confusion.

Do you think CPA has or will end conflict forever?

You have to explore the root of conflict first. It happens in the society because of oppression, inequality and denial of rights. And where do these originate from? From the feudal lords of the past. When feudalism got displaced, monopolist capitalism and imperialism got hold of the society. Thus as long as imperialism remains, there will be oppression and discrimination against the poor. If we can fight imperialism unitedly, we will be able to root out sources of conflict. But there is a tendency in Nepal to surrender to feudal lords and imperialist forces. This is why external forces always meddle in political affairs of our country. Nepal looks set to become another Sikkim, Bhutan or Afghanistan. There is a design to cause foreign military intervention in Nepal in the name of conflict. If this happens, though Nepal as a geography might remain, the country as such won't exist. So whether the peace process of Nepal is successful or not should be evaluated in light of whether we will be able to prevent Afghanization of Nepal.



Pradeep Gyawali

Secretary, CPN-UML

How do you look back to 12-point understanding and the peace process?

Nepal's peace process is an example of success because we have made a big achievement through a relatively small loss. Some interpret it as a planned Indian domination over Nepali politics. They call it an Indian design. It's not so. The 12-point deal was actually the product of our own initiative. We all were in need of collaboration with each other. Then parliamentary forces agitating in the streets needed Maoist's support to abolish monarchy. Maoists were exhausted and they were desperate for a safe landing. It would have faced difficult fate if it had not done so. At one point of time, India sheltered and at times even backed Nepal's Maoist insurgency. But by 2006, India also felt the need to unburden itself of Maoists. The king's move to alienate the political parties brought Maoist and other parties together. And the deal happened.

But what good did it do to the people?

This ended the armed conflict. It had claimed the lives of 17,000 people. If the conflict had dragged on, many more lives would have been lost. But the period of transition went on longer than we had expected. A country needs a bold and strong leadership during transition. South Africa drafted its constitution within two years of the peace process. It held new election within six years and elected the new president because it had leaders like Nelson Mandela. Closer home, India successfully managed its transition following partition because it had a leader like Jawaharlal Nehru. In Nepal, we lacked leadership to drive ahead transition successfully. Apart from this, in the last 10 years, Nepal became a venue to experiment all new ideas. We were imposed so many new agenda by the foreign interest groups that we could not handle them at all. Yet, I call Nepal's peace process right and successful. Those who do not think so need to answer these questions: would we be able to crush the Maoist war through brutal force? Would it be right? Would Maoists be able to capture the state power? Would it be right for us to continue internal conflict for years?

You say the 12-point deal is a homegrown process. If so, why did it have to be signed in Delhi, and not in Nepal?

The plan was to do it in Nepal. Bamdev Gautam and Yubaraj Gyawali from our party reached Rolpa for this. But Girija Prasad Koirala declined to go to Rolpa because of health, security and other reasons. So we all decided Delhi as the venue. Yes, India had its interest and concern about the whole process but to say that India did everything, including drafting of the deal is baseless.

It is also said September 11 attack in the US forced Maoists to compromise ?

This factor cannot be ruled out. At one point, Maoists were gaining control over the security posts. But its strength was getting saturated gradually. It had begun to suffer series of setbacks such as in Khara, Bardiya and Kailali. And then three factors came into play. There was internal rift within the party as apparent in clash between Prachanda and Baburam Bhat'Terai. Bhat'Terai was in favor of peace process by removing monarchy. Prachanda was in favor of aligning with the king to wage the battle for nationality. This rift had become open secret. Second, people had started to come out against atrocity like in Dailekh. Such cases could occur elsewhere as well. Nepal Army was gaining strength and was overpowering Maoist rebels. After September 11, global alliance against terrorism was slowly building up. India declared Maoists terrorists. Mohan Baidya and CP Gajurel got arrested. All these factors contributed to Maoists coming to peace process.

As TRC and CIEDP are struggling to sort out conflict-era cases, Maoists have raised the concern that plans are being hatched to prosecute them.

I feel that Maoists have politicized this issue unnecessarily. We have been working to sort out these cases. There are few issues which we must not ignore. The Supreme Court has already said that TRC laws have defects and they need to be amended. This means that the cases have to be pardoned, but we cannot provide amnesty to all. The amendment draft is at the final stage. We only had to submit it to the parliament.

The international community has expressed concern that about provisions on torture and disappearance. So they have said the persons implicated and detained in foreign soil cannot be deported unless Nepal has its own laws on torture and disappearance. We need to frame laws for this. The Maoists need not get spooked by past crimes. Peace process is our collective responsibility. Parties which were in the government during insurgency, NC and UML, are also responsible. But we must all note that if we cannot resolve it ourselves it will

be used as a trap to ambush us on every step of the way. Situation might come when our colleagues from the parties are not able to travel abroad. Our military officials are not able to go to the peace keeping missions for the fear of being arrested. Such situation will be truly embarrassing.



New constitution and nation building in Nepal

Krishna Hachhethu

Background

Does constitution recognize ethnicity as a political constituency? Those who inherit J.S. Mill's philosophy see that ethnicity and democracy are mutually exclusive elements (Lustick, 1979; Dahl, 1989; Hedenius, 1992; Garry et al., 1993; Horowitz, 1994) and argue for making ethnicity irrelevant systematically. Others who observe ethnicity building as a complementary to democracy building (Lijphart, 1997; Watson, 2002; Haysom, 2003; Kymlicka, 2006; Turton, 2006) assert that national unity in heterogeneous society is possible only through accommodation of ethnic diversity into political structure of the country.

Ethiopia is an extreme example of placing ethnicity at the center of nation building. The preamble of its constitution adopts the phrase, "We the Nations, Nationalities and Peoples of Ethiopia... are strongly committed in full and free exercise of our right to self-determination" (Fiseha, 2006. p.132). On other extreme, the 1990 constitution of Nepal could be taken as an example of rejection of ethnicity. It authorized the Election Commission to disallow the ethnic-based parties to contest the election. The experiences of South Asia itself tell us that states of the world live in two different realities. Bangladesh and Sri Lanka, two unitary states of this region, decline to recognize ethnicity as political constituency (Khan, 2014; Edrisinha, 2014). Whereas India and Pakistan have adopted language-based ethnicity as bases for constituting subnational units for their respective federal arrangement (Suri, 2013; Siddiqi, 2014).

So, the question of recognition or rejection of ethnicity as political constituency is the crucial marker that guides the state machineries to choose one of the two broad alternative paths of nation building, assimilation of cultural divergences or accommodation of ethnic diversity. These two opposite paths tell about two different models of nation building, one in conformation to the concept of nation-state and the other state-nations.

The concept of nation-state walks hand in hand with notion of common citizenship (equality before law irrespective of ethnicity), individual rights centric liberal system, majoritarian democracy, meritocracy, legal singularity etc. (Holden, 1993; Gray, 1998). Critics argue that a nation-state tends to be assimilationist in character so one of its key features is removal of or disrespect to ethnic diversity (Oommen, 2012; Varshney, 2013).

The concept of state-nations refers to a country with social diversity where the process of nation building develops in balance, respect to ethnic diversity in political structure and promote sense of belonging among diverse cultural groups living in a defined territorial state (Reilly, 2001; Flenier et al., 2003; Bhargava, 2006; Oommen, 2012; Varshney, 2013). Prerequisites of state-nations are heterogeneous society, state of inequality among the cultural groups, and look forward to substantial democracy with special cure to disadvantaged sections of society. So nation building in conformity to state-nations corresponds with ideas of differentiated citizenship (recognition of ethnic identity), preferential treatment to the marginalized groups, collective rights of ethnic groups, inclusion, multicultural democracy and legal plurality (Gurr, 1997; Kymlicka & Norman, 2000; UNDP, 2004; Stepan et al., 2010).

Since Nepal is a country of social diversity—a home of three broad ethnic groups: Khas Arya (Hill Brahmin, Chhetri, Thakuri and Dasnami), Janajati (Indigenous Peoples or IPs) and Madheshi (people of non-Hill origin)—nation building in line with state-nations is sensible. But the history tells differently. Since the time of unification of Nepal in 1768, the rulers—Shahs, Ranas, Panchas and party leaders—had tried to develop Nepal as a homogeneous, monolithic and unitary state providing protection to one language (Nepali), one caste group (Khas Arya), and one religion (Hindu), ignoring the reality of diversified and pluralistic character of the Nepali society. Besides, the state-designed ‘Nepalization’ process—through Hinduisation, spread of the parbatiya’s culture, institutionalization of caste system converting separate identity of ethnic groups into caste hierarchical structure, and centralization of politics and administration—had led to increase disparity among different social groups. Periodical surveys on Nepal Human Development Index, Poverty Index and Governance Index (representation in state apparatus) reveal a persistence of inequality between the dominant Khas Arya and the discriminated Janajati and Madheshi and the marginalized Dalit and women (NESAC, 1998; DEFID & World Bank 2006; UNDP, 2009/2014; CBS 2005; 2011) [see table 1]. So, lessons to be learned from history are: assimilation and diversity are two mutually exclusive components and marrying between these two inconsistent elements produces

Table 1: Inequality among Social Groups of Nepal							
	Caste/ethnicity	Human Development Index (HDI)		Poverty Incidence (PI) in %			## Government In %
		1996	2006	2011	1995/96	2003/04	2011
National		0.325	0.509	0.490	42	31	25
Hill Castes	Brahmin	0.441	0.612	0.557	34	18	10
	Chhetri	0.348	0.514	0.507			23
	Dalits	0.239*	0.449	0.446	58	45	44
Hill IPs	Newar	0.457	0.616	0.565	19	14	10
	Other IPs	0.299	0.507	0.482	49	44	28
Madhesi	High castes	0.313	0.625	0.536	NA	NA	19
	Middle castes		0.450	0.460	29	21	29
	Terai IPs		0.470	0.473	53	35	26
	Dalit	0.239*	0.383	0.400	NA	NA	38
	Muslim	0.239	0.401	0.422	44	41	20#

Sources: NESAC (1998), UNDP (2009; 2014); CBS (2005; 2011)

*including Hill and Madhesi Dalit; # one CBS officer explained that this apparent big decline in the rate of poverty among Muslims as due deficiencies in the sample; ## Representation in executive, legislature, judiciary and constitutional bodies.

ethnic inequality which is the root cause of social tension, economic stagnation and political disorder.

Making a ‘new Nepal’ through state restructuring in the form of republic, secular, inclusive, and federal system—which is perceived as a remedy of ethnic based deprivation, inequality and exploitation—is a national goal set for the post-2006 Jana Andolan period. Against this background, this paper critically examines the new Constitution of Nepal, promulgated in September 2015, from three normative propositions that closely relates to the choice of a particular path of nation building.

- 1 Recognition of ethnic identity goes beyond the cultural sphere.
- 2 Inclusion is an important instrument for accommodation of diversity.
- 3 Identity-based federalism is more accommodative to a country of ethnic diversity.

Identity

Article 3 of the new Constitution defines Nepali nation as an embodiment of (1) heterogeneous society in terms of ethnicity, language, religion and culture (2) geographical diversity (Mountain, Hill and Terai), and (3) common aspiration to promote national independence, territorial integrity and prosperity of the country. This is a replication of a provision of the Interim Constitution (IC) 2007 but with an addition of a new component, geographical diversity. The major departure from the past is the acknowledgement of ethnic diversity as one of the attributes of Nepali nation which was not found in previous constitutions. The past constitutions, the 1990 constitution in particular, was categorical in placing the king as symbol of Nepali nation and unity of Nepali people.

The monarchy as one of the three pillars of longstanding Nepali nationalism is now gone to history. What about two other pillars, Khas Nepali language and Hindu state? Unlike the 1990 constitution which graded the Khas Nepali as *rastra bhasa* (language of nation) and others as *rashtriya bhansaharu* (national languages), the new Constitution, while upholding the provision of the IC 2007, put all into one box with a sentence “All languages spoken as the mother tongues in Nepal are the languages of nation”. This directs to go for multi-language policy for official language, but the new Constitution actually inherits all previous constitutions to continue the supremacy of the Khas Nepali language and subordination of other linguistic groups. Only the Khas Nepali, the mother tongue of 44 percent population of the country (CBS, 2012), is placed as the

official language at all levels, central, provincial and local. Some other languages may potentially but not definitely get the similar status at provincial level, if not at central level.

Hindu state, another pillar of longstanding Nepali nationalism, is also retained indirectly and implicitly. Unlike the IC 2007's unambiguous provision of secularism, the new Constitution, though it entertains the word 'secular', degrades its notion with freedom of culture and religion. It indeed puts a condition that the state has responsibility to protect sanatan dharma, a term which refers to traditional Hinduism. Besides, the new Constitution upholds the previous constitutions on national icons—the national flower (Rhododendron Arboreum), the national color (crimson), national animal (cow), and the national bird (Lophophorus)—which are taken from the Hindu and Hill symbols.

Nepal is a multiethnic state, but the term 'multiethnic' as an attribute of Nepali state was finally dropped at time the final draft constitution was prepared by the second Constituent Assembly (CA-II). So the new Constitution is illiberal than the 1990 constitution which (1990 constitution) formally and categorically recognized the country as 'multiethnic and multilingual'. Acknowledgment of ethnic diversity in definition of nation but not in state conveys a message that ethnic identity values largely, if not only, on cultural domain. Recognition of distinct identity of Janajati and Madheshi on cultural sphere is witnessed by allowing them to celebrate their festivals—chhath in Rani Pokhari and Lohsar in Khula Manch—downtown of Kathmandu, capital of the country. The fundamental rights section of the new Constitution, like that of previous constitutions, provides 'right to freedom of religion' and 'right to language and culture' to the extent as a community rights to get education in mother tongue and to preserve and promote their own religion and culture. These and other rights are entitled to be exercised provided that does not undermine social harmony, territorial integrity, national independence and sovereignty of the country. It seems that the new Constitution was framed with a premise that ethnicity building and nation building are mutually exclusive. But, empirical studies reveal an overlapping of ethnic and national loyalty among the people of Nepal (Hachhethu 2004) and also among the citizens of South Asia countries (SDSA 2008).

Unlike distinct recognition of women and Dalit as excluded groups each deserves for collective rights, the identity of ethnic groups—Madheshi and Janajati—is inserted in a section of directive principle, a weak provision that no one can challenge in court for non-implementation of this provision.

Recognition of Madheshi and Janajati along with Tharu and Muslim is there in the section of constitutional bodies but without TOR which is not the case on other constitutional bodies like Women Commission, Dalit Commission etc. The Janajati and Madheshi along with other social groups (both ethnic and non-ethnic) are referred as candidates deserving to get representation in both national and provincial parliaments in proportion to size of their own population from seats allocated to Proportional Representation (PR). In gist, the new Constitution apparently recognizes the ethnic identity of the Madheshi and Janajati but actually as non-significant and less significant entity. The following section illustrates how ethnicity is undervalued by the new Constitution of Nepal.

Inclusion

Recognition of Madheshi and Janajati is also found in some other inclusive provisions, article 18 (rights to equality) which directs the state to take affirmative action and article 42 (right to social justice) with a provision of proportional inclusion. These are but vague, ambiguous and largely non-operative provisions. It is vague in the sense that ethnic groups are put into a box of a total 22 clusters as beneficiaries of affirmative actions and 15 clusters entitled to claim proportional representation. The 1990 constitution was clear in taking non-ethnic approach while listing only five groups—women, children, senior citizens, handicapped and people of backward region—as beneficiaries of preferential treatment by the state. On the provision of proportional inclusion, the IC 2007 identified only seven groups, including women, Dalit, IPs and Madheshi. A long list of groups inserted in the provisions of preferential treatment and proportional inclusion in the new Constitution include even occupational groups—peasants, laborers and also ‘indigent Khas Arya’. It is also ambiguous that the provision of proportional inclusion, stated in article 42, does not match with other provisions. The term ‘inclusion’ explicitly entertains in formation of the government at all levels (central, provincial and local) and also in appointment of officials of the constitutional bodies implicitly but it should not necessarily be proportional. Proportional inclusion is generally understood as representation of social groups in the state apparatus, both elected and non-elected bodies, in proportion to size of population of ethnic groups. The article 42 and others that speak of proportional participation (like article 38.4 of women rights and article 40.1 of Dalit rights) could be manipulated reducing these as non-operative provisions. For instance, out of 86 appointees of high posts in eight bodies, including Cabinet and Authority of Earthquake Reconstruction, in post-constitution promulgation time, representation of Dalit, women, Madheshi and Janajati

figured only one, five, 10 and 14 percent respectively. The Khas Arya alone holds 76 percent seats (Pokharel, 2016). So inclusion as an instrument of accommodation of social diversity is confined to tokenism.

Indeed, the ethnic space in politics is also cut by the electoral system adopted by the new Constitution. Though it upholds mixed electoral system adopted in elections of both CA-I and CA-II it reverses giving greater weight to the first-past-the-post or FPTP (60 percent) than the PR (40 percent) in composition of the Lower House of national parliament (House of Representatives or HoR) and unicameral provincial parliament. Increment of FPTP seats obviously serves the interest of the dominant Khas Arya. The electoral history of Nepal records that the Khas Arya got victory through FPTP in ratio of 55-65 percent (Hachhethu et al., 2015; Vollan, 2015), Notwithstanding, their strength in the national population is just 31 percent. Needless to say the impact of reducing the weightage of representation from the PR (seats distributed to social groups in proportion to size of their population), from 60 percent in past CA elections to 40 percent now will limit the scope of inclusive representation, since the excluded groups, including women, Dalit, Janajati and Madheshi, got chance to enter in the CA in sizeable numbers mainly through the PR component of the mixed electoral system.

Furthermore, there is room to reduce the actual number of ethnic quota based PR representation into 26 seats or nine percent in the parliament (Hachhethu, 2015) if another mandatory provision of 33 percent (92 out of 275 seats) women representation overrides. Track record of women victory from FPTP, except 12 percent in CA-I, is five percent which means 8 out of total 165 FPTP seats of the HoR and short of 84 seats to reach 33 percent of total 275, which will be filled up from a total 110 seats allocated to the PR. Besides, the possibility of manipulation on the mandatory provision of 33 percent women representation in the parliament cannot be ruled out since, unlike the past CA elections, the women constituency is not yet disaggregated on ethnic lines. The point of caution here is that the Khas Arya women have grabbed most opportunities in appointment of civil services and other public sectors from women reserved seats. If the existing provision of 33 percent women representation is not clearly disaggregated on ethnic lines in proportion to size of population, the gender factor could be (ab)used for further increment of the Khas Arya in the parliament in the future. Besides, the new constitution gives up another inclusive provision of the IC 2007, nomination of 26 CA/parliamentary members from the IPs who left out from representation through FPTP and PR.

Federal design

The new Constitution of Nepal adopts a 7-provinces federal Nepal. The boundaries of federal units are drawn in line with administrative/territorial federalism since territorial maps of 73 out of total 75 districts retain without any change. These districts are slated into 7-provinces in such a way that the Khas Arya becomes the majority or the largest group, except in Province-2 where Madheshi (including Madheshi Dalits, Muslim and Terai Janajati) constitutes 88 percent in total provincial population, in newly created federal units (see map 1 and table 2). This, in turn, contributes to retain the status quo, domination of the Khas Arya even in newly created middle political space at provincial level.

7-provinces federal design



Seven Provinces

S.No.	1 st largest group	2 nd largest group	3 rd largest group	4 th largest group
1	Khas Arya (28%)	Terai Janajati (12%)	Rai (11%)	Limbu (8%)
2	Madheshi caste (52%)	Madheshi Dalit (16%)	Muslim (12%)	Terai Janajati (8%)
3	Khas Arya (37%)	Tamang (20%)	Newar (17%)	Hill Dalit (5%)
4	Khas Arya (42%)	Magar (17%)	Hill Dalit (17%)	Gurung (11)
5	Khas Arya (30%)	Magar (16%)	Tharu (15%)	Hill Dalit (10%)
6	Khas Arya (62%)	Hill Dalit (23%)	Magar (11%)	Others (4%)
7	Khas Arya (60%)	Tharu (17%)	Hill Dalit (13%)	Others (10%)

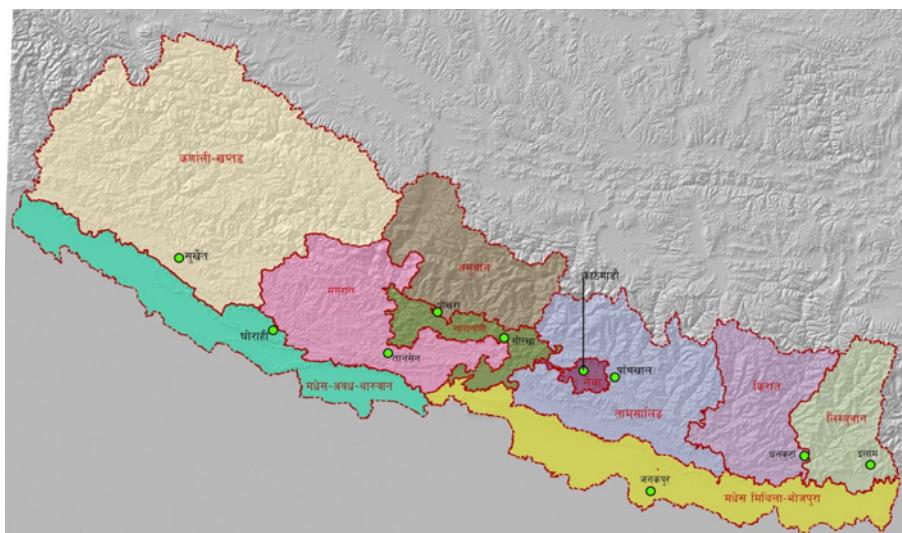
Source: CBS (2012).

Note: Provinces are categorized according to districts as of the new Constitution. Two districts, Nawalparasi and Rukum, each divided into 2 provinces, the former in province 4 and 5 and the later in province 4 and 6. So each and every caste/ethnic population in each of the above two districts are divided equally into respective provinces.

In Province-1—claimed as homeland of the Rai and Limbu—the native population comprises only 11 percent and seven percent respectively whereas the Khas Arya alone makes up 28 percent. Similarly Province-3 is the traditional land of the Tamang and Newar but they fall as the second and third largest group with 20 percent and 17 percent respectively; the largest group is Khas Arya with its population strength of 37 percent. Despite Province-4 being historical land of the Tamuwan and Magrat, the native population constitute only 11 percent and 17 percent respectively, much lower than the Khas Arya population of 42 percent. Take the case of the Tharu, its dense settlement in western Terai from Nawalparasi to Kanchanpur is split into Province-6 and Province-7 and consequently the Tharu figures as the second largest group only in the Province-7 with a population of 17 percent, much lower than 60 percent presence of the Khas Arya. The gap between first and second largest group in these provinces is so high that no one can challenge the dominant position of the Khas Arya in provincial power structure in 6 out of total 7 provinces. Because under the system of distribution of PR seats in proportion to size of population of each ethnic groups, ethnic demography of provinces has direct bearing to translate size of ethnic population into seat of provincial parliament. Besides, overrepresentation of the Khas Arya through FPTP has long been reality of Nepal.

Alternative thought on nation building

In retrospect, the idea of identity-based federalism—which gained high currency in the CA-I (2008-2012)—remains alive outside the constitutional frame. It seeks reinvention of cultural territory, i.e. demarcation of provincial boundaries to ensure that the concerned native ethnic group constitutes as the majority or largest group in province to be created in their traditional homeland. The 10-provinces federal Nepal, recommended by the High Level State Restructuring Recommendation Commission (HLSRRC), placed the larger IPs—Limbu, Rai, Tamang, Newar, Magar, Gurung and Tharu—in comfortable positions so far ethnic demography of provinces suggested in their respective ancestral land is concerned (see map 2& table 3). Becoming a largest population of the province has its own implication in formation of ethnic based political power equation of a particular province. So, identity-based federalism could pave the way for the redistribution of political power among the social groups against the traditional domination of the Khas Arya.

**Table 2:**

Ethnic Demography of 10-province Federal Design (For Largest Ethnic Groups)

S.No.	Name of Provinces	1 st largest group	2 nd largest group
1.	Limbuwan	Limbu (27)	Khar Arya (27)
2.	Kirat	Rai (35)	Khas Arya (27)
3.	Madhesh-Mithila-Bhojpura	Madheshi high caste (47)	Madheshi Dalit (15)
4.	Tamshaling	Tamang (35)	Khas Arya (30)
5.	Newa	Khas Arya (37)	Newa (36)
6.	Narayani	Khas Arya (45)	Magar (11)
7.	Tamuwani	Khas Arya (33)	Gurung (32)
8.	Magarat	Magar (35)	Khas Arya (35)
9.	Madhesh-Awadh-Tharuwan	Tharu (27)	Khas Arya (25)
10.	Khaptad	Khas Arya (60)	Dalit (19)

Source: CBS (2002).

Note: Village/municipality-wise distribution of caste/ethnic population are adjusted into the boundary of each province drawn.

Identity-based federalism and territorial federalism stand poles apart so far as path of nation building is concerned. The former propels accommodative path and the later serves to retain assimilative model. Since the new Constitution, while framing the 7-provinces federal Nepal, rejected the identity-based federal design, the hope of excluded ethnic groups, Janajati in particular, to translate their identity into political power through federal arrangement remains uncertain. No doubt, the path of nation building adopted by the new Constitution is

not encouraging to the accommodative path; it is but contested. The Janajati and Madheshi subscribe a different model that suits best to their interest to accommodate ethnic diversity into political structure. They had radical agendas such as ethnic federalism, ethnic autonomy along with cultural rights, rights to self-determination, priority rights on jal (water), jamin (land) and jungle (forest), preferential rights in provincial political and administrative structure, PR electoral system, recognition of customary law etc. But their aspirations and preferences were modestly entertained during the deliberation of the CA-I, though it failed to give a birth of the new constitution.

Contested issues like form of government, electoral system, federal design that were sorted out through consensus by the CA-I were far more forward looking. Some noteworthy provisions were (1) recognition of Nepal as a multiethnic state (2) multi-language policy for official language (3) unambiguous provision of secularism (4) identity—defined in terms of ethnicity, language and culture along with historicity and territorial contiguity—a s primary bases for constituting federal units (5) recognition of autonomous region as ethno-political territory with its list of jurisdiction, and (6) proportional inclusion (of diverse ethnic groups) in both elected and none-elected state apparatus. On the contrary, the new Constitution actually disowns all these inclusive and accommodative provisions.

Conclusion

The new Constitution is an outcome of the CA-II's refusal to recognize ethnicity as political constituency by all means. Inclusion and federalism are no doubt the new important attributes of Nepali state but these are framed in a way that ensures the retention of the dominant position of the Khas Arya in political sphere of Nepal. This is obviously a slap to a threefold agendas of the excluded ethnic groups—pahichan (identity), pahunch (access to state resources) and pratinidhito (due representation in political structure).

Consequently, the promulgation of the New constitution triggered the Madhesh uprising that resulted in the loss of lives of over 50 Madheshis in its first six months of agitation (September 2015-February 2016). The ultimate goal of recurring Madhesh movements, which also surfaced in 2007 and 2008, is to get recognition of Nepal as a state of two nations, Pahadi and Madheshi. The Janajati's disenchantment with the new Constitution is also manifested but it, unlike the Madhesh uprising, is not effective and powerful. Periodical surveys tell about a constant rise of preference to ethnic identity among the Nepali people,

as alternative of national identity and mixed identity, from 22 percent in 2004 to 25 percent in 2007 and 32 percent in 2013 (Hachhethu 2004; 2007; 2013). Following the promulgation of the new Constitution, it is observed that Nepal has rapidly been transforming from a country of social diversity to ethnic divide. A symbolic message conveyed by TV's footages on the day of promulgation of the new Constitution was that faces celebrated this event with jubilant mood were largely from the Khas Arya. The Madheshis' appeared as rejectionists and the IPs as indifferent. So the amendment of the new Constitution to broaden the scope of identity and inclusion, particularly on federal design, is sensible to move ahead with an accommodative model of nation building.

References

- Bhargava, Rajiv. (2006). The Evolution and Distinctiveness of India's Linguistic Federalism. In David Turton (ed.) *Ethnic Federalism* (pp. 93-118). Oxford: James Currey.
- Central Bureau of Statistics. (2002). *Population Census of Nepal, 2001*. Kathmandu: Government of Nepal.
- Central Bureau of Statistics. (2005). *Poverty Trends in Nepal (1995-96 and 2003-04)*. Kathmandu: Government of Nepal.
- Central Bureau of Statistics. (2011). *Nepal Living Standard Survey 2010/11*. Kathmandu: Government of Nepal.
- Central Bureau of Statistics. (2012). *Population Census of Nepal, 2011*. Kathmandu: Government of Nepal.
- Dahl, R. A., (1989). *Democracy and its Critics*. New Haven and London: Yale University Press.
- DFID and World Bank. (2006). *Unequal Citizens*. Kathmandu: DFID and World Bank.
- Edrisinha, Rohan. (2014). The Federal Debate in Sri Lanka. In Lok Raj Baral and Krishna Hachhethu. (Eds.) *South Asia: Nation Building and Federalism* (pp. 88-107) Delhi: Vij Books.
- Fiseha, Assefa. (2006). Theory versus Practice in the Implementation of Ethiopia's Ethnic Federalism. In David Turton (Eds.) *Ethnic Federalism* (pp. 131-164). Oxford: James Currey Ltd.
- Fleiner, Thomas et al. (2003). Federalism, Decentralization and Conflict Management in Multicultural Societies. In Raoul Blendenbacher and Arnold Koller. (Eds.) *Federalism in a Changing World*. (pp. 197-213). London: McGill-Queen's University Press.
- Gray, John. (1998). *Liberalism*. Delhi: World View Publications.
- Gurr, T. R. (1997). Why do Minorities Rebel? The Worldwide Geography of Ethnopolitical Conflicts. In Gunther Bachier. (Ed.) *Federalism against Ethnicity?* Zurich: Verlag Ruegger AG.

- Hachhethu, Krishna. (2004). *State of Democracy in Nepal: Survey Report*. Kathmandu: SDSAN/International IDEA.
- Hachhethu, Krishna, Sanjay Kumar and Jivan Subedi. (2008). *Nepal in Transition: A Study on the State of Democracy*. Stockholm: IDEA, 2008.
- Hachhethu, Krishna. (2013). *Citizen Survey 2013: Nepal in Transition*. Stockholm: International IDEA, 2013.
- Hachhethu, Krishna. 2015. 2015 (8 July). Issue of Proportional Inclusive Representation (in Nepali). *Kantipur*.
- Hachhethu, Krishna, Tula Narayan Shah and Ram Kumar Kamat. (2015). *Politics of Representation in Nepal*. Kathmandu: Nepal Madhesh Foundation.
- Hadenius, Alex. (1992). *Democracy and Development*. Cambridge: Cambridge University Press.
- Hayssom, Nicholas R.L. (2003). Constitution Making and Nationa Building. In Raoul Blendenbacher and Arnold Koller. (Eds.). *Federalism in a Changing World* (pp.216-239). London: McGill-Queen's University Press.
- Holden, Barry. (1993). *Understanding Liberal Democracy*. New York: Harvester Wheatsheaf.
- Horowitz, Donald L. (1995). Democracy in Divided Societies. In Larry Diamond and Marc F. Plattner. (Eds.) *Nationalism, Ethnic Conflict and Democracy*. Baltimore: John Hopkins University Press.
- Khan, Abdur Rob. (2014). CHT Regional Council: Regional Autonomy within Unitary System of Bangladesh. In Lok Raj Baral and Krishna Hachhethu. (Eds.) *South Asia: Nation Building and Federalism* (pp. 70-87). Delhi: Vij Books.
- Kymlicka, Will. (2006). Emerging Western Models of Multination Federalism. In David Turton. (Ed.) *Ethnic Federalism* (pp. 32-64). Oxford: James Currey Ltd.
- Kymlicka, Will and Wayne Norman. (2000). Citizenship in Culturally Diverse Societies: Issues, Contexts, Concepts. In *Citizenship in Diverse Societies* (pp. 1-41). Oxford: Oxford University Press.
- Lijphart, Arend. (1977). *Democracy in Plural Societies: A Comparative Exploration*. London: Yale University Press.
- Lu stick, Ian. (1997). Lijphart, Lakatos, and Consociationalism. *World Politics*, 50, 88-117.
- Mc Garry, John and Brendon O' Leavy. (1993). Introduction: The Macro-Political Regulation and Ethnic Conflict. In. (Eds.) *The Politics of Ethnic Conflict Regulation: Case Studies of Protracted Ethnic Conflict*. London: Routledge.
- Nepal South Asia Centre. (1998). *Nepal: Human Development Report 1998*. Kathmandu: NSAC.
- Oommen, T.K. (2012). Ethno-Nationalism and Building National States in South Asia: Towards Federalism. In Chaitanya Mishra and Om Gurung. Eds. *Ethnicity and Federalism in Nepal* (pp. 6-16) Kathmandu: Central Department of Sociology/Anthropology, TU.
- Pokharel, Bhojraj. 2016 (28 March). Implementation of Constitution: Practice and Challenges (in Nepali). *Kantipur*.

- Reilly, Benjamin. (2001). *Democracy in Divided Societies: Electoral Engineering for Conflict Management*. Cambridge: Cambridge University Press.
- Report of Preliminary Draft* Prepared by Committee for State Restructuring and Division of State Power. 2010.
- Report of State Restructuring High Level Recommendation Committee* 2012.
- Secretariat of Constituent Assembly/Legislative-Parliament. 2013. *Constituent Assembly Details, 2008-2012 (in Nepali)*. Kathmandu: Government of Nepal,
- SDSA. (2008). *State of Democracy in South Asia*. New Delhi: Oxford University Press.
- Siddiqi, Ayesha. (2014). Re-Imagining Pakistan: Identity Politics in and National Security State. In Lok Raj Baral and Krishna Hachhethu. (Eds.) *South Asia: Nation Building and Federalism* (pp. 47-69). Delhi: Vij Books.
- Stepan, Alfred, Juan J. Linz and Yogendra Yadav. (2010). The rise of State-Nations. *Journal of Democracy*, 21 (3), 50-68.
- Suri, K.C. (2013). Political Parties, Ethnicity and Representation: The Indian Experience. Paper presented to a regional seminar on *Managing Democracy in South Asia: Ethnicity and Political Parties*. Organized by SPCBN/UNDP/Nepal on 5-6 December 2013, Kathmandu, Nepal.
- The Constitution of Nepal 2015*.
- The Constitution of the Kingdom of Nepal 1990*.
- The Interim Constitution of Nepal 2007*.
- Turton, David. (2006). Introduction. In (Ed.) *Ethnic Federalism*. Oxford: James Currey Ltd. 1-31.
- UNDP. (2004). *Human Development Report 2004*. Oxford: Oxford University Press.
- UNDP/Nepal. (2009). *Nepal: Human Development Report 2008*. Kathmandu: UNDP/Nepal.
- UNDP/Nepal. (2014). *Nepal: Human Development Report 2014: Beyond Geography: Unlocking Human Potential*. Kathmandu: UNDP/Nepal.
- Varshney, Ashutosh. (2013). How has India Federalism Done?. *Studies in Indian Politics*, 1 (1), 43-63.
- Vollan, Kare. (2015). *Elections in Nepal: Identifying the Politically Excluded Groups: A Study of the Parliamentary Election Results from 1991 to 2013*. Kathmandu: Social Science Baha and Himal Books.
- Watson, C.W. (2002). *Multiculturalism* (Indian reprint). New Delhi: Viva.



Examining post-CPA Nepal from gender perspective

Punam Yadav

Introduction

The armed political movement led by the Communist Party of Nepal - Maoist (CPN-M), known as the People's War, started in 1996 with the aim of eliminating all kinds of discrimination, including caste, class and gender-based (40-points demand, 1996; the Maoist Manifesto, 2001; BhatTerai, 1990; Rai, 2016). The People's War was launched by a small group of supporters of Maoist ideology, which was later joined by a group of enthusiastic youth who were frustrated with the political instability, corruption and continuation of the same old system even after the establishment of democracy in 1990. The movement grew fast and became popular, especially among poor and marginalized people (Yadav, 2016; Thapa, 2012; Thapa & Sharma, 2009; Pathak, 2005). Although gender discrimination was not their main agenda in the beginning, they included what they called 'women's question' (Yami, 2007) in the second year of their movement. Although it was a strategic decision to attract more women into the movement, they received overwhelming participation from women after the inclusion of 'women's question' (Yadav, 2016). There were various reasons why women joined the Maoist movement (Shakhya, 2003; Frieden, 2012; Panday, 2012). However, the main reason for their overwhelming participation was the desire to bring about positive social change in Nepal (Yadav, 2016a).

How many women were involved in the People's War is still a question, as the estimates vary. Some cite 40 percent whereas others root for 33 percent. However, there seems to be an agreement on one third of women's participation in the people's War (Leve, 2007; Aguirre & Pietropaoli, 2008). The disagreement about the number and the confusion is somewhat explicable. There were at least two categories of people involved in the Maoist movement: those who picked up guns and fought on the battlefield and 'others' who supported the movement from outside, by contributing from wherever they were, such as doctors, engineers, journalists, artists, students, intellectuals and 'just supporters'. Some people were

providing the Maoist cadres with food and shelters, and others supported them as messengers to relay their messages to their families and friends. These people were equally guilty in the eyes of the state. Therefore, hundreds of people were arrested and sentenced only because they were supporters or ‘perceived as supporters’ of the Maoist. The counting of the number of people involved in the Maoist movement often seems to have missed the ‘others’ who were not on the battlefield but who played significant roles during the war.

Gendered impacts of people’s war

The People’s War ended in 2006 with the Comprehensive Peace Agreement (CPA). 17,000 people were killed, over 1,400 disappeared, and hundreds of thousands were displaced during the war(UNOHCHR, 2012; UNWOMEN, 2015; IDMC 2006). These are just the estimated figures. The actual number could be a lot higher. For instance, although official document suggests only 1400 disappearance during the war, in their recent call for complaints the Commission of the Investigation on Enforced Disappeared Persons (CIEDP) received 2,864 complaints of disappearance (Tiwari, 2016; Rai, 2016).

The consequences of the war are much wider and deeper than these numbers. Thousands of young women became widows, thousands of children lost either one or both of their parents, people lost their properties and livelihoods, thousands of people lost jobs, hundreds of schools were closed, which meant children had to discontinue their education(Standing & Parker, 2011). People were psychologically traumatized as they had seen their loved ones being killed in front of their eyes (Yadav, 2007; 2016a). People were taken away from their homes and enforced disappearances were taking place from both sides.

Besides these, there was a fear among neutral people. They feared for their lives, as they did not feel safe in their homes. Children, especially girls were scared to go to school, “as they feared that they were at risk of sexual assault” (Standing and Parker, 2011, p. 188). The situation got worst in 2002 after the announcement of the State of Emergency. People felt trapped between the two fighting forces—state forces and the Maoist rebels. They started fleeing their homes in search of a safer place to live. Since Kathmandu was perceived as such place , thousands of people came to Kathmandu (Yadav, 2007). Over 200,000 people displaced during the ten years of war and the majority of these IDPs were women and children (IDMC, 2006; Caritas, 2005).

The displaced were living in fears even in Kathmandu. Those displaced by the security forces were perceived as Maoists or the supporters of the Maoist. Therefore, they were seen as terrorists. On the other hand, people who were displaced due to Maoists were scared to declare their identity because they were seen as corrupt people. Even those who did not support the Maoist movement, if for some reason were 'perceived by the security forces as the allies of the Maoist', were sentenced, tortured and putting the whole family in trouble. Therefore, despite facing a lot of problems in the new city, the majority of IDPs did not disclose their identity (Yadav, 2007). Moreover, there was no IDP policy in Nepal until 2007. Therefore people who were displaced by the security forces were not even recognized by the state as IDPs. Only 2500 people had registered themselves as IDPs until 2007 with the organization called the Maoist Victims' Association (MVA).

After the Comprehensive Peace Agreement (CPA), Nepal started getting back to normal. The Maoist joined the mainstream politics. The government announced small incentives for IDPs to return without any mechanism in place for their rehabilitation. Therefore, this small monetary support was seen tokenistic. Some people returned to their village. However, around 50,000 IDPs are still in Kathmandu (IDMC, 2013). Although some research suggests that people do not want to go back mainly because of "unresolved land and property issues, and security concerns" (IDMC, 2013), there are various other reasons why IDPs, especially women, do not want to or are not able to go back to their homes.

The majority of IDPs were from rural villages of remote districts. The national literacy rate among women was only 42.8 percent in 2001 with less than 30 percent in conflict-affected areas such as Accham (16 percent), Kalikot (17 percent), Rolpa (23 percent) and Rukum (29 percent) (CBS, 2001). Although they did not have skills to compete in the literate job market, they had to work for survival. Therefore, many of these women ended up working in conditions, which they would otherwise have never considered. Research carried out by IDMC in 2008 suggests that 40,000 women worked in dance bars, cabin restaurants, and massage parlors, out of which 58 percent women were IDPs. These cabin restaurants, dance bars and massage parlors, which emerged in the mid-1990s, can be seen in every location in Kathmandu. Although they are called restaurants and bars, they operate like a semi brothel, where women and girls who work there are forced into prostitution (IRIN, 2008, 20 June). I met Sarita in 2006. She was only 25 then. She shared with me how she ended up in a cabin restaurant:

I am from a rural village of Khotang district, which is in the Eastern Hills of Nepal. I have to hike for three days to get to my village. While the Maoist revolution was at its peak, most of the young people either joined the Maoist or left the village. My father died when I was very young, and I lived with my mother and two brothers. My elder brother stayed separately after his marriage. My younger brother left the village because of the fear from Maoists, leaving my mother and me alone at home.

One day, a group of Maoists came to our house and asked me to join their movement. They persuaded me saying even a seven-year-old had joined them. But I refused. And eventually, I left my village and came to Kathmandu.

After coming to Kathmandu, initially, I stayed with a known neighbor from my village who I used to call 'uncle.' I joined a garment factory for survival. After staying with them for a while, my uncle and aunt's behavior changed. They started accusing me of going out with guys from the factory even when I wasn't. Things became worst. Therefore, I had to move out with a lady I knew. I started staying with her for a while. I started working as a laborer in a construction site. However, the job was physically demanding so I had to quit.

My flat-mate (that lady I moved out with) was indulged in illegal prostitution. She asked me to join her. When I refused, she started ignoring me. I had to move out again ... I started working as a housemaid. But the landlord was cruel towards me ...treated me like an animal. I didn't like it there so I left that place after a month.

With some other works in between, I finally landed in a restaurant job. They were willing to pay me NRs 2500 (about \$32)/month plus food. I was scared in the beginning, but that woman who was a manager said I don't have to serve clients. I just have to take care of the cash counter. That's why I took up that job. When I started, it was ok but after a few days, they asked me to go with clients and said that if guests were happy they would give me tips. I refused to do so and left the job.

Things became very difficult for me. Around the same time, someone suggested me to marry a guy and live happily, which I did. My husband was not a good man, he had mental problems. I started losing weight

and didn't feel like eating. I was ill. When I asked him to take me to Kathmandu for treatment, he refused. Even though the family loved me, my husband was useless. That's why I didn't feel like staying there. I left home and came back to Kathmandu. I was pregnant when I left my husband's home. I came to Kathmandu to never go back again.

Since I couldn't get any work, I started working in a restaurant again. They pay me NRs 2500. I have to pay my rent and the bus fare with this money while I get to eat at the restaurant. I share a room with a friend. The room is dark. There is a water supply but the toilet [and bathroom] is very dirty thus I don't feel like taking a bath. I haven't had a bath for 15 days now.

I am five months pregnant now. It is very difficult to work here. I was quite happy back in my village where I lived with my mother. I had to work hard, and we were not rich but had enough to feed ourselves.

I had interviewed her in 2006 but this story keeps haunting me. This is the reality of thousands of young IDPs who ended up in cabin restaurants, dance bars and massage parlors due to the war. However, they are no longer seen as conflict victims. Therefore, they are not entitled to any support from the government.

I met several other IDP women in 2006. Some of them were working in brick kilns as laborers. They were living in small huts with no electricity, running water or toilet. Since brick kilns were often far from the city, children of these people who worked in such kilns did not have access to school. Therefore, either they played all day with other children or worked with their parents. An IDP woman, who was working in a brick kiln in Lalitpur, was living with her four children in a small hut. She had four children—a three, five, nine and 11 years old respectively. The nine and 11-year-olds worked with her in the same brick kiln whereas five years old was taking care of his three-year-old sister. She had been living there for more than one year. This is what she said to me:

I was forced to join the Maoists even though I had three small children. I managed to escape after eight months but had to leave the village because I was scared of being caught again. I had fear from both sides. When I got back, I found out that my husband was married to another woman. I left the village with my children and came to Kathmandu. I have been working as a labourer since then. My husband came to see me twice, made me pregnant and left. I haven't seen him again for the last two years.

When I asked if she wanted to go back, she said, “Where will I go? My husband is married to another woman, and he will not let me stay with them”. Moreover, two of my other respondents who were forced to leave because of the threat from the security forces said, they could not afford their living expenses in Kathmandu even though their husbands were working. Therefore, they ended up in prostitution.

There were several peacebuilding interventions after the CPA by various national and international organizations, including some supports to conflict victims. However, these women were never seen as the victims of conflict. Those who ended up in cabin restaurants or forced into prostitution due to the situation created by the People’s War are now seen as prostitutes. There are some NGOs working with the cabin restaurant workers. However, they see them as prostitutes, not victims of conflict. The support they provide is often limited to training on STI and HIV/AIDs.

Likewise, the wives, the mothers, and the families of the disappeared still do not know the whereabouts of their loved ones. Children of these disappeared people are still waiting for their fathers. The disappearance of the only breadwinner in the family certainly has impacts on their children. However, these are not seen as peacebuilding issues. Young women who lost their husbands have faced economic hardships and suffered from multiple discriminations. However, besides minimal support from the government to some of the families of disappeared people, nothing much has been done¹. According to a report prepared by Sathi in 2010, 1530 families of the disappeared people received NPR 100,000 and only 649 wives of the disappeared received additional NPR 25,000, although there were 1000 claimants.

Moreover, only a small number of Maoist women combatants (3,846) have been integrated into the Nepal Army (ICTJ and Advocacy Forum, 2010; Adhikari, 2007). Most of the ex-combatants have been left without any support. Lila Sharma, who was the commander during the People’s War and currently runs an organization called Ex-PLA Women Academy, said she was not qualified for the integration because she joined the YCL (Youth Communist League) after the peace agreement. “People who were disqualified during the verification process received a small sum, but they already have spent the money on properties or small businesses. The support was very minimal. Therefore, most of them have come back to Kathmandu,” she said. These ex-combatants, who joined the movement when were very young, are highly aware of their rights, but there is no opportunity for them. Because of the lack of education,

they do not have a decent job, which has made them vulnerable to various kinds of violence.

During the war, there were no caste or class based discriminations within the Maoist party. Everyone was seen as equal. Therefore, the inter-caste marriage was very common among the Maoist cadres. However, when they came home after the peace agreement, their reality did not match with social society. They were far ahead in their thinking. The transformation that had taken place at the individual level was far ahead than the transformation of society. Therefore, some of them had to go through separation and divorce after they came home. An ex-combatant said her husband left her because her mother-in-law did not approve of their marriage. Initially, her husband was ok with her but later he got married to another woman. Now she has been living with her two children without any support.

Another ex-combatant said she was studying in grade five when she joined the Maoist movement. She was a very good student and did very well in her class. However, she left the school to join the 'good cause.' She had hoped for a better future, but she said, "the reality is quite different now. The government is unstable; the Maoist party has been divided, and there is no support for the combatants". Therefore, she is undecided about her future. The DDR process did not include combatants who were under 18 and likewise women with children did not qualify for the DDR as they could not produce arms (BhatTerai, 2012).

Lila Sharma said, "women combatants were raped by the security force. There are several rape victims who have come out in public and talked about their experience. However, they haven't received any support so far. No compensation, no justice for these victims of sexual violence". The pain, social stigma, and suffering of these women are unbearable. Evidence suggests that both sides were involved in rapes but the majority of rape crimes were committed by the security forces (Human Rights Watch, 2014). However, this is not a 'peace agenda' for anyone in Nepal.

The Security Council Resolutions on Women, Peace and Security clearly state the special needs of women in war. As a member state of the Security Council, Nepal developed a National Action Plan (NAP) on the implementation of the UNSCR 1325 and 1820 (NAP, 2011). It was a five-year plan to support the women impacted by the war, including victims of sexual violence. However, although some women have received small support, nothing has been done to support the victims of sexual violence (NPTF, 2016). The case of Maina

Sunuwar, a 13-year girl who was raped and brutally killed in the army barracks, is known to many but nothing has been done.

The Truth and Reconciliation Commission (TRC) and the Disappearance Commission have just started their work. Both commissions have just finished collecting complaints. As of August 2016, the TRC has received 53,016 complaints² whereas the Disappearance Commission has received 2,864 complaints. There is only six months left for the Disappearance Commission. Not much progress has been made except collecting of the complaints. Both Commissions have started their work without having a proper mechanism in place. There is a lot of criticism even about the process of collecting complaints. The International community has not supported any of these Commissions saying they have not followed the international standards. Therefore, most people see these Commissions as a political card more than anything else.

Women in post-conflict space

Although women were the hardest hit by the impacts of war, the post-conflict space has created possibilities for their empowerment. Due to the absence of man in the family and also due to the conditions created by the People's War, women were pushed into the public sphere. When they were exposed to the public sphere, they felt vulnerable but at the same time they also got the opportunity to learn new things. They learned from their experiences. Women are now seen in every sector in Nepal.

Social inclusion was one of the strong discourses of post-conflict Nepal and inclusion of women was the priority. There were two main reasons why inclusion became so important in post-conflict space: a) the condition created by the People's War which advocated for non-discrimination and proportional representation, and b) the global discourse of gender mainstreaming which was advocated by various national and international organizations in Nepal. In the following section, I will discuss women's increasing participation in various sectors and how their participation has led to positive transformation.

Women's increased participation

Women's participation in politics was very minimal (only about 3-6 percent) until 2007 (Falch, 2010; Kabir, 2003; IDEA, 2008; Nepali & Shrestha, 2007) and those who were in politics came from elite background with a long history in politics, such as wives, daughters, daughter-in-laws of reputed politicians. This

scenario completely changed after the Comprehensive Peace Agreement. The first Constituent Assembly (CA) 2008 saw a historical representation of women (33 percent) (Falch, 2010; Nepal, 2007; UNDP, 2008). These women represented all sections of the Nepali society even some of them were not able to read and write. However, the number dropped to 30 percent in the second CA election in 2013. Likewise, despite women's significant representation in the CA, their representation in the cabinet remained low.

Although the Interim Constitution had guaranteed 33 percent women's representation, the new Constitution, which was promulgated in September 2015, reduced it to 30 percent. This game of acceptance and denial is an interesting dynamic of post-conflict Nepal. Women are accepted in some positions and denied in others. For instance, women are in the highest positions such as President of Nepal, the speaker of the lower house and Chief Justice. Although the appointment of Chief Justice was because of her qualification and experiences, Nepal would have never seen a woman President and a woman Speaker without the strong inclusion discourse.

Women are not only in politics, but their participation has significantly increased in other non-traditional roles as well, such as in the Army, the Police and the Armed Police Force. Although there were some women in the security sector before the People's War, they were not considered for combat roles. The Nepal Army opened its door for women in 2004. Hundreds of women have joined the Army since then. Now there is a guaranteed nine percent seats for women. Women have recently been promoted to senior positions both in the Police and the Army. In August 2016, 40 women were promoted to Major in the infantry division for the first time in history³. Both the Nepal Army and the Nepal Police have adopted several gender sensitive policies. Recently two childcare centers were established in two army barracks (NPTF, 2016). The construction of separate accommodation, separate changing room and toilets for women can also be seen as increasing gender sensitivity and recognition of gender-specific needs within this male dominated space.

Women's participation in the Peacekeeping Mission has significantly increased in the last ten years⁴. Likewise, an increasing number of women are joining the civil service (10.5 percent), and health services (40 percent) (UNDP, 2013). Moreover, women are also in other non-traditional roles such as tempo drivers and bus drivers which were male dominated space. Women have transformed this space. Safa Tempo, the most commonly used public transportation in Kathmandu, was launched from an environmental perspective. The battery operated environment

friendly three-wheel vehicles were traditionally driven by men. One woman started in 1996 who received a lot of criticism, and now hundreds of women have joined and the tempo driving has become their main profession (Raut, 2011; Yadav, 2016a). When I interviewed a young tempo driver in November 2014, he said, "Safa Tempos are for women as they were made for women". This suggests how this male dominated space has been transformed within a short period of time.

Changes in laws and policies

There have been some changes in the legal provisions as well (Subedi, 2009). The eleventh amendment bill was passed in 2002, which legalized abortion. Hundreds of women were dying due to the unsafe abortion as they were seeking illegal services from unqualified providers (CREHPA, 1999, 2000, 2006; CRLP & FWLD, 2001). Moreover, people who were involved in abortion were jailed. Although according to the law, everyone who were involved in abortion were equally guilty including the service provider, a study carried out by CREHPA in 1997 suggests that majority of the inmates who were jailed because of abortion, were women (CREHPA, 2000). Therefore, people have welcomed the new abortion law, which guarantees women's reproductive rights. Likewise, there have been other progressive changes such as women's right to inheritance, criminalization of marital rape, modification of provision for rape crimes, social security for war widows, and so on (Yadav, 2016a and 2016b). However, there is still a redundancy in some areas, such as the citizenship rights. According to the new Constitution 2015, women can pass on their citizenship to their children but they have to prove who their fathers are and whether they are Nepali or foreigners. This is problematic, not only because this is highly discriminatory but also because it ignores the larger consequences it may have on children. For instance, how will a mother prove who the father is if the child is born out of rape? What will happen to the migrant women who return with children but cannot prove who their fathers are? What will happen to the children of trafficked women? The new constitution certainly demonstrates the deep-rooted patriarchal structure, which can be flexible at times but remains discriminatory towards women.

Cultural transformation

The post conflict space has created possibility to normalize the roles that women played during the conflict because of the absence of male members in the family. Today women not only work in male dominated space but it is also considered

normal. Women plowing the field or performing final rights of their parents were not something pre-conflict Nepal would have ever imagined. However, this has become a common phenomenon now. Likewise, the transformation has been felt in the lives of widows as well. The cultural restrictions are much flexible now (Yadav, 2016b). Significant culture shifts can be seen in every section of the society⁵.

Conclusion

The People's War had devastating impacts on women. All of their sufferings cannot be contained in this short essay. It will take a long time for Nepal to revert to normal. People impacted by the war are in desperate need of support. Families of disappeared people are still waiting for their loved ones. The lives of the wives of the disappeared people are in limbo, neither they can call themselves widows nor do they know about their husbands' whereabouts. Women who ended up in cabin restaurants are still working as prostitutes. The women ex-combatants have been left without a proper support. People are living with trauma. Amidst all these chaos, pain and suffering, however, the space created by the war has provided with an opportunity for women to learn new skills. Their increased participation in the public sphere has changed the whole social dynamics. There have been radical shifts in cultural traditions. There is a high level of awareness about gender inequality. Despite the suffering, women are not only the victims of war. They are also the agents of change. Therefore, any development intervention in post-conflict Nepal should focus on this aspect.

Notes

- 1 See this YouTube clip for the first hand account of the families of disappeared people: <https://www.youtube.com/watch?v=Yn6UqbPk-L0&feature=youtu.be>
- 2 See this YouTube clip for the first hand account of the families of disappeared people: <https://www.youtube.com/watch?v=Yn6UqbPk-L0&feature=youtu.be>
- 3 See <https://gloalkhabar.com/featured/women-promoted-to-major-for-first-time-in-nepal-armys-infantry/>
- 4 See <http://admin.myrepublica.com/society/story/40049/nepal-army-gives-top-priority-to-female-representation-in-un-peacekeeping-missions.html> and also http://www.nepalarmy.mil.np/na_un.php; also see <http://kathmandupost.ekantipur.com/news/2016-08-31/un-seeks-more-nepali-female-peacekeepers.html>

- 5 See Yadav (2016a) for more details about radical social transformations that have taken place in post-conflict Nepal.

References

- Aguirre, D., & Pietropaoli, I. (2008). Gender Equality, Development and Transitional Justice: The Case of Nepal. *The International Journal of Transitional Justice*, 2(3), 356-377.
- Adhikari, S. (2007, 26 June). Nepal: Women Combatants in Cantonments: *Where Next?*. *Telegraph Nepal*. Retrieved from <http://www.telegraphnepal.com/opinion/2007-06-26/nepal:-women-combatants-in-cantonments:-where-next->
- Bhattarai, B. (1990). *Nepal: A Marxist View*. Kathmandu: Jhilko Publications Pvt Ltd.
- Bhattarai, T. (2012). Female Former Combatants Struggle to Re-adjust to Civilian Life in Nepal. *Global Press Journal*. Retrieved from <http://www.globalpressjournal.com/asia/nepal/female-former-combatants-struggle-readjust-civilian-life-nepal>
- Caritas Nepal. (2005). *Caravan of Conflict: A Study of Dynamics of Conflict-Induced Displacement in Nepal*. Kathmandu: Caritas Nepal
- CBS. (2001). *Population Census Results in Gender Perspective*. Kathmandu: Government of Nepal. Retrieved from <http://www.cbs.gov.np/nada/index.php/catalog/12>.
- CBS. (2011). *Population Census 2011*. Kathmandu: Government of Nepal.
- CREHPA. (1999). *Management of Abortion Related Complications in Hospitals of Nepal - A Situational Analysis*. Kathmandu: CREHPA.
- CREHPA. (2000). *Women in Prison in Nepal for Abortion. A Study on Implications of Restrictive Abortion Law on Women's Social Status and Health*. Kathmandu: CREHPA.
- CREHPA & MoHP. (2006). *Nepal Comprehensive Abortion Care (CAC)*. National Facility-Based Abortion Study Kathmandu.
- CRLP & FWLD. (2001). *Abortion in Nepal: Women Imprisoned*. Kathmandu: CRLP and FWLD.
- Falch, A. (2010). *Women's Political Participation and Influence in Post-Conflict Burundi and Nepal*. Oslo: Peace Research Institute Oslo (PRIO).
- Human Rights Watch. (2014). *Silenced and Forgotten: Survivors of Nepal's Conflict-Era Sexual Violence*. Available at <https://www.hrw.org/report/2014/09/23/silenced-and-forgotten/survivors-nepals-conflict-era-sexual-violence>
- IDEA. (2008). *The Constituent Assembly of Nepal: An Agenda for Women*. Lalitpur, Nepal: International Institute for Democracy and Electoral Assistance.
- IDEA. (2011). Women Caucus, Constituent Assembly Secretariate, & Nepal Law Society. *Women Members of the Constituent Assembly: A Study on Contribution of Women in Constitution Making in Nepal* (pp. 905). Kathmandu.
- IDMC. (2006). *Nepal: IDP Return Still a Trickle Despite Ceasefire*. Geneva: Norwegian Refugee Council.

- IDMC. (2013). *Nepal: International Displacement in Brief*. Retrieved on 31 August 2016 from <http://www.internal-displacement.org/south-and-south-east-asia/nepal/summary>
- IDMC. (2008). *Nepal: Sustainability of IDP returns undermined by lack of assistance*. Retrieved on 31 August 2016 from <http://www.internal-displacement.org/assets/library/Asia/Nepal/pdf/Nepal-June-2008.pdf>
- ICTJ and Advocacy Forum. (2010). *Across the Lines: the impact of Nepal's conflict on women*. Available at <https://www.ictj.org/sites/default/files/ICTJ-Nepal-Across-Lines-2010-English.pdf>
- IRIN. (2008, 20 June). *Cabin Waitresses subject to sexual exploitation*. Retrieved on 31 August 2016 from <http://www.irinnews.org/report/78846/nepal-cabin-waitresses-subjected-sexual-exploitation>
- IRIN. (2010, 14 April). *Nepal: Reintegration Challenges for Maoist Female Ex-Combatants*. Kailali, Nepal. Retrieved 16 June 2014 from <http://www.irinnews.org/report/88806/nepal-reintegration-challenges-for-maoist-female-ex-combatants>
- Kabir, F. (2003). *Political Participation of Women in South Asia*.
- Leve, L. (2007). "Failed Development" and Rural Revolution in Nepal: Rethinking Subaltern Consciousness and Women's Empowerment, *Anthropological Quarterly*, 80 (1), 127-172.
- The Constitution of Nepal 2015. Kathmandu: Government of Nepal.
- Maoist Manifesto 2001, *Nepalitimes*, Issue 142, 25 April 2003-01 May 2003. Retrieved from <http://nepalitimes.com/news.php?id=2694#.V8begPkrKHs>
- Maoist 40-point Demand. Retrieved on 31 August 2016 from <http://www.satp.org/satporgrp/countries/nepal/document/papers/40points.htm>
- Manchanda, R. (2004). Maoist Insurgency in Nepal: Radicalizing Gendered Narratives. *Cultural Dynamics*, 16(2-3), 237-258. doi: 10.1177/0921374004047750
- MoPR and 1325 Action Group Nepal (2014). *Mid-term evaluation report of the National Action Plan on the Implementation of the United Nations Security Council Resolution 1325 and 1820, (2011-2016)*. Full report is available at: <http://www.saathi.org.np/images/stories/pdf/saathimidtermreportenglish.pdf>
- MoPR and Sathi (2012). *Nepal National Action Plan on the Implementation of the United Nations Security Council Resolution 1325 and 1820, (2011-2016)*, First year Monitoring Report. Full report is available at: http://www.saathi.org.np/images/stories/pdf/NepalNAPonImplementationoftheUNSCRs1325&1820-1stYearMonitoringReport2012_en.pdf
- National Action Plan on the Implementation of the United Nations Security Council Resolution 1325 and 1820*. (2011-2016). Ministry of Peace and Reconstruction, Government of Nepal, 1 February 2011. Available at http://www.kpsrl.org/uploads/debatten_discussies/nepals_national_plan_of_action_english.pdf
- Nepali, R. K., & Shrestha, P. (2007). *Unfolding the Reality: Silenced Voices of Women in Politics*. Kathmandu: South Asia Partnership International.

- NPTF (2016). *Progress Report 26* (17 Nov 2015- 13 March 2016). Available at http://www.nptf.gov.np/uploads/files/Final%20Progress%20Report%2026_%20June%202016.pdf
- Nayak, N. (2007). The Maoist Movement in Nepal and Its Tactical Digressions: A Study of Strategic Revolutionary Phases, and Future Implications. *Strategic Analysis*, 31(6), 915-942.
- Panday, D. R. (2012). The Legacy of Nepal's Failed Development. In S. v. Einsiedel, D. M. Malone & S. Pradhan (Eds.), *Nepal in Transition: From People's War to Fragile Peace* (pp. 81-99). USA: Cambridge University Press.
- Pathak, B. (2005). *Politics of People's War and Human Rights in Nepal*. Kathmandu: BIMIPA Publications.
- Rai, O.A. (2016). What was it all for? Revisiting the 40-point demand of the Maoists 20 years later, *Nepalitimes*, issue 794, 5- 11 February 2016. Available at <http://nepalitimes.com/article/nation/revisiting-maoist-demands,2860>
- Rai, D. (2016, August 30). Kin of disappeared demand truth, ache for justice, *The Kathmandu Post*. Retrieved on 30th August 2016 from <http://kathmandupost.ekantipur.com/news/2016-08-30/kin-of-disappeared-demand-truth-ache-for-justice.html>
- Raut, S. (11 March 2011). Women Behind the Wheel. *The Kathmandu Post*. Retrieved from http://www.ekantipur.com/the-kathmandu-post/2011/03/11/related_articles/women-behind-the-wheel/219340.html
- The Government of Nepal (2011). *National Action Plan on the Implementation of the United Nations Security Council Resolutions 1325 & 1820 [2011/12 - 2015/16]*. Retrieved 4 May 2012 from <http://www.gnwp.org/wp-content/uploads/2010/04/Nepal-NAP.pdf>
- Shakhya, S. (2003). The Maoist Movement in Nepal: An Analysis from Women's Perspectives. In A. Karki & D. Seddon (Eds.), *People's War in Nepal: Left Perspectives* (pp. 375-404). Delhi: Adroit Publishers.
- Standing, K. and Parker, S. (2011). The effect of the People's War on schooling in Nepal, 1996-2006, *Education, Citizenship and Social Justice*, 6(2) 181–195. Available at: <http://esj.sagepub.com/content/6/2/181.full.pdf>
- Subedi, N. C. (2009). Elimination of Gender Discriminatory Legal Provisions by the Supreme Court of Nepal with Reference to Women's Rights to Property. *Tribhuvan University Journal*, XXVI(1), 37-54.
- Tiwari, N. (2016). Disappeared Day How Long To Observe It? *The Rising Nepal*, 30 August, 2016. Retrieved on 30th August 2016 from <http://therisingnepal.org.np/news/14035>
- Thapa, D. (2012). The Making of the Maoist Insurgency. In S. v. Einsiedel, D. M. Malone & S. Pradhan (Eds.), *Nepal in Transition: From People's War to Fragile Peace* (pp. 37-57). USA: Cambridge University Press.
- Thapa, G. B., & Sharma, J. (2009). From Insurgency to Democracy: The Challenges of Peace and Democracy-Building in Nepal. *International Political Science Review/Revue internationale de science politique*, 30(2), 205-219. doi: 10.2307/25652899

- UNOHCHR. (2012). *Nepal Conflict Report: An Analysis of Conflict-Related Violations of International Human Rights Law and International Humanitarian Law between February 1996 and 21 November 2006*. Kathmandu: UN Human Rights Office of High Commissioner
- UNWOMEN. (2015). *A Global Study on the Implementation of United Nations Security Council resolution 1325*. Full text available at: <http://wps.unwomen.org/~media/files/un%20women/wps/highlights/unw-global-study-1325-2015.pdf>
- United Nations Security Council Resolutions 1325 (2000), 1820 (2008), 1888 (2009), 1889 (2009), 1960 (2010), 2106 (2013) and 2122 (2013) and 2242 (2015). Full list and documents available at: <http://www.securitycouncilreport.org/un-documents/search.php?IncludeBlogs=10&limit=15&tag=%22Security%20Council%20Resolutions%22+AND+%22Women%20Peace%20and%20Security%22&ctype=Women,%20Peace%20and%20Security&rtype=Security%20Council%20Resolutions&cbtype=women-peace-and-security>
- Yadav, P. (2016a). *Social Transformation in Post-conflict Nepal: A Gender Perspective*. London and New York: Routledge.
- Yadav, P. (2016b). White Sari: Transforming Widowhood in Nepal. *Gender, Technology and Development*, 20(1), 1-24.
- Yadav, P. (2007). *Gender Dimension of Conflict-Induced Internal Displacement in Nepal (Masters)*, Asian Institute of Technology Thailand.
- Yami, H. (2007). *People's War and Women's Liberation in Nepal*. Kathmandu: Janadhwani Publication.
- Standing & Parker. (2011). *The Impact of the People's War on Schooling*. Full article is available at <http://esj.sagepub.com/content/6/2/181.full.pdf>



Krishna Bahadur Mahara

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How do you look back to ten years' journey to peace?

Before the Comprehensive Peace Accord, the country was in a serious conflict. The CPA has resolved it. Yes, there are different understandings of conflict. But the truth is the conflict was the outcome of the political situation of that time and it ended through our own initiative. The conflict that we led has been proven as historical necessity. Objectively, it was the need of that time. Post-conflict, the country has come to a new political set up and a majority of Nepali people have assimilated the change brought about by that conflict. Some fringe parties have not accepted it but the country has embarked on polity that the end of conflict brought in.

What led the major forces to come together on for peace process?

Like I said, the country was reeling under conflict. It was not leading us anywhere. Maoists had not been able to establish absolute control over state, nor were the state forces able to quell the revolution. There was the situation of parallel government. Thus either one of the forces had to win or lose. This led both the sides to come to a compromise. The rebel forces and then Seven Party Alliance felt the need to work together. International community was also in favor of a new political alliance.

What was your role in the peace process?

Three rounds of talks were held between 2002 and 2006. I was involved in all three. I was the coordinator in first and third rounds of talk. I remember that the establishment was very reluctant to assimilate the issues of the rebels. However, after rounds and rounds of discussions, the establishment was flexible and more accommodative. And third round of talks was successful. First round of talks reached nowhere. We had nearly reached a meeting point during the second round. Looking back, I feel that quantitative work led to qualitative result. And this was the need of the time. We all needed peace. But there were some who needed peace without change. We needed peace with change. The latter won at the end.

You said first and second rounds of talks failed. Why?

The mediators of the peace talks played vital role in all three rounds. They wanted the talks to emerge with meaningful solution. But this did not happen because the establishment was not ready to address the demands of rebel forces. We were opposed to status quo, they wanted to retain it in some way. This was the reason for failure of first and second rounds of talks. But by the time we sat for third round of talks, the establishment was flexible. When they agreed to promulgating the constitution through Constituent Assembly, the talks became successful.

What role did the Royal Palace play?

The palace was not in favor of peace with change. It was not only in favor of status quo, it wanted regressive regime to continue. It was bent on not addressing the demands of the rebels but make them surrender instead. But when the seven political parties and the rebels decided to walk together and work together for forward-looking change, the palace had no option but to accept it. As a result, the country eventually became a republic.

What established the contact between SPA and Maoists?

We had established contacts with national and international power centers. We did it ourselves. The mediators of peace process also played vital role. Internationally, the United Nations came to our aid. International dialogue teams helped in the process. Also, our traditional contact sources worked.

What about India's role?

India had played positive role in making the 12-point deal possible. In fact, it happened in Delhi. We wanted the deal to be signed in Nepal itself. When we struck the six-point deal earlier, UML leaders like Bamdev Gautam and Yubraj Gyawali and some Congress leaders had reached Rolpa. Congress was the leading force then. When some of the leaders expressed the desire to sign the deal in Delhi, we went to India. This shows that India also has indirect role and it has its positive support in the peace process. The situation came when some of the leaders of SPA could not come to Rolpa. So Delhi was decided as a venue for the 12-point pact. Some people also link the 9/11 in 2001 with our coming to peace process. But let me clarify, that incident has nothing do with Nepal's peace process. It was the domestic politics which brought us all to peace process.

The TRC and CIEDP have started their work. Are you satisfied with their work?

The main function of TRC and CIEDP is to carry out independent investigation over the incidents that happened during the conflict period and to create the atmosphere for reconciliation. TRC and CIEDP have to work according to the spirit of the CPA. If we deal with the cases of the war times through the legal provisions of that time, it won't take us anywhere. We need political solution of those cases, not the judicial ones. It was for this purpose that these bodies were created.

Do you believe this process has ended the prospect of future conflict for good as well?

It must. And it will, if we move forward as per the spirit of the CPA. Some have not accepted the CPA wholeheartedly. Yet the political process post-conflict has developed as per the spirit of CPA itself. The Interim Constitution was based on CPA. The Constituent Assembly has promulgated the new constitution. Some argue that the new constitution has taken a step backward in terms of certain provisions of Interim Constitution. We believe this should not happen. But then we have no liberty to ignore the spirit of CPA. Like I said, if we assimilate the spirit of CPA, all conflicts will come to an end.

Use of minors in People's War used to be a matter of great debate. What is the truth?

We did not use or force minors to become PLA soldiers. We did not directly involve them in the war. But they got into it incidentally. The repression by the administration rendered many children displaced and they came to join the war. You cannot call it Maoist forcing them into the war. When I left home for war, my youngest son was only 7. I had to leave home but my children and family were not safe. Instead, the state forces of the time deliberately targeted the women, children and elderly related. So they were compelled to join the war. You cannot blame Maoist for this. The state is to be blamed. I am a living witness of this.



Ending the conflict about ending wars

Jeffrey R. Seul

Human rights professionals want civil wars to end just as surely as conflict resolution professionals want to stop human rights violations. Despite their overlapping concerns, disputes about how to stop armed hostilities, while also addressing war crimes and human rights abuses, sometimes are nearly as intense as the war itself. Though there have been signs in recent years that tensions between these disciplines are easing, conflict resolution and human rights professionals sometimes are at odds over approaches to transitional justice—norms and processes for dealing with crimes committed during a period of conflict or political instability. This is particularly true with respect to the possibility of amnesty from prosecution.

It is an uncomfortable reality that peace accords ending civil wars sometimes are difficult to achieve, and post-conflict reconstruction efforts sometimes may be more likely to fail, without the active support of people who are potential targets of prosecution. Some human rights advocates favor broad and swift prosecutions in the aftermath of war, and some conflict resolution practitioners believe the possibility of immediate prosecutions makes it unreasonably difficult to end wars, which are one principal context in which abuses and crimes occur. Conflict resolution and human rights professionals have every reason to avoid working at cross-purposes. Civil wars breed human rights violations and human rights violations breed civil wars (Poe & Tate 1994; Sobek, et al. 2006; Thoms & Ron 2007; Rost 2011). When human rights and conflict resolution professionals work at cross-purposes, wars may be harder to end and the stability of fledgling peace accords may be threatened.

The human rights and conflict resolution communities each consist of professionals affiliated with very different types of organizations with diverse missions, resources and constraints, including national governments, international institutions, domestic and international nongovernmental organizations, and universities. The people affiliated with these organizations themselves have

diverse educational, professional and personal backgrounds. This diversity of organizational and individual actors makes it difficult to generalize about the “typical” views on transitional justice of human rights and conflict resolution organizations and the professionals associated with them, both overall and with respect to relative priorities at any given phase of efforts to deescalate or end hostilities. Although a handful of human rights and conflict resolution professionals may hold to polarized, “maximalist” positions, it cannot be said that most human rights professionals consider amnesty programs of any kind to be illegitimate and that most conflict resolution professionals believe liberal amnesty programs are an unfortunate necessity as we endeavor to end wars. As the sources cited below make evident, there currently is no such strong consensus within either community on litmus test requirements for ending a war.

International law may have reached equilibrium at a point of creative tension among the goals that, relatively speaking, tend to be prioritized mostly highly by human rights practitioners and those that tend to be prioritized mostly highly by conflict resolution practitioners. There arguably is a growing consensus on legal norms regarding the permissibility of and parameters for amnesties, the substantive issue with which human rights and conflict resolution practitioners have struggled most. Against this emerging legal backdrop, the contours of which are sketched below, human rights advocates, diplomats and conflict resolution practitioners should work together to create terms of engagement for encouraging and supporting national stakeholders in their efforts to develop and implement context sensitive approaches to transitional justice. These process principles should span the entire period from the escalation of conflict through conflict resolution efforts and post-conflict reconstruction activities.

In this article, I offer a tentative, general framework that I hope will stimulate thinking and discussion on this topic among human rights and conflict resolution professionals. Any terms of engagement ultimately embraced by both communities must effectively balance their overlapping, but often differently prioritized, concerns. The tentative framework I offer here is an initial effort to do that.

Scholars will continue to study and debate the extent to which human rights violations can contribute to the onset or recurrence of war, but it already seems sufficiently clear both that systemic human right violations can lead to war and that rights abuses and crimes tend to multiply during wars. Promoting respect for human rights is one important strategy for reducing the risk of war; ending wars is one important strategy for reducing human rights violations. As human rights scholar-practitioner Julie Mertus and conflict resolution scholar-practitioner

Jeffrey Helsing state succinctly, “Where there is peace, human rights are more likely to be enforced. Where human rights are upheld, peace is more likely to be achieved” (Mertus &Helsing, 2006, pp. 513-514). It is time for human rights and conflict resolution professionals to align more fully around terms of engagement for coordinating their work with national stakeholders to achieve the shared goals of ending violence and promoting sustainable peace with justice.

An emerging consensus on substantive norms regarding amnesties and accountability?

Though easy answers to the hard problems that must be addressed as national and external stakeholders strive to end a war remain, simplistic, polarized debates about whether “justice” should be sold in the name of “peace” fortunately seem largely to be a thing of the past. Many conflict resolutions scholars and practitioners today see their goal as sustainable peace (or “justpeace”), which requires real political and social change that addresses the drivers of conflict (e.g., forms of structural violence and systemic injustice), as well as effective responses to war crimes and human rights abuses committed during it (Lambourne, 2009). Conversely, many human rights scholars and practitioners today are open to transitional justice models that incorporate elements of both retributive justice (e.g., prosecutions) and restorative justice, and which offer the possibility of conditional amnesties for some crimes (Nesiah, 2006). This openness arguably can help bring combatants to the negotiating table and help keep them there before and after a peace accord is signed.

Vigorous debates about the permissible scope and conditions of amnesties continue, yet many leading human rights scholars and practitioners openly acknowledge that limited, conditional amnesty programs are “necessary evils,” to borrow Mark Freeman’s term (Freeman 2009). One very significant development on this front was the publication, in 2013, of *The Belfast Guidelines on Amnesty and Accountability*. *The Belfast Guidelines* are the product of a multi-year research, analysis and dialogue effort among leading human rights and conflict resolution scholars and practitioners from around the world who surveyed the widest imaginable array of judicial decisions, evidence of state practice, scholarly opinion, policy positions of the United Nations and other international bodies, and other sources of legal and non-legal authority. The Belfast Guidelines represent these experts’ considered, consensus opinion regarding the currently permissible scope, conditions, and methods of adoption, implementation and review of amnesty programs, including their relationship to other accountability mechanisms, such as truth and reconciliation commissions.

While recognizing that the Rome Statute of the International Criminal Court (ICC) and other recent sources of international law “have provided greater clarity on the nature of [crimes against humanity and war crimes, terms that have lacked precise legal definitions] and contributed to a body of opinion to support the existence of a customary prohibition on amnesty for international crimes,” the guidelines also acknowledge that “other sources of *opinio juris* from domestic and hybrid courts together with state practice on amnesties does not reflect an established, explicit and categorical customary prohibition of amnesties for international crimes” (Belfast Guidelines ,2013, 6(d), 12). The Belfast Guidelines also acknowledge that “[w]ithin international human rights law, there are differences in the approach of the regional human rights courts on whether there is an obligation to prosecute gross violations of human rights or whether it is sufficient that states investigate such violations and provide remedies for those affected”; as a result, amnesties may be subject to different standards in different places (Belfast Guidelines 2013, p.12).

Given the range of authority and opinion regarding amnesties, the Belfast Guidelines largely avoid prescription, though they frequently indicate that one approach may be viewed as more legitimate and legally defensible than others. Nonetheless, the guidelines are prescriptive on issues that are widely acknowledged to be settled, such as the illegality of “self-amnesties” which are “adopted unilaterally by regimes that are responsible for international crimes or gross violations of human rights” (ibid, p.20). On many important issues, the guidelines stop short of prescribing one approach, yet nonetheless state that amnesties may be more legitimate and defensible when they conform to certain norms. For example, the Belfast Guidelines suggest the following:

- Amnesty programs may be more legitimate if they are adopted after public consultation, ideally including victims and other marginalized groups (ibid), or even after confirmation by national referendum (ibid).
- Making amnesty conditional upon such things as “fully disclosing personal involvement in offences, with penalties for false testimony,” “providing information on third party involvement with respect to offenses,” “testifying at the trial of those not granted or eligible for amnesty,” “surrendering assets illegitimately acquired,” and “contributing materially and/or symbolically to reparations,” may “increase an amnesty’s legitimacy and legality and further compliance with a state’s international obligations to investigate and provide remedies” (ibid, pp. 17-18).

With respect to offenses eligible for amnesty, the Belfast Guidelines encourage a state to make these “clearly specified and limited in scope to minimize the potential for conflict with any applicable obligation to prosecute under international criminal law or international human rights law,” which the guidelines acknowledge can be difficult to do while also fulfilling the amnesty’s objectives (ibid, p.12). These objectives may include encouraging combatants to stop fighting and surrender, motivating some people to cooperate in prosecutions of those most responsible for crimes, channeling energy into restorative justice processes, and promoting national reconciliation. The Belfast Guidelines nonetheless refrain from prescribing acts that are ineligible for amnesty. Rather, they state that, “[s]ubject to a state’s multiple obligations,” making the following acts ineligible for amnesty may increase the legitimacy and legality of an amnesty program: “serious international crimes,” “other serious acts of violence against persons that may not rise to the level of an international crime,” and “acts or offenses motivated by personal gain or malice” (ibid, p.13). While the guidelines acknowledge that genocide, torture, enforced disappearances and grave breaches of the Geneva Conventions are generally prohibited by treaties (ibid, p.11), implying that these offences are particularly serious and so are among those that would be appropriate to exclude from an amnesty program, the guidelines do not attempt to define the offenses which fit into the category of “serious international crimes,” “serious acts of violence against persons,” or “acts motivated by personal gain or malice,” leaving that task instead to national stakeholders.

The Belfast Guidelines recognize that, where specified crimes are ineligible for amnesty or perpetrators do not seek or obtain amnesty for an eligible offense, states, just like international and hybrid courts, legitimately may employ selective prosecution strategies (ibid, p.11), whether to cope with the reality of limited prosecutorial and judicial resources in relation to a large number of offenders whose degree of criminal culpability may vary widely or to serve other interests. Whatever the ultimate scope of an amnesty program and of prosecutions, the guidelines note that amnesties “can be designed to complement or operate sequentially with judicial and non-judicial accountability processes in a way that furthers a state’s multiple obligations and objectives,” including by providing “some form of truth and accountability for cases which are not selected for prosecution” and contributing to “a broader range of conflict transformation goals than an exclusive focus on prosecutions” (ibid, p.10). If one is inclined to view the Belfast Guidelines as too permissive (non-prescriptive), one should bear in mind that they acknowledge, and do not discourage exercise of, the right of foreign, international and hybrid courts to prosecute perpetrators of international crimes committed within (or outside) their home state in some

cases, whether under the principle of universal jurisdiction or under another source of authority (ibid, pp. 23-24).

The Belfast Guidelines arguably demonstrate that, though international law regarding a state's duty to prosecute human rights violations and war crimes in the transitional justice context may remain somewhat in flux, it is stabilizing. This apparent state of relative normative equilibrium may prove to be temporary. Perhaps there will come a day when wars and others forms of mass violence are uncommon, and perhaps this will make amnesties less needed and less tolerated. Even now, there appears to be a significant consensus that blanket amnesties granted with the stroke of a pen are illegal – and yet there also is reluctance to declare that states are forbidden from making amnesty conditionally available to former combatants, even for some serious crimes. Against this current substantive backdrop, I now turn to some tentative proposals for (mostly) process oriented terms of engagement between human rights and conflict resolution professionals as they attempt to help national stakeholders end violent hostilities, secure peace, and address crimes and offenses committed during a conflict.

Proposed terms of engagement for development of transitional justice programs

It is important to acknowledge from the outset that substantive positions and goals inevitably affect process, and vice versa. Because state practice is an important determinant of customary international law (i.e., law that develops, in part, by observance of the decisions and actions states actually take), the approach to transitional justice adopted by a state as it ends a civil war or a period of social and political instability becomes new evidence of state practice. A human rights professional who believes the use of amnesties should be abolished or severely curtailed and a conflict resolution professional who believes states should have maximal flexibility in crafting amnesty programs each may view the cessation of a conflict as an opportunity to reinforce the normative position he or she favors. While, in my experience, there currently is significant alignment regarding the substantive perspectives and goals of many moderate professionals in both fields, I believe it often is possible even for less moderate (though not “maximalist”) professionals in both fields to coordinate their activities from a process perspective in a given national context, even as they continue to disagree to some extent about desired substantive goals.

As Mertus and Helsing maintain, we are not faced with an either-or choice between human rights and peace, yet we must be thoughtful and coordinated

about how we pursue both:

Efforts to protect and implement human rights are essential to the constructive management of conflict. Justice cannot be traded away in a conflict; how and when to push for and implement human rights can have a significant bearing on the prospects for successful peace negotiations, humanitarian assistance, and conflict prevention (Mertus & Helsing, 2006, p.517).

Conflict resolution scholar-practitioner Lisa Schirch advocates for the creation of “institutionalized coordination networks” among human rights and conflict resolution professionals “for joint funding, planning, and implementation of a variety of approaches to peace building, including conflict transformation and human rights” (Schirch, 2006, pp. 87-88). Their work together might sometimes involve coordination of “their actions in a sort of ‘good cop, bad cop’ routine to maximize the chances for creating sustainable solutions in which groups feel compelled to negotiate rather than fight” (ibid, p.90).

Transitional justice programs must be context sensitive, which suggests the need to innovate from context to context, yet many possible building blocks for future programs already exist. Approaches previously developed and tested in multiple contexts include TRCs; myriad forms of individual and group material and symbolic restitution; voluntary processes for attempting to work through individual and collective trauma; and prosecutions. While national stakeholders may deem it necessary to make some general decisions about transitional justice measures as they are negotiating a ceasefire agreement or peace accord – for instance, by deciding that there will be a TRC and limited, conditional possibilities for amnesty in connection with it – many of the specifics regarding such measures (such as the scope of an amnesty program and prosecutions) often are deferred until a later time. Needless to say, deferring definition of such details usually is a matter of practical necessity, as combatants may be reluctant to end their conflict and participate in immediate post-conflict reconstruction efforts if they effectively must sign their own indictments as they negotiate.

The respective roles of human rights and conflict resolution professionals and the timing and calibration of their activities within the framework of a comprehensive peace process requires as much thought and careful coordination as the mix of transitional justice mechanisms that will be used to satisfy victims' rights to truth, justice and reparations, and to simultaneously secure the peace, once armed hostilities have ended. There ideally will be dialogue and cooperation among human rights and conflict resolution professionals during each of the

following three phases of conflict and conflict resolution efforts: conflict escalation, conflict resolution, and post-conflict reconstruction. The following subsections outline tentative, high-level suggestions for terms of engagement between human rights and conflict resolution professionals during each of these phases.

Conflict escalation phase

Whether or not human rights abuses contributed to the commencement of communal conflict, violations of human rights and war crimes typically multiply once the conflict begins to escalate and armed violence becomes a constant. For example, in Nepal, the Office of the UN High Commissioner for Human Rights estimates that “up to 9,000 serious violations of [international human rights law] or [international humanitarian law] may have been committed during the decade-long conflict,” including killings, torture and enforced disappearances (OHCHR, 2012, p.24). Prior to that time, human trafficking was a large and persistent problem, and arbitrary (though typically relatively short-term) police detentions were a growing problem, but recorded instances of killings, physical brutality and disappearances were small in number compared to those which occurred during the conflict (Human Rights Watch World Report, 1995 – Nepal). As conflict escalates, it is imperative that human rights practitioners investigate, document, publicize, protest, and take visible, direct action against abuses and crimes.

As Lisa Schirch notes, human rights professionals “have pioneered creative ways of coercing human rights offenders to change their behavior or to come to the negotiation table,” including through “the mobilization of shame,” a term she notes was coined by Amnesty International (Schirch 2006, p. 75). Although these efforts may not always stop conflict from escalating or significantly slow the rate of its escalation, they may increase the pressure upon combatants to end their conflict, in part by making it increasingly uncomfortable for other nations and international governmental and nongovernmental organizations to be complacent about the conflict. This said, even as human rights professionals are using nonviolent coercive tactics to try to convince combatants to end their conflict, they should – and often already do – begin to call for (and even try to create openings for) conflict resolution practitioners to work with the combatants toward a consensual resolution of the conflict.

In sum, I recommend that the following general principles be among the terms of engagement between human rights and conflict resolution professionals during periods of conflict escalation:

1. Human rights professionals should investigate, document, publicize, protest, and take visible, direct action against human rights abuses and war crimes as conflict commences.
2. Human rights and conflict resolution professionals should collaborate to help conceive, initiate and sustain conflict resolution processes designed to reduce human rights abuses and war crimes and to deescalate and transform the conflict as soon as possible after the inception of hostilities.

Conflict resolution phase

During conflict resolution efforts—those that pave the way for official (Track 1) negotiations and/or efforts which precede and/or complement and support official negotiations (Track 2 and Track 3 activities)—the skills and methods of conflict resolution professionals arguably are most needed in order to deescalate the conflict and create the conditions for a reduction in the number and seriousness of offenses. This is where human rights and conflict resolution professionals too often begin to work at cross-purposes, conducting their activities in ways that may undermine the others' contributions toward achievement of shared objectives, rather than reciprocally supporting one another's efforts.

Conflict resolution and international relations scholar William Zartman notes a tension between “forward-looking negotiations” and “backward-looking negotiations.” In forward-looking negotiation, parties are focused primarily upon ending violence, and ideally also upon repairing relationships and creating structures that remove the drivers of conflict and help ensure management of future conflict through political channels. In backward-looking negotiation, parties focus upon “past grievances, their past legalities, and their demands for reparations and punishment” (Zartman, 2005, p. 291). Zartman, Russian scholar of conflict resolution and political science Victor Kremenyuk, and a group of other scholars undertook a study of 12 carefully-selected historical and contemporary efforts to end international and internal wars, in order to assess the extent to which those efforts were forward-looking versus backward-looking and the implications of each of these orientations.

These case studies led the researchers to conclude with “near unanimity that backward-looking [i.e., retributive justice oriented] negotiations are unable to reach a conclusion and only reiterate the conflict in diplomatic terms, as ‘war by other means’” (ibid, p.290). According to Zartman, “[t]he record is striking. When parties base their position on a repetition of their past grievances . . .

negotiation is, in fact, war: an attempt to eliminate the other party by another means, not the search for a solution” (ibid, p. 291). In other words, the backward-looking negotiations studied uniformly failed to end the violence, or even to secure redress for the abuses on which the parties were so intensely focused.

While forward-looking negotiations did not automatically succeed in ending violence, armed hostilities were brought to an end in the vast majority of studied cases in which the parties negotiated with a forward-looking orientation (ibid, p.291-292). Backward-looking justice concerns were disregarded in about half of the cases in which negotiation brought an end to violence; in other words, “peace” unfortunately was achieved at the expense of justice. In the other half of these cases, however, a forward-looking focus on addressing past grievances, including human rights violations and war crimes, “was the doorway to acceptance” of agreement to end the war (ibid, p.292). As Zartman explains, “in notable cases where a forward-looking outcome was finally achieved, the forward-looking establishment of a new relationship rested on the settlement of some very basic backward-looking elements of both peace and justice” (ibid, p. 293). Put differently, a significant number of the cases studied confirmed that it is possible to end violence while also addressing past harms and injustices, though the key appeared to be addressing the past in ways that included, at least to some degree, restorative notions of and approaches to achieving justice.

According to Zartman, the following are two hallmarks of the processes that both ended the violence and promoted justice. First, parties decided at the outset “to shed a zero-sum mentality and to look ahead rather than backward,” realizing that “peace could not be achieved through the exclusive pursuit of past grievances and that such pursuit was counterproductive, bringing neither retributive justice nor peace” (ibid, p.295). Second, the fighting had to end before formal justice seeking activities could commence: “In all the successful cases presented . . . peace [in the minimal sense of an end to mass violence] came first (ibid, p.297). As Zartman explains, “[i]mmediate peace must precede justice and is a precondition for it,” and yet “[t]here are two sides to that relationship: the implication is that peace comes first but that it contains the promise of justice” (ibid). He maintains that “peace must be reached first in a way that does not preclude justice, and then the conditions are present for achieving justice” (ibid). Zartman acknowledges, however, “[b]ut then, perhaps, the pressures to achieve it are gone” (ibid).

This last point highlights a challenge that human rights and conflict resolution professionals must accept and do their best to manage collaboratively: the

detailed development and implementation of transitional justice programs often must be deferred until after the time when the parties lay down their arms, yet momentum toward development of appropriate transitional justice programs must be maintained after the violence is ended. Achieving this level of mutually supportive coordination and collaboration requires trust, and trust is built through actions that demonstrate a respect for others' concerns.

Conflict resolution professionals should refuse to condone or enable agreements that purport to foreclose all possibility of prosecutions or other retribution oriented modes of seeking justice as stakeholders negotiate to end violence. More affirmatively, conflict resolution practitioners also can emphasize respect for human rights as one important feature of the sort of sustainable peace stakeholders should be striving to achieve through their process. Human rights professionals likewise must operate in ways that do not undermine or frustrate the efforts of conflict resolution professionals to promote and facilitate collaboration among combatants, including exploration of the combatants' separate and joint (even if asymmetrical and unequal) contributions to conflict dynamics.

One way human rights professionals can undermine conflict resolution efforts is when their efforts to publicize human rights abuses and promote retributive forms of justice wittingly or unwittingly inflame tensions among conflict parties. Omar Abdulaziz Hallaj, Senior Coordinator of the Syrian Initiative, a peace building effort seeking to help end the war in Syria, has observed and written about ways in which well-intentioned programs that engaged everyday Syrians in the documentation and reporting of human rights abuses, and which trained them about (mainly retributive) approaches to transitional justice, have made conflict resolution much more difficult by "consolidat[ing] hate discourses" and creating an "expectation for vengeance" (Hallaj, 2015, p.20; see also Lutz, 2006). In order to avoid or diminish problems like this, some conflict resolution and human rights professionals argue that, while quiet efforts to investigate and document human rights abuses must continue, the timing of publication of human rights reports, as well as the content and timing of human rights oriented training programs, should be coordinated carefully so as to support, rather than disrupt, conflict resolution efforts (Schirch, 2006).

While conflict resolution practitioners may be more in the foreground of conflict resolution efforts, they should consult regularly with human rights professionals (e.g., UNOHCHR), in part to provide assurance that human rights principles are not being disregarded in negotiation and dialogue processes. If and when

combatants are willing to define the broad contours of future transitional justice programs as they negotiate a ceasefire agreement or peace accord, human rights professionals with expertise in the full range of restorative and retributive transitional justice mechanisms should be key partners in that effort. Their help also should be enlisted when pressure must be applied (e.g., through public statements) to help convince combatants not to include legally suspect amnesty provisions in peace accords or other key documents.

In sum, I recommend that the following principles be among the terms of engagement between human rights and conflict resolution professionals as conflict resolution efforts are underway:

3. Conflict resolution professionals should not condone or enable agreements that purport to foreclose all possibility of prosecutions or other retribution oriented modes of seeking justice with respect to serious international crimes as stakeholders negotiate to end violence.
4. Conflict resolution professionals should emphasize respect for human rights as one important feature of the sort of sustainable peace stakeholders should be striving to achieve through their process.
5. Human rights professionals should strive not to undermine or disrupt conflict resolution efforts as they investigate, document and report human rights abuses and war crimes and engage in training and other activities, ideally coordinating their activities with the activities of conflict resolution professionals in mutually-supportive ways to the extent practicable.

Post-conflict reconstruction phase

Conflict resolution professionals must remain engaged and committed to supporting the development of transitional justice initiatives that have integrity from the perspective of human rights professionals. Conflict resolution professionals must not only resist agreements that purport to foreclose all possibility of retribution oriented modes of seeking justice as stakeholders negotiate to end violence; they should continue to do so after a peace accord is reached. When able to do so, they also should try to help facilitate the development of transitional justice mechanisms that are consistent with prevailing legal and non-legal norms, including both appropriate conditions and constraints upon any amnesty program that stakeholders may consider and local norms, traditions, and customs (as well as external norms) that align more closely with restorative, rather than retributive, notions of justice. If and as conflict resolution professionals continue to help guide a peace process, they

should promote the involvement of internal and external human right experts in continued human rights monitoring, human rights related institution and capacity building, the development of a transitional justice framework and transitional justice programs, and the gathering and preservation of information that will be useful in transitional justice processes.

Needless to say, this degree of mutually supportive, ongoing engagement between conflict resolution professionals and human rights professionals will be difficult to achieve if the human rights professionals involved have maximalist goals for retribution – if, for example, they demand implementation of a broad prosecution program immediately after a peace accord is signed (and maybe even later) as the dominant transitional justice mechanism. At present, I believe a significant number of human rights professionals would consider such a maximalist position to be inconsistent with prevailing legal and non-legal norms regarding transitional justice, even if some might feel constrained by institutional positions from acknowledging this. The Belfast Guidelines and other reference points recognize that the timing and scope of prosecution programs may be limited (e.g., by targeting those most responsible for the most serious crimes committed).

Even between moderate conflict resolution and human rights professionals, however, tension may become even more pronounced during the post-conflict reconstruction phase of a peace process. Human rights professionals may seek earlier implementation of accountability programs and/or more aggressive programs than conflict resolution professionals believe the situation can tolerate. A certain amount of this tension may be inevitable. As the two groups strive to manage this tension constructively, conflict resolution professionals should be mindful of the contributions an effective transitional justice program may make to enhancing present and future human rights performance and avoiding the recurrence of war. Conversely, human rights professionals should be mindful of evidence (like the study discussed above) that restorative justice mechanisms must often be a piece of the puzzle in order to end the violence.

In sum, I recommend that the following principles be among the terms of engagement between human rights and conflict resolution professionals during post-conflict reconstruction efforts:

6. After a peace accord has been reached, conflict resolution and human rights professionals should continue to work together toward development of transitional justice programs and other mechanisms and institutions that attempt to promote simultaneously respect for

human rights (consistent with local and international laws and norms), the restoration or establishment of functional social relationships, and constructive, nonviolent responses to future conflict.

Conclusion

To recap, I offer the following six principles as tentatively proposed terms of engagement between conflict resolution and human rights professionals as they undertake their work to help prevent and end human rights abuses and war crimes and to end wars:

1. Human rights professionals should investigate, document, publicize, protest, and take visible, direct action against human rights abuses and war crimes as conflict commences.
2. Human rights and conflict resolution professionals should collaborate to help conceive, initiate and sustain conflict resolution processes designed to reduce human rights abuses and war crimes and to deescalate and transform the conflict as soon as possible after the inception of hostilities.
3. Conflict resolution professionals should not condone or enable agreements that purport to foreclose all possibility of prosecutions or other retribution oriented modes of seeking justice with respect to serious international crimes as stakeholders negotiate to end violence.
4. Conflict resolution professionals should emphasize respect for human rights as one important feature of the sort of sustainable peace stakeholders should be striving to achieve through their process.
5. Human rights professionals should strive not to undermine or disrupt conflict resolution efforts as they investigate, document and report human rights abuses and war crimes and engage in training and other activities, ideally coordinating their activities with the activities of conflict resolution professionals in mutually-supportive ways to the extent practicable.
6. After a peace accord has been reached, conflict resolution and human rights professionals should continue to work together toward development of transitional justice programs and other mechanisms and institutions that attempt to promote simultaneously respect for human rights (consistent with local and international laws and norms), the restoration or establishment of functional social relationships, and constructive, nonviolent responses to future conflict.

These proposed terms of engagement between conflict resolution and human rights professionals are quite general. My hope is that these high-level suggestions will spark a dialogue between members of both communities – a dialogue that ultimately will lead to a consensus regarding more specific process principles for coordination of conflict resolution and human rights activities, much as the Belfast Guidelines have provided helpful substantive principles on amnesty and accountability issues that long have been matters of contention between the two communities.

References

- Freeman, Mark. (2009). *Necessary Evils: Amnesties and the Search for Justice*. Cambridge, UK: Cambridge University Press.
- Hallaj, Omar Abdulaziz. (2015). Syria and the Prospects for Reconciliation. In *Reconciliation as Part of a National Dialogue Process*, paper presented at The Second Annual Conference on Non-Formal Dialogue Processes and National Dialogues: Experiences from Countries in Transition, November 16-18, 2015, in Helsinki. Finland (copy on file with author).
- Human Rights Watch. *World Report 1995 – Nepal*, available online at <http://www.refworld.org/docid/467fcaa8c.html> (last accessed on May 13, 2016).
- Lambourne, Wendy. (2009). Transitional Justice and Peacebuilding after Mass Violence. *The International Journal of Transitional Justice*, 3(1), 28-48.
- Lutz, Ellen L. (2006). Understanding Human Rights Violations in Armed Conflict. In Julie A. Mertus and Jeffrey W. Helsing. (Ed.). *Human Rights & Conflict: Exploring the Links between Rights, Law, and Peace Building*, edited by Washington, D.C.: United States Institute of Peace.
- Mertus, Julie A. and Jeffrey W. Helsing. (2006). Toward a More Integrated Approach. In Julie A. Mertus and Jeffrey W. Helsing. (eds.) *Human Rights & Conflict: Exploring the Links between Rights, Law, and Peace Building*. Washington, D.C.: United States Institute of Peace.
- Nesiah, Vasuki. (2006). Truth vs. Justice? Commissions and Courts. In Julie A. Mertus and Jeffrey W. Helsing (eds.) *Human Rights & Conflict: Exploring the Links between Rights, Law, and Peace Building*. Washington, D.C.: United States Institute of Peace.
- Office of the United Nations High Commissioner of Human Rights. (2016). *Nepal: OHCHR position on UN Support to the Commission on Investigation of Disappeared Persons and the Truth and Reconciliation Commission*.
- Office of the United Nations High Commissioner for Human Rights. (2012). *Nepal Conflict Report: An analysis of conflict-related violations of international human rights law and international humanitarian law between February 1996 and 21 November 2006*.

- O'Shea, Andreas. (2002). *Amnesty for Crime in International Law and Practice*. The Hague: Kluwer Law International.
- Poe, Steven C. and C. Neal Tate. (1994). Repression of Human Rights to Personal Integrity in the 1980s: A Global Analysis. *American Political Science Review*, 88(4), 853-872.
- Rost, Nicolas. (2011). Human Rights Violations, Weak States, and Civil War. *Human Rights Review*, 12(4), 417-440.
- Schirch, Lisa. (2006). Linking Human Rights and Conflict Transformation: A Peacebuilding Approach. In Julie A. Mertus and Jeffrey W. Helsing. *Human Rights & Conflict: Exploring the Links between Rights, Law, and Peace Building*. Washington, D.C.: United States Institute of Peace.
- Sobek, David, M., Rodwan, Abouharb and Ingram, Christopher G.. (2006). The Human Rights Peace: How the Respect for Human Rights at Home Leads to Peace Abroad. *The Journal of Politics*, 68(3), 519-529.
- The Belfast Guidelines on Amnesty and Accountability*. (2013). Belfast: University of Ulster Transitional Justice Institute.
- Thoms, Oskar N.T. and Ron, James. (2007). Do Human Rights Violations Cause Internal Conflict? *Human Rights Quarterly*, 29, 674-705.
- United Nations. (2010). *Note of the Secretary-General: United Nations Approach to Transitional Justice*.
- United Nations. (2006). *Guidelines for UN Representatives on Certain Aspects of Negotiations for Conflict Resolution*. Department of Political Affairs
- Wälisch, Martin. (2016). Normative Limits of Peace Negotiations: Questions, Guidance and Prospects. *Global Policy*, 7(2), 261-266.
- Zartman, I. William. (2005). Looking Forward and Looking Backward on Negotiation Theory. In I. William Zartman and Victor Kremenyuk (eds.) *Peace versus Justice: Negotiating Forward- and Backward-Looking Outcomes*. Maryland: Rowman & Littlefield Publishers, Inc.



Shyam Saran

Former Ambassador of India to Nepal

How do you evaluate Nepal's political context after a decade of the Comprehensive Peace Agreement?

The Comprehensive Peace Agreement was a historic achievement and brought to an end ten years of a destructive and violent civil war which inflicted immense pain and suffering on the people of Nepal. It created the conditions for Nepal's emergence as a proud and inclusive democracy. It is not unusual that it has proved harder to achieve a broad consensus on the nature of the state and reconciling the interests and aspirations of the country's various ethnic communities but the general direction is positive.

What was your role in bringing all the major parties to one place to ensure subsequent agreements post-CPA were implemented.

I did not play any direct role in this respect beyond encouraging all the stakeholders to work together to ensure political stability and economic prosperity of Nepal. I believe Nepal has the potential to emerge as the richest country in South Asia.

How did India engage with multiple actors of the peace process and what were some of the major challenges?

India's role was limited to facilitating the meeting among the different stakeholders but leaving it to them to work out whatever political understanding was feasible. The message given to the Maoist leaders by Indian interlocutors was that they should join the political mainstream and make a transition from being a revolutionary movement to a civilian political party like any other, accepting the discipline of a constitutional and multi-party democracy. This was not an easy transition but it has been achieved.

Most of the Maoist leaders were in hideouts in India when they were launching their movement against the Nepali state. India has often been alleged as a country that provided Maoists a safe haven at the same time pushed the Maoists and the seven parties for a 12 point understanding. Why did India play such a dual role.

India did not play a dual role. In fact India was the first country to declare that

the Maoists were indulging in terrorism by killing many innocent men, women and children. Some Maoists leaders were also apprehended and imprisoned in India. India and Nepal have an open, long and porous border and there are thick forests in several stretches. It is not difficult for people to slip across the border and given the size of India and its large population, it is often easy to stay undetected for long periods of time. There is a similar problem with our own militant groups like the Left Wing Extremists. There was never any policy on the part of the Indian government to provide shelter and support to the Maoists. Indian contacts with Maoist leaders only began after the Nepal government itself reached out to them for peace talks. As for the 12 point understanding, as I said earlier the Indian role was limited to facilitating the seven parties' alliance and the Maoists to meet and negotiate between themselves. The political parties and the Maoists decided to cooperate with each other only after the King declared an emergency in February 2005 and assumed total authority. India had repeatedly urged the King to work together with the political parties in order to marginalize the Maoists but he preferred to exercise full executive power himself.

In your opinion what is unique about Nepal's peace process?

Nepal's peace process is home grown and designed and implemented by its political parties and the Maoists. It has not been an externally imposed peace. Furthermore it has been a peace process supported by its people. The post peace agreement election to the Constituent Assembly was in a sense popular validation of the peace agreement.

Were Maoists in a hurry to end the conflict especially after 9/11 and the resulting international solidarity against terrorism? What is your opinion regarding the Maoists' strategic shift to peace talks?

In my opinion 9/11 did not have much of an impact on the thinking of the Maoists since violence not only continued but even intensified in the years subsequent to 9/11. Two factors seem to have been important. One, it was becoming clear to the Maoist leaders that while they could continue their violent activities they would not be able to defeat the Nepal Army. Two, the February 2005 monarchist coup created an opportunity for them to cooperate with the mainstream political parties. These two factors convinced them to join the peace process.

TRC and CIDEP have started working to reconcile wartime issues. How do you see the whole process of reconciliation and truth finding? What is the likelihood that this would be internationalized?

Both TRC and CIDEP are the unfinished agenda of the peace process and are

necessary to bring closure to a very unfortunate and tragic phase in Nepal's contemporary history. I would hope that internationalization is not necessary. The people of Nepal have the wisdom to deal with such sensitive issues on their own.

Do you think that Nepal's agreement will pave the way to end other conflicts that have emerged in the last decade?

Each country and people has their own special characteristics and features but Nepal's example of having successfully brought a violent insurgency to an end peacefully is an example to other countries faced with a similar challenge. The contrast with the Sri Lankan civil war, which ended with extreme violence, is noteworthy.

How do you evaluate the role of informal dialogue process like the NTTP?

Role of civil society groups in promoting peace can be significant and that is true of the NTTP as well.



Disappearing truth obstacles, obfuscation and strategic options for truth recovery¹ in Nepal

The knife does not know the pain of the chopping board.²

Terry Savage and Nirajan Thapaliya

Truth, it is often said, is the first casualty of war.³ In the heat of conflict and in its aftermath, the assault on truth takes myriad forms: distorting of facts, dehumanizing depictions of perceived enemies, deliberate silencing of dissenting views, jingoistic versions of history, the deliberate withholding, manipulation and destruction of evidence. What actually happened and who caused what suffering gets distorted, dismantled, destroyed, and eventually covered over in layers of rhetoric. This rhetoric is usually convenient to political elites and individuals with much to lose if the public were to learn what they did amid the mayhem and madness of war. The rhetoric may even find resonance among a public unable to endlessly contemplate the horrors of what they have survived.

Yet leaving this deficit of truth intact and allowing it to morph into a comprehensive cover-up is highly problematical for any incipient peace. It diminishes the space for legitimate expression of grievances relating to the conflict. It represses highly charged animosities. And it holds the lingering conflict in check by force alone, rather than enabling the citizenry to seek redress within the frameworks provided by a credible legal system, and to then move on.

Deficiencies of truth become especially problematical, and poignant, when that which is concealed are gross violations of human rights (GVHRs) – crimes so heinous, so grave, and so devastating, that they erode the dignity and very humanity of those involved, and which, when perpetrated on a massive scale, threaten to undermine the quality and sustainability of peace. Long after formal hostilities have ceased, victims of gross violation often feel the impact of the war still raging on in the aching of their damaged bodies and souls - vivid in its detail, brutal in its continuing impact, and relentless in its demand for some recognition and candid answers. Victims' pain may find expression in rage and eventual

remobilization, or it may manifest in social dysfunctionality - abusiveness and/or withdrawal from loved ones and life in general. “Societies that attempt to “dig a hole and bury the past” (Chhang, 2007) typically find themselves entangled in endless social and political agitation, trapped a bottomless pit of unresolved pain. Ignoring, neglecting or refusing to address the lingering effects of GVHRs, in all their tragic, gory and human detail, is plainly perilous.

In Nepal, after over ten years of internal conflict, negotiators for the belligerent parties were acutely aware of demands ensuing from violations that had been perpetrated against those they represented. Over 17,000 people were estimated to have died in the violence 1,300 were missing (OHCHR, 2012). Allegations were rife of torture and maltreatment, including sexual abuse. Myriad questions about these acts – who was responsible? What had become of those forcibly disappeared and of their remains? – made establishing the truth a priority for negotiators on all sides – it is mentioned twice in the conditions for ceasefire. Since then, however, virtually no formal truth recovery has been undertaken and prospects for any such process are dwindling.

Much of this paper will be devoted to making manifest the political shifts and maneuvering that have sought to suppress the truth about GVHRs perpetrated in the setting of Nepal’s decade long conflict. In order to illustrate the consequences that normally ensue from a carefully crafted deficit of truth, the paper begins by showing the general indispensability of truth recovery for human rights projects and the peace they support. It does this first by invoking examples of several “worst practices” that serve to illustrate how human rights and peace efforts in post-conflict societies have been impacted when a truth deficit is left intact. Having shown the practical problem, the paper shifts to human rights jurisprudence, observing the emergence internationally of a legal right to truth, and then focusing on the indispensability of truth recovery in reparations - that aspect of post-conflict reconstruction which mostly explicitly addresses the needs of those who have taken the brunt of the conflict: victims of GVHRs. Brief reference will be made to Nepal in this section, which sets out chiefly to provide a general framework. The paper then turns its focus fully onto Nepal, beginning with political context and tracing the emergence of a political vision that subtly repudiates all commitment to truth recovery. Given that such an avenue of inquiry is necessarily limited and risks becoming speculative, we have sought to anchor the discussion by focusing on the three documents that have most defined and shaped the present peace – the Comprehensive Peace Accord, the Interim Constitution that followed it, and the current Constitution of Nepal, promulgated in 2015⁵. Set against this political backdrop, the subverting

of the processes that eventually established and has defined the form of Nepal's two truth commissions then draws our focus, prompting the question, *ke garne?* what may be done? The last part of the paper draws on initiatives developed elsewhere to highlight options, in Nepal, for unofficial truth recovery initiatives.

Prospects for truth recovery may be disappearing, but the day is not yet done: while victims remain, so do the memories of what was done to them, and the paper will conclude with options that may still avail for tackling this ongoing deficit of truth. For only by acknowledging victims' anguished recollections of what was done to them and responding empathetically, through policies and projects that answer what victims themselves say they need, can the situation in Nepal be transformed into a just, humane and comprehensive peace. For now, victims' challenge is the unwillingness of political elites to engage, in good faith, in the truth about what actually happened. For, as one Nepali saying goes, *achaanoko chot khukurilai ke thabaa* - the knife does not know the pain of the chopping board. ⁶Nor does it seem to want to.

1. Exploring the inextricability of peace from human rights, and human rights projects from truth recovery.

It is necessary to begin by unpacking the indispensable role truth recovery occupies in human rights and in peace - or more precisely, in a peace made sustainable because it is rooted in a common appreciation of each other's human dignity and worth, and in respect for the values, norms and standards of human rights law. The mutual inextricability of human rights and peace has been amply made evident, in countless situations, since the making of the Universal Declaration of Human Rights, which affirms the relationship in its opening words:

Whereas recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family is the foundation of freedom, justice and peace in the world, ... disregard and contempt for human rights have resulted in barbarous acts which have outraged the conscience of mankind, and the advent of a world in which human beings shall enjoy freedom of speech and belief and freedom from fear and want has been proclaimed as the highest aspiration of the common people, ... it is essential, if man is not to be compelled to have recourse, as a last resort, to rebellion against tyranny and oppression, that human rights should be protected by the rule of law (Universal Declaration of Human Rights, 1948)

And, in as much as human rights are integral to peace, when gross violations of those rights do occur, truth recovery is indispensable to upholding the integrity of human rights and preserving the peace⁷. It may be instructive here to illustrate some of the consequences for human rights projects when a society fails to prioritize truth recovery.

- Prosecutions may become selective, such that a formerly warring group now reformed as a political party actively blocks investigations into crimes committed by its own members while moreover motivating - in the name of Rule of Law - for prosecution of its opponents. Examples of selective prosecutions abound from throughout globe – with the Sisi regime in Egypt,⁸ the Erdogan regime in Turkey,⁹ the International Criminal Tribunal in Bangladesh,¹⁰ to cite but a few.
- Public institutions may be staffed with party loyalists instead of technically capable citizens committed to earning public trust, daily, through impartial discharge of their duties. This problem becomes particularly conspicuous, and consequential, when the institution concerned has a human rights mandate. The integrity of national human rights institutions and transitional justice mechanisms, and their very ability to fulfil their mandates, derives from the trust they are able to draw from victims and from the broader public. This necessarily involves figures selected through public consultation and widely respected for their impartiality and universal application of human rights - across partisan boundaries. Two examples of worst practices in this regard may suffice: the Zimbabwe Human Rights Commission, the members of which have been handpicked by a head of state widely accused of torture, murder and even genocide; and the disastrous truth and reconciliation commission established in DR Congo as part of the agreement that marked the end of hostilities between multiple belligerents, the Accord global et inclusive (Accord Global Et Inclusif Sur La Transition en RDC, 2002). The eight parties to the Congo's peace accord each had representation in all transitional institutions, of which the truth commission was one. In the two years of its existence not one victim walked through its doors to offer testimony.¹¹
- The concept of “reparations” may be altered to mean distribution of funds to war veterans, martyrs’ families and other partisans of one side to the conflict or another – in short, to entrench systems of patronage among party faithful impacted by the conflict, as recompense for their suffering and to ensure their continuing loyalty. Reparations is, however, a juridical concept with a specific – and very different -

meaning: it pertains specifically to the obligations owed by a State to victims of Gross Violations of International Human Rights Law and Serious Violations of International Humanitarian Law (UN, 2006)—in other words, to those who have suffered gross violations of their basic human rights (GVHRs), through acts perpetrated by State agents (acts of commission) or enabled as a direct result of failures of State agents to fulfil their responsibilities (acts of omission).¹² Making the term refer to measures for tackling conflict related anguish in general rather than the specific suffering of victims of GVHRs enables the State to avoid its obligations vis-à-vis acts for which they are responsible. Libya represents but one example, where reparations have been widely understood as monetary compensation chiefly to the families of fighters declared “martyrs” for their role in the fight against Colonel Muammar Ghaddafi.

- The term “reconciliation” may be appropriated as a euphemism for a general amnesty, that is, a legal mechanism by which victims’ right to legal remedy is blocked, as with Algeria’s Charte pour la paix et la reconciliation (Charter for Peace and National Reconciliation), which effectively prohibits even inquiries by the families of the Disappeared into the fate of their loved ones or the whereabouts of their remains.¹³

These are but a few of the more poignant salient examples of what happens to projects designed to grow human rights and consolidate the peace when a society fails to prioritize truth recovery. Establishing the truth about serious human rights violations perpetrated during a conflict is essential to the integrity, design and very meaning of human rights in the post -conflict setting; so widespread has this somewhat obvious conviction become that truth recovery is moreover growingly supported by international law, a development worth elaborating before we turn to examine the situation in Nepal – in the course of which the extent to which Nepal is following these “worst practices” or taking heed to avoid them will be highlighted.

2. Growing international human rights jurisprudence of truth recovery

Viewed as self-evident within customary law, victims’ right to the facts about the crime perpetrated against them is rapidly becoming codified. Truth recovery has in recent years become a salient preoccupation of human rights jurisprudence.

(i) Victims' right to truth – established internationally and affirmed by the Supreme Court as the obligation of the State.

Debate about an explicit right to truth originated in Latin America in response to the needs of families of the Desaparecidos - “the Disappeared” - as they became known, people taken into custody by military or other public officials, or by rebels, without any due procedure (such as an arrest warrant), or administrative trace. The families demanded to know who was responsible for their loved one’s abduction - who gave the order and upon what information; who turned a blind eye - how the crime was covered up, and above all whether the person was still alive and if not then the whereabouts of their remains. It is beyond the purposes of the present paper to provide a genealogy of the prolific jurisprudential developments that have established the “right to truth,” as it is now widely termed. Suffice it here to note a few of the most salient developments, in support of the position of the Supreme Court of Nepal, which has emphatically asserted the right to such information. Thereafter, the paper will highlight the contiguous development of an appreciation, internationally, of the inextricability of reparations package from this basic right – to the truth.

In 1997, Louis Joinet’s report to the UN’s Commission of Human Rights, “Question of the Impunity of Perpetrators of Human Rights Violations (Civil and Political)”, affirmed the “right to know.” (Joinet, 1997). Joinet unpacks this right as both “the right of any individual victim or his nearest and dearest to know what happened” (which he calls the “right to truth”) as well as a collective right enjoyed by the broader public to comprehensive, detailed information pertaining to violations – this, in order that a society may take measures to prevent their recurrence (ibid, p.5) The following year, Argentine human rights lawyer Juan Méndez presented a paper entitled, “The Right to Truth”, which presented truth as an integral part of justice, and talks of a “State obligation to reveal to the victims and society everything known about the facts and circumstances of massive and systematic human rights violations of the past, including the identity of the perpetrators and instigators.” (Mendez, 1998). For this, he finds legal precedent in the 1988 Velásquez Rodríguez Vs. Honduras decision by the Inter-American Court of Human Rights, which affirms the following:

The [State’s] duty to investigate . . . continues as long as there is uncertainty about the fate of the person who has disappeared [The] State is obligated to use the means at its disposal to inform the relatives of the fate of the victims and as may be the case, the location of their remains. (Velásquez Rodríguez Vs. Honduras Case, 1988)

To the work of Joinet and Méndez may be added that over many years of José Zalaquett, former truth commissioner in Chile, who has highlighted the strategic value of truth even where political conditions mitigate against the prospects of obtaining justice – or, to draw on phrasing from the final report of Chile’s National Commission on Truth and Reconciliation, of “the whole truth and justice to the extent possible.”

It is on the platform provided by developments in human rights jurisprudence, of which the above represent a few of the peaks, that the Supreme Court of Nepal has emphatically affirmed victims’ right to the truth about the violation wreaked upon their lives and the State’s obligation to do all it can furnish that truth. Suffice it here to illustrate with the case of *Rajendra Dhakal vs the Government of Nepal*, in which the Supreme Court ruled as follows:

... the State cannot, in light of [...] international legal instruments ..., the foreign and human rights-related decisions made by regional courts, and our constitutional provisions, escape from its obligation to identify and make public the status of disappeared persons, to initiate legal action against those persons who appear to be the perpetrators, and to provide appropriate remedies to the victims. (*Rajendra Dhakal vs the Government of Nepal*, 2012)

Internationally established as a legal right, affirmed by the Supreme Court of Nepal, the right to truth is yet to be comprehensively implemented in Nepal.¹⁴

(ii) *Reparations’ inextricability from truth-seeing compensation for GVHR anomalous and envisioning victim oriented measures of satisfaction.*

Amid these jurisprudential developments, recognition has also grown that truth recovery is unavoidable if reparations is to be meaningful. “Reparations” is a specific, juridical term that is mutually inextricable from truth recovery, as will be unpacked shortly. It may be useful to begin by identifying two misconceptions – or worst practices - that have emerged in several contexts and which currently prevail in Nepal: the use of the term “reparations” to encompass general damages ensuing from the war – the example of Libya is mentioned and the notion that GVHRs can be compensated.

Using the term “reparations” to denote measures that address general damages ensuing from the war may seem an expansion of the application of the term: its effect – deliberate, some may argue - is to sideline and to silence precisely that category of victims the concept of reparations was developed to serve, people

for whom the dignity and meaning of being human has been assaulted, namely victims of GVHR. How this happens, on the ground, is a generalized and minimal-questions-asked package that covers multitudinous groups – veterans, families of martyrs, communities impoverished as a result of insecurity as well as victims of GVHRs – and covers myriad forms of damage – from stolen livestock and limbs lost in battle through to loved ones abducted by militia or by government troops. This expanded application and multiple recipients may help address the general clamour for recompense for conflict related suffering but it often also serves to obviate inquiry into specific grievous acts of violation for which the State, or a rebel group functioning as a de facto State, are actually - legally - responsible.

A second problem with “blanket” reparations, as we may call them, because effectively they cover up GVHRs,¹⁵ is that they generally assume a mostly pecuniary form: this poses real problems in the context of GVHRs, which necessarily entail loss and grievance on a scale that simply cannot be compensated. Making payment - in settlement – to a family for loved one abducted in the night and disappeared without a trace effects puts a price on a human life and moreover does nothing to answer the family’s questions. Attempting to compensate for sexual violation is also problematical, offensive even. The effect can be to alienate survivors from the very empathy and social acceptance they need in their home communities. Where this has been attempted, stories abound of neighbours saying, "I wish I had been raped too, if it meant I could now put food in my children's stomachs," or men approaching survivors saying, "I hear you took money for sex, I also have money"

The term “reparations” has a very precise meaning in international human rights jurisprudence: it pertains specifically to the obligations of a State to victims of Gross Violations of International Human Rights Law and Serious Violations of International Humanitarian Law. The work of Egyptian lawyer, *Chérif Bassiouni*, has broken much new ground in this area.¹⁶ His report to the UN’s Commission on Human Rights, ‘The right to restitution, compensation and rehabilitation for victims of gross violations of human rights and fundamental freedoms, laid the basis for the UN’s General Assembly’s adoption of a resolution comprising “Basic Principles and Guidelines on the Right to a Remedy and Reparation for Victims of Gross Violations of International Human Rights Law and Serious Violations of International Humanitarian Law. (UN, 2006)”’ Nowhere does the resolution refer to victims of conflict per se : instead, it recognizes the impact of serious human rights violations as producing a distinct legal category of victims, which it accordingly defines as follows:

“... persons who individually or collectively suffered harm, including physical or mental injury, emotional suffering, economic loss or substantial impairment of their fundamental rights, through acts or omissions that constitute gross violations of international human rights law, or serious violations of international humanitarian law. Where appropriate, and in accordance with domestic law, victims also include the immediate family or dependents of the direct victim and persons who have suffered harm in intervening to assist victims in distress or to prevent victimization.” (UN, 2006)

In other words, the term “reparations” pertains specifically to GVHRs – acts or failures to act on the part of the State (or members of a militant group exerting de facto political authority in a specific territory, such as the Maoists at the height of the conflict). Accordingly, reparations are an obligation on the part of an incumbent State – not a gesture of benevolence, nor a means of asserting party or personal patronage, but an obligation owed by the State to members of the citizenry who suffered GVHRs by agents acting in its name and to those whom it failed to protect from such violation.

In keeping with the focus on providing measures that may help in the aftermath of violation, the document identifies five forms of reparation (OHCHR, 2011)

- **restitution** (restoring the victim to the situation they enjoyed prior to the violation),
- **compensation** (specifically for and limited to the “economically assessable damage” resulting from the violation; thus pensions that defray some of the economically assessable damage resulting from the violation, such as the loss of earnings from a breadwinner forcibly disappeared, are permissible, but compensation, per se, is anomalous. (UN, 2006, Principle 20)
- **rehabilitation** (comprising “medical and psychological care as well as legal and social services”), (ibid, Principle 21)
- **victim “satisfaction”** (to which we turn in a moment as it holds particular relevance to truth recovery)
- **guarantees of non-repetition** (which addresses the restructuring of public institutions to prevent recurrence of GVHRs).

Truth recovery is implicit but indispensable, in myriad ways, to all five forms of reparations.

- (a) Restructuring of public institutions, for example, necessarily entails a candid public reflection on how those institutions ended up getting

embroiled in GVHRs. Meaningful rehabilitation is only possible where damage and needs ensuing from the act of violation are understood. However, with the concept of “victim satisfaction”, the role of truth is explicitly established as integral to reparations, giving it tangible form in four, out of eight, actions to be taken:

- (b) Verification of the facts and full and public disclosure of the truth to the extent that such disclosure does not cause further harm or threaten the safety and interests of the victim, the victim’s relatives, witnesses, or persons who have intervened to assist the victim or prevent the occurrence of further violations;
- (c) The search for the whereabouts of the disappeared, for the identities of the children abducted, and for the bodies of those killed, and assistance in the recovery, identification and reburial of the bodies in accordance with the expressed or presumed wish of the victims, or the cultural practices of the families and communities;
- (d) An official declaration or a judicial decision restoring the dignity, the reputation and the rights of the victim and of persons closely connected with the victim;
- (e) Public apology, including acknowledgement of the facts and acceptance of responsibility (ibid, Principle 22(b) (c) (d) (e))

Truth recovery, then, is at the very core of victim satisfaction – that part of reparations which most explicitly, and directly, supports actual individual victims of GVHRs. To state the obvious, as a member of the UN’s General Assembly, Nepal would have been part of producing the resolution, 60/147, that became known as the UN’s “Basic Principles and Guidelines on the Right to a Remedy and Reparation for Victims.” Yet the emphasis on truth recovery that it contains contrasts sharply with the ways in which reparations have been portrayed by authorities in Nepal.

This was affirmed in the reparations policy drafted, in 2011, by the UN’s Office of the High Commissioner for Nepal for the Ministry of Peace and Reconstruction, which moreover presented truth as the *conditio sine qua non* of all other reparations. Like the Supreme Court rulings, the reparations policy has, however, suffered from lack of implementation. Amid accusations that it was not complying with the nine-point deal, the CPN-UML government collapsed three months later following the withdrawal of support by the Communist Party of Nepal (Maoist-Centre). Discussion between the CPN (Maoist-Centre) and the Nepali Congress (NC) led to the appointment of chairman of the CPN (Maoist-Centre), Pushpa Kamal Dahal (also known as “Prachanda”) as prime

minister as part of a seven point deal in which transitional justice formed one of the major concerns ("Seven Point Deal", 2016) At the time of writing, speculation is widespread that the Act on Commission on Investigation of Disappeared Persons, Truth and Reconciliation, 2071 (2014) may be on the verge of amendments designed, under the guise of reconciliation, to formally entrench impunity and block any comprehensive truth recovery process.

3. Diminishing national political commitment towards truth recovery

In order to understand this failure, it is necessary to examine the role of truth recovery in Nepal's overall vision of transition out of conflict and into peace. For present purposes, the discussion will necessarily be limited to the three documents¹⁷ that have most shaped and formed the present peace - the Comprehensive Peace Accord (hereinafter the CPA, (CPA, 2006), the Interim Constitution, (Interim Constitution, 2007) and the present Constitution, promulgated on 20 September 2015 (Constitution, 2015) - before turning to the undermining of prospects for truth recovery in the processes of producing the legislation that would create Nepal's two truth commissions.

(i) A promise broken: The dwindling political will to recover the truth

In the CPA, truth recovery, as we have called it, was considered so imperative that it appears

- twice
- as part of the conditions for the Ceasefire (Section 5). Chief concerns were with the families of those who had been forcibly disappeared or killed as well as with crimes against humanity (roughly meaning, acts knowingly committed as part of a widespread or systematic attack directed against any civilian population)¹⁷ In Paragraph 5.2.3, the signatories agree “... to make public within 60 days of the signing of the agreement the correct and full names and addresses of the people who ‘disappeared’ or were killed during the conflict and convey such details to the family members” (CPA, 2006). Two paragraphs later (5.2.5), the two sides indicate their agreement “... to set up with mutual consent a High-level Truth and Reconciliation Commission in order to probe into those involved in serious violation of human rights and crime against humanity in course of the armed conflict for creating an atmosphere for reconciliation in the society (ibid, para. 7.1.3). Especially noteworthy is the evident understanding in this

last extract that investigating violation acts is a prerequisite for reconciliation.

In addition to its inclusion in terms of the ceasefire, truth recovery also features in the section on Compliance to Human Rights, Fundamental Rights and Humanitarian Laws (Section 7), with the expectation that accountability in a court of law will necessarily follow: “Both sides express their commitment that impartial investigation shall be carried out and lawful action would be taken against individuals responsible for obstructions in the exercise of the rights contained in the agreement and guarantee not to encourage impunity ...” (ibid, para 7.1.3) The same paragraph moreover commits both sides to “guarantee[ing] the right to relief of the families of victims of conflict, torture and disappearance,” implying a link between the legal remedy embodied in prosecutions and more directly reparative measures.

Promulgated and adopted less than two months later, in January 2007, the Interim Constitution echoes the CPA's concern with truth recovery - but faintly. The document is more reticent, even cautious. The chapter on Responsibilities of the State (Section 33), mentions the Investigation Commission, but only in the context of providing the report that would be used as a basis for providing relief: the expectation of criminal accountability is omitted (Interim Constitution, 2007) The same section also mentions “... a high-level Truth and Reconciliation Commission to investigate the facts regarding grave violation of human rights and crimes against humanity committed during the course of conflict, and create an atmosphere of reconciliation in the society (ibid, section 4, para. 33). Two shifts are evident in the language. The Interim Constitution alters the description of the Commission's work away from investigating individuals who may be criminally responsible for serious human rights violations and rather speaks of investigating the facts. More disturbing is that, whereas the CPA affirmed a causal link between investigating those alleged to be responsible for the violation and the advancing of reconciliation, investigations and reconciliation are now depicted as two distinct tasks of the commission – without upholding recovering the truth as the logical basis for reconciliation.

This wariness vis-à-vis truth recovery is also evident in the Section on Fundamental Rights (Part 3), which affirms a general right to information about matters of personal or public importance, and then qualifies this right as pertaining only to information “secrecy of which is not to be maintained by law (ibid, section 7)”. Regardless of the intention behind this restriction, its effect is to provide a constitutional basis for legislation prohibiting inquiries into

incidents where serious human rights violations are alleged to have occurred - thus producing the prospect of a situation like that in Algeria, where, as we have noted, families of the Disappeared are legally prohibited from inquiring into the fate of their loved ones or the whereabouts of their remains (*Charte pour la paix et la reconciliation nationale*, 2005). The same general restriction is evident in the present Constitution, to which we now turn.

The Constitution of Nepal, 2015 (2072) represents a milestone in Nepal's ongoing quest for a sustainable peace as a result of its unprecedented democratic credibility: notwithstanding the objections that continue to be levelled at aspects of its content¹⁹, it is the first of Nepal's constitutions to result from dialogue and debate within a legislature made up of democratically elected members.

Human rights forms an integral part of the Constitution, a continual refrain. It features most prominently in the section, "Directive Principles, Policies and Responsibilities of the State," (Constitution of Nepal, 2015) which talks of "...embracing the norms and values of fundamental rights and human rights," (ibid) commits the State to pursuing policies that include "[m]aintaining rule of law by protecting and practicing human rights," (ibid, part 4, para. 50) and concludes by reaffirming that "protecting and promoting fundamental rights and human rights" is an obligation upon the State (ibid, para. 51). Two sections of the Constitution are also devoted to national human rights institutions (NHRIs).

Truth recovery, by contrast, is entirely absent. The vision upheld in the Constitution no longer includes any commitment to dealing with the burden of serious human rights violations perpetrated during the conflict: no investigation into enforced disappearances or mass atrocities, no commitment to verifying claims and disclosing the findings to the public, no shared national narrative that can be taught in schools, and memorialized. Instead, in the section on Fundamental Rights and Duties, a broad variety of people impacted by the conflict are bundled together - families of martyrs, families of the disappeared, victims of the conflict, and people who were displaced, maimed, or wounded. The right they are granted is priority in the delivery of basic, specified state services - along with "justice and appropriate respect. (ibid)" Suffice it here to again recall the UN's "Basic Principles and Guidelines on the Right to a Remedy and Reparation for Victims," which recognizes the impact of serious human rights violations as producing a distinct legal category of victims. By bundling all suffering together, the Constitution avoids committing the State to receiving detailed claims about the ongoing impact of serious human rights violations, which would, inevitably, open up specific questions and allegations - in short, a

recovery of truths, hitherto concealed, about serious violations of human rights and international humanitarian law committed during Nepal's internal conflict. As it stands now, Nepal is leaning towards the catastrophic practice mentioned above as exemplified by Libya.

Tellingly, the two sections of the Constitution devoted to national human rights institutions (NHRIs) focus only on what may be described as forward looking institutions: the National Human Rights Commission (Part 25) and seven smaller thematic commissions – the Women, Dalit, Inclusion, Adibasi Janajati (Indigenous Peoples), Madheshi, Tharu, and Muslim commissions (Part 27). In keeping with the spirit and mandate established for NHRIs in the Paris Principles, these commissions are mandated to address problems and grievances ensuing in the present and as such are not mandated to delve into allegations of violations from the conflict era (The Paris Principles, 1993)

To summarize this section, Nepal has gone from a profound initial commitment to dealing with GVHRs committed during the conflict to a Constitution in which the commitment to human rights begins from the present and firmly looks forward. The moral burden of truth recovery is excluded, and with it any recognition of the State's obligation to provide legal remedy and comprehensive reparations to actual victims – to those who suffer, still, from the worst of acts, perpetrated as a result of decisions made by agents of the incumbent State or by those fighting for a vision of a fairer society. From a strategic perspective, moreover, as Nepal seeks to restore the integrity of public institutions and public trust therein, it will not have sufficient truth with which to prevent, in Zalaquett words,

... the military or other groups or institutions responsible for past abuses to escape the judgment of history and insist on exculpatory versions of what happened; new recruits will absorb an institutional tradition which has not expunged its most objectionable aspects. All this can only weaken efforts to prevent the recurrence of human rights abuses and to reinforce the rule of law. (Zalaquett, 2009)

(ii) A process subverted: The suppression of truth recovery from truth commission legislation

This vanishing political commitment to public engagement with serious human rights violations linked to the conflict is also evident in the processes that eventually established, and has defined the form of, Nepal's two truth commissions.

Based upon the provisions indicated above in the CPA and the Interim Constitution, draft bills for a Truth and Reconciliation Commission (TRC) and a Commission to Investigate Forced Disappearances (CoID) were tabled in early 2010. In mid-2011, a seven-member thematic subcommittee, with participation from the three major parties, was established in the Constituent Assembly to examine the two bills and establish sufficient agreement to ensure the legislation could pass in the plenary. The work of the subcommittee drew support from the UN's lead office on human rights, the Office of the High Commissioner for Human Rights (OHCHR), which provided collegial support in the hope of ensuring compliance with international norms and standards. This approach prompted what a process that became as known as Chalphal: candid discussions, the contents of which remained (and still remain) off-the-record and in which a variety of facilitative methods were deployed to ensure participants would not lose face when opening up their questions or party's needs or interests. One international expert shared lessons learned in comparable processes elsewhere: the responsibility for the wording of the legislation remained with the subcommittee. The Chalphal proceeded expeditiously and within weeks produced wide-ranging consensus compliant with international norms and standards on much of the TRC bill, with a few nettlesome topics bracketed off for further negotiation.

Abruptly, and precisely as a consensus began to crystallize around international norms and standards, the process was cut short. In mid-November, the three major parties established an "informal" task group in its stead. The mandate for OHCHR's country office in Nepal was not renewed and in the aftermath of the dissolution, in May 2012, of the Constituent Assembly, the Council of Ministers submitted a draft "Ordinance on Investigation of Disappeared People, Truth and Reconciliation Commission, 2069 (2012)" to the President of Nepal for promulgation.²⁰ Massive public rejection of the draft Ordinance helped stall its passage into law.

Nonetheless, on 14 March 2013, President Ram Baran Yadav promulgated the Ordinance. (Ordinance on Investigation of Disappeared Persons, Truth and Reconciliation Commission, 2069 (2013)). Amid the outcry that ensued, OHCHR commented that the document contained "... important differences to that which had been subject to consultation and debate by the Constituent Assembly (*ibid*)". Concerns long raised by OHCHR had not been addressed, in particular, about any mandate that would enable the commissions to grant amnesty. This, OHCHR had regularly shown, would be inconsistent with international law. (*ibid*)

The Ordinance was also quickly challenged by two writs before the Supreme Court, which issued a stay order prohibiting the operation of the Ordinance while it deliberated. On 2 January 2014, the Supreme Court ruled that the Ordinance was neither constitutional nor compliant with international norms and standards.²¹ Criticizing the government for its attitude towards its obligations to provide justice and reparations for GVHRs, the Supreme Court ruled against amnesties, such as that in the Ordinance, for crimes under international law and gross violations of human rights. It rejected the restrictions placed on prosecutions in Sections 25 and 29 of the Ordinance and moreover affirmed that statutes of limitation cannot apply to serious crimes (JuRI Nepal and Ram Kumar Bhandari et.al vs Government of Nepal, 2014). Crucially too, the Supreme Court moreover recognized victims as central to the transitional justice process and their participation in decisions about the commissions' basic provisions as mandatory (ibid, para. 56.D). It also criticized the notion that the commissions could facilitate reconciliation between victims and perpetrators (ibid, para 56. A)

Immediately following the Supreme Court ruling, the government formed a small Task Force that included representatives of victims' groups and was tasked with making recommendations, within ten days, based on the Supreme Court's ruling. On 2 April 2014, the Task Force submitted three draft bills to the government - one for the establishment of each of the commissions as well as one that would enable the criminalization of serious human rights violations under Nepalese law.

Totally ignoring these drafts, the government appointed an alternative committee three days later, to be coordinated internally, within the Office of the Prime Minister, and which shortly afterwards was reconstituted as a six-person team comprising two representatives from each of the three main parties²². The draft was tabled on 18 April 2014 and adopted a week later. Members of Parliament, who had tabled 18 amendments, were made to withdraw their proposed changes by their respective party leaders (Sharma, 2014).

Heedless of the outcry, President Ram Baran Yadav signed the final text of the adopted Act on 11 May 2014, thus bringing into force the Act on Commission on Investigation of Disappeared Persons, Truth and Reconciliation, 2071 (2014). Only after it had been passed were the final contents of the Act made public. As it turned out, the Act ignores the Supreme Court ruling, ignores the drafts submitted by the Task Force, ignores the outcomes of extensive consultations with victims' groups, and ignores Nepal's international obligations.

Two days later, widespread calls were made by victims' groups and other organizations of civil society to boycott the Commissions. The United Nations too has since indicated it will only support the Commissions once the legislation complies with international norms and standards (OHCHR, 2016). And on 26 February 2015, the Supreme Court of Nepal struck down a clause in the Act giving the two Commissions powers to recommend amnesties for serious human rights violations perpetrated during the conflict (1996 -2006). It also forbade the Commissions from facilitating "reconciliation"²³ between perpetrators and victims without the voluntary and informed consent of the victim. It also ruled that conflict-related cases in the courts that had been shelved pending the establishment of the commissions should be heard directly by the courts (OHCHR, 2015) "The decision," commented the International Commission of Jurists, "distinguished between the jurisdiction of the courts and the criminal justice system, and the non-judicial reconciliation and truth-seeking mechanisms established by the TRC Act" affirming that, "only the judiciary ... can determine the criminality of any violations committed in the context of the country's decade-long conflict."²⁴

Commissioners were subsequently appointed to the two commissions on the basis of a divvying up of position between the three major parties, thus following the "worst practice" exemplified by, among others, the Democratic Republic of the Congo. The result in that context was that representatives of the various parties and groups allegedly used their positions to cover up GVHRs perpetrated by members in their party, while seeking opportunities to expose crimes committed by rival groups. The commission collapsed in dissension after two years without having ever got fully under way. While each context is unique, there is to date nothing to indicate that using the same formula will produce a different result in Nepal.²⁵

To date, the Supreme Court ruling is yet to be implemented. On the contrary, on 05 May 2016, a nine-point deal was announced that, in flagrant disregard for the Supreme Court ruling - directs authorities to withdraw all conflict related cases before the courts and to provide amnesty to alleged perpetrators (Human Rights Watch, 2016). Amid accusations that it was not complying with the nine-point deal, the CPN-UML government collapsed three months later. Discussion between the two major opposition parties, the Communist Party of Nepal (Maoist-Centre) and the Nepali Congress (NC) led to appointment of chairman of the CPN (Maoist-Centre), Pushpa Kamal Dahal (also known as "Prachanda") as prime minister as part of a seven point deal in which transitional justice formed one of the major concerns ("Seven-point deal", 2016, July 12). At the time of

writing, speculation is widespread that the Act on Commission on Investigation of Disappeared Persons, Truth and Reconciliation, 2071 (2014) may be on the verge of amendments designed, under the guise of reconciliation, to formally entrench impunity and block any comprehensive truth recovery process.

4. Growing strategic options on the ground for truth recovery

Given the manifest dearth of commitment that currently prevails among Nepal's political elites to comprehensive truth recovery, what may be done to tackle the continuing truth deficit? Is Nepal doomed to follow the divisive examples of the likes of Bangladesh's International Crimes Tribunal, with its selective prosecutions; of the Congo's truth commission, so politicized it failed to earn victims' trust; of Libya's reparations, with its bundling together of victims of GVHR with fallen war heroes; of Algeria, where the concept of reconciliation has been perverted into a legal impediment to families' right to truth about loved ones forcibly disappeared by authorities? What options still avail in Nepal, what strategies may be formulated to ensure that the truth about GVHRs perpetrated in the conflict setting is recovered, made part of the public record and the basis of any reparative measures? What may be done? *Ke garne?*

As shown in the above narrative, much of the reaction – by the international community, by the Supreme Court of Nepal, by civil society – has been directed at provisions and actions in the legislation that would facilitate impunity. Widespread consultations have been held involving victims' groups, Nepal's vibrant civil society and OHCHR, which has declared it would withhold support for Nepal's truth commissions, pending an overhaul of the legislation that ensures it conforms to Nepal's obligations under international law (OHCHR, 2014). This necessarily includes fulfilling the obligation "... to ensure the prompt, thorough, independent and impartial criminal investigation of gross violations of international human rights law and serious violations of international humanitarian law and where sufficient evidence exists, to prosecute the alleged perpetrators." (OHCHR, 2016)

Reiterating the arguments about combatting impunity through accountability in a court of law, which are amply available elsewhere, would be outside the purpose of the present article, with its focus on prospects for truth recovery and its role in Nepal's embattled peace. Suffice it here to recognize both that an absolute stand against impunity is vital – it helps preserve the integrity of the notion of justice, without which any peace is doomed – and that, like any ideal, may also inadvertently miss other messier but helpful ways forward.

In this regard, it may be worth recalling that the very concept of a truth commission originated in situations where prosecutions were legally blocked (Argentina, Chile) or deemed politically imprudent (South Africa). In such situations, establishing what happened did not carry with it the expectation of a swift follow through in the form of trials. And yet, in each of these contexts, truth recovery proved to have a multifaceted and sometimes transformative effect. Most poignant, perhaps, has been the importance simply having the truth acquired for victims. Especially in cases of disappearance, the questions loved ones asked have often been excruciatingly intimate: What were my loved one's last words? Did death come quickly or was she made to suffer long? Where are his remains now, so I can hold what is left of him one last time and then bury him with dignity? Truth, to victims, has often proved to have a worth, a meaning, that exceeds its role as the basis for prosecution.

To argue thus is not to undermine prosecutions: it is to recognize, with empathy, the impact of violation and the torment of being trapped in its memory and denied continually the information one needs to process, to heal, to live again in the midst of devastating, intimate loss. Criminal justice proceedings may provide victims with some satisfaction, as recognized in the "UN's Basic Principles and Guidelines for Reparations," which identifies "Judicial and administrative sanctions against persons liable for the violations" as a means of offering victims satisfaction (UN, 2006). At the level of truth recovery, victims may find satisfaction from the acknowledgement that comes when facts are formally established on the basis of "documents of proven authenticity and testimony which has been vigorously cross-examined and then judicially analyzed. (Robertson, 2006)" However, even in situations where prosecutions are possible, and helpful, victims' questions are not what a criminal justice proceeding is designed to address. In a courtroom, victims' role is limited to giving testimony in proceedings firmly focused on the accused and on establishing their culpability, or doubt: it is not on those who have taken the brunt of the wrong done, or the suffering they now endure, or providing answers to the questions they may have. Seeing prosecutions as the necessary corollary of truth recovery may hold the hidden risk of dismissing the value and utility of truth, in and of itself, and to victims.²⁶

The advent of truth commissions marks the beginning thus of a prolific awareness, internationally, of the multifaceted meanings truth may hold for victims of GVHR. The subverting in Nepal of the processes by which mechanisms ostensibly about truth are established, and mandated, is therefore especially cynical: it represents an attempt to gain control over what may be acknowledged by officials, and therefore known publicly, about grievous crimes

for which the State – through its officials and armed forces - is responsible. Although devastating – to victims, to human rights, and to prospects for peace - the predicament is not unique to Nepal. On the contrary, it is sadly typical.

Inasmuch as subverting truth recovery for political gain has occurred, and continues to occur, elsewhere, the responses of victims, civil society and other stakeholders in such contexts may be instructive for Nepal. For one, the battle for truth must be fought on multiple fronts: lobbying for implementation of Supreme Court rulings and a corresponding reinforcement of the legal infrastructure; diplomatic pressure for an overhaul, both in letter and spirit, of the truth commission legislation to ensure that it conforms, at least in critical areas, with international norms and standards; and, above all, supporting those elements in civil society seeking to get the job of truth recovery done. And precisely because efforts by political authorities to block, undermine or leverage truth commissions occur elsewhere, numerous learnings, tactics and strategies avail. Three examples may suffice here:

- In Cambodia, civil society organization DC-Cam (the Documentation Centre of Cambodia) has over many years collected evidence on a vast scale and in myriad forms: primary documentation, from official policy directives to personal diaries; news clippings; recordings of songs sung by Khmer Rouge revolutionaries. The organization has also conducted a project seeking out and charting mass graves as well as Khmer Rouge prisons and detention centers (The Documentation Center of Cambodia, 1995). So much material had DC-Cam amassed, over many years, that it has provided the vast bulk of the evidence used by the Extraordinary Chambers in the Courts of Cambodia for the Prosecution of Crimes Committed during the Period of Democratic Kampuchea (ECCC).
- In Guatemala, the Recovery of Historical Memory (REMHI) Project was initially created by the Catholic Church using pastoral methods to address extreme social dysfunctionality in communities. As people began to talk through their frustrations, a picture emerged of underlying pain produced by a violational episode, often perpetrated on a massive scale. REMHI's report provided so much insight, and evidence, that it was included in the report of Guatemala's truth commission, the *Comisión para el Esclarecimiento Histórico* (Commission for Historical Clarification) (Archdiocese of Guatemala, 1999).
- In Zimbabwe, Solidarity Peace Trust has brought a psycho-therapeutic approach to working with survivors of the *Gukurahundi* massacres, in which over 20 000 civilians are alleged to have been killed as part of

a campaign by Robert Mugabe to eradicate potential opposition. The result has been an expanded appreciation for the concept for truth, in light of how many victims of GVHR may share their memory of trauma within the frameworks of African storytelling traditions, including through use of myth (Eppel, 2008).

As evident in the above, civil society initiated truth projects may represent an act of faith, that obtaining, securing and archiving evidence will eventually be of use to a formal comprehensive truth recovery. In Cambodia, it has supported the prosecution of a handful of Khmer Rouge leaders for crimes that produced the death of over 1.7 million people. In Guatemala, it has complemented the work of an official truth commission limited by mandate and undermined by political authorities. In Zimbabwe, it has given comfort and laid the basis for an eventual reckoning. “Unofficial Truth Projects,” as Louis Bickford has called them, have a variety of functions in relation to formal truth commissions: they may, he notes, be a replacement for a truth commission, a precursor that creates the demand for one, or even be outright opposed to a flawed commission, upholding an alternative to it. (Bickford, 2007)

Crucial to note in the above examples – drawn from regions as diverse as SE Asia, Central America, and southern Africa - is that each of the initiatives began with very little truth already in place. This is not the case in Nepal, where human rights monitoring has been extensive, both during the conflict and in its aftermath. Salient among the materials that still avail has been a massive work undertaken by OHCHR over many years, comprising two parts: the Transitional Justice Reference Archive (TJRA)²⁷ - a database of some 30,000 documents and cases sourced from the National Human Rights Commission (NHRC), the Informal Sector Service Center (INSEC) and other civil society organizations, both national and international as well as from OHCHR’s own monitoring - and an accompanying report, the Nepal Conflict Report, which provides a detailed analysis of the data, organized into the most salient types of GVHRs perpetrated during Nepal’s internal conflict (2012). The work represents, in the words of then UN High Commissioner for Human Rights, Navi Pillay, “... not an investigation, but a preliminary exercise to identify credible allegations with a reasonable basis for suspicion that a serious breach of international law has occurred. (Nepal Conflict Report, 2012)

A wealth of material compiled, archived, analyzed and, at the time of writing, fully accessible and searchable online, the Nepal Conflict Archive and Report together represent a resource enjoyed by few truth recovery projects – whether an

official commission or civil society initiated. This substantive resource, combined with examples of innovative, civil society led truth recovery elsewhere, offers a point of departure for comprehensive truth recovery, for victim satisfaction and for peace in Nepal. For victims embody a lesson, in the daily ache of broken limbs, in lives marked by emptiness where once there was a daughter's laughter, a husband's smile, a father's hand on a child's shoulder: that without truth, there can be no peace. "We will not go away. We will not be quiet. We will not be forgotten."²⁸

Notes

- 1 Whereas several terms pertaining to truth have emerged in the lexicon of transitional justice, such as "truthseeking" and "truth telling", this article introduces the term "truth recovery" as a concept broad enough to encompass all the various activities, approaches and strategies that may contribute to establishing sufficient truth to contribute significantly to transforming the conflict situation. The therapeutic connotations of the term "recovery" have the additional pertinence inasmuch as it highlights the restorative, healing objectives of obtaining truth.
- 2 Achaanoko chot khukurilai ke thahaa. Such sentiments seem virtually universal. One African proverb puts it thus: The axe forgets, the tree remembers.
- 3 The aphorism, "The first casualty of war is truth" is generally attributed to a United States senator, Hiram Johnson, in an unrecorded 1918 speech. The first recorded appearance of the phrase was by Ponsonby, A. (1928) *Falsehood in Wartime: Containing an Assortment of Lies Circulated Throughout the Nations During the Great War*. London: Garland.
- 4 See for example the description by Edgar Gutiérrez of the Project for the Recovery of Historical Memory (REMHI) in Guatemala, a pastoral project that made manifest "[the] very complex consequences, of different kinds, of a confrontation that ripped the basic fabric of Guatemalan society. It profoundly disrupted social psychology, induced a censoring of important areas of individual and collective memory, and tried to divest reconciliation of its liberating spirit as a profound act of love and genuine internal reconstitution." Gutiérrez, E. "Memory and reconciliation: The story of Guatemala." Retrieved from a site no longer available: http://www.wacc.org.uk/wacc/publications/media_development/archive/2001_4/memory_and_reconciliation_the_story_of_guatemala).
- 5 Namely, the Comprehensive Peace Accord, the Interim Constitution that followed, and the (current) Constitution of Nepal, 2015 (2072).
- 6 Such sentiments seem virtually universal among victims. One African proverb puts it thus: The axe forgets, the tree remembers.
- 7 The ways in which "truth" is used here emerged in the face of purposeful

withholding by authoritarian states of detailed information about GVHRs from those who suffered the brunt of it – the victims – as well as from the broader public. It therefore signifies a demand, rooted in a moral right, to access factual detail about GVHRs perpetrated against oneself and against others in the society in which one lives. It generally comprises information that could contribute to prosecution of such crimes as well as answers to intimate questions victims may have, such as a mother's need to know whether her child found peace before dying at the hands of a torturer.

- 8 See for example: Human Rights Watch. (2014). Egypt: Fresh Assault on Justice. Retrieved from <https://www.hrw.org/news/2014/04/29/egypt-fresh-assault-justice>.
- 9 See for example: Amnesty International. (2015/2016). Annual Report: Turkey 2015 / 2016. Retrieved from <https://www.amnesty.org/en/countries/europe-and-central-asia/turkey/report-turkey/>
- 10 Amnesty International. (2015/2016). Annual Report: Bangladesh 2015 / 2016. Note especially: "At least 16 people accused of mass human rights violations during the 1971 Independence War were on trial at the end of the year. Well-documented killings by pro-independence forces were not addressed by the authorities." Retrieved from <https://www.amnesty.org/en/countries/asia-and-the-pacific/bangladesh/report-bangladesh/>.
- 11 On one occasion, at an event in the Stade de Martyrs in Kinshasa, one of the present authors witnessed a victim shouting at the head of the truth commission, who was sitting on the stage, and asked how he expected victims like himself to cooperate with the commission when among the commissioners was a commissioner who, it was widely rumoured, had given orders for acts to be perpetrated precisely like those about which victims would be testifying? (Source: Terry Savage, eyewitness).
- 12 An expansive use of the term "State" is made here to refer both to official government and to rebel groups who exert political authority in a specific territory and thus function as the de facto State. Initially designed to regulate the behaviour of states, Human Rights law has in recent decades also been applied to de facto political authorities. The Maoist rebel movements in Nepal constitutes precisely one such rebel group.
- 23 Algeria's Charte pour la paix et la reconciliation (Charter for Peace and National Reconciliation), which prohibits discussion about cases of enforced disappearance on the grounds that it is injurious to the nation's dignity.
- 14 As evident in virtually all of the emblematic cases from the conflict time. See <http://advocacyforum.org/emblematic-cases/>.
- 15 Our construction of the term "blanket reparations" obviously draws from the more established term "blanket amnesty," which refers to a juridical mechanism designed to prevent prosecution, usually for crimes committed in a particular period of dictatorship or conflict. Of particular relevance for present purposes is that blanket amnesties create this impediment in advance of any inquiry, thus

blocking not only prosecution in a court of law but also the formal criminal investigations upon which such proceedings would be based. In terms of truth recovery, “blanket reparations” has a similar effect, in as much as it obscures any focus on GVHRs and represents an assault the rights of victims of GVHR to comprehensive reparations, *conditio sine qua non* to which is the establishment of truth.

- 16 “Civil and political rights, including the questions of: independence of the judiciary, administration of justice, impunity. The right to restitution, compensation and rehabilitation for victims of gross violations of human rights and fundamental freedoms. Final report of the Special Rapporteur, Mr. M. Chérif Bassiouni, submitted in accordance with Commission resolution 1999/33.” E/CN.4/2000/62, 18 January 2000. Retrieved from http://ap.ohchr.org/documents/alldocs.aspx?doc_id=1920
- 17 The different genres of the three documents is readily acknowledged: it is necessary to compare apples with apples. That said, the basic point here remains: that these three documents serve to reflect the respective political vision, as outlined by the leading political groups, at three particular historical moments and that shifts of priorities are noteworthy when an element once considered crucial is discarded without having in the least been fulfilled.
- 18 First employed in an international setting in 1915 with reference to the Turkish Government’s massacres of Armenians, the term has been used with slightly different nuances by the various international tribunals that have ensued. The International Criminal Court uses it to refer to “any of the following acts when committed as part of a widespread or systematic attack directed against any civilian population, with knowledge of the attack: (a) Murder; (b) Extermination; (c) Enslavement; (d) Deportation or forcible transfer of population; (e) Imprisonment or other severe deprivation of physical liberty in violation of fundamental rules of international law; (f) Torture; (g) Rape, sexual slavery, enforced prostitution, forced pregnancy, enforced sterilization, or any other form of sexual violence of comparable gravity; (h) Persecution against any identifiable group or collectivity on political, racial, national, ethnic, cultural, religious, gender [...] (i) Enforced disappearance of persons; (j) The crime of apartheid; (k) Other inhumane acts of a similar character intentionally causing great suffering, or serious injury to body or to mental or physical health.” (See International Crimes Database for a succinct discussion of the evolution of the term; accessible at <http://www.internationalcrimesdatabase.org/Crimes/CrimesAgainstHumanity>).
- 19 The objections have centred on the demarcations of Nepal’s internal map and on insufficient inclusion in the State apparatus of historically disadvantaged groups living in the Terai region.
- 20 Transmitted to the President of Nepal on 28 August 2012. Though never publicly released, an unofficial translation is available at www.simonrobins.com/missing/wp-content/uploads/.../Nepal-TRC-Ordinance.pdf.

- 21 See the narrative provided by Swiss NGO, TRIAL, on these developments (<http://www.trial-ch.org/en/activities/litigation/the-advocacy-center-trial-act/acts-cases/nepal.html>) as well as the overview of the Supreme Court decision by Wendy Zeldin for the US Library Congress (<http://www.loc.gov/law/foreign-news/article/nepal-supreme-court-rules-government-ordinance-on-truth-and-reconciliation-commission-to-be-unconstitutional/>).
- 22 That is, the Communist Party of Nepal-Unified Marxist Leninist (CPN-UML), the Nepali Congress (NC) and the United Communist Party of Nepal (Maoist) (UCPN-M).
- 23 The word used in Nepali is "Melmilap." The term does not hold the sort of connotations "reconciliation" did at the South African Truth and Reconciliation Commission, for example, which sought to prioritize victims' needs and to establish truth, not least by enabling perpetrators to reveal information they uniquely held and to do so in the full glare of the public spotlight. Inasmuch as reconciliation denotes a coming to terms, South Africa sought to reconstruct these terms based on truth that was undeniable because it had been revealed by perpetrators themselves.
- 24 Both references, International Commission of Jurists, "Nepal: Government must implement landmark Supreme Court decision against impunity". Retrieved from <http://www.icj.org/nepal-government-must-implement-landmark-supreme-court-decision-against-impunity/>
- 25 The widely accepted best practice is to seek proposals from the public of public figures widely respected for their impartiality and universal application of human rights, across partisan boundaries. Those who agree to be on the shortlist thereby would then necessarily be vetted through, again, a public process. Many superb commissioners in diverse contexts were not national leaders at the time of selection. More crucial was that they were trusted and their impartiality had been proven.
- 26 Prioritizing the truth even where conditions mitigate against prosecutions may moreover lead to the establishment of a record that, with time, draws public debate and grows support for prosecutions. General Augusto Pinochet was prosecuted almost a decade after the release of the first Chilean truth commission's report, to cite but one example. If I may take the liberty of elaborating Zalaquett's immensely useful phrase, "the whole truth and justice to the extent possible," as justice becomes possible, because it is recovering the truth that renders justice possible.
- 27 The full title of the database is "The Armed Conflict in Nepal, 1996 – 2006: A Transitional Justice Reference Archive."
- 28 The closing words of the film, Omagh, uttered by the chairman of the Omagh Support Group, Michael Gallagher, whose son was killed in the Omagh bombing of 1998. Travis, P. (2004) [Video file] Retrieved from <https://www.youtube.com/watch?v=KKiBee3zVYc>.

References

- Accord Global Et Inclusif Sur La Transition en RDC*, signed in Pretoria, South Africa, 17 December 2002 and adopted at Sun City 01 April 2003. Retrieved from <http://democratie.francophonie.org/IMG/pdf/VII.1.pdf>.
- Algeria's *Charte pour la paix et la reconciliation* (Charter for Peace and National Reconciliation). (2015)
- Bassiouni, C. (2002). *Post Conflict Justice*. New York: Transnational.
- Bickford, L. (2007). Unofficial Truth Projects. *Human Rights Quarterly*, 29, 1004.
- Cambodian Prime Minister Hun Sen, quoted in Chhang, Y. (2007). The Thief of History. *International Journal of Transitional Justice*. Vol.1, 163.
- Comprehensive Peace Agreement*, November 21, 2006. (Unofficial Translation). Retrieved from <http://www.usip.org/publications/peace-agreements-nepal>
- Eppel, S. (2008). *A Tale of Three Dinner Plates"—forensic, narrative and psychological truths and the challenges facing human rights researchers in Zimbabwe*. Retrieved from <http://www.solidaritypeacetrust.org/493/a-tale-of-three-dinner-plates/>.
- Human Rights Watch. *Nepal: 9-Point Deal Undermines Transitional Justice*. Retrieved from <https://www.hrw.org/news/2016/05/12/nepal-9-point-deal-undermines-transitional-justice>.
- Inter-American Court. (1998). *Velásquez Rodríguez Vs. Honduras Case*, Judgment of July 29, 1988.
- Joinet, L. (1997). *The Administration of Justice and the Human Rights of Detainees: Question of the Impunity of Perpetrators of Human Rights Violations (Civil and Political)*. U.N. ESCOR: Commission on Human Rights, Sub-Commission on Prevention of Discrimination & Protection of Minorities
- JuRI Nepal and Ram Kumar Bhandari et.al vs Government of Nepal*, Writ No. 069-WS-0057 and 069-WS-0058, para 56. C, Supreme Court, Decision on 2 January 2014
- Méndez, J. (1998). The Right to Truth. In C. C. Joyner (Ed.), *Reining in Impunity for International Crimes and Serious Violations of Fundamental Human Rights*.
- Office of the High Commissioner for Human Rights. (2016). *Nepal: OHCHR position on UN support to the Commission on Investigation of Disappeared Persons and the Truth and Reconciliation Commission*. para. 10. Geneva: OHCHR. Retrieved from <http://www.ohchr.org/EN/Countries/AsiaRegion/Pages/NPIndex.aspx>
- Office of the High Commissioner for Human Rights. (2011). *Reparations without Truth, Reparations without Justice? An Assessment of Dilemmas, Obstacles and Strategic Options for Reparations in Nepal*.
- Office of the High Commissioner for Human Rights. (2012). *Nepal Conflict Report: An analysis of conflict-related violations of international human rights law and international humanitarian law between February 1996 and 21 November 2006*, p.14. Geneva: OHCHR. Retrieved from <http://www.ohchr.org/EN/Countries/AsiaRegion/Pages/NepalConflictReport.aspx>

- Office of the High Commissioner for Human Rights. (2013). OHCHR Comments on the Nepal Commission on Investigation of Disappeared Persons, Truth and Reconciliation Ordinance. p.1. Geneva: OHCHR. Retrieved from <http://www.ohchr.org/EN/Countries/AsiaRegion/Pages/NPIndex.aspx>.
- Office of the High Commissioner for Human Rights. (2014). OHCHR *Technical Note: The Nepal Act on the Commission on Investigation of Disappeared Persons, Truth and Reconciliation, 2071 (2014)* – as Gazetted 21 May 2014. Geneva: OHCHR. Retrieved from <http://www.ohchr.org/EN/Countries/AsiaRegion/Pages/NPIndex.aspx>.
- Office of the High Commissioner for Human Rights. (2015). *Nepal: Zeid bails Supreme Court rejection of amnesties for serious human rights violations*. Retrieved from <http://www.ohchr.org/en/NewsEvents/Pages/DisplayNews.aspx?NewsID=15649&LangID=E>
- Ordinance on Investigation of Disappeared Persons, Truth and Reconciliation Commission*. Available at: <http://www.simonrobinson.com/missing/wp-content/uploads/2013/02/Nepal-TRC-Ordinance.pdf>.
- Principles relating to the Status of National Institutions (The Paris Principles)* adopted by General Assembly resolution 48/134 of 20 December 1993. Retrieved from <http://www.ohchr.org/EN/ProfessionalInterest/Pages/StatusOfNationalInstitutions.aspx>
- Rajendra Dhakal vs the Government of Nepal* (Writ no 3575, 100, 104, 323, 500, 45, 41, 155, 162, 164, 167, 97, 110, 111, 142, 211, 250, 223, 262, 378, 418, 485, 617, 632, 635, 54(0002) 0004, 2588/0038). For a fuller discussion, see <http://www.trial-ch.org/en/activities/litigation/the-advocacy-center-trial-act/acts-cases/nepal/dhakal-case-january-2012.html>
- Report of the Chilean National Commission for Truth and Reconciliation*, p.15. Retrieved from <http://www.usip.org/publications/truth-commission-chile-90>.
- Reshaped Human Rights: A Conceptual History of Transitional Justice. *Human Rights Quarterly*, 31, 321–367. Retrieved from http://paigeathur.com/sites/default/files/Arthur_How%20Transitions%20Reshaped%20Human%20Rights_2009.pdf
- Robertson, G. (2006). *Crimes Against Humanity*. pp. 621. London: Penguin.
- Seven-point deal between Nepali Congress and Maoists? (2016, July 12). *The Himalayan Times*. Retrieved from <https://thehimalayantimes.com/kathmandu/seven-point-deal-between-nepali-congress-maoists/>
- Seven-point deal between Nepali Congress and Maoists? (2016, July, 12). *The Himalayan Times*. Retrieved from <https://thehimalayantimes.com/kathmandu/seven-point-deal-between-nepali-congress-maoists/>
- Sharma, M. (2014). *TRC Act breaches int'l law and decisions of the Supreme Court of Nepal*. Retrieved from <http://setopati.net/opinion/1740/TRC-Act-breaches-int'l-law-and-decisions-of-the-Supreme-Court-of-Nepal/>.
- The Armed Conflict in Nepal, 1996 – 2006: A Transitional Justice Reference Archive*. The analysis and the electronic archive are accessible at <http://nepalconflictreport.ohchr.org/>

The Constitution of Nepal, 2015 (2072)

The Documentation Center of Cambodia. *Mapping Project: 1995 to present*. Retrieved from <http://www.dccam.org/Projects/Maps/Mapping.htm>

The Interim Constitution of Nepal, 2063 BS (2007). Accessible at <http://un.org.np/node/10500>;

United Nations. (2006). *Basic Principles and Guidelines on the Right to a Remedy and Reparation for Victims of Gross Violations of International Human Rights Law and Serious Violations of International Humanitarian Law*. Adopted and proclaimed in 2005 by General Assembly Resolution 60/147 Retrieved from <https://daccess-ods.un.org/TMP/6579703.68862152.html>

Universal Declaration of Human Rights. Retrieved from <http://www.un.org/en/documents/udhr/>.

Zalaquett, J. (2009). Confronting Human Rights Violations Committed by Former Governments: Principles Applicable and Political Constraints. In Seminar Report of the Justice and Society Program, The Aspen Institute, State Crimes: Punishment or Pardon, cited in Arthur, P. How "Transitions" Reshaped Human Rights: A Conceptual History of Transitional Justice. *Human Rights Quarterly*, 31, 321–367. Retrieved from http://paigearthur.com/sites/default/files/Arthur_How%20Transitions%20Reshaped%20Human%20Rights_2009.pdf



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The United States has been a friend and partner of Nepal and the Nepali people for nearly 70 years. Together, we continue to focus on strengthening the country's prospects for peace and prosperity. On this 10th anniversary of the Comprehensive Peace Accord, we commend the people of Nepal for the important milestones that have been achieved – a national dialogue on the role and functions of the state, addressing some important political grievances, adopting a new constitution, and initiating a truth and reconciliation process. While more work still remains toward fully enfranchising all Nepalis to enable them to contribute maximally in government and the economy and realizing a peace dividend, Nepal has made much progress in advancing the tenets of the Peace Accord for which it should be proud.

As Nepal's democracy develops it shows signs of great potential. Both national elections for the Constituent Assembly were considered open and free, and showed trends of increased voter turnout from 2008 to 2013. A vibrant civil society is taking on a greater role in proposing positive options for moving the country forward while also holding leadership accountable through constructive, critical engagement and oversight. And the people of Nepal understand that a true democracy is one in which they are included in, and represented by, their government. The United States has great faith in Nepal's democracy. We trust that the constitution will be implemented in an inclusive manner that guarantees rights, freedoms, and equal opportunity for all. Such progress, however, will not just happen. It requires the active engagement of diverse voices, a commitment to a shared vision for a stable and prosperous future, and the maturity to compromise for the benefit of the country. We encourage Nepali leaders to engage in productive and meaningful negotiations to ensure that the aspirations of all Nepalis are addressed.

The convening of representative and participatory Constituent Assemblies, clearing of landmines, and attempts to address problems related to caste and gender discrimination illustrate the commitment of Nepal's people and political

parties to continue to move forward on peace and reconciliation. We recognize the challenges associated with transitional justice, and encourage all parties to ensure that mechanisms to unveil the truth and provide effective remedies to the victims of the conflict meet Nepal's international and national legal obligations.

The United States' primary objective in Nepal is to support the ambitions of the Nepali people for a democratic, prosperous, and stable country. We commend the successes realized over the past decade and remain committed to supporting Nepal's efforts toward sustainable and inclusive development, continued peace and stability.



Statist peacebuilding: A prief critique and some reflections for donors

George Varughese and Anil Raman

Introduction

As the system of international relations is constructed around inter-state relations and because building effective state mechanisms is accepted as critical to laying durable foundations for legitimate national development, most donor governments tend to focus almost exclusively on engagement with state actors in order to achieve political settlements and build state capacity to deliver development outcomes, including those related to peacebuilding. States do need to develop the capacity to administer and deliver services to their people. Apart from creating and maintaining capacities for governance, state-led development legitimizes the government with the people. However, it is also true that in many developing countries, especially in the case of the least developed countries and those enduring internal conflict, the state is unable or often unwilling to implement development. Many of these states are rentier by nature, totalitarian in character, deeply riven by internal conflict along ethnic, sectarian, and religious lines, and ineffective in administering their territory. In such cases the state-centric approach to development is likely to be ineffective and may even exacerbate the situation, especially if it is affected by conflict. Donors may thus be forced to engage directly with the people to provide both humanitarian aid and development assistance.

One advantage of a people-centric approach is that it is quicker, especially in the case of humanitarian aid, and more inclusive. In the case of peacebuilding, involving the people often leads to a broader and more lasting peace as the levels of conflict include communities and is not restricted to the state or sub-state levels. The disadvantage is that the process is labor intensive, more fraught, and may not lead to a quick end to violence in the short term, which is normally considered a measure of the success of the process.

Thus, donor governments often confront the choice between supporting development programs and projects through counterpart government agencies or through non-state mechanisms. The paths chosen for development—including peacebuilding—have a crucial effect on the outcome. This gives rise to certain fundamental questions for donors:

Is the state the best mechanism for development in such countries, especially in conditions of conflict?

Is the state- focused approach to peacebuilding the most effective?

Many developing countries are exemplified by conditions of conflict, weak state mechanisms, and chronic development crises. Quite a few of them emerge out of autocratic regimes through popular movements and insurgencies, with tremendous expectations and the unstinting support of the international community. In the recent times, countries like Nepal and South Sudan have received massive amounts of developmental aid and also have enormous potential for development and progress because of their natural resource endowments. They are however wracked by violent dissent and political instability almost immediately after regime change, and despite decade-long efforts at implementing national peace settlements are still struggling to stabilize.

A statist approach to development and peacebuilding

After six decades of development assistance, the importance of the nation- state as an essential actor in achieving developmental progress is now well established. The state ideally has the resources and the legitimacy to ensure that development reaches every citizen. The role of a state is dependent both on the scope of the services it provides and its strength or capacity. States like France, Denmark, Finland, Norway, and Sweden have an extensive range of services supported strongly by budgetary allocations and administrative capacity. Others like the former USSR had a larger scope of services but weaker support due to weak revenue streams and low productivity. Developing countries, especially after independence in the mid-1900s and later, had a large scope even if they were not very strong in capacity. In the development field this contributed to, amongst other factors, a policy prescription for developing countries, based on the Washington Consensus, of structural adjustments, liberalization, and reduction of the role of the state. This turned out to be disastrous as the drop in state funding for socioeconomic programs resulted in hunger, disease, and conflict. This led to two major conclusions in the discourse: that the strength of state was

more important than the scope of its services; and the vital roles of governance and institutional capacity of the state (Brahimi, 2007; Fukuyama, 2004; Moore, 2004).

In many cases in developing countries, however, the state was ineffective because it had become rapacious and apathetic to the welfare of its people with its focus on rent seeking rather than development. Rent-seeking has been defined as the “expenditure of resources and effort in creating, maintaining, or transferring rents usually by the state or other actors in power” (Khan & Jomo, 2000). This is usually illegal, has a tremendous social cost, and often leads to conflict (Kjetil & Naghavi, 2011; Mbaku & Paul, 1989). Rentier states also become prone to instability due to the consequences of inherent inequality and dissatisfaction leading to the weakening of state institutions (Fearon, 2005; Snyder & Bhavnani, 2005). This is especially true in sub-Saharan Africa in countries where the quality of democratic institutions is poor and the state is weak (Rabah & Gylfason, 2013). The weakness of states is thus well established as a causal factor in conflict.

An abundance of high-value natural resources increases the intensity of rent seeking (Ross, 1999) and leads to increased corruption (Bhattacharya and Hodler, 2009). Rentier states are usually characterized by authoritarian rule, corruption, nepotism and internal strife (Aklasken, 2010). When states are resource rich, the likelihood of conflict increases as mineral wealth can be used for funding by rebel groups making the state a more attractive target for rebels (Fearon & Laitin, 2003). It also weakens the state as separatism becomes financially attractive in resource-rich regions (Collier & Hoeffler, 2004; Le Billon, 2005).

In the case of developing nations, particularly those that acquire rentier characteristics, the state is often culpable for neglecting the population, exacerbating poverty, and generating instability, all of which result in conflict in most cases (DiJohn, 2002; Khan & Jomo, 2000). While the rent-seeking nature of states often leads to strife, conflict in developing countries also arises from other causes.

Causes of civil conflict can be categorized in terms of long term and short-term causes (Michailof et al, 2002) or in terms of the ones that initially caused large-scale violence and those that are perpetuated by the forces created by the initial violence (World Bank, 2003). While these causes may include political, historical and social ones, the economic factor has a major role in conflict generation (Miguel, Satyanath, & Sergenti, 2004). Indeed, economic factors may well be

more important than political factors in causing conflict (Collier and Hoeffler, 1998, 2001, 2002; Fearon & Laitin, 2003). This is reinforced by the World Bank finding that: "Countries with low, stagnant, and unequally distributed per capita incomes that have remained dependent on primary commodities for their exports face dangerously high risks of prolonged conflict." (World Bank, 2003) Thus, while conflict increases poverty, the latter also causes conflict and thus a conflict trap is formed (ibid). In such cases inequalities among ethnic groups, including political marginalization and wealth disparity along ethnic lines are often the primary drivers of conflict (Miguel, Satyanath & Sergenti, 2004).

Peacebuilding as conceptualized by the UN, which is responsible for most of the peacebuilding efforts in developing countries, is an "action to identify and support structures, which will tend to strengthen and solidify peace in order to avoid a relapse into conflict" (UNPBF). The Brahimi Report of 2000 defined peacebuilding as "activities undertaken on the far side of conflict to reassemble the foundations of peace and provide the tools for building on those foundations something that is more than just the absence of war" (ibid). By 2009, the UN identified five priority areas of assistance in peacebuilding: (1) support to basic safety and security; (2) political processes; (3) provision of basic services; (4) restoration of core government functions, and (5) economic revitalization (ibid). The present UN doctrine for peacebuilding is spelt out in the "New deal for Engagement in Fragile States" (ibid). This promotes a nationally owned peacebuilding plan and sets out four goals: "address drivers and root causes; build institutions and capacities of individuals, communities and authorities to manage conflict and deliver services; enhance social cohesion and build trust among social groups; build trust in and legitimacy of governments" (ibid).

While there is a recognition of communities in the current UN doctrine, the focus remains governments and the state. Peacebuilding measures must also aim to prevent conflict from reemerging. Through the creation of mechanisms that enhance cooperation and dialogue among different identity groups, these measures can help parties manage their conflict of interests through peaceful means. This might include building institutions that provide procedures and mechanisms for effectively handling and resolving conflict. A more grassroots level to peacebuilding approach is suggested by J.P. Lederach in which he posits that post-conflict peacebuilding is a system which needs specific focus on key issues (Lederach, 2005). He recommends three major changes to existing peacebuilding concepts: (i) incorporation of long term plans for social change along with short term actions for conflict cessation; (ii) the need for a more holistic, organic view rather than a hierarchical approach to politics, and (iii)

creation of social, psychological, economic and spiritual transformations rather than a narrow technical focus of political transition processes.

Thus, in conflict-affected, lesser developed countries the dilemma that donors confront on development and peacebuilding is considerable: reliance on a weak rentier state and actors at the national level is likely to be ineffective; however, sidelining these and attempting to reach out directly to the people risks reducing the legitimacy and credibility of the state in the long run. Contemporary examples of nations where donors have coped inadequately with this dilemma are Afghanistan, South Sudan, and Nepal where the aftermath of violent conflict has been dominated by ethnic overtones that vitiate political settlements and hinder developmental progress.

Concluding reflections

Stability is the essential foundation for peacebuilding and is usually achieved either through internal power accommodation (Staniland, 2012) or by an external stabilization force (Collier, Hoeffler, & Soderborn, 2008). Conflict resolution and peacebuilding are essential pre-requisites to development and need to be long lasting for a country to prosper. Conflict resolution and peacebuilding efforts also have to incorporate economic measures to resolve the root causes of conflict. Whatever their causes, conflicts in the developing world have increasingly taken on an ethnic character with horrific violence involving not only military combatants but also the general population. Ethnically mobilized conflicts also have a very much higher risk for intensification into war (Eck, 2009). Since the violence in such conflicts is often at the community level, peace can be restored only by addressing issues at these levels. Local actors must formulate their own goals for the future, and their voices must be heard in the decision-making bodies that dictate the course that development will take (Pugh 1998). Whatever the arrangements for sustainable peace to resolve intra-state conflict in developing countries, it is essential that peacebuilding efforts are inclusive of the people and not focused only on state actors. Participation of local people in the process of conflict transformation is crucial because it helps to foster self-sufficiency and sustain development over time (Lederach, 1997). However, state-level actors cannot be neglected due to their influence in controlling violence (Brahimi, 2007). Thus for a developing country to recover from conflict, deal with its bloody past, and proceed on a stable path to development, a right balance between the involvement of the state and the people has to be achieved.

- Prior to agreeing support to fragile, conflict-affected countries, donors must soberly assess regimes for their ability to commit credibly to

transform systems that perpetuate marginalization or perpetrate violence. Support for enhancement of state capacities should be conditional on those capacities being equitably distributed and for peaceful purposes rather than for security purposes beyond the legitimate needs of countering external aggression.

- In such countries, donors should expend effort in assessing public mood, need, and interest at community levels directly and regularly as the ineffectiveness or apathy of the state is likely to retard development and lead to instability.
- Peacebuilding efforts should not focus solely on central, top-level political leaders at the expense of subnational, middle-level leaders and the people at the grassroots. Too much power at the top incentivizes corruption, while too little power at the middle and grassroots levels results in frustration and violence. There is need to create a genuine sense of participation, responsibility, and ownership in the peace process across a broad spectrum of the population.
- Post-conflict peacebuilding needs to balance between short-term, urgent measures that instill faith in the peace process and long-term processes that help sustain peace over time. Donors should ensure that long-term conflict mitigation measures like proportional representation in power structures and political power sharing forms an integral part of state building.
- Investment in changing for a better future has to calibrate with and hinge upon the need to deal with the past. The spectrum of peacebuilding should seek reconciliation and a durable sense of security, and not focus solely on political change. Donor investment in discourse and practice for a peaceful future should therefore include concomitant investment in discourse and practice for reconciliation. This investment should consider support for actions not only at transitional and implementation levels but also at the transformative level, at which the basic questions about roles, relationships, and goals are addressed.

The dilemma regarding the approaches to development which donors face in supporting development and peacebuilding especially in conflict affected, developing states, is real and the outcomes of the choices are critical. States have an important role in that they have the advantages of structure, reach and hopefully permanence. Strengthening state capacities is critical to laying a foundation for long term development and serves to legitimize the state. However, as in the case of Nepal, a state that is characterized by weak governance, institutionalizes ethnic parochialism, is rent seeking and perpetrates violence against its own population,

is unlikely to be an effective platform for development. Such a state instead of fostering unity and strengthening governance is likely to create dissatisfaction and promote conflict (Jenkins & Plowden, 2008). Nepal is an example of how state-focused peacebuilding may go awry in the absence of built-in, concomitant subnational peacebuilding and conflict transformation efforts.

The complex character of conflict in developing countries—especially ethnically-charged conflict—makes for difficult peacebuilding; and conventional diplomatic processes adopted by the UN and other intermediating bodies have struggled to have durable impact on peace. The nature of these conflicts with intertwined psychosocial, cultural and historical tensions between and among layers of human society cannot be meaningfully addressed by a statist approach to peacebuilding that deploys a vertical process focused on politics and hierarchy.

References

- Bhattacharyya, Sambit & Hodler, Roland. (2010). "Natural Resources, Democracy and Corruption", *European Economic Review*, 54(4), 608-621.
- Bandyopadhyay, Sanhamitra & Green, Elliot. (2013). "Nation-Building and Conflict in Modern Africa". *World Development*, 45, 108-118.
- Brahimi, L. (2007). *State building in crisis and post-conflict countries*. In 7th Global Forum on Reinventing Government, Vienna.
- Buhaug, Halvard, Lars-Erik Cederman, and Kristian S. Gleditsch. (2013). Square pegs in round holes: Inequalities, grievances, and civil war. *International Studies Quarterly*, forthcoming.
- Collier, P., Elliott, V. L., Heger, Havard, Hoeffler, A., & Reynal-Querol, M., Sambanis, Nicholas. (2003). *Breaking the conflict trap: Civil war and development policy*. World Bank Policy Research Paper.
- Collier, P., Hoeffler, A., & Söderbom, M. (2008). Post-conflict risks. *Journal of Peace Research*, 45(4).
- DiJohn, Jonathan. (2002). *Mineral Resource Abundance and Violent Political Conflict: A crucial assessment of the Rentier State Model*. Crisis States Program Working Paper. Development Studies Institute: London School of Economics.
- Eck, Kristine. (2009). From armed conflict to war: Ethnic mobilization and conflict intensification. *International Studies Quarterly* 53(2).
- Fearon, James D. & Laitin, David D. (2003). Ethnicity, Insurgency, and Civil War. *American Political Science Review*, 97, 75-90.
- Fukuyama, F. (2004). *State-building: governance and world order in the 21st century*. New York: Cornell University Press.
- Jenkins, K., & Plowden, W. (2008). *Governance and nation building: The failure of international intervention*. UK: Edward Elgar Publishing.

- Kjetil, Bjorvatn A & Naghavi, Alireza. (2011). Rent Seeking and Regime Stability in Rentier States. *European Journal of Political Economy*, 27, 740–748.
- Khan, M. H. and Jomo K.S., (ed). (2000). *Rents, Rent-Seeking and Economic Development: Theory and Evidence in Asia*. Cambridge: Cambridge University Press.
- Le Billon Philippe. (2005). *Fueling War: Natural resources and Armed Conflict*. Adelphi.
- Lederach, J. P. (2005). *The Moral Imagination: The Art and Soul of Building Peace*. Oxford: Oxford University Press.
- Lederach, J. P. (1997). *Building Peace: Sustainable Reconciliation in Divided Societies*. Washington: USIP.
- Mbaku, J., & Paul, C. (1989). Political Instability in Africa: A Rent-Seeking Approach. *Public Choice*, 63(1).
- Michailof et al. (2002). *Post-Conflict Recovery in Africa: An Agenda for the Africa Region*. World Bank Africa Region Working Paper Series No. 30.
- Miguel, E., Satyanath, S., & Sergenti, E. (2004). Economic shocks and civil conflict: An instrumental variables approach. *Journal of Political Economy*, 112(4).
- Mlambo, M. K., Kamara, A. B., & Nyende, M. (2009). Financing post-conflict recovery in Africa: the role of international development assistance. *Journal of African Economies*, 18(1).
- Moore, M. (2004). Revenues, State Formation, and the Quality of Governance in Developing Countries. *International Political Science Review*, 25(3).
- Mushtaq H. Khan and Kwame Jomo. (2000). *Rents, Rent-Seeking and Economic Development -Theory and Evidence in Asia*. Cambridge: Cambridge University Press.
- Ostrom, E., Gibson, C. C., Andersson, K., & Shivakumar, S. (2005). *The Samaritans Dilemma: The political economy of development aid*. Oxford: Oxford University Press.
- Pugh, Michael. (1998). *Post-Conflict Rehabilitation: The Humanitarian Dimension*. Center for Applied Studies in International Negotiations
- Rabah Arezki and Thorvaldur Gylfason. (2013). Resource Rents, Democracy, Corruption and Conflict: Evidence from Sub-Saharan Africa. *African Economy*.
- Richard Snyder and Ravi Bhavnani. (2004). Diamond, Blood, and Taxes: A Revenue-Centered Framework for Explaining Political Order. *Journal of Conflict Resolution*, 49(4):563-597.
- SAIS. *The Conflict Management Toolkit: Approaches*. Johns Hopkins University: The Conflict Management Program
- Staniland, P. (2012). States, Insurgents, and Wartime Political Orders. *Perspectives on Politics*, 10(02).
- Vrbensky, R. (2009). Can development prevent conflict? Integrated area-based development in the Western Balkans: Analysis. *Conflict, Security & Development*, 9(1).



Public perception on comprehensive peace accord in Nepal

**Integrated Governance Project survey,
Democracy & governance Office/USAID Nepal**

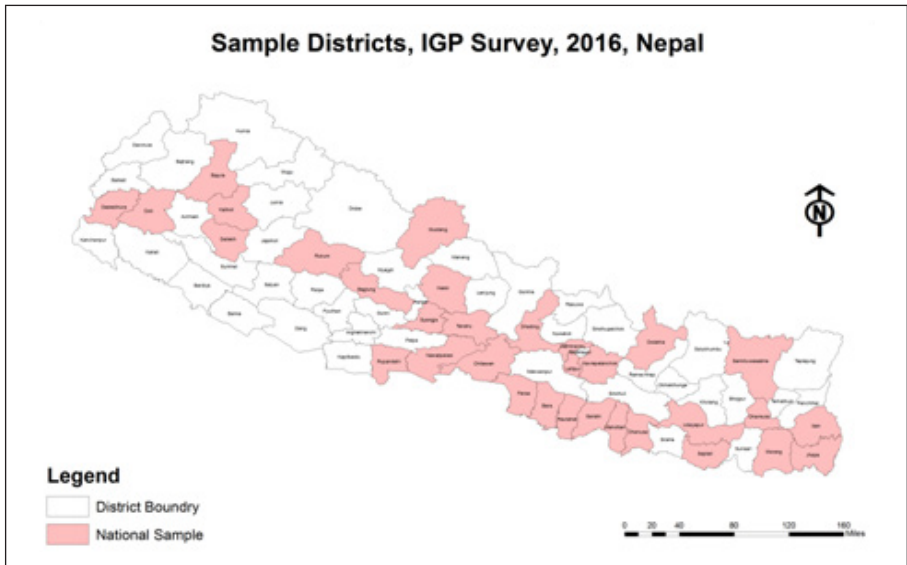
Summary

This analysis has focused on assessing the public perception with regard to the progress made on the Nepal's Comprehensive Peace Accord forged between the then government and Maoist rebels in 2006 using the data from the baseline survey conducted between November 28, 2015 and January 5, 2016. A total of 780 households as the National sample were drawn adopting the household-based cluster sampling method. The summary measures of the data are confined to percentage and mean tables. The subject population of this study were any male or female members aged between 18 and 65 years. The analysis was done on the subset of data, collected during the Integrated Governance Project survey, of the Democracy & Governance Office, USAID Mission to Nepal.

Over 83 percent of the respondents in the national sample believe that the peace process is moving in a very slow pace. Among the eleven components related to the peace process, most of the respondents perceived progress on nine components. On the other hand, most of the respondents felt no progress at all on the remaining two components: restructuring the state and implementing new land reform. The data suggests that attempts should be made to expedite the peace process as per the mandate of the Comprehensive Peace Agreement.

Background

In 2015-2016, USAID/Nepal's Democracy and Government Office (DGO) conducted a nationally representative Inclusive Governance Project (IGP) sample survey to assess progress against the indicators and learning agenda of Development Objective One (DO1) across the development sectors covered by USAID. The survey was based on extensive in-person interviews, mostly



comprising scaled opinion questions on a variety of topics. The baseline round of the survey was conducted between November 28, 2015 and January 5, 2016. Most of the interviews were conducted during the month of December.

A household-based cluster sampling method was used to select the required sample from among the total population. Fifty-two clusters (780 households) were randomly selected from every administrative area in Nepal, weighted by population size.

Purpose

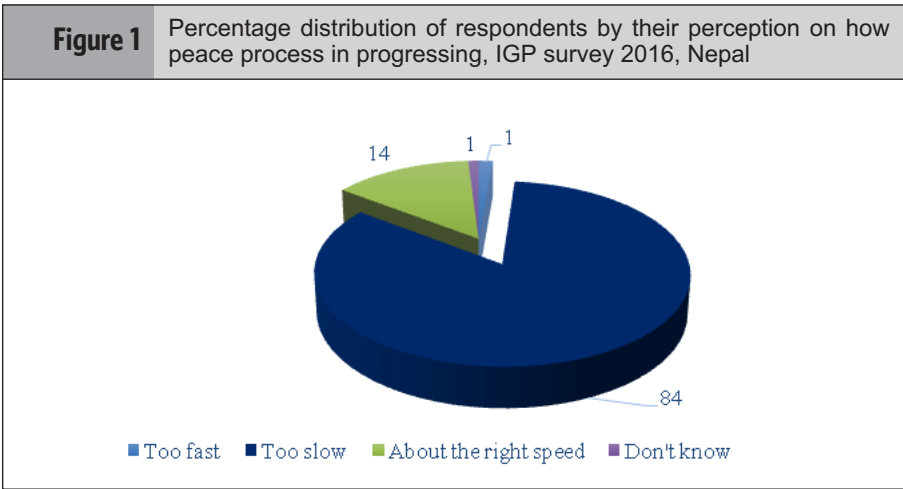
In order to achieve more inclusive and effective governance, the DGO seeks to sustain a peaceful political environment (IR 1.1). The study was focused on assessing the public perception with regard to the progress made on the Nepal's Comprehensive Peace Accord forged between the then government and Maoist rebels in 2006. The findings of this analysis are expected to provide better understanding of the latest public opinions pertaining to progress on the peace process.

Results

The data analysis comprises two broad sections: overall perception with regard to the progress on the Comprehensive Peace Accord and its eleven components.

Overall perception on peace process

Figure1 examines the overall perception of the respondents on the government-signed Comprehensive Peace Agreement, which officially ended the armed insurgency in Nepal in 2006. The analysis reveals that over 83 percent of the respondents in the national sample believe that the peace process is moving slowly. This was followed by those who said “about the right speed” (slightly above 14percent) (Figure 1). The data leads to the conclusion that people are not satisfied with the speed the peace process has beenmoving ahead. The same patterns of resultswere observed when the data was further examined by the selected background characteristics of the respondents.



*Note=National sample of 780 respondents (18 – 65 years) from 42 districts.
Note: Survey time: November 28, 2015 to January 5, 2016*

Perception on components of peace process

Table 1explores the perception of the respondents on how each of the eleven components of the peace process covered in this study is progressing. The data indicates that over 80 percent of the respondents in believe that “absolving the king and electing constituent assembly” component of the peace process has been completed. This reveals that still about 20 percent of the respondents do not believe that this component of the peace process has been completed.

Similarly, 43 percent of the respondents believe that “ending the conflict” component of the peace process has been completed. Besides that, there were

about one-fourth of the respondents who believe that a significant progress has been achieved in this regard. In contrast, there were about 32 percent of the respondents who do not seem to be satisfied regarding the progress of “ending the conflict” component of the peace process. Similar pattern of response was observed on “drafting a new constitution” component. This could represent varying public opinions about the quality of peace and the new constitution.

With respect to “guaranteeing human rights for all of Nepal’s citizens, including social, civil, economic and cultural rights” component, majority of the respondents seemed disappointed, as only about 17 percent of them believe that this component has achieved a major progress. Similar pattern of response was observed with regard to “resolving problems based on class, caste, region and gender”,and “restructuring the state” components of the peace process. These are certainly areas for future work.

With respect to the progress on “managing the army and arms” component though, majority of the respondents (over 84percent) seem satisfied. The positive response regarding “integration of Maoist combatants into Nepal Army” is even higher (over 90percent); this matches international perceptions of the disarmament process in Nepal, which are viewed widely as one of the most successful aspects of Nepal’s peace process.

About half of the respondents reported unfamiliarity with “establishing a Truth and Reconciliation Commission (TRC) and a Commission on Investigation of Disappeared Persons (CIDP)” component. On average, around 13 percent each reported “some progress”felt “very little progress” concerning this issue. This is interesting to note since the TRC and CIDP had been formed at the time the survey was conducted.

The respondents also expressed their satisfaction with the progress on “clearing landmines” component, as over 62 percent responded either ‘completed’ or ‘lot of progress’ in this regard.Few others (21 %) said that there has been ‘a little progress’ on it.

For “Implementing new land reform” 54 percent responded either ‘very little progress’ or ‘no progress at all’. Twenty-four percent of the respondents said that they were not familiar with this process.

Figure 2 shows the percentage distribution of respondents by their perception on how each components of peace process were progressing.

Table 1 Percentage distribution of respondents by their perception on how each component of the peace process is progressing, IGP survey 2016, Nepal

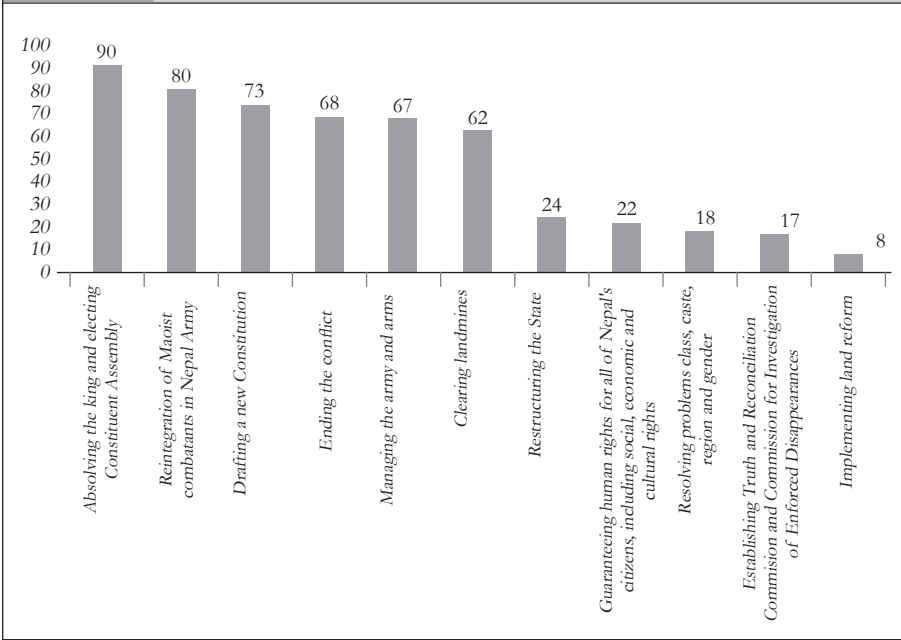
Components of peace process and response	National Sample
Absolving the king and electing constituent assembly	
This component has been completed	80.4
Lots of progress	9.9
Some progress	4.9
Very little progress	3.7
No progress at all	0.6
Don't Know/Have never heard of it	0.5
Ending the conflict	
This component has been completed	42.8
Lots of progress	24.7
Some progress	18.1
Very little progress	9.0
No progress at all	5.1
Don't Know/Have never heard of it	0.3
Drafting a new constitution	
This component has been completed	48.3
Lots of progress	24.5
Some progress	9.5
Very little progress	7.8
No progress at all	6.8
Don't Know/Have never heard of it	3.1
Guaranteeing human rights for all of Nepal's citizens, including social, civil, economic and cultural rights	
This component has been completed	5.0
Lots of progress	16.5
Some progress	41.7
Very little progress	23.1
No progress at all	10.1
Don't Know/Have never heard of it	3.5
Refused	0.1
Resolving problems based on class, caste, region and gender	
This component has been completed	3.7
Lots of progress	14.0
Some progress	34.6
Very little progress	30.1
No progress at all	15.8
Don't Know/Have never heard of it	1.8
Restructuring the State	
This component has been completed	8.8
Lots of progress	14.9

Components of peace process and response	National Sample
Some progress	19.4
Very little progress	16.2
No progress at all	31.5
Don't Know/Have never heard of it	9.2
Managing the army and arms	
This component has been completed	37.4
Lots of progress	29.2
Some progress	17.7
Very little progress	7.4
No progress at all	3.1
Don't Know/Have never heard of it	5.0
Refused	0.1
Reintegration of Maoist combatants in to Nepal Army	
This component has been completed	56.2
Lots of progress	24.2
Some progress	10.0
Very little progress	3.7
No progress at all	1.9
Don't Know/Have never heard of it	4.0
Establishing a Truth and Reconciliation Commission and a Commission on Investigation of Disappeared Persons	
This component has been completed	8.6
Lots of progress	7.9
Some progress	12.9
Very little progress	13.8
No progress at all	7.3
Don't Know/Have never heard of it	49.4
Clearing landmines	
This component has been completed	24.9
Lots of progress	36.7
Some progress	21.0
Very little progress	7.1
No progress at all	5.8
Don't Know/Have never heard of it	4.6
Implementing new land reform	
This component has been completed	0.8
Lots of progress	7.6
Some progress	13.5
Very little progress	14.4
No progress at all	39.7
Don't Know/Have never heard of it	24.1
Total (%)	100
Total (n)	780

Note: Respondents indicates any household members aged between 18 and 65 years.

Figure 2

Figure 2: Percentage distribution of respondents by their perception on how each components of peace process is progressing, IGP survey 2016, Nepal I



Note=National sample of 780 respondents (18 – 65 years) from 42 districts.

Note: Survey time: November 28, 2015 to January 5, 2016

The data was further examined by reducing the six scaled responses:

- (1) completed,
- (2) lots of progress
- (3) some progress
- (4) very little progress
- (5) no progress at all, and (6) don't know/have never heard of this, into three response scale categories. Respondents either say there is a progress (including component completed) or there is no progress or don't know/no response on each of the components. On the basis of progress or no-progress response, mean ratings were calculated. The level of progress or no-progress is stronger if the rating is closer to 1 or -1 and is weaker if the rating is closer to 0. The ratings of the 11 statements are presented in Table 3 as mean score.

Table 3 Mean ratings of the response on components of progress of peace process, IGP survey 2016, Nepal			
Components of peace process and response	National Sample	USAID Districts	Non USAID Districts
Absolving the King and electing a Constituent Assembly	0.91	0.85	0.92
Reintegration of Maoist combatants in to Nepal Army	0.85	0.80	0.86
Managing the army and arms	0.74	0.69	0.75
Ending the conflict	0.72	0.69	0.74
Clearing landmines	0.70	0.60	0.72
Drafting a new constitution	0.68	0.68	0.67
Guaranteeing human rights for all of Nepal's citizens, including social, civil, economic and cultural rights	0.30	0.08	0.32
Establishing a Truth and Reconciliation Commission and a Commission on Investigation of Disappeared Persons	0.08	0.01	0.12
Resolving problems based on class, caste, region and gender	0.06	0.00	0.09
Restructuring the State	-0.05	-0.17	-0.07
Implementing new land reform	-0.32	-0.47	-0.33
Total (n)	780	1200	660

Note: Respondents indicates any household members aged between 18 and 65 years.

Among the eleven components related to the peace process, most of the respondents perceived progress on nine components:

- 1) absolving the King and electing a constituent assembly;
 - 2) reintegration of Maoist combatants in to Nepal army;
 - 3) managing the army and arms;
 - 4) ending the conflict;
 - 5) clearing landmines;
 - 6) drafting a new constitution;
 - 7) guaranteeing human rights for all of Nepal's citizens, including social, civil, economic and cultural rights;
 - 8) establishing a truth and reconciliation commission and a commission on investigation of disappeared persons; and
 - 9) resolving problems based on class, caste, region and gender.
- In contrast, most of the respondents felt no progress on the remaining two components: restructuring the state; and implementing new land reform.

Key Findings

- Over 83 percent of the respondents believe that the peace process is moving in a very slow pace.
- Among the eleven components related to the peace process, most of the respondents perceived progress on nine components. On the other hand, most of the respondents felt no progress at all on the remaining two components: restructuring the state and implementing new land reform.

Recommendation

- Attempt should be made to expedite the peace process as per the mandate of the Comprehensive Peace Agreement since the public perceive it is still moving slowly
- The Government should focus on the two components that people feel the least amount of progress has been made on: restructuring the state and implementing new land reform



Conclusion

Daman Nath Dhungana*

Evaluation of Nepal's peace process

The main objective of the peace process is to heal the wounds of the war and build enduring foundation for peace. It also entails return of public life to normalcy and resurgence of faith in the human rights in the common people.

In achieving these objectives, documents including 12 points-agreement, ceasefire code of conduct, Comprehensive Peace Accord (CPA) and other agreements with the stakeholders have acted as guidelines. However, it can be observed that some of the mechanisms required for implementation of these agreements were not formed accordingly. For instance, National Ceasefire Monitoring Committee (2006), though was effective, was not continued. National Peace and Rehabilitation Commission as provisioned in the Article 8.1 of CPA as a Differences Settlement and Implementation Mechanism was never established. High Level Commission for State Restructuring was formed after unnecessary delay. But the report submitted by the commission has not been respected and implemented so as to reflect it in the constitution.

Considered to bring forth the truth as soon as the CPA was signed, the Truth and Reconciliation Commission (TRC) and Commission for Investigation of Enforced Disappearances (CIED) have been established only a year ago. This indicates how the urgent obligation to promote conducive environment for national reconciliation and victims-centric justice was grossly overlooked. Numerous cases of human rights violations of heinous nature identified by the Office of United Nations High Commissioner for Human Rights and other international as well as national organizations have not been addressed as per the law.

Despite my sympathies for the parties in the past and present, trying to understand their practical difficulties, I do not have the choice but to say that Nepal's peace process has missed out on its inherent urgencies. The political parties clearly

failed on keeping up with the stipulated timeline regarding implementation of the agreements overall. Confusions were created and due attention was not paid to discourage it from becoming a weak and fragile process because of which the process became a prey to the interests of the political parties. Rather than being guided by the norms and processes determined by themselves, the conflicting parties or the political parties made decisions based on their internal mindsets, ultimate agreements or power-sharing gentlemen's agreements. With this evaluation, I agree with Dr. Birendra Mishra (Coordinator of the National Monitoring Committee on Code of Conduct for Ceasefire) on his assessment "Nepal's peace process is an unmonitored process".

Bottleneck: Hesitation to monitor

It is imperative to analyze Nepal's peace process critically. However, it doesn't mean that the process has been futile and there are no achievements at all. The only thing I would like to stress is that the spirit of any peace process entails respecting the agreements and monitoring the implementation of those agreements. My only emphasis is that the acts of the insurgents and the state (government or political parties) should have been strictly monitored. If only all the agreed mechanisms had been established within the stipulated time, major undertakings of the peace process would have been positively accomplished. Optimism would have now prevailed among people that republican democratic political change truly addressed the issues of the poor and the marginalized, and the foundation of enduring peace would have already been laid. My only concern lies in the hesitation encountered by the process in being monitored.

Achievements of the peace process

Nepal's biggest achievement since the beginning of the peace process is the remarkable reduction in cases of political killings, violence, terror and anarchy which prevailed in the preceding decade. This positivity is a result of decision of the then Communist Party of Nepal (Maoist) to join the peaceful mainstream politics, and give up the strategy of establishing people's state by capturing state power through armed revolution. The most important achievement of Nepal's peace process is to present it as a unique case to the world. It is natural to wish that Nepal does not enter another phase of armed conflict again. And it is necessary to extend our gratitude towards all national and international friends and organizations including United Nations and UNMIN which helped in building conducive environment for Maoists to join and advance the peaceful political process.

Successful disarmament of the Maoist combatants from their weapons/arms was an important lesson learnt. Disarmament also includes an attempt of disarmament of the political aspect of the political party based on armed forces. However, the question raised globally is whether those who carried arms once can be disarmed mentally like they are disarmed physically. I suggest to leave this question unanswered at this stage in Nepal's case.

In my opinion, integration of Maoist combatants in Nepali army was one of the knottiest job completed with hard labor and deserves appreciation. Yet, questions are still asked if it was well-thought out decision to not integrate all the combatants (or those with skills of operating armed weapons) in national security forces in some special way or sending them off to their homes without keeping them in some form of rehabilitation centers.

The other big success of Nepal's peace process is the promulgation of the new Constitution in September, 2015. No matter how it was promulgated, it has become a historical document as it is the first Constitution written by Constituent Assembly in Nepal's history. Hence, its significance cannot be underestimated by any means. Instead, attempts should be made develop ways for including the voices of dissatisfied groups through dialogue and agreement. This, in my opinion, could be an easier path to achieve peace. However, it is important to understand that the abovementioned accomplishments are secondary aspects when the broader infrastructures for sustainable peace are put in motion.

Prospects for future

As a long-term objective, the priority of a country after conflict should be establishment of democracy to develop responsible and transparent political culture to address the basic as well as structural root causes behind poverty, discrimination and inequality. As for the current need in the Nepal's peace process, all stakeholders need to work on getting the constitution widely accepted and new zeal for nation-building is generated. The constitution should address the dissatisfaction and aspirations of *Madheshi*, *Tharu*, *Janajati*, *Adibasi*, Dalit, marginalized and other minority groups. It should represent the sentiments and dreams of the poor, and the discriminated, and should find ways to realize them. This can be achieved only on the basis of national consensus in the true spirit of the mandate of the 2006 people's movement. The constitution should be amended or a thorough review should be done by legislature-parliament at the earliest to accomplish this outstanding responsibility. A constitution owned by all Nepalis is the call of time for future Nepal.

Padma Ratna Tuladhar*

In the years of conflict between 1996 and 2006, there was an appalling loss of lives and property. The era of violence was concluded with series of dialogues, negotiations and agreements. The main institutions set up right after the success of the people's movement in 2006 were the Comprehensive Peace Accord (CPA), the 2007 Interim Constitution and the Constituent Assembly. These institutions delivered historic achievements like Republic system, federalism, secularism and pro-inclusionary state policies.

Due to these historic achievements, I consider Nepal's peace process to be a unique case in the world. After nearly 10 years of continuous efforts and two elections of Constituent Assembly, a new Constitution has been promulgated in 2015. However, the constitution has not been accepted by all segments of Nepali society including Madheshi, Janajati and other marginalized groups. The future direction of Nepal should be towards embracing the voices of these dissatisfied groups.

As members of civil society, we played some role in the peace process through facilitation among the key political parties. The historic achievements of the last decade have been achieved by the joint efforts of the political parties, civil society and the Nepali people. In my opinion, the path towards just peace and development can be drawn by accommodating all voices of the Nepali society in the Constitution, laws and state policies. I think that these historic responsibilities lie on the shoulders of all accountable actors including political parties, civil society and Nepali citizens. I feel delighted when senior international leaders and scholars take Nepal's peace process as unique and native in the whole world. I am optimistic on the bright future of Nepal, and believe that the outstanding political issues will gradually be addressed through peaceful means.

Note

*Daman Nath Dhungana and *Padma Ratna Tuladhar were formal facilitators in the 2001, 2003 and 2006 peace talks between the then Communist Party of Nepal (Maoist) and Government of Nepal. Since then they have been facilitating the informal dialogues among the political parties through NTTP Forum.